

The Chronicles of Crime

Vol.I



*"Escape of the Mayor of
Bristol"*

The Chronicles of Crime

Vol.I



*"Escape of the Mayor of
Bristol"*

The Project Gutenberg eBook of The Chronicles of Crime or The New Newgate Calendar. v. 1/2

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CHRONICLES OF CRIME OR THE NEW NEWGATE CALENDAR. V.
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(etext transcriber's note)

THE
CHRONICLES OF CRIME.
FRONTISPIECE.



The Man with the Carpet Bag.

“In an instant the smile of the hostess turned to a frown, and, without further explanation, she exclaimed, looking over the bar at the same time at my unfortunate carpet-bag, ‘No, sir; we have no room; it won’t do here’.”

PHIZ

CHRONICLES OF CRIME

Edited by Camden Pelham

OF THE INNER TEMPLE BARRISTER-AT LAW
with

ILLUSTRATIONS FROM ORIGINAL DRAWINGS
BY PHIZ



Escape of the Mayor of Bristol.

“His worship, seeing me, said, ‘For God’s sake, young man, assist me up.’ I stooped down & helped his worship up, the female servants assisting him behind.”

PHIZ

THE
CHRONICLES OF CRIME;

OR,
The New Newgate Calendar.

BEING

A SERIES OF MEMOIRS AND ANECDOTES

OF

NOTORIOUS CHARACTERS

WHO HAVE OUTRAGED THE LAWS OF GREAT BRITAIN FROM THE EARLIEST

PERIOD TO 1841.

COMPRISING

COINERS.	INCENDIARIES.	PIRATES.
EXTORTIONERS.	IMPOSTORS.	PICKPOCKETS.
FORGERS.	MURDERERS.	RIOTERS.
FRAUDULENT BANKRUPTS.	MUTINEERS.	SHARPERS.
FOOTPADS.	MONEY-DROPPERS.	TRAITORS.
HIGHWAYMEN.		&c., &c.
HOUSEBREAKERS.		

INCLUDING

A NUMBER OF CURIOUS CASES NEVER BEFORE PUBLISHED.

EMBELLISHED WITH FIFTY-TWO ENGRAVINGS,

FROM ORIGINAL DRAWINGS BY "PHIZ."

BY CAMDEN PELHAM, ESQ.,
OF THE INNER TEMPLE, BARRISTER-AT-LAW.

VOL. I.

LONDON:
T. MILES & CO., 95, UPPER STREET.
1887.

PREFACE

FEW words are necessary to introduce to our readers a work, the character and the object of which are so legibly written upon its title-page. "Chronicles of Crime" must comprise details, not only interesting to every person concerned for the welfare of society, but useful to the world in pointing out the consequences of guilt to be equally dreadful and inevitable. It is to be regretted that in most of the works of the present day, little attention is paid to the ultimate moral or beneficial effects to be produced by them upon the public mind; and that while every effort is made to afford amusement, no care is taken to produce those general impressions, so necessary to the maintenance of virtue and good order. The advantages of precept are everywhere admitted and extolled; but still more effectual are the lessons which are taught through the influence of example, whose results are but too frequently fatal. The representation of guilt with its painful and degrading consequences, has been universally considered to be the best means of warning youth against the danger of temptation;—the benefits to be expected from example are too plainly exhibited by the infliction of punishment to need repetition; and the more generally the effects of crime are shown, and the more the horrors which precede detection and the deplorable fate of the guilty are made known, the greater is the probability that the atrocity of vice may be abated and the security of the public promoted.

Having said thus much in recommendation of the object of this work, a few words as to its precise character may be added. Amusement and instruction are alike the results which are hoped to be secured. It is admitted by men, whose desire it is to make themselves acquainted with human nature, that jails and other places of confinement afford them a wide field for contemplation. The study of life, in all its varieties, is one no less interesting than useful. The ingenuity of thieves, depicted in their crimes, is a theme upon which all have opportunities to remark, in their passage through a life of communication with the world; and no less worthy of observation are the offences of men, whose outrages or cruelties have rendered them amenable to the laws, framed for the protection of society. All afford matter of contemplation to the mind, most likely to be attended

with useful results. It may be observed that to persons of vicious inclination, effects the opposite to those which are suggested may be produced; but an answer as conclusive as it is just may be given to any such remark. The consequences of crime are as clearly exhibited as its motives and its supposed advantages, and few are hardy enough to declare or to exhibit a carelessness for punishment, or a contempt for the bitter fruits of their misdeeds. Presenting an example, therefore, of peculiar usefulness, it is trusted that the work will be found no less interesting than instructive. Combining these two most important qualities to secure its success, it is hoped that the patronage afforded it will be at least commensurate with the pains which have been bestowed upon its production.

It will be observed that in the preparation of these pages much care has been taken to preserve those features only which are likely to be acceptable to society. The most scrupulous attention has been paid to the rejection of such instances of guilt, the circumstances of which might be deemed unfit for general perusal. In a compass so circumscribed as that to which the work is confined, it would be impossible to give the history of every criminal who has undergone punishment for his offences, during the period to which our Chronicles extend: neither is that the object of the work. It is intended to embrace within its limits all those cases which from their details present outlines of attraction. The earlier pages are derived from sources of information peculiarly within the reach of the Editor, while those of a later period are compiled from known authorities as accurate as they are complete.

The comparison of the offences, and of the punishments of the last century, with those of more recent date, will exhibit a marked distinction between the two periods, both as to the atrocity of the one, and the severity of the other. Those dreadful and frequent crimes, which would disgrace the more savage tribes, and which characterised the lives of the early objects of our criminal proceedings, are now no longer heard of; and those characters of blood, in which the pages of our Statute-book were formerly written, have been wiped away by improved civilisation and the milder feelings of the people. It is but just to say that the provisions of a wise Parliament have not been unattended with proper results. Humanity has been permitted to temper the stern demands of justice; and however atrocious, it must be admitted, some of the crimes may be which have been recently perpetrated, and however numerous the offenders-it cannot be denied that the general

aspect of the state of crime in this country is now infinitely less alarming than formerly.

The necessity for punishment as the consequence of crime, can neither be doubted nor denied. Without it the bonds of society must be broken—government in no form could be upheld. If, then, example be the object of punishment, and peace and good order, nay, the binding together of the community, be its effects, how useful must be a work, whose intention is to hold out that example which must be presumed to be the foundation of a well-ordered society.

The cases will be found to be arranged chronologically, which, it is presumed, will afford the most satisfactory and the most easy mode of reference. This advantage is, however, increased by the addition of copious indices.

LONDON, JULY 1, 1840.

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**THE
CHRONICLES OF CRIME,
OR,
THE NEW NEWGATE CALENDAR.**

THE REV. THOMAS HUNTER.

EXECUTED FOR THE MURDER OF HIS PUPILS.

THE case of this criminal, who was executed in the year 1700, for the barbarous murder of his two pupils, the children of a gentleman named Gordon, an eminent merchant, and a baillie, or alderman of the City of Edinburgh, is the first on our record; and, certainly, for its atrocity, deserves to be placed at the head of the list of offences which follows its melancholy recital. From the title of the offender, it will be seen that he was a preacher of the word of God; and that a person in his situation in life should suffer so ignominious an end for such a crime, is indeed extraordinary; but how much more horrible is the fact which is related to us, that on the scaffold, when all hope of life and of repentance was past, he expressed his disbelief in that God whom it was his profession to uphold, and whose omnipotence it had been his duty to teach!

The malefactor, it would appear, was born of most respectable parents, his father being a rich farmer in the county of Fife, and at an early age he was sent to the University of St. Andrew's for his education. His success in the pursuit of classical knowledge soon enabled him to take the degree of Master of Arts, and his subsequent study of divinity was attended with as favourable results. Upon his quitting college, in accordance with the practice of the time he entered the service of Mr. Gordon in the capacity of chaplain, in which situation it became his duty to instruct the sons of his employer, children respectively of the ages of eight and ten years. The family consisted of Mr. and Mrs. Gordon, the two boys, their sister (a girl younger than themselves), Mr. Hunter, a young woman who attended upon Mrs. Gordon, and the usual menial servants. The attention of Hunter was attracted by the comeliness of the lady's-maid, and a connexion of a criminal nature was soon commenced between them. The accidental discovery of this intrigue by the three children, was the ultimate cause of the deliberate murder of two of them by their tutor.

The young woman and Hunter had retired to the apartment of the latter, but, having omitted to fasten the door, the children entered and saw enough to excite surprise in their young minds. In their conversation subsequently

at meal-time, they said so much as convinced their parents of what had taken place, and the servant-girl was instantly dismissed; while the chaplain, who had always been considered to be a person of mild and amiable disposition and of great genius, was permitted to remain, upon his making such amends to the family as were in his power, by apologising for his indiscretion. From this moment, however, an inveterate hatred for the children arose in his breast, and he determined to satisfy his revenge upon them by murdering them all. Chance for some time marred his plans, but he was at length enabled to put them into execution as regarded the two boys. It appears that he was in the habit of taking them to walk in the fields before dinner, and the girl on such occasions usually accompanied them, but at the time at which the murder of her brothers was perpetrated she was prevented from going with them. They were at the country-seat of Mr. Gordon, situated at a short distance only from Edinburgh, and an invitation having been received for the whole family to dine in that city, Mrs. Gordon desired that all the children might accompany her and her husband. The latter, however, opposed the execution of this plan, and the little girl only was permitted to go with her parents. The intention of the murderer to destroy all the children was by this means frustrated; but he still persevered in his bloody purpose with regard to the sons of his benefactor, whom he determined to murder while they were yet in his power. Proceeding with them in their customary walks, they all sat down together to rest; but the boys soon quitted their tutor to catch butterflies, and to gather the wild flowers which grew in abundance around them. Their murderer was at that moment engaged in preparing the weapon for their slaughter, and presently calling them to him, he reprimanded them for disclosing to their parents the particulars of the scene which they had witnessed, and declared his intention to put them to death. Terrified by this threat, they ran from him; but he pursued and overtook them, and then throwing one of them on the ground and placing his knee on his chest, he soon despatched his brother by cutting his throat with a penknife. This first victim disposed of, he speedily completed his fell purpose, with regard to the child whose person he had already secured. The deed, it will be observed, was perpetrated in open day; and it would have been remarkable, indeed, if, within half a mile of the chief city of Scotland, there had been no human eye to see so horrible an act. A gentleman who was walking on the Castle Hill had a tolerable view of what passed, and immediately ran to the spot where the deceased

children were lying; giving the alarm as he went along, in order that the murderer might be secured. The latter, having accomplished his object, proceeded towards the river to drown himself, but was prevented from fulfilling his intention; and having been seized, he was soon placed in safe custody, intelligence of the frightful event being meanwhile conveyed to the parents of the unhappy children.

The prisoner was within a few days brought to trial, under the old Scottish law, by which it was provided that a murderer, being found with the blood of his victim on his clothes, should be prosecuted in the Sheriff's Court, and executed within three days. The frightful nature of the case rendered it scarcely uncharitable to pursue a law so vigorous according to its letter, and a jury having been accordingly impanelled, the prisoner was brought to trial, and pleaded guilty, adding the horrible announcement of his regret that Miss Gordon had escaped from his revenge. The sentence of death was passed upon the culprit by the sheriff, but it was directed to be carried into effect with the additional terms, that the prisoner should first have his right hand struck off; that he should then be drawn up to the gibbet, erected near the locality of the murder, by a rope; and that after execution, he should be hanged in chains, between Edinburgh and Leith, the weapon of destruction being passed through his hand, which should be advanced over his head, and fixed to the top of the gibbet. The sentence, barbarous as it may now appear, was carried into full execution on the 22nd of August, 1700; and frightful to relate, he, who in life had professed to be a teacher of the Gospel, on his scaffold declared himself to be an Atheist. His words were, "There is no God—or if there be, I hold him in defiance." The body of the executed man, having been at first suspended in chains according to the precise terms of his sentence, was subsequently, at the desire of Mr. Gordon, removed to the outskirts of the village of Broughton, near Edinburgh.

ALEXANDER BALFOUR.

CONVICTED OF MURDER.

THE case of this criminal is worthy of some attention, from the very remarkable circumstances by which it was attended. The subject of this sketch was born in 1687, at the seat of his father, Lord Burley, near Kinross; and having studied successively at Orwell, near the place of his birth, and at St. Andrews, so successfully as to obtain considerable credit, he returned home, being intended by his father to join the army of the Duke of Marlborough, then in Flanders. Here he became enamoured of Miss Robertson, the governess of his sisters, however; and in order to break off the connexion he was sent to make the tour through France and Italy, the young lady being dismissed from the house of her patron. Balfour, before his quitting Scotland, declared his intention, if ever the young lady should marry, to murder her husband; but deeming this to be merely an empty threat, she was, during his absence, united to a Mr. Syme, with whom she went to live at Inverkeithing. On his return to his father's house, he learned this fact, and immediately proceeded to put his threat into execution. Mrs. Syme, on seeing him, remembering his expressed determination, screamed with affright; but her husband, unconscious of offence, advanced to her aid, and in the interim, Balfour entering the room, shot him through the heart. The offender escaped, but was soon afterwards apprehended near Edinburgh; and being tried, was convicted and sentenced to be beheaded by the *maiden*^[1], on account of the nobility of his family.

The subsequent escape of the criminal from an ignominious end is not the least remarkable part of his case. The scaffold was actually erected for the purpose of his execution; but on the day before it was to take place his sister went to visit him, and, being very like him in face and stature, they changed clothes, and he escaped from prison. His friends having provided horses for him, he proceeded to a distant village, where he lay concealed until an opportunity was eventually offered him of quitting the kingdom. His father died in the reign of Queen Anne, but he had first obtained a pardon for his son, who succeeded to the title and honours of the family, and died in the year 1752, sincerely penitent for his crime.

CAPTAIN JOHN KIDD,

SURNAMED THE WIZARD OF THE SEAS, AND DARBY MULLINS.

HANGED FOR PIRACY.

THE first-named subject of this memoir was born at Greenock, in Scotland, and was bred to the sea; and quitting his native land at an early age, he resided at New York, where he eventually became possessed of a small vessel, with which he traded among the pirates, and obtained a complete knowledge of their haunts. His ruling passion was avarice, although he was not destitute of that courage which became necessary in the profession in which he eventually embarked. His frequent remarks upon the subject of piracy, and the facility with which it might be checked, having attracted the attention of some considerable planters, who had recently suffered from the depredations of the marauders who infested the seas of the West Indies, obtained for him a name which eventually proved of great service to him. The constant and daring interruptions offered to trading ships, encouraged as they were by the inhabitants of North America, who were not loath to profit by the irregularities of the pirates, having attracted the attention of the Government, the Earl of Bellamont, an Irish nobleman of distinguished character and abilities, was sent out to take charge of the government of New England and New York, with special instructions upon the subject of these marine depredators. Colonel Livingston, a gentleman of property and consideration, was consulted upon the subject by the governor; and Kidd, who was then possessed of a sloop of his own, was recommended as a fit person to be employed against the pirates. The suggestion met the approbation of Lord Bellamont; but the unsettled state of public affairs rendered the further intervention of Government impossible; and a private company, consisting of the Duke of Shrewsbury, the Lord Chancellor Somers, the Earls of Romney and Oxford, Colonel Livingston, and other persons of rank, agreed to raise 6000*l.* to pay the expenses of a voyage, the purpose of which was to be directed to the removal of the existing evil; and it was agreed that the Colonel and Capt. Kidd, who was to have charge of the expedition, should receive one-fifth of

the profits. A commission was then prepared for Kidd, directing him to seize and take pirates, and to bring them to justice; but the further proceedings of the Captain, and of his officers, were left unprovided for.

A vessel was purchased and manned, and she sailed under the name of the "Adventure," from London for New York, at the end of the year 1695. A French ship was seized as a prize during the voyage; and the vessel subsequently proceeded to the Madeira Islands, to Buonavista, and St. Jago, and thence to Madagascar, in search of further spoil. A second prize was subsequently made at Calicut, of a vessel of 150 tons burden, which was sold at Madagascar; and, at the termination of a few weeks, the "Adventure" made prize of the "Quedah Merchant," a vessel of 400 tons burden, commanded by an Englishman named Wright, and officered by two Dutch mates and a French gunner, and whose crew consisted of Moors. The captain having carried this vessel into Madagascar, he burned the "Adventure," and then proceeded to divide the lading of the prize with his crew, taking forty shares for himself.

He seems now to have determined to act entirely apart from his owners, and he accordingly sailed in the "Quedah Merchant" to the West Indies. At Anguilla and St. Thomas's, he was refused refreshments; but he eventually succeeded in obtaining supplies at Mona, between Porto Rico and Hispaniola, through the instrumentality of an Englishman named Button. This man, who thus at first affected to be friendly to the pirate, soon showed the extent to which his friendship was to be relied upon. He sold a sloop to Kidd, in which the latter sailed, leaving the "Quedah Merchant" in his care; but on proceeding to Boston, New England, he found his friend there before him, having disposed of the "Quedah Merchant" to the Spaniards, and having besides given information of his piratical expedition. He was now immediately seized by order of Lord Bellamont, before whom he endeavoured to justify his proceedings, by contending that he had taken none but lawful prizes; but his lordship transmitted an account of the whole transaction to England, requiring that a ship might be sent to convey Kidd home, in order that he might be punished. A great clamour arose upon this, and attempts were made to show that the proceedings of the pirate had been connived at by the projectors of the undertaking, and a motion was made in the House of Commons, that "The letters-patent granted to the Earl of Bellamont and others, respecting the goods taken from pirates, were dishonourable to the king, against the law of nations, contrary to the laws

and statutes of this realm, an invasion of property, and destructive to commerce.” Though a negative was put on this motion, yet the enemies of Lord Somers and the Earl of Oxford continued to charge those noblemen with giving countenance to pirates; and it was even insinuated that the Earl of Bellamont was not less culpable than the actual offenders. Another motion was in consequence made to address his Majesty, that “Kidd might not be tried till the next session of parliament; and that the Earl of Bellamont might be directed to send home all examinations and other papers relative to the affair.” This was carried, and the king complied with the request which was made. As soon as Kidd arrived in England, he was sent for, and examined at the bar of the house, with a view to show the guilt of the parties who had been concerned in sending him on the expedition; but nothing arose to criminate any of those distinguished persons. Kidd, who was in some degree intoxicated, made a contemptible appearance at the bar of the house; and a member, who had been one of the most earnest to have him examined, violently exclaimed, “I thought the fellow had been only a knave, but unfortunately he happens to be a fool likewise.” Kidd was at length tried at the Old Bailey, and was convicted on the clearest evidence; but neither at that time, nor afterwards, did he charge any of his employers with being privy to his infamous proceedings.

He was executed with one of his companions, at Execution Dock, on the 23d of May, 1701. After he had been tied up to the gallows, the rope broke, and he fell to the ground; but being immediately tied up again, the Ordinary, who had before exhorted him, desired to speak with him once more; and, on this second application, entreated him to make the most careful use of the few further moments thus providentially allotted to him for the final preparation of his soul to meet its important change. These exhortations appeared to have the wished-for effect; and he died, professing his charity to all the world, and his hopes of salvation through the merits of his Redeemer.

The companion in crime of this malefactor, and his companion also at the gallows, was named Darby Mullins. He was born in a village in the north of Ireland, about sixteen miles from Londonderry; and having resided with his father, and followed the business of husbandry till he was about eighteen, the old man then died, and the young one went to Dublin: but he had not been long there before he was enticed to go to the West Indies, where he was sold to a planter, with whom he resided four years. At the

expiration of that term he became his own master, and followed the business of a waterman, in which he saved money enough to purchase a small vessel, in which he traded from one island to another, till the time of the earthquake at Jamaica in the year 1691, from the effects of which he was preserved in a miraculous manner. He afterwards went to Kingston, where he kept a punch-house, and then proceeding to New York, he married; but at the end of two years his wife dying, he unfortunately fell into company with Kidd, and joined him in his piratical practices. He was apprehended, with his commander, and, as we have already stated, suffered the extreme penalty of the law with him.

GEORGE CADDELL.

EXECUTED FOR THE MURDER OF MISS PRICE, WHOM HE HAD SEDUCED.

THIS delinquent was a native of Bromsgrove, in Worcestershire, where he was articled to an apothecary. Having served his time, he proceeded to London to complete his studies in surgery, and he then entered the service of Mr. Randall, a surgeon at Worcester, as an assistant. He was here admired for his extremely amiable character, as well as for the abilities which he possessed; and he married the daughter of his employer, who, however, died in giving birth to her first child. He subsequently resided with Mr. Dean, a surgeon at Lichfield; and during his employment by that gentleman he became enamoured of his daughter, and would have been married to her, but for the commission of the crime which cost him his life.

It would appear that he had become acquainted with a young woman named Elizabeth Price, who had been seduced by an officer in the army, and who supported herself by her skill in needle-work, residing near Mr. Caddell's abode. An intimacy subsisted between them, the result of which was the pregnancy of Miss Price; and she repeatedly urged her paramour to marry her. Mr. Caddell resisted her importunities for a considerable time, until at last Miss Price, hearing of his paying his addresses to Miss Dean, became more importunate than ever, and threatened, in case of his non-compliance with her wishes, to put an end to all his prospects with that young lady, by discovering everything that had passed between them. Hereupon Caddell formed the horrid resolution of murdering Miss Price. He accordingly called on her on a Saturday evening, and requested that she would walk in the fields with him on the afternoon of the following day, in order to adjust the plan of their intended marriage. Thus deluded, she met him at the time appointed, on the road leading towards Burton-upon-Trent, at the Nag's Head public-house, and accompanied her supposed lover into the fields. They walked about till towards evening, when they sat down under the hedge, and after a little conversation, Caddell suddenly pulled out a knife, cut the wretched woman's throat, and made his escape. In the distraction of his mind, he left behind him the knife with which he had perpetrated the deed, together with his case of instruments. On his returning

home it was observed that he appeared exceedingly confused, though the reason of the perturbation of his mind could not be guessed at; but, on the following morning, Miss Price being found murdered in the field, great numbers of people went to see the body. Among them was the woman of the house where she lodged, who recollected that she had said she was going to walk with Mr. Caddell; and then the instruments were examined, and were known to have belonged to him. He was in consequence taken into custody, and committed to the gaol of Stafford; and, being soon afterward tried, was found guilty, condemned, and executed at Stafford on the 21st of July, 1701.

THOMAS COOK.

EXECUTED FOR MURDER.

THE death of this person exhibits the singular fatality which attends some men who have been guilty of crime. Cook was the son of a butcher, who was considered a person of respectability, residing at Gloucester. He was apprenticed to a barber-surgeon in London; but running away before his time had expired, he entered the service of one of the pages of honour to William III.; but he soon after quitted this situation to set up at Gloucester as a butcher, upon the recommendation of his mother.

Restless, however, in every station of life, he repaired to London, where he commenced prize-fighter at May-fair; which, at this time, was a place greatly frequented by prize-fighters, thieves, and women of bad character. Here puppet-shows were exhibited, and it was the favourite resort of all the profligate and abandoned, until at length the nuisance increased to such a degree, that Queen Anne issued her Proclamation for the Suppression of Vice and Immorality, with a particular view to this fair; in consequence of which the justices of peace issued their warrant to the high constable, who summoned all the inferior constables to his assistance. When they came to suppress the fair, Cook, with a mob of about thirty soldiers, and other persons, stood in defiance of the peace-officers, and threw brickbats at them, by which some of them were wounded. Cooper, a constable, being the most active, Cook drew his sword and stabbed him in the belly, and he died of the wound at the expiration of four days. Hereupon Cook fled to Ireland, and, as it was deposed upon his trial, while he was in a public house, he swore in a profane manner, for which the landlord censured him, and told him there were persons in the house who would take him in custody for it; to which he answered, "Are there any of the informing dogs in Ireland? we in London drive them; for at a fair called May-fair, there was a noise which I went out to see—six soldiers and myself—the constables played their parts with their staves, and I played mine; and, when the man dropped, I wiped my sword, put it up, and went away."

The fellow was, subsequently, taken into custody, and sent to Chester, whence being removed to London, he was tried at the Old Bailey, was

convicted, and received sentence of death.

After conviction he solemnly denied the crime for which he had been condemned, declaring that he had no sword in his hand on the day the constable was killed, and was not in company with those who killed him. Having received the sacrament on the 21st of July, 1703, he was taken from Newgate to be carried to Tyburn; but, when he had got to High Holborn, opposite Bloomsbury, a respite arrived for him till the following Friday. On his return to Newgate he was visited by numbers of his acquaintance, who rejoiced on his narrow escape. On Friday he received another respite till the 11th of August, but on that day he was executed.

JOHN PETER DRAMATTI.

EXECUTED FOR THE MURDER OF HIS WIFE.

THIS unfortunate man was the son of Protestant parents, and was born at Saverdun, in the county of Foix, and province of Languedoc, in France. He received a religious education; but when he arrived at years of maturity, he left his own country, and went into Germany, where he served as a horse-grenadier under the Elector of Brandenburg, who was afterwards King of Prussia. When he had been in this condition about a year, he came over to England, and entered into the service of Lord Haversham, and afterwards enlisted as a soldier in the regiment of Colonel de la Melonière. Having made two campaigns in Flanders, the regiment was ordered into Ireland, where it was dismissed from farther service; in consequence of which Dramatti obtained his discharge.

He now became acquainted with a widow, between fifty and sixty years of age, who pretended that she had a great fortune, and was allied to the royal family of France; and he soon married her, not only on account of her supposed wealth and rank, but also of her understanding English and Irish, thinking it prudent to have a wife who could speak the language of the country in which he proposed to spend the remainder of his life. As soon as he discovered that his wife had no fortune, he went to London and offered his services to Lord Haversham, and was again admitted as one of his domestics. His wife, unhappy on account of their separate residence, wished to live with him at Lord Haversham's, which he would not consent to, saying, that his lordship did not know he was married.

The wife now began to evince the jealousy of her disposition, and frequent quarrels took place between them, because he was unable to be with her so frequently as she desired.

At length, on the 9th of June, 1703, Dramatti was sent to London from his master's house at Kensington, and calling upon his wife at her lodgings near Soho-square, she endeavoured to prevail upon him to stay with her. This, however, he refused; and finding that he was going home, she went before him, and stationed herself at the Park-gate. On his coming up, she

declared that he should go no further, unless she accompanied him; but he quitted her abruptly, and went onwards to Chelsea. She pursued him to the Bloody Bridge, and there seized him by the neckcloth, and would have strangled him, but that he beat her off with his cane. He then attacked her with his sword; and having wounded her in so many places as to conclude that he had killed her, his passion immediately began to subside, and, falling on his knees, he devoutly implored the pardon of God for the horrid sin of which he had been guilty. He went on to Kensington, where his fellow-servants observing that his clothes were bloody, he said he had been attacked by two men in Hyde Park, who would have robbed him of his clothes, but that he defended himself, and broke the head of one of them.

The real fact, however, was subsequently discovered; and Dramatti being taken before a magistrate, to whom he confessed his crime, the body of his wife was found in a ditch between Hyde Park and Chelsea, and a track of blood was seen to the distance of twenty yards; at the end of which a piece of a sword was found sticking in a bank, which fitted the other part of the sword in the prisoner's possession. The circumstances attending the murder being proved to the satisfaction of the jury, the culprit was found guilty, condemned, and, on the 21st of July, 1703, was executed at Tyburn.

WILLIAM ELBY.

EXECUTED FOR MURDER.

THIS young man was born in the year 1667, at Deptford, in Kent, and served his time with a blockmaker at Rotherhithe, during which he became acquainted with some women of ill fame. After the term of his apprenticeship had expired, he kept company with young fellows of such bad character, that he found it necessary to enter on board a ship to prevent worse consequences. Having returned from sea, he enlisted as a soldier; but while in this situation he committed many small thefts, in order to support the women with whom he was connected. At length he deserted from the army, assumed a new name, and prevailed on some of his companions to engage in housebreaking.

Detection soon terminated his career, and in September 1704, he was indicted for robbing the house of —— Barry, Esq. of Fulham, and murdering his gardener. Elby, it seems, having determined on robbing the house, arrived at Fulham soon after midnight, and had wrenched open one of the windows, at which he was getting in, when the gardener, awaking, came down to prevent the intended robbery with a light in his hand. Elby, terrified lest he should be known, seized a knife and stabbed him to the heart, and the poor man immediately fell dead at his feet. This done, he broke open a chest of drawers, and stole about two hundred and fifty pounds, with which he repaired to his associates in London.

The murder soon became the subject of very general conversation, and Elby being at a public-house in the Strand, it was mentioned, and he became so alarmed on seeing one of the company rise and quit the house, that he suddenly ran away, without paying his reckoning. The landlord was enraged at his being cheated; and learning his address from one of his companions, he caused him to be apprehended, and he was eventually committed for trial on suspicion of being concerned in the robbery and murder.

On his trial he steadily denied the perpetration of the crimes with which he was charged; and his conviction would have been very doubtful, had not

a woman with whom he cohabited become an evidence, and sworn that he came from Fulham with the money the morning after the commission of the fact. Some other persons also deposed that they saw him come out of Mr. Barry's house on the morning the murder was committed; and he was found guilty, and having received sentence of death, was executed at Fulham, on the 13th September, 1704, and was hung in chains near the same place.

JOHN SMITH.

CONVICTED OF ROBBERY.

THOUGH the crimes committed by this man were not particularly atrocious, nor his life sufficiently remarkable for a place in this work, yet the circumstances attending his fate at the place of execution are perhaps more singular than any we may have to record. He was the son of a farmer at Malton, about fifteen miles from the city of York, who bound him apprentice to a packer in London, with whom he served his time, and afterwards worked as a journeyman. He then went to sea on board a man-of-war, and was at the expedition against Vigo; but on his return from that service he was discharged. He afterwards enlisted as a soldier in the regiment of Guards commanded by Lord Cutts; but in this station he soon made bad connexions, and engaged with some of his dissolute companions as a housebreaker. On the 5th of December, 1705, he was arraigned on four different indictments, on two of which he was convicted. While he lay under sentence of death, he seemed very little affected with his situation, absolutely depending on a reprieve, through the interest of his friends. An order, however, came for his execution on the 24th day of the same month, in consequence of which he was carried to Tyburn, where he performed his devotions, and was turned off in the usual manner; but when he had hung near fifteen minutes, the people present cried out, "A reprieve!" Hereupon the malefactor was cut down, and, being conveyed to a house in the neighbourhood, he soon revived, upon his being bled, and other proper remedies applied.

When he perfectly recovered his senses, he was asked what were his feelings at the time of execution; to which he repeatedly replied, in substance, as follows:—"That when he was turned off, he, for some time, was sensible of very great pain, occasioned by the weight of his body, and felt his spirits in a strange commotion, violently pressing upwards; that having forced their way to his head, he, as it were, saw a great blaze, or glaring light, which seemed to go out at his eyes with a flash, and then he lost all sense of pain. That after he was cut down, and began to come to himself, the blood and spirits, forcing themselves into their former

channels, put him, by a sort of pricking or shooting, to such intolerable pain, that he could have wished those hanged who had cut him down.” From this circumstance he was called “Half-hanged Smith.” After this narrow escape from the grave, Smith pleaded to his pardon on the 20th of February, and was discharged; yet such was his propensity to evil deeds, that he returned to his former practices, and, being apprehended, was again tried at the Old Bailey, for housebreaking; but some difficulties arising in the case, the affair was left to the opinion of the twelve judges, who determined in favour of the prisoner. After this second extraordinary escape, he was a third time indicted; but the prosecutor happening to die before the day of trial, he once more obtained that liberty which his conduct showed had not deserved.

We have no account of what became of this man after this third remarkable incident in his favour; but Christian charity inclines us to hope that he made a proper use of the singular dispensation of Providence evidenced in his own person.

It was not infrequently the case, that, in Dublin, men were formerly seen walking about who, it was known, had been sentenced to suffer the extreme penalty of the law, and upon whom, strange as it may appear to unenlightened eyes, the sentence had been carried out. The custom until lately was, that the body should hang only half an hour; and, in a mistaken lenity, the sheriff, in whose hands was entrusted the execution of the law, would look away, after the prisoner had been turned off, while the friends of the culprit would hold up their companion by the waistband of his breeches, so that the rope should not press upon his throat. They would, at the expiration of the usual time, thrust their “deceased” friend into a cart, in which they would gallop him over all the stones and rough ground they came near, which was supposed to be a never-failing recipe, in order to revive him, professedly, and indeed in reality, with the intention of “waking” him. An anecdote is related of a fellow named Mahony, who had been convicted of the murder of a Connaught-man, in one of the numerous Munster and Connaught wars, and whose execution had been managed in the manner above described; who, being put into the cart in a coffin by his Munster friends, on his way home was so revived, and so overjoyed at finding himself still alive, that he sat upright and gave three hearty cheers, by way of assuring his friends of his safety. A “jontleman” who was shocked at this indecent conduct in his defunct companion, and who was,

besides, afraid of their scheme being discovered and thwarted, immediately, with the sapling which he carried, hit him a thump on the head, which effectually silenced his self-congratulations. On their arrival at home, they found that the “friendly” warning which had been given to the poor wretch, had been more effectual than the hangman’s rope; and the wailings and lamentations which had been employed at the place of execution to drown the encouraging cries of the aiders of the criminal’s escape, were called forth in reality at his wake on the same night. It was afterwards a matter of doubt whether the fellow who dealt the unfortunate blow ought not to have been charged with the murder of his half-hanged companion; but “a justice” being consulted, it was thought no one could be successfully charged with the murder of a man who was already dead in law.

WILLIAM GREGG.

EXECUTED FOR HIGH TREASON.

THE treason of which this offender was convicted was that of “adhering to the Queen’s enemies, and giving them aid, without the realm,” which was made a capital offence by the statute of Edward III.

It appears that Gregg was a native of Montrose, in Scotland, and having received such instruction as the grammar-schools of the place afforded, he



An Irish Wake.

completed his education at Aberdeen university, where he pursued these studies which were calculated to fit him for the profession of the church, for which he was intended. London, however, held forth so many attractions to his youthful eye, that the wishes of his relatives were soon overruled; and having visited that city, with good introductions, he was, after some time, appointed secretary to the ambassador at the court of Sweden. But while performing the duties of his office, he was guilty of so many and so great excesses, that he was at length compelled to retire, and London once more became his residence. His good fortune placed him in a situation alike honourable and profitable, but his dishonest and traitorous conduct in his employment, was such as to cost him his life, and to involve his employers in political difficulties of no ordinary kind. Having been engaged by Mr. Secretary Harley, minister of the reigning sovereign, Queen Anne, to write despatches, he took advantage of the knowledge which he thus gained, and voluntarily opened a communication with the enemies of his country. England, it will be remembered, was at this time in a situation of no ordinary difficulty; and the position of her Majesty's ministers, harassed as they were by the opposition of their political antagonists, was rendered even more difficult by the disclosures of their traitorous servant.

We shall take the advantage afforded us by Bishop Burnet's History, of laying before our readers a more authentic account of this transaction than is given by the usual channels of information to which we have access. He says, "At this time two discoveries were made very unlucky for Mr. Harley: Tallard wrote often to Chamillard, but he sent the letters open to the secretary's office, to be perused and sealed up, and so be conveyed by the way of Holland. These were opened upon some suspicion in Holland, and it appeared that one in the secretary's office put letters in them, in which, as he offered his services to the courts of France and St. Germain, so he gave an account of all transactions here. In one of these he sent a copy of the letter that the Queen was to write in her own hand to the Emperor; and he marked what parts were drawn by the secretary, and what additions were made to it by the lord treasurer. This was the letter by which the Queen pressed the sending Prince Eugene into Spain; and this, if not intercepted, would have been at Versailles many days before it could reach Vienna.

"He who sent this wrote, that by this they might see what service he could do them, if well encouraged. All this was sent over to the Duke of Marlborough; and, upon search, it was found to be written by one Gregg, a

clerk, whom Harley had not only entertained, but had taken into a particular confidence, without inquiring into the former parts of his life; for he was a vicious and necessitous person, who had been secretary to the Queen's envoy in Denmark, but was dismissed by him for his ill qualities. Harley had made use of him to get him intelligence, and he came to trust him with the perusal and sealing up of the letters, which the French prisoners, here in England, sent over to France; and by that means he got into the method of sending intelligence thither. He, when seized on, either upon remorse or hopes of pardon, confessed all, and signed his confession: upon that he was tried, and, pleading guilty, was condemned as a traitor, for corresponding with the Queen's enemies.

“At the same time Valiere and Bara, whom Harley had employed as his spies to go often over to Calais, under the pretence of bringing him intelligence, were informed against, as spies employed by France to get intelligence from England, who carried over many letters to Calais and Boulogne, and, as was believed, gave such information of our trade and convoys, that by their means we had made our great losses at sea. They were often complained of upon suspicion, but they were always protected by Harley; yet the presumptions against them were so violent, that they were at last seized on, and brought up prisoners.”

The Whigs took such advantage of this circumstance, that Mr. Harley was obliged to resign; and his enemies were inclined to carry matters still further, and were resolved, if possible, to find out evidence enough to affect his life. With this view, the House of Lords ordered a committee to examine Gregg and the other prisoners, who were very assiduous in the discharge of their commission, as will appear by the following account, written by the same author:—

“The Lords who were appointed to examine Gregg could not find out much by him: he had but newly begun his designs of betraying secrets, and he had no associates with him in it. He told them that all the papers of state lay so carelessly about the office that every one belonging to it, even the door-keepers, might have read them all. Harley's custom was to come to the office late on post-nights, and, after he had given his orders, and wrote his letters, he usually went away, and left all to be copied out when he was gone. By that means he came to see every thing, in particular the Queen's letter to the Emperor. He said he knew the design on Toulon in May last,

but he did not discover it; for he had not entered on his ill practices till October. This was all he could say.

“By the examination of Valiere and Bara, and of many others who lived about Dover, and were employed by them, a discovery was made of a constant intercourse they were in with Calais, under Harley’s protection. They often went over with boats full of wool, and brought back brandy, though both the import and export were severely prohibited. They, and those who belonged to the boats carried over by them, were well treated on the French side at the governor’s house, or at the commissary’s: they were kept there till their letters were sent to Paris, and till returns could be brought back, and were all the while upon free cost. The order that was constantly given them was, that if an English or Dutch ship came up with them, they should cast their letters into the sea, but that they should not do it when French ships came up with them: so they were looked on by all on that coast as the spies of France. They used to get what information they could, both of merchant-ships and of the ships of war that lay in the Downs, and upon that they usually went over; and it happened that soon after some of those ships were taken. These men, as they were Papists, so they behaved themselves insolently, and boasted much of their power and credit.

“Complaints had been often made of them, but they were always protected; nor did it appear that they ever brought any information of importance to Harley but once, when, according to what they swore, they told him that Fourbin was gone from Dunkirk, to lie in wait for the Russian fleet, which proved to be true; he both went to watch for them, and he took the greater part of the fleet. Yet, though this was a single piece of intelligence that they ever brought, Harley took so little notice of it, that he gave no advertisement to the Admiralty concerning it. This particular excepted, they only brought over common news, and the Paris Gazeteer. These examinations lasted for some weeks; when they were ended, a full report was made of them to the House of Lords, and they ordered the whole report, with all the examinations, to be laid before the Queen.”

Upon the conviction of Gregg, both houses of parliament petitioned the Queen that he might be executed; and, on the 28th April, 1708, he was accordingly hanged at Tyburn.

While on the scaffold, he delivered a paper to the sheriffs of London and Middlesex, in which he acknowledged the justice of his sentence, declared

his sincere repentance of all his sins, particularly that lately committed against the Queen, whose forgiveness he devoutly implored. He also expressed his wish to make all possible reparation for the injuries he had done; and testified the perfect innocence of Mr. Secretary Harley, whom he declared to have been no party to his proceedings. He professed that he died a member of the Protestant church; and declared that the want of money to supply his extravagances had tempted him to commit the fatal crime, which cost him his life.

It is a remarkable circumstance in the life of this offender, that while he was corresponding with the enemy, and taking measures to subvert the government, he had no predilection in favour of the Pretender. On the contrary, he declared, while he was under sentence of death, that “he never thought he had any right to the throne of these realms.”

RICHARD THORNHILL, ESQ.,

CONVICTED OF MANSLAUGHTER, IN KILLING SIR C. DEERING IN A DUEL.

THIS was a case which arose out of the practice of duelling, which has always existed almost peculiarly among the higher classes of society. Mr. Thornhill and Sir Cholmondeley Deering having dined together on the 7th of April, 1711, in company with several other gentlemen, at the Toy at Hampton Court, a quarrel arose, during which Sir Cholmondeley struck Mr. Thornhill. A scuffle ensuing, the wainscot of the room broke down, and Thornhill falling, the other stamped on him, and beat out some of his teeth. The company now interposed, and Sir Cholmondeley, convinced that he had acted improperly, declared that he was willing to ask pardon; but Mr. Thornhill said, that asking pardon was not a proper retaliation for the injury that he had received; adding, "Sir Cholmondeley, you know where to find me." Soon after this the company broke up, and the parties went home in different coaches, without any farther steps being taken towards their reconciliation.

On the next day, the following letter was written by Mr. Thornhill:—

"April 8th, 1711.

"Sir,—I shall be able to go abroad to-morrow morning, and desire you will give me a meeting with your sword and pistols, which I insist on. The worthy gentleman who brings you this will concert with you the time and place. I think Tothill Fields will do well; Hyde Park will not at this time of year, being full of company.

"I am your humble servant,

"RICHARD THORNHILL."

On the 9th of April, Sir Cholmondeley went to the lodgings of Mr. Thornhill, and the servant showed him to the dining-room. He ascended with a brace of pistols in his hands; and soon afterwards, Mr. Thornhill coming to him, asked him if he would drink tea, but he declined. A hackney-coach was then sent for, and the gentlemen rode to Tothill Fields, where, unattended by seconds, they proceeded to fight their duel. They fired

their pistols almost at the same moment, and Sir Cholmondeley, being mortally wounded, fell to the ground. Mr. Thornhill, after lamenting the unhappy catastrophe, was going away, when a person stopped him, told him he had been guilty of murder, and took him before a justice of the peace, who committed him to prison.

On the 18th of May, Mr. Thornhill was indicted at the Old Bailey sessions for the murder; and the facts already detailed having been proved, the accused called several witnesses to show how ill he had been used by Sir Cholmondeley; that he had languished some time of the wounds he had received; during which he could take no other sustenance than liquids, and that his life was in imminent danger. Several persons of distinction swore that Mr. Thornhill was of a peaceable disposition, and that, on the contrary, the deceased was of a remarkably quarrelsome temper; and it was also deposed, that Sir Cholmondeley, being asked if he came by his hurt through unfair usage, replied, "No; poor Thornhill! I am sorry for him; this misfortune was my own fault, and of my own seeking. I heartily forgive him, and desire you all to take notice of it, that it may be of some service to him, and that one misfortune may not occasion another."

The jury acquitted Mr. Thornhill of the murder, but found him guilty of manslaughter; in consequence of which he was burnt in the hand.

COLONEL JOHN HAMILTON.

CONVICTED OF MANSLAUGHTER AS SECOND IN A DUEL.

THERE was no occurrence which at the time occupied so much of the public attention, and excited so much general interest, as the duel which took place in the year 1711, between the Duke of Hamilton and Lord Mohun; in which, unhappily, both the principals fell.

The gentleman who is the subject of the present notice, was the second of the noble duke, and appears to have been connected with him by the ties of relationship. At the sessions held at the Old Bailey, on the 11th of September, he was indicted for the murder of Charles Lord Mohun, Baron of Oakhampton, on the 15th of November preceding; and at the same time he was indicted for abetting Charles Lord Mohun, and George Macartney, Esq., in the murder of James, Duke of Hamilton and Brandon. Colonel Hamilton pleaded not guilty; and evidence was then adduced, which showed that Lord Mohun having met the Duke of Hamilton at the chambers of a master in chancery, on Thursday the 13th of November, a misunderstanding arose between them respecting the testimony of a witness.

On the return home of his lordship, he directed that no person should be admitted to him, except Mr. Macartney; and subsequently he went with that gentleman to a tavern. The Duke of Hamilton and his second, Colonel Hamilton, were also at the tavern; and from thence they all proceeded to Hyde Park. The only evidence which exhibited the real circumstances immediately attending the duel, was that of William Morris, a groom, who deposed that, “as he was walking his horses towards Hyde Park, he followed a hackney-coach with two gentlemen in it, whom he saw alight by the Lodge, and walk together towards the left part of the ring. They were there about a quarter of an hour, when he saw two other gentlemen come to them; and, after having saluted each other, one of them, who he was since told was the Duke of Hamilton, threw off his cloak; and one of the other two, who he now understands was Lord Mohun, his surtout coat, and all immediately drew. The duke and lord pushed at each other but a very little while, when the duke closed, and took the lord by the collar, who fell down

and groaned, and the duke fell upon him. That just as Lord Mohun was dropping, he saw him lay hold of the duke's sword, but could not tell whether the sword was at that time in his body; nor did he see any wound given after the closing, and was sure Lord Mohun did not shorten his sword. He declared he did not see the seconds fight; but they had their swords in their hands, assisting their lords."

It further appeared that the bodies of the deceased noblemen were examined by Messrs. Boussier and Amie, surgeons; and that in that of the duke, a wound was found between the second and third ribs on his right side; and also that there were wounds in his right arm, which had cut the artery and one of the small tendons, as well as others in his right and left leg. There was also a wound in his left side between his second and third ribs, which ran down into his body, and pierced the midriff and caul: but it appeared that the immediate cause of the sudden death of his grace was the wound in his arm. It was further proved, as regarded the body of Lord Mohun, that there was a wound between the short ribs, quite through his belly, and another about three inches deep in the upper part of his thigh; a large wound, about four inches wide, in his groin, a little higher, which was the cause of his immediate death; and another small wound on his left side; and that the fingers of his left hand were cut.

The defence made by the prisoner was, that "the duke called him to go abroad with him, but he knew not anything of the matter till he came into the field."

Some Scottish noblemen, and other gentlemen of rank, gave Mr. Hamilton a very excellent character, asserting that he was brave, honest, and inoffensive; and the jury, having considered of the affair, gave a verdict of "Manslaughter;" in consequence of which the prisoner prayed the benefit of the statute, which was allowed him.

At the time the lives of these noblemen were thus unfortunately sacrificed, many persons thought they fell by the hands of the seconds; and some writers on the subject subsequently affected to be of the same opinion: but nothing appears in the written or printed accounts of the transaction, nor did anything arise on the trial, to warrant so ungenerous a suspicion; it is therefore but justice to the memory of all the parties to discredit such insinuations.

WILLIAM LOWTHER AND RICHARD KEELE.

**EXECUTED FOR THE MURDER OF EDWARD PERRY, A TURNKEY OF
CLERKENWELL BRIDEWELL.**

WILLIAM LOWTHER was a native of Cumberland, and being bound to the master of a Newcastle ship which traded to London, he became acquainted with low abandoned company in the metropolis. Richard Keele was a native of Hampshire, and served his time to a barber at Winchester; and on coming to London, he married and settled in his own business in Rotherhithe: but not living happily with his wife, he parted from her, cohabited with another woman, and associated with a number of disorderly people.

On the 10th of December, 1713, they were indicted at the Old Bailey, for assisting Charles Houghton in the murder of Edward Perry. The case was as follows:—The prisoners, together with two other desperate offenders, of the name of Houghton and Cullum, having been convicted of felony at the Old Bailey, were sentenced to be kept to hard labour in Clerkenwell Bridewell for two years. On their being carried thither, Mr. Boreman, the keeper, thought it necessary to put them in irons, to prevent their escape. This they all refused to submit to; and Boreman having ordered the irons, they broke into the room where the arms were deposited, seized what they thought fit, and then attacked the keeper and his assistants, and cruelly beat them. Lowther bit off part of a man's nose. At this time, Perry, one of the turnkeys, was without the gate, and desired the prisoners to be peaceable; but, advancing towards them, he was stabbed by Houghton, and, during the fray, Houghton was shot dead. The prisoners being at length victorious, many of them made their escape; but the neighbours giving their assistance, Keele and Lowther, and several others, were taken and convicted on the clearest evidence.

Some time after conviction, a smith went to the prison to take measure of them for chains, in which they were to be hung, pursuant to an order from the secretary of state's office; but they for some time resisted him in this duty.

On the morning of execution (the 13th December, 1713), they were carried from Newgate to Clerkenwell Green, and there hanged on a gallows; after which, their bodies were put in a cart, drawn by four horses, decorated with plumes of black feathers, and hung in chains.

WILLIAM JOHNSON AND JANE HOUSDEN.

EXECUTED FOR THE MURDER OF SPURLING, A TURNKEY IN THE OLD BAILEY.

IT is not a little remarkable that two instances should have occurred within so short a space of time as nine months, in which the officers of the Crown should have fallen victims to the exertions which they were compelled to make in the discharge of their duties. The male prisoner in this case, William Johnson, was a native of Northamptonshire, where he served his time to a butcher, and, removing to London, he opened a shop in Newport Market; but business not succeeding to his expectation, he pursued a variety of speculations, until at length he sailed to Gibraltar, where he was appointed a mate to one of the surgeons of the garrison. Having saved some money at this place, he came back to his native country, where he soon spent it, and then had recourse to the highway for a supply. Being apprehended in consequence of one of his robberies, he was convicted, but received a pardon. Previously to this he had been acquainted with Jane Housden, his fellow in crime, who had been tried and convicted of coining, but had obtained a pardon; but who, in September, 1714, was again in custody for a similar offence. On the day that she was to be tried, and just as she was brought down to the bar of the Old Bailey, Johnson called to see her; but Mr. Spurling, the head turnkey, telling him that he could not speak to her till her trial was ended, he instantly drew a pistol, and shot Spurling dead on the spot, in the presence of the court and all the persons attending to hear the trials, Mrs. Housden at the same time encouraging him in the perpetration of this singular murder. The event had no sooner happened, than the judges, thinking it unnecessary to proceed on the trial of the woman for coining, ordered both the parties to be tried for the murder; and there being many witnesses to the deed, they were convicted, and received sentence of death. From this time to that of their execution, which took place September 19th 1714, and even at the place of their death, they behaved as if they were wholly insensible of the enormity of the crime which they had committed; and notwithstanding the publicity of their offence, they had the confidence to deny it to the last moment of their lives: nor did they show any signs of compunction for their former sins. After

hanging the usual time, Johnson was hung in chains near Holloway, between Islington and Highgate.

THE EARL OF DERWENTWATER, LORD KENMURE, THE EARL OF WINTON, AND OTHERS,

EXECUTED FOR TREASON.

THE circumstances attending the crime of these individuals, intimately connected as they were with the history of the Royal Family of England, must be too well known to require them to be minutely repeated. On the accession of George the First to the throne of Great Britain, the question of the right of succession of King James the Third, as he was termed, which had long been secretly agitated, began to be referred to more openly; and his friends, finding themselves in considerable force in Scotland, sent an invitation to him in France, where he had taken refuge, to join them, for the purpose of making a demonstration, and of endeavouring to assume by force, that which was denied him as of right. The noblemen, whose names appear at the head of this article, were not the least active in their endeavours to support the title of the Pretender, by enlisting men under his standard; and their proceedings, although conducted with all secrecy, were soon made known to the government. The necessary steps were immediately taken for quelling the anticipated rebellion; and many persons were apprehended on suspicion of secretly aiding the rebels, and were committed to gaol.

Meanwhile the Earl of Mar, the chief supporter of the Pretender, was in open rebellion at the head of an army of 3000 men, which was rapidly increasing, marching from town to town in Scotland, proclaiming the Pretender as King of England and Scotland, by the title of James III. An attempt was made by stratagem to surprise the castle of Edinburgh; and with this object, some of the king's soldiers were base enough to receive a bribe to admit those of the Earl of Mar, who were, by means of ladders of rope, to scale the walls, and surprise the guard; but the Lord Justice Clerk, having some suspicion of the treachery, seized the guilty, and many of them were executed.

The rebels were greatly chagrined at this failure of their attempt; and the French king, Louis XIV., from whom they hoped for assistance, dying about

this time, the leaders became disheartened, and contemplated the abandonment of their project, until their king could appear in person among them.

They were aided, however, by the discontent which showed itself in another quarter. In Northumberland the spirit of rebellion was fermented by Thomas Forster, then one of the members of parliament for that county; who, being joined by several noblemen and gentlemen, attempted to seize the large and commercial town of Newcastle, but was driven back by the friends of the government. Forster now set up the standard of the Pretender, and proclaimed him the lawful king of Great Britain and Scotland, wherever he went; and, eventually joining the Scotch rebels, he marched with them to Preston, in Lancashire. They were there attacked by Generals Carpenter and Wills, who succeeded in routing them, and in making 1500 persons prisoners; amongst whom were the Earl of Derwentwater and Lord Widrington, English peers; and the Earls of Nithisdale, Winton, and Carnwarth, Viscount Kenmore, and Lord Nairn, Scotch peers.

These noblemen, with about three hundred more rebels, were conveyed to London; while the remainder, taken at the battle of Preston, were sent to Liverpool, and its adjacent towns. At Highgate, the party intended for trial in London was met by a strong detachment of foot-guards, who tied them back to back, and placed two on each horse; and in this ignominious manner were they held up to the derision of the populace, the lords being conveyed to the Tower, and the others to Newgate and other prisons.

The Earl of Mar, on the day of the battle, attempted to cross the Forth, but was prevented by a squadron of the British fleet, which had anchored off Edinburgh; and Sir John Mackenzie, on the part of the Pretender, having fortified the town of Inverness, Lord Lovat, (at this time an adherent of the reigning monarch, but subsequently a friend to the cause of the Stuarts, for aiding whose rebellion in 1745 he was beheaded,) armed his tenants, and drove him from his fortifications. The Pretender subsequently managed to elude the vigilance of the British ships appointed to prevent his landing, and crossing the Channel in a small French vessel, disembarked in Scotland, with only six followers; but having obtained the assistance of a few half-armed Highlanders, on the 9th of January 1716, he made a public entry into the palace of Scone, the ancient place of coronation for the Scottish kings. He there assumed the functions of a king, and so much of the powers of royalty as he was able to secure, and issued a proclamation for his

coronation. The Duke of Argyle, at this time with his army in winter quarters at Stirling, however, determined to attack the rebel forces, and advancing upon them, they fled at his approach. The Pretender having been encouraged to rebel by France, was in anticipation of receiving succour at the hands of the French king, and in the hope of some aid reaching him, he proceeded to Dundee, and thence to Montrose, where, soon rendered hopeless by receiving no news of the approach of the foreigners, he dismissed his adherents. The king's troops pursued and put several to death; but the Pretender, accompanied by the Earl of Mar, and some of the leaders of the rebellion, had the good fortune to get on board a ship lying before Montrose; and, in a dark night, put to sea, escaped the English fleet, and landed in France.

The unfortunate noblemen who had been secured were, meanwhile, committed to the custody of the keeper of the Tower; and the House of Commons unanimously agreed to impeach them, and expel Forster from his seat as one of their members; while the courts of common law proceeded with the trials of those of less note. The articles of impeachment being sent by the Commons, the Lords sat in judgment; Earl Cowper, the Lord Chancellor of England, being constituted Lord High Steward.

All the Peers who were charged, except the Earl of Winton, pleaded guilty to the indictment, but offered pleas of extenuation for their guilt, in hopes of obtaining mercy. In that of the Earl of Derwentwater, he suggested that the proceedings in the House of Commons, in impeaching him, were illegal.

Proclamation was then made, and the Lord High Steward proceeded to pass sentence upon James Earl of Derwentwater, William Lord Widdrington, William Earl of Nithisdale, Robert Earl of Carnwarth, William Viscount Kenmure, and William Lord Nairn.

His lordship having detailed the circumstances attending their impeachment, and having answered the argumentative matter contained in their pleas, and urged in extenuation of their offences, proceeded to say,—

“It is my duty to exhort your lordships to think of the aggravations as well as the mitigations (if there be any), of your offences; and if I could have the least hopes that the prejudices of habit and education would not be too strong for the most earnest and charitable entreaties, I would beg you not to rely any longer on those directors of your consciences by whose

conduct you have, very probably, been led into this miserable condition (in allusion to their lordships being members of the Roman Catholic church); but that your lordships would be assisted by some of those pious and learned divines of the church of England, who have constantly borne that infallible mark of sincere Christians, universal charity.

“And now, my lords, nothing remains but that I pronounce upon you (and sorry I am that it falls to my lot to do it) that terrible sentence of the law, which must be the same that is usually given against the meanest offender of the like kind.

“The most ignominious and painful parts of it are usually remitted, by the grace of the crown, to persons of your quality; but the law, in this case, being deaf to all distinctions of persons, requires I should pronounce, and accordingly it is adjudged by this court,

“That you, James earl of Derwentwater, William lord Widdrington, William earl of Nithisdale, Robert earl of Carnwarth, William viscount Kenmure, and William lord Nairn, and every of you, return to the prison of the Tower, from whence you came; from thence you must be drawn to the place of execution; when you come there, you must be hanged by the neck, but not till you be dead; for you must be cut down alive; then your bowels must be taken out, and burnt before your faces; then your heads must be severed from your bodies, and your bodies divided each into four quarters; and these must be at the king’s disposal. And God Almighty be merciful to your souls.”

After sentence thus passed, the lords were remanded to the Tower, and on the 18th of February orders were sent to the lieutenant of the Tower, and the sheriffs, for their execution. Great solicitations were made in favour of them, which not only reached the court, but the two houses of parliament, and petitions were delivered in both, which being supported, occasioned debates. That in the House of Commons went no farther than to occasion a motion for adjournment, so as to prevent any farther interposition there; but the matter in the House of Peers was carried on with more success, where petitions were delivered and spoke to, and it was carried by nine or ten voices that they should be received and read. The question was also put, whether the King had power to reprieve, in case of impeachment; and this being carried in the affirmative, a motion was made to address his majesty to desire him to grant a reprieve to the lords under sentence; but the movers

only obtained this clause, viz., “To reprieve such of the condemned lords as deserved his mercy; and that the time of the respite should be left to his majesty’s discretion.”

The address having been presented, his majesty replied:—

“That on this, and other occasions, he would do what he thought most consistent with the dignity of his crown, and the safety of his people.”

The great parties which had been made by the rebel lords, as was said, by the means of money, and the rash expressions too common in the mouths of many of their friends, as if the government did not dare to execute them, did not a little contribute to hasten their execution; for on the same day that the address was presented, the 23rd of February, it was resolved in council, that the Earl of Derwentwater and the Lord Kenmure should be beheaded on the next day; and the Earl of Nithisdale, apprehending he should be included in the warrant, succeeded in making his escape on the evening before, in a woman’s riding-hood, supposed to have been conveyed to him by his mother on a visit.

On the morning of the 24th of February, three detachments of the life, guards went from Whitehall to Tower-hill, and, having taken their stations round the scaffold, the two lords were brought from the Tower at ten o’clock, and, being received by the sheriffs at the bar, were conducted to the transport-office on Tower-hill. At the expiration of about an hour, the Earl of Derwentwater sent word that he was ready; on which sir John Fryer, one of the sheriffs, walked before him to the scaffold, and, when there, told him he might have what time he pleased to prepare himself for death.

His lordship desired to read a paper which he had written, the substance of which was, that he was sorry for having pleaded guilty; that he acknowledged no king but king James the Third, for whom he had an inviolable affection: that the kingdom would never be happy until the ancient constitution was restored, and he wished that his death might contribute to that end. His lordship professed to die in the Roman Catholic faith, and said at the end of the speech which he delivered, that “if that Prince who then governed had given him life, he should have thought himself obliged never more to take up arms against him.” He then read some prayers, and kneeled to see how the block would fit him; and having told the executioner that he forgave him, as well as all his enemies, he desired him to strike when he should repeat the words “SWEET JESUS” the

third time. He immediately proceeded to prepare himself for the blow of the axe, and having placed his neck so that it might be fairly struck, he said, "Sweet Jesus, receive my spirit! Sweet Jesus, be merciful unto me! Sweet Jesus——" and was proceeding in his prayer, when his head was severed from his body at one blow. The executioner then took it up, and carrying it to the four corners of the scaffold, said, "Behold the head of a traitor.—God save King George."

The body was directly wrapped in black baize, and being carried to a coach, was delivered to the friends of the deceased: and the scaffold having been cleared, fresh baize was put on the block, and new saw-dust strewed, so that no blood should appear. Lord Kenmure was then conducted to the place of execution.

His lordship was a Protestant, and was attended by two clergymen. He declined saying much to them, however, telling one of them that he had prudential reasons for not delivering his sentiments; which were supposed to arise from his regard to Lord Carnwarth, who was his brother-in-law, and who was then interceding for the royal mercy. Lord Kenmure having finished his devotions, declared that he forgave the executioner, to whom he made a present of eight guineas. He was attended by a surgeon, who drew his finger over that part of the neck where the blow was to be struck; and being executed as Lord Derwentwater had been, his body was delivered to the care of an undertaker.

George, Earl of Winton, not having pleaded guilty with the other lords, was brought to his trial on the 15th of March, when the principal matter urged in his favour was that he had surrendered at Preston, in consequence of a promise from General Wills to grant him his life: in answer to which it was sworn that no promise of mercy was made, but that the rebels surrendered at discretion.

The circumstances of the Earl of Winton having left his house with fourteen or fifteen of his servants well mounted and armed, his joining the Earl Carnwarth and Lord Kenmure, his proceeding with the rebels through the various stages of their march, and his surrendering with the rest, were fully proved: notwithstanding which, his counsel moved in arrest of judgment; but the plea on which this motion was founded being thought insufficient, his peers unanimously found him guilty. The Lord High

Steward then pronounced sentence on him, after having addressed him in forcible terms, in the same manner as he had sentenced the other peers.

The Earls of Winton and Nithisdale afterwards found means to escape out of the Tower; and Messrs. Forster and M'Intosh escaped from Newgate: but it was supposed that motives of mercy and tenderness in the Prince of Wales, afterwards George the Second, favoured the flight of all these gentlemen.

This rebellion occasioned the untimely death of many other persons. Five were executed at Manchester, six at Wigan, and eleven at Preston; but a considerable number was brought to London, and, being arraigned in the Court of Exchequer, most of them pleaded guilty, and suffered the utmost rigour of the law.

JAMES SHEPPARD.

EXECUTED FOR HIGH TREASON.

THIS is a very singular case of treason; for though the crime for which Sheppard suffered was committed three years after the rebellion was quelled, yet the same misjudged opinions urged this youth to enthusiasm in the cause of the Pretender as those which actuated the former offenders. It is still more singular that he, neither being a Scotchman born, nor in any way interested in the mischiefs which he contemplated, should, unsolicited, volunteer in so dangerous a cause.

James Sheppard was the son of Thomas Sheppard, glover, in Southwark; but his father dying when he was about five years of age, he was sent to school in Hertfordshire, whence his uncle, Dr. Hinchcliffe, removed him to Salisbury, where he remained at school three years. Being at Salisbury at the time of the rebellion, he imbibed the principles of his school-fellows, many of whom were favourers of the Pretender; and he was confirmed in his sentiments by reading some pamphlets which were then put into his hands.

When he quitted Salisbury, Dr. Hinchcliffe put him apprentice to Mr. Scott, a coach-painter in Devonshire-street, Bishopsgate; and he continued in this situation about fourteen months, when he was apprehended for the crime which cost him his life.

Sheppard, having conceived the idea that it would be a praiseworthy action to kill the king, wrote a letter, which he intended for a nonjuring minister of the name of Leake; but, mistaking the spelling, he directed it "To the Rev. Mr. Heath." The letter was in the following terms:—

"Sir,—From the many discontents visible throughout this kingdom, I infer that if the prince now reigning could be by death removed, our king being here, he might be settled on his throne without much loss of blood. For the more ready effecting of this, I propose that, if any gentleman will pay for my passage into Italy, and if our friends will entrust one so young with letters of invitation to his majesty, I will, on his arrival, smite the usurper in his palace. In this confusion, if sufficient forces may be raised,

his majesty may appear; if not, he may retreat or conceal himself till a fitter opportunity. Neither is it presumptuous to hope that this may succeed, if we consider how easy it is to cut the thread of human life; how great confusion the death of a prince occasions in the most peaceful nation; and how mutinous the people are, how desirous of a change. But we will suppose the worst—that I am seized, and by torture examined. Now, that this may endanger none but myself, it will be necessary that the gentlemen who defray my charges to Italy leave England before my departure; that I be ignorant of his majesty's abode; that I lodge with some whig; that you abscond; and that this be communicated to none. But, be the event as it will, I can expect nothing less than a most cruel death; which, that I may the better support, it will be requisite that, from my arrival till the attempt, I every day receive the Holy Sacrament from one who shall be ignorant of the design.

“JAMES SHEPPARD.”

Having carried it to Mr. Leake's house, he called again for an answer, but he was apprehended, and carried before Sir John Fryer, a magistrate.

When he was brought to his trial, he behaved in the most firm and composed manner; and, after the evidence was given, and the jury had found him guilty of high treason, he was asked why sentence should not be passed on him according to law, when he said “He could not hope for mercy from a prince whom he would not own.” The Recorder then proceeded to pass sentence on him; in pursuance of which, he was executed at Tyburn on the 17th March, 1718. He was attended by a nonjuring clergyman up to the time of his execution, between whom and the ordinary the most indecent disputes arose, extending even up to the time of his arriving at the scaffold, when the latter quitted the field and left the other to instruct and pray with the malefactor as he might think proper.

THE MARQUIS DE PALEOTTI,

EXECUTED FOR THE MURDER OF HIS SERVANT.

THIS nobleman was at the head of a noble family in Italy, and was born at Bologna. In the reign of Queen Anne he was a Colonel in the imperial army. The Duke of Shrewsbury, being at Rome, fell in love with and paid his addresses to the sister of the Marquis; and the lady having been married to him in Germany, they came to England. The Marquis quitting the army at the peace of Utrecht, visited England to see his sister; and being fond of an extravagant course of life, and attached to gaming, he soon ran in debt for considerable sums. His sister paid his debts for some time, till she found it would be a burdensome and endless task; and she therefore declined all further interference. The habits of the Marquis, however, were in nowise changed, and being one day walking in the street, he directed his servant, an Italian, to go and borrow some money. The servant, having met with frequent denials, declined going: on which the Marquis drew his sword and killed him on the spot.

He was instantly apprehended, and committed to prison; and being tried at the next sessions, was convicted on full evidence, and received sentence of death. The Duke of Shrewsbury being dead, and his duchess having little interest or acquaintance in England, it appears that no endeavours were used to save him from the punishment which awaited him, and he was executed at Tyburn on the 17th of March, 1718.

Italian pride had taken deep root in the mind of this man. To his last moment it was predominant. He petitioned the sheriffs that his body should not be defiled by touching the unhappy Englishmen doomed to suffer with him, and that he might die before them, and alone. The sheriffs, in courtesy to a stranger, granted this request, and thus, in his last struggle, he maintained the superiority of his rank.

JOHN PRICE.

COMMONLY CALLED JACK KETCH, EXECUTED FOR MURDER.

ALTHOUGH the circumstances attending the crime of this malefactor do not present any features of general interest, the fact of the offender having filled the office of public executioner, and of his being deprived of life on that very scaffold on which he had exercised the functions of his revolting office, render the case not a little remarkable. It would appear that the prisoner was born of decent parents, in the parish of St. Martin's-in-the-Fields, London; and that his father, who was in the service of his country having been blown up at the demolition of Tangiers, he was put apprentice to a rag merchant. His master dying, he ran away and went to sea, and served with credit on board different ships in the navy, for the space of 18 years; but at length was paid off and discharged from further service.

The office of public executioner becoming vacant, it was given to him, and but for his extravagance, he might have long continued in it, and subsisted on its dreadfully-earned wages. On returning from an execution, however, he was arrested in Holborn for debt, which he discharged, in part, with the wages he had that day earned, and the remainder with the produce of three suits of clothes, which he had taken from the bodies of the executed men; but soon afterwards he was lodged in the Marshalsea prison for other debts, and there he remained for want of bail; in consequence of which one William Marvel was appointed in his stead. He continued some time longer in the Marshalsea, when he and a fellow-prisoner broke a hole in the wall, through which they made their escape. It was not long after this that Price committed the offence for which he was executed. He was indicted on the 20th April, 1718, for the murder of Elizabeth, the wife of William White, on the 13th of the preceding month.

In the course of the evidence it appeared that Price met the deceased near ten at night in Moorfields, and attempted to ravish her; but the poor woman (who was the wife of a watchman, and sold gingerbread in the streets) doing all in her power to resist his villanous attacks, he beat her so cruelly that streams of blood issued from her eyes and mouth, one of her arms was broken, some of her teeth were knocked out, her head was bruised in a most

dreadful manner, and one of her eyes was forced from the socket. Some persons, hearing the cries of the unhappy creature, repaired to the spot, took Price into custody, and lodged him in the watch-house; and the woman, being attended by a surgeon and a nurse, was unable to speak, but she answered the nurse's questions by signs, and in that manner described what had happened to her. She died, after having languished four days. The prisoner, on his trial, denied that he was guilty of the murder; but he was found guilty and sentenced to death. He then gave himself up to the use of intoxicating liquors, and continued obstinately to deny his guilt until the day of execution. He then, however, admitted the justice of his punishment, but said that he was in a state of intoxication when he committed the crime for which he suffered. He was executed on the 21st May, 1718 at Bunhill-row, and was afterwards hung in chains at Holloway.

It maybe remarked, that this case affords a striking instance of the absence of the effect of example: for, however much the miserable calling of the unhappy man may have hardened his mind, and rendered him callous to those feelings of degradation which would arise in the heart of any ordinary person, placed in a similar situation, it cannot be supposed that his fear of the dreadful punishment of death could have been in any degree abated by his having so frequently witnessed its execution in all its horrors.

BARBARA SPENCER.

STRANGLED, AND THEN BURNED, FOR COINING.

THIS is the first case on record, in which any person appears to have been executed for counterfeiting the coin of the realm. The punishment for this offence, at first, of necessity, severe, to check the alarming prevalence of the crime, has long since been materially mitigated; and although the evil still exists to a great degree, it has been diminished very considerably in consequence of the judicious steps taken by the officers of the Mint.

In the month of May, 1721, Barbara Spencer, with two other women, named Alice Hall, and Elizabeth Bray, were indicted for high treason, in counterfeiting the king's current coin of the realm. The evidence went to prove the two latter prisoners to be agents only, and they were acquitted; while Spencer appeared to be the principal, and she was found guilty, and sentenced to be burned. It turned out that the prisoner had before been guilty of similar offences, and the sentence was carried into execution, although not in its direct terms. The law which then existed was, indeed, that women, convicted of high or petit treason, should be burned; but the wisdom and humanity of the authorities provided a more easy death, in directing that the malefactor should be strangled, while tied to the stake, and that the body should afterwards be consumed by fire.

While under sentence of death, the prisoner behaved in the most indecent and turbulent manner; nor could she be convinced that she had been guilty of any crime in making a few shillings. She was for some time very impatient under the idea of her approaching dissolution, and was particularly shocked at the thought of being burned; but at the place of execution, she seemed willing to exercise herself in devotion, but was much interrupted by the mob throwing stones and dirt at her.

She was strangled and burned at Tyburn on the 5th of July, 1721.

WILLIAM SPIGGOT, AND THOMAS PHILLIPS.

EXECUTED FOR HIGHWAY ROBBERY.

THIS case is rendered worthy of notice, by the fact that, the prisoners refusing to plead, they were placed under the torture. They were indicted for a robbery upon the king's highway; but refused to plead until some of their property, which had been taken from them, was returned. This was denied them by the Court, under the provisions of the statute of the 4th & 5th William and Mary; and as, in spite of all entreaties, they persisted in their refusal, to deny or confess the charge against them, the Court ordered that the judgment ordained by law should be read to them. This was,

“That the prisoner shall be sent to the prison from whence he came, and put into a mean room, stopped from the light, and shall there be laid on the bare ground, without any litter, straw, or other covering, and without any garment about him, except something to hide his privy members. He shall lie upon his back, his head shall be covered, and his feet shall be bare. One of his arms shall be drawn with a cord to one side of the room, and the other arm to the other side; and his legs shall be served in the like manner. Then there shall be laid upon his body as much iron or stone as he can bear, and more. And the first day after he shall have three morsels of barley bread, without any drink; and the second day he shall be allowed to drink as much as he can, at three times, of the water that is next the prison-door, except running water, without any bread; and this shall be his diet till he dies; and he against whom this judgment shall be given, forfeits his goods to the king.”

The reading of this sentence producing no effect, they were ordered back to Newgate, there to be pressed to death; but when they came into the press-room, Phillips begged to be taken back to plead. The favour was granted, though it might have been denied to him; but Spiggot was put under the press, and he continued half an hour, with three hundred and fifty pounds' weight on his body; but, on the addition of fifty pounds more, he also begged to plead.

They were in consequence brought back, and again arraigned; when, the evidence being clear and positive against them, they were convicted, and received sentence of death; in consequence of which they were executed at Tyburn on the 8th of February, 1721.

The prisoner Phillips, after sentence, behaved in a manner which exhibited that he was a person of the most abandoned character. His companion was more attentive to his devotions; but Phillips declared that he did not fear to die, for that he was sure of going to heaven. It appeared, from the declarations of the prisoners, that they had been very successful in their depredations; in the commission of which they were accompanied by a clergyman named Joseph Lindsay, and a lunatic, who had escaped from Bedlam, named Burroughs. The mad prattling of the latter caused the apprehension of his companions, while the evidence of the former tended materially to secure their conviction.

It is almost needless to add, that that remnant of barbarity, the torture, has long since been abolished.

NATHANIEL HAWES.

TORTURED AND AFTERWARDS EXECUTED FOR ROBBERY.

THE case of this prisoner may not prove uninteresting, as connected with that last detailed.

Nathaniel Hawes was a native of Norfolk, in which county he was born in the year 1701. His father was a grazier in good circumstances; but dying while the son was an infant, a relation in Hertfordshire took care of his education.

At a proper age he was apprenticed to an upholsterer in London; but, becoming connected with people of bad character, he robbed his master when he had served only two years of his time, for which he was tried at the Old Bailey, and, being convicted, was sentenced to seven years' transportation.

His sentence was, however, withdrawn on his becoming evidence against the receiver of the stolen property. But the warning which he had received was of no avail; and after having been once in custody for a robbery, when he was again admitted king's evidence, he soon joined a fellow with whom he had become acquainted in prison, and meeting a gentleman on Finchley Common, they demanded his money, swearing to murder him, if he did not give it to them.

The gentleman quitted his horse, and at the same moment seized the pistol which was placed at his throat by the robber, and, presenting it to the latter, told him to expect death if he did not surrender himself. His companion having fled, Hawes was now as terrified as he had been insolent, and made no opposition; and the driver of a cart coming up just at the moment, he was easily made prisoner, conveyed to London, and committed to Newgate. When the sessions came on, and he was brought to the bar, he refused to plead to his indictment, alleging as a reason for so doing, that he would die, as he had lived, like a gentleman:—"The people," said he, "who apprehended me, seized a suit of fine clothes, which I intended to have gone to the gallows in; and unless they are returned, I will

not plead; for no one shall say that I was hanged in a dirty shirt and ragged coat.”

On this, sentence was pronounced that he should be pressed to death; whereupon he was taken from the Court, and, being laid on his back, sustained a load of two hundred and fifty pounds’ weight about seven minutes; but, unable any longer to bear the pain, he entreated he might be conducted back to the Court. He then pleaded not guilty; but the evidence against him being conclusive, he was convicted, and sentenced to die.

He was executed at Tyburn on the 22nd of December, 1721.

The subject of torture may not be inaptly illustrated by an account given by Stedman of a scene witnessed by him at Surinam, when a young man, a free negro, was tortured for the murder of the overseer of the estate of Altona in the Para Creek. He says, “This man having stolen a sheep to entertain a favourite young woman, the overseer, who burned with jealousy, had determined to see him hanged; to prevent which, the negro shot him dead among the sugar-canes. For these offences, of course, he was sentenced to be broken alive upon the rack, without the benefit of the *coup de grace*, or mercy-stroke. Informed of the dreadful sentence, he composedly laid himself down upon his back on a strong cross, on which, with his arms and legs extended, he was fastened by ropes. The executioner, also a black man, having now with a hatchet chopped off his left hand, next took up a heavy iron bar, with which, by repeated blows, he broke his bones to shivers, till the marrow, blood, and splinters flew about the field; but the prisoner never uttered a groan nor a sigh! The ropes being next unlashd, I imagined him dead, and felt happy; till the magistrates stirring to depart, he writhed himself from the cross, when he fell on the grass, and damned them all as a set of barbarous rascals. At the same time, removing his right hand by the help of his teeth, he rested his head on part of the timber, and asked the by-standers for a pipe of tobacco, which was infamously answered by kicking and spitting on him, till I, with some American seamen, thought proper to prevent it. He then begged his head might be chopped off, but to no purpose. At last, seeing no end to his misery, he declared, ‘that though he had deserved death, he had not expected to die so many deaths: however,’ said he, ‘you Christians have missed your aim at last, and I now care not, were I to remain thus one month longer.’ After which he sung two extempore songs with a clear voice; the subjects of which were to bid adieu to his living friends, and to acquaint his deceased relations that in a very

little time he should be with them, to enjoy their company for ever in a better place. This done, he calmly entered into conversation with some gentlemen concerning his trial, relating every particular with uncommon tranquillity. 'But,' said he abruptly, 'by the sun it must be eight o'clock, and by any longer discourse I should be sorry to be the cause of your losing your breakfast.' Then casting his eyes on a Jew, whose name was Deveries, 'Apropos, sir,' said he, 'won't you please to pay me the ten shillings you owe me?' 'For what to do?' 'To buy meat and drink, to be sure: don't you perceive I'm to be kept alive?' Which speech, on seeing the Jew stare like a fool, the mangled wretch accompanied with a loud and hearty laugh. Next, observing the soldier that stood sentinel over him biting occasionally a piece of dry bread, he asked him how it came to pass that he, a *white man*, should have no meat to eat along with it. 'Because I am not so rich,' answered the soldier. 'Then I will make you a present, sir,' said the negro. 'First pick my hand that was chopped off, clean to the bones; next begin to devour my body till you are glutted; when you will have both bread and meat, as best becomes you:' which piece of humour was followed by a second laugh. And thus he continued until I left him, which was about three hours after the dreadful execution."

Subsequently, on proceeding to the spot, the writer discovered that after the poor wretch had lived thus more than six hours, he was knocked on the head by the commiserating sentinel; and that having been raised upon a gallows, the vultures were busy picking out the eyes of the mangled corpse, in the skull of which was clearly discernible the mark of the soldier's musket.

CAPTAIN JOHN MASSEY.

EXECUTED FOR PIRACY.

CAPTAIN MASSEY was the son of a gentleman of fortune, who gave him an excellent education. When young, he grew weary of home; and his father having procured him a commission in the army, he served with great credit as lieutenant under the command of the Duke of Marlborough, during the wars in Flanders, in the reign of Queen Anne. After this he went with his regiment to Ireland, and at length got appointed to the rank of lieutenant and engineer to the Royal African Company, and sailed in one of their ships to direct the building of a fort. The ship being ill supplied with provisions, the sufferings of the crew were inexpressibly great. Those who lived to get on shore drank so greedily of the fresh water, that they were thrown into fluxes, which destroyed them so rapidly, that only Captain Massey and a very few of his people were still alive. These, being totally unable to build a fort, and seeing no prospect of relief, began to abandon themselves to despair; but at this time a vessel happening to come near the shore, they made signals of distress, on which a boat was sent off to their assistance.

They were no sooner on board than they found the vessel was a pirate; and, distressed as they had been, they too hastily engaged in their lawless plan, rather than run the hazard of perishing on shore. Sailing from hence, they took several prizes; and at length on the ship reaching Jamaica, Mr. Massey seized the first opportunity of deserting; and repairing to the governor, he gave such information, that the crew of the pirate vessel were taken into custody, convicted, and hanged. Massey might have been provided for by the governor, who treated him with singular respect, on account of his services to the public; but he declined his generous offers, through an anxiety to visit his native country. On his sailing for England, the governor gave him recommendatory letters to the lords of the admiralty; but, astonishing as it may seem, instead of his being caressed, he was taken into custody, and committed till a session of admiralty was held for his trial, when he pleaded guilty, and received sentence of death.

His sentence was subsequently carried out, although it may readily be supposed that that due attention was scarcely given to the case which the

interests of the prisoner demanded.

ARUNDEL COOKE, ESQ. AND JOHN WOODBURNE.

EXECUTED FOR CUTTING AND MAIMING.

THE prosecution of these offenders took place under the provisions of a statute, passed in the reign of Charles the Second, commonly called "Sir John Coventry's Act," the origin of which we have elsewhere described, and which has since been followed by an enactment, more extensive in its operation, called "Lord Ellenborough's Act."

Mr. Cooke, who by virtue of his profession as a barrister was entitled to the rank of esquire, was born at Bury St. Edmunds, in Suffolk, and was a man of considerable fortune at the time of his execution. Woodburne, his companion in crime, was a labouring man in his service, who, having a family of six children, was induced to join in the commission of the crime, of which he was found guilty, upon the promise of the payment to him of 100*l.* for his aid in the diabolical plan. Mr. Cooke, it appears, was married to the daughter of Mr. Crisp, the victim of his attack. The latter was a gentleman of very large property, and of infirm habit of body, and having made his will in favour of his son-in-law, the latter became anxious to possess the estate, and determined, by murdering the old gentleman, to secure its immediate transfer to himself. For this purpose, he procured the co-operation of Woodburne on the terms which we have already mentioned, and Christmas evening of the year 1721 was fixed upon for the perpetration of the intended murder. Mr. Crisp was to dine with his son-in-law on that day, and Woodburne was directed to lie in wait in the churchyard, which lay between the houses of the old gentleman and his son-in-law, behind a tombstone, in the evening, when, at a given signal, he was to fall upon and kill the former. The time arrived when Mr. Crisp was to depart, and upon his going out, Mr. Cooke followed him, and then aided his assistant in a most violent attack upon his father-in-law. The old man was left for dead, but in spite of the wounds which he had received, he crawled back to his daughter, to whom he communicated his suspicions, that her husband was the originator of the murderous attempt which had been made.

Woodburne was impeached by his sudden disappearance; and the affair having created a great deal of excitement in the neighbourhood, he was

followed and secured, and then he exposed the enormity of his offence, by confessing the whole of the circumstances attending its commission. Mr. Cooke was also taken into custody, and a bill of indictment was preferred at the ensuing assizes, at Bury St. Edmunds, upon which the two prisoners were tried and found guilty.

Upon their being called up to receive sentence of death, Cooke desired to be heard: and the court complying with his request, he urged that “judgment could not pass on the verdict, because the act of parliament simply mentions an intention to maim or deface, whereas he was firmly resolved to have committed murder.” He quoted several law cases in favour of the arguments he had advanced, and hoped that judgment might be respited till the opinion of the twelve judges could be taken on the case.

Lord Chief Justice King, however, who presided on this occasion, declared that he could not admit the force of Mr. Cooke’s plea, consistently with his own oath as a judge: “for (said he) it would establish a principle in the law inconsistent with the first dictates of natural reason, as the greatest villain might, when convicted of a smaller offence, plead that the judgment must be arrested, because he intended to commit a greater. In the present instance therefore judgment cannot be arrested, as the intention is naturally implied when the crime is actually committed.”

Sentence of death was then passed, and the prisoners were left for execution. After condemnation, the unhappy man Woodburne exhibited signs of the most sincere penitence; but his wretched tempter to crime conducted himself with unbecoming reserve and moroseness, steadily denying his guilt, and employing his most strenuous exertions to procure a pardon.

The 3d April, 1722, was at length fixed for the execution of the sentence, and Cook was hanged at four in the morning of that day, in obedience to a request which he made, in order that he should not be exposed to the public gaze; while Woodburne was turned off, in the afternoon, on the same gallows. The execution took place at Bury St. Edmunds, the crime having been committed within a mile of that place.

CHRISTOPHER LAYER, ESQ.

EXECUTED FOR HIGH TREASON.

MR. LAYER was a barrister of considerable standing and reputation, at the time when he was convicted and executed on a charge of being the projector of a scheme for the destruction of the king, and the subversion of the government, which had for its object the elevation of the Pretender to the throne of England.

Numerous were the plots which had been laid for the same purpose, and frequent were the proceedings which had been had upon complaints laid before the various courts of criminal justice in the kingdom, since the year 1715, when the rebellion first broke out; but the plan laid by Mr. Layer was one of those which gained the greatest degree of notoriety. This infatuated man had received a liberal education, and was a member of the society of the Inner Temple; but being impressed with the possibility of the success of a scheme for the dethronement of the existing monarch, and the elevation of the Pretender to the rank, to which it was contended that he was entitled, he made a journey to Rome, in order to confer with that prince upon the propriety of putting his design into execution, promising that he would effect so secret a revolution in England, that no person in authority should be apprised of the scheme until it had been actually completed. Having procured the concurrence of the prince, he instantly returned to London, and proceeded to the completion of his preparations. His plan was to hire an assassin to murder the king on his return from Kensington; and, this being done, the other parties engaged in the plot were to seize the guards; and the Prince of Wales and his children, and the great officers of state, were to be secured, and confined during the confusion that such an event would naturally produce.

Mr. Layer having settled a correspondence with several Roman Catholics, non-jurors, and other persons disaffected to the government, he engaged a small number of disbanded soldiers, who were to be the principal actors in the intended tragedy. A meeting of the whole of the partisans having, however, been held at Stratford, they talked so loudly of the plot, that their designs were suspected, and information was conveyed to the

authorities; upon which Mr. Layer was taken into custody, under a secretary of state's warrant, and conveyed to the house of a king's messenger for security. His chambers being searched, papers were found, the contents of which sufficiently indicated his intentions, and witnesses as to repeated declarations on his part, in reference to the rebellion, having been discovered in the persons of two women, who were living under his protection, it was determined that a prosecution should be instantly commenced against him. But it was not until he had nearly given his jailers the slip, that this determination was carried into execution with effect; for it appears that the prisoner became convinced of the practicability of an escape from the room where he was confined, through an ale-house, which was situated at the back of the messenger's house, and resolved to make the attempt to procure his liberty. He therefore formed a rope of his blanket, and, dropping from the window of his apartment, he fell into the yard below, unscathed; but in his descent, he overset a bottle-rack, and from the noise which was caused, the family of the house was disturbed. Mr. Layer managed, nevertheless, to gain the street in the confusion which prevailed; but being instantly pursued by officers, he was traced to have taken a boat at the Horse Ferry, Westminster, from thence to St. George's Fields; and he was at length overtaken at Newington Butts. On the following day he was committed to Newgate; and a Grand Jury of the county of Essex having found a true bill against him for high treason, his trial came on before Chief Justice Pratt, and the other judges of the Court of King's Bench, in the month of January 1723, when, after an inquiry, which lasted sixteen hours, he was found guilty, and sentenced to death in the customary manner.

As he had some important affairs to settle, from the nature of his profession, the court did not order his execution till more than two months after he had been condemned; and the king repeatedly reprieved him, to prevent his clients being sufferers by his affairs being left in a state of confusion.

After conviction, Mr. Layer was committed to the Tower; and at length the sheriffs of London and Middlesex received a warrant to execute the sentence of the law. He was carried to Tyburn on a sledge, on the 15th March 1723, to be hanged, being dressed in a suit of black, full trimmed, and wearing a tie-wig. At the place of execution he was assisted in his devotions by a nonjuring clergyman; and when these were ended, he spoke to the surrounding multitude, declaring that he deemed King James (so he

called the Pretender) his lawful sovereign. He said that King George was a usurper, and that damnation would be the fate of those who supported his government. He insisted that the nation would never be in a state of peace till the Pretender was restored, and therefore advised the people to take up arms in his behalf. He professed himself willing to die for the cause, and expressed great hopes that Providence would eventually support the right heir to the throne. His body having been suspended during the accustomed time, it was quartered, and the head was afterwards exposed on Temple Bar. Among others concerned in this strange scheme was Lord Grey, an ancient nobleman of the Roman Catholic religion, who died a prisoner in the Tower, before the necessary legal proceedings against him could take place.

PHILIP ROACH,

EXECUTED FOR PIRACY AND MURDER.

THIS fellow was a native of Ireland, and having, during his youth, followed a seafaring life, he was advanced to the position of first mate, on board a West-Indiaman, which sailed to and from Barbadoes. Having, however, become acquainted with a fisherman named Neale, who hinted to him that large sums of money might be acquired by insuring ships, and then causing them to be sunk, to defraud the insurers, he was wicked enough to listen to this horrid idea; and, being recommended to a gentleman who had a ship bound to Cape Breton, he got a station on board, next in command to the captain, by whom he was entrusted with the management of the vessel.

On the voyage, it would appear that he would have abstained from carrying out his diabolical plan; but having brought some Irishmen on board with him, they persisted in pursuing their original design, or in demanding that the vessel should be seized. Accordingly, one night, when the captain and most of the crew were asleep, Roach gave orders to two of the seamen to furl the sails; which being immediately done, the poor fellows no sooner descended on the deck, than Roach and his associates murdered them, and threw them overboard. At this instant a man and a boy at the yard-arm, observing what passed, and dreading a similar fate, hurried towards the topmast-head, when one of the Irishmen, named Cullen, followed them, and, seizing the boy, threw him into the sea. The man, thinking to effect at least a present escape, descended to the main-deck; but he was instantly butchered, and committed to the deep. The noise occasioned by these transactions had alarmed the sailors below, and they hurried up with all possible expedition; but were severally seized and murdered as fast as they came on deck, and were thrown into the sea. At length the master and mate came on the quarter-deck; but they were doomed to share the same fate as their unhappy shipmates.

These execrable murders being perpetrated, the murderers determined to commence pirates, and that Roach should be the captain, as the reward of his superior villany.

They had intended to sail up the Gulf of St. Lawrence; but as they were within a few days' voyage of the Bristol Channel, when the bloody tragedy was acted, and found themselves short of provisions, they put into Portsmouth; and, giving the vessel a fictitious name, they painted her afresh, and then sailed for Rotterdam. At this city they disposed of their cargo, and took in a fresh one; and being unknown, an English gentleman, named Annesley, shipped considerable property on board, and took his passage with them for the port of London; but the villains threw this unfortunate gentleman overboard, after they had been only one day at sea. When the ship arrived in the river Thames, Mr. Annesley's friends made inquiry after him, in consequence of his having sent letters to England, describing the ship in which he proposed to embark; but Roach denied any knowledge of the gentleman, and even disclaimed his own name. Notwithstanding his confident assertions, it was rightly presumed who he was, and a letter which he sent to his wife being stopped, he was taken into custody, and carried before the secretary of state for examination. While there, having denied that he was the person he was taken to be, his intercepted letter was shown to him; on which he instantly confessed his crimes, and was committed to take his trial. He was subsequently hanged at Execution Dock, on the 5th of August, 1723.

JOSEPH BLAKE, *alias* BLUESKIN,

EXECUTED FOR HOUSEBREAKING.

AT about this time London and its vicinity were infested by a gang of villains of the most desperate character, of whom this criminal was the captain. With his name are associated those of offenders whose exploits, though they may be better known, were not more daring or more villanous. The notorious Jonathan Wild, whose system of atrocity will be found to be exposed in the notice given hereafter of his life and death, and his no less notorious victim and coadjutor, Jack Sheppard, were both intimately connected with the proceedings of Blake; while others of equal celebrity filled up the number of his followers. The Mint in Southwark was, during the early part of the life of these offenders, a place which, being by a species of charter freed from the intrusion of the bailiffs, formed an admirable hiding-place and retreat for criminals, as well as debtors. A system of watch and ward was maintained among them, and, like the Alsatia of Sir Walter Scott's admirable novel of "The Fortunes of Nigel," which is now known by the name of Whitefriars, its privacy was seldom intruded upon by the appearance of the officers of justice. The salutary laws of the commencement of the reign of the Hanover family, however, soon caused these dens of infamy to be rooted out; and the districts referred to are now known only by repute, as having been privileged in the manner which has been described.

To return to the subject of our present narrative: he was a native of London, and having been sent to school at the age of six years, he displayed more intelligence in acquiring a proficiency in the various arts of roguery, than in becoming acquainted with those points of decent instruction, with which his parents desired he should make himself intimate. While at school, he formed an acquaintance with a lad of his own age, named Blewitt, who afterwards, with himself, became a member of Jonathan Wild's gang. No sooner had they left school, than they started in life as pickpockets; and our hero, before he attained the age of fifteen years, had been in half the prisons in the metropolis. From this they turned street robbers; and forming connexions with others, their proceedings became notorious, and they were

apprehended. Blake, however, was admitted evidence against his companions, who were convicted; and having by that means obtained his own acquittal, he claimed a part of the reward offered by government. He was informed by the Court, that his demand could not be granted, because he was not a voluntary evidence; since, so far from having surrendered, he had made an obstinate resistance, and was much wounded before he was taken; and instead of rewarding him, they ordered him to find security for his good behaviour, or to be transported. Not being able to give the requisite bail, he was lodged in Wood-street Compter, and there he remained for a considerable period; during which his patron, Wild, allowed him three and sixpence per week. At length he prevailed upon two gardeners to enter into the necessary sureties; and their recognisance having been taken by Sir John Fryer, for his good behaviour, for seven years, he once more regained his liberty. This object was, however, no sooner attained, than he was concerned in several robberies with Jack Sheppard; and they at length committed that offence for which Blueskin was executed. We have already said that he had become notorious for the daring which he displayed, and the frequency of his attacks upon the property of others; and he had become no less celebrated among his companions, who had favoured him with the appellation of Blueskin, from the darkness of his complexion, and had besides honoured him by dubbing him captain.

At the October sessions of the Old Bailey, 1723, he was indicted under the name of Joseph Blake, *alias* Blueskin, for breaking and entering the dwelling-house of William Kneebone, in St. Clement's Church-yard, and stealing one hundred and eight yards of woollen cloth, value thirty-six pounds, and other property. It was sworn by the prosecutor, that the entry was effected by cutting the bars of his cellar-window, and by subsequently breaking open the cellar-door, which had been bolted and padlocked; and that afterwards, on his going to Jonathan Wild, and acquainting him with what had occurred, he was conducted to Blake's lodgings, for the purpose of procuring his apprehension. The prisoner refusing to open the door, Quilt Arnold, one of Wild's men, broke it open. On this Blake drew a penknife, and swore that he would kill the first man that entered; in answer to which Arnold said, "Then I am the first man, and Mr. Wild is not far behind; and if you don't deliver your penknife immediately, I will chop your arm off." Hereupon the prisoner dropped the knife; and Wild entering, he was taken into custody.

It further appeared, that as the parties were conveying Blake to Newgate, they came by the house of the prosecutor; on which Wild said to the prisoner, "There's the ken;" and the latter replied, "Say no more of that, Mr. Wild, for I know I am a dead man; but what I fear is, that I shall afterwards be carried to Surgeons' Hall, and anatomised;" to which Wild replied, "No, I'll take care to prevent that, for I'll give you a coffin." William Field, an accomplice, who was evidence on the trial, swore that the robbery was committed by Blake, Sheppard, and himself; and the jury brought in a verdict of guilty.

As soon as the verdict was given, Blake addressed the Court in the following terms:—"On Wednesday morning last, Jonathan Wild said to Simon Jacobs (then a prisoner), "I believe you will not bring forty pounds this time (alluding to the reward paid by Government); I wish Joe (meaning me) was in your case; but I'll do my endeavour to bring you off as a single felon." And then turning to me, he said, "I believe you must die—I'll send you a good book or two, and provide you a coffin, and you shall not be anatomised."

The prisoner having been convicted, it was impossible that this revelation of the circumstances, under which he was impeached could be noticed; but subsequent discoveries distinctly showed that Wild's system was precisely that which was pointed out; namely, to lead on those who chose to submit themselves to his guidance, to the full extent to which they could go, so as to be useful to him; and then to deliver them over to justice for the offences in which he had been the prime mover, securing to himself the reward payable upon their conviction. His position screened him from punishment, while his power ensured the sacrifice of the victims, who had so long been his slaves. It appears that Wild was near meeting his end in this case. He was to have given evidence against Blake, but going to visit him in the bail-dock, previous to his trial, the latter suddenly drew a clasped penknife, with which he cut Jonathan's throat. The knife was blunt, and the wound, though dangerous, did not prove mortal; but the informer was prevented from giving the evidence which had been expected from him. While under sentence of death, Blake did not show a concern proportioned to his calamitous situation. When asked if he was advised to commit the violence on Wild, he said No; but that a sudden thought entered his mind: had it been premeditated, he would have provided a knife, which would have cut off his head at once. On the nearer approach of death he appeared

still less concerned; and it was thought that his mind was chiefly bent on meditating means of escaping: but seeing no prospect of getting away, he took to drinking, which he continued to the day of his death; and he was observed to be intoxicated, even while he was under the gallows.

He was executed at Tyburn on the 11th of November, 1723.

JOHN SHEPPARD.

EXECUTED FOR HOUSE-BREAKING.

THE prisoner, whose name heads this article, was a companion and fellow in crime to the notorious Blueskin. The name of Jack Sheppard is one which needs no introduction. His exploits are so notorious, that nothing more is necessary than to recount them. Sheppard was born in Spitalfields, in the year 1702; his father was a carpenter and bore the character of an honest man; but dying when his son was yet young, he, as well as a younger brother, Tom Sheppard, soon became remarkable for their disregard for honesty. Our hero was apprenticed to a carpenter in Wych-street, like his father, and during the first four years of his service he behaved with comparative respectability; but frequenting a public-house, called the Black Lion, in Drury Lane, he became acquainted with Blueskin, his subsequent companion in wickedness, and Wild, his betrayer, as well as with some women of abandoned character, who afterwards also became his coadjutors. His attentions were more particularly directed to one of them, named Elizabeth Lion, or Edgeworth Bess, as she was familiarly called from the town in which she was born, and while connected with her he frequently committed robberies at the various houses, in which he was employed as a workman. He was, however, also acquainted with a woman named Maggott, who persuaded him to commit his first robbery in the house of Mr. Bains, a piece-broker, in White Horse Yard, Drury Lane. He was at this time still resident at his master's house; and having stolen a piece of fustian, he took it home to his trunk, and then returning to the house which he was robbing, he took the bars out of the cellar-window, entered, and stole goods and money to the amount of 22*l.* which he carried to Maggott. As Sheppard did not go home that night, nor on the following day, his master suspected that he had made bad connexions, and searching his trunk found the piece of fustian that had been stolen; but Sheppard, hearing of this, broke open his master's house in the night, and carried off the fustian, lest it should be brought in evidence against him.

This matter received no further attention; but Sheppard's master seemed desirous still to favour him, and he remained some time longer in the

family; but after associating himself with the worst of company, and frequently staying out the whole night, his master and he quarrelled, and the headstrong youth totally absconded in the last year of his apprenticeship.

Jack now worked as a journeyman carpenter, with a view to the easier commission of robbery; and being employed to assist in repairing the house of a gentleman in May Fair, he took an opportunity of carrying off a sum of money, a quantity of plate, some gold rings, and four suits of clothes. Not long after this Edgeworth Bess was apprehended, and lodged in the round-house of the parish of St. Giles's, where Sheppard went to visit her; but the beadle refusing to admit him, he knocked him down, broke open the door, and carried her off in triumph; an exploit which acquired him a high degree of credit among his companions. Tom Sheppard being now as deep in crime as his brother, he prevailed on Jack to lend him forty shillings, and take him as a partner in his robberies. The first act they committed in concert was the robbing of a public-house in Southwark, whence they carried off some money and wearing apparel; but Jack permitted his brother to reap the whole advantage of this booty. Not long after this, in conjunction with Edgeworth Bess, they broke open the shop of Mrs. Cook, a linen-draper in Clare Market, and carried off goods to the value of 55*l.*; and in less than a fortnight afterwards, they stole some articles from the house of Mr. Phillips in Drury Lane. Tom Sheppard going to sell some of the goods stolen at Mrs. Cook's, was apprehended, and committed to Newgate, when, in the hope of being admitted an evidence, he impeached his brother and Bess; but they were sought for in vain.

At length James Sykes, otherwise called Hell-and-Fury, one of Sheppard's companions, meeting with him in St. Giles's, enticed him into a public-house, in the hope of receiving a reward for apprehending him; and while they were drinking Sykes sent for a constable, who took Jack into custody, and carried him before a magistrate. After a short examination, he was sent to St. Giles's round-house; but he broke through the roof of that place and made his escape in the night.

Within a short time after this, as Sheppard and an associate, named Benson, were crossing Leicester Fields, the latter endeavoured to pick a gentleman's pocket of his watch; but failing in the attempt, the gentleman called out "A pickpocket!" on which Sheppard was taken, and lodged in St. Ann's round-house, where he was visited by Edgeworth Bess, who was detained on suspicion of being one of his accomplices. On the following

day they were carried before a magistrate, and some persons appearing who charged them with felonies, they were committed to the New Prison; but as they passed for husband and wife, they were permitted to lodge together in a room known by the name of the Newgate ward. They were here visited by many of their friends, Blueskin among the number; and being provided by them with the implements necessary to enable them to escape, Jack proceeded to secure the object which he had in view with that alacrity and energy which always characterised his actions. The removal of his fetters by means of a file was a work which occupied him a very few minutes, and he then, with the assistance of his companion, prepared for flight. The first obstacle which presented itself to them was in the shape of the heavy cross-bars which defended the aperture, by which light and air were admitted to their cell; but the application of their file soon removed the difficulty. There was then another point of a more dangerous character to overcome—the descent to the yard. Their window was twenty-five feet in height, and the only means of reaching the earth was by the employment of their blankets as ropes. These, however, would not enable them to touch the ground; but they found that there was a considerable distance for them to drop, even after they should have arrived at the extreme end of their cord. Gallantry induced our hero to give the first place to Bess, and she, having stripped off a portion of her clothes, so as to render herself lighter, descended in perfect safety. Jack followed, and they found some consolation in their being at least without the gaol, although there were yet the walls of the yard to climb. These were topped with a strong *chevaux de frise* of iron, and were besides twenty-two feet high; but passing round them until they came to the great gates, the adventurous pair found means by the locks and bolts, by which they were held together, to surmount this, apparently the greatest difficulty of all, and they once again stood on the open ground outside the gaol. Bess having now re-assumed the clothes, of which she had denuded herself, in order that she might be the more agile in her escape, and which she had taken the precaution to throw over the wall before her, she and her paramour, once more enjoying the free air of liberty, marched into town.

It may readily be supposed that our hero's fame was increased by the report of this exploit, and all the thieves of St. Giles's soon became anxious to become his "palls." He did not hesitate to accept the companionship of two of them, named Grace, a cooper, and Lamb, an apprentice to a mathematical instrument maker; and at the instigation of the latter they

committed a robbery in the house of his master, near St. Clement's church, to a considerable amount. The apprentice, however, was suspected, and secured, and being convicted, received sentence of transportation. Our hero meanwhile escaped, and joining with Blueskin, they did not fail in obtaining considerable booty. The mode of disposing of the plunder which they adopted was that of employing a fellow named Field to procure them a market; and having committed the robbery at Kneebone's, already mentioned in Blake's memoir, they lodged its proceeds in a stable, which they had hired, near the Horse Ferry, Westminster. Field was applied to, to find a customer for the property, and he promised to do so, and was as good as his word; for breaking open the stable, he carried off the goods himself, and then conveyed information of the robbery to Wild, alleging that he had been concerned in it. Blueskin, it will have been seen, was tried and convicted for the robbery, and suffered execution; and Sheppard having also been secured, he too was sentenced to death.

On Monday, 30th August, 1724, a warrant was sent for his execution, together with that of some other convicts, but neither his ingenuity nor his courage forsook him upon this, any more than upon any previous occasion. In the gaol of Newgate there was a hatch within the lodge in which the gaolers sat, which opened into a dark passage, from which there were a few steps leading to the hold containing the condemned cells. It was customary for the prisoners, on their friends coming to see them, to be conducted to this hatch; but any very close communication was prevented by the *surveillance* of the gaolers, and by large iron spikes which surmounted the gate. The visits of Edgeworth Bess to her paramour were not unattended with advantage to the latter, for while in conversation, she took the opportunity of diverting the attention of the gaoler from her, while she delivered the necessary instruments to Sheppard to assist him in his contemplated escape. Subsequent visits enabled Jack to approach the wicket; and by constant filing he succeeded in placing one of the spikes in such a position as that it could be easily wrenched off. On the evening on which the warrant for his execution arrived, Mrs. Maggott, who was an immensely powerful woman, and Bess, going to visit him, he broke off the spike while the keepers were employed in drinking in the lodge, and thrusting his head and shoulders through the aperture, the women pulled him down, and smuggled him through the outer room, in which the gaolers were indulging themselves, into the street. This second escape not a little

increased his notoriety; but an instant pursuit being made, he was compelled to lie close. Consulting with one Page, a butcher, it was determined that they should go to Warnden, in Northamptonshire, together where the relations of the latter lived; but on arriving there, being treated with indifference, they immediately retraced their steps to London.

On the night after their return, they were walking through Fleet-street, when they saw a watchmaker's shop attended only by a boy, and having passed it, they turned back, and Sheppard, driving his hand through the window, stole three watches, with which they made their escape. They subsequently retired to Finchley for security; but the gaolers of Newgate gaining information of their retreat, took Sheppard into custody, and once more conveyed him to "The Stone Jug."

Such steps were now taken as it was thought would be effectual to prevent his future escape. He was put into a strong room, called the Castle, handcuffed, loaded with a heavy pair of irons, and chained to a staple fixed in the floor. The curiosity of the public being greatly excited by his former escape, he was visited by great numbers of people of all ranks, and scarce any one left him without making him a present in money. Although he did not disdain these substantial proofs of public generosity, which enabled him to obtain those luxuries, which were not provided by the city authorities for his prison fare, his thoughts were constantly fixed on the means of again eluding his keepers; and the opportunity was not long wanting when he might carry his design into execution.

On the fourteenth of October, the sessions began at the Old Bailey, and the keepers being much engaged in attending the Court, he thought rightly, that they would have little time to visit him, and, therefore, that, the present juncture would be the most favourable to carry his plan into execution. About two o'clock in the afternoon of the following day, one of the keepers carried him his dinner; and having carefully examined his irons, and found them fast, he left him. Sheppard now immediately proceeded to the completion of the great work of his life, his second escape from Newgate; in describing which we shall extract from Mr. Ainsworth's work of "Jack Sheppard," in which that gentleman has given a lasting fame to our hero, and has founded a most interesting romance on the real circumstances of the life of this daring and extraordinary offender. He says, "Jack Sheppard's first object was to free himself from his handcuffs. This he accomplished by holding the chain that connected them firmly between his teeth, and,

squeezing his fingers as closely together as possible, he succeeded in drawing his wrists through the manacles. He next twisted the heavy gyves round and round, and partly by main strength, partly by a dexterous and well-applied jerk, snapped asunder the central link, by which they were attached to the padlock. Taking off his stockings, he then drew up the basils as far as he was able, and tied the fragments of the broken chains to his legs, to prevent them from clanking, and impeding his future exertions." Upon a former attempt to make his way up the chimney, he had been impeded by an iron bar which was fixed across it, at a height of a few feet. To remove this obstacle, it was necessary to make an extensive breach in the wall. With the broken links of the chain, which served him in lieu of more efficient implements, he commenced operations just above the chimney-piece, and soon contrived to pick a hole in the plaster. He found the wall, as he suspected, solidly constructed of brick and stone; and, with the slight and inadequate tools which he possessed, it was a work of infinite skill and labour to get out a single brick. That done, however, he was well aware the rest would be comparatively easy; and as he threw the brick to the ground, he exclaimed triumphantly, "The first step is taken—the main difficulty is overcome."

"Animated by this trifling success, he proceeded with fresh ardour, and the rapidity of his progress was proclaimed by the heap of bricks, stones, and mortar, which before long covered the floor. At the expiration of an hour, by dint of unremitting exertion, he made so large a breach in the chimney that he could stand upright in it. He was now within a foot of the bar, and introducing himself into the hole, he speedily worked his way to it. Regardless of the risk he ran by some heavy stones dropping on his head or feet,—regardless also of the noise made by the falling rubbish, and of the imminent risk to which he was consequently exposed of being interrupted by some of the gaolers, should the sound reach their ears, he continued to pull down large masses of the wall, which he flung upon the floor of the cell. Having worked thus for another quarter of an hour, without being sensible of fatigue, though he was half stifled by the clouds of dust which his exertions raised, he had made a hole about three feet wide and six high, and uncovered the iron bar. Grasping it firmly with both hands, he quickly wrenched it from the stones in which it was mortised, and leapt to the ground. On examination it proved to be a flat bar of iron, nearly a yard in length, and more than an inch square. 'A capital instrument for my

purpose,' thought Jack, shouldering it, 'and worth all the trouble I have had in procuring it.' While he was thus musing, he thought he heard the lock tried. A chill ran through his frame, and grasping the heavy weapon, with which chance had provided him, he prepared to strike down the first person who should enter his cell. After listening attentively for a short time without drawing breath, he became convinced that his apprehensions were groundless, and, greatly relieved, sat down upon the chair to rest himself and prepare for future efforts.

"Acquainted with every part of the gaol, Jack well knew that his only chance of effecting an escape must be by the roof. To reach it would be a most difficult undertaking. Still it was possible, and the difficulty was only a fresh incitement. The mere enumeration of the obstacles which existed would have deterred any spirit less daring than Sheppard's from even hazarding the attempt. Independently of other risks, and the chance of breaking his neck in the descent, he was aware that to reach the leads he should have to break open six of the strongest doors of the prison. Armed, however, with the implement he had so fortunately obtained, he did not despair of success. 'My name will not only be remembered as that of a robber,' he mused, 'but it shall be remembered as that of a bold one; and this night's achievement, if it does nothing else, shall prevent me from being classed with the common herd of depredators.' Roused by this reflection, he grasped the iron bar, which, when he sat down, he had laid upon his knees, and stepped quickly across the room. In doing so, he had to clamber up the immense heap of bricks and rubbish which now littered the floor, amounting almost to a cart-load, and reaching up nearly to the chimney-piece; and having once more got into the chimney, he climbed to a level with the ward above, and recommenced operations as vigorously as before. He was now aided with a powerful implement, with which he soon contrived to make a hole in the wall.

"The ward which Jack was endeavouring to break was called the Red-room from the circumstance of its walls having once been painted in that colour: all traces of which, however, had long since disappeared. Like the Castle, which it resembled in all respects, except that it was destitute even of a barrack bedstead, the Red-room was reserved for state prisoners, and had not been occupied since the year 1716, when the gaol was crowded by the Preston rebels. Having made a hole in the wall sufficiently large to pass through, Jack first tossed the bar into the room and then crept after it. As

soon as he had gained his feet, he glanced round the bare black walls of the cell, and, oppressed by the misty close atmosphere, exclaimed, 'I will let a little fresh air into this dungeon: they say it has not been opened for eight years, but I won't be eight minutes in getting out.' In stepping across the room, some sharp point in the floor pierced his foot, and stooping to examine it, he found that the wound had been inflicted by a long rusty nail, which projected from the boards. Totally disregarding the pain, he picked up the nail, and reserved it for future use. Nor was he long in making it available. On examining the door, he found it secured by a large rusty lock, which he endeavoured to pick with the nail he had just acquired: but all his efforts proving ineffectual, he removed the plate that covered it with the bar, and with his fingers contrived to draw back the bolt.

"Opening the door, he then stepped into a dark narrow passage, leading, as he was well aware, to the Chapel. On the left there were doors communicating with the King's Bench Ward, and the Stone Ward, two large holds on the master debtors' side. But Jack was too well versed in the geography of the place to attempt either of them. Indeed, if he had been ignorant of it, the sound of voices, which he could faintly distinguish, would have served as a caution to him. Hurrying on, his progress was soon checked by a strong door, several inches in thickness and nearly as wide as the passage. Running his hand carefully over it in search of the lock, he perceived, to his dismay, that it was fastened on the other side. After several vain attempts to burst it open, he resolved, as a last alternative, to break through the wall in the part nearest the lock. This was a much more serious task than he anticipated. The wall was of considerable thickness, and built altogether of stone; and the noise he was compelled to make in using the heavy bar, which brought sparks with every splinter he struck off, was so great, that he feared it must be heard by the prisoners on the debtors' side. Heedless, however, of the consequences, he pursued his task. Half an hour's labour, during which he was obliged more than once to pause to regain breath, sufficed to make a hole wide enough to allow a passage for his arm up to the elbow. In this way he was able to force back a ponderous bolt from its socket; and to his unspeakable delight, found that the door instantly yielded. Once more cheered by daylight, he hastened forward and entered the Chapel.

"Situated at the upper part of the south-east angle of the gaol, the Chapel of Old Newgate was divided on the north side into three grated

compartments, or pens, as they were termed, allotted to the common debtors and felons. In the north-west angle there was a small pen for female offenders; and on the south, a more commodious inclosure appropriated to the master debtors and strangers. Immediately beneath the pulpit stood a large circular pen, where malefactors under sentence of death sat to hear the condemned sermon delivered to them, and where they formed a public spectacle to the crowds which curiosity generally attracted on those occasions. To return, Jack had got into one of the pens at the north side of the chapel. The inclosure by which it was surrounded was about twelve feet high; the under part being composed of oaken planks, the upper part of a strong iron grating, surmounted by sharp iron spikes. In the middle there was a gate: it was locked. But Jack speedily burst it open with the iron bar. Clearing the few impediments in his way, he soon reached the condemned pew, where it had once been his fate to sit; and extending himself on the seat endeavoured to snatch a moment's repose. It was denied him, for as he closed his eyes—though but for an instant—the whole scene of his former visit to the place rose before him. There he sat as before, with the heavy fetters on his limbs, and beside him sat his three companions who had since expiated their offences on the gibbet. The chapel was again crowded with visitors, and every eye fixed upon him. So perfect was the illusion, that he could almost fancy he heard the solemn voice of the Ordinary warning him that his race was nearly run, and imploring him to prepare for eternity. From this perturbed state he was roused by the thoughts of his present position, and fancying he heard approaching voices, he started up. On one side of the chapel there was a large grated window, but, as it looked upon the interior of the gaol, Jack preferred following the course he had originally decided upon, to making any attempt in this quarter. Accordingly he proceeded to a gate which stood upon the south, and guarded the passage communicating with the leads. It was grated, and crested with spikes, like that he had just burst open; and thinking it a needless waste of time to force it, he broke off one of the spikes, which he carried with him for further purposes, and then climbed over it. A short flight of steps brought him to a dark passage, into which he plunged. Here he found another strong door, making the fifth he had encountered. Well aware that the doors in this passage were much stronger than those in the entry he had just quitted, he was neither surprised nor dismayed to find it fastened by a lock of unusual size. After repeatedly trying to remove the plate, which was so firmly screwed down that it

resisted all his efforts, and vainly attempting to pick it with his spike and nail, he at length, after half an hour's ineffectual labour, wrenched off the box by means of the iron bar, and the door, as he laughingly expressed it, 'was his humble servant.'

"But this difficulty was only overcome to be succeeded by one still greater. Hastening along the passage, he came to the sixth door. For this he was prepared: but he was not prepared for the almost insurmountable difficulties which it presented. Running his hand hastily over it, he was startled to find it one complicated mass of bolts and bars. It seemed as if all the precautions previously taken were here accumulated. Any one less courageous than himself would have abandoned the attempt from the conviction of its utter hopelessness; but though it might for a moment damp his ardour, it could not deter him. Once again he passed his hand over the surface, and carefully noted all the obstacles. There was a lock, apparently more than a foot wide, strongly plated, and girded to the door with thick iron hoops. Below it a prodigiously large bolt was shot into the socket, and, in order to keep it there, was fastened by a hasp, and further protected by an immense padlock. Besides this, the door was crossed and recrossed by iron bars, clenched by broad-headed nails. An iron fillet secured the socket of the bolt and the box of the lock to the main post of the door-way. Nothing disheartened by this survey, Jack set to work upon the lock, which he attacked with all his implements;—now attempting to pick it with the nail;—now to wrench it off with the bar, but all without effect. He not only failed in making any impression but seemed to increase the difficulties, for after an hour's toil he had broken the nail, and slightly bent the iron bar. Completely overcome by fatigue, with strained muscles and bruised hands, streaming with perspiration, and with lips so parched that he would gladly have parted with a treasure if he had possessed it for a draught of water, he sunk against the wall, and while in this state was seized with a sudden and strange alarm. He fancied that the turnkeys had discovered his flight, and were in pursuit of him—that they had climbed up the chimney—entered the bed-rooms—tracked him from door to door, and were now only detained by the gate, which he had left unbroken in the chapel. So strongly was he impressed with this idea, that grasping the iron bar with both hands he dashed it furiously against the door, making the passage echo with the blows. By degrees his fears vanished, and, hearing nothing, he grew calmer. His spirits revived, and encouraging himself with the idea that the present

impediment, though the greatest, was the last, he set himself seriously to consider how it might best be overcome. On reflection, it occurred to him that he might, perhaps, be able to loosen the iron fillet—a notion no sooner conceived than executed. With incredible labour, and by the aid of both spike and nail, he succeeded in getting the point of the bar beneath the fillet. Exerting all his energies, and using the bar as a lever, he forced off the iron band, which was full seven feet high, seven inches wide, and two inches thick, and which brought with it, in its fall, the box of the lock, and the socket of the bolt, leaving no further hindrance. Overjoyed beyond measure at having vanquished this apparently insurmountable obstacle, Jack darted through the door.

“Ascending a short flight of steps, Jack found at the summit a door, which, being bolted on the inside, he speedily opened. The fresh air, which blew in his face, greatly revived him. He had now reached what were called the Lower Leads—a flat, covering a part of the prison contiguous to the gateway, and surrounded on all sides by walls about fourteen feet high. On the north stood the battlements of one of the towers of the gate. On this side a flight of wooden steps, protected by a hand-rail, led to a door opening upon the summit of the prison. This door was crested with spikes, and guarded on the right by a bristling semi-circle of similar weapons. Hastily ascending the steps, Jack found the door, as he anticipated, locked. He could have easily forced it, but he preferred a more expeditious mode of reaching the roof which suggested itself to him. Mounting the door he had last opened, he placed his hands on the wall above, and quickly drew himself up. Just as he got on the roof of the prison, St. Sepulchre’s clock struck eight. It was instantly answered by the deep note of St. Paul’s; and the concert was prolonged by other neighbouring churches. Jack had been thus six hours in accomplishing his arduous task.

“Though nearly dark, there was still light enough left to enable him to discern surrounding objects. Through the gloom he distinctly perceived the dome of St. Paul’s, hanging like a black cloud in the air; and, nearer to him, he remarked the golden ball on the summit of the College of Physicians, compared by Garth to a ‘gilded pill.’ Other towers and spires;—St. Martin’s, on Ludgate-hill, and Christ Church, in Newgate-street, were also distinguishable. As he gazed down into the courts of the prison, he could not help shuddering, lest a false step might precipitate him below. To prevent the recurrence of any such escape as that just described, it was

deemed expedient, in more recent times, to keep a watchman at the top of Newgate. Not many years ago, two men employed in this duty quarrelled during the night, and in the morning their bodies were found stretched upon the pavement of the yard below. Proceeding along the wall, Jack reached the southern tower, over the battlements of which he clambered, and crossing it, dropped upon the roof of the gate. He then scaled the northern tower, and made his way to the summit of that part of the prison which fronted Giltspur-street. Arrived at the extremity of the building, he found that it overlooked the flat roof of a house, which, as far as he could judge in the darkness, lay at a depth of about twenty feet below.

“Not choosing to hazard so great a fall, Jack turned to examine the building, to see whether any more favourable point of descent presented itself, but could discover nothing but steep walls, without a single available projection. Finding it impossible to descend on any side, without incurring serious risk, Jack resolved to return for his blanket, by the help of which he felt certain of accomplishing a safe landing on the roof of the house in Giltspur-street. Accordingly he began to retrace his steps, and pursuing the course he had recently taken, scaling the two towers, and passing along the walls of the prison, he descended by means of the door upon the Lower Leads. Before he re-entered the prison he hesitated, from a doubt whether he was not fearfully increasing his risk of capture; but, convinced that he had no other alternative, he went on. During all this time he had never quitted the iron bar, and he now grasped it with the firm determination of selling his life dearly if he met with any opposition. A few seconds sufficed to clear the passages through which it had previously cost him more than two hours to force his way. The floor was strewn with screws, nails, fragments of wood and stone, and across the passage lay the heavy iron fillet. He did not disturb any of the litter, but left it as a mark of his prowess. He was now at the entrance of the chapel, and striking the door over which he had previously climbed a violent blow with the bar, it flew open. To vault over the pews was the work of a moment; and having gained the entry leading to the Red Room, he passed through the first door, his progress being only impeded by the pile of broken stones, which he himself had raised. Listening at one of the doors leading to the master-debtors’ side, he heard a loud voice chanting a Bacchanalian melody; and the boisterous laughter that accompanied the song, convinced him that no suspicion was entertained in that quarter. Entering the Red-Room, he crept through the

hole in the wall, descended the chimney, and arrived once more in his old place of captivity. How different were his present feelings, compared with those he had experienced on quitting it! Then, full of confidence, he half doubted his power of accomplishing his designs. Now he had achieved them, and felt assured of success. The vast heap of rubbish on the floor had been so materially increased by the bricks and plaster thrown down in his attack upon the wall of the Red-Room, that it was with some difficulty that he could find the blanket, which was almost buried beneath the pile. He next searched for his stockings and shoes, and when found, put them on. He now prepared to return to the roof, and throwing the blanket over his left arm, and shouldering the iron bar, he again clambered up the chimney, regained the Red-Room, hurried along the first passage, crossed the chapel, threaded the entry to the Lower Leads, and in less than three minutes after quitting the Castle, had reached the northern extremity of the prison. Previously to his descent, he had left the nail and spike on the wall, and with these he fastened the blanket to the coping-stone. This done, he let himself carefully down by it, and having only a few feet to drop, alighted in safety.

“Having now got fairly out of Newgate, for the second time, with a heart throbbing with exultation, he hastened to make good his escape. To his great joy he found a small garret door in the roof of the opposite house open; he entered it, crossed the room, in which there was only a small truckle-bed, over which he stumbled, opened another door and gained the stair-head. As he was about to descend, his chains slightly rattled. ‘O lud! what’s that?’ cried a female voice from an adjoining room ‘Only the dog,’ replied the rough tones of a man, and all was again silent. Securing the chain in the best way he could, Jack then hurried down two pair of stairs, and had nearly reached the lobby, when a door suddenly opened, and two persons appeared, one of whom held a light. Retreating as quickly as he could, Jack opened the first door he came to, entered a room, and searching in the dark for some place of concealment, fortunately discovered a screen, behind which he crept.”

Having lain down here for about two hours, he once more proceeded down stairs, and saw a gentleman take leave of the family and quit the house, lighted by the servant; and as soon as the maid returned, he resolved to venture at all hazards. In stealing down the stairs he stumbled against a chamber door, but instantly recovering himself, he got into the street.

By this time it was after twelve o'clock, and passing by the watch-house of St. Sepulchre, he bid the watchman good night; and going up Holborn, he turned down Gray's Inn Lane, and at about two in the morning, he got into the fields near Tottenham Court Road, where he took shelter in a cow-house, and slept soundly for about three hours. His fetters were still on his legs, and he dreaded the approach of daylight lest he should be discovered. His mind, however, was somewhat relieved for the present, for at seven o'clock the rain began to fall in torrents, so that no one ventured near his hiding-place. Night coming on, the calls of hunger drove him to seek some refreshment, and going to Tottenham Court Road, he ventured to purchase some bread and cheese and small-beer at a chandler's shop. He had during the day been planning various means to procure the release of his legs from the bondage of his chains, and now having forty-five shillings in his possession, he attempted to procure a hammer. His efforts, however, proved ineffectual, and he was compelled to return to his shelter for the night. The next day brought him no relief; and having again gone to the chandler's shop, he once more went back to his place of concealment. The next day was Sunday, and he now beat the basils of his irons with a stone, so that he might slip them over his heels, but the master of the cow-house coming, interrupted him, and demanded to know how he came there so confined by irons. The answer given was, that he had escaped from Bridewell, where he had been confined because he was unable to give security for the payment of a sum of money for the maintenance of a child he had had sworn to him, and the master of the house desiring him to be gone, then quitted him. A shoemaker soon after coming near, Jack called him, and telling him the same story, induced him, by a bribe of twenty shillings, to procure him a hammer and a punch. They set to work together to remove the irons, and his legs were at length freed from this encumbrance at about five o'clock.

When night came on, our adventurer tied a handkerchief about his head, tore his woollen cap in several places, and also his coat and stockings, so as to have the appearance of a beggar; and in this condition he went to a cellar near Charing Cross, where he supped on roast veal, and listened to the conversation of the company, all of whom were talking of the escape of Sheppard. On the Monday he sheltered himself at a public-house of little trade in Rupert-street, and conversing with the landlady about Sheppard, he told her it was impossible for him to get out of the kingdom, and the

keepers would certainly have him again in a few days; on which the woman wished that a curse might fall on those who should betray him.

On the next day he hired a garret in Newport Market, and soon afterwards, dressing himself like a porter, he went to Blackfriars, to the house of Mr. Applebee, printer of the dying speeches, and delivered a letter, in which he ridiculed the printer and the Ordinary of Newgate, and inclosed a communication for one of the keepers of the gaol.

Some nights after this he broke open the shop of Mr. Rawlins, a pawnbroker, in Drury Lane, where he stole a sword, a suit of wearing apparel, some snuff-boxes, rings, watches, and other effects to a considerable amount; and determining to make the appearance of a gentleman among his old acquaintance in Drury Lane and Clare Market, he dressed himself in a suit of black and a tie-wig, wore a ruffled shirt, a silver-hilted sword, a diamond ring, and a gold watch, and joined them at supper, though he knew that diligent search was making after him at that very time. On the 31st of October he dined with two women at a public-house in Newgate-street, and about four in the afternoon they all passed under Newgate in a hackney-coach, having first drawn up the blinds. Going in the evening to a public-house in Maypole Alley, Clare Market, Sheppard sent for his mother, and treated her with brandy, when the poor woman dropped on her knees, and begged that he would immediately retire from the kingdom. He promised to do so; but now being grown mad from the effects of the liquor he had drunk, he wandered about from public-house to public-house in the neighbourhood till near twelve o'clock at night, when he was apprehended in consequence of the information of an ale-house boy, who knew him. When taken into custody he was quite senseless, and was conveyed to Newgate in a coach, without being capable of making any resistance, although he had two loaded pistols in his possession at the time. He was now lodged securely enough; and his fame being increased by his recent exploits, he was visited by many persons of distinction, whom he diverted by a recital of the particulars of many robberies in which he had been concerned, but he invariably concluded his narration by expressing a hope that his visitors would endeavour to procure the exercise of the royal mercy in his behalf, to which he considered that his remarkable dexterity gave him some claim.

Having been already convicted, it was unnecessary that the forms of a trial should be again gone through, and on the 10th of November he was

carried to the bar of the Court of King's Bench; when a record of his conviction having been read, and an affidavit made that he was the same person alluded to in it, sentence of death was passed upon him by Mr. Justice Powis, and a rule of court was made for his execution on the following Monday. He subsequently regularly attended chapel in the gaol, and behaved there with apparent decency, but on his quitting its walls, he did not hesitate to endeavour to prevent any seriousness among his fellow prisoners. All his hopes were still fixed upon his being pardoned, and even when the day of execution arrived, he did not appear to have given over all expectations of eluding justice; for having been furnished with a penknife, he put it in his pocket, with a view, when the melancholy procession came opposite Little Turnstile, to have cut the cord that bound his arms, and, throwing himself out of the cart among the crowd, to have run through the narrow passage where the sheriff's officers could not follow on horseback, and he had no doubt but he should make his escape by the assistance of the mob. It was not impossible that this scheme might have succeeded; but before Sheppard left the press-yard, one Watson, an officer, searching his pockets, found the knife, and was cut with it so as to occasion a great effusion of blood. He, however, had yet a farther view to his preservation even after execution; for he desired his acquaintance to put him into a warm bed as soon as he should be cut down, and to try to open a vein, which he had been told would restore him to life.

He behaved with great decency at the place of execution, and confessed that he had committed two robberies, for which he had been tried, but had been acquitted. His execution took place at Tyburn, on the 16th of November, 1724, in the twenty-third year of his age. He died with difficulty; and there were not wanting those among the crowd assembled, who pitied him for the fate which befel him at so early a period of his life. When he was cut down, his body was delivered over to his friends, who carried it to a public-house in Long Acre; from which it was removed in the evening, and buried in the church-yard of St. Martin's-in-the-Fields.

The adventures of this notorious offender excited more attention than those of many of our most celebrated warriors. He was, for a considerable time, the principal subject of conversation in all ranks of society. Histories of his life issued from the press in a variety of forms. A pantomimic entertainment was brought forward at Drury-lane theatre, called "Harlequin Sheppard," wherein his adventures, prison-breakings, and other

extraordinary escapes, were represented; and another dramatic work was published, as a farce of three acts, called “The Prison-Breaker;” or, “The Adventures of John Sheppard;” and a part of it, with songs, catches, and glees added, was performed at Bartholomew Fair, under the title of “The Quaker’s Opera.”

The arts too, were busied in handing to posterity memoranda for us never to follow the example of Jack Sheppard.

Sir James Thornhill^[2], the first painter of the day, painted his portrait, from which engravings in mezzotinto were made; and the few still in preservation are objects of curiosity. On this subject the following lines were written at the time:—

“Thornhill, ’tis thine to gild with fame
The obscure, and raise the humble name;
To make the form elude the grave,
And Sheppard from oblivion save.

Though life in vain the wretch implores,
An exile on the farthest shores,
Thy pencil brings a kind reprieve,
And bids the dying robber live.

This piece to latest time shall stand,
And show the wonders of thy hand:
Thus former masters graced their name,
And gave egregious robbers fame.

Apelles Alexander drew,
Cæsar is to Aurelius due;
Cromwell in Lily’s works doth shine,
And Sheppard, Thornhill, lives in thine.”

In modern times, the adventures of Sheppard and his contemporaries have become even better known and more remarked, in consequence of the work to which we have already alluded, and from which we have made an extract which details his exploits with great exactness; but at the same time gives to them a degree of romantic interest to which they are hardly entitled. The *rage* for house-breakers has become immense, and the fortunes of the most notorious and the most successful of thieves have been made the subject of entertainments at no fewer than six of the London theatres.

Blewitt, whose name is mentioned in the foregoing sketch, as one of the earliest companions of Sheppard, was eventually hanged, with others, for the murder of a fellow named Ball, a publican and ex-thief, who lived in the Mint, and who had provoked the anger of his murderers, by threatening to denounce them. Their execution took place on the 12th of April, 1726.

JONATHAN WILD.

EXECUTED FOR FELONIOUSLY CONNIVING WITH THIEVES.

THE name of this most notorious offender must be familiar to all; his arts and practices are scarcely less universally known. The power exercised by him over thieves of all classes, and of both sexes, was so great as that he may have been considered their chief and director, at the same time that he did not disdain to become their coadjutor, or the participator in the proceeds of their villany. The system which he pursued will be sufficiently disclosed in the notices which follow of the various transactions in which he was engaged; but it appears to have been founded upon the principle of employing a thief so long as his efforts proved profitable, or until their suspension should be attended with advantage, and then of terminating his career in the most speedy and efficacious manner, by the gallows.

The subject of this narrative was born at Wolverhampton in Staffordshire, about the year 1682; and his parents being persons of decent character and station, he was put to school, where he gained a competent knowledge of the ordinary minor branches of education. At the age of fifteen he was apprenticed to a buckle-maker, at Birmingham; and at the age of twenty-two, his time having expired, he was united to a young woman of respectability, whom he was well able to support by the exercise of his trade. His wife soon afterwards presented him with a son; but getting tired of a life of quietude, he started for London, leaving his wife and child destitute, and soon gained fresh employment. His disposition, however, led him into extravagances, and having contracted some debts, he was arrested, and thrown into Wood-street Compter, where, according to his own statement, "it was impossible but he must, in some measure, be led into the secrets of the criminals there under confinement, and particularly under Mr. Hitchin's management." He remained in prison upwards of four years, and the opportunity which was afforded him, of becoming acquainted with the persons, as well as the practices of thieves was not lost upon him. A woman named Mary Milliner, one of the most abandoned prostitutes and pickpockets on the town, who was also in custody for debt, soon attracted his attention, and an intimacy having commenced in the prison, on their

discharge they lived together as man and wife. The possession of a small sum of money having been obtained, they opened a public-house in Cock Alley, Cripplegate; and from the notoriety of Mrs. Milliner, and her intimate acquaintance with the thieves of the metropolis, it soon became the resort of the lowest of the class. While Wild was thus pursuing his course to his pecuniary advantage, however, he lost no time in acquiring a proficiency in all the arts of knavery; and having, with great assiduity, penetrated into the secrets of his customers, he started as a “fence,” or receiver of stolen goods; and by this means he obtained that power, which subsequently proved so useful to him, and so dangerous to those who entrusted him with their secrets. He was at first at little trouble to dispose of the articles brought to him by thieves at something less than their real value, no law existing for the punishment of the receivers of stolen goods; but the evil having increased at length to an enormous degree, it was deemed expedient by the legislature to frame a law for its suppression; and an act was therefore passed, consigning such as should be convicted of receiving goods, knowing them to have been stolen, to transportation for the space of fourteen years.

This was a check of no very trifling character to his proceedings, but his imagination suggested to him a plan by which he would save himself from all his profits being lost. He therefore called a meeting of thieves, and observed that, if they carried their booties to such of the pawnbrokers as were known to be not much affected by scruples of conscience, they would scarcely receive on the property one-fourth of the real value; and that if they were offered to strangers, either for sale or by way of deposit, it was a chance of ten to one but the parties offering were rendered amenable to the laws. The most industrious thieves, he said, were now scarcely able to obtain a livelihood, and must either submit to be half-starved, or live in great and continual danger of Tyburn. He had, however, devised a plan for removing the inconveniences which existed, which he would act upon most honourably, provided they would follow his advice, and behave towards him with equal honesty. He proposed, therefore, that when they made prize of anything, they should deliver it to him, instead of carrying it to the pawnbroker, saying, that he would restore the goods to the owners, by which means greater sums might be raised, while the thieves would remain perfectly secure from detection. This proposition was one which met with universal approbation, and the plan was immediately carried into effect,

convenient places being established as the depositaries of the stolen goods. The plan thus concerted, it became the business of Wild to apply to persons who had been robbed, and pretending to be greatly concerned at their misfortunes, to say, that some suspected goods had been stopped by a friend of his, a broker, who would be willing to give them up; and he failed not then to throw out a hint that the broker merited some reward for his disinterested conduct and for his trouble, and to exact a promise that no disagreeable consequences should follow, because the broker had omitted to secure the thieves as well as the property. The person whose goods had been carried off was not generally unwilling by this means to save himself the trouble and expense of a prosecution, and the money paid was generally sufficient to remunerate the "broker," as well as his agent. This trade was successfully carried on for several years, and considerable sums of money were amassed; but at length another and a safer plan was adopted. The name of our hero having become pretty extensively known, instead of applying to the parties who had been plundered, he opened an office, to which great numbers resorted, in the hope of obtaining the restitution of their property. In this situation he lost no opportunity of procuring for himself the greatest credit, as well as the greatest profit possible. He made a great parade in his business, and assumed a consequence which enabled him more effectually to impose upon the public. When persons came to his office, they were informed that they must each pay a crown in consideration of receiving his advice. This ceremony being despatched, he entered into his book the name and address of the applicants, with all the particulars they could communicate respecting the robberies, and the rewards that would be given provided the goods were recovered: they were then required to call again in a few days, when, he said, he hoped he should be able to give them some agreeable intelligence. Upon returning to know the success of his inquiries, he told them that he had received some information concerning their goods, but that the agent he had employed to trace them had apprised him that the robbers pretended they could raise more money by pawning the property than by restoring it for the promised reward; saying, however, that if he could by any means procure an interview with the villains, he doubted not of being able to settle matters agreeably to the terms already stipulated; but, at the same time, artfully insinuating that the safest and most expeditious method would be to make some addition to the reward; and thus having secured the promise of the largest sum that could

be obtained, he would direct a third call, and then the goods would be ready to be delivered. It will be seen that considerable advantages were derived from examining the person who had been robbed; for by that means he became acquainted with particulars which the thieves might omit to communicate, and was enabled to detect them if they concealed any part of their booties. Being in possession of the secrets of every notorious thief, they were under the necessity of complying with whatever terms he thought proper to exact, because they were aware that, by opposing his inclination, they would involve themselves in the most imminent danger of being sacrificed to the injured laws of their country; and thus he was enabled to impose both on the robber and the robbed. The accumulation of money by these artifices enabled Wild to maintain the character of a man of consequence; and to support his imaginary dignity, he dressed in laced clothes and wore a sword, which martial instrument he first exercised on the person of his accomplice and reputed wife, Mary Milliner, who having on some occasion provoked him, he instantly struck at her with it, and cut off one of her ears. This event was the cause of separation; but in acknowledgment of the great services she had rendered him, by introducing him to so advantageous a *profession*, he allowed her a weekly stipend till her decease.

In the year 1715 Wild removed from his house in Cock Alley to a Mrs. Seagoe's, in the Old Bailey, where he pursued his business with the usual success; but while resident there, a controversy of a most singular character arose between him and a fellow named Charles Hitchin, who had been city marshal, but had been suspended for malpractices, to whom before his adoption of the lucrative profession which he now carried on, he had acted as assistant. These celebrated copartners in villany, under the pretext of controlling the enormities of the dissolute, paraded the streets from Temple-bar to the Minories, searching houses of ill-fame, and apprehending disorderly and suspected persons; but those who complimented the reformers with *douceurs*, were allowed to practise every species of wickedness with impunity. Hitchin and Wild, however, grew jealous of each other, and an open rupture taking place, they parted, each pursuing the business of thief-taking on his own account.

Our readers will doubtless be somewhat surprised to hear that these rivals in villany appealed to the public, and attacked each other with all possible scurrility in pamphlets and advertisements. Never was the press so

debased as in publishing the productions of their pens. Hitchin published what he called "The Regulator; or a Discovery of Thieves and Thief-takers." It is an ignorant and impudent insult to the reader, and replete with abuse of Wild, whom he brands, in his capacity of thief-taker, with being worse than the thief. Wild retorts with great bitterness but Hitchin having greatly debased the respectable post of city marshal, the lord mayor suspended him from that office. In order to repair his loss, he determined, as the most prudent step, to strive to bury his aversion, and confederate with Wild. To effect this, he wrote as follows:

"I am sensible that you are let into the knowledge of the secrets of the Compter, particularly with relation to the securing of pocket-books; but your experience is inferior to mine: I can put you in a far better method than you are acquainted with, and which may be done with safety; for though I am suspended, I still retain the power of acting as constable, and notwithstanding I cannot be heard before my lord mayor as formerly, I have interest among the aldermen upon any complaint.

"But I must first tell you that you spoil the trade of thief-taking, in advancing greater rewards than are necessary. I give but half-a-crown a book, and when thieves and pickpockets see you and me confederate, they will submit to our terms, and likewise continue their thefts, for fear of coming to the gallows by our means. You shall take a turn with me, as my servant or assistant, and we'll commence our rambles this night."

Wild it appears readily accepted the ex-marshal's proposals, and they accordingly proceeded to take their walks together, imposing upon the unwary and confederating with thieves, whom at the same time they did not hesitate to make their slaves. One or two instances of their mode of doing business may not be uninteresting. They are taken from a pamphlet written by Wild, and may therefore be supposed to be correct.

"A biscuit-baker near Wapping having lost a pocket-book containing, among other papers, an exchequer bill for 100*l.*, applied to Wild for its recovery: the latter advised him to advertise it, and stop the payment of the bill, which he did accordingly; but having no account of his property, he came to Wild several times about it, and at length told him that he had received a visit from a tall man, with a long peruke and sword, calling himself the city-marshal, who asked him if he had lost his pocket-book? He said that he had, and desired to know the inquirer's reasons for putting such

a question, or whether he could give him any intelligence; but he replied, No, he could not give him any intelligence of it as yet, and wished to be informed whether he had employed any person to search after it? He said that he had employed one Wild; whereupon the marshal told him he was under a mistake; that he should have applied to him, as he was the only person in England that could serve him, being well assured it was entirely out of the power of Wild, or any of those fellows, to know where the pocket-book was (this was very certain, he having it at that time in his custody); and begged to know the reward that would be given? The biscuit-baker replied that he would give ten pounds, but the marshal said that a greater reward should be offered, for that exchequer bills and those things were ready money, and could immediately be sold; and that if he had employed him in the beginning, and offered forty or fifty pounds, he would have served him. Wild gave it as his opinion, that the pocket-book was in the marshal's possession, and that it would be to no purpose to continue advertising it; and he advised the owner rather to advance his bidding, considering what hands the note was in, especially as the marshal had often told him how easily he could dispose of bank-notes and exchequer notes at gaming-houses, which he very much frequented. Pursuant to this advice, the losing party went to the marshal, and bid forty pounds for his pocket-book and bill, but 'Zounds, sir,' said the marshal, you are too late!' and that was all the satisfaction he gave him. Thus was the poor biscuit-baker tricked out of his exchequer-bill, which was paid to another person, though it could never be traced back; but it happened a short time after, that some of the young fry of pickpockets, under the tuition of the marshal, fell out in sharing the money given them for this very pocket-book; whereupon one of them came to Wild, and discovered the whole matter, viz. that he had sold the pocket-book, with the 100*l.* exchequer-note in it, and other bills, to the city-marshal, at a tavern in Aldersgate-street, for four or five guineas."

"The marshal going one night up Ludgate Hill, observed a well-dressed woman walking before, whom he told Wild was a lewd woman, for that he saw her talking with a man. This was no sooner spoke but he seized her, and asked who she was. She made answer that she was a bailiffs wife. 'You are more likely to be a prostitute,' said the marshal, 'and as such you shall go to the Compter.'

"Taking the woman through St. Paul's churchyard, she desired liberty to send for some friends, but he would not comply with her request. He forced

her into the Nag's Head tavern in Cheapside, where he presently ordered a hot supper and plenty of wine to be brought in; commanding the female to keep at a distance from him, and telling her that he did not permit such vermin to sit in his company, though he intended to make her pay the reckoning. When the supper was brought to the table, he fell to it lustily, and would not allow the woman to eat any part of it with him, or to come near the fire, though it was extreme cold weather. When he had supped he stared round, and applying himself to her, told her that if he had been an informer, or such a fellow, she would have called for eatables and wine herself, and not have given him the trouble of direction, or else would have slipped a piece into his hand; adding, 'You may do what you please; but I can assure you it is in my power, if I see a woman in the hands of informers, to discharge her, and commit them. You are not so ignorant but you must guess my meaning.' She replied, 'that she had money enough to pay for the supper, and about three half-crowns more;' and this desirable answer being given, he ordered his attendant to withdraw, while he compounded the matter with her.

"When Wild returned, the gentlewoman was civilly asked to sit by the fire, and eat the remainder of the supper, and in all respects treated very kindly, only with a pretended reprimand to give him better language whenever he should speak to her for the future; and, after another bottle drunk at her expense, she was discharged."

The object of these allegations on the part of Wild may be easily seen, and the effect which he desired was at length produced; for the marshal, having been suspended, and subsequently fined twenty pounds, and pilloried, for a crime too loathsome to be named, he was at length compelled to retire; and thus he left Wild alone to execute his plans of depredation upon the public. The latter, not unmindful of the tenure upon which his reputation hung, was too wary to allow discontent to appear among his followers, and therefore he found it to his interest to take care that where he promised them protection, his undertaking should not be neglected or pass unfulfilled. His powers in supporting his word were greater than can be well imagined, in the present state of things, where so much corruption has been got rid of; and where his influence among persons in office failed him, his exertions in procuring the testimony of false witnesses to rebut that evidence which was truly detailed, and the nature of which he could always learn beforehand, generally enabled him to

secure the object, which he had in view. His threats, however, were not less amply fulfilled than his promises; and his vengeance once declared was never withdrawn, and seldom failed in being carried out.

By his subjecting such as incurred his displeasure to the punishment of the law, he obtained the rewards offered for pursuing them to conviction; and greatly extended his ascendancy over the other thieves, who considered him with a kind of awe; while, at the same time, he established his character as being a man of great public utility.

A few anecdotes of the life and proceedings of this worthy will sufficiently exhibit the system which he pursued.

A lady of fortune being on a visit in Piccadilly, her servants, leaving her sedan at the door, went to refresh themselves at a neighbouring public-house. Upon their return the vehicle was not to be found; in consequence of which the men immediately went to Wild, and having informed him of their loss, and complimented him with the usual fee, they were desired to call upon him again in a few days. Upon their second application Wild extorted from them a considerable reward, and then directed them to attend the chapel in Lincoln's-inn-Fields on the following morning, during the time of prayers. The men went according to the appointment, and under the piazzas of the chapel perceived the chair, which upon examination they found to contain the velvet seat, curtains, and other furniture, and that it had received no kind of damage.

A thief of most infamous character, named Arnold Powel, being confined in Newgate, on a charge of having robbed a house in the neighbourhood of Golden Square of property to a great amount, was visited by Jonathan, who informed him that, in consideration of a sum of money, he would save his life; adding that if the proposal was rejected, he should inevitably die at Tyburn for the offence on account of which he was then imprisoned. The prisoner, however, not believing that it was in Wild's power to do him any injury, bade him defiance. He was brought to trial; but through a defect of evidence he was acquitted. Having gained intelligence that Powel had committed a burglary in the house of Mr. Eastlick, near Fleet Ditch, Wild caused that gentleman to prosecute the robber. Upon receiving information that a bill was found for the burglary, Powel sent for Wild, and a compromise was effected according to the terms which Wild himself had proposed, in consequence of which Powel was assured that his life should

be preserved. Upon the approach of the sessions Wild informed the prosecutor that the first and second days would be employed in other trials; and as he was willing Mr. Eastlick should avoid attending with his witnesses longer than was necessary, he would give timely notice when Powel would be arraigned. But he contrived to have the prisoner put to the bar; and no persons appearing to prosecute, he was necessarily dismissed; and the court ordered Mr. Eastlick's recognisances to be estreated. Powel was ordered to remain in custody till the next sessions, there being another indictment against him; and Mr. Eastlick represented the behaviour of Wild to the court, who reprimanded him with great severity. Powel now put himself into a salivation, in order to avoid being brought to trial the next sessions; but, notwithstanding this stratagem, he was arraigned and convicted, and was executed on the 20th of March, 1717.

At this time Wild quitted his apartments at Mrs. Seagoe's, and hired a house adjoining to the Coopers' Arms, on the opposite side of the Old Bailey. His unexampled villanies were now become an object of so much consequence, as to excite the particular attention of the legislature; and in the year 1718 an act was passed, deeming every person guilty of a capital offence who should accept a reward in consequence of restoring stolen effects without prosecuting the thief. It was the general opinion that this law would effectually suppress the iniquitous practices he had carried on; but, after some interruption to his proceedings, he devised means for evading it, which were for several years attended with success.

He now declined the custom of receiving money from the persons who applied to him; but, upon the second or third time of calling, informed them that all he had been able to learn respecting their business was, that if a sum of money was left at an appointed place, their property would be restored the same day. Sometimes, as the person robbed was returning from Wild's house he was accosted in the street by a man who delivered the stolen effects, at the same time producing a note, expressing the sum that was to be paid for them; but in cases where he supposed danger was to be apprehended, he advised people to advertise that whoever would bring the stolen goods to Jonathan Wild should be rewarded, and no questions asked.

In the two first instances it could not be proved that he either saw the thief, received the goods, or accepted of a reward; and in the latter case he acted agreeably to the directions of the injured party, and there appeared no reason to criminate him as being in confederacy with the felons.

Our adventurer's business had by this time so much increased, that he opened an office in Newtoner's-lane, to the management of which he appointed his man Abraham Mendez, a Jew. This fellow proved a remarkably industrious and faithful servant to Jonathan, who entrusted him with matters of the greatest importance, and derived great advantage from his labours. The species of despotic government which he exercised may be well collected from the following case:—He had inserted in his book a gold watch, a quantity of fine lace, and other property of considerable value, which one John Butler had stolen from a house at Newington Green; but Butler, instead of coming to account as usual, gave up his felonious practices, and lived on the produce of his booty. Wild, highly enraged at being excluded his share, determined to pursue every possible means to secure his conviction.

Being informed that he lodged at a public house in Bishopsgate-street, he went to it early one morning, when Butler, hearing him ascending the stairs, jumped out of the window of his room, and climbing over the wall of the yard got into the street. Wild broke open the door of the room, but was disappointed at finding that the man of whom he was in pursuit had escaped. In the meantime Butler ran into a house the door of which stood open, and descending to the kitchen, where some women were washing, told them he was pursued by a bailiff, and they advised him to conceal himself in the coal-hole. Jonathan coming out of the ale-house, and seeing a shop on the opposite side of the way open, inquired of the master, who was a dyer, whether a man had not taken refuge in his house? The dyer answered in the negative, saying he had not left his shop more than a minute since it had been opened. Wild then requested to search the house, and the dyer having readily complied, he proceeded to the kitchen, and asked the women if they knew whether a man had taken shelter in the house. They also denied that they had, but on his informing them that the man he sought was a thief, they said he would find him in the coal-hole.

Having procured a candle, Wild and his attendants searched the place without effect, and they examined every part of the house with no better success. He observed that the villain must have escaped into the street; but the dyer saying that he had not quitted the shop, and it was impossible that a man could pass to the street without his knowledge, they all again went into the cellar, and, after some time spent in searching, the dyer turned up a large vessel used in his business, and Butler appeared.

Butler, however, knowing the means by which an accommodation might be effected, directed our hero to go to his lodging, and look behind the head of the bed, where he would find what would recompense him for his time and trouble. Wild went to the place, and found what perfectly satisfied him; but as Butler had been apprehended in a public manner, the other was under the necessity of taking him before a magistrate, who committed him for trial. He was tried at the ensuing sessions at the Old Bailey; but, by the artful management of Wild, instead of being condemned to die, he was only sentenced to transportation.

The increased quantity of unclaimed property now in his hands, compelled Wild to seek some new mode of disposing of it, in a manner which should benefit him; and with this view he purchased a sloop, in order to transport the goods to Holland and Flanders, where he conceived he should find an easy market for them. The command of his vessel was entrusted to a fellow named Johnson, a notorious thief; and Ostend was selected by him as the port to which the vessel should principally trade. The goods, however, not being all disposed of there, he would carry them to Bruges, Ghent, Brussels, and other places. In return he brought home lace, wine, brandy, and the other commodities of the countries which he visited, which he always contrived to land without affording any trouble to the officers of his Majesty's customs. When this traffic had continued for about two years, a circumstance occurred which entirely and effectually prevented its being any longer carried on. Five pieces of lace were missing on the arrival of the ship in England, and Johnson, deeming the mate to be answerable for its production, deducted their value from the amount due to him for his pay. The latter was naturally violently irritated at this harsh proceeding, and he forthwith lodged an information against his captain, for running goods subject to exciseable duties. The vessel was in consequence seized, and Johnson was cast into prison for penalties to the amount of 700*l*. This was of course the ruin of the commercial proceedings; and the only remaining subject to be touched upon in this sketch is that which proved the ruin, and the termination of the career of Jonathan Wild.

Johnson having obtained his liberty from the government prosecution, soon returned to his old practices of robbery; but it was not long before



Jonathan Wild unkennelling Butler.

a disagreement took place between him and Thomas Edwards, the keeper of a house which was the resort of thieves, in Long-lane, with respect to the division of some spoil, and meeting one day in the Strand, a scene of mutual recrimination took place between them, and they were at length both taken into custody. Johnson was bailed by Wild, and Edwards gained his liberty by there being no prosecution against him; but his enmity being now diverted in some degree from Johnson to Wild, he was no sooner at large than he gave information against him, in consequence of which, his warehouses being searched, a great quantity of stolen goods was discovered. It was pretended that the property belonged to Johnson, and Edwards was arrested at his suit for a supposed debt, and lodged in the Marshalsea; but he soon procured bail. His anger against Johnson for this act was much increased, and he determined to have his revenge upon him;

and meeting him in the Whitechapel-road, he gave him into the custody of an officer, who conveyed him to a neighbouring ale-house. Wild being sent for, made his appearance, accompanied by Quilt Arnold, one of his assistants, and they soon raised a riot, in the midst of which the prisoner ran off. Information was immediately given of the escape, and of Wild's interference in it; and the attention of the authorities being now called to this notorious offender, he judged it prudent to abscond, and he remained concealed for three weeks. He was unaware of the extent of the danger which threatened him, however, and at the end of that time he returned to his house. Being apprised of this, Mr. Jones, high-constable of Holborn division, went to his house in the Old Bailey; and on the 15th of February, 1725, apprehended him and Quilt Arnold, and took them before Sir John Fryer, who committed them to Newgate, on a charge of having assisted in the escape of Johnson.

On Wednesday, the 24th of the same month, Wild moved to be either admitted to bail or discharged, or brought to trial that session; and on the following Friday a warrant of detainer was produced against him in Court, to which were affixed the following articles of information:—

I. That for many years past he had been a confederate with great numbers of highwaymen, pick-pockets, housebreakers, shop-lifters, and other thieves.

II. That he had formed a kind of corporation of thieves, of which he was the head or director; and that notwithstanding his pretended services in detecting and prosecuting offenders, he procured such only to be hanged as concealed their booty, or refused to share it with him.

III. That he had divided the town and country into so many districts, and appointed distinct gangs for each, who regularly accounted with him for their robberies. That he had also a particular set to steal at churches in time of divine service; and likewise other moving detachments to attend at court on birth-days, balls, &c. and at both houses of parliament, circuits, and country fairs.

IV. That the persons employed by him were for the most part felon convicts, who had returned from transportation before the time for which they were transported was expired; and that he made choice of them to be his agents, because they could not be legal evidences against him, and because he had it in his power to take from them what part of the stolen

goods he thought fit, and otherwise use them ill, or hang them, as he pleased.

V. That he had from time to time supplied such convicted felons with money and clothes, and lodged them in his own house, the better to conceal them: particularly some against whom there are now informations for counterfeiting and diminishing broad-pieces and guineas.

VI. That he had not only been a receiver of stolen goods, as well as of writings of all kinds, for near fifteen years past, but had frequently been a confederate, and robbed along with the above-mentioned convicted felons.

VII. That in order to carry on these vile practices, and to gain some credit with the ignorant multitude, he usually carried a short silver staff, as a badge of authority from the government, which he used to produce when he himself was concerned in robbing.

VIII. That he had, under his care and direction, several warehouses for receiving and concealing stolen goods; and also a ship for carrying off jewels, watches, and other valuable goods, to Holland, where he had a superannuated thief for his factor.

IX. That he kept in pay several artists to make alterations, and transform watches, seals, snuff-boxes, rings, and other valuable things, that they might not be known, several of which he used to present to such persons as he thought might be of service to him.

X. That he seldom or never helped the owners to the notes and papers they had lost unless he found them able exactly to specify and describe them, and then often insisted on having more than half their value.

XI. And, lastly, it appeared that he had often sold human blood, by procuring false evidence to swear persons into facts of which they were not guilty; sometimes to prevent them from being evidences against himself, and at other times for the sake of the great rewards given by the government.

The information of Mr. Jones was also read in court, setting forth that two persons would be produced to accuse the prisoner of capital offences. The men alluded to in the affidavit were John Follard and Thomas Butler, who had been convicted, but pardoned on condition of their appearing to support the prosecution against their former master. On the 12th of April a motion for the postponement of the trial until the ensuing sessions was made on behalf of Wild, and after some discussion it was granted; the

ground of the postponement being alleged to be the absence of two material witnesses for the defence, named —— Hays, of the Packhorse, Turnham Green, and —— Wilson, a clothier at Frome, in Somersetshire.

On Saturday, May 15, 1725, the trial came on, and the prisoner was then arraigned on an indictment for privately stealing in the house of Catherine Stretham, in the parish of St. Andrew, Holborn, fifty yards of lace, the property of the said Catherine, on the 22d of January in the same year.

He was also indicted for feloniously receiving from the said Catherine, on the 10th of March, the sum of ten guineas, on account and under pretence of restoring the said lace, and procuring the apprehension and prosecution of the person by whom the same was stolen.

Before the trial came on, the prisoner was not a little industrious in endeavouring to establish a feeling in his favour, and he distributed a great number of printed papers among the jurymen and others walking about the court, entitled. “A List of persons discovered, apprehended, and convicted of several robberies on the highway; and also for burglaries and housebreaking; and also for returning from transportation; by Jonathan Wild.” The list contained the names of thirty-five persons for robbing on the highway, twenty-two for housebreaking, and ten for returning from transportation, and the following note was appended to it.

“Several others have been also convicted for the like crimes; but, remembering not the persons’ names who had been robbed, I omit the criminals names.

“Please to observe that several others have been also convicted for shoplifting, picking of pockets, &c. by the female sex, which are capital crimes, and which are too tedious to be inserted here, and the prosecutors not willing of being exposed.

“In regard, therefore, of the numbers above convicted, some that have yet escaped justice, are endeavouring to take away the life of the said

“JONATHAN WILD.”

The prisoner, being put to the bar, requested that the witnesses might be examined apart, which was complied with.

The trial then commenced, and the first witness called was Henry Kelly, who deposed that by the prisoner’s direction he went, in company with Margaret Murphy, to the prosecutor’s shop, under pretence of buying some lace; that he stole a tin box, and gave it to Murphy in order to deliver to

Wild, who waited in the street for the purpose of receiving their booty, and rescuing them if they should be taken into custody; that they returned together to Wild's house, where the box being opened, was found to contain eleven pieces of lace; that Wild said he could afford to give no more than five guineas, as he should not be able to get more than ten guineas for returning the goods to the owner; that the witness received as his share three guineas and a crown, and that Murphy had what remained of the five guineas.

Margaret Murphy was next sworn, and her evidence corresponded in every particular with that of the former witness^[3].

Catherine Stretham, the elder, deposed that between three and four in the afternoon of the 22nd of January, a man and woman came to her house, pretending that they wanted to purchase some lace; that she showed them two or three parcels, to the quality and price of which they objected; and that in about three minutes after they had left the shop she missed a tin box, containing a quantity of lace, the value of which she estimated at fifty pounds.

The prisoner's counsel on this contended, that he could not be legally convicted, because the indictment positively expressed that *he stole* the lace *in* the house, whereas it had been proved in evidence that he was at a considerable distance outside when the fact was committed. They allowed that he might be liable to conviction as an accessory before the fact, or for receiving the property, knowing it to be stolen; but conceived that he could not be deemed guilty of a capital felony, unless the indictment declared (as the act directs) that he did *assist, command, or hire*.

Lord Raymond, who presided, in summing up the evidence, observed that the guilt of the prisoner was a point beyond all dispute; but that, as a similar case was not to be found in the law-books, it became his duty to act with great caution: he was not perfectly satisfied that the construction urged by the counsel for the crown could be put upon the indictment; and, as the life of a fellow-creature was at stake, he recommended the prisoner to the mercy of the jury, who brought in their verdict Not Guilty.

Wild was then arraigned on the second indictment, which alleged an offence committed during his confinement in Newgate. The indictment being opened by the counsel for the crown, the following clause in an act

passed in the fourth year of the reign of George the First was ordered to be read:—

“And whereas there are divers persons who have secret acquaintance with felons, and who make it their business to help persons to their stolen goods, and by that means gain money from them, which is divided between them and the felons, whereby they greatly encourage such offenders; be it therefore enacted by the authority aforesaid, that whenever any person taketh money or reward, directly or indirectly, under pretence or upon account of helping any person or persons to any stolen goods or chattels, every such person so taking money or reward as aforesaid (unless such person do apprehend or cause to be apprehended such felon who stole the same, and give evidence against him) shall be guilty of felony, according to the nature of the felony committed in stealing such goods, and in such and the same manner as if such offender had stolen such goods and chattels in the manner, and with such circumstances, as the same were stolen.”

Mrs. Stretham then, having repeated the evidence which she had before given, went on to state that on the evening of the robbery she went to the house of the prisoner in order to employ him in recovering the goods, but that not finding him at home, she advertised them, offering a reward of fifteen guineas for their return, and promising that no questions should be asked. The advertisement proved ineffectual, and she therefore again went to the house of the prisoner, and seeing him, by his desire she gave an account of the transaction and of the appearance of the thieves. He promised to inquire after her property, and desired her to call again in a few days. She did so, and at this second visit he informed her that he had gained some information respecting her goods, and expected more; and a man who was present said that he thought that Kelly, who had been tried for passing plated shillings, was the offender. The witness again went to the prisoner on the day on which he was apprehended, and said that she would give twenty-five guineas rather than not have her lace back; on which he told her not to be in too great a hurry, for that the people who had stolen the lace were out of town, and that he should soon cause a disagreement between them, by which he should secure the property on more easy terms. On the 10th of March, she received a message, that if she would go to the prisoner in Newgate, and take ten guineas with her, her lace would be returned to her. She went to him accordingly, and a porter being called, he gave her a letter, saying it was addressed to the person to whom he was directed to apply for

the lace, and the porter would accompany her to carry the box home. She declined going herself, and then the prisoner desired her to give the money to the porter, who would go for her and fetch the goods, but said that he could not go without it, for that the people who had the lace would not give it up without being paid. She gave the money and the man went away, but in a short time he returned with a box sealed up, but not the box which she had lost. On opening it, she found that it contained all her lace except one piece. She asked the prisoner what satisfaction he expected, when he answered "Not a farthing; I have no interested views in matters of this kind, but act from a principle of serving people under misfortune. I hope I shall soon be able to recover the other piece of lace, and to return you the ten guineas, and perhaps cause the thief to be apprehended. For the service I can render you I shall only expect your prayers. I have many enemies, and know not what will be the consequence of this imprisonment."

The prisoner's counsel argued, that as Murphy had deposed that Wild, Kelly, and she, were concerned in the felony, the former could by no means be considered as coming within the description of the act on which the indictment was founded; for the act in question was not meant to operate against the actual perpetrators of felony, but to subject such persons to punishment as held a correspondence with felons.

The counsel for the crown observed, that from the evidence adduced, no doubt could remain of the prisoner's coming under the meaning of the act, since it had been proved that he had engaged in combinations with felons, and had not discovered them.

The judge was of opinion that the case of the prisoner was clearly within the meaning of the act; for it was plain that he had maintained a secret correspondence with felons, and received money for restoring stolen goods to the owners, which money was divided between him and the felons, whom he did not prosecute. The jury pronounced him guilty, and he was sentenced to be executed at Tyburn, on Monday the 24th of May, 1725.

When he was under sentence of death, he frequently declared that he thought the services he had rendered the public in returning the stolen goods to the owners, and apprehending felons, was so great, as justly to entitle him to the royal mercy. He said that had he considered his case as being desperate, he should have taken timely measures for inducing some powerful friends at Wolverhampton to intercede in his favour; and that he

thought it not unreasonable to entertain hopes of obtaining a pardon through the interest of some of the dukes, earls, and other persons of high distinction, who had recovered their property through his means.

He was observed to be in an unsettled state of mind; and being asked whether he knew the cause thereof, he said he attributed his disorder to the many wounds he had received in apprehending felons; and particularly mentioned two fractures of his skull, and his throat being cut by Blueskin.

He declined attending divine service in the chapel, excusing himself on account of his infirmities, and saying that there were many people highly exasperated against him, and therefore he could not expect but that his devotions would be interrupted by their insulting behaviour. He said he had fasted four days, which had greatly increased his weakness. He asked the Ordinary the meaning of the words "Cursed is every one that hangeth on a tree;" and what was the state of the soul immediately after its departure from the body? He was advised to direct his attention to matters of more importance, and sincerely to repent of the crimes he had committed.

By his desire the Ordinary administered the sacrament to him; and during the ceremony he appeared to be somewhat attentive and devout. The evening preceding the day on which he suffered he inquired of the Ordinary whether suicide could be deemed a crime; and after some conversation, he pretended to be convinced that self-murder was a most impious offence against the Almighty; but about two in the morning, he endeavoured to put an end to his life by drinking laudanum. On account of the largeness of the dose, and his having fasted for a considerable time, no other effect was produced than drowsiness, or a kind of stupefaction. The situation of Wild being observed by two of his fellow-prisoners, they advised him to rouse his spirits, that he might be able to attend to the devotional exercises; and taking him by the arms, they obliged him to walk, which he could not have done alone, being much afflicted with the gout. The exercise revived him a little; but he presently became exceedingly pale; then grew very faint; a profuse sweating ensued; and soon afterwards his stomach discharged the greatest part of the laudanum. Though he was somewhat recovered, he was nearly in a state of insensibility; and in this situation he was put into the cart and conveyed to Tyburn. In his way to the place of execution the populace treated him with remarkable severity, incessantly pelting him with stones and dirt.

Upon his arrival at Tyburn he appeared to be much recovered from the effects of the poison; and the executioner informed him that a reasonable time would be allowed him for preparing himself for the important change that he must soon experience. He continued sitting some time in the cart; but the populace were at length so enraged at the indulgence shown him, that they outrageously called to the executioner to perform the duties of his office, violently threatening him with instant death if he presumed any longer to delay. He judged it prudent to comply with their demands; and when he began to prepare for the execution, the popular clamour ceased.

About two o'clock on the following morning the remains of Wild were interred in St. Pancras churchyard; but a few nights afterwards the body was taken up (for the use of the surgeons, as it was supposed). At midnight a hearse and six was waiting at the end of Fig Lane, where the coffin was found the next day.

Wild had by the woman he married at Wolverhampton a son about nineteen years old, who came to London a short time before the execution of his father. He was a youth of so violent and ungovernable a disposition, that it was judged right to confine him during the time of the execution, lest he should excite the people to some tumult. He subsequently went to one of the West India colonies.

The adventures of Wild are of a nature to attract great attention, from the multiplicity and variety of the offences of which he was guilty. It has been hinted, that his career of crime having been suffered to continue so long was in some degree attributable to the services which he performed for the government, in arresting and gaining information against the disaffected, during the troubles which characterised the early part of the reign of George I.; but whatever may have been the cause of his being so long unmolested, whatever supineness on the part of the authorities, whether wilful or not, may have procured for him so continued a reign of uninterrupted wickedness, it cannot be doubted that the fact of his long safety tended so much to the demoralisation of society, as that many years passed before it would assume that tone, which the exertions of a felon like Wild were so calculated to destroy. The existing generation cannot but congratulate itself upon the excellence of the improvements which have been made in our laws, and the admirable effect which they have produced; as well as upon the exceedingly active vigilance of the existing police, by whom crime, instead of its being supported and fostered, is checked and prevented.

CATHERINE HAYES.

BURNT ALIVE FOR THE MURDER OF HER HUSBAND.

THE case of this atrocious criminal only finds a parallel in that of the monster of modern crime—Greenacre.

Catherine Hayes was the daughter of a poor man named Hall, who lived at Birmingham, and having remained with her parents until she was fifteen years of age, a dispute then arose, in consequence of which she set off for London. On her way she met with some officers, who, remarking that her person was engaging, persuaded her to accompany them to their quarters at Great Ombersley, in Worcestershire. Having remained with them some time, she strolled on into Warwickshire, and was there hired into the house of Mr. Hayes, a respectable farmer. An intimacy soon sprang up between her and the son of her master, which ended in a private marriage taking place at Worcester; and an attempt, on the part of the officers, to entrap young Hayes into enlisting, rendered it necessary to disclose the whole affair to the father. He felt that it would be useless now to oppose his son, in consequence of what had taken place, and he in consequence set him up in business as a carpenter. Mrs. Hayes, however, was of a restless disposition, and persuaded him to enlist, which he did; and his regiment being ordered to the Isle of Wight, his wife followed him. His father bought him off at an expense of 60*l.*, and now gave him property to the amount of about 26*l.* per annum; but after the marriage had been solemnised about six years, Mrs. Hayes prevailed on her husband to come to London. On their arrival in the metropolis, Mr. Hayes took a house, part of which he let in lodgings, and opened a shop in the chandlery and coal trade, in which he was as successful as he could have wished, but exclusive of his profit by shop keeping, he acquired a great deal of money by lending small sums on pledges, for at this time the trade of pawnbroking was followed by any one at pleasure, and was subjected to no regulation.

Mr. Hayes soon found that the disposition of his wife was not of such a nature as to promise him much peace. The chief pleasure of her life consisted in creating and encouraging quarrels among her neighbours. Sometimes she would speak of her husband, to his acquaintance, in terms of

great tenderness and respect; and at other times she would represent him to her female associates as a compound of everything that was contemptible in human nature. On a particular occasion, she told a woman that she should think it no more sin to murder him than to kill a dog. At length her husband thought it prudent to remove to Tottenham-court-road, where he carried on his former business, but he then again removed to Tyburn-road (now Oxford-street). He soon amassed what he considered a sufficient sum to enable him to retire from business, and he accordingly took lodgings near the same spot. A supposed son of Mrs. Hayes, by her former connexion, who went by the name of Billings, lived in the same house, and he and Mrs. Hayes were in the habit of feasting themselves at the expense of the husband of the latter. During his temporary absence from town, her proceedings were so extravagant, that the neighbours deemed it right to make her husband aware of the fact; and on his return he remonstrated with her on the subject, when a quarrel took place, which ended in a fight. It is supposed that at this time the design of murdering Mr. Hayes was formed by his wife, and it was not long before she obtained a seconder in her horrid project in the person of her reputed son. At this time a person named Thomas Wood came to town from Worcestershire, and seeking out Hayes, persuaded him to give him a lodging, as he was afraid of being impressed. After he had been in town only a few days, Mrs. Hayes informed him of the plot which existed, and endeavoured to persuade him to join her and her son. He was at first shocked at the notion of murdering his friend and benefactor, and rejected the proposals; but at length Mrs. Hayes, alleging that her husband was an atheist, and had already been guilty of murdering two of his own children, one of whom he had buried under an apple-tree, and the other under a pear-tree, and besides urging that 1500*l.*, which would fall to her at his death, should be placed at the disposal of her accomplices, he consented. Shortly after this, Wood went out of town for a few days, but on his return he found Mrs. Hayes, and her son, and husband, drinking together, and apparently in good humour. He joined them at the desire of Hayes and the latter boasting that he was not drunk, although they had had a guinea's worth of liquor among them, Billings proposed that he should try whether he could drink half a dozen bottles of mountain wine, without getting tipsy, and promised that if he did so, he would pay for the wine. The proposal was agreed to, and the three murderers went off to procure the liquor. On their way, it was agreed among them that this was the proper

opportunity to carry their design into execution, and having procured the wine, for which Mrs. Hayes paid half a guinea, Mr. Hayes began to drink it, while his intended assassins regaled themselves with beer. When he had taken a considerable quantity of the wine, he danced about the room like a man distracted, and at length finished the whole quantity: but, not being yet in a state of absolute stupefaction, his wife sent for another bottle, which he also drank, and then fell senseless on the floor. Having lain some time in this condition, he got, with much difficulty, into another room, and threw himself on a bed. When he was asleep, his wife told her associates that this was the time to execute their plan, as there was no fear of any resistance on his part, and accordingly Billings went into the room with a hatchet, with which he struck Hayes so violently that he fractured his skull. At this time Hayes's feet hung off the bed; and the torture arising from the blow made him stamp repeatedly on the floor, which, being heard by Wood, he also went into the room, and, taking the hatchet out of Billings' hand, gave the poor man two more blows, which effectually despatched him. A woman, named Springate, who lodged in the room over that where the murder was committed, hearing the noise occasioned by Hayes's stamping, imagined that the parties might have quarrelled in consequence of their intoxication; and going down stairs, she told Mrs. Hayes that the noise had awakened her husband, her child, and herself. Catherine, however, had a ready answer to this: she said some company had visited them, and were grown merry, but they were on the point of taking their leave; and Mrs. Springate returned to her room well satisfied. The murderers now consulted on the best manner of disposing of the body, so as most effectually to prevent detection. Mrs. Hayes proposed to cut off the head, because, if the body was found whole, it would be more likely to be known, and the villains agreeing to this proposition, she fetched a pail, lighted a candle, and all of them went into the room. The men then drew the body partly off the bed, and Billings supported the head, while Wood, with his pocket-knife, cut it off, and the infamous woman held the pail to receive it, being as careful as possible that the floor might not be stained with the blood. This being done, they emptied the blood out of the pail into a sink by the window, and poured several pails of water after it. When the head was cut off, the woman recommended the boiling it till the flesh should part from the bones; but the other parties thought this operation would take up too much time, and therefore advised the throwing it into the Thames, in expectation that it would be carried off

by the tide, and would sink. This agreed to, the head was put into the pail, and Billings took it under his great-coat, being accompanied by Wood; but, making a noise in going down stairs, Mrs. Springate called, and asked what was the matter? To this Mrs. Hayes answered that her husband was going a journey; and, with incredible dissimulation, affected to take leave of him, pretending great concern that he was under a necessity of going at so late an hour, and Wood and Billings passed out of the house unnoticed. They first went to Whitehall, where they intended to have thrown in the head; but the gates being shut, they went to a wharf near the Horse Ferry, Westminster. Billings putting down the pail, Wood threw the head into the dock, expecting it would have been carried away by the stream; but at this time the tide was ebbing, and a lighterman, who was then in his vessel, heard something fall into the dock, but it was too dark for him to distinguish any object. The head being thus disposed of, the murderers returned home, and were admitted by Mrs. Hayes, without the knowledge of the other lodgers. The body next became the object of their attention, and Mrs. Hayes proposed that it should be packed up in a box and buried. The plan was determined upon immediately, and a box was purchased, but being found too small, the body was dismembered so as to admit of its being inclosed in it, and was left until night should favour its being carried off. The inconvenience of carrying a box was, however, immediately discovered, and the pieces of the mangled body were therefore taken out, and, being wrapped up in a blanket, were carried by Billings and Wood to a field in Marylebone, and there thrown into a pond.

In the meantime the head had been discovered, and the circumstance of a murder having been committed being undoubted, every means was taken to secure the discovery of its perpetrators. The magistrates, with this view, directed that the head should be washed clean, and the hair combed; after which it was put on a pole in the churchyard of St. Margaret, Westminster, that an opportunity might be afforded for its being viewed by the public^[4]. Thousands went to witness this extraordinary spectacle; and there were not wanting those among the crowd, who expressed their belief among themselves, that the head belonged to Hayes. Their suspicions were mentioned by some of them to Billings, but he ridiculed the notion, and declared that Hayes was well, and was gone out of town only for a few days. When the head had been exhibited during four days, it was deemed expedient that measures should be taken to preserve it; and Mr. Westbrook,

a chemist, in consequence, received directions to put it into spirits. Mrs. Hayes soon afterwards changed her lodgings, and took the woman Springate with her, paying the rent which she owed, Wood and Billings also accompanying her; and her chief occupation now was that of collecting the debts due to her husband; by means of which she continued to supply her diabolical assistants with money and clothes. Amongst the incredible numbers of people who resorted to see the head was a poor woman from Kingsland, whose husband had been absent from the very time that the murder was perpetrated. After a minute survey of the head, she believed it to be that of her husband, though she could not be absolutely positive, but her suspicions were so strong, that strict search was made after the body, on a presumption that the clothes might help her to ascertain it. Meanwhile, Mr. Hayes not being visible for a considerable time, his friends could not help making inquiry after him; and a Mr. Ashby, in particular, who had been on the most friendly terms with him, called on Mrs. Hayes, and demanded what had become of her husband? Catherine pretended to account for his absence by communicating the following intelligence, as a matter that must be kept profoundly secret:—"Some time ago," said she, "he happened to have a dispute with a man, and from words they came to blows, so that Mr. Hayes killed him. The wife of the deceased made up the affair, on Mr. Hayes's promising to pay her a certain annual allowance; but he not being able to make it good, she threatened to inform against him, on which he has absconded." This story was, however, by no means satisfactory to Mr. Ashby, who asked her if the head that had been exposed on the pole was that of the man who had been killed by her husband? She readily answered in the negative, adding that the party had been buried entire; and that the widow had her husband's bond for the payment of fifteen pounds a year. Ashby inquired to what part of the world Mr. Hayes was gone; and she said to Portugal, in company with some gentlemen; but she had yet received no letter from him. The whole of this detail seeming highly improbable to Mr. Ashby, he went to Mr. Longmore, a gentleman nearly related to Hayes; and it was agreed between them that Mr. Longmore should call on Catherine, and have some conversation with her upon the same subject. Her story to this gentleman differed in its details from that which she had related to Mr. Ashby; and Mr. Eaton, also a friend of Mr. Hayes, being consulted, they determined first to examine the head, and then, if their suspicions were confirmed, to communicate their belief to the magistrates. Having

accordingly minutely examined the head, and come to the conclusion that it must be that of their friend Hayes, they proceeded to Mr. Lambert, a magistrate, who immediately issued warrants for the apprehension of Mrs. Hayes and Mrs. Springate, as well as of Wood and Billings, and proceeded to execute them personally. Going accordingly to the house in which they all lived, they informed the landlord of their business, and went immediately to the door of Mrs. Hayes' room. On the magistrate's rapping, the woman asked, "Who is there?" and he commanded her to open the door directly, or it should be broken open. To this she replied, that she would open it as soon as she had put on her clothes; and she did so in little more than a minute, when the justice ordered the parties present to take her into custody. At this time Billings was sitting on the side of the bed, bare-legged. Some of the parties remaining below, to secure the prisoners, Mr. Longmore went up stairs with the justice, and took Mrs. Springate into custody; and they were all conducted together to the house of Mr. Lambert. This magistrate having examined the prisoners separately for a considerable time, and all of them positively persisting in their ignorance of anything respecting the murder, they were severally committed for re-examination on the following day, before Mr. Lambert and other magistrates. Mrs. Springate was sent to the Gate-house, Billings to New Prison, and Mrs. Hayes to Tothill-fields Bridewell. When the peace-officers, attended by Longmore, went the next day to fetch up Catherine to her examination, she earnestly desired to see the head; and it being thought prudent to grant her request, she was carried to the surgeon's; and no sooner was the head shown to her than she exclaimed, "Oh, it is my dear husband's head! It is my dear husband's head!" She now took the glass in her arms, and shed many tears while she embraced it. Mr. Westbrook told her that he would take the head out of the glass, that she might have a more perfect view of it, and be certain that it was the same; and the surgeon doing as he had said, she seemed to be greatly affected, and having kissed it several times, she begged to be indulged with a lock of the hair; and on Mr. Westbrook expressing his apprehension that she had had too much of his *blood* already, she fell into a fit. On her recovery she was conducted to Mr. Lambert's, to take her examination with the other parties.

It is somewhat remarkable that it was on the morning of this day that the body was discovered. As a gentleman and his servant were crossing the fields at Marylebone, they observed something lying in a ditch, and, on

going nearer to it, they perceived that it was some parts of a human body. Assistance being procured, the whole of the body was found except the head; and information of the circumstance was conveyed to Mr. Lambert at the very moment at which he was examining the prisoners. The suspicions which already existed were strengthened by this circumstance, and Mrs. Hayes was committed to Newgate for trial; the committal of Billings and Mrs. Springate, however, being deferred until the apprehension of Wood.

The latter soon after coming into town and riding up to Mrs. Hayes' lodgings, was directed to go to the house of Mr. Longmore, where he was told he would find Mrs. Hayes; but the brother of Longmore standing at the door, he immediately seized him, and caused him to be carried before Mr. Lambert. He underwent an examination; but, refusing to make any confession, he was sent to Tothill-fields' Bridewell. On his arrival at the prison he was informed that the body had been found: and, not doubting but that the whole affair would come to light, he begged that he might be carried back to the justice's house. This being made known to Mr. Lambert, the prisoner was brought up, and he then acknowledged the particulars of the murder, and signed his confession. This wretched man owned that since the perpetration of the crime he had been terrified at the sight of every one he met, that he had not experienced a moment's peace, and that his mind had been distracted with the most violent agitation.

His commitment to Newgate was immediately made out, and he was conducted to that prison under the escort of eight soldiers, with fixed bayonets, whose whole efforts were necessary to protect him from the violence of the mob. A Mr. Mercer visiting Mrs. Hayes in prison, she begged him to go to Billings and urge him to confess the whole truth, as no advantage, she said, could be expected to arise from a denial of that which was too clearly proved to admit of denial; and he being carried before Justice Lambert again, gave an account precisely concurring with that of Wood. Mrs. Springate, whose innocence was now distinctly proved, was set at liberty.

At the trial Wood and Billings confessed themselves guilty of the crime alleged against them; but Mrs. Hayes, flattering herself that as she had said nothing, she had a chance of escape, put herself upon her trial; but the jury found her guilty. The prisoners being afterwards brought to the bar to receive sentence, Mrs. Hayes entreated that she might not be burned, according to the then law of petty treason, alleging that she was not guilty,

as she did not strike the fatal blow; but she was informed by the court that the sentence awarded by the law could not be dispensed with.

After conviction the behaviour of Wood was uncommonly penitent and devout; but while in the condemned hold he was seized with a violent fever, and, being attended by a clergyman to assist him in his devotions, he said he was ready to suffer death, under every mark of ignominy, as some atonement for the atrocious crime he had committed; but he died in prison, and thus defeated the final execution of the law. Billings behaved with apparent sincerity, acknowledging the justice of his sentence, and saying that no punishment could be commensurate with the crime of which he had been guilty. The behaviour of Mrs. Hayes was somewhat similar to her former conduct. Having an intention to destroy herself, she procured a phial of strong poison, which was casually tasted by a woman who was confined with her, and her design thereby discovered and frustrated. On the day of her death she received the sacrament, and was drawn on a sledge to the place of execution. Billings was executed in the usual manner, and hung in chains, not far from the pond in which Mr. Hayes's body was found, in Marylebone Fields; but when the wretched woman had finished her devotions, in pursuance of her sentence an iron chain put round her body, with which she was fixed to a stake near the gallows. On those occasions, when women were burned for petty treason, it was customary to strangle them, by means of a rope passed round the neck, and pulled by the executioner, so that they were dead before the flames reached the body. But this woman was literally burned alive; for the executioner letting go the rope sooner than usual, in consequence of the flames reaching his hands, the fire burned fiercely round her, and the spectators beheld her pushing away the faggots, while she rent the air with her cries and lamentations. Other faggots were instantly thrown on her; but she survived amidst the flames for a considerable time, and her body was not perfectly reduced to ashes in less than three hours^[5]. These malefactors suffered at Tyburn, May 9, 1726.

MARGARET DIXON.

EXECUTED FOR MURDER.

THE case of this criminal is more remarkable for her resuscitation after her execution, than for the circumstances attending the offence of which she was convicted.

The culprit was the daughter of poor parents living at Musselburgh, about five miles from Edinburgh, a place almost entirely inhabited by fishermen and persons employed in the manufacture of salt. When she reached the age of womanhood, she was married, but her husband, who was a fisherman, being impressed, he was carried off to sea. Deprived of her lawful protector, she formed an illicit connexion with another man; and it was for the murder of the offspring of this acquaintance that she was eventually sentenced to undergo the severest penalty of the law. It appears that she was remarked to be pregnant, and was accused by her neighbours of the fact, but she steadily denied her guilt. At length the body of a newly-born infant was found near the place of her residence, and as there was no way of accounting for its existence, except that suggested by the pregnancy of Mrs. Dixon, she was taken into custody, and being tried was found guilty and ordered for execution.

After her condemnation she behaved in the most penitent manner, confessed that she had been guilty of many sins, and even owned that she had departed from the line of duty to her husband; but she constantly and steadily denied that she had murdered her child, or had even formed an idea of so horrid a crime. She owned that the fear of being exposed to the ridicule of her neighbours had tempted her to deny that she was pregnant; and she said that, being suddenly seized with the pains of child-birth, she was unable to procure the assistance of her neighbours; and that a state of insensibility ensued, so that it was impossible she should know what became of the infant.

At the place of execution she persisted in her protestations of innocence, and Jack Ketch having performed his office, the body hung the usual time, and was then cut down and delivered to the friends of the deceased. By

them it was put into a coffin, and sent in a cart to be buried at her native place; but the weather being sultry, the persons who had it in their care stopped to drink at a village called Peppermill, about two miles from Edinburgh. While they were refreshing themselves, one of them perceived the lid of the coffin move, and uncovering it, the woman sat upright, to the infinite alarm of the spectators. The mystery being soon explained; a fellow, who was present, had sufficient sagacity to bleed her; and in the course of the ensuing day she was sufficiently recovered to be able to walk home to her old residence at Musselburgh.

By the Scottish law, not only was she released by the execution from the consequences of the crime of which she had been found guilty, but from the bonds of matrimony also; but her husband having by this time returned from sea, he was publicly re-married to his old wife, within a few days after she had been hanged. A suit was subsequently brought by the Lord Advocate against the sheriff for omitting to perform his office; but as it turned out that the escape of the convict was not owing to any neglect on his part, but to some peculiar formation of the neck of the woman, the prosecution was abandoned.

The date of this transaction was the month of November, 1728; and the subject of this most remarkable escape was living in the year 1753, when it is due to her to state that she still persisted in her declarations of innocence.

JOHN GOW AND OTHERS.

EXECUTED FOR PIRACY.

THE principal in this list of offenders was named John Gow, and was a native of one of the Orkney Islands. Having chosen a seafaring life, he was appointed second mate of a vessel going to Santa Cruz. Some complaints having been made before the vessel quitted port, of the insufficiency of the provisions given to the men, the captain took little notice of them; and it was not until he had quitted the shore some days, that he learned, too late, the mistake of which he had been guilty. The feelings of discontent which had been already exhibited were soon fanned into a flame, and at length it became necessary for the captain, chief mate, and surgeon to arm themselves. Gow, whose duties as second mate also included those of gunner, was ordered to clean the small-arms necessary for this purpose; but being a party to a conspiracy, which existed among his shipmates to seize the vessel, he communicated the order to his fellows, and it was determined to put their project into execution forthwith. Between nine and ten o'clock at night, the signal was given, and the conspirators going to the cabins of the chief mate, surgeon, and supercargo, cut their throats while they were asleep. The captain ran on deck to ascertain the cause of a noise which he heard, and was immediately seized, and, although he made a desperate resistance, was despatched in as short a time as his unfortunate brother officers had been. The bodies of the murdered men were then thrown overboard, and Gow was selected as the new captain. Assembling his associates on deck, their determination to commence pirates was soon formed; and some of the seamen who had hesitated to become parties to the diabolical murders of their officers, were forced to join the crew in their piratical proceedings on pain of death. A fellow named Williams, of a most brutal disposition, was chosen as lieutenant; and the name of the vessel, which had been the *George Galley*, was changed to the more bloody one of *Revenge*. Having mounted several guns, they steered towards Spain and Portugal, in expectation of making a capture of wine, in a supply of which they were greatly deficient. They soon made prize of an English vessel

laden with fish, bound from Newfoundland to Cadiz; but having no use for the cargo, they took out the captain and four men, and sunk the ship.

One of the seamen whom they took from the captured vessel was named James Belvin, a man admirably calculated for their purpose, as he was by nature cruel, and by practice hardened in that cruelty; and being willing to turn pirate, he was thought a valuable acquisition to the crew, as several of the others appeared to act from motives of fear rather than of inclination.

The next vessel taken by the pirates was a Scotch ship bound to Italy with pickled herrings; but this cargo, like the former, being of no use to them, they sunk the vessel, having first taken out the men, arms, ammunition, and stores.

After having cruised about for a considerable time without any further successes, their supply of water ran so short, that they felt it absolutely necessary to procure a fresh stock. They sailed, therefore, to a Portuguese settlement; and, on their arrival, they sent some presents to the governor, intimating their wants. The governor treating the messengers with civility, proceeded on board the vessel, and he was there received by the pirates with every mark of respect and attention. The boat, which had been sent for supplies, however, not returning, the captain began to suspect that his men were not safe, and threatened to murder his visitors unless his demands were complied with. The governor was terrified at this threat; but soon procured his liberty by assenting to the wishes of his entertainer. They afterwards made several prizes, in one of which they sent away the Scotch captain and his crew; but shortly afterwards meeting with a French vessel of superior power, the captain refused to give chase to or to engage it. Williams, the lieutenant, upbraided him for what he termed his cowardice, and a violent quarrel taking place, the lieutenant endeavoured to shoot his captain. The crew agreeing in opinion with the latter as to the impropriety of fighting against a force so superior to their own, Williams was soon secured, and placed among the other prisoners. The French vessel was permitted to continue on her way; and soon afterwards meeting with a ship bound for Bristol, they robbed her of her stores and ammunition, and putting their prisoners and Williams on board of her, the latter of whom they directed to be given up to the British authorities, they allowed her to proceed on her voyage.

As soon as she had left them, Gow and his crew began to reflect on their situation. They were apprehensive that as soon as intelligence of their proceedings reached Portugal, some ships would be sent in pursuit of them; and they called a kind of council, in which every one gave his opinion.

Gow proposed to sail to the Isles of Orkney, on the north of Scotland, where he said, they might dispose of their effects, and retire and live on the produce; and in order to induce his people to comply with this proposal, he represented that they were much in want of water, and provisions of every kind; that their danger would be great if they continued longer on the high seas; and, above all, that it was highly necessary for them to repair their ship, which they could not do with any degree of safety in a southern port.

Convinced by these arguments, they proceeded northwards, and soon reached the Orkney Islands; and entering one of the bays there they proceeded, as well as they were able, to refit the ship. This step was, however, fatal to their enterprise; for one of their companions, who had unwillingly joined in the piratical proceedings of the crew, escaped, and gave information of all that had occurred. Ten others followed his example, and seized the long-boat; but reaching Edinburgh, they were confined on suspicion of being pirates.

Notwithstanding these alarming circumstances, Gow was so careless of his own safety, that he did not put immediately to sea, but resolved to plunder the houses of the gentlemen on the coast, to furnish himself with fresh provisions.

In pursuance of this resolution, he sent his boatswain and ten armed men to the house of Mr. Honeyman, high-sheriff of the county; and the master being absent, the servants opened the door without suspicion. Nine of the gang went into the house to search for treasure, while the tenth was left to guard the door. Mrs. Honeyman, running to the door, saw the man who stood guard there, whom she asked what could be the meaning of the outrage; to which he replied, that they were pirates, and had come thither only to ransack the house. Recollecting that she had a considerable quantity of gold in a bag, she returned and put it in her lap, and ran by the man at the door, who had no idea but that the wish to preserve her life occasioned her haste. The boatswain missing this part of the expected treasure, declared that he would destroy the family writings; but this being overheard by Miss Honeyman, she threw the writings out of the window, and, jumping out

after them, escaped unhurt and carried them off. In the interim the pirates seized the linen, plate, and other valuable articles, and then walked in triumph to their boat, compelling one of the servants to play before them on the bagpipes. They afterwards carried off two women whom they met; and detaining them on board during two days, so ill-treated them, that one expired soon after they had put them on shore.

This atrocious offence was no sooner committed than they sailed to Calf-Sound, with an intention of robbing the house of Mr. Fea, who had been an old school-fellow with Gow. This house was the rather pitched upon, as Gow supposed that Mr. Fea could not have yet heard of the transactions at Mr. Honeyman's; but in this he was mistaken, although Fea could not oppose him, on account of the indisposition of his wife.

Mr. Fea's house was situated near the sea-shore; he had only six servants at home when the pirates appeared off the coast; and these were by no means equal to sustain a contest. It may not be improper to remark, that the tide runs so high among these islands, and beats with such force against the rocks, that the navigation is frequently attended with great danger. Gow, who had not boats to assist him in an emergency, and was unskilled in the navigation of these seas, made a blunder in turning into the bay of Calf-Sound; for, standing too near the point of a small island called the Calf, the vessel was in the utmost danger of being run on shore. Having cast his anchor too near the shore, so that the wind could not bring him off, he sent a boat with a letter to Mr. Fea, requesting that he would lend him another boat, to assist him in heaving off the ship, by carrying out an anchor; and assuring him that he would not do the least injury to any individual.

As Gow's messenger did not see Mr. Fea's boat, the latter gave him an evasive answer; and on the approach of night ordered his servants to sink his own boat, and hide the sails and rigging. While they were obeying this order five of the pirates came on shore in the boat, and proceeded, doubly armed, towards the house. Mr. Fea advanced towards them with an assurance of friendship, and begged they would not enter the house, for that his wife was exceedingly ill; and the sight of them might probably deprive her of life. The boatswain replied that they had no design to terrify Mrs. Fea, or any other person; but that the most rigorous treatment must be expected if the use of the boat was denied them. Mr. Fea represented how dangerous it would be for him to assist them, on account of the reports circulated to their discredit; but he offered to entertain them at an adjacent

ale-house; and they accepted the invitation, as they observed that he had no company. In the mean while, Mr. Fea ordered his servants to call him hastily out of the company; and these orders being exactly complied with, when he had left the pirates, he directed six men, well armed, to station themselves behind a hedge; and that if they observed him to come alone with the boatswain, instantly to seize his companion; but if he came with all the five desperadoes, he would walk forward, so as to give them an opportunity of firing at them without their wounding him.

He then returned to the company, whom he invited to his house, on the promise of their behaving peaceably, and said he would make them heartily welcome. They expressed a readiness to attend him, in the hope of getting the boat; but he told them he would rather have the boatswain's company first, and would afterwards send for his companions.

This being agreed to, the boatswain set forward with two brace of pistols, and walking with Mr. Fea till they came to the hedge where the men were concealed, that gentleman seized him by the collar, while the others took him into custody before he had time to make any defence. The boatswain called aloud for his men; but Mr. Fea forcing a handkerchief into his mouth, bound him hand and foot, and then left one of his own people to guard him, while he and the rest went back to the public-house.

There being two doors to the house, they went some to the one, and some to the other; and rushing in at once made prisoners of the other four men before they had time to have recourse to their arms for defence. The pirates being thus in custody, were sent to an adjacent village, and separately confined; and in the interim Mr. Fea sent messengers round the island to acquaint the inhabitants with what had been done; to desire them to haul their boats on the beach, that the pirates should not swim to and steal them; and to request that no person would venture to row within reach of the pirates' guns.

The vessel now got into a position of still greater difficulty, and in order to get it out to sea some assistance was absolutely requisite. Gow's greatest efforts were therefore made to induce Mr. Fea to render him some aid; and the latter, by holding out promises of assistance, eventually succeeded in getting the whole of the piratical crew on shore, and in securing them. They were subsequently conveyed to London, where, on their being examined, five of them were admitted as witnesses, while the rest were committed for

trial, along with their old associate Williams, who had been conveyed to England by the master of the Bristol ship. Gow, Williams, and six others, were convicted and received sentence of death; while the remainder, who appeared to have been the victims, rather than the companions of the others, escaped.

The behaviour of Gow from his first commitment was reserved and morose. He considered himself as an assured victim to the justice of the laws, nor entertained any hope of being admitted an evidence, as Mr. Fea had hinted to him that he might be. When brought to trial he refused to plead, in consequence of which he was sentenced to be pressed to death in the usual manner. When the officer, however, was about to inflict this punishment, he begged to be taken back to the bar, and having there pleaded Not Guilty, he was convicted on the same evidence as his accomplices.

Gow, Williams, and six others, were hanged at Execution Dock, on the 11th of August, 1729.

COLONEL FRANCIS CHARTERIS.

CONVICTED OF RAPE.

THE name of Charteris will long be remembered with loathing and detestation, as having belonged to a villain, whose profligacy, at the time at which he lived, rendered him an object of universal disgust and hatred.

The execrable subject of this narrative was born at Amisfield, in Scotland, where he was heir to an estate which his ancestors had possessed above four hundred years. He was related to many of the first families among the nobility of the north; and having received a liberal education, he selected the profession of arms, as that of which he desired to become a member. He served first under the Duke of Marlborough, when he successively held the ranks of ensign in a foot regiment, and cornet of dragoons; but being a most expert gamester, and of a disposition uncommonly avaricious, he made his knowledge of gambling subservient to his love of money; and while the army was in winter-quarters, he stripped many of his brother-officers of all their property by his skill at cards and dice. His villany, however, did not end there, for when he had defrauded his companions of all they possessed, he would lend them their own money back, at a usurious rate of interest, taking an assignment of their commissions as security for the payment of the debts.

John Duke of Argyle and the Earl of Stair were at this time young men in the army; and being determined that the inconsiderate officers should not be thus ruined by the artifices of Charteris, they applied to the Earl of Orkney, who was also in the army then quartered at Brussels, representing the destruction that must ensue to young men serving in the army, if Charteris were permitted to continue the line, of conduct which he had adopted unchecked.

The Earl of Orkney, anxious for the credit of the army in general, and his countrymen in particular, represented the state of the case to the Duke of Marlborough, who gave orders that Charteris should be put under arrest and tried by court-martial. The court was composed of an equal number of English and Scotch officers, in order that the accused might have no reason

to complain of his trial; and after a full hearing of all the circumstances against him, he was sentenced to return the money which he had obtained by his guilty artifices, to be deprived of his commission, and his sword having been broken, to be drummed out of the regiment.

This sentence having been carried out to its fullest extent, the degraded officer returned to Scotland; but there, by means of the most servile submission and the use of the money which he possessed, he procured for himself a new commission in a regiment of horse, in which he was eventually advanced to the rank of colonel.

The lesson which he had received, one would have thought would have been sufficient to deter him from a renewal of those artifices in the employment of which he had been detected; but every day served to furnish him with new victims among the young men of rank and fashion, to whom, by his standing in the army, he contrived to procure introductions. Nor was his character infamous only on account of the dishonesty of his proceedings, but he soon obtained an unenviable notoriety on account of the unprincipled boldness with which he conducted his libidinous amours. Agents were employed, whose duty it was to procure new subjects for the horrid desires of their master, and the most extraordinary and unhallowed devices were employed by them to secure the object which they had in view. Public disgust was excited in the highest degree by the open daring with which these proceedings were carried on, and at length the name and character of this abominable libertine became so notorious as to render him the object of universal detestation and disgust.

Among other unfortunate young women who fell into the hands of this villain, was one whose name was Anne Bond. She was a girl of respectable connexions, and being in search of employment as a servant, her bad fortune threw her into the way of the agents of Charteris. She was possessed of considerable personal attractions, and she was employed under a representation that her master was a Colonel Harvey. A few days, however, served to inform her of the name of the person into whose hands she had fallen. Her master professed to behave towards her with great kindness and consideration; but within a week after she had entered his employment, he made to her a proposition of a most disgusting nature. She repelled the foul temptation, and her fears being alarmed by the circumstance, she was confirmed in a determination, at which she had nearly arrived, to quit the service in which she was employed, by hearing on the following day that

her master was no other than the Colonel Charteris of whose character she, in common with the world, had heard so much. She therefore immediately acquainted the housekeeper with her intention to leave the house; but the colonel having been informed of the circumstance, he behaved towards her with great violence, and threatened that if she dared to run away, he would shoot her. He then ordered the other servants to take care that she did not escape, and on the following day proceeded to the accomplishment of the design by force, in which he had failed to succeed by stratagem. He ordered her to be sent into the parlour by the clerk of the kitchen, and then desiring her to stir the fire, he threw her down, and having stopped her mouth with his nightcap, he completed an offence which subjected him to capital punishment. The girl, on recovering her position, threatened to prosecute him, and then he beat her most unmercifully with a horsewhip, and calling the clerk of the kitchen, bid him turn her out of doors, alleging that she had robbed him of thirty guineas. His orders having been directly obeyed, the girl proceeded forthwith to prefer an indictment for the assault which had been committed; but the Grand Jury finding that the colonel had, in reality, been guilty of a capital offence, they at once returned a true bill on that charge.

Colonel Charteris was immediately taken into custody for the crime alleged against him and lodged in Newgate, where he was loaded with heavy fetters; but having, through the instrumentality of his friends, procured a writ of *habeas corpus*, he was admitted to bail.

The trial took place at the Old Bailey on the 25th of February, 1730, when every effort was used to traduce the character of the prosecutrix, with a view to destroy the force of her evidence; but, happily, her character was so fair, and there was so little reason to think that she had any sinister view in the prosecution, that every artifice failed, and, after a long trial, in which the facts were proved to the satisfaction of the jury, a verdict of guilty was returned, and the Colonel received sentence to be executed in the customary form. The same interest which had before been employed on behalf of this villain was now again made use of; and upon the settlement of a handsome annuity upon the prosecutrix, he received a pardon from the King. He soon found, however, that London was no longer a place in which he could appear, unless to be pointed at with the finger of scorn; and he retired to Edinburgh, where, after a lapse of two years, he died in a miserable manner, the victim of his own dissolute and hateful passions.

His vices were so notorious, that it was not without great difficulty that his body was committed to the grave. The place appointed for the reception of his remains was the family vault in the church of the Greyfriars in Edinburgh; but the mob having assembled, they made a violent effort to obtain possession of his coffin, with a view to tear it and its contents to pieces, and committed a variety of other irregularities, in honest contempt of the detestable character which he bore. At the time of his death, he was possessed of very large estates in England and Scotland, the produce of many usurious transactions, to which he was a party during the latter portion of his life. He was married to the daughter of Sir Alexander Swinton, of Scotland, by whom he had one daughter, who was afterwards united to the Earl of Wemyss.

Soon after Charteris was convicted, a fine mezzotinto print of him was published, representing him standing at the bar of the Old Bailey with his thumbs tied; at the bottom of which was the following inscription:

Blood!—— must a colonel, with a lord's estate,
Be thus obnoxious to a scoundrel's fate?
Brought to the bar, and sentenced from the bench,
Only for ravishing a country wench?
Shall men of honour meet no more respect?
Shall their diversions thus by laws be check'd?
Shall they be accountable to saucy juries
For this or t'other pleasure?—hell and furies!
What man through villany would run a course,
And ruin families without remorse,
To heap up riches—if, when all is done,
An ignominious death he cannot shun?

A most severe but just description of the character of Charteris was afterwards written by Dr. Arbuthnot, who published it in the form of an epitaph, as follows:—

HERE LIETH THE BODY OF
COLONEL DON FRANCISCO,
WHO, WITH AN
INFLEXIBLE CONSTANCY,
AND INIMITABLE UNIFORMITY
OF LIFE, PERSISTED, IN SPITE OF
AGE AND INFIRMITY, IN THE PRACTICE OF
EVERY HUMAN VICE, EXCEPTING PRODIGALITY
AND HYPOCRISY; HIS INSATIABLE AVARICE EXEMPTING
HIM FROM THE FIRST, AND HIS MATCHLESS IMPUDENCE FROM
THE LATTER. NOR WAS HE MORE SINGULAR IN THAT UNDEVIATING

VICIOUSNESS OF LIFE THAN SUCCESSFUL IN ACCUMULATING WEALTH,
HAVING, WITHOUT TRUST OF PUBLIC MONEY, BRIBE, WORTH, SERVICE,
TRADE, OR PROFESSION, ACQUIRED, OR RATHER CREATED, A MINISTERIAL ESTATE.
AMONG THE SINGULARITIES OF HIS LIFE AND FORTUNE, BE IT LIKEWISE
COMMEMORATED, THAT HE WAS THE ONLY PERSON IN HIS TIME
WHO WOULD CHEAT WITHOUT THE MASK OF HONESTY;
WHO WOULD RETAIN HIS PRIMEVAL MEANNESS, AFTER
BEING POSSESSED OF 10,000 POUNDS A YEAR;
AND WHO, HAVING DONE EVERY DAY OF
HIS LIFE SOMETHING WORTHY OF
A GIBBET, WAS ONCE CONDEMNED
TO ONE FOR WHAT HE
HAD NOT DONE.

THINK NOT, INDIGNANT READER, HIS LIFE USELESS TO MANKIND.
PROVIDENCE FAVOURED, OR RATHER CONNIVED AT, HIS
EXECRABLE DESIGNS, THAT HE MIGHT REMAIN, TO THIS
AND FUTURE AGES, A CONSPICUOUS PROOF AND
EXAMPLE OF HOW SMALL ESTIMATION
EXORBITANT WEALTH IS HELD IN
THE SIGHT OF THE ALMIGHTY,
BY HIS BESTOWING IT ON
THE MOST UNWORTHY OF ALL THE DESCENDANTS OF ADAM.

SARAH MALCOLM.

EXECUTED FOR MURDER.

THIS unhappy young woman, who at the period of her death was only twenty-two years of age, was born of respectable parents, in the county of Durham, in the year 1711; but her father having, through his extravagance, spent the whole of the property which he possessed, she was at length compelled to resort to what is commonly called “servitude,” for the means of subsistence. In this condition for several years she conducted herself extremely well; but at length being employed at the Black Horse, a low public-house in Boswell-court, near Temple-bar, which up to the present day has been constantly the notorious resort of persons of bad character, she formed connexions of no very creditable class, by whom she was led on to her ruin. Having at length quitted the Black Horse, she was recommended as a laundress to take charge of chambers in the Inns of Court; and amongst those for whom she there worked, was a Mrs. Lydia Duncomb, a lady nearly eighty years of age, who occupied a set of chambers in the Temple; Elizabeth Harrison, aged sixty, and Ann Price, aged seventeen, living with her in the capacity of servants. This lady being reputed to be very rich, a scheme was formed by Sarah Malcolm of robbing her chambers; her object being, it was supposed, by the acquisition of wealth, to make herself a fitting match for a young man named Alexander, who she hoped would marry her.

The night of Saturday, 3d February, 1733, was fixed upon by her for the commission of the robbery; and Martha Tracy, a woman of light character, her paramour Alexander, and his brother, were to be her assistants in the execution of the project. Malcolm, by means of her acquaintance with the chambers, obtained possession of the keys of the outer door in the course of the day, and at night the robbery was effected, but with it the murder also of Mrs. Duncomb and her servants Harrison and Price. On the Sunday morning some surprise was excited on its being observed that none of Mrs. Duncomb’s family were to be seen; and at length, as the day advanced, great alarm was exhibited, and suspicions were entertained that all was not right. Mrs. Love, Mrs. Rhymer, and Mrs. Oliphant, friends of Mrs.

Duncomb, assembled in the afternoon at the door of her chambers, in obedience to an invitation which they had received to dinner; but being unable to gain admittance by knocking, they at length determined to force an entrance. One of the windows was resorted to for this purpose, to which access was obtained from a neighbouring set of chambers; and then, on Mrs. Oliphant going into Mrs. Duncomb's bed-room, the old lady was found there strangled, while her servant Harrison was discovered in an adjoining apartment also strangled, and the girl Price was seen lying on her bed with her throat cut from ear to ear. The news of this diabolical crime soon became published through the neighbourhood; and the chambers of the deceased being examined, it was found that they had been stripped of all the valuables which could be easily carried away, consisting of money, silver plate, and other articles of a similar description. In the course of the day some circumstances transpired, tending to fix the suspicions of the police upon the woman Malcolm; and upon her lodgings being searched, a silver tankard, the handle of which was covered with blood, was found concealed in a close-stool. She was in consequence taken into custody, and having undergone an examination on the following day before the magistrates, she was committed to Newgate. Upon her entering the jail, she was searched by Johnson, one of the turnkeys, who took from her a considerable sum of money in gold and silver coin, and she admitted to him that it was Mrs. Duncomb's. "But," added she, "I'll make you a present of it if you will say nothing of the matter." The jailer took possession of the money, but produced it to his superior officers, acquainting them with the conversation which had passed. In the course of the subsequent imprisonment of the unhappy woman, she frequently conversed with Johnson upon the subject of the murder, and admitted that she had arranged the robbery, although she declared that she had had nothing to do with putting Mrs. Duncomb and her servants to death. She asserted that two men and a woman were concerned with her, and that she watched on the stairs while they entered the chambers.

At her trial, when called on for her defence, she made a similar declaration, and stated that Tracy and the two Alexanders were her companions; but she still persisted in her allegation of her ignorance of the murder, until its being discovered by Mrs. Oliphant on the day after it was committed. A verdict of guilty was, however, returned, and the wretched woman was ordered for execution.

After her conviction she evinced the most sincere penitence, but still persisted in her refusal to confess herself guilty of the whole crime with which, she was charged. Upon the bellman^[6] coming to her in the customary manner, she attended anxiously to what he said, and at the conclusion of his address threw him a shilling to buy wine.

On the morning of execution, March 7, 1733, she appeared more composed than she had been for some time past, and seemed to join in prayers with the Ordinary, and another gentleman who attended, with much sincerity. When in the cart, she wrung her hands and wept most bitterly.

At the place of execution, near Fetter-lane, she behaved with the utmost devoutness and resignation to the Divine will; but when the Ordinary, in his prayers, recommended her soul to God, she fainted, and with much difficulty recovered her senses. On the cart driving off, she turned towards the Temple, crying out, "Oh! my mistress, my mistress! I wish I could see her!" and then, casting her eyes towards heaven, called upon Christ to receive her soul.

CAPTAIN JOHN PORTEOUS.

CONVICTED OF MURDER, AND MURDERED BY THE MOB.

THE case of this offender has attracted considerable attention, from the scene of his death being described with accurate fidelity in Sir Walter Scott's novel of "The Heart of Mid-Lothian."

John Porteous was born of indigent parents near the city of Edinburgh; and he served his time as an apprentice to a tailor. Having worked at his trade for some time, he was married to the cast mistress of the late Lord Provost of Edinburgh, who settled upon them a sum of 500*l.*; but our hero, being a man addicted to the pursuit of pleasure, soon ran through his money, and his wife was in consequence obliged to apply to her old friend, the provost, to make some other provision for them. In Edinburgh there were three companies of men, in number twenty-five each, who were employed to keep the peace, and perform the general duties of a police force. An officer was appointed to each of these companies (whom they styled captain) with a salary of eighty pounds a year, and a suit of scarlet uniform; and a vacancy happening by the death of one of these captains, the provost immediately appointed Porteous to fill up the place. The latter soon distinguished himself by a show of great daring; and if a riot occurred in the city, he was generally chosen by the magistrates to suppress it. On these occasions, however, he would frequently behave with great violence and cruelty, so that he failed in obtaining that respect and attention which were so peculiarly necessary for a person in his situation.

The circumstances attending the condemnation and death of Porteous were as follows:—Two fellows named Wilson and Robertson, who were daring smugglers, having been found guilty of a very serious breach of the revenue laws, were sentenced to die; and a strong feeling existing in their favour among the people, it was apprehended that it was very possible that an attempt might be made to rescue them from custody. Robertson, however, made his escape before the period arrived for his execution, by taking advantage of an opportunity afforded, by a custom which then prevailed, of taking the condemned criminals to church under the care of the city guards; and although Porteous was instantly despatched in search of

him, his inquiries were in vain, and the criminal afterwards made good his flight to Holland. On the following Wednesday the execution of Wilson was appointed to take place, and a temporary gallows was erected in the Grass-market, the prisoner being ordered to be conducted there by fifty men, under the command of Porteous. Upon the representations of the latter, five companies of the Welch Fusileers were ordered to be in readiness in the Lawn-market to prevent any sudden outbreak; but no disturbance arising, the prisoner finished his devotions, ascended the ladder, and after having been turned off, continued hanging the usual time. The hangman then went up the ladder to cut him down; but a stone struck him on the nose, and caused it to bleed. This stone was immediately followed by many others; at which Porteous was so much exasperated, that he instantly called out to his men, “Fire, and be d——d!” discharging his own piece at the same time, and shooting a young man, who was apprentice to a confectioner, dead on the spot. Some of the soldiers more humanely fired over the heads of the people, but unfortunately killed two or three persons who were looking out at the windows; while others of them wantonly fired amongst the feet of the mob, by which many were so disabled as to be afterwards obliged to suffer amputation. Porteous now endeavoured to draw off his men, as the mob grew exceedingly outrageous, throwing stones, and continuing to press on the soldiers; but having gone some distance, he turned about with two of his men and fired, killing three more of the people.

Porteous, being assisted by the Fusileers, at last conducted his men to the guard; when being sent for by the provost, he passed a long examination, and was committed to prison in order to take his trial for murder.

On the 6th of July, 1736, the trial came on before the lords of justiciary previously to which Porteous made a judicial confession, that the people were killed as mentioned in the indictment, but pleaded self-defence. His counsel then stated the following point of law, to be determined by the judges previously to the jury being charged with the prisoner:—

“Whether a military officer, with soldiers under his command, who, being assaulted by the populace, should fire, or order his men to fire, was not acting consistently with the nature of self-defence, according to the laws of civilised nations?”

The counsel for the prosecution being ordered to plead to the question, the court pronounced as their opinion, “That if it was proved that Captain

Porteous either fired a gun, or caused one or more to be fired, by which any person or persons was or were killed, and if the said firing happened without orders from a magistrate properly authorised, then it would be murder in the eye of the law.”

Thus the question being decided against him and the jury empanelled, forty-four witnesses were examined for and against the prosecution.

The prisoner being then called on for his defence, his counsel insisted that the magistrates had ordered him to support the execution of Wilson, and repel force by force; and that being apprehensive of a rescue, powder and ball had been given to his men for the said purpose, with orders to load their pieces. They said, also, that he only meant to intimidate the people by threats, and actually knocked down one of his own men for presenting his piece; that finding the men would not obey orders, he drew off as many as he could; that he afterwards heard a firing in the rear contrary to his directions; that in order to know who had fired, he would not suffer their pieces to be cleaned till properly inspected; and that he never attempted to abscond, though he had the greatest opportunity, and might have effected his escape with the utmost ease. They farther insisted, that, admitting some excesses had been committed, it could not amount to murder, as he was in the lawful discharge of his duty; neither could it be supposed to be done with premeditated malice.

In answer to this the counsel for the crown argued, that the trust reposed in the prisoner ceased when the execution was over; that he was then no longer an officer employed for that purpose for which the fire-arms had been loaded; and that the reading of the Riot Act only could justify his firing in case a rescue had been actually attempted.

The prisoner’s counsel replied, that the magistrates, whose duty it was to have read the Act, had deserted the soldiery, and taken refuge in a house for their own security; and that it was hard for men to suffer themselves to be knocked on the head, when they had lawful weapons in their hands.

The jury having been charged, after sometime occupied in consideration, found the prisoner guilty, and he was sentenced to death; but the King being then at Hanover, the Queen, by advice of her council, granted a respite to the prisoner. The subsequent execution of the sentence was prevented by the measures taken by the mob, by whom a scheme of revenge such perhaps as is unprecedented, was planned and carried out.

On the 7th of September, between nine and ten o'clock in the evening, a large body of men entered the city, and seized the arms belonging to the guard; they then patrolled the streets, crying out, "All those who dare revenge innocent blood, let them come here;" and they closed the gates, and placed guards at each, so as to prevent ingress or egress.

The main body of the mob, all disguised, marched in the mean time to the prison; when finding some difficulty in breaking open the door with hammers, they immediately set fire to it, taking great care that the flames should not extend beyond their proper bounds. The outer door was hardly consumed before they rushed in, and ordering the keeper to open the door of the captain's apartment, cried out, "Where is the villain Porteous?" He replied, "Here I am; what do you want with me?" To which they answered, that they meant to hang him in the Grass-market, the place where he had shed so much innocent blood. His expostulations were all in vain; they seized him by the legs and arms, and dragged him instantly to the place of execution. On their arrival they broke open a shop to find a rope suitable to their purpose, which they immediately fixed round his neck; and then, throwing the other end over a dyer's pole, they hoisted him up. He endeavoured to save himself, and fixed his hands between the halter and his neck; but this being observed by some of the mob, one of them struck him with an axe, and this obliging him to quit his hold, they soon put an end to his life.

When they were satisfied that he was dead, they immediately dispersed to their several habitations, unmolested themselves, and without molesting any one else.

Upon this circumstance being made known, a royal proclamation was issued, offering a large reward for the apprehension of the offenders; and the magistrates of Edinburgh were summoned to answer for their neglect in not quelling the riot, were fined, and rendered incapable of acting again in any judicial capacity. The circumstance of the death of Porteous, however, appeared to have afforded the people so much satisfaction, that no further attempt was made to discover the leaders of the fray.

JOHN RICHARDSON AND RICHARD COYLE.

EXECUTED FOR PIRACY AND MURDER.

THE adventures of the first-named of these criminals exhibit him to be a man possessing the most consummate hypocrisy, and a disposition of the very worst description.

John Richardson was a native of New York in America, where, at the age of fourteen years, he entered on board a vessel commanded by his uncle. After a single voyage, he took a dislike to the sea, and, loath again to trust himself upon salt water, he procured an engagement in the service of a carpenter, by whom he was employed for five years, when an intimacy having commenced with his master's daughter which was likely to produce unpleasant consequences, he ran off, and once again selected the sea as the scene of his future exploits. The vessel on board which he entered was bound for Jamaica, and there our hero was pressed and put on board a man-of-war, by which he was carried to England. He subsequently attained the rank of boatswain on board a vessel trading to the Baltic; but having, by means of a forged letter, obtained the sum of one hundred rix-dollars from a merchant of Riga, he decamped to Amsterdam. At that place he formed an acquaintance with a woman whose husband was a mate on board an East India vessel, with whom he cohabited during a period of eight months. His innamorata then informed him that he must retire in favour of her husband, whose return she daily expected; but he could not make up his mind to give up his connexion without procuring some substantial proof of his good fortune, and he did not venture to depart until he had secured to himself booty of the value of about 250*l.* in goods and money. Rotterdam was the next point to which he proceeded; but from thence he almost immediately departed for New England. On his arrival there, he deposited the wares of which he had possessed himself in a commodious storehouse, and assuming the character of a merchant, he began to look out for a wife, with whom he hoped to procure a fortune sufficient to enable him to live with respectability. As Christmas approached, he became intimate with his neighbours, and he was induced to keep the festival with a Mr. Brown, who had a family of three daughters and four maid-servants. A prolonged visit at

the house of his host enabled him to ingratiate himself so far with the young women as to procure from them more than ordinary favours; and he did not quit the agreeable society with which he met, until more than one or two of his fair friends had reason to regret the intimacy which had subsisted between them. Not long after this, he addressed himself to a young lady, the daughter of a magistrate, whose hand he solicited in marriage; and her father making no objection to the celebration of the nuptials, the banns were published in the parish church, in accordance with the usual custom. On the first day no objection was made; but upon the publication taking place the second time, there appeared no less than seven injured women, who forbade the ceremony proceeding any further. The time which had elapsed since the intended bridegroom had obtained the consent of the young lady and her father to the proposed match, had been quite sufficient to enable him to work himself into the good graces of the former; and thinking it now quite time to depart, he packed up what few moveables he still possessed, and proceeded to New York. His residence there, however, was soon discovered by his proposed father-in-law; and overtures having been made by the old gentleman, he consented to return and marry the girl, whom he had debauched, upon the receipt of 300*l*. The ceremony had no sooner been performed, than his re-appearance at Boston having been discovered by the friends of the other girls, his apprehension was secured at their instance, in order that he might be compelled to give security for the maintenance of the progeny to which they were about to give birth. His father-in-law at once undertook that he should be forthcoming when wanted, and upon this assurance he regained his liberty; but he had hardly obtained the possession of the promised dower, when he once again bade adieu to his Boston friends, and returned to New York.

His improvidence speedily reduced him in that city to a condition of the most abject misery and want, and he was at length compelled to accept employment in the yard of a quaker shipbuilder. He was treated with the greatest kindness, by his master, but the attention which he received appeared to excite only ingratitude in his mind: for he not only found means to become intimate with his mistress, but he at length absconded, carrying with him about 70*l*., which he procured by breaking open a chest in his master's house. He now proceeded to Philadelphia, which place he conceived would be well calculated for the concealment of his past iniquities, and a renewal of his schemes upon the unwary. A widow and her

two daughters were the next new victims to his diabolical lusts. Having become intimate with the mother, he subsequently, in turn, found means to seduce the daughters. The widow was outrageous at the discovery of this treble act of duplicity, and insisted that he should afford the only reparation which remained in his power. A difficulty, however, arose, for it became obvious that he could not marry them all three; but at length a satisfactory adjustment took place, an arrangement being made, by which one of the daughters was married to a former lover, the other being committed to the tender mercies of our hero, with a dower of 600*l.* and some plate. Affairs were no sooner settled in this way, however, than Richardson, already weary of his wife, absconded to South Carolina, and there he obtained employment on board a vessel trading between that place and Jamaica. He was soon engaged in another intrigue with the daughter of his commander, and having added a third wife to his list, he started upon a new expedition to Barbadoes. But this voyage proved unfortunate, for the vessel being wrecked, he lost all that he possessed. Being picked up, he was carried to St. Kitt's; and from thence he proceeded to Jamaica, to Carthagena, Vera Cruz, and finally to England. The port at which he arrived was Chatham, and chance threw him once again into a situation, in which he was enabled to impose upon the good-nature of strangers. Putting up at the house of a publican named Ballard, his host became possessed of an idea that he was no other than a brother of his, who had gone to sea several years before, but had never returned; and Richardson, taking advantage of the good-natured credulity which the other exhibited, declared himself to be his long-lost relation. Great rejoicings took place upon the supposed discovery being made, and our hero went the round of his newly-found friends, permitting his good-nature to be imposed upon by the payment to him of a legacy alleged to have been left by his deceased parents. But his villanies did not rest there; for, being introduced to two sisters named Knowlding, he so far ingratiated himself with one of them, as to obtain possession of the title-deeds of the small estate which she possessed, which he mortgaged at Gravesend for 800*l.*, and then immediately sailed for Venice with the proceeds.

It was not long before, in that city of splendour, he succeeded in disposing of his ill-gotten spoil, and then he went to Ancona, where he became acquainted with Captain Benjamin Hartley, for whose murder he was eventually executed. Capt. Hartley, it appears, had sailed to that place

with a cargo of pilchards, and having discharged his lading, he was about to proceed to Turkey upon a new trip. Being in want of a carpenter, he prevailed upon Richardson to accompany him in that capacity. On board the vessel, Coyle, the fellow-sufferer with Richardson, was employed as mate. The vessel proceeded in one course to Turkey, where having taken in a cargo of corn, she sailed to Leghorn. She had not advanced many leagues upon her voyage, however, before a plot for the murder of the captain and the seizure of the vessel was put into execution. Coyle, it appears, was the instigator of this foul conspiracy, and having obtained the assistance of Richardson and a man named Larson, they all three proceeded to the performance of their horrid project. On the first night of the voyage, they went to the captain's cabin at about midnight, determined to despatch him as he lay in his hammock; but Hartley being alarmed at their presence, sprang upon deck and ran up the shrouds. His pursuers were not far behind him, and he was rapidly followed by Richardson and Larson; but, driven to desperation by the dreadful situation in which he was placed, he flung himself from a fearful height upon the deck. Here Coyle was in waiting to receive him, and raising a blunderbuss to his shoulder, he attempted to shoot him. The captain, however, avoided the discharge, and, rushing to his antagonist, he wrested the blunderbuss from him, and threw it overboard. By this time the crew had gained intelligence of what was passing on deck, and, rushing through the hatchway, Capt. Hartley perceived from their looks that they were too little disposed to assist him in opposition to the attack which had been made upon him. He at once gave himself up for lost; and, being stunned by a blow which he received from Coyle, he was directly hove overboard.

Coyle and Richardson now assumed the respective offices of master and mate of the vessel; and, after a long consultation, it was determined that they should bear up for the island of Foviniano, where it was hoped they would be able to procure supplies. Here, however, their piratical proceedings were communicated to the authorities of the place by two boys, who escaped from the vessel during the night; and the crew, discovering the dangerous position in which they were placed, immediately set sail in the long-boat for Tunis. On their arrival at that place, they were carried before the English consul, to whom they represented themselves to be the crew of a vessel which had been lost off Sardinia, but having been supplied with money, Coyle, while in a state of intoxication, spoke so freely of their

adventures, that he was immediately placed under arrest. Richardson, however, escaped to Tripoli, and from thence to Malta and Sicily; but on his going to Messina, he was taken into custody on the representations of a friend of the deceased Capt. Hartley. Having remained in prison during a period of nine months, he procured his liberation by representing to the king of Naples that he had been a servant to his father; and he then travelled to Rome and Civita Vecchia, where he was finally apprehended and sent to England. Coyle had only just before reached London, and they were immediately both indicted for the murder of their commander. The evidence against them consisted of the declarations made by the two boys, to whom we have already alluded; and having been found guilty, they received sentence of death. The wretched man Coyle, who was respectably connected in Devonshire, appeared sensible of the enormity of the crime of which he had been guilty, and professed the greatest penitence; while Richardson, on the other hand, exhibited an extraordinary degree of recklessness. They were hanged at Execution Dock on the 25th of January, 1738.

GEORGE PRICE.

CONVICTED OF MURDER.

THE case of this malefactor gives us an opportunity of bringing under the notice of the reader the occurrence of a calamity which has always attracted considerable attention,—namely, the breaking out of the jail fever.

The offence of the prisoner was that of the murder of his wife, a crime which he perpetrated on Hounslow Heath, in a gig, within view of the gibbets which formerly stood there, by strangling her with the thong of his whip. He was apprehended upon suspicion of the crime, and was found guilty, and sentenced to death, but before the law could be executed upon him he died in Newgate, of the jail fever, on the 22d October, 1738. The following account of this malignant fever, shows the peculiar circumstances under which it first exhibited itself. It appears that it was always attended with a degree of malignity, in proportion to the closeness and stench of the place.

The assize held at Oxford in the year 1577, called the “Black Assize,” was a dreadful instance of the deadly effects of the jail fever. The judges, jury, witnesses, and in fact nearly every person except the prisoners, women, and children, in court, were killed by a foul air, which at first was thought to have arisen out of the bowels of the earth; but that great philosopher, Lord Bacon, proved it to have come from the prisoners, taken out of a noisome jail, and brought into court to take their trials; and they alone, being subject to the inhaling foul air, were not injured by it.

“Baker’s Chronicle,” a work of the highest authenticity, thus speaks of the Black Assize:—“The Court were surprised with a pestilent savour, whether arising from the noisome smell of the prisoners, or from the damp of the ground, is uncertain; but all that were present within forty hours died, except the prisoners, and the women and children; and the contagion went no farther. There died Robert Bell, Lord Chief Baron, Robert de Olie, Sir William Babington, the high sheriff of Oxfordshire, some of the most eminent lawyers, the jurors, and three hundred others, more or less.”

Some attributed the cause of the sudden mortality at Oxford to witchcraft, the people in those times being very superstitious. In “Webster’s Display of Witchcraft,” a work of some authenticity as to the relation of circumstances as they occurred, we find the following account of the Black Assize, which we insert as a matter of curiosity:—

“The 4th and 5th days of July, 1559, were holden the assizes at Oxford, where was arraigned and condemned one Rowland Jenkes, for his seditious tongue, at which time there arose such a damp, that almost all were smothered. Very few escaped that were not taken at that instant. The jurors died presently; shortly after died Sir Robert Bell, Lord Chief Baron, Sir Robert De Olie, Sir Wm. Babington, Mr. Weneman, Mr. De Olie, high sheriff, Mr. Davers, Mr. Harcourt, Mr. Kirle, Mr. Pheteplace, Mr. Greenwood, Mr. Foster, Sergeant Baram, Mr. Stevens, &c. There died in Oxford three hundred persons; and sickened there, but died in other places, two hundred and odd, from the 6th of July to the 12th of August, after which day died not one of that sickness, for one of them infected not another, nor any one woman or child died thereof. This is the punctual relation according to our English annals, which relate nothing of what should be the cause of the arising of such a damp just at the conjuncture of time when Jenkes was condemned, there being none before, and so it could not be a prison infection; for that would have manifested itself by smell, or operating sooner. But to take away all scruple, and to assign the true cause, it was thus: It fortuned that a manuscript fell into my hands, collected by an ancient gentleman of York, who was a great observer and gatherer of strange things and facts, who lived about the time of this accident happening at Oxford, wherein it is related thus:—

“That Rowland Jenkes, being imprisoned for treasonable words spoken against the queen, and being a popish recusant, had, notwithstanding, during the time of his restraint, liberty some time to walk abroad with the keeper; and that one day he came to an apothecary, and showed him a receipt which he desired him to make up; but the apothecary, upon viewing of it, told him that it was a strong and dangerous receipt, and required some time to prepare it; also asking to what use he would apply it. He answered, ‘To kill the rats, that since his imprisonment spoiled his books;’ so being satisfied, he promised to make it ready. After a certain time he cometh to know if it were ready, but the apothecary said the ingredients were so hard to procure that he had not done it, and so gave him the receipt again, of

which he had taken a copy, which mine author had there precisely written down, but did seem so horribly poisonous, that I cut it forth, lest it might fall into the hands of wicked persons. But after, it seems, he had it prepared, and against the day of his trial had made a wick of it, (for so is the word,—that is, so fitted it that like a candle, it might be fired,) which as soon as ever he was condemned he lighted, having provided himself with a tinder-box and steel to strike fire. And whosoever should know the ingredients of that wick or candle, and the manner of the composition, will easily be persuaded of the virulency and venomous effect of it.”

In the year 1730, the Lord Chief Baron Pengelly, with several of his officers and servants; Sir James Sheppard, sergeant-at-law; and John Pigot, Esq., high sheriff for Somersetshire, died at Blandford, on the Western Circuit of the Lent assize, from the infected stench brought with the prisoners from Ilchester jail to their trials at Taunton, in which town the infection afterwards spread, and carried off some hundred persons.

In 1754 and 1755 this distemper prevailed in Newgate to a degree which carried off more than one-fifth of the prisoners.

RICHARD TURPIN.

EXECUTED FOR HORSE-STEALING.

THE character which this notorious offender is generally supposed to have possessed for remarkable gallantry and courage, and which in one instance has been deemed of sufficient importance to fit him for one of the heroes of a romance^[7], upon being examined, appears to sink him to the low degree of a petty pilferer, of a heartless plunderer, and even of a brutal murderer.

Turpin was the son of a farmer named John Turpin, at Thackstead, in Essex; and having received a common school education, was apprenticed to a butcher in Whitechapel, in whose service he at an early age distinguished himself for the brutality of his disposition. On the expiration of his apprenticeship, he was married to a young woman named Palmer, who resided at East Ham in Essex, and set up in business for himself; but he had not been thus occupied long, before he sought to decrease his expenditure in trade by stealing his neighbours' cattle, and cutting them up and selling them in his shop. His proceedings, however, received an unexpected check; for having stolen two oxen from a Mr. Giles at Plaistow, he drove them straight home; but two of Giles' servants having obtained sufficient evidence of the robbery, a warrant was obtained for his apprehension, and he only evaded the officers who were in search of him, by making his escape from the back window of his house at the very moment when they were entering at the door.

Having retreated to a place of security, he found means to inform his wife where he was concealed, and she furnished him with money, with which he travelled into the hundreds of Essex, where he joined a gang of smugglers, with whom he was for some time successful. A body of the Custom-house officers, however, by one fortunate stroke, deprived him of all his ill-acquired gains. Thrown out of this kind of business, he connected himself with a gang of deer-stealers, the principal part of whose depredations were committed on Epping Forest, and the parks in its neighbourhood: but their efforts not succeeding to the expectation of the robbers, they determined to commence housebreakers. Their plan was to fix

on those houses which they presumed contained any valuable property; and while one of them knocked at the door, the others rushed in, and seized whatever they might deem worthy of their notice.

The first attack of this kind was at the house of Mr. Strype, an old man who kept a chandler's shop at Watford, whom they robbed of all the money in his possession, but did not offer him any personal violence.

The well-known story of placing the old woman on the fire at Loughton is thus related by the original historian of the life of our hero:—

“Turpin now acquainted his associates that there was an old woman at Loughton who was in possession of seven or eight hundred pounds, whereupon they agreed to rob her; and when they came to the door, one of them knocked, and the rest forcing their way into the house, tied handkerchiefs over the eyes of the old woman and her maid.

“This being done, Turpin demanded what money was in the house; and the owner hesitating to tell him, he threatened to set her on the fire if she did not make an immediate discovery. Still, however, she refused to give the desired information: on which the villains actually placed her on the fire, where she sat till the tormenting pains compelled her to discover her hidden treasure; so that the robbers possessed themselves of above four hundred pounds, and decamped with the booty.”

The gang appear to have proceeded with some success, for soon afterwards they robbed the house of a farmer at Barking of above 700*l.* in a most daring manner, and then they determined to attack the house of Mr. Mason, the keeper of Epping Forest. Turpin, it appears, was absent from this expedition, for he was unable to remain with so much money in his pocket as he possessed, and he therefore started to London to spend it in riot and intoxication. His companions, however, were true to their faith, and having obtained a considerable booty, they sought him in town and shared the produce of the robbery with him.

On the 11th of January, 1735, Turpin and five of his companions went to the house of Mr. Saunders, a rich farmer at Charlton, in Kent, between seven and eight in the evening, and, having knocked at the door, asked if Mr. Saunders was at home. Being answered in the affirmative, they rushed into the house, and found Mr. Saunders, with his wife and friends, playing at cards in the parlour. They told the company that they should remain uninjured if they made no disturbance, and having made prize of a silver

snuff-box which lay on the table, part of the gang stood guard over the company, while the others attended Mr. Saunders through the house, and, breaking open his escrutoires and closets, stole above a hundred pounds, exclusive of plate. During these transactions the servant-maid ran up stairs, barred the door of her room, and called out "Thieves!" with a view of alarming the neighbourhood; but the robbers broke open the door, secured her, and then robbed the house of all the valuable property they had not before taken. Finding some mince-pies and some bottles of wine, they sat down to regale themselves; and meeting with a bottle of brandy, they compelled each of the company to drink a glass of it. Mrs. Saunders fainted through terror, but the gallantry of the thieves would not permit her to remain in this condition, and they therefore administered some drops in water to her, and recovered her to the use of her senses. Having staid in the house a considerable time, they packed up their booty and departed, declaring that if any of the family gave the least alarm within two hours, or advertised the marks of the stolen plate, they would return and murder them at a future time. Retiring to a public-house at Woolwich, where they had concerted the robbery, they crossed the Thames to an empty house in Ratcliffe Highway, and there deposited the stolen effects till they found a purchaser for them.

Their next attack was upon the house of Mr. Sheldon, near Croydon, in Surrey, where they obtained a considerable booty in money and jewels. They then concerted the robbery of Mr. Lawrence, of Edgeware, in Middlesex, to the commission of which they proceeded on the 4th February. They arrived at Edgeware at about five in the evening, and, after obtaining some refreshment, they went to the scene of their intended outrage at about seven o'clock, when Mr. Lawrence had just discharged his workmen. Quitting their horses at the outer gate, they seized a sheep-boy, whom they compelled to conduct them to the house-door, under fear of death; and they there obliged him to procure the opening of the door by knocking and calling to his fellow-servants. As soon as the door was open, they all rushed in, and presenting pistols, they seized Mr. Lawrence and his servant, threw a cloth over their faces, and, taking the boy into another room, demanded what fire-arms were in the house? He replied that there was only an old gun, which they broke in pieces. They then bound Mr. Lawrence and his man, and made them sit by the boy; and Turpin, searching the gentleman, took from him a guinea, a Portugal piece, and some silver; but, not being

satisfied with this booty, they forced him to conduct them up stairs, where they broke open a closet, and stole some money and plate. Being dissatisfied, they swore that they would murder Mr. Lawrence if some further booty was not produced, and one of them took a kettle of water from the fire, and threw it over him; but it providentially happened not to be hot enough to scald him. In the interim, the maid servant, who was churning butter in the dairy, hearing a noise in the house, apprehended some mischief, on which she blew out her candle to screen herself; but, being found in the course of their search, one of the miscreants compelled her to go up stairs, where he gratified his brutal passion by force. They then robbed the house of all the valuable effects they could find, locked the family into the parlour, threw the key into the garden, and took their ill-gotten plunder to London.

The particulars of this atrocious robbery being represented to the king a proclamation was issued, offering a reward of fifty guineas for the apprehension of the offenders, and a pardon to any one of the parties who should impeach his associates. This, however, was unsuccessful, and the robbers continued their depredations as before. On the 7th February, six of them assembled at the White Bear, in Drury Lane, and they agreed to rob Mr. Francis, a farmer, at Marylebone. They accordingly proceeded to his house forthwith, and having bound all the servants and Mr. Francis in the stable, they rushed into the house, tied Mrs. Francis, her daughter, and the maid-servant, and beat them in a most cruel manner. One of the thieves then stood sentry while the rest rifled the house, in which they found a silver tankard, a medal of Charles I., a gold watch, several gold rings, a considerable sum of money, and a variety of valuable linen and other effects, which they conveyed to London.

Hereupon a reward of one hundred pounds was offered for the apprehension of the offenders; in consequence of which two of them were taken into custody, tried, convicted on the evidence of an accomplice, and hanged in chains: and the whole gang being dispersed, Turpin went into the country to renew his depredations on the public, in any new line of business which might strike his fancy. On his way towards Cambridge he fell in with a young man of gentlemanly appearance, who was well mounted, and expecting a tolerable booty, he presented a pistol to his breast and demanded his money. The only answer which he received, however, was a hearty peal of laughter; and when the highwayman, enraged at the supposed

insult cast upon him, threatened instant destruction to the stranger in case of any further refusal, the latter exclaimed—"What! dog eat dog?—Come, come, brother Turpin, if you don't know me, I know you, and shall be glad of your company." The mystery was soon solved; the stranger was no other than King, the gentleman highwayman, and a bargain of partnership was struck between them, which terminated only with the death of our hero's new associate, by the hand of his companion in iniquity. Joined now in a common cause against the public, they committed a great number of robberies, until at length they were so well known that no public-house would receive them as guests. Thus situated, they fixed on a spot between the King's Oak and the Loughton road, on Epping Forest, where they made a cave which was large enough to receive them and their horses. The cave was enclosed within a sort of thicket of bushes and brambles, through which they could look and see passengers on the road, while they remained unobserved; and from this station they used to issue, and robbed such a number of persons, that at length the very pedlars who travelled the road carried fire-arms for their defence. While thus situated, they were frequently visited by Turpin's wife, who used to supply them with necessaries, and who often remained with her husband in the cave, during King's absence, for the night.

Having taken a ride as far as Bungay, in Suffolk, the robbers observed two young countrywomen receive fourteen pounds for corn, on which Turpin resolved to rob them of the money. King objected, saying it was a pity to rob such pretty girls: but Turpin was obstinate, and obtained the booty. Upon their return home on the following day, they stopped a Mr. Bradle, of London, who was riding in his chariot with his children. The gentleman, seeing only one robber, was preparing to make resistance,





Turpin and King.

What! Dog eat Dog!

when King called to Turpin to hold the horses, and they took from him his watch, money, and an old mourning-ring; but returned the latter, as he declared that its intrinsic value was trifling, and that he was very unwilling to part with it. Finding that they readily parted with the ring, he asked them what he must give for the watch: on which King said to Turpin, "What say you, Jack (by which name he always called him), he seems to be a good honest fellow; shall we let him have the watch?" Turpin answered, "Do as you please." Whereupon King said, "You must pay six guineas for it. We never sell for more, though the watch should be worth six-and-thirty." The gentleman therefore received the watch, and said that the money should be left at the Dial, in Birchin-lane, where they might receive it.

The greatest crime of which Turpin appears to have been guilty was committed soon after this—it was that of murder. The active inquiries which the police of the day were making after him and his companion, obliged them to separate; but Turpin, being less wary than King, continued to inhabit their old dwelling in the forest. The tempting offer of 100*l.* reward induced the servant of a gentleman, named Thompson, and a higgler, to go out in the hope of capturing the highwayman; and Turpin, being unaware of their object, and seeing them approach his cave with a gun, mistook them for poachers. He called to them, telling them that there were no hares in that thicket, upon which the servant exclaimed, “No, but I have found a Turpin,” and instantly presenting his gun, he called upon him to surrender. Turpin spoke to him in a friendly way, but retreating from him at the same time, he seized his own gun, and shot him dead on the spot, the higgler running off with the greatest precipitation. The consequence of this most detestable act was, that a great outcry was raised against the highwayman, and he was compelled to quit the place on which he had hitherto relied for his concealment. It was afterwards examined, and there were found in it two shirts, two pairs of stockings, a piece of ham, and part of a bottle of wine. His place of refuge was in Hertfordshire; and he sent a letter to his wife to meet him at a public-house in the town of Hertford, but going to keep his appointment he met a butcher, to whom he owed a sum of money. The latter demanded payment, and Dick promised to get the money of his wife, who was in the next room; but while the butcher was hinting to some of his acquaintance that the person present was Turpin, and that they might take him into custody after he had received his debt, the highwayman made his escape through a window, and rode off with great expedition.

He soon found King; but their meeting was unfortunate for the latter, for it ended in his death. Proceeding together towards London in the dusk of the evening, when they came near the Green Man on Epping Forest, they overtook a Mr. Major, who being mounted on a very fine horse, while Turpin’s beast was jaded, the latter obliged him to dismount, and exchange. The robbers now pursued their journey towards London; and Mr. Major, going to the Green Man, gave an account of the affair; on which it was conjectured that Turpin had been the robber. It was on a Saturday evening that this robbery was committed; but Mr. Major being advised to print hand-bills immediately, notice was given to the landlord of the Green Man, that such a horse as had been lost had been left at the Red Lion in Whitechapel.

The landlord going thither, determined to wait till some person came for it; and at about eleven at night, King's brother came to pay for the horse, and take him away, on which he was immediately seized, and conducted into the house. Being asked what right he had to the horse, he said he had bought it; but the landlord, examining a whip which he had in his hand, found a button at the end of the handle half broken off, and the name of Major on the remaining half. Upon this he was given into the custody of a constable; but as it was not supposed that he was the actual robber, he was told that he should have his liberty if he would discover his employer. Hereupon he said that a stout man, in a white duffil coat, was waiting for the horse in Red Lion-street; on which the company going thither, saw King, who drew a pistol, and attempted to fire it, but it flashed in the pan: he then endeavoured to pull out another pistol, but he could not, as it got entangled in his pocket. Turpin was at this time watching at a short distance off, and riding towards the spot, he saw his companion seized by some officers who had arrived. King immediately cried out "Shoot him, or we are taken;" on which Turpin fired, but his shot penetrated the breast of his companion. King called out, "Dick, you have killed me!" and Turpin then rode off at full speed.

King lived a week after this affair, and gave information that Turpin might be found at a house near Hackney Marsh; and, on inquiry, it was discovered that Turpin had been there on the night that he rode off, lamenting that he had killed King, who was his most faithful associate.

For a considerable time our hero skulked about the forest, having been deprived of his retreat in the cave since he shot the servant of Mr. Thompson; and a more active search for him having commenced, he determined to make good his retreat into Yorkshire, where he thought that he would be unknown, and might the more readily evade justice. The circumstance which induced him to take this step, appears to have been an attempt made by a gentleman's huntsman, to secure him by hunting him down with blood-hounds, whose mouths he escaped only by mounting an oak, when he had the satisfaction to see them pass by without noticing him.

Going first, therefore, to Long Sutton, in Lincolnshire, he stole some horses, for which he was taken into custody; but he escaped from the constable as he was conducting him before a magistrate, and hastened to Welton, in Yorkshire, where he went by the name of John Palmer, and assumed the character of a gentleman.

He now frequently went into Lincolnshire, where he stole horses, which he brought into Yorkshire, and there he sold or exchanged them. From his being apparently a dealer in horses, he became acquainted with many of the surrounding gentry and farmers; and he frequently accompanied them on hunting and shooting expeditions. On one of these occasions he was returning home, when he wantonly shot a cock belonging to his landlord. Mr. Hall, a neighbour who witnessed the act, said, "You have done wrong in shooting your landlord's cock," on which Turpin answered, that if he would stay while he loaded his gun he would shoot him too. Irritated by the insult, Mr. Hall communicated what had occurred to the owner of the cock, whereupon complaint being made to the magistrates, a warrant was granted for the apprehension of the offender; and on his being taken into custody, he was examined before the magistrates at Beverley and committed for want of sureties. Inquiries being made, the good opinions which had been formed of his mode of life were soon dissipated; and it was conjectured, that instead of being a horse-dealer, he was a horse-stealer. The magistrates, therefore, proceeded to him, and demanded to know what his business was; and he answered, that about two years before, he had carried on business at Long Sutton as a butcher, but that having contracted some debts for sheep that proved rotten, he had been compelled to abscond, and to go into Yorkshire to live. The clerk of the peace being commissioned to ascertain the truth of this story, learned that he had never been in business, and that he was suspected to be a horse-stealer, and had been in custody but had escaped, and that there were many informations against him for various offences. He was then committed to York Castle; and soon afterwards some persons coming from Lincolnshire, claimed a mare and a foal, which were in his possession, and stated that they had been stolen recently before.

The real name and character of the prisoner were soon afterwards discovered by means of a letter, which he wrote to his brother in Essex. The letter was as follows:—

“York, February 6, 1739.

“DEAR BROTHER,—I am sorry to inform you that I am now under confinement in York Castle for horse-stealing. If I could procure an evidence from London to give me a character, that would go a great way towards my being acquitted. I had not been long in this county before my apprehension, so it would pass off the readier. For Heaven’s sake, dear brother, do not neglect me; you well know what I mean when I say I am yours,

“JOHN PALMER.”

The letter was returned to the Post Office unopened, because the postage was not paid; and Mr. Smith, the schoolmaster, by whom Turpin had been taught to write, knowing the hand, carried the letter to a magistrate, by whom it was broken open, and it was thus discovered that the supposed John Palmer was Dick Turpin. Mr. Smith was in consequence despatched to Yorkshire, and he immediately selected his former pupil from the other prisoners, and subsequently gave evidence at the trial as to his identity.

On the rumour that the noted Turpin was a prisoner in York Castle, persons flocked from all parts of the country to take a view of him, and debates ran high whether he was the real person or not. Among others who visited him was a young fellow who pretended to know the famous Turpin; and having regarded him a considerable time with looks of great attention, he told the keeper he would bet him half a guinea that he was not Turpin; on which the prisoner, whispering the keeper, said “Lay him the wager, and I’ll go your halves.”

When this notorious malefactor was brought to trial, he was convicted on two indictments, and received sentence of death. After conviction he wrote to his father, imploring him to intercede with a gentleman and lady of rank, to make interest that his sentence might be remitted, and that he might be transported; but although the father did what was in his power, the notoriety of his son’s character was such, that no persons would exert themselves in his favour.

The prisoner meanwhile lived in the most gay and thoughtless manner, regardless of all considerations of futurity, and affecting to make a jest of the dreadful fate that awaited him.

Not many days before his execution, he bought a new fustian frock and a pair of pumps, in order to wear them at the time of his death; and on the day before that appointed for the termination of his life, he hired five poor men, at five shillings each, to follow the cart as mourners. He gave hatbands and gloves to several persons, and left a ring and other articles of property to a married woman, with whom he had been acquainted in Lincolnshire.

On the morning of his death he was put into a cart, and being followed by his mourners, he was drawn to the place of execution; in his way to which he bowed to the spectators with an air of the most astonishing indifference and intrepidity.

When he came to the fatal tree he ascended the ladder; and, on his right leg trembling, he stamped it down with an air of assumed courage, as if he was ashamed to be observed to discover any signs of fear. Having conversed with the executioner about half an hour, he threw himself off the ladder, and expired in a few minutes. Turpin suffered at York, April 10, 1739.

The spectators of the execution seemed to be much affected at the fate of this man, who was distinguished by the comeliness of his appearance. The corpse was brought to the Blue Boar, in Castle-gate, York, where it remained till the next morning, when it was interred in the church-yard of St. George's parish, with an inscription on the coffin bearing the initials of his name, and his age. The grave was made remarkably deep, and the people who acted as mourners took such measures as they thought would secure the body; but about three o'clock on the following morning some persons were observed in the church-yard, who carried it off; and the populace, having an intimation whither it was conveyed, found it in a garden belonging to one of the surgeons of the city.

Hereupon they took the body, laid it on a board, and, having carried it through the streets in a kind of triumphal manner, and then filled the coffin with unslacked lime, buried it in the grave where it had been before deposited.—It is difficult to conceive the reason of all this concern and sympathy among the people; for a more depraved, heartless villain never suffered the penalty of the law. The fashion, however, which was then set appears to have continued in existence up to the present day; and fancy has done more to secure the reputation of Turpin as a hero, and a man of courage and generosity, than any pains he ever took to obtain for himself a

good name as an honest man. It is needless to add, that the story of the ride to York, and of the wondrous deeds of the highwayman's steed, "Black Bess," are, like many other tales of this fellow, the fabrications of some poetical brain.

MARY YOUNG. ALIAS JENNY DIVER.

EXECUTED FOR A STREET ROBBERY.

THE name of this woman will long be celebrated in the annals of crime, as being that of a person who was the most ingenious of her class.

Mary Young was the daughter of poor parents in the north of Ireland; and at the age of ten years entered the service of a gentlewoman, by whose directions she was instructed in reading, writing, and needle-work, in the latter of which she attained a proficiency unusual in girls of her age. Soon after she arrived at her fifteenth year, a young man, who lived in the vicinity, made strong pretensions of love to her, and having formed a desire to visit London, she determined to quit her benefactress, and make the passion of her lover, for whom she cared little, subservient to her purpose. She therefore promised to marry him on condition of his taking her to London, and he joyfully accepted her proposal, and immediately took a passage to Liverpool. In order, however, to enable him to undertake the journey, he robbed his master of a gold watch and 80 guineas, and then he joined his intended wife on board the ship. Arrived at Liverpool, they determined to remain a short time to get over the effects of the voyage, and they lived together as man and wife; but when they were on the point of starting to London by the waggon, the bridegroom was seized by a messenger despatched in search of him from Ireland and conveyed before the mayor, whither his companion accompanied him. He there confessed the crime of which he had been guilty, but did not implicate Young, and she, in consequence, was permitted to take her departure for London, having 10 guineas in her pocket, which she had recently received from her paramour. In a short time the latter was sent to Ireland, where he was tried, and condemned to suffer death; but his sentence was eventually changed to that of transportation.

Upon her arrival in London, our heroine contracted an acquaintance with one of her countrywomen, named Ann Murphy, by whom she was invited to partake of a lodging in Long Acre. She endeavoured for a while to obtain a livelihood by her needle; but, not being able to procure sufficient employment, her situation became truly deplorable. Murphy then intimated

to her that she could introduce her to a mode of life that would prove exceedingly lucrative, adding, that the most profound secrecy was required; and the other, expressing an anxious desire to learn the means of extricating herself from the difficulties under which she laboured, made a solemn declaration that she would never divulge what Murphy should communicate. In the evening, Murphy introduced her to a number of men and women, assembled in a kind of club, near St. Giles's, who gained their living by cutting off women's pockets, and stealing watches, &c. from men, in the avenues of the theatres, and at other places of public resort; and, on the recommendation of Murphy, they admitted Mary a member of the society. After her installation they dispersed, in order to pursue their illegal occupation; and the booty obtained that night consisted of eighty pounds in cash and a valuable gold watch. As Mary was not yet acquainted with the art of thieving, she was not admitted to an equal share of the night's produce; but it was agreed that she should have two guineas. She now regularly applied two hours every day in qualifying herself for an expert thief, by attending to the instructions of experienced practitioners; and, in a short time, she was distinguished as the most ingenious and successful adventurer of the whole gang. A young fellow of genteel appearance, who was a member of the club, was singled out by her as the partner of her bed; and they cohabited for a considerable time as husband and wife.

In a few months our heroine became so expert in her profession as to acquire great consequence among her associates, who distinguished her by the appellation of Jenny Diver, on account of her remarkable dexterity; and as that is the name by which she is more generally recognised in the anecdotes of her life which follow, we shall so designate her.

Accompanied by one of her female accomplices, Jenny joined the crowd at the entrance of a place of worship in the Old Jewry, where a popular divine was to preach, and observing a young gentleman with a diamond ring on his finger she held out her hand, which he kindly received in order to assist her. At this juncture she contrived to get possession of the ring without the knowledge of the owner, after which she slipped behind her companion, and heard the gentleman say, that, as there was no probability of gaining admittance, he would return. Upon his leaving the meeting he missed his ring, and mentioned his loss to the persons who were near him, adding that he suspected it to be stolen by a woman whom he had endeavoured to assist in the crowd; but as the thief was unknown she

escaped. This proof of her dexterity was considered so remarkable that her associates determined to allow her an equal share of all their booties, even though she should not be present when they were obtained. In a short time after this exploit she procured a pair of false hands and arms to be made, and concealing her real ones under her clothes, she put something beneath her stays so as to make herself appear as if in a state of pregnancy, and repaired on a Sunday evening to the place of worship above-mentioned in a sedan chair, one of the gang going before to procure a seat for her among the genteeler part of the congregation, and another attending in the character of a footman. Jenny being seated between two elderly ladies, each of whom had a gold watch by her side, she conducted herself with great seeming devotion; but, the service being nearly concluded, she seized the opportunity, when the ladies were standing up, of stealing their watches, which she delivered to an accomplice in an adjoining pew. The devotions being ended, the congregation were preparing to depart, when the ladies discovered their loss, and a violent clamour ensued. One of the parties exclaimed "That her watch must have been taken either by the devil or the pregnant woman!" on which the other said, "She could vindicate the pregnant lady, whose hands she was sure had not been removed from her lap during the whole time of her being in the pew."

Flushed with the success of the adventure, our heroine determined to pursue her good fortune; and as another sermon was to be preached the same evening, she adjourned to an adjacent public-house, where, without either pain or difficulty, she soon reduced the protuberance of her waist, and having entirely changed her dress, she returned to the meeting, where she had not remained long before she picked a gentleman's pocket of a gold watch, with which she escaped unsuspected. Her accomplices also were industrious and successful; for, on a division of the booty obtained this evening, they each received thirty guineas. These acts procured for her universal respect among her fellows, and in all their future transactions they yielded an exact obedience to her wishes.

The game which she had played having been found so successful, Jenny again assumed the appearance of a pregnant woman, and, attended by an accomplice as a footman, went towards St. James's Park on a day when the king was going to the House of Lords; and, there being a great number of persons between the Park and Spring Gardens, she purposely slipped down, and was instantly surrounded by many of both sexes, who were emulous to

afford her assistance; but, affecting to be in violent pain, she intimated to them that she was desirous of remaining on the ground till she should be somewhat recovered. As she expected, the crowd increased, and her pretended footman, and a female accomplice, were so industrious as to obtain two diamond girdle-buckles, a gold watch, a gold snuff-box, and two purses, containing together upwards of forty guineas. The girdle-buckles, watch, and snuff-box, were the following day advertised, a considerable reward was offered, and a promise given that no questions should be asked of the party who should return them; but our heroine declaring that their restoration would entirely break down the principles upon which their association was conducted, they were sold to the Jews in Duke's-place.

Ever fertile in inventions, she proceeded with her supposed servant to the east-end of the town, and observing a genteel house, the latter knocked and begged that his mistress, who had been taken suddenly ill, might be permitted to enter to rest herself a few minutes. The request was complied with; and while the mistress of the house and the servant were up stairs seeking such things as might be supposed to afford relief to their visitor, she opened a drawer and stole sixty guineas; and afterwards, while the lady was holding a smelling-bottle to her nose, she picked her pocket of a purse, containing, however, only a small sum. Her supposed servant, in the mean while, was not idle, and having been ordered into the kitchen, he pocketed six silver table-spoons, a pepper-box, and a salt-cellar. All the available booty having now been secured, the servant was sent for a coach, and Jenny, pretending to be somewhat recovered, went away, saying that she was the wife of a respectable merchant in Thames-street, and pressing her entertainer to dine with her on a certain day, which she appointed. The impudence of these frauds, however, soon attracted public attention, and it was found that some new plan must be determined upon, by which the public might be gulled.

Until some novel method of robbing should be devised, however, it was determined that the gang should go to Bristol, to seek adventures and profit during the fair; and in order to render their proceedings the more likely to be successful, they admitted into their society a man who had long subsisted there as a thief. Jenny and Murphy now assumed the character of merchants' wives, while the new member and another of the gang appeared as country farmers, and the footman was continued in the same character. They took lodgings in different parts of the city; and they agreed, that in

case of any of them being apprehended, the rest should appear to speak to the character of the prisoners, and representing them to be persons of reputation in London, endeavour to procure their release.

Being one day in the fair, they observed a west-country clothier giving a sum of money to his servant, and heard him direct the man to deposit it in a bureau. They followed the servant, and one of them fell down before him, expecting that he would also fall, and that, as there was a great crowd, the money might be easily secured; but though the man fell into the snare, they were not able to obtain their expected booty, and therefore had recourse to the following stratagem:—One of the gang asked the man whether his master had not lately ordered him to carry home a sum of money; to which the other replied in the affirmative; and the sharper then told him that he must return to his master, who had purchased some goods, and waited to pay for them. The countryman followed him to Jenny's lodgings, and, being introduced to her, she desired him to be seated, saying his master was gone on some business in the neighbourhood, but had left orders for him to wait till his return. She urged him to drink a glass of wine, but the poor fellow declined her offers with awkward simplicity, the pretended footman having taught him to believe her a woman of great wealth and consequence. Her encouraging solicitations, however, conquered his bashfulness, and he drank till he became intoxicated. Being conducted into another apartment, he soon fell fast asleep, and, while in that situation, he was robbed of the money he had received from his master, which proved to be a hundred pounds. They were no sooner in possession of the cash, than they discharged the demand of the inn-keeper, and set out in the first stage for London.

Soon after their return to town Jenny and her associates went to London Bridge in the dusk of the evening, and, observing a lady standing at a door to avoid the carriages, a number of which were passing, one of the men went up to her, and, under pretence of giving her assistance, seized both her hands, which he held till his accomplices had rifled her pockets of a gold snuff-box, a silver case containing a set of instruments, and thirty guineas in cash.

On the following day, as Jenny, and an accomplice, in the character of a footman, were walking through Change Alley, she picked a gentleman's pocket of a bank-note for two hundred pounds, for which she received one

hundred and thirty from a Jew, with whom the gang had very extensive connexions.

Our heroine now hired a real footman; and her favourite, who had long acted in that character, assumed the appearance of a gentleman; and they hired lodgings in the neighbourhood of Covent Garden, that they might more conveniently attend the theatres. She dressed herself in an elegant manner, and went to the theatre one evening when the king was to be present; and, during the performance, she attracted the particular attention of a young gentleman of fortune from Yorkshire, who declared, in the most passionate terms, that she had made an absolute conquest, and earnestly solicited that he might be permitted to attend her home. She at first refused to comply with his request, saying that she was newly married, but she at length yielded to his entreaties, and he accompanied her to her door in a hackney-coach, and quitted her only on her promising to admit him on a future evening, when, she said, her husband would be out of town. The day of appointment being arrived, two of the gang were equipped in elegant liveries; and Anne Murphy appeared as waiting-maid. The gentleman soon made his appearance, having a gold-headed cane in his hand, a sword by his side with a gold hilt, and wearing a gold watch and a diamond ring. Being introduced to the bed-chamber, he was soon deprived of his ring; and he had not undressed many minutes before the lady's-maid knocked violently at the door, exclaiming that her master was suddenly returned. Jenny affected to be labouring under the most violent agitation, and begged that the gentleman would cover himself with the bed-clothes, saying that she would convey his apparel into the other room, so that, if her husband came there, nothing would appear to awaken his suspicion; and adding that, under pretence of indisposition, she would prevail upon her husband to sleep in another bed, and then return to the arms of her lover. The gull acquiesced, and the clothes being removed, a short consultation was held among the thieves, the result of which was that they immediately decamped, carrying their booty with them, which, exclusive of the cane &c., was worth a hundred guineas.

The amorous youth meanwhile waited with anxious impatience for the coming of his Dulcinea; but morning having arrived, he rang the bell, and the people of the house coming to him, found that he was locked in, the fair fugitive having carried off the key with her. The door was, however, burst open, and an *éclaircissement* ensued, when the gentleman explained the

manner in which he had been treated; but the people of the house, deaf to his expostulations, threatened to publish the adventure through the town, unless he would make up the loss which they had sustained. Rather than risk the safety of his reputation, he sent for money and some clothes and discharged the debt which Jenny had contracted, quitting the house, bitterly repenting that his amorous qualities should have led him into such a scrape.

The continuance of the system under which this gang pursued its labours became now impossible, and they found it necessary to leave the metropolis; but having committed numerous depredations in the country, they returned, and Jenny was unfortunately apprehended on a charge of picking a gentleman's pocket, for which she was sentenced to be transported.

She remained nearly four months in Newgate, during which time she employed a considerable sum in the purchase of stolen effects; and when she went on board the transport vessel, she shipped a quantity of goods nearly sufficient to load a waggon. The property she possessed ensured her great respect, and every possible convenience and accommodation during the voyage; and on her arrival in Virginia, she disposed of her goods, and for some time lived in great splendour and elegance. She soon found, however, that America was a country where she could expect but little emolument from the practices she had so successfully followed in England, and she therefore employed every art she was mistress of to ingratiate herself with a young gentleman, who was preparing to embark on board a vessel bound for the port of London. He became much enamoured of her, and brought her to England; but while the ship lay at Gravesend, she robbed him of all the property she could get into her possession, and pretending indisposition, intimated a desire of going on shore, in which her admirer acquiesced; but she was no sooner on land than she made a precipitate retreat.

She now travelled through various parts of the country; and having by her usual wicked practices obtained many considerable sums, she at length returned to London, but was not able to find her former accomplices. She frequented the Royal Exchange, the theatres, London-bridge, and other places of public resort, and committed innumerable depredations on the public; but being again detected in picking a gentleman's pocket on London-bridge, she was taken before a magistrate, to whom she declared

that her name was Jane Webb, and by that appellation she was committed to Newgate.

On her trial, a gentleman who had detected her in the very act of picking the prosecutor's pocket, deposed that a person had applied to him, offering fifty pounds, on condition that he should not appear in support of the prosecution: and a lady swore that on the day the prisoner committed the offence for which she stood indicted, she saw her pick the pockets of more than twenty different people. The record of her former conviction was not produced in court, and therefore she was arraigned for privately stealing only, and, on the clearest evidence, the jury pronounced her guilty. The property being valued at less than one shilling, she was sentenced to transportation.

Twelve months had not elapsed before she returned from exile a second time; and on her arrival in London, she renewed her former practices. A lady going from Sherborne-lane to Walbrook was accosted by a man, who took her hand, seemingly as if to assist her in crossing some planks which were placed over the gutter for the convenience of passengers; but he squeezed her fingers with so much force as to give her great pain, and in the mean time Jenny picked her pocket of thirteen shillings and a penny. The gentlewoman, conscious of being robbed, seized the thief by the gown, and she was immediately conducted to the Compter. She was examined the next day by the lord mayor, who committed her to Newgate for trial.

At the ensuing sessions at the Old Bailey, she was tried on an indictment charging her with privately stealing; and a verdict of guilty having been brought in, she was sentenced to death.

After conviction she appeared to have a due sense of the awful situation in which she was placed; and employing a great part of her time in devotion, she repented sincerely of the course of iniquity in which she had so long persisted. On the day preceding that of her execution, she sent for the woman who nursed her child, which was then about three years old, and saying that there was a person who would pay for its maintenance, she earnestly entreated that it might be carefully instructed in the duties of religion. On the following morning she appeared to be in a serene state of mind. The preparations in the press-yard for a moment shook her fortitude, but her spirits were soon again tolerably composed. She was conveyed to Tyburn in a mourning-coach, being attended by a clergyman, to whom she

declared her firm belief in the principles of the Protestant Church. Her remains were, at her own desire, buried in St. Pancras churchyard.

Her execution took place on the 18th March, 1740.

CHARLES DREW.

EXECUTED FOR THE MURDER OF HIS FATHER.

THE only circumstance of peculiarity attending this case, and it is one indeed, we are happy to say, not a little singular, is that the malefactor was the son of the man whom he murdered. The father being possessed of good property at Long Melford in Suffolk, discarded his son, who appears to have been brought up without any education being imparted to him, on account of his connexion with a woman named Elizabeth Boyer. The latter, angered at the contempt exhibited for her, urged her paramour, as well for revenge as for the accession to their means, which would be produced by the old man's death, to commit the foul deed which cost him his life. He was apprehended at the instance of a relation, a Mr. Timothy Drew, and being convicted, was executed on the 9th April, 1740, at St. Edmund's Bury, being in the twenty-fifth year of his age.

This case so nearly resembles the celebrated story of George Barnwell, that the following anecdote in reference to the tragedy of that name will not be misplaced here. It is related in reference to Mr. Ross, formerly a tragedian of considerable celebrity.

“A gentleman, much dejected in his looks, called one day on Ross, when stricken with years, and told him that his father, a wealthy citizen in London, lay at the point of death, and begged that he might see him, or he could not die in peace of mind. Curious as this request appeared from a stranger, and in such extremity, the actor hesitated; but being much pressed by his visitor, he agreed to accompany him. Arrived at the house of the sick man, Mr. Ross was announced, and soon admitted into his chamber; but observing the family to retire, and being left alone with the patient, his wonder was again aroused. The dying penitent, now three score years and ten, casting his languid eyes upon Ross, said, ‘Can it be you who raised my fortune—who saved my life? Then were you young like myself; ay, and amiable amid the direst misfortunes. I determined to amend my life, and avoid your fate.’ Here nature in a struggle with death became overpowered, and as the sick man's head fell upon his pillow, he faintly ejaculated, ‘O Barnwell! Barnwell!’ We may conceive the astonishment of the player,

whom age had long incapacitated from representing the unfortunate 'London Apprentice.' The feeble man, renewing his efforts to gratify a dying desire, again opened his eyes and continued: 'Mr. Ross, some forty years ago, like George Barnwell, I wronged my master to supply the unbounded extravagance of a Millwood. I took her to see your performance, which so shocked me that I silently vowed to break the connexion then by my side, and return to the path of virtue. I kept my resolution, and replaced the money I had stolen before my villany was detected. I bore up against the upbraidings of my deluder, and found a Maria in my master's daughter. We married. I soon succeeded to her father's business, and the young man who brought you here was the first pledge of our love. I have more children, or I would have shown my gratitude to you by a larger sum than I have bequeathed you; but take a thousand pounds affixed to your name.' At the dying man's signal, old Ross left the room overwhelmed by his feelings."

CAPTAIN SAMUEL GOODERE, MATTHEW MAHONY, AND CHARLES WHITE.

EXECUTED FOR THE MURDER OF SIR JOHN D. GOODERE, BART.

THIS atrocious murder was committed through the instrumentality of Captain Samuel Goodere, upon his brother Sir John Dineley Goodere, on board a man of war, of which the former was Captain.

Sir John, it appears, was possessed of an estate of 3000*l.* per annum, situated at Evesham, in Worcestershire, which he derived from his father, Sir Edward: and his brother, who is the subject of this sketch, having been bred to the sea, was advanced to the rank of Captain of one of his Majesty's vessels of war. Sir John having no children, very sanguine expectations were entertained by his brother that he should inherit his property, but upon his discovering that he had made a will in favour of their sister's children, his rage knew no bounds, and he determined upon a most diabolical revenge for the supposed injury which he had received. The vessel of which Captain Goodere had the command, it appears, was employed as one of the Channel cruisers, and in the month of January, 1741, it was lying at Bristol. At this period it happened that Sir John Goodere was in that city, transacting some business with Mr. Smith, an attorney; and his brother having been made acquainted with the circumstance, fixed upon this as a proper time to put his plan into execution. Throwing himself into Mr. Smith's way, he assured him that a perfect reconciliation had taken place between them, notwithstanding a misunderstanding which was known to have existed; and after some conversation, learning that his brother was going to dine with that gentleman on a certain day, he procured himself to be invited to meet him. Having determined upon this as a favourable opportunity to carry his design into execution, on his going ashore he carried with him some of his seamen, to whom he gave instructions that Sir John being insane, he desired to procure him to be carried on board his ship, in order that he might be conveyed to a place of safety. The men therefore, having been regaled during the evening at a neighbouring public-house, as night approached placed themselves in readiness to obey the orders which they had received; and Sir John making his appearance, they seized him and

forcibly put him into a boat, in which they directly rowed him to the vessel. The protestations made by the captain, that it was only a deserter whom they were apprehending, silenced all inquiry from the crowd which had assembled on their perceiving this outrage, and the unfortunate baronet was secured without an effort being made to procure his release, or to save him from the bloody fate which awaited him.

As soon as the devoted victim was in the boat, he said to his brother, "I know you have an intention to murder me; and if you are ready to do it, let me beg that it may be done here, without giving yourself the trouble to take me on board;" to which the captain said, "No, brother, I am going to prevent your rotting on land; but, however, I would have you make your peace with God this night."

Sir John having reached the vessel, he called to the seamen for help, but they having learned their captain's commands from their fellows, did not offer to render the slightest aid, and the wretched gentleman was immediately conveyed to the purser's cabin.

White and Mahony were selected by their captain as the performers in the dreadful scene which was now to be enacted. While Goodere stood at the entrance of the cabin guarding it with a drawn sword, his two assistants entered it, and approached their victim. He cried aloud for mercy, offering all he possessed as a return, if they would spare his life; but, regardless of his prayers, they deliberately proceeded to the completion of their sanguinary intentions. Seizing him by the shoulders, they threw him on the deck, and there, with a handkerchief which they took from his pocket, they attempted to strangle him. Finding that their efforts were unavailing, they procured a cord from their guilty commander, with which they speedily despatched him; White kneeling on his breast and holding his hands, while Mahony fixed the cord round his throat, and tightened it until strangulation had taken place. They then accompanied their captain to his cabin, who gave them the sum agreed upon for their services, and bid them seek their safety in flight. The murder was soon made known on shore, through the instrumentality of the crew of the vessel; and the circumstance having come to the knowledge of Mr. Smith, the attorney, he procured a warrant to be issued, upon which the officers of the city proceeded on board the ship. They found that the captain had there been already put under arrest by the lieutenant and sailing-master, and he was immediately conveyed in custody to the prison of the town. It was not long before Mahony and White were

also secured; and the prisoners being brought to trial at Bristol, on the 26th March, 1741, they were convicted on the clearest evidence, and sentenced to death.

Captain Goodere's time, after conviction, was spent chiefly in writing letters to persons of rank, to make interest to save his life; and his wife and daughter presented a petition to the king: but all endeavours of this kind proving ineffectual, he employed a man to hire some colliers to rescue him on his way to the fatal tree.

His efforts in this respect, however, were as unavailing as those which he had made to procure a mitigation of his punishment; for the circumstance having been made known to the sheriff, he took such steps as were deemed expedient and necessary to prevent the success of the project. The wretched companions in guilt of the captain exhibited the greatest hardihood; and when the jailers were employed in putting on their irons, they declared that they had no fear of death.

Captain Goodere's wife and daughter, dressed in deep mourning, took a solemn leave of him on the day before his death; and he went in a mourning-coach to the place of execution, to which his accomplices were conveyed in a cart.

They were hanged near the Hot Wells, Bristol, on the 20th of April, 1741, within view of the place where the ship lay when the murder was committed.

JOHN BODKIN, DOMINICK BODKIN, AND OTHERS.

EXECUTED FOR MURDER.

OLIVER BODKIN, ESQ. was a gentleman who possessed a good estate near Tuam, in Ireland. He had two sons by two wives. The elder son, named John, to whom this narrative chiefly relates, was sent to Dublin to study the law; and the younger, who was about seven years of age, remained at home with his parents. The young student lived in a very dissipated manner at Dublin, and soon quitting his studies, came and resided near his father's place of abode. The father allowed him a certain annual sum for his support; but, as he lived beyond his allowance, he demanded farther assistance. The father, however, refusing to accede to his wishes, he determined upon a horrible revenge, and included his mother-in-law in his proposed scheme of vengeance, as he imagined that she had induced his father to refuse him any further aid.

Having engaged his cousin, Dominick Bodkin, his father's shepherd, John Hogan, and another ruffian of the name of Burke, to assist him in the intended murders, they went to the house of Mr. Bodkin, senior; whose household consisted of four men and three women servants, exclusive of Mrs. Bodkin and the younger son, and a gentleman named Lynch, who was at that time on a visit there. They found all the members of the family at supper on their arrival, and having murdered them, they went into the kitchen, where they killed three servant-maids; and, finding the men in different parts of the house, they also sacrificed them to their brutal and unprovoked rage. The murder of eleven persons being thus perpetrated, they quitted the fatal spot; and, when some persons from Tuam came the next morning to speak with Mr. Bodkin on business, they found the house open, and beheld the dead body of Mr. Lynch, near which lay that of Mrs. Bodkin, hacked and mangled in a shocking manner; and, at a small distance, her husband, with his throat cut, and the child lying dead across his breast. The throats of the maid-servants in the kitchen were all cut; and the men-servants in another room were also found murdered. The assassins had even been so wanton in their cruelties as to kill all the dogs and cats in the house. The neighbours being alarmed by such a singular instance of barbarity, a

suspicion fell on John Bodkin; who, being taken into custody, confessed all the tragical circumstances above-mentioned, and impeached his accomplices: on which the other offenders were taken into custody, and all of them were committed to the jail of Tuam.

The shepherd then confessed that he had murdered two; but that thinking to preserve the boy, to whom he had been foster-father, he besmeared him with blood, and laid him near his father. Dominick, perceiving him alive, killed him; and he afterwards murdered five more. John Bodkin owned that he and Burke killed the remainder; that he had formerly attempted to poison his mother-in-law; and that he was concerned with his first-cousins, John Bodkin, then living, and Frank Bodkin, then lately dead, in strangling Dominick Bodkin, their brother, heir of the late Counsellor John Bodkin, of Carobegg, to an estate of nine hundred pounds a year.

When they were brought to trial, John Bodkin, (the parricide), Dominick Bodkin, and John Hogan, pleaded guilty; and they were all condemned, and executed at Tuam on the 26th of March, 1742. The head of the shepherd was fixed on Tuam market-house, and the bodies of the others gibbeted within sight of the house where the murders had been committed.

Upon the confession of John, the cousin of the same name was apprehended for the murder of his elder brother, Dominick Bodkin, and accused of sitting on his mouth and breast until he was suffocated. He was taken in a moss, or turf bog, near Tuam, covered over with straw, and disguised in an old hat and peasant's clothes, for which he had given his own laced coat and hat. Being examined before Lord Athenry, he said that he had fled for fear of being loaded with irons in a jail, and denied having any hand in his brother Dominick's death, affirming that he had died of a surfeit, as had been reported. He was present at the execution of his relations, but confessed nothing; and thus (there being no positive proof against him) he escaped justice.

A case in which more cold-blooded cruelty has been displayed than in this, has seldom fallen under our notice. The murder of an indulgent parent must be insufferably shocking to every humane mind: but when we consider, as in the present instance, what a variety of unprovoked murders were added to the first, the mind is lost in astonishment at the baseness, the barbarity, the worse than savage degeneracy of those beings who could perpetrate such horrid deeds.



Jonathan Bradford discovered at the bedside of M. Hayes.

JONATHAN BRADFORD.

EXECUTED FOR MURDER.

THE details of this case reach us in a very abridged form; and we have been unable to collect any information on which any reliance can be placed beyond that which is afforded us by the ordinary channels. It would appear that Jonathan Bradford kept an inn in the city of Oxford. A gentleman, (Mr. Hayes), attended by a man-servant, put up one evening at Bradford's house; and in the night, the former being found murdered in his bed, the landlord was apprehended on suspicion of having committed the barbarous and inhospitable crime. The evidence given against him was to the following effect:—Two gentlemen who had supped with Mr. Hayes, and who retired at the same time to their respective chambers, being alarmed in the night with a noise in his room, and soon hearing groans as of a wounded man, got up in order to discover the cause, and found their landlord, with a dark lantern and a knife in his hand, standing in a state of astonishment and horror over his dying guest, who almost instantly expired.

On this evidence, apparently conclusive, the jury convicted Bradford, and he was executed. But the fate of this man may serve as a lesson to jurymen to be extremely guarded in receiving circumstantial evidence.

The facts attending the above dreadful tragedy were not fully brought to light until the death-bed confession of the real murderer; a time when we must all endeavour to make our peace with God.

Mr. Hayes was a man of considerable property, and greatly respected. He had about him, when his sad destiny led him under the roof of Bradford, a considerable sum of money; and the landlord knowing this, determined to murder and rob him. For this horrid purpose he proceeded with a dark lantern and a carving-knife, intending to cut the throat of his guest while yet sleeping; but what must have been his astonishment and confusion to find his intended victim already murdered, and weltering in his blood!

The wicked and unworthy servant had also determined on the murder of his master; and had committed the bloody deed, and secured his treasure, a moment before the landlord entered for the same purpose.

THE EARL OF KILMARNOCK, AND LORD BALMERINO.

BEHEADED FOR HIGH TREASON.

A SHORT account of the circumstances attending the rebellion of 1715 having been given in this work, some notice will, doubtless, be expected of the second transaction of the same character, and with the same object, which occurred in the year 1745.

It appears that the Pretender having gained the protection of France, and the French also having their own interests to serve, it was determined that a second attempt to restore the Stuarts to the throne of England should be made by the descent of a body of men upon Scotland, where it was conjectured numbers would render assistance, which was eventually to march forward towards London, and expel the reigning monarch. The design was evidently known to the government, from an allusion made to the circumstance by the king in his speech from the throne on the 2nd May, 1745; but the first notice which the British public had of the proceedings of the Pretender, was from a paragraph in the *General Evening Post*, which said, “The Pretender’s eldest son put to sea July 14th, from France, in an armed ship of sixty guns, provided with a large quantity of warlike stores, together with a frigate of thirty guns and a number of smaller armed vessels, in order to land in Scotland, where he expected to find twenty thousand men in arms, to make good his father’s pretensions to the crown of Great Britain. He was to be joined by five ships of the line from Brest; and four thousand five hundred Spaniards were embarking at Ferrol.”

The government, it appears, was not inactive on this occasion, and proper instructions were given to such of the king’s vessels as were cruising in the Channel, to prevent the approach of any ships which might be supposed to carry the leader of this rebellious attempt.

The young Pretender, followed by about fifty Scotch and Irish adventurers, meanwhile, came *incog.* through Normandy, and embarked on board a ship of war of eighteen guns, which was joined off Belleisle by the Elizabeth, and other ships. They intended to have sailed northwards, and to have landed in Scotland; but on the 20th they came up with an English fleet

of merchant-vessels, under convoy of the Lion man-of-war, of fifty-eight guns, commanded by Captain Brett, who immediately bore down upon the French line-of-battle ship, which he engaged within pistol-shot five hours, being constantly annoyed by the smaller ships of the enemy. The rigging of the Lion was cut to pieces; her mizen-mast, mizentop-mast, main-yard and fore-topsail, were shot away; all her lower masts and topmasts shot through in many places, so that she lay muzzled on the sea, and could do nothing with her sails. Thus situated, the French ships sheered off, and the Lion could make no effort to follow them. Captain Brett had forty-five men killed: himself, all his lieutenants; the master, several midshipmen, and one hundred and seven foremast-men, wounded. His principal antagonist, the Elizabeth, with difficulty got back to Brest, quite disabled, and had sixty-four men killed, one hundred and thirty-nine dangerously wounded, and a number more slightly injured. She had on board four hundred thousand pounds sterling, and arms and ammunition for several thousand men.

The friends of the Stuart cause in Scotland were in the mean time as active as their opponents, and committed many irregularities for the purpose of supplying their ranks with a sufficient number of soldiers; and being thus prepared, anxiously expected the arrival of their prince. The latter found means to join his supporters by a small vessel, in which he quitted the French coast; and eluding the vigilance of the English cruisers, he landed on the Isle of Skye, opposite to Lochaber, in the county of Inverness. After a lapse of about three weeks, he appeared at the head of a body of two thousand men, under a standard bearing the motto "*Tandem triumphans*"—"At length triumphant," and marching his army to Fort William, he there published a manifesto, signed by his father at Rome, containing many promises to those who would adhere to his cause, amongst which were undertakings that he would procure the dissolution of the union of the two kingdoms, and the payment of the national debt. The country people flocked in great numbers to his standard; and the mob, by which he was followed, soon assumed the appearance, in numbers at least, of an army. Their first attempt in arms, in opposition to two companies of foot, of the St. Clair and Murray's regiments, was successful, the soldiers being far inferior in numbers; and the rebels immediately marched upon Perth, and having taken possession of that place, the Pretender issued his orders for all persons who held public money to pay it into the hands of his secretary. Dundee and Dumblain were successively seized by his soldiers; and at

length, on the 14th September, the Pretender proceeded through the Royal Park and took possession of Holyrood House.

The money in the bank of Edinburgh, and the records in the public offices, were now removed to the castle for security, and the gates of the city were kept fast during the whole day; but five hundred of the rebels, having concealed themselves in the suburbs, took an opportunity, at four o'clock in the morning, to follow a coach which was going in, and seizing the gate called the Netherbow, they maintained their ground, while the main body reached the centre of the city, and formed themselves in the Parliament Close.

Thus possessed of the Scottish capital, they seized two thousand stand of arms, and on the following day marched to oppose the royal army under the command of General Cope. The two armies coming in sight of each other, near Preston Pans, on the evening of the 20th, Colonel Gardiner earnestly recommended it to the general to attack his opponents during the night; but, deaf to this advice, he kept the men under arms till morning, though they were already greatly harassed. At five in the morning, the rebels made a furious attack on the royal army, which was thrown into unspeakable confusion by two regiments of dragoons falling back on the foot. Colonel Gardiner, with five hundred foot, behaved with uncommon valour, and covered the retreat of those who fled; but the colonel receiving a mortal wound, the rebels made prisoners of nearly all the rest of the king's troops.

The loss thus sustained by the royal army, was three hundred killed, four hundred and fifty wounded, five hundred and twenty taken prisoners,—total one thousand two hundred and seventy, while the rebels only lost fifty men in all. Flushed with this partial victory, the rebels returned to Edinburgh to make an attack upon the castle, and attempted to throw up an entrenchment upon the hill; but notice having been given to the inhabitants to retire, the battery was attacked by the guns from above, the works destroyed, and thirty of the assailants killed, besides three of the inhabitants who rashly ventured near the spot. The rebel army remained during seven weeks in this city; and many noblemen and gentlemen with their followers having joined it, a force of more than ten thousand men was at length mustered. In November they marched upon Carlisle, and after some resistance had been shown, it was surrendered, and the insurgents then forced their way to Manchester, where a regiment, chiefly formed of Roman Catholics, was raised.

But now such decisive measures were taken as put an end very shortly to the insurrection. The Duke of Cumberland was at this time in Flanders, with the army, but being sent for thence, he soon arrived to take the command of the royal forces. About the time he reached London, the rebels had advanced as far as Derby; but his royal highness lost no time in travelling into Staffordshire, where he collected all the force he could, to stop their farther inroads into the kingdom.

Liverpool had not been behind London in spirit and loyalty. The inhabitants contributed largely in assisting the royal army, at this inclement season, with warm clothing, and raised several companies of armed men, which were called the Royal Liverpool Blues. Some of the advanced parties of rebels having appeared in sight of the town, every preparation was made to resist them; but, finding at length that the Pretender bent his march by another route for Manchester, the Liverpool Blues marched in order to destroy the bridges, and thereby impede their progress.

Notwithstanding these impediments, the rebels crossed the Mersey at different fords, through which the Pretender waded breast-high in water. Their numbers could not be accurately ascertained, their march being straggling and unequal, but about nine thousand appeared to be the aggregate. Their train of artillery consisted of sixteen field-pieces of three and four pound shot, two carriages of gunpowder, a number of covered waggons, and about one hundred horses, laden with ammunition. Their vanguard consisted of about two hundred cavalry, badly mounted, the horses appearing poor and jaded. The Pretender himself constantly marched on foot, at the head of two regiments, one of which was appropriated as his body guard. His dress was a light plaid, belted about with a sash of blue silk: he wore a grey wig, with a blue bonnet, and a white rose in it, and appeared very dejected at this time. His followers were ordinary, except the two regiments mentioned, which appeared to have been picked out of the whole. The arms of the others were very indifferent. Some had guns, others only pistols, the remainder broad-swords and targets. In order to deceive the Duke of Cumberland, all sorts of reports as to the future route of the rebels were sent abroad, but the King's troops were concentrated at Northampton, a spot well suited for the purpose, as it was the road which it was most probable would be taken, in the event of the Pretender advancing upon London, which was known to be his real intention. Meanwhile the rebels appeared unconscious of the danger they were bringing upon themselves by

delay, and they remained during a considerable time endeavouring to raise recruits. They at length, however, set forward on their march southwards, but they had not advanced more than a mile before they halted, held a consultation, wheeled round, and retraced their steps to Derby. Having there seized all the plunder they could lay their hands upon, they passed on, seeking to regain Scotland, where they had learned that their friends had been joined by some French troops. The Duke of Cumberland, in the mean time, being aware of their flight, followed them with all speed, and learning that they had been compelled to halt at Preston, from excessive weariness, he redoubled his efforts to come up with them. By forced marches, travelling through ice and snow, he succeeded in reaching Preston in three days, but he found that his game had retired about four hours before him. The Pretender soon learned that the excesses, of which his men had been guilty in their southward march, were not to go unpunished, and wherever he went he found himself opposed and harassed by the enraged country people, who lost no opportunity of annoying him in his retreat, and of seizing the stragglers from his army. At length, however, after repeated forced marches the Duke of Cumberland came up with his antagonists at Lowther Hall; and the latter dreading his approach, immediately threw themselves into the village of Clifton, three miles from Penryth. They were there attacked most vigorously and successfully by the dragoons, who had dismounted, and in about an hour's time they were driven away from the post which they occupied. They retreated forthwith to Carlisle, which was still in their possession; but the continued advance of the royal troops induced them again to retire, leaving only a garrison to oppose the entry of the Duke into that city. The besieged fired upon their assailants with great fury, but did little execution; and at length a battery having been raised against them, they sent out a flag of truce, and surrendered upon terms that they should not be put to the sword, but reserved for the king's pleasure, and thus Carlisle was once more taken possession of by the troops of his majesty.

The army of rebels made the best of their way now to Glasgow, where they levied contributions, and thence to Stirling, which was in possession of the English, and was commanded by the gallant General Blakeney. The gates could not be defended, and they therefore marched in, and summoned the garrison to surrender; but the veteran commander answered that "he would perish in its ruins rather than make terms with rebels." In the river of

the town were two English men-of-war; and the rebels, in order to prevent their going farther up, erected a battery, but the ships soon destroyed it, and caused them to retreat a mile, where they erected another, but did little execution. They now prepared for a vigorous attack upon the castle, got some heavy pieces of ordnance across the Forth, erected a battery against it, and called in all their forces. General Blakeney fired upon them, and repeatedly drove them from their works. General Hawley, in aid of his brother general, at the head of such troops as he could form in order of battle, marched to attempt to raise the siege; but the rebels made a desperate attack, and, aided by accident, obtained the advantage. Repeated skirmishes subsequently took place, but at length this system of warfare, so destructive to the general state of the country, was terminated by the decisive victory gained by the Duke of Cumberland, at the head of the Royal forces, at the battle of Culloden. The Pretender, at the head of his army, opposed the Duke, and the following, taken from the London Gazette, is the conqueror's account of the battle:—

“On Tuesday the 15th of April the rebels burnt Fort Augustus, which convinced us of their resolution to stand an engagement with the King's troops. We gave our men a day's halt at Nairn, and on the 16th marched from thence, between four and five, in four columns. The three lines of foot (reckoning the reserve for one) were broken into three from the right, which made the three columns equal, and each of five battalions. The artillery and baggage followed the first column upon the right, and the cavalry made the fourth column on the left. After we had marched about eight miles, our advanced guard, composed of about forty of Kingston's, and the Highlanders, led by the quarter-master-general, perceived the rebels at some distance, making a motion towards us on the left, upon which we immediately formed; but finding the rebels were still a good way from us, we put ourselves again upon our march in our former posture, and continued it to within a mile of them, where we formed in the same order as before. After reconnoitring their situation, we found them posted behind some old walls and huts, in a line with Culloden House. As we thought our right entirely secure, General Hawley and General Bland went to the left with two regiments of dragoons, to endeavour to fall upon the right flank of the rebels; and Kingston's horse was ordered to the reserve. The ten pieces of cannon were disposed, two in each of the intervals of the first line; and all our Highlanders (except 140, which were upon the left with General

Hawley, and who behaved extremely well) were left to guard the baggage. When we were advanced within 500 yards of the rebels, we found the morass upon our right was ended, which left our right flank quite uncovered to them; his Royal Highness thereupon immediately ordered Kingston's horse from the reserve, and a little squadron of about sixty of Cobham's, which had been patrolling, to cover our flank. We spent about half an hour after that, trying which should gain the flank of the other; and his Royal Highness having sent Lord Bury forward within a hundred yards of the rebels, to reconnoitre something that appeared like a battery to us, they thereupon began firing their cannon, which was extremely ill-pointed and ill-served; ours answered them, which began their confusion. They then came running on, in their wild manner, and upon the right, where his Royal Highness had placed himself, imagining the greatest push would be there, they came down three several times within a yard of our men, firing their pistols, and brandishing their swords; but the Royals and Pulteney's hardly took their firelocks from their shoulders, so that after those first attempts they made off, and the little squadrons on our right were sent to pursue them. General Hawley had, by the help of our Highlanders, beat down two little stone walls, and came in upon the right flank of their second line. As their whole body came down to attack at once, their right somewhat outflanked Burrel's regiment, which was our left; and the greatest part of the little loss we sustained was there; but Bligh's and Sempil's giving a fire upon those who had outflanked Burrel's, soon repulsed them; and Burrel's regiment, and the left of Monro's, fairly beat them with their bayonets. There was scarce a soldier or officer of Burrel's, and of that part of Monro's which engaged, who did not kill one or two men each with their bayonets and spontoons.^[8] The cavalry, which had charged from the right and left, met in the centre, except two squadrons of dragoons, which we missed, and they were gone in pursuit of the runaways. Lord Ancram was ordered to pursue with the horse as far as he could; and did it with so good effect that a very considerable number was killed in the pursuit. As we were on our march to Inverness, and were nearly arrived there, Major-General Bland sent the annexed papers, which he received from the French officers and soldiers, surrendering themselves prisoners to his Royal Highness. Major-General Bland had also made great slaughter, and took about fifty French officers and soldiers prisoners in his pursuit. By the best calculation that can be made, it is thought the rebels lost two thousand men upon the field of

battle and in the pursuit. We have here one hundred and twenty-two French and three hundred and twenty-six rebel prisoners. Lieutenant-Colonel Howard killed an officer, who appeared to be Lord Strathallan, by the seal and different commissions from the Pretender found in his pocket. It is said Lord Perth, Lords Nairn, Lochiel, Keppock, and Appin Stuart, are also killed. All their artillery and ammunition were taken, as well as the Pretender's, and all their baggage. There were also twelve colours taken. All the generals, officers, and soldiers, did their utmost duty in his Majesty's service, and showed the greatest zeal and bravery on this occasion. The Pretender's son, it is said, lay at Lord Lovat's house at Aird the night after the action. Brigadier Mordaunt is detached with nine hundred volunteers this morning into the Frasers' country, to attack all the rebels he may find there. Lord Sutherland's and Lord Reay's people continue to exert themselves, and have taken upwards of one hundred rebels, who are sent for; and there is great reason to believe Lord Cromartie and his son are also taken. The Monroes have killed fifty of the rebels in their flight. As it is not known where the greatest bodies of them are, or which way they have taken in their flight, his Royal Highness has not yet determined which way to march. On the 17th, as his Royal Highness was at dinner, three officers, and about sixteen of Fitz-James's regiment, who were mounted, came and surrendered themselves prisoners. The killed, wounded, and missing, of the King's troops, amount to above three hundred. The French officers will be all sent to Carlisle, till his Majesty's pleasure shall be known. The rebels, by their own accounts, make their loss greater by two thousand men than we have stated it. Four of their principal ladies are in custody, viz. Lady Ogilvie, Lady Kinloch, Lady Gordon, and the Laird of M'Intosh's wife. Major Grant, the governor of Inverness, is retaken, and the Generals Hawley, Lord Albemarle, Huske, and Bland, have orders to inquire into the reasons for his surrendering of Fort George. Lord Cromartie, Lord M'Leod his son, with other prisoners, are just brought in from Sutherland, by the Hound sloop, which his Royal Highness has sent for them; and they are just now landing."

Soon after this affair, several other rebel chiefs were taken into custody; and on the 28th July 1746, at about eight o'clock in the morning, the rebel lords were taken from the Tower to Westminster Hall, to be tried by their peers. The Earl of Kilmarnock and the Earl of Cromartie pleaded guilty; but Lord Balmerino having denied the offence imputed to him, six witnesses

were called, by whom his guilt was clearly established, and a verdict was returned accordingly. On the 1st August the peers were brought up for judgment, when the Lord High Steward pronounced sentence of death, in terms very like those used in the case of Earl Cowper, after the former rebellion.

Great interest being exerted to save the earls, it was hinted to Balmerino that his friends ought to exert themselves in his behalf; to which, with great magnanimity, he only replied: "I am very indifferent about my own fate; but had the two noble earls been my friends, they would have squeezed my name in among theirs."

The Countess of Cromartie, who had a very large family of young children, was incessant in her applications for the pardon of her husband; to obtain which she took a very plausible method: she procured herself to be introduced to the late Princess of Wales, attended by her children in mourning, and urged her suit in the most suppliant terms. The princess had at that time several children. Such an argument could scarcely fail to move; and a pardon was granted to Lord Cromartie on the condition that he should never reside north of the river Trent. This condition was literally complied with; and his lordship died in Soho-square in the year 1766.

On the 18th of August 1746, at six o'clock in the morning, a troop of life-guards, one of horse-grenadiers, and one thousand of the foot-guards, marched from the parade in St. James's Park, through the city to Tower-hill, to attend the execution of the Earl of Kilmarnock and Lord Balmerino; and being arrived there, were posted in lines from the Tower to the scaffold, and all round it. About eight o'clock the sheriffs of London, with their under-sheriffs and officers, met at the Mitre tavern, in Fenchurch-street, where they breakfasted; and went from thence to the house lately the Transport Office, Tower-hill, where they remained until the necessary preparations for the execution were made. At eleven o'clock they demanded the bodies of the peers of the constable of the Tower, and they were directly brought forth in procession, followed by mourning-coaches and two hearses.

The lords were conducted into separate apartments in the house, facing the steps of the scaffold, their friends being admitted to see them. The Earl of Kilmarnock was attended by the Rev. Mr. Foster, a dissenting minister, and the Rev. Mr. Hume, a near relation of the Earl of Hume. The chaplain of the Tower and another clergyman of the church of England accompanied

the Lord Balmerino. The latter, on entering the door of the house, hearing several of the spectators ask eagerly, "Which is Lord Balmerino?" answered, smiling, "I am Lord Balmerino, gentlemen, at your service." The parlour and passage of the house, the rails enclosing the way from thence to the scaffold, and the rails about it, were all hung with black at the sheriffs' expense. Lord Kilmarnock, in the apartment allotted to him, spent about an hour in his devotions with Mr. Foster, who assisted him with prayer and exhortation. After which, Lord Balmerino, pursuant to his request, was admitted to confer with the earl.

After a short conversation relating to some report as to the Pretender's orders at the battle of Culloden, they separated, the Lord Balmerino saluting the noble earl with the same high-minded courtesy which had been before remarked in him. The Earl of Kilmarnock then joined in prayer with those around him, and afterwards he took some refreshment. He expressed a wish that Lord Balmerino should go to the scaffold first; but being informed that this was impossible, as he was named first in the warrant, he immediately acquiesced in the arrangement which had been made, and with his friends proceeded to the place of execution. There was an immense crowd collected, and on their seeing him they exhibited the greatest commiseration and pity. The earl being struck with the variety of dreadful objects which presented themselves to him at once, exclaimed to Mr. Hume, "This is terrible!" but he exhibited no sign of fear, nor did he even change countenance or tremble in his voice. After putting up a short prayer, concluding with a petition for his majesty King George and the royal family, his lordship embraced and took leave of his friends. The executioner was so affected by the awfulness of the scene, that on his asking pardon of the prisoner, he burst into tears. The noble earl, however, bid him take courage, and presenting him with five guineas, told him that he would drop his handkerchief as a signal to him to strike. He then proceeded, with the help of his gentlemen, to make ready for the block, by taking off his coat, and the bag from his hair, which was then tucked up under a napkin cap. His neck being laid bare, tucking down the collar of his shirt and waistcoat, he kneeled down on a black cushion at the block, and drew his cap over his eyes; and in doing this, as well as in putting up his hair, his hands were observed to shake. Either to support himself, or for a more convenient posture of devotion, he happened to lay both his hands upon the block, which the executioner observing, prayed his lordship to let them fall, lest

they should be mangled or break the blow. He was then told that the neck of his waistcoat was in the way, upon which he rose, and with the help of a friend, took it off; and the neck being made bare to the shoulders, he kneeled down as before. In the mean time, when all things were ready for the execution, and the black baize which hung over the rails of the scaffold had, by direction of the colonel of the guard, or the sheriffs, been turned up, that the people might see all the circumstances of the execution, in about two minutes after he kneeled down, his lordship dropped his handkerchief, and the executioner at once severed his head from his body, except only a small part of the skin, which was immediately divided by a gentle stroke. The head was received in a piece of red baize, and, with the body, immediately put into the coffin. The scaffold was then cleared from the blood, fresh sawdust strewed, and that no appearance of a former execution might remain, the executioner changed such of his clothes as appeared bloody.

While this was doing, the Lord Balmerino, after having solemnly recommended himself to the mercy of the Almighty, conversed cheerfully with his friends, refreshed himself twice with a bit of bread and a glass of wine, and desired the company to drink to him, acquainting them that “he had prepared a speech, which he should read on the scaffold, and therefore should now say nothing of its contents.” The under-sheriff coming into his lordship’s apartment to let him know the stage was ready, he prevented him by immediately asking if the affair was over with the Lord Kilmarnock; and being answered, “It is,” he inquired how the executioner had performed his office. Upon receiving the account, he said it was well done; and then, addressing himself to the company, said, “Gentlemen, I shall detain you no longer;” and with an easy unaffected cheerfulness, saluted his friends, and hastened to the scaffold, which he mounted with so unconstrained an air as astonished the spectators. His lordship was dressed in his regimentals, (a blue coat turned up with red, trimmed with brass buttons,) the same which he wore at the battle of Culloden. No circumstance in his whole deportment showed the least sign of fear or regret; and he frequently reproved his friends for discovering either upon his account. He walked several times round the scaffold, bowed to the people, went to his coffin, read the inscription, and, with a nod, said, “It is right.” He then examined the block, which he called his “pillow of rest.” His lordship, putting on his spectacles, and taking a paper out of his pocket, read it with an audible voice: but so far

from its being filled with passionate invectives, it mentioned his majesty as a prince of the greatest magnanimity and mercy, at the same time that, through erroneous political principles, it denied him a right to the allegiance of his people. Having delivered this paper to the sheriff, he called for the executioner, and on his being about to ask his lordship's pardon, he said, "Friend, you need not ask me forgiveness, the execution of your duty is commendable." Upon this his lordship gave him three guineas, saying. "I never was rich; this is all the money I have now; I wish it was more, and I am sorry I can add nothing to it but my coat and waistcoat;" which he then took off, together with his neckcloth, and threw them on his coffin, putting on a flannel waistcoat which had been provided for the purpose; and then taking a plaid cap out of his pocket, he put it on his head, saying he died a Scotchman. After kneeling down at the block to adjust his posture, and show the executioner the signal for the stroke, which was dropping his arms, he once more gave a farewell look to his friends, and turning round on the crowd, said, "Perhaps some may think my behaviour too bold; but remember, sir, (to a gentleman who stood near him,) that I now declare it is the effect of a confidence in God, and a good conscience; and I should dissemble if I showed any signs of fear."

Having observed the axe in the executioner's hand as he passed him, he now took it from him, felt the edge, and, returning it, clapped the executioner on the shoulder to encourage him; he even tucked down the collar of his shirt and waistcoat, and showed him where to strike, desiring him to do it resolutely, "for in that," says his lordship, "will consist your kindness."

He afterwards went to the side of the stage and called up the warder, of whom he inquired which was his hearse, and ordered the man to drive near, which was instantly done.

Immediately, without trembling or changing countenance, he again kneeled down at the block, and having, with his arms stretched out, said, "O Lord, reward my friends, forgive my enemies, and receive my soul," he gave the signal by letting them fall. But his uncommon firmness and intrepidity, with the unexpected suddenness of the signal, so surprised the executioner, that though he struck the part directed, the blow was not given with strength enough to wound him very deeply. It was observed that he moved as if he made an effort to turn his head towards the executioner, and the under jaw fell, and returned very quick, like anger and gnashing the

teeth; but this arose from the parts being convulsed, and a second blow immediately succeeding the first, rendered him quite insensible and a third finished the work.

His head was received in a piece of red baize, and, with his body, put into a coffin, which, at his particular request, together with that of the Earl of Kilmarnock, was placed on that of the late Marquis of Tullibardine (who died during his imprisonment,) in St. Peter's church in the Tower all three lords lying in one grave.

MATTHEW HENDERSON.

EXECUTED FOR THE MURDER OF HIS MISTRESS, LADY DALRYMPLE.

THIS offender was the son of honest parents, and was born at North Berwick, in Scotland, where he was educated in the liberal manner customary in that country.

At the age of fourteen years he was taken into the employment of Sir Hugh Dalrymple, a member of the British parliament, whom he accompanied to London; and it was while in his service that he was guilty of the murder of his mistress. It appears that at the time at which he committed this offence he was in his twentieth year, and having accidentally given offence to his lady, by treading on her toe, she rebuked him in no very gentle manner. Offended by the insult which he conceived he had received, he determined to obtain a deep revenge; and seeking an opportunity, during the absence of his master from London, he proceeded to put his intention into execution by murdering his mistress.

For this offence he was brought to trial at the Old Bailey, on the 22d April 1746, when he pleaded guilty, and was sentenced to be hanged on the following Monday, the 25th of the same month. On the night before his execution he made a confession of his crime, from which the following particulars are taken:—Having called the Almighty to witness the truth of his assertion, he proceeded to enter into a history of his early life, alleging that he had always been well treated by his master and mistress, for whom he entertained the most sincere respect. On the evening of the 25th March 1746, all the other servants having quitted the house, he proceeded to bed in the apartment which was appropriated to his use. He had pulled off his shoes, and had tied up his hair with his garter, when suddenly the thought came into his head that he would kill his mistress. He directly went into the kitchen in search of an instrument to effect his object, and he took a small iron cleaver; but, returning to his chamber, he sat during a period of twenty minutes, considering whether he should commit the murder or not. His heart relented when he remembered that his mistress had been so kind to him; but then he thought that there was no one in the house who could hear him, and he determined upon perpetrating the deed. Impelled by a feeling

which he could not control, he rushed up stairs as far as the first landing-place, but there he tarried, and in his alarm returned to his bed-room. Again he felt determined upon the course which he had originally proposed, and again he had ascended the stairs on his way to his mistress's room, but once more he felt irresolute. To use his own expression, he had now determined not to commit the murder, but "the devil was so busy within him," that, in an agony of emotion, he was unable to prevail against an inward feeling, which drove him again towards his lady's room. Once he retired,—but once again he advanced,—and he had now reached the door, by which only he was separated from the object upon which he was about to commit the foul crime, of which in the sequel he was guilty. Had that door been locked all would have been well,—but no, the latch turned easily in his hand, and he stood within a yard of his victim. Still he could not kill her, and in trepidation and alarm he crept back as far as the stair-head. Again he felt the devil at work, and once more he was driven onwards to his fate. He entered the room a second time, and could distinctly hear the respirations of the unfortunate lady; he opened the curtains softly, and fancied he could see the outline of her figure. Had he had a light, he was convinced he could never have killed her. At length, however, urged by an irresistible impulse, he raised the cleaver, and yet, hesitating, he made as many as thirteen or fourteen motions in the air before he could determine to strike her,—but then he let the murderous instrument fall with redoubled force upon her head. The unhappy lady attempted to escape, but without effect, for he followed up the frightful wound which he had first inflicted with others still more dreadful, until at last she sunk exhausted on the floor and died. The only words which he heard her utter were—"Oh Lord! what is this?" And when she died, she rattled very much in the throat. He was so alarmed at this that he ran down stairs, and threw the chopper in the privy; and when he had returned to his own room, the thought struck him that he would rob the house. The idea had no sooner entered his head than he resolved to put it into execution, and, striking a light, he returned to his mistress's room. He took away some articles of jewellery from the drawers; but while he was occupied in finding them, he fancied that he heard the death-rattle still in his lady's throat, and he would have given the world to have been able to recal what had passed.

When he had purloined all that he thought was of any value, he ran out of the house; and as he passed through Holborn, he heard the watchman cry

“Past one o’clock,” from which he knew that it was more than an hour since he had first contemplated the murder. He concealed the articles which he had stolen in the lodgings of a female of his acquaintance, and returned home; but on his arrival at the door he found that he had shut himself out. He waited until the maid-servant came at six o’clock in the morning, and then, on their entering the house, appearances were perceptible, which induced the girl to suppose that there had been some strangers in the house. On her going up stairs she found that her mistress had been murdered, and she directly conveyed information of the circumstance to the police, when Henderson being at once suspected, he was taken into custody, and confessed his guilt.

The sentence was carried out in its terms; and the body of the wretched young man, after execution, was hung in chains in the Edgeware-road.

CHARLES RATCLIFFE, ESQ.

EXECUTED FOR HIGH TREASON.

THIS gentleman was a party to the designs of the Jacobinical lords whose execution we have detailed, and was taken by the Sea-horse frigate on his passage to Scotland to join the rebel forces. He had been concerned in the rebellion of 1715, and would then have been pardoned, but with fifteen others he escaped out of Newgate, and went to France. He afterwards lived in London, but was not molested; but subsequently again joining the design of the Pretender, and being seized, he was tried whether he was the same person who had been before convicted, and was found to be the same. He therefore received sentence of death, and was beheaded on Tower-hill, on the 8th of December 1746. This prisoner was one of the brothers of the Earl of Derwentwater, who was executed in 1716, as before detailed; and they were the sons of Sir Francis Ratcliffe, by Lady Mary Tudor, natural daughter of Charles the Second, by Mrs. Mary Davis.

LORD LOVAT.

BEHEADED FOR HIGH TREASON.

THIS lord, who in 1715 had been a supporter of the House of Hanover, in 1745 changed sides, and became a friend of the party which he had before opposed.

His career in life began in the year 1692, when he was appointed a captain in Lord Tullibardine's regiment, but he resigned his commission in order to prosecute his claim to be the Chief of the Frasers; in order to effect which, he laid a scheme to get possession of the heiress of Lovat, who was about to be married to a son of Lord Salton. He raised a clan, who violently seized the young lord, and, erecting a gibbet, showed it to him and his father, threatening their instant death unless they relinquished the contract made for the heiress of Lovat. To this, fearing for their lives, they consented; but still unable to get possession of the young lady, he seized the dowager Lady Lovat in her own house, caused a priest to marry them against her consent, cut her stays open with his dirk, and, assisted by his ruffians, tore off her clothes, forced her into bed, to which he followed her, and then called his companions to witness the consummation of the outrageous marriage. For this breach of the peace he was indicted, but fled from justice; but he was, nevertheless, tried for a rape, and for treason, in opposing the laws with an armed force; and sentence of outlawry was pronounced against him. Having fled to France, he turned papist, ingratiated himself with the Pretender, and was rewarded by him with a commission; but he was apprehended on the remonstrance of the English ambassador in Paris, and lodged in the Bastile, where having remained some years, he procured his liberty by taking priest's orders, under colour of which he became a Jesuit in the college of St. Omer's.

In the first rebellion of 1715 he returned to Scotland, and joining the king's troops, assisted them in seizing Inverness from the rebels; for which service he got the title of Lovat, was appointed to command, and had other favours conferred upon him. In the rebellion of which we are now treating, he turned sides, and joined the Pretender; a step treacherous in the extreme. When taken, he was old, unwieldy, and almost helpless; although in that

condition he had been possessed of infinite resources to assist the rebellion. He petitioned the Duke of Cumberland for mercy; and, hoping to work upon his feelings, recapitulated his former services, the favours that he had received from the duke's grandfather, King George I., and dwelt much upon his access to court, saying "he had carried him to whom he now sued for life in his arms, and, when a baby, held him up, while his grandsire fondled upon him."

On the 9th March 1747, however, he was taken from the Tower to Westminster Hall for trial, and the evidence adduced clearly proving his guilt to be of no ordinary character, he was convicted. He was next day brought up for judgment, and sentence of death was pronounced.

That this sentence was not ill deserved, appears from a speech of Lord Belhaven, delivered in the last parliament, held in Edinburgh in 1706, in which his lordship, speaking of this nobleman, then Captain Fraser, on occasion of the Scots plot, commonly called Fraser's plot, says "That he deserved, if practicable, to have been hanged five several times, in five different places, and upon five different accounts at least; as having been notoriously a traitor to the court of St. James's, a traitor to the court of St. Germain's, a traitor to the court of Versailles, and a traitor to his own country of Scotland; in being not only an avowed and restless enemy to the peace and quiet of its established government and constitution, both in church and state, but, likewise, a vile Proteus-like apostate, and a seducer of others in point of religion, as the tide or wind changed: and, moreover, that (abstracted from all those, his multiplied acts of treason, abroad and at home) he deserved to be hanged as a condemned criminal, outlaw, and fugitive, for the barbarous, cruel, and most flagitious rape, he had, with the assistance of some of his vile and abominable band of ruffians, violently committed on the body of a right honourable and virtuous lady, the widow of the late Lord Lovat, and sister of his Grace the late Duke of Athol. Nay, so hardened was Captain Fraser, that he audaciously erected a gallows, and threatened to hang thereon one of the said lady's brothers, and some other gentlemen of quality, who accompanied him in going to rescue him out of that criminal's cruel hand."

On the morning fixed for his execution, 9th April 1747, Lord Lovat, who was now in his 80th year, and very large and unwieldy in his person, awoke at about three o'clock, and was heard to pray with great devotion. At five o'clock he arose, and asked for a glass of wine and water, and at eight

o'clock, he desired that his wig might be sent, that the barber might have time to comb it out genteelly, and he then provided himself with a purse to hold the money which he intended for the executioner. At about half-past nine o'clock he ate heartily of minced veal, and ordered that his friends might be provided with coffee and chocolate, and at eleven o'clock the sheriff's came to demand his body. He then requested his friends to retire while he said a short prayer; but he soon called them back, and said that he was ready.

At the bottom of the first pair of stairs, General Williamson invited him into his room to rest himself, which he did, and, on his entrance, paid his respects to the company politely, and talked freely. He desired of the general, in French, that he might take leave of his lady, and thank her for her civilities; but the general told his lordship, in the same language, that she was too much affected with his lordship's misfortunes to bear the shock of seeing him, and therefore hoped his lordship would excuse her. He then took his leave, and proceeded. At the door he bowed to the spectators, and was conveyed from thence to the outer gate in the governor's coach, where he was delivered to the sheriffs, who conducted him in another coach to the house near the scaffold, in which was a room lined with black cloth, and hung with sconces, for his reception. His friends were at first denied entrance; but, upon application made by his lordship to the sheriffs for their admittance, it was granted. Soon after, his lordship, addressing himself to the sheriffs, thanked them for the favour, and, taking a paper out of his pocket, delivered it to one of them, saying he should make no speech, and that they might give the word of command when they pleased. A gentleman present beginning to read a prayer to his lordship while he was sitting, he called one of the warders to help him up, that he might kneel. He then prayed silently a short time, and afterwards sat again in his chair. Being asked by one of the sheriffs if he would refresh himself with a glass of wine, he declined it, because no warm water could be had to mix with it, and took a little burnt brandy and bitters in its stead. He requested that his clothes might be delivered to his friends with his corpse, and said for that reason he should give the executioner ten guineas. He also desired of the sheriffs that his head might be received in a cloth, and put into the coffin, which the sheriffs, after conferring with some gentlemen present, promised should be done; as also that the holding up the head at the corners of the scaffold should be dispensed with, as it had been of late years at the

execution of lords. When his lordship was going up the steps to the scaffold, assisted by two warders, he looked round, and, seeing so great a concourse of people, "God save us," says he, "why should there be such a bustle about taking off an old grey head, that cannot get up three steps without three bodies to support it?"

Turning about, and observing one of his friends much dejected, he clapped him on the shoulder, saying, "Cheer up thy heart, man! I am not afraid; why should you be so?" As soon as he came upon the scaffold, he asked for the executioner, and presented him with ten guineas in a purse, and then, desiring to see the axe, he felt the edge, and said, "he believed it would do." Soon after, he rose from the chair which was placed for him, and looked at the inscription on his coffin, and on sitting down again, he repeated from Horace,

"Dulce et decorum est pro patria mori;"

and afterwards from Ovid,

"Nam genus et proavos, et quæ non fecimus ipsi,
Vix ea nostra voco"—

He then desired all the people to stand off, except his two warders, who supported his lordship while he said a prayer; after which, he called his solicitor and agent in Scotland, Mr. W. Fraser, and, presenting his gold-headed cane, said, "I deliver you this cane in token of my sense of your faithful services, and of my committing to you all the power I have upon earth," and then embraced him. He also called for Mr. James Fraser, and said, "My dear James, I am going to heaven; but you must continue to crawl a little longer in this evil world." And, taking leave of both, he delivered his hat, wig, and clothes, to Mr. William Fraser, desiring him to see that the executioner did not touch them. He ordered his cap to be put on, and, unloosing his neckcloth and the collar of his shirt, kneeled down at the block, and pulled the cloth which was to receive his head close to him. But, being placed too near the block, the executioner desired him to remove a little further back, which, with the warders' assistance, was immediately done; and, his neck being properly placed, he told the executioner he would say a short prayer, and then give the signal by dropping his handkerchief. In this posture he remained about half a minute, and then, throwing his

handkerchief on the floor, the executioner at one blow cut off his head, which was received in the cloth, and, with his body, was put into the coffin, and carried in a hearse back to the Tower, where it was interred near the bodies of the other lords.

His lordship professed himself a papist, and, at his request, was attended by Mr. Baker, attached to the chapel of the Sardinian ambassador; and though he insisted much on the services he had done the royal family in 1715, yet he declared, but a few days before his death, that he had been concerned in all the schemes formed for restoring the house of Stuart since he was fifteen years old.

This nobleman's intellectual powers seem to have been considerable, and his learning extensive. He spoke Latin, French, and English, fluently, and other modern languages intelligibly. He studied at Aberdeen, and disputed his philosophy in Greek; and, though he was educated a protestant, yet, after three years' study of divinity and controversy, he turned papist. He maintained an appearance of that facetious disposition for which he was remarkable, to the last; and seems to have taken great pains to quit the stage, not only with decency, but with that dignity which is thought to distinguish the good conscience and the noble mind.

The following lines upon the execution of these noblemen are said to have been repeated with great energy by Dr. Johnson, although there appears to be no ground for supposing that they were the Doctor's own composition. They first appeared in the Gentleman's Magazine:

“Pitied by gentle minds, Kilmarnock died;
The brave, Balmerino, were on thy side;
Ratcliffe, unhappy in his crimes of youth,
Steady in what he still mistook for truth,
Beheld his death so decently unmoved,
The soft lamented, and the brave approved.
But Lovat's end indifferently we view,
True to no king, to no religion true:
No fair forgets the ruin he has done;
No child laments the tyrant of his son;
No Tory pities, thinking what he was;
No Whig compassions, for he left the cause;
The brave regret not, for he was not brave,
The honest mourn not, knowing him a knave.”

FRANCIS TOWNLEY, JAMES DAWSON, AND OTHERS.

EXECUTED FOR HIGH TREASON.

THESE prisoners were parties to the same plot, and all of them held ranks in the Pretender's army. Dawson had paid addresses to a young lady, to whom he was to have been married immediately after his enlargement, if the solicitations that were made for his pardon had been attended with the desired effect.

The circumstance of his love, and the melancholy that was produced by his death, are so admirably treated in the following ballad of Shenstone, that Dawson's story will probably be remembered and regretted when that of the rest of the rebels will be forgotten.

JEMMY DAWSON: A BALLAD.

Come listen to my mournful tale,
Ye tender hearts and lovers dear,
Nor will you scorn to heave a sigh,
Nor will you blush to shed a tear.

And thou, dear Kitty, peerless maid,
Do thou a pensive ear incline;
For canst thou weep at every woe,
And pity every 'plaint, but mine?

Young Dawson was a gallant youth,
A lighter never trod the plain;
And well he loved one charming maid,
And dearly was he loved again.

One tender maid, she loved him dear,
Of gentle blood the damsel came;
And faultless was her beauteous form,
And spotless was her virgin fame.

But curse on parties' hateful strife,
That led the faithful youth astray!
The day the rebel clans appear'd—
(Oh! had he never seen that day!)

Their colours and their sash he wore,
And in their fatal dress was found;
And now he must that death endure
Which gives the brave the keenest wound.

How pale was then his true-love's cheek
When Jemmy's sentence reach'd her ear!
For never yet did Alpine snows
So pale nor yet so chill, appear.

"Yet, might sweet mercy find a place,
And bring relief to Jemmy's woes,
O George! without a prayer for thee
My orisons should never close.

"The gracious prince that gives him life
Would crown a never-dying flame;
And every tender babe I bore
Should learn to lisp the giver's name.

"But though, dear youth, thou shouldst be dragg'd
To yonder ignominious tree,
Thou shalt not want a faithful friend
To share thy bitter fate with thee."

O, then her mourning-coach was call'd;

The sledge moved slowly on before;—
Though borne in a triumphal car,
She had not loved her favourite more.

She follow'd him, prepared to view
The terrible behests of law;
And the last scene of Jemmy's woes,
With calm and steadfast eyes she saw.

Distorted was that blooming face
Which she had fondly loved so long,
And stifled was that tuneful breath
Which in her praise had sweetly sung;

And sever'd was that beauteous neck
Round which her arms had fondly closed;
And mangled was that beauteous breast
On which her love-sick head reposed;—

And ravish'd was that constant heart
She did to every heart prefer;
For, though it could his king forget,
'Twas true and loyal still to her.

Amidst those unrelenting flames
She bore this constant heart to see;
But, when 'twas moulder'd into dust,
"Yet, yet," she cried, "I'll follow thee!

"My death, my death, can only show
The pure and lasting love I bore;
Accept, O Heaven! of woes like ours,
And let us—let us weep no more."

The dismal scene was o'er and past,
The lover's mournful hearse retired;
The maid drew back her languid head,
And, sighing forth his name, expired.

Though justice ever must prevail,
The tear my Kitty sheds is due;
For seldom shall we hear a tale
So sad, so tender, and so true.

These offenders were hanged on Kennington Common. They had not hung above five minutes when Townley was cut down, being yet alive: and his body being placed on the block, the executioner chopped off his head with a cleaver. His heart and bowels were then taken out, and thrown into

the fire; and the other parties being separately treated in the same manner, the executioner cried out, "God save King George!"

The bodies were quartered, and delivered to the keepers of the New Jail, who buried them: the heads of some of the parties were sent to Carlisle and Manchester, where they were exposed; but those of Townley and another were fixed on Temple Bar, and after remaining some time, fell down.

It would be useless to attempt to enumerate the other persons whose crimes and misfortunes at this time consigned them to the gibbet; but some account of the escape of the Pretender may not be uninteresting. It would appear that the battle of Culloden having decided the fate of his cause, where the Pretender had his horse shot under him by one of the king's

troopers as he was endeavouring to rally his soldiers, he retired to the house of a factor of Lord Lovat, at about ten miles from Inverness, where he met with that lord and supped with him. After supper he started on his journey to Fort Augustus, and next day went on to Invergarry. A boy, whom he found there caught him a salmon and he dined, and afterwards waited for some of his troops, who had promised to meet him there. Being disappointed, however, in his object, he proceeded to Lockhartie, and he arrived there on the 18th of April, at about two in the morning, and slept, but at five he set out on foot, and travelled through the Glen of Morar, where he arrived at four the next morning. He reached Arrashag in twelve hours after, and was there joined by Captain O'Neil on the 27th, who informed him that his cause was hopeless, and recommended him, therefore, to sail at once for France. One Donald M'Leod was engaged to hire a ship, and on the 28th the Chevalier went on board an eight-oared boat, in company with Sullivan and O'Neil, ordering the people who belonged to the boat to make the best haste they could to Stornoway, where it was proposed they should take ship. The night proving very tempestuous, they all begged of him to go back, which he would not do; but to keep up the spirits of the people, he sang them a Highland song. The weather growing worse and worse, about seven in the morning of the 29th, they were driven on shore on a point of land called Rushness, in the island of Benbecula, where, when they got on shore, the Pretender helped to make a fire to warm the crew, who were almost starved to death with cold. On the 30th, at six in the evening, they set sail again for Stornoway, but meeting with another storm, were obliged to put into the island of Scalpa, in the Harris, where they all went on shore to a farmer's house, passing for merchants that were shipwrecked in their voyage to the Orkneys: the Pretender and Sullivan going by the name of Sinclair, the latter passing for the father, and the former for his son. They thought proper to send from thence to Stornoway, with instructions to freight a ship for the Orkneys; and on the 3d of May they received a message that a ship was ready. On the 4th they set out for that place, where they arrived on the 5th about noon, but meeting with their messenger, Donald M'Leod, they found that he had got into company, and told a friend of his for whom he had hired the ship; upon which there were two hundred people in arms at Stornoway, upon a report that the Pretender was landed with five hundred men, and was coming to burn the town; so that they were obliged to lie all night upon the moor, with

no other refreshment than biscuit and brandy. On the 6th they resolved to go in the eight-oared boat to the Orkneys; but the crew refused to venture, so that they were obliged to steer south along the coast-side, where they met with two English ships; and this compelled them to put into a desert island, where they remained till the 10th, without any provision but some salt fish they found upon the place. About ten in the morning of that day they embarked for the Harris, and at break of day on the 11th they were chased by an English vessel, but made their escape among the rocks. About four in the afternoon they arrived on the island of Benbecula, where they remained till the 14th, and then they set out for the mountain of Currada, in South Uist, where they staid till the militia of the Isle of Skye came to the island of Irasky. They now sailed for the island of Uia, where they remained three nights, till, having intelligence that the militia were coming towards Benbecula, they immediately got into their boat, and sailed for Lochbusdale. Being met, however, by some ships of war, they were obliged to return to Lochagnart, and at night sailed for Lochbusdale; upon arriving at which place they staid eight days on a rock, making a tent of the sail of the boat. They found themselves here in a most dreadful situation; for, having intelligence that Captain Scott had landed at Kilbride, they were obliged to separate, and the Pretender and O'Neil went to the mountains, where they remained all night, and soon after were informed that General Campbell was at Bernary; so that now they had forces very near on both sides of them, and were absolutely at a loss which way to move. In their road they met with a young lady, one Miss M'Donald, to whom Captain O'Neil proposed assisting the Pretender to make his escape, which at first she refused; but, upon his offering to put on women's clothes, she consented, and desired them to go to the mountain of Currada till she sent for them. They accordingly there staid two days; but hearing nothing from the young lady, the Pretender concluded she would not keep her word, and therefore resolved to send Captain O'Neil to General Campbell, to let him know he was willing to surrender to him; but about five o'clock in the evening a message came from the young lady, desiring them to meet her at Rushness. Being afraid to pass by the Ford, because of the militia, they luckily found a boat, which carried them to the other side of Uia, where they remained part of the next day, afraid of being seen by the country people. In the evening they set out for Rushness, and arrived there at twelve at night; but not finding the young lady, and being alarmed by a boat full of

militia, they were obliged to retire two miles back, where the Pretender remained on a moor till O'Neil went to the young lady, and prevailed upon her to come to the place appointed at night-fall of the next day. About an hour after, they had an account of General Campbell's arrival at Benbecula, which obliged them to move to another part of the island, where, as the day broke, they discovered four sail close on the shore, making directly up to the place where they were; so that there was nothing left for them but to throw themselves among the heath. When the wherries were gone, they resolved to go to Clanronald's house; but when they were within a mile of it, they heard General Campbell was there, which forced them to, retreat again. The young Pretender having at length, with the assistance of Captain O'Neil, found Miss M'Donald in a cottage near the place appointed, it was there determined that he should put on women's clothes and pass for her waiting-maid. This being done, he took leave of Sullivan and O'Neil with great regret, who departed to shift for themselves, leaving him and his new mistress in the cottage, where they continued some days, during which she cured him of the itch. Upon intelligence that General Campbell was gone further into the country, they removed to her cousin's, and spent the night in preparing for their departure to the Isle of Skye: and they set out the next morning for that place, with only one man-servant, named M'Lean, and two rowers. During their voyage they were pursued by a small vessel; but a thick fog rising, they arrived safe at midnight in that island, and landed at the foot of a rock, where the lady and her maid waited while her man M'Lean went to see if Sir Alexander M'Donald was at home. M'Lean found his way thither, but lost it in returning; and his mistress and her maid, after in vain expecting him the whole night, were obliged in the morning to leave the rock, and go in the boat up the creek to some distance, to avoid the militia which guarded the coast. They went on shore again about ten o'clock, and, attended by the rowers, inquired the way to Sir Alexander's. When they had gone about two miles, they met M'Lean; and he told his lady that Sir Alexander was with the Duke of Cumberland, but his lady was at home, and would do them all the service she could. They then immediately discharged their boat, and went directly to the house, where they remained two days, being always in her ladyship's chamber, except at night, to prevent a discovery. But a party of the M'Leods, having intelligence that some strangers were arrived at Sir Alexander's, and knowing his lady to be well affected to the Pretender, came thither, and

demanding to see the new-comers, were introduced to Miss's chamber, where she sat with her new maid. The latter, hearing the militia were at the door, had the presence of mind to get up and open it, which occasioned his being the less noticed; and after they had narrowly searched the chests, they withdrew. The inquiry, however, alarmed the young lady, and the next day she sent her apparent maid to a steward of Sir Alexander's: but hearing that his being in the island was known, he removed to Macdonald's, at Kingsborough, ten miles distant, where he remained but one day; for on receiving intelligence that it was rumoured that he was disguised in a woman's habit, Macdonald furnished him with a suit of his own clothes, and he went in a boat to M'Leod's at Raza. No prospect of escaping to France, however, presented itself there, and he returned to the Isle of Skye, being thirty miles, with no attendant but a ferryman, M'Leod assuring him that the elder Laird of Mackinnon would there render him all the service in his power. On his reaching M'Kinnon's, the old man instantly knew him, and advised him to go to Lochaber; and he accordingly proceeded thither in a vessel procured for that purpose. M'Donald, at the head of one hundred resolute Highlanders, then appeared to assist him, and after roving about with them from place to place, he at length removed to Badenoch. He was there very much harassed by the King's troops, and losing many of his men in the skirmishes which daily took place, they were at length obliged to disperse; and the Pretender, with Lochiel of Barrisdale and some others, skulked about in Moidart. Here they received information that two French privateers were at anchor in Lochnanaugh, in one of which, *L'Heureux*, this unfortunate prince eventually embarked, with twenty-three gentlemen, and one hundred and seven soldiers, and soon after arrived safely in France.

WILLIAM YORK,

**AGED TEN YEARS, CONVICTED OF MURDERING SUSAN MAHEW, AGED FIVE
YEARS.**

THIS unhappy child was but ten years of age when he committed the dreadful crime of which he was convicted. He was a pauper in the poorhouse belonging to the parish of Eye, in Suffolk, and was committed, on the coroner's inquest, to Ipswich jail, for the murder of Susan Mahew, another child, of five years of age, who had been his bedfellow. The following is his confession, taken by a justice of the peace, and which was, in part, proved on the trial, with many corroborating circumstances of his guilt.

He said that a trifling quarrel happening between them on the 13th of May 1748, about ten in the morning, he struck her with his open hand, and made her cry: that she going out of the house to the dunghill, opposite to the door, he followed her, with a hook in his hand, with an intent to kill her; but before he came up to her, he set down the hook, and went into the house for a knife. He then came out again, took hold of the girl's left hand, and cut her wrist all round to the bone, and then threw her down, and cut her to the bone just above the elbow of the same arm. That, after this, he set his foot upon her stomach, and cut her right arm round about, and to the bone, both on the wrist and above the elbow. That he still thought she would not die, and therefore took the hook and cut her left thigh to the bone. His next care was to conceal the murder for which purpose he filled a pail with water at a ditch, and washing the blood off the child's body, buried it in the dunghill, together with the blood that was spilled upon the child's clothes, and then went and got his breakfast. When he was examined, he showed very little concern, and appeared easy and cheerful. All he alleged was, that the child fouled the bed in which they lay together; that she was sulky, and that he did not like her.

The boy was found guilty, and sentenced to death; but he was respited from time to time on account of his tender years, and at length pardoned.

**BENJAMIN TAPNER, JOHN COBBY, JOHN HAMMOND,
RICHARD MILLS, RICHARD MILLS THE YOUNGER,
AND OTHERS.**

EXECUTED FOR MURDER.

WE do not recollect ever to have heard of a case exhibiting greater brutality on the part of the murderers towards their victim than this. The offenders were all smugglers, and the unfortunate objects of their crime were a custom-house officer, and a shoemaker, named respectively William Galley and Daniel Chater. It would appear that a daring and very extensive robbery having been committed at the custom-house at Poole, Galley and Chater were sent to Stanstead in Sussex, to give some information to Major Battine, a magistrate, in reference to the circumstance. They did not, however, return to their homes, and on inquiry, it turned out that they had been brutally murdered, the body of Galley being traced, by means of bloodhounds, to be buried, while that of Chater was discovered at a distance of six miles, in a well in Harris' Wood, near Leigh, in Lady Holt's Park, covered up with a quantity of stones, wooden railings, and earth.

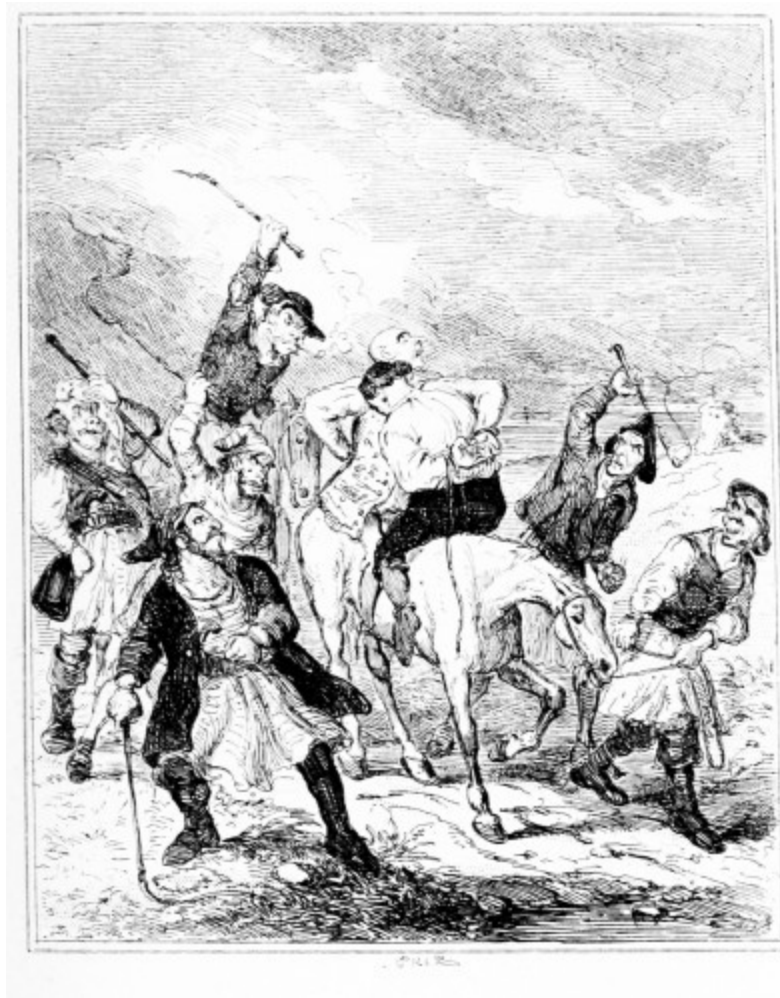
At a special commission held at Chichester, on the 16th of January 1749, the prisoners Benjamin Tapner, John Cobby, John Hammond, William Carter, Richard Mills the elder, and Richard Mills the younger, were indicted for the murder of Daniel Chater; the three first as principals, and the others as accessories before the fact; and William Jackson and William Carter were indicted for the murder of William Galley.

From the evidence adduced, the circumstances of this most horrid murder were proved, and it appeared that the two deceased persons having passed Havant on their road to Stanstead, went to the New Inn at Leigh, where they met one Austin, and his brother and brother-in-law, of whom they asked the road, and they conducted them to Rowland's Castle, where, they said, they might obtain better information. They went into the White Hart, and Mrs. Payne, the landlady, suspecting the object of their mission, sent for the prisoners Jackson and Carter, and they were soon after joined by some others of the gang. After they had been all sitting together, Carter

called Chater out, and demanded to know where Diamond, one of those suspected of the robbery, was? Chater replied that he was in custody, and that he was going against his will to give evidence against him. Galley, following them into the yard, was knocked down by Carter, on his calling Chater away, and they then returned in-doors. The smugglers now pretended to be sorry for what had occurred, and desired Galley to drink some rum, and they persisted in plying him and Chater with liquor until they were both intoxicated. They were then persuaded to lie down and sleep, and a letter to Major Battine, of which they were the bearers, was taken from them, read, and destroyed.

One John Royce, a smuggler, now came in, and Jackson and Carter told him the contents of the letter, and said that they had got the old rogue, the shoemaker of Fording-bridge, who was going to inform against John Diamond, the shepherd, then in custody at Chichester. Here William Steele proposed to take them both to a well about two hundred yards from the house, and to murder and throw them in; but this was rejected, and after several propositions had been made as to the mode in which they should be disposed of, the scene of cruelty was commenced by Jackson, who, putting on his spurs, jumped upon the bed where they lay, and spurred their foreheads, and then whipped them; so that they both got up bleeding. The smugglers then took them out of the house, and Mills swore he would shoot any one who followed or said anything of what had occurred.

Meanwhile, the rest put Galley and Chater on one horse, tied their legs under the horse's belly, and then tied the legs of both together. They now set forward, with the exception of Royce, who had no horse; and they had not gone above two hundred yards, before Jackson called out "Whip 'em, cut 'em, slash 'em, d—n 'em!" upon which, all began to whip except Steele, who led the horse, the roads being very bad. They whipped them for half a mile, till they came to Woodash, where they fell off, with their heads under the horse's belly; and their legs, which were tied, appeared over the horse's back. Their tormentors soon set them upright again, and continued whipping them over the head, face, shoulders, &c., till they came to Dean, upwards of half a mile farther; and here they both fell again as before, with their heads under the horse's belly, which were struck at every step by the horse's hoofs.



Upon placing them again in the saddle, the villains found them so weak that they could not sit; upon which they separated them, and put Galley before Steele, and Chater before little Sam; and then whipped Galley so severely, that, the lashes coming upon Steele, at his desire they desisted. They then went to Harris'-well, and threatened to throw Galley in; but when he desired that they would put an end to his misery at once, "No," said Jackson, "if that's the case, we have something more to say to you;" and they thereupon put him on the horse again, and whipped him over the Downs until he was so weak that he fell off. They next laid him across the horse, and little Sam, getting up behind him, subjected him to such cruelty as made him groan with the most excruciating torments, and he fell off again. Being again put up astride, Richards got up behind him; but the poor

man soon cried out, "I fall, I fall," and Richards pushed him with force, saying, "Fall, and be d—d!" The unhappy man then turned over and expired; and they threw the body over the horse, and carried it off with them to the house of one Scardefield, who kept the Red Lion at Rake. The landlord remarking the condition of Chater, and Galley's body, the fellows told him that they had engaged with some officers, had lost their tea, and that some of them were wounded, if not dead. This was sufficient, and Jackson and Carter carried Chater down to the house of the elder Mills, where they chained him up in a turf-house. Their companions, in the mean time, drank gin and brandy at Scardefield's, and it being now nearly dark, they borrowed spades, and a candle and lantern, and making him assist them in digging a hole, they buried the body of the murdered officer. They then separated; but on the Thursday they met again with some more of their associates, including the prisoners Richard Mills, and his two sons Richard and John, Thomas Stringer, Cobby, Tapner, and Hammond, for the purpose of deliberating what should be done with their prisoner. It was soon unanimously resolved that he must be destroyed, and it was determined that they should take him to Harris'-well and throw him in, as it was considered that that death would be most likely to cause him the greatest pain.

During this time the wretched man was in a state of the utmost horror and misery, being visited occasionally by all his tormentors, who abused him, and beat him violently. At last, when this determination had been arrived at, they all went, and Tapner pulling out a clasp-knife, ordered him on his knees, swearing that he would be his butcher; but being dissuaded from this, as being opposed to their plan to prolong the miseries of their prisoner, he contented himself with slashing the knife across his eyes, almost cutting them out, and completely severing the gristle of his nose. They then placed him upon a horse, and all set out together for Harris'-well, except Mills and his sons, they having no horses ready, and saying, in excuse, "that there were enough without them to murder one man." All the way Tapner whipped him till the blood came; and then swore that if he blooded the saddle, he would torture him the more. When they were come within one hundred yards of the well, Jackson and Carter stopped, saying to Tapner, Cobby, Stringer, Steele, and Hammond, "Go on and do your duty on Chater, as we have ours upon Galley." It was in the dead of the night that they brought their victim to the well, which was nearly thirty feet deep, but dry, and paled close round; and Tapner having fastened a noose round his

neck, they bade him get over the pales. He was going through a broken place; but though he was covered with blood and fainting with the anguish of his wounds, they forced him to climb up, having the rope about his neck. They then tied one end of the cord to the pales and pushed him over the brink; but the rope being short, he hung no farther within it than his thighs, and leaning against the edge, he hung above a quarter of an hour and was not strangled. They then untied him, and threw him head foremost into the well. They tarried some time, and hearing him groan, they determined to go to one William Comleah's, a gardener, to borrow a rope and ladder, saying they wanted to relieve one of their companions who had fallen into Harris'-well. He said they might take them; but they could not manage the ladder in their confusion, it being a long one. They then returned to the well; and still hearing him groan, and fearful that the sound might lead to a discovery, the place being near the road, they threw upon him some of the rails and gate-posts fixed about the well, as well as some great stones; and then finding him silent, they left him. Their next consultation was how to dispose of their horses; and they killed Galley's, which was grey, and taking his hide off, cut it into small pieces, and hid them so as to prevent any discovery; but a bay horse that Chater had ridden on got from them.

This being the evidence produced, the jury, after being out of court about a quarter of an hour, brought in a verdict of guilty against all the prisoners: whereupon the judge pronounced sentence on the convicts in a most pathetic address, representing the enormity of their crime, and exhorting them to make immediate preparation for the awful fate that awaited them; adding, "Christian charity obliges me to tell you that your time in this world will be very short."

The heinousness of the crime of which these men had been convicted rendering it necessary that their punishment should be exemplary, the judge ordered that they should be executed on the following day; and the sentence was accordingly carried into execution against all but Jackson, who died in prison on the evening that he was condemned. They were attended by two ministers; and all, except Mills and his son (who took no notice of each other, and thought themselves not guilty because they were not present at the finishing of the inhuman murder), showed great marks of penitence. Tapner and Carter gave good advice to the spectators, and desired diligence might be used to apprehend Richards, whom they charged as the cause of their being brought to this wretched end. Young Mills smiled several times

at the executioner, who was a discharged marine, and having ropes too short for some of them, was puzzled to fit them. Old Mills being forced to stand tiptoe to reach the halter, desired that he might not be hanged by inches. The two Mills were so rejoiced at being told that they were not to be hanged in chains after execution, that death seemed to excite in them no terror; while Jackson was so struck with horror at being measured for his irons, that he soon expired.

They were hanged at Chichester on the 18th of January 1749, amidst such a concourse of spectators as is seldom seen on the occasion of a public execution.

Carter was hung in chains near Rake, in Sussex; Tapner, on Rook's Hill, near Chichester; and Cobby and Hammond, at Cesley Isle, on the beach where they sometimes landed their smuggled goods, and where they could be seen at a great distance east and west.

**SAMUEL COUCHMAN AND JOHN MORGAN, LIEUTENANTS
OF MARINES; THOMAS KNIGHT, CARPENTER, AND OTHERS.**

SHOT FOR MUTINY.

THE *Chesterfield* man-of-war, under the command of Captain O'Brian Dudley, was stationed off Cape-coast Castle, on the coast of Africa, when a dangerous mutiny broke out among the crew, of whom the above-named officers were the leaders. They were charged on their trial with "exciting and encouraging mutiny, and running away with his Majesty's ship *Chesterfield*, on the 10th day of October 1748, from the coast of Africa, leaving their captain, two lieutenants, with other officers, and some seamen, on shore."

It appeared from the evidence adduced before the court-martial, by which the prisoners were tried, and which was presided over by Sir Edward Hawke, that on the 15th October 1748, Captain Dudley, being on shore at Cape-coast Castle, sent off his barge to Lieutenant Couchman, ordering him to send the cutter with the boatswain of the ship, to see the tents struck, and to bring everything belonging to the ship on board that night. Couchman, however, directly ordered the barge to be hoisted in, and the boatswain to turn all hands on the quarter-deck, and then coming from his cabin with a drawn sword, said, "Here I am! God d—n me, I will stand by you while I have a drop of blood in my body!" He was accompanied by John Morgan, the second lieutenant of marines, Thomas Knight the carpenter, his mate John Place (a principal actor), and about thirty seamen with cutlasses. They then gave three huzzas, and threw their hats overboard; damning old hats, and saying that they would soon get new. Couchman now sent for the boatswain, to know if he would stand by him, and go with him; but he replied "No," and said,

"For God's sake, sir, be ruled by reason, and consider what you are about." Couchman threatened to put him in irons if he did not join with him; but the boatswain told him he never would be in such piratical designs, and he was immediately ordered into custody, and two sentinels put over him. Couchman soon after sent for Gilham, the mate of the ship; but he also

refusing to join him, was put into custody with five or six others. They were confined, however, only five or six hours; for, in the middle of the night after their confinement, Couchman sent for them into the great cabin, desired them to sit and drink punch, and then dismissed them. The next day the boatswain was invited to dinner by the new commander, who began to rail against Captain Dudley, and proposed to him to sign a paper. He refused indignantly, and was immediately dismissed. When he quitted the great cabin, he went to the gunner, who informed him that he had twenty pistols still at his disposal, and it was determined that an effort should be made that night to recover the ship from the mutineers. When evening drew on, the boatswain proceeded to sound the ship's company, and he soon found about thirty of the seamen, besides the mates, gunner's mates, and cockswain of the barge, ready to aid him. The boatswain took the command on himself, and the first step which he took was to get up all the irons or bilboes on the forecastle; he then sent for the twenty pistols, which were all loaded; he next ordered three men upon the grand magazine, and two to that abaft; and the remainder, who had no pistols, to stay by the bilboes, and secure as many prisoners as he should send. This disposition being made, he went directly down on the deck, where he divided his small company into two parties; and, one going down the main, and the other the fore hatchway, they soon secured eleven or twelve of the ringleaders, and sent them up to the forecastle without the least noise. The two parties then joined, and went directly to the great cabin, where they secured Couchman and Morgan, with the carpenter, whom they immediately confined in different parts of the vessel. The ship being thus secured, the captain again boarded her and took the command of her; and on her return to England the mutineers were brought to trial.

The court-martial having found them guilty of the crimes imputed to them, they were shot in the month of June 1749.

The boatswain (Roger Winket) was afterwards rewarded with three hundred pounds a year, as master-attendant of Woolwich-dockyard.

JOHN MILLS.

EXECUTED FOR MURDER.

THE case of this felon becomes remarkable from the fact of the criminal being the son of Richard Mills the elder, whose ignominious fate we have just recorded. It appears that he was engaged in the robbery of the Custom-house, but escaped; and soon after his father, brother, and their accomplices were hanged, he thought of going to Bristol, with a view of embarking for France; and having hinted his intentions to some others, they resolved to accompany him. Stopping at a house on the road, they met with one Richard Hawkins, whom they asked to go with them; but the poor fellow hesitating, they put him on horseback behind Mills, and carried him to the Dog and Partridge, on Slendon Common, which was kept by John Reynolds. They had not been long in the house when complaint was made that two bags of tea had been stolen, and Hawkins was charged with the robbery. He steadily denied any knowledge of the affair; but they obliged him to pull off his clothes; and, having stripped themselves, they began to whip him with the most unrelenting barbarity; and Curtis, one of the gang, said he did know of the robbery, and if he would not confess, he would whip him till he did; for he had whipped many a rogue, and washed his hands in his blood.

The villains continued whipping the poor wretch till their breath was almost exhausted, when at length the unfortunate man mentioned something of his father and brother; on which Mills and Curtis said they would go and fetch them; but Hawkins expired soon after they had left the house.

On their way back they met Winter, one of their companions, who informed them of this fact, when they dismissed the men whom they had compelled to accompany them, saying that they should be sent for when they were wanted. Their next anxiety was as to the mode in which they should dispose of the body, and it was proposed to throw it into a well in an adjacent park; but this being objected to, they carried it twelve miles, and having tied stones to it in order to sink it, they threw it into a pond in Parham Park, belonging to Sir Cecil Bishop; and in this place it lay more than two months before it was discovered.

Mills was afterwards taken into custody on the information of Pring, an outlawed smuggler, and being tried, was convicted.

The country being at that time filled with smugglers, a rescue was feared; wherefore he was conducted to the place of execution by a guard of soldiers. When there, he prayed with a clergyman, confessed that he had led a bad life, acknowledged the murder of Hawkins, desired that all young people would take warning by his untimely end, and humbly implored the forgiveness of God. He was executed on Slendon Common on the 12th of August 1749, and afterwards hung in chains on the same spot.

AMY HUTCHINSON.

BURNT FOR THE MURDER OF HER HUSBAND.

THIS malefactor was born of indigent parents, in the Isle of Ely, and having received a poor education, at the age of sixteen she attracted the attention of a young man, whose love she returned with equal affection. Her father, being apprised of the connexion, strictly charged his daughter to decline it: but there was no arguing against love; the intimacy continued till it became criminal. The young fellow having soon grown tired of her, went off to London, and she determined to revenge herself upon him for his infidelity, by marrying another suitor, named John Hutchinson, who had previously been disagreeable to her. The marriage accordingly took place; but her first admirer happening to return from London just as the newly-wedded pair were coming out of church, the bride was greatly affected at the recollection of former scenes, and the irrevocable ceremony which had now passed. Unable to love the man she had married, she doted to distraction on him she had lost, and, only a few days after her marriage, admitted him to his former intimacy with her. Hutchinson becoming jealous of his wife, a quarrel ensued, in consequence of which he beat her with great severity; but this producing no alteration in her conduct, he had recourse to drinking, with a view to avoid the pain of reflection on his situation. In the interim his wife and the young fellow continued their guilty intercourse uninterrupted; but, considering the life of her husband as a bar to their happiness, it was resolved to remove him by poison. For this purpose the wife purchased a quantity of arsenic; and Mr. Hutchinson being afflicted with an ague, and wishing for something warm to drink, she put some arsenic in ale, of which he drank very plentifully; and then she left him, saying she would go and buy something for his dinner. Meeting her lover, she acquainted him with what had passed; on which he advised her to buy more poison, fearing the first might not be sufficient to operate; but its effects were fatal, and Hutchinson died about dinner-time on the same day. The deceased was buried on the following Sunday, and the next day the former lover renewed his visits; which occasioning the neighbours to talk

very freely of the affair, the young widow was taken into custody on suspicion of having committed the murder.

The body being exhumed, it was found that death had been caused by poison, and the prisoner was convicted and sentenced to death.

She was strangled and burned at Ely, on the 7th November 1750, confessing the crime of which she had been found guilty.

JOHN CARR.

EXECUTED FOR FORGERY.

THIS offender was born of respectable parents, who gave him a good education, in the North of Ireland. Having gone to Dublin at the age of sixteen years, he soon afterwards entered into business as a wine-merchant; but being uncontrolled, he fell into bad habits and company, and was compelled to give up his trade. An associate inviting him to join him at Kilkenny, he proceeded thither by coach, and seeing a lady in the conveyance, the elegance of her appearance and manners impressed him with an idea that she was of rank. He determined, if possible, to profit by the opportunity afforded him. He handed her into the inn, and a proposal being made that the company should sup together, it was agreed to on all hands; and while the supper was preparing, Carr applied himself to the coachman to learn the history of the young lady; but all the information he could obtain was, that he had taken her up at Dublin, and that she was going to the Spa at Mallow. He was determined, however, to become better acquainted with her, and prevailed on the company to repose themselves the next day at Kilkenny, and take a view of the Duke of Ormond's seat, and the curiosities of the town. This proposal being acceded to, the evening was spent in the utmost harmony and good-humour; and the fair stranger even then conceived an idea of making a conquest of Mr. Carr, from whose appearance she was induced to suppose that he was a man of distinction. It was now "diamond cut diamond," and in the morning the fair incognita dressed herself to great advantage, not forgetting the ornament of jewels, which she wore in abundance; so that when she entered the room, Carr was astonished at her appearance. She found the influence she had over him, and resolved to afford him an early opportunity of speaking his sentiments; and while the company were walking in the gallery of the Duke of Ormond's palace, an occasion presented itself, which was not lost by either party. The lady at first affected displeasure at so explicit a declaration; but, soon assuming a more affable deportment, she told him she was an Englishwoman of rank; that his person was not disagreeable to her; and that, if he was a man of fortune and the consent of her relations could be

obtained, she should not be averse to listening to his addresses. She further said that she was going to spend part of the summer at Mallow, where his company would be agreeable; and he followed her to that place, contrary to the advice of his friend, who had formed a very unfavourable opinion of the lady's character.

It is needless to say that the company of so refined and elegant a person was not to be kept without some expenses, which were not of a very moderate character, and the difficulties in which our hero had already placed himself were in nowise diminished by his new connexion. He remained with her, however, until the end of the season induced them to return to Dublin; and then a trip to England was proposed, preparatory to the final steps being taken to complete the nuptial arrangements. The gallantry and wits of the gentleman were sorely tested to procure the requisite funds for the trip; but he at length succeeded in obtaining such a sum as he and the lady deemed sufficient. The passage only remained to be secured, and the too credulous sharper was employed in obtaining it; but in his absence the lady shipped all the effects on board a vessel bound for Amsterdam, and, having dressed herself in man's apparel, she embarked and sailed, leaving Carr to regret his ill-judged credulity.

Thus reduced to want, he went to London, and having enlisted as a foot-soldier, he was discharged after several years' service. He subsequently entered as a marine, but soon afterwards came to London again, and opened a shop in Hog-lane, St. Giles's. He now married a girl who he thought had money; but soon discovering her poverty, he abandoned her, and removed to Short's Gardens, where he entered into partnership with a cork-cutter; but having obtained the promise of support from his partner's customers, he set up on his own account, and was tolerably successful, though his passion for gambling prevented his retaining any part of the produce of his business. His new companions at the gaming-table, having an eye to their own profit, offered to procure him a wife of fortune, though they knew he had a wife living, and actually contrived to introduce him to a young lady of property, with whom a marriage would probably have taken place, but that one of them, struck with remorse of conscience, developed the affair to her father, and frustrated the whole scheme. Being now again thrown upon his own resources, he engaged himself as porter to a merchant; but while in this condition, his master having entrusted him with a check, for sixty pounds, he procured it to be cashed, and having spent the money in the lowest

debauchery, he again entered as a marine. There being something in his deportment superior to the vulgar, he was advanced to the rank of sergeant, in which he behaved so well that his officers treated him with considerable favour.

The vessel in which he sailed was of considerable power, and taking a merchant-ship richly laden, and soon afterwards several smaller vessels, the prize-money amounted to a considerable sum. This gave Carr an idea that very great advantages might be obtained by privateering, and having procured a discharge, he entered on board a privateer, and was made master-at-arms. In a few days the privateer took two French ships, one of which they carried to Bristol, and the other into the harbour of Poole; and refitting their ship, they sailed again, and in two days took a French privateer, and gave chase to three others, which they found to have been English vessels belonging to Falmouth, which had been captured by a French privateer. These they retook, and carried them into Falmouth; in their passage to which place they made prize of a valuable French ship, the produce of which contributed to enrich the crew. On their next trip, they saw a ship in full chase of them, on which they prepared for a vigorous defence; and an action soon after taking place, many hands were lost by the French, who at length attempted to sheer off, but were taken after a chase of some leagues.

The commander of the English privateer, being desperately wounded in the engagement, died in a few days; on which Carr courted his widow, and a marriage would have taken place, but that she was seized with a violent fever, which deprived her of life—but not before she had bequeathed him all she was possessed of. Having disposed of her effects, he repaired to London, where he commenced smuggler: but his ill-gotten goods being seized on by the officers of the revenue, he took to the still more dangerous practice of forging seamen's wills, and gained money thus for some time; but, being apprehended, he was brought to trial at the Old Bailey convicted, and was sentenced to die.

He was of the Romish persuasion, and died with decent resignation to his fate.

Carr was hanged at Tyburn on the 16th of November 1750.

“To Mr. Fleetwood, in Lincoln’s-Inn-Fields, Master of the Theatre, Drury Lane.

“SIR,—We are willing to admonish you, before we attempt our design: and provided you use us civil, and admit us into our gallery, which is our property, according to formalities; and if you think proper to come to a composition this way, you’ll hear no further; and if not, our intention is to combine in a body, *incognito*, and reduce the playhouse to the ground; valuing no detection—we are indemnified!”

The manager carried this letter to the Lord Chamberlain, who ordered a detachment of fifty soldiers to do duty there each night, and thus deterred the saucy knaves from carrying their threats into execution.

At the Edinburgh theatre it was also a custom to admit men wearing the badge of servitude into the gallery *gratis*; and when Garrick’s inimitable farce, “High Life Below Stairs,” wherein the waste and impudence of domestic servants of rich men is completely exposed, was performed there, a most violent clamour broke out in the gallery, so as entirely to interrupt the performance, and put the other part of the audience in fear of the consequences. The hardy Scotchmen, however, laid hold of the rioters, and kicked every footman, who alone were concerned, out of the house, where, without paying, they never more entered.

Having thus referred to an evil which existed in 1751, and which even to this moment continues to exist to a considerable extent, namely the over bearing insolence of the fellows who usually fill the situations of domestic servants in the families of the rich, it is time to proceed to the history of the subject of this sketch. Ross was born of decent parents in Inverness, and received an education by which he would have been fitted to fill a situation in a merchant’s counting-house. The difficulty in obtaining such employment, however, induced him to enter the service of a lady, who had always exhibited great kindness towards his family; and he soon afterwards accompanied her son to the Continent in the capacity of *valet-de-chambre*. He continued in this situation during about five years, when he returned to Scotland, and was employed by an attorney in Edinburgh; but having contracted an intimacy among other servants, from their instruction he acquired all the fashionable habits of drinking, swearing, and gaming, and was dismissed on account of his impudence, and the irregularities of his conduct.

He was subsequently engaged by a Mrs. Hume, a widow lady of good fortune, whose residence, during the summer, was at Ayton, a village about four miles from Berwick-upon-Tweed. The extravagance of our hero, and an unfortunate intercourse which he had with a fellow-servant, soon compelled him to look for some other means of procuring money, besides that which was honestly afforded him by his mistress; and having exhausted the patience of his friends by borrowing from them repeatedly, he formed the resolution of robbing his employer. It would appear that Mrs. Hume slept in a room on the first floor, and that the keys of her bureau were usually placed under her head for safety. Sunday night was the time fixed upon for the commission of the robbery, and, waiting in his bed-room without undressing himself, till he judged the family to be asleep, he descended, and leaving his shoes in the passage, proceeded to his lady's bed-chamber. Upon his endeavouring to get possession of the keys, the lady was disturbed, and being dreadfully alarmed, called for assistance; but the rest of the family lying at a distant part of the house, her screams were not heard. Ross immediately seized a clasp-knife that lay on the table, and cut his mistress's throat in a most dreadful manner. This horrid act was no sooner perpetrated than, without waiting to put on his shoes, or to secure either money or other effects, he leaped out of the window, and after travelling several miles, concealed himself in a field of corn.

In the morning the gardener discovered a livery hat, which the murderer had dropped in descending from the window; and, suspecting that something extraordinary had happened, he alarmed his fellow-servants. The disturbance in the house brought the two daughters of Mrs. Hume down stairs; but no words can express the horror and consternation of the young ladies upon beholding their parent weltering in her blood, and the fatal instrument of death lying on the floor.

Ross being absent, and his shoes and hat being found, it was concluded that he must have committed the barbarous deed; and the butler therefore mounted a horse, and alarmed the country, lest the murderous villain should escape. The butler was soon joined by great numbers of horsemen; and towards the conclusion of the day, when both men and horses were nearly exhausted through excessive fatigue, the murderer was discovered in a field of standing corn. He was immediately secured, and being brought to trial, he had the effrontery to declare that he was admitted to share his mistress's bed, and that his custom was always to leave his shoes at the parlour door.

That on the night of the murder he proceeded as usual to her room, but on entering it his horror was aroused at discovering her to be murdered. He leaped out at the window to search for the perpetrators of the deed, and dropping his hat he thought it better not to return until night. Having been found guilty, he was sentenced to have his right hand chopped off, then to be hanged till dead, the body to be hung in chains, and the right hand to be affixed at the top of the gibbet, with the knife made use of in the commission of the murder.

Upon receiving sentence of death he began seriously to reflect on his miserable situation, and the next day he requested the attendance of Mr. James Craig, one of the ministers of Edinburgh, to whom he confessed his guilt, declaring that there was no foundation for his reflections against the chastity of the deceased. Six weeks elapsed between the time of his trial and that of his execution, during which he showed every sign of the most sincere penitence, and refused to accompany two prisoners who broke out of jail, saying he had no desire to recover his liberty, but that on the contrary he would cheerfully submit to the utmost severity of punishment, that he might make atonement for his wickedness. The day appointed for putting the sentence of the law into force being arrived, Ross walked to the place of execution, holding Mr. Craig by the arm. Having addressed a pathetic speech to the populace, and prayed some time with great fervency of devotion, the rope was put round his neck, and he laid his right hand upon the block, when it was struck off by the executioner at two blows. He was immediately afterwards run up to the gallows, when, feeling the rope drawing tight, by a convulsive motion of the arm he struck his bloody wrist against his cheek, which gave it a ghastly appearance. The sentence was subsequently fully carried into effect.

The execution took place on the 8th January 1751.

THOMAS COLLEY.

EXECUTED FOR MURDER.

THIS offender was a victim to his own feelings of superstition. At the time of his crime and execution the belief in witchcraft was almost universal, and Colley was hanged for the murder of a poor old woman named Osborne, whose qualities as a witch he tested by ducking her in a pond until she was dead, thereby indisputably proving to the satisfaction of all, and to the credit of the deceased woman, how unjustifiable were the suspicions which had been entertained of her character.

The evidence given against the prisoner was to the following effect:—On the 18th April, 1751, a man named Nichols went to William Dell, the crier at Hemel Hempstead, in Hertfordshire, and delivered to him a paper to the following effect, which was to be cried:

“This is to give notice, that on Monday next, a man and woman are to be publicly ducked at Tring, in this county, for their wicked crimes.”

This notice was given at Winslow and Leighton-Buzzard, as well as at Hemel-Hempstead, on the respective market-days, and was heard by Mr. Barton, overseer of the parish of Tring, who being informed that the persons intended to be ducked were John Osborne, and Ruth his wife, and having no doubt of the good character of both the parties, sent them to the workhouse, as a protection from the rage of the mob.

On the day appointed for the practice of the infernal ceremony, an immense number of people, supposed to be not fewer than five thousand, assembled near the workhouse at Tring, vowing revenge against Osborne and his wife, as a wizard and a witch, and demanding that they should be delivered up to their fury. In support of their demands they pulled down a wall belonging to the workhouse, and broke the windows and window-frames. On the preceding evening the master of the workhouse, suspecting some violence from what he heard of the disposition of the people, had sent Osborne and his wife to the vestry-room belonging to the church, as a place the most likely to secure them from insult. The mob would not give credit to the master of the workhouse that the parties were removed, but, rushing

into the house, searched it through, examining the closets, boxes, trunks, and even the salt-box, in quest of them. There being a hole in the ceiling, which had been left by the plasterers, Colley, who was one of the most active of the gang, exclaimed, "Let us search the ceiling;" and this being done, but of course without success, they swore that they would pull down the house, and set fire to Tring, if the parties were not produced. The master of the workhouse, apprehensive that they would carry their threats into execution, and unmindful of the safety of the unfortunate wretches whom it was his duty to protect, at length gave up their place of concealment; and the whole mob, with Colley at their head, forthwith marched off to the church and brought them off in triumph. Their persons secured, they were carried to a pond, called Marlston Mere, where they were stripped and tied up separately in cloths. A rope was then bound round the body of the woman, under her arm-pits, and two men dragged her into the pond, and through it several times; Colley going into the pond, and, with a stick, turning her from side to side. Having ducked her repeatedly in this manner, they placed her by the side of the pond, and dragged the old man in, and ducked him: then he was put by, and the woman ducked again as before, Colley making the same use of his stick. With this cruelty the husband was treated twice over, and the wife three times; during the last of which the cloth in which she was wrapped came off, and she appeared quite naked.

Not satisfied with this barbarity, Colley pushed his stick against her breast, and the poor woman attempted to lay hold of it; but her strength being now exhausted, she expired on the spot. Colley then went round the pond, collecting money of the populace for the *sport* he had shown them in ducking the old witch, as he called her. The mob now departed to their several habitations; and the body being taken out of the pond, was examined by Mr. Foster, a surgeon; and the coroner's inquest being summoned on the occasion, Mr Foster deposed that, "on examining the body of the deceased, he found no wound, either internal or external, except a little place that had the skin off on one of her breasts; and it was his opinion that she was suffocated with water and mud."

Hereupon Colley was taken into custody, and when his trial came on, Mr. Foster deposed to the same effect as above mentioned; and there being a variety of other strong proofs of the prisoner's guilt, he was convicted, and received sentence of death. His defence was that he had endeavoured to protect the old people from violence, instead of attempting to injure them.

After conviction he seemed to behold his guilt in its true light of enormity. He became, as far as could be judged, sincerely penitent for his sins, and made good use of the short time he had to live in the solemn preparation for eternity.

The day before his execution he was removed from the jail of Hertford, under the escort of one hundred men of the Oxford Blues, commanded by seven officers; and being lodged in the jail of St. Albans, was put into a chaise at five o'clock the next morning, with the hangman, and reached the place of execution about eleven, where his wife and daughter came to take leave of him. The minister of Tring assisted him in his last moments, and he died exhibiting all the marks of unfeigned penitence.

He was executed on the 24th of August 1751, and his body afterwards hung in chains at a place called Gubblecut, near which the offence was committed.

It is not a little remarkable that, at so recent a period, so many people as composed this mob should be found so benighted in intellect, and utterly uninformed, as to be guilty of so miserable and so glaring a piece of absurdity and wickedness as that which was proved in the evidence against the prisoner. In former ages, it is true, not only the people, but even the authorities of the land, believed in witchcraft and sorcery; but it is indeed extraordinary that in the eighteenth century a scene such as that described could have been permitted to occur at a village within thirty miles of the metropolis.

The following copy of an indictment, furnished us by a friend who took it from the American Court record, must prove a matter of curiosity to the reader at the present enlightened era:—

“Essex, ss. (a town in the colony of Massachusetts Bay, in New England.)

“The jurors of our sovereign lord and lady, the king and queen (King William and Queen Mary), present, that George Burroughs, late of Falmouth, in the province of Massachusetts Bay, clerk (a Presbyterian minister of the Gospel), the 9th day of May, and divers other days and times, as well before as after, certain detestable arts, called witchcraft and sorceries, wickedly and feloniously hath used, practised and exercised at and in the town of Salem, in the county aforesaid, upon and against one Mary Walcot, single woman, by which said wicked arts the said Mary, on

the day aforesaid, and divers other days and times, as well before as after, was, and is tortured, afflicted, pined, consumed, wasted, and tormented against the peace,” &c.

A witness, by name Ann Putnam, deposed as follows:—On the 8th of May, 1692, I saw the apparition of George Burroughs, who grievously tormented me, and urged me to write in his book, which I refused. He then told me that his two first wives would appear to me presently and tell me a great many lies, but I must not believe them. Then immediately appeared to me the forms of two women in winding-sheets, and napkins about their heads, at which I was greatly affrighted. They turned their faces towards Mr. Burroughs, and looked red and angry, and told him that he had been very cruel to them, and that their blood called for vengeance against him; and they also told him that they should be clothed with white robes in heaven when he should be cast down into hell, and he immediately vanished away. And as soon as he was gone, the women turned their faces towards me, and looked as pale as a white wall; and told me they were Mr. Burroughs’s two wives, and that he had murdered them. And one told me she was his first wife, and he stabbed her under the left breast, and put a piece of sealing-wax in the wound; and she pulled aside the winding-sheet and showed me the place: she also told me that she was in the house where Mr. Daris, the minister of Danvers, then lived when it was done. And the other told me that Mr. Burroughs and a wife that he hath now, killed her in the vessel as she was coming to see her friends from the eastward, because they would have one another. And they both charged me to tell these things to the magistrates before Mr. Burroughs’s face; and if he did not own them, they did not know but they should appear this morning. This morning, also, appeared to me another woman in a winding-sheet, and told me that she was Goodman Fuller’s first wife, and Mr. Burroughs killed her, because there was a difference between her husband and him.

Upon the above, and some other such evidence, was this unfortunate man condemned and executed.

The days are now, happily, past, when such monstrous absurdities are heard of.

FREDERICK CAULFIELD.

EXECUTED FOR MURDER.

THE following is a remarkable instance, if it be true, of a dream occasioning the discovery of a murder:

Adam Rogers (a creditable man, who kept a public-house at Portlaw, a small village nine or ten miles from Waterford, in Ireland) dreamed one night that he saw two men at a particular green spot on an adjacent mountain; one of them a sickly-looking man, the other remarkably strong and large. He then fancied that he saw the little man murder the other, and awoke in great agitation. The circumstances of the dream were so distinct and forcible that he continued much affected by them; and on the next morning he was extremely startled at seeing two strangers enter his house, about eleven o'clock in the forenoon, who resembled precisely the two men that he fancied he had seen.

After the strangers had taken some refreshment, and were about to depart, in order to prosecute their journey, Rogers earnestly endeavoured to dissuade the little man from quitting his house and going on with his fellow-traveller; and he assured him that if he would remain with him that day, he would himself accompany him to Carrick next morning, that being the town to which they were proceeding. He was unwilling and ashamed to tell the cause of his being so solicitous to separate him from his companion; but as he observed that Hickey, which was the name of the little man, seemed to be quiet and gentle in his deportment, and had money about him, and that the other had a ferocious bad countenance, he dreaded that something fatal would happen, and wished, at all events, to keep them asunder. The humane precautions which he took, however, proved ineffectual; for Caulfield (such was the other's name) prevailed upon Hickey to continue with him on their way to Carrick, declaring that, as they had long travelled together they should not part, but should remain together until he should see Hickey safely arrive at the habitation of his friends. They accordingly set out together; and in about an hour after they left Portlaw, in a lonely part of the mountain, just near the place observed by Rogers in his dream, Caulfield took the opportunity of murdering his

companion. It appeared afterwards, from his own account of the horrid transaction, that as they were getting over the ditch, he struck Hickey on the back part of his head with a stone; and when he fell down into the trench, in consequence of the blow, Caulfield gave him several stabs with a knife, and cut his throat so deeply, that the head was almost severed from the body. He then rifled Hickey's pockets of all the money in them, took part of his clothes, and everything else of value about him, and afterwards proceeded on his way to Carrick. He had not been long gone when the body, still warm, was discovered by some labourers who were returning to their work from dinner. The report of the murder soon reached Portlaw; and Rogers and his wife went to the place, and instantly knew the body of him whom they had in vain endeavoured to dissuade from going on with his treacherous companion. They at once declared their suspicions that the murder was perpetrated by the fellow traveller of the deceased; and an immediate search was made, and Caulfield was apprehended at Waterford on the second day after. He was brought to trial at the ensuing assizes, and convicted of the fact.

After sentence, the prisoner confessed that he had been guilty of the murder, and stated that he had accompanied Hickey home from the West Indies; and that observing that he had money in his possession, he had long contemplated the deed which he afterwards effected, but was unable to meet with a good opportunity until their arrival at the spot alluded to.

He was executed at Waterford in the year 1751.

WILLIAM PARSONS, ESQ.

EXECUTED FOR RETURNING FROM TRANSPORTATION.

THE unhappy subject of this narrative was the eldest son of Sir William Parsons, Bart., of the county of Nottingham, and was born in London in the year 1717. He was placed under the care of a pious and learned divine at Pepper-harrow, in Surrey, where he received the first rudiments of education. In a little more than three years he was removed to Eton College, where it was intended that he should qualify himself for one of the universities; but his misconduct prevented his friends from carrying out their intentions in this respect; for having been detected in various acts of petty pilfering, he was dismissed the school, and sent home to his father. His disposition was now found to be of so unpromising a character, that it was thought advisable to send him to sea, and an appointment was procured for him as midshipman on board a vessel of war lying at Spithead, which was immediately about to proceed to Jamaica. Our hero soon obtained the necessary outfit, and joined his ship; but some accident detaining her beyond the time when it was expected she would sail, he applied for leave of absence, and went on shore; but having no intention to return, he directed his course towards a small town about ten miles from Portsmouth, called Bishop's Waltham, where, by representations of his respectability, he soon ingratiated himself into the favour of the principal inhabitants.

His figure being pleasing, and his manner of address easy and polite, he found but little difficulty in recommending himself to the ladies, and he became greatly enamoured of a beautiful and accomplished young lady, the daughter of a physician of considerable practice, and prevailed upon her to promise that she would yield to him her hand in marriage.

News of the intended alliance coming to the knowledge of his father and of his uncle, the latter directly hastened to Waltham, to prevent a union, which would have produced consequences of the worst character to the contracting parties, and having apprised the friends of the young lady with the condition and situation of the intended bridegroom, their consent was withdrawn, and our hero was with some difficulty induced to rejoin his ship. Restless, however, in his new employment, he had scarcely reached

Jamaica, when he determined that he would desert and return to England; and the sailing of the Sheerness man-of-war for that place afforded him an opportunity of carrying his design into execution, of which he lost no time in availing himself. A new effort to obtain the hand of his former love was as unsuccessful as that which he had first made; and his uncle having ascertained the fact of his presence in England, induced him at once to go back to the residence of his father, with promises of future amendment. For a time his determination to alter his course of life was obeyed; but soon again launching forth into habits of irregularity, he was despatched as midshipman on board the *Romney*, for the coast of Newfoundland. On his revisiting England, after an absence of some years, he was mortified to learn that the Duchess of Northumberland, to whom he was distantly related, had revoked a will in his favour, which she had made, and had bequeathed to his sister the fortune which, he knew, had been intended for him; and now, finding himself spurned by his friends, he was soon reduced to a condition of absolute necessity. Through the friendly intervention of a Mr. Bailey, however, he procured an engagement at James Fort, on the river Gambia, but here, as in all other situations unfortunate, he contrived to engage himself in a quarrel, in consequence of which he was compelled to return to Europe—a step, however, which he was alone enabled to take by setting at defiance the commands of the Governor Aufleur, that he should not quit the colony—and take his passage under an assumed name on board a homeward-bound trader.

Arrived in London, he found no friend to whom he could apply for assistance or relief, but at length discovering the residence of his father, he went to him and implored some aid, even if he should not give him any further countenance. Five shillings, and advice to enter a horse regiment as a private, were all that he could obtain, however, and rendered wretched by his miserable condition, the grave appeared to be the only resource to which he could look for consolation. But a thought suggested itself in time to prevent his rashly taking away his life, that he should represent himself as his brother, who had recently come into a fortune; and under the pretext that he was entitled to the legacy, he committed frauds upon various tradesmen to a considerable amount. His impudence and his ingenuity were now required to be exerted in order to relieve him from the difficulty in which he was involved in consequence of this proceeding, but his good fortune in throwing him in the way of a young lady of good fortune, to whom he was

married, placed in his power the means of retrieving his lost character and his degraded position. The marriage was solemnised on the 10th February 1740; and the intercession of his friends, to whom he was now with difficulty again reconciled, procured for him an ensigncy in the 34th regiment of foot from the right honourable Arthur Onslow.

He appeared at this time to be desirous of re-appearing in that position in society to which his birth entitled him; but having hired a house in Poland-street, his extravagant mode of living again, in the course of a few years, reduced him to a condition of great distress. He was compelled to sell his commission in order to recruit his shattered finances; and then, in order to meet new demands, he was guilty of various forgeries, upon which he procured money to a very large amount. For two years he pursued new plans of iniquity with considerable success, but then being apprehended in the act of putting off a forged draft, he was committed to Maidstone jail, and having been convicted at the ensuing assizes, was sentenced to be transported for seven years. In the month of September, 1749, he was put on board the Thames transport, bound for Maryland, and in the following November he was landed at Annapolis, in that place. He was now guilty of new offences, even more criminal than those which he had before committed, and having first ridden off with a horse belonging to the person to whom he was assigned as a servant, and committed several robberies, he shaped his course to Potomac, from whence he immediately sailed for England.

That refuge for the destitute of all classes at this period, “the road,” was now the only resource left to our hero, and for a time he pursued his new occupation with infinite determination and proportionate success; but at length having attempted to rob Mr. Fuller, the gentleman by whom he had before been prosecuted, he was recognised by him, and being vigorously attacked, was at length compelled to surrender, and was secured and committed to Newgate.

It was necessary to prove no new offence against him at his trial, but all that was required was to identify him as a transported felon, who had returned to England before the termination of the period for which he had been sentenced to be banished; and this being done, he was declared to have forfeited his life to the laws of his country. His distressed father and wife used all their interest to obtain for him a pardon, but in vain: he was an old offender, and judged by no means a fit object for mercy.

While Parsons remained in Newgate, his behaviour was such that it could not be determined whether he entertained a proper idea of his dreadful situation. There is, indeed, but too much reason to fear that the hopes of a reprieve (in which he deceived himself even to the last moments of his life) induced him to neglect the necessary preparation for eternity.

His taking leave of his wife afforded a scene extremely affecting: he recommended to her parental protection his only child, and regretted that his misconduct had put it in the power of a censorious world to reflect upon both the mother and son.

At the place of execution he joined in the devotional exercises with a fervency of zeal that proved him to be convinced of the necessity of obtaining the pardon of his Creator.

William Parsons, Esq. suffered at Tyburn, on the 11th of Feb. 1751.

WILLIAM CHANDLER.

TRANSPORTED FOR PERJURY.

THE scheme laid by this man for the purpose of plunder has scarcely ever been equalled in art and consummate hypocrisy. It is to be observed that in the case of every robbery committed, the hundred where it happens, or the county at large, is responsible for the amount of the loss which the injured person in such cases may sustain. In Chandler's attempt at fraud founded upon this law, he implicated three innocent men, by whom he pretended to have been robbed, and who, had his tale ultimately received credit, might have lost their lives. Happily his plot was frustrated, and the real offender was brought to justice.

William Chandler was the only child of Mr. Thomas Chandler, of Woodborough, near Devizes, a gentleman farmer of moderate means. At an early age the youth was articled to Mr. Banks, who was clerk of the Goldsmiths' Company; but before two years had elapsed, in consequence of frequent disputes which took place, he was transferred to Mr. Hill, a respectable attorney in Clifford's Inn. His clerkship being nearly expired, the necessity of providing himself with the means of commencing practice on his own account suggested itself to his mind, and he therefore laid a plan to procure the possession of as much money as he could, and then going a journey into the country, upon some plausible pretence, to trump up a story of being robbed, and sue the hundred for the amount. Upon representations to his father, that he had a good match in view, the old man gave him an estate of the value of 400*l.*; and then producing the deeds to his master, together with 500*l.* which he had obtained by other means, but which he represented that he had received from a rich uncle in Suffolk, he procured from him the advance of 500*l.* more, in order, as he alleged, that he might take a mortgage upon some property at Enford, within a few miles of his father's house. Mr. Hill demanded some security for his money, and his clerk immediately proposed to give him a mortgage upon his own estate. In order to favour the appearance of the probability of his proceedings, he engaged with a Mrs. Poor, who lived at Enford, in a transaction, having the mortgage of some land which she owned for its object, and the money

having been duly advanced by his employer, he fixed the 25th March, 1748, to meet Mrs. Poor to hand over the money and receive the necessary papers. Early on the 24th, having turned most of his cash into small bills, to the amount of 900*l.*, he found, when he came to put these in canvas bags under his garters, where he proposed to carry them for safety, that they made too great a bundle, and therefore he took several of the bills, with some cash, amounting to 440*l.*, and exchanged them at the bank for two notes, one of 400*l.* and the other of 40*l.*; the first of which, in his way home, he changed in his master's name, at Sir Richard Hoare's, for one note of 200*l.*, and two of 100*l.* each. On his reaching the office, he told his master that the bank clerks were a little out of humour at the trouble he had already given them, and that he had changed his small notes with a stranger in the bank-hall for the notes which he in reality had received at Sir Richard Hoare's. Mr. Hill, at Chandler's request, having then written down the numbers and dates of the several bills, and having seen them safely put up, Chandler took leave of him, and about twelve o'clock set out.

About four o'clock the same afternoon he reached Hare-hatch, distant thirty miles from London, where he stopped to refresh; and about five, just as he had left his inn, he was, as he said, unfortunately met by three bargemen on foot, who, after they had robbed him of his watch and money, took him to a pit close by the road, and there stripped him of all his bank-notes, bound his hands and feet, and left him, threatening to return and shoot him if he made the least noise. In this woful condition, he said, he lay three hours, though the pit was so near the road that not a single horse could pass without his hearing. When night came, however, he jumped, bound as he was, near half a mile, all up hill, till, luckily for his purpose, he met one Avery, a simple shepherd, who cut the cords, and of whom the first question Chandler asked was, where a constable or tything-man lived. Avery conducted him to Richard Kelly's, the constable's just by, and with him Mr. Chandler left the notices required by the statutes, with the description of the men who robbed him, so exactly, that a person present remembered three such men to have passed by his house about the very time the robbery was said to have been committed; and the mayor of Reading, who was accidentally on the road, had a similar recollection of the bargemen, whom he had met near Maidenhead thicket, between four and five the same day. Chandler then returned to the inn where he had refreshed, and, after telling his deplorable tale, and acquainting his landlord with his intention of suing

the hundred, he ordered a good supper and a bowl of punch, and sat down with as little concern as if nothing had happened.

Next day he returned to London, acquainted his master with the pretended robbery, and requested his assistance. Mr. Hill gave him the memorandum he had of the numbers, dates, and sums of the notes, and sent him to the bank to stop payment; but, instead of that, he went to Mr. Tufley, a silversmith in Cannon Street, bought a silver tankard, and in payment, changed one of the notes for a hundred pounds which he had received the day before at Sir Richard Hoare's; and on his return to his master, told him the bank did no business that day, on account of the hurry the city was in with regard to a fire in Cornhill, which had happened the night before. He therefore went again the following morning, and when he came back, being asked by Mr. Hill for the paper on which he had taken down the numbers, &c., he said he had left it with the clerks of the bank, who were to stop the notes, but that he had taken an exact copy of it. This, however, was false; for he had reserved Mr. Hill's copy, and left another at the bank, in which he had so craftily altered the numbers and dates of the three notes he received at Sir Richard Hoare's, amounting to four hundred pounds, as to prevent their being stopped and Mr. Hill remembering the difference.

On the 26th he inserted a list of his notes, being fifteen in all, with their dates and numbers, in the daily papers, offering a reward of fifty pounds for the recovery of the whole, or in proportion for any part; but on the afternoon of the same day he withdrew his advertisement in all the daily papers, and took his own written copy away at each place. On the 29th of March, he put the notice of the robbery and the description of the robbers in the London Gazette, as the law directs, except that he did not particularize the notes, as he had done in other papers.

On the 12th of May following, he made the proper information before a justice of the peace; but though Mr. Hill, his master, was with him, and had undertaken to manage the cause for him, yet he made the same omission in his information as in his advertisement in the London Gazette.

All things being prepared, on the 18th of July 1748, Chandler's cause came on at Abingdon, before a special jury; and, after a hearing of twelve hours, the jury retired, and then gave the prosecutor a verdict for nine hundred and seventy pounds, subject, however, to a case reserved for the

opinion of the Court of Common Pleas, concerning the sufficiency of the description of the bank-notes in the London Gazette.

In the mean time, Chandler, fearing that by what came out upon the trial he should soon be suspected, and that he might be arrested, obtained a protection from Lord Willoughby de Broke, and gave out that he was removed into Suffolk to reside, as he had before pretended, with his rich uncle; but in reality he retired to Colchester, where his brother-in-law, Humphry Smart, had taken an inn, with whom he entered into copartnership, and never came publicly to London afterwards. He was, however, obliged to correspond with his master, on account of the point of law which was soon to be argued; and, therefore, to obtain his letters without discovering his place of abode, he ordered them to be directed "To Mr. Thomas Chandler, at Easton, in Suffolk, to be left for him at the Crown at Audley, near Colchester."

Mr. Hill having written several letters to Mr. Chandler, pressing him to come to town (as the Term drew near), and he evading it by trifling excuses, the former began to suspect him, even before the point of law was determined.

Just before this period, twelve of the notes of which Mr. Chandler pretended to have been robbed, were all brought to the bank together, having been bought, October 31, 1748, at Amsterdam, of one John Smith, by Barnard Solomon, a broker there, and by him transmitted to his son, Nathan Solomon, a broker in London. Upon further inquiry, it appeared that John Smith, who sold the notes, staid but a few days in Holland; that he was seen in company with Mr. Casson, a Holland trader, and came over in the packet with him. Mr. Casson was then found, and his description of John Smith answered to the person of Chandler, who was, in consequence, pressed by letter to come to town and face Casson, to remove all suspicion; but he refused.

In the interim, the point of law was argued before the judges of the Common Pleas, when their determination was to the following effect:—"That, as Chandler had not inserted the numbers of his notes in the Gazette, nor sworn to them when he made oath before the justice, the verdict must be set aside and the plaintiff nonsuited, without the advantage of a new trial."

But now the scene began to open apace; for about this time the very paper which Chandler left when he stopped payment of the notes at the bank, was found; and upon its being seen by Mr. Hill, he at once saw that he had been deceived, and proceeded to take the necessary steps to secure his apprehension. The whole circumstances attending the case were soon traced, upon a minute inspection of the bank books, as contrasted with those of the banking-house of Messrs. Hoare and Co.; and about midsummer 1749, Mr. Hill and others set out for Colchester, with a view of securing the person of the culprit. After a fruitless journey, however, of about a hundred and fifty miles in search of the fugitive, they returned to the very inn at Colchester which was kept by the object of their search, and then departed for London, without gaining any intelligence. Chandler having seen his pursuers, thought it prudent to decamp, and proceeded to Coventry, where he took a small public-house; but being desirous of making some reparation to his late master, he transmitted to him a hundred and fifty pounds by letter from Nottingham. By the post-mark of his letter, he was eventually traced to Coventry, and an indictment for perjury, in respect of the information on oath, which he gave to the magistrates of the robbery, having been found against him, he was taken into custody on a judge's warrant, and removed to Abingdon, where, on the 22d July, 1750, he was arraigned on the indictment preferred against him. The witnesses being all in attendance, the prisoner traversed his trial until the next assizes, in pursuance of a right which he possessed; but then the facts already detailed having been proved in evidence, he was found guilty, and on the 16th July 1751, he was sentenced to be transported for seven years, having first undergone three months' imprisonment in the County Jail.

MARY BLANDY.

EXECUTED FOR PARRICIDE.

THE unhappy subject of this memoir was a young lady of most respectable family, and of superior education, but who, in spite of the exertions of her parents in her early life to implant in her breast sentiments of piety and virtue, was guilty of a crime of the most heinous description—the wilful murder of her father. Mr. Francis Blandy was an attorney residing at Henley-on-Thames, and held the office of town-clerk of that place. Possessed of ample means, his house became the scene of much gaiety; and as report gave to his daughter a fortune of no inconsiderable extent, and as, besides, her manners were sprightly and affable, and her appearance engaging, her hand was sought in marriage by many persons whose rank and wealth rendered them fitting to become her partner for life. But among all these visitants, none were received with greater pleasure by Mr. or Mrs. Blandy, or their daughter, than those who held commissions in the army. This predilection was evidenced in the introduction of the Hon. William Henry Cranstoun, at that time engaged on the recruiting service for a foot regiment, in which he ranked as captain.

Captain Cranstoun was the son of Lord Cranstoun, a Scotch peer of ancient family, and through the instrumentality of his uncle, Lord Mark Ker, he had obtained his commission. In the year 1745, he had married a young lady of good family named Murray, with whom he received an ample fortune; and in the year 1752, he was ordered to England to endeavour to procure his complement of men for his regiment. His bad fortune led him to Henley, and there he formed an intimacy with Miss Blandy. At this time Cranstoun was forty-six years of age, while Miss Blandy was twenty years his junior; and it is somewhat extraordinary that a person of her accomplishments and beauty should have formed a *liaison* with a man so much older than herself, and who, besides, is represented as having been devoid of all personal attractions.

A short acquaintance, it appears, was sufficient to excite the flame of passion in the mind of the gallant captain, as well as of Miss Blandy; and ere long, their troth was plighted, that they would be for ever one. The

captain, however, felt the importance of forestalling any information which might reach the ears of his new love of the existence of any person who possessed a better right to his affections than she; and he therefore informed her that he was engaged in a disagreeable lawsuit with a young lady in Scotland who had claimed him as her husband; but he assured her that it was a mere affair of gallantry, of which the process of the law would in the course of a very short time relieve him. This disclosure being followed by an offer of marriage, Cranstoun was referred to Mr. Blandy, and he obtained an easy acquiescence on his part in the wishes expressed by the young lady.

At this juncture, an intimation being conveyed to Lord Ker of the proceedings of his nephew, his lordship took instant steps to apprise Mr. Blandy of the position of Cranstoun. Prejudice had, however, worked its end as well with the father as the daughter, and the assertion of the intended bridegroom of the falsehood of the allegations made was sufficient to dispel all the fears which the report of Lord Ker had raised. But although Captain Cranstoun had thus temporarily freed himself from the effects of the imputation cast upon him, he felt that some steps were necessary to get his first marriage annulled, and he at length wrote to his wife, requesting her to disown him for a husband. The substance of this letter was, that, having no other way of rising to preferment but in the army, he had but little ground to expect advancement there, while it was known he was encumbered with a wife and family; but could he once pass for a single man, he had not the least doubt of being quickly promoted, which would procure him a sufficiency to maintain her as well as himself in a genteeler manner than now he was able to do. "All, therefore, (adds he) I have to request of you is, that you will transcribe the enclosed copy of a letter, wherein you disown me for a husband; put your maiden name to it, and send it by the post. All the use I shall make of it shall be to procure my advancement, which will necessarily include your own benefit. In full assurance that you will comply with my request, I remain your most affectionate husband."

Mrs. Cranstoun, ill as she had been treated by her husband, and little hope as she had of more generous usage, was, after repeated letters had passed, induced to give up her claim, and at length sent the desired communication. On this, an attempt was made by him to annul the marriage, this letter being produced as evidence; but the artifice being discovered, the suit was dismissed, with costs. Mr. Blandy soon obtained intelligence of this circumstance, and convinced now of the falsehood of his

intended son-in-law, he conveyed a knowledge of it to his daughter; but she and her mother repelled the insinuations which were thrown out, and declared, in obedience to what they had been told by the gallant captain, that the suit was not yet terminated, for that an appeal to the House of Lords would immediately be made. Soon after this, Mrs. Blandy died, and her husband began now to show evident dislike for Captain Cranstoun's visits; but the latter complained to the daughter of the father's ill-treatment, and insinuated that he had a method of conciliating his esteem; and that when he arrived in Scotland he would send her some powders proper for the purpose; on which, to prevent suspicion, he would write "Powders to clean the Scotch pebbles."

Cranstoun sent her the powders, according to promise, and Mr. Blandy being indisposed on the Sunday se'nnight before his death, Susan Gunnel, a maid-servant, made him some water-gruel, into which Miss Blandy conveyed some of the powder, and gave it to her father; and repeating this draught on the following day, he was tormented with the most violent pains in his bowels.

The disorder, which had commenced with symptoms of so dangerous a character, soon increased; and the greatest alarm was felt by the medical attendants of the old gentleman, that death alone would terminate his sufferings. Every effort was made by which it was hoped that his life could be saved; but at length, when all possibility of his recovery was past, his wretched daughter rushed into his presence, and in an agony of tears and lamentations, confessed that she was the author of his sufferings and of his inevitable death. Urged to account for her conduct, which to her father appeared inexplicable, she denied, with the loudest asseverations, all guilty intention. She repeated the tale of her love, and of the insidious arts employed by Cranstoun, but asserted that she was unaware of the deadly nature of the powders, and that her sole object in administering them was to procure her father's affection for her lover. Death soon terminated the accumulated misery of the wretched parent, and the daughter had scarcely witnessed his demise, ere she became an inmate of a jail.

At the ensuing assizes at Oxford, Miss Blandy was indicted for the wilful murder of her father, and was immediately found guilty, upon the confession which she had made. She addressed the jury at great length, repeating the story which she had before related; but all was of no avail, and sentence of death was passed.

After conviction, the wretched young woman behaved with the utmost decency and penitence. She spent the night before her execution in devotion; and at nine in the morning of the 6th of April 1752, she left her apartment to be conducted to the scaffold, habited in a black bombasin dress, her arms being bound with black ribands. On her ascending the gallows, she begged that she might not be hanged high, “for the sake of decency;” and on her being desired to go a little higher, expressed her fear that she should fall. The rope being put round her neck, she pulled her handkerchief over her face, and was turned off on holding out a book of devotions, which she had been reading.

The crowd of spectators assembled on this occasion was immense; and when she had hung the usual time she was cut down, and the body being put into a hearse, was conveyed to Henley, and interred with her parents, at one o’clock on the following morning.

It will be proper now to return to Cranstoun, who was the original contriver of this horrid murder. Having heard of Miss Blandy’s commitment to Oxford jail, he concealed himself some time in Scotland, and then escaped to Boulogne, in France. Meeting there with Mrs. Ross, who was distantly related to his family, he acquainted her with his situation, and begged her protection; on which she advised him to change his name for her maiden name of Dunbar. Some officers in the French service, who were related to his wife, hearing of his concealment, vowed revenge, if they should meet with him, for his cruelty to the unhappy woman: on which he fled to Paris, from whence he went to Furnes, a town in Flanders, where Mrs. Ross had provided a lodging for his reception. He had not been long at Furnes when he was seized with a severe fit of illness, which brought him to a degree of reflection to which he had been long a stranger. At length he sent for a father belonging to an adjacent convent, and received absolution from his hands, on declaring himself a convert to the Romish faith.

Cranstoun died on the 30th of November, 1752; and the fraternity of monks and friars looked on his conversion as an object of such importance, that solemn mass was sung on the occasion, and the body was followed to the grave not only by the ecclesiastics, but by the magistrates of the town.

JOHN M'CANELLY AND LUKE MORGAN.

EXECUTED FOR BURGLARY.

THESE men were of that class who usually visit England during harvest, from the sister kingdom, and who, if they possessed honesty, would prove most useful to the community of this country.

It appears that in the year 1751, Mr. Porter, a farmer of great respectability, residing in Cheshire, had engaged a number of Irish people to assist in gathering his harvest, when on one evening in the month of August he was alarmed, while sitting at supper, by hearing that they had attacked his house. Every effort was employed by him and his family to oppose the entry of their assailants, but their power being small, in the course of a few minutes the doors were burst in, and they found themselves surrounded by a gang, whose ferocious demands for money or blood convinced them of the uselessness of resistance. Mr. Porter, however, for a while delayed meeting the demands which were made upon him, in the hope that some assistance might arrive; but his ruffian assailants bound him with cords, and threatened instant destruction if his money and plate were not instantly brought forth. Miss Porter at this moment made her appearance, supplicating for the life of her parent, when she in turn was seized and bound, and was compelled to discover the chest in which the valuables were kept.

In the confusion created by these proceedings, the youngest daughter, a girl of thirteen, whose presence of mind and courage were alike admirable, made her escape, and determined to procure some assistance to repel the attack which had been made; and running into the stable, she got astride the bare back of a horse, with the halter only in his mouth, and galloping over hedges and ditches, so as to avoid the house, from which she might be seen by the villains, she rode to Pulford, a village at a short distance, to inform her eldest brother of the danger to which their relations at the farm were exposed. Young Porter, with a friend named Craven, (whose conduct certainly was the very opposite of his name,) immediately resolved upon attacking the villains in turn, and, with the girl, set off at full speed to render such aid as lay in their power. On their reaching the farm, they discovered a fellow on the watch, whom they instantly killed with so little noise as to

create no alarm, and then proceeding to the parlour, they found four others in the very act of placing old Mr. Porter on the fire, having deprived him of his clothes, in order to extort from him a confession of the depository of his money, his daughter being on her knees at their side praying for his life. The appearance of two strangers was sufficient to induce the villains at once to desist from their horrid purpose; and being now violently attacked, they were compelled to use their utmost exertions to defend themselves. A desperate conflict took place, but one of the robbers being felled senseless to the ground, and the others wounded and deprived of their arms, they jumped through the window and ran off.

They were instantly pursued by the young men, and the alarm having by this time been given, M'Canelly and Morgan were secured on Chester bridge, having a silver tankard in their possession which they had stolen from Mr. Porter's house. A fellow named Stanley, who turned out to be ringleader in this desperate attack, was subsequently apprehended on board a vessel bound for the West Indies, at Liverpool: and with M'Canelly, Morgan, and a youth named Boyd, who had been left in the house, was committed to Chester jail for trial.

They were indicted at the ensuing assizes held in March, 1752, and after a long investigation, were found guilty and sentenced to death; but Boyd, in whose case some mitigating circumstances were proved, was respited, and his punishment eventually commuted to transportation for life.

On the night before the execution, Stanley slipped his irons, and got clear off from the jail, not without some suspicion that his escape was connived at by the keeper.

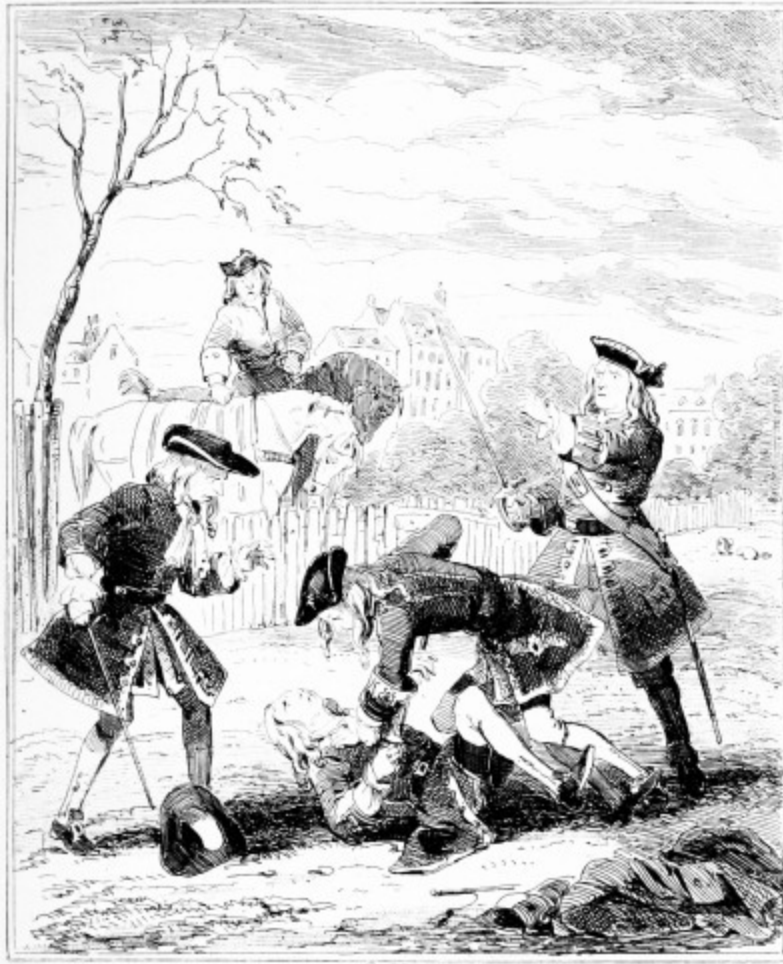
On the 25th May, 1752, M'Canelly and Morgan were brought out of prison in order to be hanged. Their behaviour was as decent as could be expected from persons of their station. They both declared that Stanley, who escaped, was the sole contriver of the robbery. They died in the Catholic faith, and were attended by a priest of that persuasion.

ELIZABETH JEFFRIES AND JOHN SWAN.

EXECUTED FOR MURDER.

THE case of these offenders is one of the greatest atrocity. It appears that the female was the niece of a gentleman of respectability residing at Walthamstow, who, having acquired an ample fortune, and having no children, adopted his brother's daughter, and made a will in her favour, bequeathing to her nearly his whole estate. The girl, however, returned her uncle's kindness with ingratitude, and having heard him declare that he would alter his will on account of her bad behaviour, she determined to





Duel between Lord Mahon and the Duke

prevent his carrying his design to her detriment into execution by murdering him. She soon discovered her inability to complete this project single-handed, and she gained the assistance of her accomplice in the crime, John Swan, who was in the employment of her uncle, and with whom there is good reason to believe she was on terms of intimacy. They endeavoured to suborn a simple fellow named Matthews to assist them, but although the promise of a large reward at first staggered him, his terrors eventually steeled him against the temptations held out to him. The night of the 3rd July, 1751, was fixed upon for the completion of this villany; and at the trial, which took place at Chelmsford, before Mr. Justice Wright, on the 11th March, 1752, the following facts were proved:

Matthews having travelled from Yorkshire was accidentally met in Epping Forest by Mr. Jeffries, who gave him employment as an assistant to

Swan, who was his gardener. After he had been at work only four days, he was sent up stairs by Miss Jeffries to wipe a chest of drawers, and she followed him, and asked him if he was willing to earn one hundred pounds? He answered that he was, "in an honest way;" on which she desired him to go to Swan. He accordingly joined him in the garden, and he offered him seven hundred pounds to murder their master. He acquiesced; and on his being dismissed two days afterwards, Swan gave him half a guinea to buy a brace of pistols; but having spent the money given to him, he was ordered to meet Miss Jeffries and Swan at Walthamstow on the Tuesday following, at ten o'clock at night, the object being then to carry out their intentions with respect to the murder.

When he arrived, he found the garden door on the latch; and going into the pantry, he hid himself behind a tub till about eleven o'clock, when Swan brought him some cold boiled beef. About twelve Miss Jeffries and Swan came to him; when the latter said, "Now it is time to knock the old miser, my master, on the head;" but Matthews relented and said, "I cannot find it in my heart to do it." Miss Jeffries then immediately replied, "You may be d—d for a villain, for not performing your promise!" And Swan, who was provided with pistols, also loudly abused him, and said he had a mind to blow his brains out for the refusal. Swan then produced a book, and insisted that Matthews should swear that he would not discover what had passed: and he did so, with this reserve, "unless it was to save his own life." Soon after this Matthews heard the report of a pistol; when getting out of the house by the back way, he crossed the ferry, and proceeded to Enfield Chase. Immediately afterwards Miss Jeffries appeared at the door of the house, and called out for assistance, and some of the neighbours going in, they found Mr. Jeffries dying, but they failed in discovering any thing which could lead to the supposition of any person having quitted the house. Violent suspicions in consequence arose, and Miss Jeffries was taken into custody, but no evidence arising to criminate her, she was discharged, and immediately administered to her uncle's estate and took possession of his property. Renewed suspicions, however, were raised, and Matthews having been discovered, Jeffries and Swan were apprehended. Upon this testimony a verdict of Guilty was returned.

After conviction Elizabeth Jeffries made the following confession:—

"I, Elizabeth Jeffries, do freely and voluntarily confess that I first enticed and persuaded John Swan and Thomas Matthews to undertake and

perpetrate the murder of my deceased uncle, which they both consented to do the first opportunity. That on the third day of July 1751, myself and John Swan (Matthews, to my knowledge, not being in the house) agreed to kill my said uncle; and, accordingly, after the maid was gone to bed, I went into John Swan's room, and called him, and we went down together into the kitchen, and having assisted Swan in putting some pewter and other things into a sack, I said I could do no more, and then I went into my room; and afterwards Swan came up, as I believe, and went into my uncle's room and shot him; which done, he came to my door and rapped. Accordingly I went out in my shift, and John Swan opened the door and let me out. That done, I alarmed the neighbourhood. And I do solemnly declare that I do not know that any person was concerned in the murder of my deceased uncle but myself and John Swan; for that Matthews did not come to my uncle's house the day before, or night in which the murder was committed as I know of.

“ELIZABETH JEFFRIES.”

“Taken and acknowledged March 12, 1752.”

Swan for some time expressed great resentment at Miss Jeffries's confession; but when he learned that he was to be hung in chains he began to relent, and seemed at length to behold his crime in its true light of enormity.

On the day of execution the convicts left the prison at four in the morning, Miss Jeffries being placed in a cart and Swan on a sledge. The unfortunate woman repeatedly fainted on her way to the gallows; and having fallen into a fit, had not recovered when she was turned off. The execution took place near the six-mile-stone on Epping Forest on the 28th of March 1752; and the body of Miss Jeffries having been delivered to her friends for interment, the gibbet was removed to another part of the forest, where Swan was hung in chains.

DOCTOR ARCHIBALD CAMERON.

EXECUTED FOR HIGH TREASON.

THE Scottish rebellion had been suppressed nearly eight years, and England had, during that time, enjoyed internal peace, when Doctor Cameron fell a victim to his exertions in the cause of the Pretender. Doctor Cameron was the brother of the chief of the Highland clan of the same name; and it appears that having studied successively at Glasgow, Edinburgh, Paris, and Leyden, he returned to Scotland admirably qualified to practise the profession of medicine, to which he had been brought up. Although educated in a manner which rendered him fit to mix in the best society of the day, he took up his residence in the district of Lochaber, where, in a short time, he was married to a lady of respectable family. Universally esteemed, and beloved by his neighbours for his zealous and effectual services in the civilisation of the manners of his countrymen, and for his generous conduct in the attendance of the sick poor, he was residing in the bosom of his family, when the rebellion of 1745 broke out, which laid waste the country, and introduced misery and wretchedness to many a happy home. The chief of the Camerons was a zealous friend to Prince Charles; and although he firmly believed that any attempt at the restoration of the Stuart family to the throne of England must prove abortive, yet being pledged to assist his prince, he generously sacrificed his own feelings, and appeared in arms at the head of nearly twelve hundred men. Thus arrayed he sent for his brother to undertake the medical charge of his troops; but although the doctor urged every argument which could be raised against so rash an undertaking as that which was proposed, he was at length compelled to forego all further resistance, and to attend the army in his professional capacity, although he absolutely refused to accept any commission. Thus circumstanced, Doctor Cameron was remarkable throughout the whole advance and retreat of the rebel army for the humanity and assiduity with which he attended all, whether friend or foe, who required his aid. And when the battle of Culloden put an end to all the hopes of the Pretender, he and his brother escaped to France in a vessel belonging to that kingdom. While in France, the doctor was appointed physician to a French regiment,

of which his brother obtained the command; but the latter dying about two years afterwards, he joined Ogilvie's regiment in Flanders.

In the meantime proceedings had been taken against the rebel leaders in England, many of whom had forfeited their lives to the offended laws of their country, and by an act of attainder passed in the year 1746, for the effectual punishment of persons concerned in the rebellion, the life of Doctor Cameron was declared to be forfeited. In the years 1750 and 1752, subscriptions were entered into in Scotland for the support of those persons who had escaped into foreign countries, and Doctor Cameron having already more than once visited his native country, finally in the latter year came over to Scotland, for the purpose of procuring some permanent relief for himself and his suffering fellow-countrymen abroad. Rumours were soon set afloat that he was in Scotland, and a detachment of Lord George Beaufort's regiment was sent in search of him. Being made acquainted with the vicinity of his hiding-place, but being unable for a considerable time to discover its exact locality, the soldiers were unable to secure their prisoner; but at length perceiving a little girl, who appeared to be acting as a scout, they followed her until she met a boy, who was evidently employed in a similar capacity, to whom they observed that she whispered something. They directly pursued the boy, but being unable to reach him, they presented their guns, threatening to shoot him if he did not immediately stop. Having then secured his person, they menaced him with instant death if he did not inform them of the hiding-place of Dr. Cameron. The boy pointed to the house where he was concealed, and the unfortunate gentleman was directly placed under arrest, and was then immediately sent to Edinburgh, and from thence subsequently to London, where he was placed in confinement in the Tower. Upon his examination before the Privy Council, he denied that he was the person mentioned in the Act of Attainder; but being brought to the bar of the Court of King's Bench on the 17th of May, he acknowledged that he was the person who had been attainted; on which Lord Chief Justice Lee pronounced sentence in the following terms:—"You, Archibald Cameron, of Lochiel, in that part of Great Britain called Scotland, must be removed from hence to his Majesty's prison of the Tower of London, from whence you came, and on Thursday, the 7th of June next, your body to be drawn on a sledge to the place of execution, there to be hanged, but not till you are dead,—your bowels to be

taken out, your body quartered, your head cut off, and affixed at the king's disposal,—and the Lord have mercy on your soul!”

After his commitment to the Tower he begged to see his wife, who was then at Lille, in Flanders; and, on her arrival, the meeting between them was inexpressibly affecting. The unfortunate lady wept incessantly; and on her going to take her final leave of her husband, on the morning of execution, she was attacked with fits, which left her only after grief had deprived her of her senses.

On the morning of the 7th June, 1753, the unhappy man was carried to Tyburn to be executed. He was dressed in a light-coloured coat, red waistcoat and breeches, and a new bag-wig. He looked much at the spectators in the houses and balconies, as well as at those in the street, and bowed to several persons with whom he was acquainted. He was attended at the scaffold by a clergyman of the Church of England; and before his being turned off, he declared that he was at peace with all men, and that he died firmly hoping for the forgiveness of his sins through the merits of his blessed Redeemer. When his body had hung during twenty minutes it was cut down, and the heart was taken out and burned, but the sentence was not further fulfilled. On the following Sunday, his remains were interred in a large vault in the Savoy chapel.

Dr. Cameron, it appears, was the last person who suffered punishment on account of connection with the rebellion of Scotland; and of all those who were concerned in it, probably he least of all deserved the unhappy fate which befel him. The very small, and apparently unwilling part which he took in the proceedings, should have screened him from condign punishment, more especially at a period when all appearance of discontent having vanished, no further harm was to be apprehended.

CAPTAIN JOHN LANCEY.

EXECUTED FOR BURNING HIS SHIP.

CAPTAIN LANCEY was a native of Biddeford, in Devonshire, and was respectably connected. At an early age, he exhibited a predilection for a seafaring life, and having served his apprenticeship, he was employed as mate of a vessel belonging to Mr. Benson, a rich merchant of Biddeford, at that time M.P. for Barnstaple.

Having married a sister of Benson's, Lancey was soon advanced to the command of the vessel; and on his return from a voyage, he was surprised at receiving an order from his employer to refit as soon as possible, Mr. Benson saying that he would insure the vessel for twice her value, and that Lancey should destroy her. The latter hesitated at first to assent to this extraordinary proposition, and for a time the suggestion was not again mentioned; but another opportunity being afforded to Benson, on his brother-in-law dining with him, he plied him with wine, and having pointed out to him the poverty to which his family might be reduced in case of his refusal, by his being dismissed from employment, the unhappy man at length yielded to his persuasions.

A ship was now fitted out, and bound for Maryland: goods to a large amount were shipped on board, but re-landed before the vessel sailed, and a lading of brick-bats taken in by way of ballast; and the vessel had not been long at sea before a hole was bored in her side, and a cask of combustible ingredients set on fire with a view to destroy her. The fire no sooner appeared than the captain called to some convicted transports, then in the hold, to inquire if they had fired the vessel; but this appears to have been only a feint to conceal the real design. The boat being hoisted out, all the crew got safely on shore; and then Lancey repaired immediately to Benson to inform him of what had passed. The latter instantly despatched him to a proctor, before whom he swore that the ship had accidentally taken fire, and that it was impossible to prevent the consequences which followed.

The crime was soon afterwards discovered, however, and Lancey was taken into custody; but, secure in his anticipation of protection from

Benson, he did not express much concern at his situation. His employer, in the mean time, was perfectly aware of the consequences which would fall upon him, and fled to avoid them; and his unhappy dupe being brought to trial, was capitally convicted, and received sentence of death. He subsequently lay in prison for about four months, during which time he pursued his devotional exercises with the utmost regularity, and was hanged on the 7th June, 1754, at Execution Dock, in the 27th year of his age.

NICOL BROWN.

EXECUTED FOR THE MURDER OF HIS WIFE.

THIS malefactor appears to have suffered for a crime as savagely ferocious as it was deliberate. He was a native of Cramond, near Edinburgh, where he was decently educated, and was apprenticed to a butcher; but his taste tending towards a seafaring life, he entered on board a man-of-war as a sailor, and remained in that situation for four years. On his return, he married the widow of a respectable butcher, who had left her a decent fortune.

Taking to a habit of drinking, he seldom came home sober at night; and his wife following his example, he used frequently to beat her for copying his own crime. This conduct rendered both parties obnoxious to their acquaintance; and the following revolting anecdote of Brown will incontestably prove the unfeeling brutality of his nature.

About a week after the execution of Norman Ross (already mentioned) for murder, Brown had been drinking with some company at Leith, till, in the height of their jollity, they boasted what extravagant actions they could perform. Brown swore that he would cut off a piece of flesh from the leg of the dead man and eat it. His companions, drunk as they were, appeared shocked at the very idea; while Brown, to prove that he was in earnest, procured a ladder, which he carried to the gibbet, and cutting off a piece of flesh from the leg of the suspended body of Ross, brought it back, broiled and ate it.

The circumstances of the crime for which he was executed were as follow.

After having been drinking at an alehouse in the Canongate, he went home at about eleven at night, in a high degree of intoxication. His wife was also much in liquor; but, though equally criminal himself, he was exasperated against her, and struck her so violently that she fell from her chair. The noise of her fall alarmed the neighbours; but, as frequent quarrels had happened between them, no immediate notice was taken of the affair. In about fifteen minutes, the wife was heard to cry out "Murder! help! fire! the

rogue is murdering me!” and the neighbours, now apprehending real danger, knocked at the door; but no person being in the house but Brown and his wife, admission was refused. The woman, meantime, was heard to groan most shockingly, and a person looking through the keyhole, saw Brown holding his wife to the fire. He was called on to open the door, but refused to do so; and the candle being extinguished, and the woman still continuing her cries, the door was at length forced open. When the neighbours went in, they beheld her a most shocking spectacle, lying half naked before the fire, and her flesh in part broiled. In the interim, Brown had got into bed, pretending to be asleep, and when spoken to, appeared ignorant of the transaction. The woman, though so dreadfully burnt, retained her senses, and accused her husband of the murder, and told in what manner it was perpetrated. She survived till the following morning, still continuing in the same tale, and then expired in the utmost agony.

The murderer was now seized, and being lodged in the jail of Edinburgh, was brought to trial and capitally convicted.

On August the 14th, 1754, he was attended to the place of execution at Edinburgh by the Rev. Dr. Brown; but to the last he denied having been guilty of the crime for which he suffered.

After execution he was hung in chains; but the body was stolen from the gibbet, and thrown into a pond, where being found, it was exposed as before. In a few days, however, it was again stolen; and though a reward was offered for its discovery, it was not again found.

EDWARD MORGAN.

EXECUTED FOR MURDER.

THE circumstances which came out on the trial of Edward Morgan, at the assizes of Glamorgan, were these:—According to annual custom, he had been invited by Mr. Rees Morgan, of Lanvabon, his cousin, to spend the Christmas holidays. He had partaken of the first day's festivity, and retired to bed along with a young man, apprentice to Mr. Rees Morgan. No sooner had he laid his head upon the pillow, to use his own expression, than the devil whispered him to get up and murder the whole family, and he determined to obey.

He first made an attempt on the apprentice, his bedfellow; but he struggled so far as to effect his escape, and hid himself. The murderer then provided himself with a knife, which he sharpened on a stone as deliberately as the butcher uses his steel; and thus prepared, he softly crept to the bedchamber of his host and hostess, and cut their throats in their sleep. He then proceeded to the bed of their beautiful daughter, with whom the monster had but an hour before been sporting and playing, and with equal expedition, and by the same means, robbed her of life. Not satisfied, however, with these deeds of blood, he seized a firebrand, and proceeded to the barn and outhouses, setting fire to them all; and, to complete the sum of his crime, he fired the dwelling-house, after plundering it of some articles.

“The Gloucester Journal,” of the year 1757, describes the property consumed by fire on this melancholy occasion to have been “the dwelling-house, a barn full of corn, a beast-house, with twelve head of cattle in it.”

It was at first conjectured that the unfortunate people had perished in the conflagration. Their murdered bodies, it is too true, were consumed to ashes; but the manner of their death was subsequently proved, partly by what the concealed apprentice overheard, but chiefly from the murderer's own confession. Morgan was executed at Glamorgan, April the 6th, 1757.

THE REV. JOHN GRIERSON AND THE REV. MR. WILKINSON

TRANSPORTED FOR UNLAWFULLY PERFORMING THE MARRIAGE CEREMONY.

AMONG the singular customs of our forefathers, arising in a great measure from their indifference to decorum, one of the most remarkable was matrimony, solemnised, we were going to say, but the fittest word would be “performed,” by the parsons in the Fleet prison, to which reference has already frequently been made. These clerical functionaries were disreputable and dissolute men, mostly prisoners for debt, who, to the great injury of public morals, dared to insult the dignity of their holy profession by marrying in the precincts of the Fleet prison, at a minute’s notice, any persons who might present themselves for that purpose. No questions were asked, no stipulations made, except as to the amount of the fee for the service, or the quantity of liquor to be drunk on the occasion. It not unfrequently happened, indeed, that the clergyman, the clerk, the bridegroom and the bride, were drunk at the very time the ceremony was performed. These disgraceful members of the sacred calling had their “plyers,” or “barkers,” who, if they caught sight of a man and woman walking together along the streets of the neighbourhood, pestered them as the Jew clothesmen in the present day tease the passers-by in Holywell Street, with solicitations, not easily to be shaken off, as to whether they wanted a clergyman to marry them. Mr. Burn, a gentleman who has recently published a curious work on the Fleet Registers, says he has in his possession an engraving (published about 1747) of “A Fleet Wedding between a brisk young Sailor and Landlady’s daughter at Rederiff.” “The print,” he adds, “represents the old Fleet market and prison, with the sailor, landlady, and daughter, just stepping from a hackney-coach, while two Fleet parsons in canonicals are contending for the job. The following verses are in the margin:

“Scarce had the coach discharg’d its trusty fare,
But gaping crowds surround th’ amorous pair;
The busy Plyers make a mighty stir,
And whisp’ring cry, D’ye want the Parson, Sir?
Pray step this way—just to the Pen in Hand,
The Doctor’s ready there at your command:
This way (another cries), Sir, I declare,
The true and ancient Register is here:

“Th’ alarmed Parsons quickly hear the din,
And haste with soothing words t’ invite ’em in:
In this confusion jostled to and fro,
Th’ inamour’d couple know not where to go,
Till, slow advancing from the coach’s side,
Th’ experienc’d matron came, (an artful guide,)
She led the way without regarding either,
And the first Parson splic’d ’em both together.”

One of the most notorious of these scandalous officials was a man of the name of George Keith, a Scotch minister, who, being in desperate circumstances, set up a marriage-office in May-Fair, and subsequently in the Fleet, and carried on the same trade which has since been practised in front of the blacksmith’s anvil at Gretna Green. This man’s wedding-business was so extensive and so scandalous, that the Bishop of London found it necessary to excommunicate him. It has been said of this person and “*his journeyman*,” that one morning, during the Whitsun holidays, they united a greater number of couples than had been married at any ten churches within the bills of mortality. Keith lived till he was eighty-nine years of age, and died in 1735. The Rev. Dr. Gaynham, another infamous functionary, was familiarly called the Bishop of Hell.

“Many of the early Fleet weddings,” observes Mr. Burn, “were *really* performed at the chapel of the Fleet; but as the practice extended, it was found more convenient to have other places, within the Rules of the Fleet, (added to which, the Warden was forbidden, by act of parliament, to suffer them,) and, thereupon, many of the Fleet parsons and tavern-keepers in the neighbourhood fitted up a room in their respective lodgings or houses as a chapel! The parsons took the fees, allowing a portion to the plyers, &c.; and the tavern-keepers, besides sharing in the money paid, derived a profit from the sale of liquors which the wedding-party drank. In some instances, the tavern-keepers *kept a parson on the establishment*, at a weekly salary of twenty shillings! Most of the taverns near the Fleet kept their own registers,

in which (as well as in their own books) the parsons entered the weddings.” Some of these scandalous members of the highest of all professions were in the habit of hanging signs out of their windows with the words “WEDDINGS PERFORMED CHEAP HERE.”

Keith, of whom we have already spoken, seems to have been a bare-faced profligate; but there is something exceedingly affecting in the stings of conscience and forlorn compunction of one Walter Wyatt, a Fleet parson, in one of whose pocket-books of 1716 are the following secret (as he intended them to be) outpourings of remorse:—

“Give to every man his due, and learn y^e way of Truth.”

“This advice cannot be taken by those that are concerned in y^e Fleet marriages; not so much as y^e Priest can do y^e thing y^t it is just and right there, unless he designs to starve. For by lying, bullying, and swearing, to extort money from the silly and unwary people, you advance your business and get y^e pelf, which always wastes like snow in sunshiney day.”

“The fear of the Lord is the beginning of wisdom. The marrying in the Fleet is the beginning of eternal woe.”

“If a clerk or plyer tells a lye, you must vouch it to be as true as y^e Gospel, and if disputed, you must affirm with an oath to y^e truth of a downright damnable falsehood.—Virtus laudatur & alget^r.”^[9]

“May God forgive me what is past, and give me grace to forsake such a wicked place, where truth and virtue can’t take place unless you are resolved to starve.”





But this very man, whose sense of his own disgrace was so deep and apparently so contrite, was one of the most notorious, active, and money-making of all the Fleet parsons. His practice was chiefly in taverns, and he has been known to earn nearly sixty pounds in less than a month.

With such facilities for marriage, and such unprincipled ministers, it may easily be imagined that iniquitous schemes of all sorts were perpetrated under the name of Fleet weddings. The parsons were ready, for a bribe, to make false entries in their registers, to ante-date weddings, to give fictitious certificates, and to marry persons who would declare only the initials of their names. Thus, if a spinster or widow in debt desired to cheat her creditors by pretending to have been married before the debt was contracted, she had only to present herself at one of the marriage-houses in the Fleet, and, upon payment of a small additional fee to the clergyman, a man could instantly be found on the spot to act as bridegroom for a few

shillings, and the worthless chaplain could find a blank place in his Register for any year desired, so that there was no difficulty in making the necessary record. They would also, for a consideration, obliterate any given entry. The sham bridegrooms, under different names, were married over and over again, with the full knowledge of the clerical practitioners. If, in other instances, a libertine desired to possess himself of any young and unsuspecting woman, who would not yield without being married, nothing was easier than to get the service performed at the Fleet without even the specification of names; so that the poor girl might with impunity be shaken off at pleasure. Or if a parent found it necessary to legitimatise his natural children, a Fleet parson could be procured to give a marriage-certificate at any required date. In fact, all manner of people presented themselves for marriage at the unholy dens in the Fleet taverns,—runaway sons and daughters of peers,—Irish adventurers and foolish rich widows,—clodhoppers and ladies from St. Giles's,—footmen and decayed beauties,—soldiers and servant-girls,—boys in their teens and old women of seventy,—discarded mistresses, “given away” by their former admirers to pitiable and sordid bridegrooms,—night-wanderers and intoxicated apprentices,—men and women having already wives and husbands,—young heiresses conveyed thither by force, and compelled, *in terrorem*, to be brides,—and common labourers and female paupers dragged by parish-officers to the profane altar, stained by the relics of drunken orgies, and reeking with the fumes of liquor and tobacco! Nay, it sometimes happened that the “contracting parties” would send from houses of vile repute for a Fleet parson, who could readily be found to attend even in such places and under such circumstances, and there unite the couple in matrimony!

Of what were called the “Parish Weddings” it is impossible to speak in terms of sufficient reprobation. Many of the churchwardens and overseers of that day were in the frequent practice of “getting up” marriages in order to throw their paupers on neighbouring parishes. For example, in the *Daily Post* of the 4th July, 1741, is the following paragraph:—

“On Saturday last the churchwardens for a certain parish in the city, in order to remove a load from their own shoulders, gave forty shillings, and paid the expense of a Fleet marriage, to a miserable blind youth, known by the name of Ambrose Tally, who plays on the violin in Moorfields, in order to make a settlement on the wife and future family in Shoreditch parish. To secure their point they sent a parish-officer to see the ceremony performed.

One cannot but admire the ungenerous proceeding of this city parish, as well as their unjustifiable abetting and encouraging an irregularity so much and so justly complained of, as these Fleet matches. Invited and uninvited were a great number of poor wretches, in order to spend the bride's parish fortune."

In the *Grub Street Journal* for 1735, is the following letter, faithfully describing, says Mr. Burn, the treachery and low habits of the Fleet parsons:

"SIR,—There is a very great evil in this town, and of dangerous consequence to our sex, that has never been suppressed, to the great prejudice and ruin of many hundreds of young people every year, which I beg some of your learned heads to consider of, and consult of proper ways and means to prevent for the future. I mean the ruinous marriages that are practised in the liberty of the Fleet and thereabouts, by a set of drunken swearing parsons, with their myrmidons, that wear black coats, and pretend to be clerks and registers to the Fleet. These ministers of wickedness ply about Ludgate-hill, pulling and forcing people to some pedling ale-house or a brandy-shop to be married, even on a Sunday stopping them as they go to church, and almost tearing their clothes off their backs. To confirm the truth of these facts I will give you a case or two which lately happened.

"Since Midsummer last a young lady of birth and fortune was deluded and forced from her friends, and, by the assistance of a wry-necked swearing parson, married to an atheistical wretch, whose life is a continued practice of all manner of vice and debauchery. And since the ruin of my relation, another lady of my acquaintance had like to have been trepanned in the following manner. This lady had appointed to meet a gentlewoman at the Old Playhouse in Drury-lane, but extraordinary business prevented her coming. Being alone when the play was done, she bade a boy call a coach for the city. One dressed like a gentleman helps her into it, and jumps in after her. 'Madam,' says he, 'this coach was called for me, and since the weather is so bad, and there is no other, I beg leave to bear you company. I am going into the city, and will set you down wherever you please.' The lady begged to be excused; but he bade the coachman drive on. Being come to Ludgate-hill, he told her his sister, who waited his coming but five doors up the court, would go with her in two minutes. He went, and returned with his pretended sister, who asked her to step in one minute, and she would wait upon her in the coach. Deluded with the assurance of having his

sister's company, the poor lady foolishly followed her into the house, when instantly the sister vanished, and a tawny fellow in a black coat and black wig appeared. 'Madam, you are come in good time; the Doctor was just a-going.'—'The Doctor!' says she, horribly frightened, fearing it was a madhouse: 'what has the Doctor to do with me?'—'To marry you to that gentleman. The Doctor has waited for you these three hours, and will be payed by you or that gentleman before you go!'—'That gentleman,' says she, recovering herself, 'is worthy a better fortune than mine,' and begged hard to be gone. But Doctor Wryneck swore she should be married, or if she would not, he would still have his fee, and register the marriage from that night. The lady, finding she could not escape without money or a pledge, told them she liked the gentleman so well, she would certainly meet him to-morrow night, and gave them a ring as a pledge, which, says she, 'was my mother's gift on her death-bed, enjoining that if ever I married it should be my wedding-ring.' By which cunning contrivance she was delivered from the black Doctor and his tawny crew. Some time after this I went with this lady and her brother in a coach to Ludgate-hill in the day-time, to see the manner of their picking up people to be married. As soon as our coach stopped near Fleet Bridge, up comes one of the myrmidons. 'Madam,' says he, 'you want a parson?'—'Who are you?' says I.—'I am the clerk and register of the Fleet.'—'Show me the chapel.' 'At which comes a second, desiring me to go along with him. Says he, 'That fellow will carry you to a pedling alehouse.' Says a third, 'Go with me; he wilt carry you to a brandy-shop.' In the interim comes the Doctor. 'Madam,' says he, 'I'll do your job for you presently!'—'Well, gentlemen,' says I, 'since you can't agree, and I can't be married quietly, I'll put it off 'till another time:' so drove away. Learned sirs, I wrote this in regard to the honour and safety of my own sex: and if for our sakes you will be so good as to publish it, correcting the errors of a woman's pen, you will oblige our whole sex, and none more than, sir,

"Your constant reader and admirer,

"VIRTUOUS."

Such are but a few of the iniquities practised by the ministers of the Fleet. Similar transactions were carried on at the Chapel in May Fair, the Mint in the Borough, the Savoy, and other places about London; until the public scandal became so great, especially in consequence of the marriage at the Fleet of the Hon. Henry Fox with Georgiana Caroline, eldest daughter of the Duke of Richmond, that at length,—not, however, without much and

zealous opposition,—a Marriage Bill was passed, enacting that any person solemnising matrimony in any other than a church or public chapel, without banns or license, should, on conviction, be adjudged *guilty of felony*, and be transported for fourteen years, and that all such marriages *should be void*. This act was to take effect from the 25th of March, 1754.

Upon the passing of this law, Keith, the parson who has already been alluded to, published a pamphlet entitled, “Observations on the Act for Preventing Clandestine Marriages.” To this he prefixed his portrait. The following passages are highly characteristic of the man:—

“ ‘Happy is the wooing that is not long a-doing,’ is an old proverb, and a very true one; but we shall have no occasion for it after the 25th day of March next, when we are commanded to read it backwards, and from that period (fatal indeed to Old England!) we must date the declension of the numbers of the inhabitants of England.”—“As I have married many thousands, and consequently have on those occasions seen the humour of the lower class of people, I have often asked the married pair how long they had been acquainted; they would reply, some more, some less, but the generality did not exceed the acquaintance of a week, some only of a day, half a day,” &c.—“Another inconveniency which will arise from this act will be, that the expense of being married will be so great, that few of the lower class of people can afford; for I have often heard a Fleet-parson say, that many have come to be married when they have but had half-a-crown in their pockets, and sixpence to buy a pot of beer, and for which they have pawned some of their clothes.”—“I remember once on a time, I was at a public-house at Radcliff, which then was full of sailors and their girls; there was fiddling, piping, jigging, and eating: at length, one of the tars starts up, and says, ‘D—n ye, Jack, I’ll be married just now; I will have my partner, and....’ The joke took, and in less than two hours ten couple set out for the Fleet. I staid their return. They returned in coaches, five women in each coach, the tars, some running before, others riding on the coach-box, and others behind. The cavalcade being over, the couples went up into an upper room, where they concluded the evening with great jollity. The next time I went that way I called on my landlord and asked him concerning this marriage adventure. He at first stared at me, but recollecting, he said those things were so frequent that he hardly took any notice of them; for, added he, it is a common thing when a fleet comes in, to have two or three hundred marriages in a week’s time, among the sailors.” He humorously

concludes, “If the present Act in the form it now stands should (which I am sure is impossible) be of service to my country, I shall then have the satisfaction of having been the occasion of it, because the compilers thereof have done it with a pure design of suppressing my *Chapel*, which makes me the most celebrated man in this kingdom, though not the greatest.”

The passing of the Marriage Act put a stop to the marriages at May Fair; but the day before the Act came into operation (Lady-day 1754)^[10] sixty-one couple were married there.^[11]

It would exceed the limits of this brief sketch were we to give the *official* history of the different scandalous ministers who thus disgraced themselves, and impiously trifled with one of our most sacred institutions. That some of these wretched adventurers were merely pretended clergymen is certain; but it cannot be denied that many of them were actually in holy orders.

Of this latter class were Grierson and Wilkinson, the subjects of our present notice; and notwithstanding the heavy penalties imposed by the statute, they were not to be deterred from continuing the dangerous and unlawful traffic in which they had been engaged. Wilkinson, who was the brother of a celebrated comedian of the day, it would appear, was the owner of a chapel in the Savoy, and Grierson was his assistant; and their proceedings having at length become too notorious to be passed over, proceedings were instituted against them. Grierson was first apprehended, and his employer sought safety in flight; but supposing that he could not be deemed guilty of any offence, as he had not actually performed the marriage ceremony, a duty which he left to his journeyman, he returned to his former haunts. It was not long before he was secured, however, and having been convicted with Grierson, they were shipped off as convicts together to the colonies, in the year 1757.

WILLIAM PAGE.

EXECUTED FOR HIGHWAY ROBBERY.

WILLIAM PAGE was the son of a respectable farmer at Hampton, and being a lad of promising parts he was sent to London to be educated under the care of his cousin, a haberdasher. His early life, by the superstitious believers of old sayings, would be adduced as proof positive of the truth of the old adage, that "a man who is born to be hanged will never be drowned;" and although we cannot put much faith generally in such notions, we cannot help in this instance pointing out some peculiarities in the adventures of our hero, which might have been considered by him as a sufficient indication of his fate. The early chronicler of his life says, that, during the hard frost in the winter of 1739, Page was sliding with other boys on the canal in St. James's Park, when the ice broke under him, and he sank; and the ice immediately closing over him, he must have perished; but just at this juncture the ice again broke with another boy near him, and Page arose precisely at the vacancy made by the latter, and was saved, although his companion was drowned. The second instance of the intervention of his good fortune occurred in the summer following this singular escape. Page was then trying to swim with corks in the Thames, when they slipped from under his arms, and he sank; but a waterman got him up, and he soon recovered. On the third occasion he was going up the river on a party of pleasure, about five years afterwards, with several other young fellows, when the boat overset with them in Chelsea Reach, and every one in the boat was drowned except Page. But his fourth and last escape from a watery grave was even more miraculous than any of those which preceded it. About eighteen months after that which is last related he was on a voyage to Scotland. The ship in which he sailed foundered in Yarmouth Roads, and most of the people on board perished; but another vessel, observing their distress, sent out a long-boat, by the help of which Page and a few others saved their lives.

To return, however, to the ordinary events of his life. It appears, that his cousin having given him employment in his shop, his vanity prevented him from bestowing that attention on his business to which it was entitled; and

his extravagance being checked by his relation, who stopped his pocket-money in order to curb his refined notions, he had recourse to plunder to supply his necessities. Money being repeatedly missed from the till, and all attempts to discover the thief among the servants having failed, suspicion at length rested on our hero; and his guilt having been distinctly proved he was dismissed from his situation forthwith. An effort which he made to conciliate his relation after this proved ineffectual; and his father, who had learned the nature of his irregularities, having refused to render him any assistance, he at length journeyed to York, and there joined a company of strolling players. His exertions in his new capacity were not unsuccessful; but at length attempting to play Cato while in a state of intoxication, his character in the play and his condition of person were found to agree so badly, that he was compelled to be carried from the stage, and was dismissed from his engagement. He afterwards went to Scarborough, where his necessities compelled him to accept a situation as livery-servant with a gentleman; but his master having been robbed on his way to town, he formed a notion that highway robbery was an easy and profitable mode of living; and determined that so soon as he should have the means of starting in the profession, he would become a "gentleman of the road." Quitting his master at the end of twelve months, he became acquainted with a woman of abandoned character, in conjunction with whom he took lodgings near Charing Cross, and he then commenced highwayman. His first expedition was on the Kentish road; and meeting the Canterbury stage near Shooter's-hill, he robbed the passengers of watches and money to the amount of about thirty pounds; and then riding through great part of Kent to take an observation of the cross-roads, he returned to London. He now took lodgings near Grosvenor-square, and frequenting billiard-tables won a little money, which, added to his former stock, prevented his having recourse to the highway again for a considerable time; but at length he met with a gambler who was more expert than himself, and stripped him of all his money. He then again sought the road as a means of subsistence. His exertions were for some time fruitless; but at length meeting with a handsome booty, he was emboldened by his success; and taking handsome lodgings he soon gained the friendship of some young men of fashion. His next object was to improve his mind and person; and having gained some knowledge, by dint of impudence and through a pleasing exterior he got introduced into decent society.

By this time, he had drawn, from his own observation and for his private use, a most curious map of the roads twenty miles round London; and, driving in a phaeton and pair, he was not suspected for a highwayman.

In his excursions for robbery he used to dress in a laced or embroidered frock, and wear his hair tied behind; but when at a distance from London, he would turn into some unfrequented place, and, having disguised himself in other clothes, with a grizzle or black wig, and saddled one of his horses, he would ride to the main road, and commit a robbery. This done, he hastened back to the carriage, resumed his former dress, and drove to town again. He was frequently cautioned to be on his guard against a highwayman, who might meet and rob him: "No, no," said he, "he cannot do it a second time, unless he robs me of my coat and shirt, for he has taken all my money already."

He had once an escape of a very remarkable kind:—Having robbed a gentleman near Putney, some persons came up at the juncture, and pursued him so closely that he was obliged to cross the Thames for his security. In the interim, some haymakers crossing the field where Page's carriage was left, found and carried off his gay apparel; and the persons who had pursued him, meeting them, charged them with being accomplices in the robbery. A report of this affair being soon spread, Page heard of it, and throwing his clothes into a well, he went back almost naked, claimed the carriage as his own, and declared that the men had stripped him, and thrown him into a ditch. All the parties now went before a justice of the peace; and the maker of the carriage appearing, and declaring that it was the property of Mr. Page, the poor haymakers were committed for trial; but obtained their liberty after the next assizes, as Page did not appear to prosecute.

After this, he made no farther use of the phaeton as a disguise for his robberies; but it served him occasionally on parties of pleasure, which he sometimes took with a girl whom he had then in keeping.

Page was passionately fond of play, and his practice this way was occasionally attended with good fortune. One night he went to the masquerade with only ten guineas, but joining a party at cards, he won above five hundred pounds; but this money was no sooner in his possession, than a lady, most magnificently dressed, made some advances to him, on which he put the most favourable construction. After some conversation, she told him that her mother was a widow who would not admit of his

visits; but that possibly he might prevail on her attendant, whose husband was a reputable tradesman, to give them admission to her house.

Page, who had repeatedly heard the other address her by the title of “My lady,” became very importunate with the good woman to grant this favour; and at length, all parties having agreed, the servants were called. Page handed the lady and her attendant into a coach, on which was the coronet of a viscountess. Two footmen with flambeaux got up behind, and the coachman was ordered to drive home. The “home” which they reached, however, was a brothel; and on the lady quitting him in the morning, he found that she had been dexterous enough to rob him of his pocket-book and its contents, which no doubt more than compensated her for the favour which she had bestowed upon him.

The road and the gaming-table were now his only means of support, and he found a fitting companion in his proceedings in the person of an old schoolfellow named Darwell, in conjunction with whom, in the course of three years, he committed upwards of three hundred robberies. At length, however, their iniquitous proceedings caused an active search to be made for them; and Darwell being apprehended, “peached” upon his companion, and disclosed the places where it was most likely that he would be found.

The consequence was, that Page was apprehended at the Golden Lion, near Hyde Park, when three loaded pistols were found on him, with powder, balls, a wig to disguise himself, and the correct map of the roads round London which we have already mentioned.

He was sent to Newgate, and an advertisement inserted in the papers, requesting such persons as had been robbed to attend his re-examination but he denied all that was alleged against him; and, as he was always disguised when he committed any robbery, no person present could identify his person.

He was tried at length on suspicion of robbing Mr. Webb in Belfourd Lane, but acquitted for want of evidence; and after this he was tried at Hertford, but again acquitted for a like reason.

From Hertford he was removed to Maidstone jail, and being tried at Rochester for robbing Captain Farrington on Blackheath, he was capitally convicted, and received sentence of death. After conviction he acknowledged his guilt, yet exerted himself in the most strenuous manner to procure a pardon. He wrote to a nobleman with this view, and also sent a

letter to a gentleman with whom he had lived as a servant, begging his interest that he might be sent to America as a foot-soldier; but his endeavours proved fruitless, and he was ordered for execution.

This extraordinary malefactor suffered at Maidstone on the 6th of April, 1758.

EUGENE ARAM.

EXECUTED FOR MURDER.

WE are now arrived at that period which brings to our view perhaps the most remarkable trial in our whole Calendar. The offender was a man of extraordinary endowments and of high education, and therefore little to be suspected of committing so foul a crime as that proved against him.

Much has been written upon the subject of this murder, and attempts have been made, even of late years, to show the innocence of Aram. The contents of the publications upon the subject would be sufficient of themselves to fill our volumes; and it would be useless to republish arguments, which, having had due circulation and due consideration, have failed in their object, which was to convince the world that this offender was the victim of prejudice, and fell an innocent sacrifice to the laws of his country. We shall, therefore, abstain from giving this case greater space in our Calendar than that to which it is entitled, as well on account of the peculiarity of its nature, as of the great interest which its mention has always excited. The peculiarities of the case are twofold; first, the great talents of the offender, and secondly, the extraordinary discovery of the perpetration of the murder, and of the evidence which led to the conviction of the murderer. On the former point, indeed, some seem to have entertained a doubt; for about thirty years after his execution, his name being inserted among the literary characters of the country, in the "*Biographia Britannica*," and his high erudition being mentioned, a pamphlet was put forth, complaining of this step on the part of the editors of that work, and accusing them of a want of impartiality in affording their meed of praise to Aram, and withholding it from Bishop Atherton, who also met with an ignominious death. The charge was, however, answered more ably than it was made; and as it may prove interesting to our readers, we shall subjoin the refutation to the complaint, which appears distinctly to support Aram's right to the character which was originally given to him. It is said:—

"Objections are made to the admission of Eugene Aram into the *Biographia Britannica*, and the exclusion of Bishop Atherton; but it appears

to me that the remarks on this subject are far from being just. The insertion of Aram is objected to because he was a man of bad principles, and terminated his life on the gallows; but it should be remembered that it was never understood that in the *Biographia Britannica* the lives of virtuous men only were to be recorded. In the old edition are the lives of several persons who ended their days by the hands of the executioner. Bonner was not a virtuous man, and yet was very properly inserted, as well as Henry Cuff, who was executed at Tyburn in the reign of Queen Elizabeth. As to Eugene Aram, it is truly said of him in the *Biographia Britannica*, in the article objected to, that the progress he made in literature, allowing for the little instruction he had received, may justly be considered as astonishing; and that his powers of mind were uncommonly great cannot reasonably be questioned. Eugene Aram possessed talents and acquisitions that might have classed him among the most respectable of human characters, if his moral qualities had been equal to his intellectual. It was certainly the extraordinary talents and acquirements of Eugene Aram which occasioned his introduction into the *Biographia*; and I know that by persons of undoubted taste and judgment, the account of him in that work has been thought a curious and interesting article. His singular defence alone was well worthy of being preserved in such a work.

“With respect to Bishop Atherton, he never had the least claim to insertion in such a work as the *Biographia Britannica*, and was therefore very properly omitted in the new edition. He was not in the least distinguished for genius or learning; his merely being a bishop could give him no just pretensions, and still less the unnatural crime for which he suffered. The friends of Bishop Atherton say that his reputation was suspected to have been destroyed, and his catastrophe effected, more by the contrivance of a party than by the aggravated guilt with which he was charged. If this were perfectly just, which however may be reasonably questioned, it would not give Bishop Atherton the least claim to insertion in the *Biographia Britannica*. Aram was inserted on account of his uncommon talents and learning; but Atherton, who was not distinguished for either, never had the least pretension to be recorded in such a work.”

The talents and abilities of this criminal, therefore, seem to be undoubted; but that a man possessing powers of intellect so great should have been guilty of such a crime as that which he committed, seems most extraordinary.

Within the second peculiarity of the case will very properly come the narrative of the life of its hero, as well as the circumstances attending the commission of the crime and the discovery of its perpetrator. A succinct description of the case will probably be more intelligible than a detail of all the exceedingly minute circumstances by which it was surrounded.

Eugene Aram was born at the village of Netherdale, in Yorkshire, in the year 1704, of an ancient and highly respectable family; but although it is shown by the chronicles that one of his ancestors served the office of high sheriff in the reign of Edward the Third, it appears that at the time of the birth of Eugene, the vicissitudes of fortune had so far reduced its rank, that his father was compelled to support himself and his children by working as a gardener in the house of Sir Edward Blackett; although in that situation he was well employed and highly respected. In his infancy, Aram's parents removed to the village of Shelton, near Newby, in the same county; and when about six years old, his father, having saved a small sum of money out of his weekly earnings, purchased a small cottage at Bondgate, near Rippon. The first indications of that singular genius which afterwards displayed itself in so remarkable a manner in our hero, were given while his father was in the service of Sir Edward. Eugene was employed as an attendant upon that gentleman, and he early displayed a taste for literature, which was fostered and supported by his indulgent master. His disposition was solitary, and every leisure hour which presented itself to him was devoted to retirement and study; and in the employment which good fortune had bestowed upon him, ample opportunities were afforded him of following the bent of his inclinations. He applied himself chiefly to mathematics, and at the age of sixteen he had acquired a considerable proficiency in them; but his kind and indulgent master dying about this time, he was employed by his brother, Mr. Christopher Blackett, a merchant in London, who took him into his service as book-keeper. This was an occupation ill suited to his desires, and an attack of the small pox having rendered his return to Yorkshire necessary, he did not afterwards resume his employment in London, but at the invitation of his father he remained at Newby, to pursue his studies. He now found that the study of mathematics possessed but few charms; and the politer subjects of poetry, history, and antiquities, next engaged his attention. Every day served to increase the store of knowledge which he possessed, and his fame as a scholar having now extended to his native place, he was invited to take charge of a school

there. The means of study and of profit appeared to him to be thus united, and he immediately accepted the offer which was made; and after a short time he married a young woman of the village, to whom he appeared tenderly attached. To this marriage, however, which proved unhappy, he attributed all his subsequent misfortunes; but whether with truth or not, the course of the narrative does not distinctly disclose. His deficiency in the learned languages now struck him, and he immediately set about conquering the difficulties which presented themselves in this new field of research; and so rapid was his progress, that ere a year had passed, he was able to read with ease the less difficult of the Latin and Greek historians and poets. In the year 1734 an opportunity was afforded him of adding a knowledge of the Hebrew language to his list of acquirements; for in that year Mr. William Norton, of Knaresborough, a gentleman of great talents, who had conceived a strong attachment towards him, invited him to his house, and afforded him the means necessary for pursuing its study. He continued in his situation in Yorkshire until the year 1745, when he again visited London, and accepted an engagement in the school of the Rev. Mr. Plainblanc, in Piccadilly, as usher in Latin and writing; and, with this gentleman's assistance, he acquired the knowledge of the French language. He was afterwards employed as an usher and tutor in several different parts of England; in the course of which, through his own exertions, he became acquainted with heraldry and botany; and so great was his perseverance, that he also learned the Chaldaic and Arabic languages. His next step was to investigate the Celtic in all its dialects; and, having begun to form collections, and make comparisons between the Celtic, the English, the Latin, the Greek, and the Hebrew, and found a great affinity between them, he resolved to proceed through all those languages, and to form a comparative lexicon. But, amid these learned labours and inquiries, it appears that he committed a crime which could not naturally have been expected from a man of so studious a turn, as the inducement which led him to it was merely the gain of wealth, of which the scholar is seldom covetous.

On the 8th of February 1745, in conjunction with a man named Richard Houseman, he committed the murder for which his life was afterwards forfeited to the laws of his country. The object of this diabolical crime was Daniel Clarke, a shoemaker, living at Knaresborough; and it appears that this unfortunate man, having lately married a woman of a good family,

industriously circulated a report that his wife was entitled to a considerable fortune, which he should soon receive. Aram and Houseman, in consequence, conceiving hopes of procuring some advantage from this circumstance, persuaded Clarke to make an ostentatious show of his own riches, in order to induce his wife's relations to give him that fortune of which he had boasted. It is not impossible that in giving their subsequent victim this advice, they may at the time have acted from a spirit of friendship, and without any intention of committing that crime for which they afterwards received their reward; but the belief that the design was already formed receives equal confirmation from subsequent events.

Clarke, it seems, was easily induced to comply with a hint so agreeable to his own desires; and he borrowed, and bought on credit, a large quantity of silver plate, with jewels, watches, rings, &c. He told the persons of whom he purchased, that a merchant in London had sent him an order to buy such plate for exportation; and no doubt was entertained of his credit till his sudden disappearance in February 1745, when it was imagined that he had gone abroad, or at least to London, to dispose of his ill-acquired property.

Whatever doubt may exist as to the original intention of the parties, their object at this time is perfectly clear, and there can be no hesitation in supposing that Aram and Houseman had at this time determined to murder their dupe, in order to share the booty. On the night of the 8th February 1745, they persuaded Clarke to take a walk with them, in order to consult upon the proper method to dispose of the effects; and, engaged in the discussion of this subject, they turned into a field, at a small distance from the town, well known by the name of St. Robert's Cave. On their arrival there, Aram and Clarke went over a hedge towards the cave; and when they had got within six or seven yards of it, Houseman (by the light of the moon) saw Aram strike Clarke several times, and at length beheld him fall, but never saw him afterwards. These were the facts immediately connected with the murder, which were proved at the trial by Houseman, who was admitted King's evidence; and, whatever were the subsequent proceedings of the parties in respect of the body, they must remain a mystery.

The murderers, going home, shared Clarke's ill-gotten treasure, the half of which Houseman concealed in his garden for a twelvemonth, and then took it to Scotland, where he sold it. In the mean time Aram carried his

share to London, where he sold it to a Jew, and then returned to his engagement with Mr. Plainblanc, in Piccadilly.

Fourteen years afterwards elapsed, and no tidings being received of Aram, it was concluded that he was dead; and these fourteen years had also elapsed without any clue being obtained to unravel the mystery of the sudden disappearance of Clarke. The time at length came, however, at which all the doubts which existed upon both subjects were to be solved. In the year 1758, a labourer named Jones was employed to dig for stone in St. Robert's Cave, in order to supply a limekiln at a place called Thistle Hill, near Knaresborough; and having dug about two feet deep, he found the bones of a human body, still knit together by the ligaments of the joints. It had evidently been buried double; and there were indications about it which could not but lead to the supposition that some unfair means had been resorted to in order to deprive the living being of life. The incident afforded good grounds for general curiosity being raised, and general inquiry taking place; and hints were soon thrown out that it might be the body of Clarke, whose unexpected disappearance was still fresh in the memory of many, and whose continued absence had been the subject of so much surprise. Suggestions of his murder which had been thrown out by Aram's wife were called to mind, and a coroner's inquest being held, she was summoned. By this time a general impression prevailed that the remains found were those of Clarke, and the testimony of Mrs. Aram greatly confirmed the idea which had gone abroad. She deposed that she believed that Clarke had been murdered by Houseman and her husband, and that they had acquired considerable booty for the crime; but she was unable to give any account of her husband, or to state whether he still was in existence or not. Inquiries being made, however, Houseman was soon found; and on his being brought forward to be examined, he exhibited the utmost confusion. The coroner desired that he would take up one of the bones, probably with a view of seeing what effect such a proceeding would produce; and upon his doing so, he showed still further terror, and exclaimed, "This is no more Daniel Clarke's bone than it is mine!" The suspicions which were already entertained of his guilt were, in a great measure, confirmed by this observation; and it was generally believed that he knew the precise spot where the real remains of the murdered man were deposited, even if he had not been a party to their interment. He was therefore strictly questioned; and after many attempts at evasion, he said that Clarke was murdered by

Eugene Aram, and that his body was buried in St. Robert's Cave, but that the head lay further to the right in the turn near the entrance of the cavern than the spot where the skeleton produced was found. Search was immediately made, and a skeleton was found in a situation corresponding exactly with that which had been pointed out. In consequence of this confession an inquiry was immediately set on foot for Aram, and after a considerable time he was discovered, occupying the situation of usher in a school at Lynn in Norfolk.

He was immediately apprehended and conveyed in custody to York Castle; and on the 13th of August 1759, he was brought to trial at the assizes before Mr. Justice Noel. The testimony of Houseman to the facts which we have described, and of the other witnesses whose evidence was of a corroborative character, was then adduced; and from the proof which was given, it appeared that the share of plunder derived by the prisoner did not exceed one hundred and fifty pounds.

Aram's defence was both ingenious and able, and would not have disgraced any of the best lawyers of the day. It is a curious and interesting address, and we subjoin it as affording the best criterion of the talents of the prisoner which can well be adduced. He thus addressed the court:—

“My Lord,—I know not whether it is of right or through some indulgence of your lordship that I am allowed the liberty at this bar, and at this time, to attempt a defence, incapable and uninstructed as I am to speak; since, while I see so many eyes upon me, so numerous and awful a concourse fixed with attention and filled with I know not what expectancy, I labour not with guilt, my lord, but with perplexity; for having never seen a court but this, being wholly unacquainted with law, the customs of the bar, and all judiciary proceedings, I fear I shall be so little capable of speaking with propriety in this place, that it exceeds my hope if I shall be able to speak at all.

“I have heard, my lord, the indictment read, wherein I find myself charged with the highest crime, with an enormity I am altogether incapable of; a fact, to the commission of which there goes far more insensibility of heart, more profligacy of morals, than ever fell to my lot; and nothing possibly could have admitted a presumption of this nature but a depravity not inferior to that imputed to me. However, as I stand indicted at your lordship's bar, and have heard what is called evidence adduced in support of

such a charge, I very humbly solicit your lordship's patience, and beg the hearing of this respectable audience, while I, single and unskilful, destitute of friends and unassisted by counsel, say something, perhaps like argument, in my defence. I shall consume but little of your lordship's time: what I have to say will be short; and this brevity, probably, will be the best part of it: however, it is offered with all possible regard and the greatest submission to your lordship's consideration, and that of this honourable court.

"First, my lord, the whole tenor of my conduct in life contradicts every particular of the indictment: yet had I never said this, did not my present circumstances extort it from me, and seem to make it necessary. Permit me here, my lord, to call upon malignity itself, so long and cruelly busied in this prosecution, to charge upon me any immorality of which prejudice was not the author. No, my lord, I concerted no schemes of fraud, projected no violence, injured no man's person or property. My days were honestly laborious, my nights intensely studious; and I humbly conceive my notice of this, especially at this time, will not be thought impertinent or unseasonable, but, at least, deserving some attention; because, my lord, that any person, after a temperate use of life, a series of thinking and acting regularly, and without one single deviation from sobriety, should plunge into the very depth of profligacy precipitately and at once, is altogether improbable and unprecedented, and absolutely inconsistent with the course of things. Mankind is never corrupted at once. Villany is always progressive, and declines from right, step by step, till every regard of probity is lost, and every sense of all moral obligation totally perishes.

"Again, my lord, a suspicion of this kind, which nothing but malevolence could entertain and ignorance propagate, is violently opposed by my very situation at that time with respect to health; for, but a little space before, I had been confined to my bed, and suffered under a very long and severe disorder, and was not able, for half a year together, so much as to walk. The distemper left me indeed, yet slowly, and in part—but so macerated, so enfeebled, that I was reduced to crutches; and so far from being well about the time I am charged with this fact, I have never, to this day, perfectly recovered. Could then a person in this condition take anything into his head so unlikely, so extravagant?—I, past the vigour of my age, feeble and valetudinary, with no inducement to engage, no ability to accomplish, no weapon wherewith to perpetrate such a deed, without interest, without power, without motive, without means. Besides, it must

needs occur to every one, that an action of this atrocious nature is never heard of, but when its springs are laid open. It appears that it was to support some indolence, or supply some luxury; to satisfy some avarice, or oblige some malice; to prevent some real or some imaginary want: yet I lay not under the influence of these. Surely, my lord, I may, consistently with both truth and modesty, affirm thus much; and none who have any veracity and knew me, will ever question this.

“In the second place, the disappearance of Clarke is suggested as an argument of his being dead; but the uncertainty of such an inference from that, and the fallibility of all conclusions of such a sort from such a circumstance, are too obvious and too notorious to require instances; yet superseding many, permit me to produce a very recent one, and that afforded by this Castle.

“In June 1757, William Thompson, for all the vigilance of this place, in open daylight and double-ironed, made his escape, and, notwithstanding an immediate inquiry set on foot, the strictest search, and all advertisement, was never heard of since. If, then, Thompson got off unseen, through all these difficulties, how very easy it was for Clarke, when none of them opposed him! But what would be thought of a prosecution commenced against any one seen last with Thompson?

“Permit me next, my lord, to observe a little upon the bones which have been discovered. It is said (which perhaps is saying very far) that these are the skeleton of a man. It is possible, indeed, it may; but is there any certain known criterion which incontestably distinguishes the sex in human bones? Let it be considered, my lord, whether the ascertaining of this point ought not to precede any attempt to identify them?

“The place of their depositum, too, claims much more attention than is commonly bestowed upon it; for of all places in the world, none could have mentioned any one wherein there was greater certainty of finding human bones than a hermitage, except he should point out a churchyard; hermitages, in time past, being not only places of religious retirement, but of burial too: and it has scarce or never been heard of, but that every cell now known contains or contained these relics of humanity, some mutilated and some entire. I do not inform, but give me leave to remind your lordship, that here sat solitary Sanctity, and here the hermit or the anchoress hoped that repose for their bones when dead they here enjoyed when living.

“All the while, my lord, I am sensible this is known to your lordship, and many in this Court, better than to me; but it seems necessary to my case that others, who have not at all, perhaps, adverted to things of this nature, and may have concern in my trial, should be made acquainted with it. Suffer me then, my lord, to produce a few of many evidences that these cells were used as repositories of the dead, and to enumerate a few in which human bones have been found, as it happened in this question; lest, to some, that accident might seem extraordinary, and, consequently, occasion prejudice.

“1. The bones, as was supposed, of the Saxon saint, Dubritius, were discovered buried in his cell at Guy’s Cliff, near Warwick; as appears from the authority of Sir William Dugdale.

“2. The bones thought to be those of the anchoress Rosia were but lately discovered in a cell at Royston, entire, fair, and undecayed, though they must have lain interred for several centuries; as is proved by Dr. Stukely.

“3. But my own country—nay, almost this neighbourhood—supplies another instance; for in January 1747, were found, by Mr. Stovin, accompanied by a reverend gentleman, the bones, in part, of some recluse, in the cell at Lindholm, near Hatfield. They were believed to be those of William of Lindholm, a hermit, who had long made this cave his habitation.

“4. In February 1744, part of Woburn Abbey being pulled down, a large portion of a corpse appeared, even with the flesh on, and which bore cutting with a knife; though it is certain this had lain above two hundred years, and how much longer is doubtful; for this abbey was founded in 1145, and dissolved in 1538 or 1539.

“What would have been said, what believed, if this had been an accident to the bones in question?

“Farther, my lord:—it is not yet out of living memory that at a little distance from Knaresborough, in a field, part of the manor of the worthy and patriot baronet who does that borough the honour to represent it in parliament, were found, in digging for gravel, not one human skeleton only, but five or six, deposited side by side, with each an urn placed at its head, as your lordship knows was usual in ancient interments.

“About the same time, and in another field, almost close to this borough, was discovered also, in searching for gravel, another human skeleton; but the piety of the same worthy gentleman ordered both pits to be filled up again, commendably unwilling to disturb the dead.

“Is the invention of these bones forgotten, then, or industriously concealed, that the discovery of those in question may appear the more singular and extraordinary? whereas, in fact, there is nothing extraordinary in it. My lord, almost every place conceals such remains. In fields, in hills, in highway sides, in commons, lie frequent and unsuspected bones; and our present allotments for rest for the departed are but of some centuries.

“Another particular seems not to claim a little of your lordship’s notice, and that of the gentlemen of the jury; which is, that perhaps no example occurs of more than one skeleton being found in one cell: and in the cell in question was found but one; agreeable, in this, to the peculiarity of every other known cell in Britain. Not the invention of one skeleton, but of two, would have appeared suspicious and uncommon. But it seems another skeleton has been discovered by some labourer, which was full as confidently averred to be Clarke’s as this. My lord, must some of the living, if it promotes some interest, be made answerable for all the bones that earth has concealed and chance exposed? and might not a place where bones lay be mentioned by a person by chance as well as found by a labourer by chance? or is it more criminal accidentally to name where bones lie than accidentally to find where they lie?

“Here too is a human skull produced, which is fractured; but was this the cause, or was it the consequence, of death? was it owing to violence, or was it the effect of natural decay? If it was violence, was that violence before or after death? My lord, in May 1732, the remains of William, Lord Archbishop of this province, were taken up, by permission, in this cathedral, and the bones of the skull were found broken; yet certainly he died by no violence offered to him alive that could occasion that fracture there.

“Let it be considered, my lord, that, upon the dissolution of religious houses and the commencement of the Reformation, the ravages of those times affected both the living and the dead. In search after imaginary treasures, coffins were broken up, graves and vaults dug open, monuments ransacked, and shrines demolished; and it ceased about the beginning of the reign of Queen Elizabeth. I entreat your lordship, suffer not the violence, the depredations, and the iniquities of those times, to be imputed to this.

“Moreover, what gentleman here is ignorant that Knaresborough had a castle, which, though now a ruin, was once considerable both for its

strength and garrison? All know it was vigorously besieged by the arms of the parliament; at which siege, in sallies, conflicts, flights, pursuits, many fell in all the places round it, and, where they fell, were buried, for every place, my lord, is burial-earth in war; and many, questionless, of these rest yet unknown, whose bones futurity shall discover.

“I hope, with all imaginable submission, that what has been said will not be thought impertinent to this indictment; and that it will be far from the wisdom, the learning, and the integrity of this place, to impute to the living what zeal in its fury may have done—what nature may have taken off, and piety interred—or what war alone may have destroyed, alone deposited.

“As to the circumstances that have been raked together, I have nothing to observe but that all circumstances whatever are precarious, and have been but too frequently found lamentably fallible; even the strongest have failed. They may rise to the utmost degree of probability, yet they are but probability still. Why need I name to your lordship the two Harrisons recorded by Dr. Howel, who both suffered upon circumstances because of the sudden disappearance of their lodger, who was in credit, had contracted debts, borrowed money, and went off unseen, and returned a great many years after their execution? Why name the intricate affair of Jacques de Moulin, under King Charles II. related by a gentleman who was counsel for the crown? And why the unhappy Coleman, who suffered innocently, though convicted upon positive evidence; and whose children perished for want, because the world uncharitably believed the father guilty? Why mention the perjury of Smith, incautiously admitted king’s evidence: who, to screen himself, equally accused Faircloth and Loveday of the murder of Dun; the first of whom, in 1749, was executed at Winchester; and Loveday was about to suffer at Reading, had not Smith been proved perjured, to the satisfaction of the Court, by the governor of Gosport hospital?

“Now, my lord, having endeavoured to show that the whole of this process is altogether repugnant to every part of my life; that it is inconsistent with my condition of health about that time; that no rational inference can be drawn that a person is dead who suddenly disappears; that hermitages are the constant depositaries of the bones of a recluse; that the proofs of this are well authenticated; that the revolutions in religion, or the fortunes of war, have mangled or buried the dead;—the conclusion remains, perhaps, no less reasonable than impatiently wished for. I, at last, after a year’s confinement, equal to either fortune, put myself upon the justice, the

candour, and the humanity of your lordship; and upon yours, my countrymen, gentlemen of the jury.”

The delivery of this address created a very considerable impression in court; but the learned judge having calmly and with great perspicuity summed up the evidence which had been produced, and having observed upon the prisoner’s defence, which he declared to be one of the most ingenious pieces of reasoning that had ever fallen under his notice, the jury, with little hesitation, returned a verdict of Guilty. Sentence of death was then passed upon the prisoner, who received the intimation of his fate with becoming resignation. After his conviction, he confessed the justice of his sentence to two clergymen who were directed to attend him—a sufficient proof of the fruitlessness of the efforts to prove him innocent, which the morbid sentimentality of late writers has induced them to attempt. Upon an inquiry being made of him as to his reason for committing the crime, he declared that he had reason to suspect Clarke of having had unlawful intercourse with his wife; and that at the time of his committing the murder he had thought that he was acting rightly, but that he had since thought that his crime could not be justified or excused. In the hopes of avoiding the ignominious death which he was doomed to suffer, on the night before his execution he attempted to commit suicide by cutting his arm in two places with a razor, which he had concealed for that purpose. This attempt was not discovered until the morning, when the jailor came to lead him forth to the place of execution, and he was then found almost expiring from loss of blood. A surgeon was immediately sent for, who found that he had wounded himself severely on the left arm, above the elbow and near the wrist, but he had missed the artery, and his life was prolonged only in order that it might be taken away on the scaffold. When he was placed on the drop, he was perfectly sensible, but was too weak to be able to join in devotion with the clergyman who attended him. He was executed at York on the 16th August 1759; and his body was afterwards hung in chains in Knaresborough Forest.

The following papers were afterwards found in his handwriting on the table in his cell. The first contained reasons for his attempt upon his life, and was as follows:—“What am I better than my fathers? To die is natural and necessary. Perfectly sensible of this, I fear no more to die than I did to be born. But the manner of it is something which should, in my opinion, be decent and manly. I think I have regarded both these points. Certainly no man has a better right to dispose of a man’s life than himself; and he, not

others, should determine how. As for any indignities offered to my body, or silly reflections on my faith and morals, they are, as they always were, things indifferent to me. I think, though contrary to the common way of thinking, I wrong no man by this, and hope it is not offensive to that eternal Being that formed me and the world: and as by this I injure no man, no man can be reasonably offended. I solicitously recommend myself to that eternal and almighty Being, the God of Nature, if I have done amiss. But perhaps I have not; and I hope this thing will never be imputed to me. Though I am now stained by malevolence and suffer by prejudice, I hope to rise fair and unblemished. My life was not polluted, my morals irreproachable, and my opinions orthodox. I slept sound till three o'clock, awaked, and then writ these lines—

Come, pleasing rest! eternal slumbers, fall!
Seal mine, that once must seal the eyes of all.
Calm and composed my soul her journey takes;
No guilt that troubles, and no heart that aches.
Adieu, thou sun! all bright, like her, arise!
Adieu, fair friends, and all that's good and wise!"

The second was in the form of a letter, addressed to a former companion, and was in the following terms:

"MY DEAR FRIEND,—Before this reaches you, I shall be no more a living man in this world, though at present in perfect bodily health: but who can describe the horrors of mind which I suffer at this instant? Guilt—the guilt of blood shed without any provocation, without any cause but that of filthy lucre—pierces my conscience with wounds that give the most poignant pains! 'Tis true the consciousness of my horrid guilt has given me frequent interruptions in the midst of my business or pleasures; but yet I have found means to stifle its clamours, and contrived a momentary remedy for the disturbance it gave me by applying to the bottle or the bowl, or diversions, or company, or business; sometimes one, and sometimes the other, as opportunity offered: but now all these, and all other amusements, are at an end, and I am left forlorn, helpless, and destitute of every comfort; for I have nothing now in view but the certain destruction both of my soul and body. My conscience will now no longer suffer itself to be hoodwinked or browbeat: it has now got the mastery; it is my accuser, judge, and executioner: and the sentence it pronounceth against me is more dreadful than that I heard from the bench, which only condemned my body to the pains of death, which are soon over; but conscience tells me plainly that she will summon me before another tribunal, where I shall have neither power nor means to stifle the evidence she will there bring against me; and that the sentence which will then be denounced will not only be irreversible, but will condemn my soul to torments that will know no end.

"Oh! had I but hearkened to the advice which dear-bought experience has enabled me to give, I should not now have been plunged into that dreadful gulf of despair which I find it impossible to extricate myself from; and therefore my soul is filled with horror inconceivable. I see both God and man my enemies, and in a few hours shall be exposed a public spectacle for the world to gaze at. Can you conceive any condition more horrible than mine? O, no! it cannot be! I am determined, therefore, to put a

short end to trouble I am no longer able to bear, and prevent the executioner by doing his business with my own hand, and shall by this means at least prevent the shame and disgrace of a public exposure, and leave the care of my soul in the hands of eternal mercy. Wishing you all health, happiness, and prosperity, I am, to the last moment of my life, yours, with the sincerest regard,

“EUGENE ARAM.”

It is impossible to view the circumstances of this remarkable case, without being struck with the extraordinary conduct of Aram. It is most singular that a man of his talents and mind should have leagued himself with a person like Houseman, who appears to have been utterly uneducated, in the commission of a murder, and with the hope only of gain; for whatever his declarations after his conviction may have been, as to his object being revenge only for the supposed injury which had been done him by his victim in the seduction of his wife, his ready acquiescence in the plot with another, and his willing acceptance of the plunder which was obtained, distinctly show that that was not the only end which he sought to attain. If, indeed, his feelings were outraged, as he suggested, he would have selected some other mode of obtaining that satisfaction to which the injury alleged would have entitled him; and it is hardly to be supposed that he would have obtained the assistance of another to secure the object which he had in view, more particularly when it appears that it was he who absolutely committed the foul act, without the immediate aid of Houseman,—a circumstance which clearly exemplifies the power which he possessed to dispose of his victim, and which would seem to show a desire on his part only to obtain the participation of another in a preconceived act, anticipating doubtless that some aid would be necessary in appropriating and disposing of the property which might be procured from the deceased, and also that some advice would be requisite in the event of suspicion attaching to him. But while these circumstances cannot but surprise us, how much more astonishing is the Divine power of Providence, which disclosed to human eyes, after so long a lapse of time, such evidence as in the result proved the commission of the crime, and which secured the seizure of the criminal, who had up to that time remained unsuspected, and who even then was living in fancied security, free from all fear of discovery and apprehension! It is said that

“—— Murder! though it have no tongue, will speak
With most miraculous organ:”

and how truly is this observation of the most wonderful of poets
exemplified by nearly every page of these records of crime!

WILLIAM ANDREW HORNE, ESQ.

EXECUTED FOR MURDER.

THE short notice which we give of this man exhibits a human being reduced far below the level of a beast.

The subject of the memoir was the eldest son of a gentleman of fortune in Nottinghamshire, who in vain strove to instil into the mind of his son any of those principles of rectitude, without which man cannot be considered to be humanised. The sports of the field, and all the dissipation which a country squire could at that time obtain, formed the amusements of this reckless youth. His passion for women was unbounded; but his love of gold surpassed all the other bad qualities which so peculiarly distinguished him. It was while his father yet lived that he committed that crime for which his life was eventually forfeited; and it appears to have occurred in the following manner:—

His passion for women led him to commit the most disgusting excesses; and at length so far had he carried his crimes, that an incestuous connexion took place between him and his sister, the result of which was the birth of a boy in the month of February 1724; Horne told his brother Charles of the circumstance three days afterwards, and at ten o'clock at night said that he must take a ride with him. He then put the new-born infant in a bag; and, mounting their horses, they rode to Annesley, in Nottinghamshire, at the distance of five miles, carrying the child alternately. On their arrival near the village, William dismounted and inquired if the child was living; and being answered in the affirmative, he took it and told his brother to wait till he came back. On his return, Charles demanded to know how he had disposed of the infant; to which he said that he had placed it behind a haystack, and covered it with hay.

They then returned home; and it was afterwards learned that the child died in the course of the night from exposure to the cold; but in a short time afterwards a quarrel arising between the brothers, the whole transaction was communicated by Charles to his father. The latter enjoined him to the strictest secrecy; and this injunction was obeyed up to the time of the old

man's death, which occurred in the year 1747, in the 102nd year of his age. The real estate of the family, being entailed, then descended to the eldest son; but the father had previously made over his personal property by deed of gift to his son Charles. No sooner had the new squire assumed the government of the estate than he behaved with the utmost severity towards his brother as well as his tenants; and at length the former, rendered miserable by his participation in the horrid act, having some business to transact with Mr. Cooke, an attorney at Derby, told him of the long-concealed affair, and asked his advice. The lawyer told him to go to a justice of the peace and make a full discovery of the whole transaction; and he accordingly went to a magistrate, and acquainted him with what had happened. He hesitated to take cognizance of the matter, however, saying that it might hang half the family; and as it had passed so many years ago, advised that it might remain a secret.

No further notice of the circumstance was then taken until the year 1754, when Charles being suddenly seized with a severe fit of illness, called in a Mr. White of Ripley, to whom, in anticipation of his death, he disclosed all that had occurred. Mr. White declined to interfere; but his patient almost immediately recovered, declaring that "he had been better ever since the weight of the transaction had been taken off his mind by his making the disclosure."

The discovery, however, soon became a matter of notoriety; and William Horne having a quarrel with a publican named Roe, the latter called him "an incestuous old dog." A suit in the Ecclesiastical Court at Lichfield was the consequence; and Roe being unsuccessful, was ordered to pay all the costs. This circumstance inflamed him with revenge; and having made such inquiries as persuaded him of the truth of the report which he had heard, he procured a warrant to be issued for the apprehension of his late opponent. A constable of Annesley and he in consequence proceeded to the house of the squire at about eight o'clock in the evening, and after having experienced considerable difficulty, succeeded in obtaining admittance. A strict search was then commenced; but it was not until a long time had elapsed that they discovered the object of their inquiry concealed in a large box, which had been described as containing clean linen. He was immediately carried before two justices, who committed him to take his trial at the following assizes.

On the 10th of August 1759, he was brought to trial before Lord Chief Baron Parker; and after a hearing of about nine hours, the jury found him guilty, and sentence of death passed of course.

Horne being convicted on a Saturday, was sentenced to die on the Monday following; but a number of gentlemen waited on the judge, intimating that he had been so long hardened in iniquity, that a farther time would be necessary to prepare him for his awful change, and a respite of a month was in consequence granted.

When this time was nearly expired, he received a reprieve during his majesty's pleasure; so that he began to entertain hopes of obtaining a free pardon: and he employed a considerable part of his time in writing to his friends to make interest to secure this object. He, however, confessed the justice of his conviction, but seemed little affected by the enormity of his crime, and frequently said, "it was d—d hard to suffer on the evidence of a brother for a crime committed so many years before."

He gave the following account of the transaction:—He said he had no design of destroying the infant, but put it in a bag lined with wool, and made a hole in the bag that it might not be stifled. He added, that the child was handsomely dressed, and he had intended to have left it at the door of Mr. Chaworth, of Annesley; but the dogs barking, and there being a light in the house, he desisted from his first intention, in the fear of a discovery. After some hesitation, he said, he resolved to place it under a warm haystack, in the hope that, when the servants came to fodder the cattle in the morning, it would be found.

He acknowledged to a clergyman who assisted him in his devotions that he forgave all his enemies, even his brother Charles; but made the following strange addition to his speech: "that if, at the day of judgment, God Almighty should ask him how his brother behaved, he would not give him a good character."

The hopes of a pardon which he had entertained soon proved unfounded; and an order arrived for his execution on the 11th December 1759, on which day he completed his 74th year, and terminated his life on a scaffold erected at Nottingham.

LAURENCE, EARL FERRERS.

EXECUTED FOR MURDER.

LAURENCE, EARL FERRERS, was a man of singular and most unhappy disposition. Descended of an ancient and noble family, he was doomed to expiate a crime, of which he had been guilty, at Tyburn.

It would appear that the royal blood of the Plantagenets flowed in his veins, and the earl gained his title in the following manner:—The second baronet of the family, Sir Henry Shirley, married a daughter of the celebrated Earl of Essex, who was beheaded in the reign of Queen Elizabeth; and his son, Sir Robert Shirley, died in the Tower, where he was confined during the Protectorate, for his attachment to the cause of the Stuarts. Upon the Restoration, the second son of Sir Robert succeeded to the title and estates; and Charles, anxious to cement the bonds which attached his friends to him, summoned him to the Upper House of Parliament by the title of Lord Ferrers of Chartley, as the descendant of one of the co-heiresses of the Earl of Essex; the title, which had existed since the reign of Edward III., having been in abeyance since the death of that unfortunate nobleman. In the year 1711, Robert, Lord Ferrers, was created by Queen Anne, Viscount Tamworth and Earl Ferrers; and it appears that although the estates of the family were very great, they were vastly diminished by the provisions which the Earl thought proper to make for his numerous progeny, consisting of fifteen sons and twelve daughters, born to him by his two wives. At the death of the first earl, his title descended to his second son; but he dying without issue, it went in succession to the ninth son, who was childless, and the tenth son, who was the father of the earl, Laurence, the subject of the present sketch.

This nobleman was united in the year 1752 to the youngest daughter of Sir William Meredith; but although his general conduct when sober was not such as to be remarkable, yet his faculties were so much impaired by drink, that when under the influence of intoxication, he acted with all the wildness and brutality of a madman. For a time his wife perceived nothing which induced her to repent the step she had taken in being united to him; but he subsequently behaved to her with such unwarrantable cruelty, that she was

compelled to quit his protection, and rejoining her father's family, to apply to Parliament for redress. An act was in consequence passed, allowing her a separate maintenance to be raised out of her husband's estate; and trustees being appointed, the unfortunate Mr. Johnson, who fell a sacrifice to the ungovernable passions of Lord Ferrers, having been bred up in the family from his youth, and being distinguished for the regular manner in which he kept his accounts, and his fidelity as a steward, was proposed as receiver of the rents for her use. He at first declined the office; but subsequently, at the desire of the Earl himself, he consented to act, and continued in this employment for a considerable time.

His lordship at this time lived at Stanton, a seat about two miles from Ashby de la Zouch, in Leicestershire; and his family consisted of Mrs. Clifford, a lady who lived with him, and her four natural daughters, besides five men-servants, exclusive of an old man and a boy, and three maids.

Mr. Johnson lived at the house belonging to the farm, which he held under his lordship, called the Lount, about half a mile distant from Stanton. It appears that it was his custom to visit his noble master occasionally, to settle the accounts which were placed under his care; but his lordship gradually conceived a dislike for him, grounded upon the prejudice raised in his mind on account of his being the receiver of the countess' portion, and charged him with having combined with the trustees to prevent his receiving a coal contract. From this time he spoke of him in opprobrious terms, and said he had conspired with his enemies to injure him, and that he was a villain; and with these sentiments he gave him warning to quit an advantageous farm which he held under his lordship. Finding, however, that the trustees under the act of separation had already granted him a lease of it, it having been promised to him by the earl or his relations, he was disappointed, and probably from that time he meditated a more cruel revenge.

The circumstances immediately attending the transaction, which terminated in the death of Johnson, are as follow:—

On Sunday the 13th of January 1760, my lord went to the Lount, and after some discourse with Mr. Johnson, ordered him to come to him at Stanton on the Friday following, the 18th, at three o'clock in the afternoon. His lordship's usual dinner-hour was two o'clock; and soon after that meal was disposed of, on the Friday, he went to Mrs. Clifford, who was in the

still-house, and desired her to take the children for a walk. She accordingly prepared herself and her daughters, and with the permission of the earl went to her father's, at a short distance, being directed to return at half-past five. The men-servants were next despatched on errands by their master, who was thus left in the house with the three females only. In a short time afterwards Mr. Johnson came according to his appointment, and was admitted by one of the maid-servants, named Elizabeth Burgeland. He proceeded at once to his lordship's apartment, but was desired to wait in the still-house; and then, after the expiration of about ten minutes, the earl calling him into his own room, went in with him and locked the door. Being thus together, the earl required him first to settle an account, and then charging him with the villany which he attributed to him, ordered him to kneel down. The unfortunate man went down on one knee; upon which the earl, in a tone of voice loud enough to be heard by the maid-servants without, cried, "Down on your other knee; declare that you have acted against Lord Ferrers; your time is come—you must die:" and then suddenly drawing a pistol from his pocket, which was loaded, he





Lord Ferrers shooting his Steward.

presented it and immediately fired. The ball entered the body of the unfortunate man; but he rose up, and entreated that no farther violence might be done him; and the female servants at that time coming to the door, being alarmed by the report, his lordship quitted the room. A messenger was immediately despatched for Mr. Kirkland, a surgeon, who lived at Ashby de la Zouch; and Johnson being put to bed, his lordship went to him and asked him how he felt? He answered that he was dying, and desired that his family might be sent for. Miss Johnson soon after arrived, and Lord Ferrers immediately followed her into the room where her father lay. He then pulled down the clothes, and applied a pledget, dipped in arquebusade water, to the wound, and soon after left him.

From this time it appears that his lordship applied himself to his favourite amusement, drinking, until he became exceedingly violent (for at

the time of the commission of the murder he is reported to have been sober), and on the arrival of Mr. Kirkland he told him that he had shot Johnson, but believed he was more frightened than hurt; that he had intended to shoot him dead, for that he was a villain and deserved to die; "but," said he, "now I have spared his life, I desire you would do what you can for him." His lordship at the same time desired that he would not suffer him to be seized, and declared, that if any one should attempt it, he would shoot him. Mr. Kirkland, who wisely determined to say whatever might keep Lord Ferrers from any further outrages, told him that he should not be seized, and directly went to the wounded man.

The patient complained of a violent pain in his bowels; and Mr. Kirkland preparing to search the wound, my lord informed him of the direction of it, by showing him how he held the pistol when he fired it. Mr. Kirkland found the ball had lodged in the body; at which his lordship expressed great surprise, declaring that he had tried that pistol a few days before, and that it then carried a ball through a deal board near an inch and a half thick. Mr. Kirkland then went down stairs to prepare some dressings, and my lord soon after left the room. From this time, in proportion as the liquor which he continued to drink took effect, his passions became more tumultuous, and the transient fit of compassion, mixed with fear for himself, which had excited him, gave way to starts of rage and the predominance of malice. He went up into the room where Johnson was dying, and pulled him by the wig, calling him villain, and threatening to shoot him through the head; and the last time he went to him he was with great difficulty prevented from tearing the clothes off the bed, that he might strike him.

A proposal was made to him in the evening by Mrs. Clifford, that Mr. Johnson should be removed to his own house; but he replied, "He shall not be removed; I will keep him here to plague the villain." He afterwards spoke to Miss Johnson about her father, and told her that if he died, he would take care of her and of the family, provided they did not prosecute.

When his lordship went to bed, which was between eleven and twelve, he told Mr. Kirkland that he knew he could, if he would, set the affair in such a light as to prevent his being seized, desiring that he might see him before he went away in the morning, and declaring that he would rise at any hour.

Mr. Kirkland, however, was very solicitous to get Mr. Johnson removed; and as soon as the earl was gone, he set about carrying his object into effect. He in consequence went to Lount, and having fitted up an easy-chair with poles, by way of a sedan, and procured a guard, he returned at about two o'clock, and carried Mr. Johnson to his house, where he expired at about nine o'clock on the following morning.

The neighbours now began to take measures to secure the murderer, and a few of them having armed themselves, set out for Stanton; and as they entered the yard, they saw his lordship, partly undressed, going towards the stable, as if to take out a horse. One of them, named Springthorpe, then advancing towards his lordship with a pistol in his hand, required him to surrender; but the latter, putting his hand towards his pocket, his assailant, imagining that he was feeling for some weapon of offence, stopped short and allowed him to escape into the house. A great concourse of people by this time had come to the spot, and they cried out loudly that the earl should come forth. Two hours elapsed, however, before anything was seen of him, and then he came to the garret window and called out, "How is Johnson?" He was answered that he was dead; but he said it was a lie, and desired that the people should disperse; but then he gave orders that they should be let in and be furnished with victuals and drink, and finally he went away from the window swearing that no man should take him. The mob still remained on the spot, and in about two hours the earl was descried by a collier, named Curtis, walking on the bowling-green, armed with a blunderbuss, a brace of pistols, and a dagger. Curtis, however, so far from being intimidated by his bold appearance, walked up to him; and his lordship, struck with the resolution he displayed, immediately surrendered himself, and gave up his arms, but directly afterwards declared that he had killed the villain, and gloried in the act. He was instantly conveyed in custody to a public-house at Ashby, kept by a man named Kinsey; and a coroner's jury having brought in a verdict of wilful murder against him, he was on the following Monday committed to the custody of the keeper of the jail at Leicester. Being entitled, however, by his rank to be tried before his peers, he was in about a fortnight afterwards conveyed to London, in his landau, drawn by six horses, under a strong guard; and being carried before the House of Lords, he was committed to the custody of the Black Rod, and ordered to the Tower, where he arrived at about six o'clock in the evening of the 14th February. He is reported to have behaved, during the whole journey and at

his commitment, with great calmness and propriety. He was confined in the Round Tower, near the drawbridge: two wardens were constantly in the room with him, and one at the door; two sentinels were posted at the bottom of the stairs, and one upon the drawbridge, with their bayonets fixed; and from this time the gates were ordered to be shut an hour sooner than usual.

During his confinement he was moderate both in eating and drinking; his breakfast was a half-pint basin of tea, with a small spoonful of brandy in it, and a muffin; with his dinner he generally drank a pint of wine and a pint of water, and another pint of each with his supper. In general his behaviour was decent and quiet, except that he would sometimes suddenly start, tear open his waistcoat, and use other gestures, which showed that his mind was disturbed.

Mrs. Clifford and the four young ladies, who had come up with him from Leicestershire, took a lodging in Tower-street, and for some time a servant was continually passing with letters between them: but afterwards this correspondence was permitted only once a day.

Mrs. Clifford came three times to the Tower to see him, but was not admitted; but his children were suffered to be with him some time.

On the 16th of April, having been a prisoner in the Tower two months and two days, he was brought to his trial, which continued till the 18th, before the House of Lords, assembled for that purpose; Lord Henley, keeper of the great seal, having been created lord high steward upon the occasion.

The murder was easily proved to have been committed in the manner we have described; and his lordship then proceeded to enter upon his defence.

He called several witnesses, the object of whose testimony was to show that the earl was not of sound mind, but none of them proved such an insanity as made him not accountable for his conduct. His lordship managed his defence himself, in such a manner as showed an uncommon understanding; he mentioned the fact of his being reduced to the necessity of attempting to prove himself a lunatic, that he might not be deemed a murderer, with the most delicate and affecting sensibility; and, when he found that his plea could not avail him, he confessed that he made it only to gratify his friends; that he was always averse to it himself; and that it had prevented what he had proposed, and what perhaps might have taken off the malignity at least of the accusation.

The peers having in the usual form delivered their verdict of Guilty, his lordship received sentence to be hanged on Monday the 21st of April, and then to be anatomized; but, in consideration of his rank, the execution of this sentence was respited till Monday the 5th of May.

During this interval he made a will, by which he left one thousand three hundred pounds to Mr. Johnson's children; one thousand pounds to each of his four natural daughters; and sixty pounds a year to Mrs. Clifford for her life; but this disposition of his property being made after his conviction, was not valid; although it was said that the same, or nearly the same provision was afterwards made for the parties named.

In the mean time a scaffold was erected under the gallows at Tyburn, and part of it, about a yard square, was raised about eighteen inches above the rest of the floor, with a contrivance to sink down upon a signal given, in accordance with the plan now invariably adopted; the whole being covered with black baize.

On the morning of the 5th May, at about nine o'clock, his lordship's body was demanded of the keeper of the Tower, by the sheriffs of London and Middlesex, and his lordship being informed of it, sent a message to the sheriffs requesting that he might be permitted to be conveyed to the scaffold in his own landau, in preference to the mourning-coach which was provided for him. This being granted, his landau, drawn by six horses, immediately drew up, and he entered it, accompanied by Mr. Humphries, the chaplain of the Tower, who had been admitted to him on that morning for the first time. On the carriage reaching the outer gate, the earl was delivered up to the sheriffs, and Mr. Sheriff Vaillant entered the vehicle with him, expressing his concern at having so melancholy a duty to perform; but his lordship said "he was much obliged to him, and took it kindly that he accompanied him." The earl was attired in a white suit, richly embroidered with silver; and when he put it on he said, "This is the suit in which I was married, and in which I will die." The procession being now formed, moved forward slowly, the landau being preceded by a considerable body of horse grenadiers, and by a carriage containing Mr. Sheriff Errington, and his under sheriff, Mr. Jackson, and being followed by the carriage of Mr. Sheriff Vaillant, containing Mr. Nichols, his under sheriff, a mourning-coach and six, containing some of his lordship's friends, a hearse and six for the conveyance of his body to Surgeon's Hall after execution, and another body of military. The pace at which they proceeded, in consequence of the

density of the mob, was so slow, that his lordship was two hours and three quarters in his landau, but during that time he appeared perfectly easy and composed, though he often expressed his anxiety to have the whole affair over, saying “that the apparatus of death, and the passing through such crowds, were worse than death itself,” and “that he supposed so large a mob had been collected because the people had never seen a lord hanged before,” He told the sheriff that “he had written to the king to beg that he might suffer where his ancestor, the Earl of Essex, had been executed; and that he was in the greater hopes of obtaining that favour, as he had the honour of quartering part of the same arms, and of being allied to his majesty; but that he had refused, and he thought it hard that he must die at the place appointed for the execution of common felons.”

Mr. Humphries took occasion to observe, that the world would naturally be very inquisitive concerning the religion his lordship professed, and asked him if he chose to say anything upon that subject; and his lordship answered that he did not think himself accountable to the world for his sentiments on religion; but that he had always believed in and adored one God, the maker of all things; that whatever his notions were, he had never propagated them, or endeavoured to gain any persons over to his persuasion; that all countries and nations had a form of religion by which the people were governed, and that he looked upon any one who disturbed them in it as an enemy to society. That he blamed very much my Lord Bolingbroke for permitting his sentiments on religion to be published to the world. That he never could believe what some sectaries teach, that faith alone will save mankind; so that if a man, just before he dies, should say only “I believe,” *that* alone will save him.

As to the crime for which he suffered, he declared “that he was under particular circumstances—that he had met with so many crosses and vexations, he scarce knew what he did:” and he most solemnly protested “that he had not the least malice against Mr. Johnson.”

When his lordship had got to that part of Holborn which is near Drury-lane, he said “he was thirsty, and should be glad of a glass of wine and water;” upon which the sheriffs remonstrating to him, “that a stop for that purpose would necessarily draw a greater crowd about him, which might possibly disturb and incommode him, yet, if his lordship still desired it, it should be done,” he most readily answered, “That’s true—I say no more—let us by no means stop.”

When they approached near the place of execution, his lordship, pointing to Mrs. Clifford, told the sheriff “that there was a person waiting in a coach near there, for whom he had a very sincere regard, and of whom he should be glad to take his leave before he died.” The sheriff answered that, “if his lordship insisted upon it, it should be so; but that he wished his lordship, for his own sake, would decline it, lest the sight of a person, for whom he had such a regard, should unman him, and disarm him of the fortitude he possessed.” His lordship, without the least hesitation, replied, “Sir, if you think I am wrong, I submit:” and upon the sheriff telling his lordship that if he had anything to deliver to the individual referred to, or any one else, he would faithfully do it, his lordship delivered to him a pocket-book, in which were a bank-note and a ring, and a purse with some guineas, which were afterwards handed over to the unhappy woman.

The landau being now advanced to the place of execution, his lordship alighted from it, and ascended the scaffold with the same composure and fortitude of mind he had exhibited from the time he left the Tower. Soon after he had mounted the scaffold, Mr. Humphries asked his lordship if he chose to say prayers, which he declined; but, upon his asking him “if he did not choose to join with him in the Lord’s Prayer,” he readily answered “he would, for he always thought it a very fine prayer;” upon which they knelt down together upon two cushions, covered with black baize and his lordship, with an audible voice, very devoutly repeated the Lord’s Prayer, and afterwards, with great energy, ejaculated, “O God, forgive me all my errors—pardon all my sins!”

His lordship, then rising, took his leave of the sheriff and the chaplain; and, after thanking them for their many civilities, presented his watch to Mr. Sheriff Vaillant, of which he desired his acceptance; and requested that his body might be buried at Breden or Stanton, in Leicestershire.

The executioner now proceeded to do his duty, to which his lordship, with great resignation, submitted. His neckcloth being taken off, a white cap, which he had brought in his pocket, being put upon his head, his arms secured by a black sash, and the cord put round his neck, he advanced by three steps to the elevated part of the scaffold, and, standing under the cross-beam which went over it, which was also covered with black baize, he asked the executioner “Am I right?” Then the cap was drawn over his face, and, upon a signal given by the sheriff, (for his lordship, upon being before asked, declined to give one himself,) that part upon which he stood

instantly sunk down from beneath his feet, and he was launched into eternity May the 5th 1760.

From the time of his lordship's ascending upon the scaffold, until his execution, was about eight minutes; during which his countenance did not change, nor his tongue falter.

The accustomed time of one hour being past, the coffin was raised up, with the greatest decency, to receive the body; and, being deposited in the hearse, was conveyed by the sheriffs, with the same procession, to Surgeons' Hall, to undergo the remainder of the sentence. A large incision was then made from the neck to the bottom of the breast, and another across the throat; the lower part of the belly was laid open, and the bowels taken away. It was afterwards publicly exposed to view in a room up one pair of stairs at the Hall; and on the evening of Thursday, the 8th of May, it was delivered to his friends for interment.

The following verse is said to have been found in his apartment:—

“In doubt I lived, in doubt I die,
Yet stand prepared the vast abyss to try,
And, undismay'd, expect eternity.”

THEODORE GARDELLE.

EXECUTED FOR MURDER.

THIS delinquent was a native of Geneva; and besides being a man of good general education, was somewhat celebrated in his native city as a painter on enamel. Unhappy in his domestic concerns, in the year 1760 he repaired to London, and took lodgings in the house of a Mrs. King, who lived in Leicester-fields, and who was the unfortunate subject of his crime.

The circumstances attending the murder were as follow:—On Thursday, 19th February 1761, the servant-girl got up at about seven o'clock in the morning, and being presently called by Gardelle, who occupied an upper apartment, was desired to go on some errands for him.

The girl took the messages, and went to her mistress, who was still in her bedroom, which was the back parlour, telling her what Gardelle had desired her to do; to which her mistress replied, “Nanny, you can’t go, for there’s nobody to answer at the street door.” The girl being willing to oblige Gardelle, answered “that Mr. Gardelle would come down, and sit in the parlour until she came back;” and she then went again to Gardelle, who, in obedience to her wish, proceeded into the front room on the ground floor.

The girl went out, taking the key of the street-door with her to let herself in again, Gardelle then having entered the room next to Mrs. King’s apartment.

Immediately after she was gone out, Mrs. King, hearing the tread of somebody in the parlour, called out, “Who is there?” and at the same time opened her chamber door, and saw Gardelle at a table very near the door, who had just then taken up a book that lay upon it. He had some time before drawn Mrs. King’s picture, which she wanted to have made very handsome, and had teased him so much about it, that the effect was just contrary; and it happened unfortunately, that the first thing she said to him, when she saw him walking about in the room, was something reproachful about this picture. Provoked at the insult, as he spoke English very imperfectly, for want of a better expression, he told her, with some warmth, “that she was an impertinent woman.”

The detail of the whole of the circumstances immediately attending this part of the transaction of necessity could not fall within the knowledge or observation of any witness, and it is therefore derived from a statement drawn up by Gardelle while in custody; but having stated the facts already mentioned, he says that this insult threw Mrs. King into a transport of rage, and she gave him a blow with her fist on the breast, so violent that he could not have thought it could have been given by a woman. As soon as the blow was struck she drew a little back; and at the same instant he laid his hand on her shoulder, and pushed her from him, rather in contempt than anger, or with a design to hurt her; but her foot happening to catch in the floor-cloth, she fell backwards, and her head came with great force against the corner of the bedstead. The blood immediately gushed from her mouth, not in a continued stream, but as if by different strokes of a pump, and he instantly ran to her, expressing his concern at the accident; but she pushed him away, and threatened, though in a feeble and interrupted voice, to punish him for what he had done. He was terrified at the thought of being condemned for a criminal act upon her accusation, and again attempted to assist her by raising her up, as the blood still flowed from her mouth in great quantities; but she exerted all her strength to keep him off, and still cried out, mixing threats with her screams. He then seized an ivory comb, with a sharp taper point continued from the back for adjusting the curls of her hair, which lay upon her toilet, and threatened her in his turn to prevent her crying out; but she still continuing to scream, though with a voice still fainter and fainter, he struck her with this instrument, probably in the throat, upon which the blood poured from her mouth in yet greater quantities, and her voice was quite stopped. He then drew the bed-clothes over her to prevent her blood from spreading on the floor, and to hide her from his sight; and he stood some time motionless by her, and then fell down by her side in a swoon. When he came to himself he perceived the maid was come in, and he therefore went out of the room without examining the body to see if the unhappy woman was quite dead; and his confusion was then so great that he staggered against the wainscot, and hit his head so as to raise a bump over his eye.

It appears that he subsequently sent the girl away, informing her that he had her mistress's orders to dismiss her, and paid ten shillings for her wages; and the latter having been unable to find either her mistress or Gardelle on her first returning to the house, and knowing the former to be a

woman of light character, concluded that they must have been in bed together, and that her mistress being ashamed to meet her, determined to get rid of her. Her suspicions were not at all raised therefore, and she went away, informing Gardelle that Mr. Wright, who lodged in the house, but had been out of town, would return that evening with his servant. On her departure, the first thing that Gardelle did was to go into the chamber to Mrs. King, whom, upon examination, he found quite dead. He therefore took off the blankets and sheets with which he had covered her, stripped off the shift, and laid the body quite naked upon the bed. Before this, he said, his linen was not stained; but it was much discoloured by his removing the body. He then took the two blankets, the sheets, the coverlet, and one of the curtains, and put them into the water-tub in the back wash-house to soak, they being all much stained with blood. Her shift he carried up stairs, and putting it into a bag, concealed it under his bed. His own shirt, now bloody, he pulled off, and locked it up in a drawer of his bureau.

When all this was done, he went and sat down in the parlour, and soon after, it being about nine o'clock, Mr. Wright's servant, whose name was Pelsey, came in without his master, who had changed his mind, and was gone to a gentleman's house in Castle-street. He went up into his room, the garret, and sat there till about eleven o'clock, when he came down, and finding Gardelle still in the parlour, he asked if Mrs. King was come home, and who must sit up for her? Gardelle said she was not come home, but that he would sit up for her. In the morning, Friday, when Pelsey came down stairs, he again asked if Mrs. King was come home, and Gardelle told him that she had been at home, but was gone again; and he subsequently said that she was gone to Bath or Bristol. The demeanour of Gardelle was soon observed by Pelsey to be much changed, and fancying that it was in consequence of the absence of Mrs. King, he went into the Haymarket, and procured a girl of unfortunate character named Walker to go and stay in the house with him. A Mrs. Pritchard was also engaged as charwoman, and still, no suspicions being entertained, all the parties continued to live in the house. On the Saturday morning, Gardelle first took steps to dispose of the body of the deceased woman, and no plan struck him as being so readily to be carried out as that of a gradual destruction of its members by fire. He accordingly proceeded to light a fire in the garret, whither he carried the bones, from which he had previously scraped the flesh, and burned them. All went on well until the Tuesday morning, when Pelsey, who was going

up to his master's room, smelt something offensive, and asked Gardelle, who was pushing up the sash of the window on the staircase, what it was? Gardelle replied, somebody had put a bone in the fire. At night Pelsey renewed his inquiries after Mrs. King, and Gardelle answered, with a seeming impatience, "Me know not of Mrs. King; she give me a great deal of trouble, but me shall hear of her on Wednesday or Thursday."

On Tuesday night he told Walker he would sit up till Mrs. King came home, though he had before told her she was out of town, and desired her to go to bed; and as soon as she was gone, he renewed his horrid employment of cutting the body to pieces, and disposing of it in different places. The bowels he threw down the necessary; and the flesh of the body and limbs, cut to pieces, he scattered about in the cock-loft, where he supposed they would dry and perish without putrefaction.

Wednesday passed like the preceding days; and on Thursday he told his female companion that he expected Mrs. King home in the evening, and therefore desired that she would provide herself a lodging, giving her at the same time two of Mrs. King's shifts; and being thus dismissed, she went away.

Pritchard, the charwoman, still continued in her office, and through her means the murder was discovered. The water having failed in the cistern on the Tuesday, she had recourse to that in the water-tub in the back kitchen. Upon pulling out the spigot a little water ran out; but, as there appeared to be more in, she got upon a ledge, and putting her hand in, she felt something soft. She then fetched a poker, and pressing down the contents of the tub, she got water in a pail. She informed Pelsey of the circumstance, and they agreed the first opportunity to see what the things in the water-tub were; yet so languid was their curiosity, and so careless were they of the event, that it was Thursday before the tub was examined. They found in it the blankets, sheets, and coverlet, that Gardelle had put in to soak; and after spreading, shaking, and looking at them, they put them again into the tub; and the next morning, when Pelsey came down, he saw the curtain hanging on the banisters of the kitchen stairs. Upon looking down, he saw Gardelle just come out at the wash-house door, where the tub stood. When Pritchard the charwoman came, he asked her if she had been taking the curtain out of the tub, and she said "No." She then went and looked in the tub, and found the sheets had been wrung out. Upon this the first step was taken towards inquiring after the unhappy woman, who had now lain dead more than a

week in the house. Pelsey found out the maid whom Gardelle had dismissed, and suspicions being excited that Mrs. King had been unfairly dealt with, the aid of the police was obtained. Gardelle was then apprehended, and his answers to the questions put to him being of a very equivocal nature, a search was made in the house, and the remains of the body being discovered, disposed of as we have already mentioned, as well as the linen of the deceased, and of the prisoner, stained with blood, his guilt was considered to be fully established, and he was committed to Newgate for trial. While in that prison he made two attempts to destroy himself by taking laudanum, and by swallowing halfpence to the number of twelve; but although he was considerably injured by the latter attempt, he failed in securing his object. He afterwards showed strong marks of penitence and contrition, and behaved with great humility, openness, and courtesy, to those who visited him.

On Thursday, the 2d of April, he was tried at the Old Bailey; and, in his defence, he insisted only that he had no malice to the deceased, and that her death was the consequence of the fall. He was convicted, and sentenced to be executed on Saturday, the 4th of the same month. The account which he wrote in prison, and which is mentioned in this narrative, is dated the 28th of March, though he did not communicate it till after his trial. The night after his condemnation, his behaviour was extravagant and outrageous; but the next morning he was composed and quiet, and said he had slept three or four hours in the night. When he was asked why he did not make his escape, he answered that he feared some innocent person might then suffer in his stead.

He was executed April the 4th 1761, amidst the shouts and hisses of an indignant populace, in the Haymarket, near Panton-street, to which he was led by Mrs. King's house, where the cart made a stop. His body was hung in chains upon Hounslow Heath.

JOHN M'NAUGHTON, ESQ.

EXECUTED FOR MURDER.

JOHN M'NAUGHTON, ESQ. was the son of a merchant at Derry, whose father had been an alderman of Dublin. He was educated at Trinity College, Dublin; and on his coming of age he entered into a landed estate of six hundred pounds a year, in the county of Tyrone, which was left him by Dr. M'Naughton, his uncle. The first vice he fell into was that of gaming, by which he very soon did great injury to his fortune; and though he continued (as most novices do who play with sharpers) in a constant run of ill luck, and was soon obliged to mortgage his property, yet his losses made no visible alteration in his temper. Although he was of a most passionate disposition, his pride kept him within due bounds there. All was placid with the polite M'Naughton; and he lost his money to the very last with that graceful composure that became the man who had a plentiful fortune to support it. But strong as his passion this way might be, it was not powerful enough to secure him against the attacks of love, and becoming attached to a young lady he very speedily married her. The reader may well suppose that the expenses of a wife and family in Dublin must soon increase his difficulties, and introduce a new scene of troubles; and it did so in a manner and with an effect which was most unhappy for Mr. M'Naughton. It appears that a writ having been issued against him at the suit of one of his creditors, the sheriff's officer obtained access to his house by a stratagem, on which he flew into a rage, and calling out for pistols, he frightened his poor listening wife to such a degree that premature labour followed, and she died in childbed.

The feelings of the unfortunate husband upon the occurrence of this melancholy event were most distressing, and he made repeated attempts upon his life; but a change of scene being recommended, he was conveyed to the country, where every attention was paid to his health, while his fortune also was nursed with equal care. On his return to the gaiety of the Irish metropolis, he soon resumed that worst of passions—gaming, and again became the dupe of others, while his property was once more seriously diminished. At this time he made secret advances to Miss Knox,

the beautiful and accomplished daughter of Richard Knox, Esq. of Prohen in the county of Derry, who was possessed of a handsome fortune, and whose promise of marriage he obtained, in the event of her father's consent being given. On that consent being requested, however, it was at once refused, on account of the youth of the young lady, whose age did not exceed sixteen years; and Mr. Knox was so resolute in his refusal, that he forbade the suitor for his daughter's hand ever to enter the house again. Mr. M'Naughton begged that this latter injunction might be withdrawn, urging that it would appear strange to the world that his friendship with a family, with which he had been so intimate, should be so suddenly broken off; and upon his promising upon his honour, that the subject of the marriage should not be again mentioned, and declaring that he had not previously spoken of it to the young lady herself, his visits were allowed to be repeated. In the mean time he continued his addresses to the young lady, and informed her that he had obtained the consent of her father, but that the marriage must be postponed for a year or two, when some material business would be settled, which was required to be decided first; and under this assurance she no longer withheld the confession that the passion of her admirer was returned, and appeared to delight most in the company of the man whom she looked upon as her future husband.

All her hopes were, however, soon doomed to be blasted. One day being in company with M'Naughton and a little boy in a retired room in the house, he pressed her to marry him, protesting he never could be happy till he was sure of her; and with an air of sprightly raillery, pulling out a prayer-book, he began to read the marriage service, and insisted on the young lady making the responses, which she did; but to every one she always added, "provided her father consented."

Some short time after this, Miss Knox going to a friend's house on a week's visit, Mr. M'Naughton, being also an intimate there, soon followed her; and here he fixed his scene for action. After a day or two he claimed her, and, calling her his wife, insisted on consummation; but the young lady absolutely refused to comply, and leaving the house, went directly and informed her uncle of the whole affair. On this Mr. Knox wrote a letter to M'Naughton, telling him what a base dishonourable villain he was, and bade him avoid his sight for ever; but upon the receipt of this letter M'Naughton advertised his marriage in the public newspapers, cautioning every other man not to marry his lawful wife. This vile attack was answered

by a very spirited and proper advertisement from the father, with an affidavit of the whole affair from the daughter annexed; and Mr. Knox having commenced a suit in the Prerogative Court, the marriage was declared invalid. Mr. M'Naughton having absconded to avoid his debts, could not now appeal to the Court of Delegates, and the original decree was confirmed. Judge Scott in consequence issued his warrant for the apprehension of the defendant, who was liable to pay costs; and M'Naughton, hearing of this, wrote a most impudent threatening letter to the judge, and, it is said, lay in wait to have him murdered, but missed him by the judge's taking another road. Upon this the judge applied to the lord chief justice, who issued another writ against him, which drove him to England.

In the summer of 1761, Mr. M'Naughton returned to Ireland, and by constantly hovering round Mr. Knox's house, obliged the family to be upon their guard, and the young lady to live like a recluse.

About the middle of the summer, however, she ventured to a place called Swaddling Bar to drink the mineral waters there for her health; but even thither this unhappy man followed her, and he was seen in a beggar's habit dogging her footsteps. Thus disguised he was detected; and when warned never to appear there again, he swore, in the presence of several, that he would murder the whole family if he did not get possession of his wife—a threat which he subsequently attempted to carry out. Notwithstanding his violence, it appears that he was permitted again to escape to London; and he remained there until the month of October in the same year. At the beginning of November he was again seen in Ireland; and having approached the residence of the Knoxes, he was known to sleep with three of his accomplices, at the house of a hearth-money collector, very nearly adjoining the abode of his intended victim. The 10th was the day fixed upon by him for the attack; and on that morning M'Naughton, with his companions, went to a cabin on the road-side with a sack full of fire arms, in order to await the passing of Mr. Knox's coach, in which it was known the family were about to proceed to Dublin. One of the men was despatched to ascertain the moment of the coming of the vehicle; and when it appeared in sight, having obtained the information requisite for its identification, he hurried back to desire the projector of the scheme to prepare. It appears that the only persons in the carriage were Mr. Knox and his wife, their daughter and a maid-servant; and they were attended only by one livery-servant, and

a faithful fellow, a smith, who was foster-father to Miss Knox, and whom no bribe could ever purchase, although most of the other servants had been tampered with. As soon as the coach came near the cabin, two of the villains, armed with guns, presented themselves to the postilion and coachman, and stopped the horses, while M'Naughton fired at the smith with a blunderbuss. The latter escaped being wounded, and presented his piece in return, but it unfortunately missed fire, and M'Naughton and one of his companions seizing the opportunity, again fired, and both of them wounded him. Mr. Knox at this time drew up the blinds of the carriage, and M'Naughton observing this, ran round to the other side, and firing in at the window obliquely, with a gun loaded with five balls, shot Miss Knox, all the balls taking effect in her body. The maid-servant now let down the window, screaming that her mistress was murdered; and the livery-servant on hearing this came from behind a peat-stack, where he had concealed himself for safety, and firing at M'Naughton, wounded him in the back; and about the same time Mr. Knox from the coach discharged a pistol, which was the last of eight shots fired on this strange and dreadful occasion.

The murderer and his accomplices now immediately fled; and Miss Knox being carried into the cabin, died in about three hours. An attack so bold and so diabolical in its nature excited the greatest degree of interest; and large rewards were instantly offered for the apprehension of the perpetrator of the murder. For a considerable time all search proved fruitless; but at length a corporal of Sir James Caldwell's company of Light Horse secured him under the following circumstances:—It appears that the corporal had received instructions to search the house and offices of one Wenslow, a farmer, and had examined every place without success, when he bethought himself of a stratagem, by which to obtain the requisite information of the murderer's hiding-place. Observing a fellow digging potatoes in a piece of ground behind the stables, he remarked in his hearing that it was a great pity that M'Naughton could not be found, for that the person who discovered his retreat would be sure of a reward of 300*l*. The bait took, and the peasant pointed to a barn, and thither the corporal and his assistants immediately proceeded. The door was fast, but they at length forced it open, and then they found the object of their search standing with a gun at his shoulder, apparently determined to resist all efforts made to secure him. On the appearance of the corporal he fired at him, but without

wounding him; and a shot from the corporal's gun striking him on the wrist, he was compelled to surrender.

He was immediately secured and carried to Lifford jail, where he remained in the closest confinement until the 8th December, 1761, when he was put upon his trial, with an accomplice named Dunlap before Mr. Baron Mountney and Mr. Justice Scott, on a special commission.

M'Naughton, still suffering from the effects of the wounds which he had received, was brought into court on a bier, rolled in a blanket, and wearing the shirt in which he was taken, still smeared with blood. His beard had grown to an enormous length, and his head was wrapped in a greasy woollen night-cap. In that condition he made a long speech, pointedly and sensibly; and complained in the most pathetic manner of the hard usage he had met with since his confinement. He said "they had treated him like a man under sentence, and not like a man that was to be tried." He declared, with tears in his eyes, that he never intended to kill his dear wife, but that he only designed to take her away.

The case lasted five days, a considerable portion of the first day being occupied in pleadings to postpone the trial, and the reply of the counsel for the crown. During these debates M'Naughton often spoke with most amazing spirit and judgment; but the result was, that he was ordered to prepare his affidavit, which the Court would take into consideration. Accordingly, on the 9th, he was brought into Court again, and his affidavit read, in which he swore that some material witnesses for him were not to be had, particularly one Owens, who, he said, was present all the time; but the Court were of opinion that no sufficient reason for the application was shown, and the trial in consequence proceeded. During the whole proceedings M'Naughton took his notes as regularly as any of the lawyers, and cross-examined all the witnesses with the greatest accuracy, and he was observed to behave with uncommon resolution.

His chief defence was founded on a letter he produced, as written to him by Miss Knox, in which she desired him to intercept her on the road to Dublin, and take her away; but this letter was proved a forgery of his own, which after condemnation he confessed. He took great pains to exculpate himself from the least design to murder any one, much less his dear wife (as he always called her); he declared solemnly that his intent was only to take her out of the coach, and carry her off; but as he received the first wound,

from the first shot that was fired, the anguish of that wound, and the prospect of his ill success in his design, so distracted him that, being wholly involved in confusion and despair, he fired he knew not at what or whom, and had the misfortune to kill the only person in the world that was dear to him; that he gave the Court that trouble, and laboured thus, not to save his life,—for death was now his choice,—but to clear his character from such horrid guilt as that which was ascribed to him. The jury, however, found both prisoners guilty; and M'Naughton received the intimation without any concern, declaring that “they had acquitted themselves with justice to the country.” Mr. Baron Mountney then pronounced upon both prisoners the awful sentence which the law directed; and although the Court were visibly affected by the manner in which this painful duty was performed, M'Naughton remained unconcerned. He prayed the Court to have mercy upon Dunlap, alleging that he was his tenant, and had been compelled by him to participate with him in the transaction, under pain of losing a lease, which he hoped to be renewed; but he declared that life was not worth asking for himself, for that his wife being dead, the better half of himself was gone, and he had nothing to remain for in this world.

Tuesday the 15th December, 1761, was fixed upon for the execution of these criminals; but it appears that some difficulty was experienced in carrying the sentence into effect. For a long time no carpenter could be found to make the gallows, and the sheriff looked out for a tree proper for the purpose, and the execution must have been performed on it, had not the uncle of the young lady, and some other gentlemen, made the gallows, and put it up. The sheriff was afterwards obliged to take a party of soldiers, and force a smith to take off the prisoners' bolts, otherwise he must have been obliged, contrary to law, to execute them with their bolts on. The time for the execution having arrived, M'Naughton, attended by his fellow prisoner, walked to the place of execution, but, being weak of his wounds, was supported between two men. The former was dressed in a white flannel waistcoat trimmed with black buttons and holes, a diaper night-cap tied with a black riband, white stockings, mourning-buckles, and a crape tied on his arm. He desired the executioner to be speedy; and the fellow pointing to the ladder, he mounted with great spirit. The moment he was tied up he jumped from it with such vehemence as snapped the rope, and he fell to the ground, but without dislocating his neck, or doing himself much injury. When they had raised him on his legs again, he soon recovered his senses;

and the executioner borrowing the rope from Dunlap, and fixing it round M'Naughton's neck, he went up the ladder a second time, and tying the rope himself to the gallows, he jumped from it again with the same force, and appeared dead in a minute.

The spectators, who saw him drop when the rope broke, looked upon it as some contrivance for his escape, which they favoured all they could by running away from the place, and leaving it open.

Dunlap was afterwards turned off in the usual manner, in sight of the dangling body of his accomplice and master.

JOHN SMITH AND ROBERT MAYNE.

EXECUTED FOR A MUTINY ON BOARD THE KING GEORGE.

ON the trial of these men, with five more of the crew, it appeared that disputes arose on board the King George, a fine privateer, of thirty-two guns and two hundred men, commanded by Captain Reed, and cruising against the enemies of the country, concerning some prize wine, which was stowed in the hold, some of the crew insisting on its being hoisted up to be used for the whole ship's company. This would have been attended, in their situation, with both difficulty and danger, and was consequently opposed by Captain Reed and his officers; and being disappointed, a factious discontented set endeavoured to corrupt the remainder, and soon gained over so formidable a party, that they determined to seize the ship, and turn pirates in the Indian seas. In order to effect this, off Cape Ortugal, the mutineers demanded the keys of the arm-chests, and on the refusal of their request, they drove the captain and officers into the cabin.

They then placed a guard at the door, and brought a nine-pounder carriage-gun, loaded with round and grape shot, to fire among the officers; but were prevailed upon to desist by the entreaties of Mr. Gardener, the sailing master.

They then offered the latter the command of the ship, acquainting him with their intention of steering for the East Indies; but on his refusal they put him under a guard, and took the ship into their own care, until they had, for want of skill, nearly lost her. They then released Mr. Gardener, and gave him the helm; when he steered into Camarinas, in Spain, where most of the mutineers took to the boats, and made their escape.

Such as were apprehended were brought to trial; and though two more, viz. Thomas Baldwin and Laurence Tierman, were found guilty, yet Smith and Mayne, who were the ringleaders of the mutiny, only were hanged. They suffered at Execution Dock, May the 10th, 1762.

They were both Irishmen, and Roman Catholics, and were attended by a priest of that religion.

A few years after this affair a mutiny broke out among the crew of the *Namur*, of ninety guns. Fifteen were tried, found guilty, and ordered to be hanged; and they were taken for execution on board the *Royal Ann*, with halters round their necks. While waiting for the fatal gun being fired, however, they were told that his majesty had pardoned fourteen of them, but one of them must die; and they were ordered to cast lots.

How exquisite must have been the feelings of these miserable men at the awful moment of deciding on the fate of one! The fatal lot fell upon the second man that drew, Matthew M'Can, who was soon run up to the yard-arm, where the body hung nearly an hour.

The pardoned seamen were turned over to the *Grafton* and the *Sunderland*, under sailing orders for the East Indies.

HANNAH DAGOE.

EXECUTED FOR ROBBERY.

THERE is so much eccentricity in the mode in which this unhappy wretch terminated her existence, that, although the circumstances of the robbery for which she was convicted are not of an interesting nature, we cannot forbear mentioning her case.

We have adduced many instances of hardness of heart, and contempt of the commandments of God, in men who have undergone the last sentence of the law; but we are of opinion that in this woman will be found a more relentless heart, in her last moments, than any criminal whom we have yet recorded.

Hannah Dagoe was born in Ireland, and was one of that numerous class of women who ply at Covent Garden market as basket-women. In the pursuit of her vocation, she became acquainted with a poor and industrious woman of the name of Eleanor Hussey, who lived by herself in a small apartment, in which was some creditable household furniture, the remains of the worldly goods of her deceased husband. Seizing an opportunity, when the owner was from home, this daring woman broke into Hussey's room, and stripped it of every article which it contained.

For this burglary and robbery she was brought to trial at the Old Bailey, found guilty, and sentenced to death.

She was a strong masculine woman, the terror of her fellow prisoners, and actually stabbed one of the men who had given evidence against her; but the wound happened not to prove dangerous.

On the road to Tyburn she showed little concern at her miserable state, and paid no attention to the exhortations of the Romish priest who attended her. When the cart, in which she was bound, was drawn under the gallows, she got her hands and arms loose, seized the executioner, struggled with him, and gave him so violent a blow on the breast as nearly knocked him down. She dared him to hang her; and in order to revenge herself upon him, and cheat him of his dues, she took off her hat, cloak, and other parts of her dress, and disposed of them among the crowd. After much resistance he got

the rope about her neck, which she had no sooner found accomplished, than, pulling out a handkerchief, she bound it round her head, over her face, and threw herself out of the cart, before the signal given, with such violence, that she broke her neck and died instantly.

This extraordinary and unprecedented scene occurred on the 4th May, 1763.

BARNEY CARROL AND WILLIAM KING.

EXECUTED FOR CUTTING AND MAIMING.

THESE men had served their country as soldiers, and it is remarkable that having in that capacity conducted themselves with great bravery, and earned for themselves well-merited rewards, they should afterwards have resorted to such atrocious means of procuring a livelihood, as from this case it will appear they adopted. Having returned to England from the Havannah, where their regiment had been stationed, they obtained their discharge, and determined to commence robbers on a plan of the most infamous cruelty. This consisted in their procuring two young thieves, named Byfield and Mathews, to go before them and to pick pockets; and in case of their being detected and seized, their villanous employers would run up, and by maiming the person holding the boys, generally by cutting him across the eyes, would procure their release. The offence for which they were executed, was committed on the 17th June, 1765; and it appears that a gentleman named Kirby was selected by the gang as a fit object for attack. Mr. Kirby, however, detected Byfield in picking his pocket, and before he could withdraw his hand, he seized him and threatened to carry him before the magistrates. His intention was not to pursue this threat, but in order to terrify the boy, he dragged him a considerable distance through the Strand, where the circumstance had occurred. Carrol soon came up to him, and demanded the boy's release; but Byfield guessing that he would be permitted to escape, told him to keep off, for that the gentleman would let him go. The answer given by the ruffian was "Damn him, but I will cut him," and instantly drawing his knife, he gave Mr. Kirby a severe cut over the face. A Mr. Carr at the moment came up to the assistance of Mr. Kirby, and seized Carrol's arm, and at this instant Kirby, letting go the boy, struck at Carrol; but the blow happening to fall on Mr. Carr's hand, the villain made his escape. The rogues then ran off towards St. Clement's church, and escaped through an alley into Wych Street, though closely pursued by the gentleman.

Mr. Kirby now felt great pain, but had no idea that he had been wounded by any sharp instrument; but, putting his hand to his face, he found that it

streamed with blood. Going to the Crown and Anchor Tavern in the Strand, Mr. Ingram, a surgeon of eminence, almost immediately attended him; and although the utmost expedition was used in calling in the assistance of that gentleman, Mr. Kirby had lost near two quarts of blood in the short interval.

On examination, it appeared that the wound was given in a transverse direction, from the right eye to the left temple; that two large vessels were divided by it; that there was a cut across the nose, which left the bone visible; and that the eye-balls must have been divided by the slightest deviation from the stroke.

The abominable assassins were very soon apprehended, and found guilty under the Coventry Act, and hanged at Tyburn, July 31, 1765, amid the execrations of an enraged multitude.

The “Coventry Act” is a statute of the 22d and 23d Charles II.; its provision in respect of this crime is to the following effect:—“If any person, on purpose, and by malice aforethought, and by laying in wait, shall unlawfully cut or disable the tongue, put out an eye, slit the nose, cut off a nose or lip, or cut off or disable any limb or member of any subject, with intention, in so doing, to maim or disfigure him, the person so offending, his counsellors, aiders, abettors (knowing of, and privy to, the offence), shall be guilty of felony, without benefit of clergy.” It is called the Coventry Act because it was passed on Sir John Coventry being assaulted, and having his nose slit in the street; and the following anecdote is related of the circumstances under which this outrage was committed.

In the committee of ways and means, in the House of Commons, it had been resolved that, towards the supply, every one that resorts to any of the playhouses, who sits in the boxes, shall pay one shilling; every one who sits in the pit shall pay sixpence; and every other person threepence. This resolution (to which the House disagreed upon the report) was opposed in the committee by the courtiers, who gave for a reason “That the players were the king’s servants, and a part of his pleasure.” To this Sir John Coventry, one of the members, by way of reply, asked “Whether the king’s pleasure lay among the men or among the women players?” This being reported at court, it was highly resented; and a resolution was privately taken to set a mark on Sir John, to prevent others from taking the like liberties.

December the 20th was the night that the House of Commons adjourned for the Christmas holidays. On the 25th, one of the Duke of Monmouth's troop of life-guards and some few foot, lay in wait from ten at night till two in the morning, by Suffolk Street; and as Sir John returned from the tavern, where he supped, to his own house, they threw him down, and, with a knife, cut the end of his nose almost off; but company coming made them fearful to finish it.

The debates which this affair occasioned in the House of Commons ran very high, and one of the members emphatically called the attack on Coventry "A horrid un-English act."

The result was that the statute in question was passed.

**PETER M'KINLIE, GEORGE GIDLEY, ANDREW
ZEKERMANN, AND RICHARD ST. QUINTIN.**

EXECUTED FOR MURDER.

THIS case exhibits a remarkable series of adventures which occurred to the unfortunate man, who, after having survived many engagements and imprisonments, was doomed to become one of the victims of a horrid and piratical scheme.

The unfortunate Captain Glass was the son of a minister of the Church of Scotland, who obtained some notice from his writings, in which he opposed the practice of religion according to particular forms, and was founder of a sect called Glassites. At an early period of his life, young Glass exhibited talents of no ordinary character; and having taken a degree of Master of Arts at one of the Scotch universities, he applied himself to the study of medicine. He made rapid progress in this new line of learning; and after he had taken the necessary degrees, was employed as a surgeon on board a trading vessel bound for the coast of Guinea, and in that capacity he afterwards made several voyages to America. His superior qualifications gained him a distinguished place in the esteem of several merchants, who entrusted to him the command of a vessel in the Guinea trade; and his conduct proved highly to the advantage of his owners, and equally honourable to himself.

When the war against France was declared, Captain Glass found himself in possession of a very considerable sum, a great part of which he determined to venture on board a privateer; and he, in consequence, caused a vessel to be fitted out with all possible expedition, and took the command on himself.

In about ten days after they had commenced this voyage, they made prize of a ship, richly laden, belonging to France, which they carried into a port in the West Indies; but soon afterwards, being obliged to engage two vessels of war, after an obstinate contest they were compelled to submit to the superior power of the enemy and strike, but not until Captain Glass had been severely wounded and most of his men slain. The captain being

conveyed to France, was there consigned to a prison; but an interchange of prisoners taking place, he once more trod on British ground.

Nothing daunted by the unsuccessful termination of his first venture, he tried a second expedition of a similar character, in which he was equally unfortunate, and was once again consigned to the keeping of a French jailor, in whose custody he remained until the termination of the war. He next conceived a design of sailing in search of discoveries; and in pursuance of this plan he purchased a vessel adapted to his purpose; and having carefully made every necessary preparation for the prosecution of his object, he directed his course towards the coast of Africa. Between the river Senegal and Cape de Verd he discovered a commodious harbour, from which he entertained the reasonable expectation that very great commercial advantages might be derived; and he returned to England, and communicated his discovery to government, who granted him an exclusive trade to the harbour for the space of twenty years.

That he might be able to pursue his project with the greater advantage, he now engaged in partnership with two or three gentlemen of fortune; and a vessel furnished with all necessary articles being again prepared, he sailed for the newly discovered harbour, and arrived at it in safety. He soon found, however, that the habits of the natives would not permit any friendly intercourse to be maintained between them; and being in great distress for provisions, the captain and three men proceeded in an open boat to the Canary Isles. During their absence the natives made an attack upon the vessel, but were repulsed; and the first mate, who had been left in command of her, thought fit to sheer off, and having in vain sought his captain, at length returned to England. Glass and his companions meanwhile had arrived at one of the Canary islands, and having landed, with a view of petitioning to be allowed to purchase provisions, was instantly seized by order of the governor, and conveyed to a dungeon as a spy. In this situation he remained for six months; but at length he made one of his countrymen, a sailor, acquainted with his condition by writing his name and the nature of his miseries on a biscuit with a piece of charcoal, and throwing it to him through his prison window when he was passing beneath. The sailor immediately conveyed it to his commander; but the latter on making application for his release was himself seized and subjected to treatment of similar severity. The news of this circumstance was, however, directly carried to England by a vessel, which was on the point of sailing; and

speedy complaint being made to the Spanish government, the liberty of the two captains was soon obtained. At about this time the wife and daughter of Captain Glass had arrived at the Canaries, in consequence of the reports which had reached them of his captivity, and the first joy of again meeting being passed, they all embarked on board a ship bound for London, commanded by a Captain Cockeran. Miss Glass at this time was a young lady about twelve years of age, and ill deserving the fate which awaited her, as well as her parents. It appears that while the ship lay at the Canaries, a plot was concerted between Peter M'Kinlie, the boatswain, a native of Ireland; George Gidley the cook, born in the west of Yorkshire; Richard St. Quintin, a native of the same county; and Andrew Zekerman a Dutchman—for murdering all the other persons on board, and seizing the treasure, which, including what Captain Glass had shipped in behalf of himself and his partners, amounted to a hundred thousand pounds in dollars. The villains made three attempts on different nights to carry their horrid plan into execution, but were prevented through the circumspection of their commander.

At length, however, the conspirators were appointed to the night-watch on the 13th of November, when the ship had reached the British Channel; and about midnight the captain going upon the quarter-deck to see that all things were disposed in proper order, upon his return he was seized by the boatswain, who held him while Gidley struck him with an iron bar, and fractured his skull. Two of the seamen who were not concerned in the conspiracy, hearing the captain's groans, came upon deck, and were immediately murdered, and, with their captain, were thrown overboard.

Captain Glass, being alarmed, went up the gangway, and judging that a mutiny had arisen, returned to fetch his sword. M'Kinlie, guessing his design, followed him down the steps leading to the cabin, and waited in the dark till he returned with a drawn sword in his hand, when getting unperceived behind him, he seized both his arms, and then called to his accomplices to murder him. Captain Glass, being a very powerful man, had nearly disengaged himself from the ruffian, when Zekerman came up and attacked him. The captain wounded him in the arm; but before he could recover his sword he was overpowered, and the other villains soon joined their associates. The unhappy man was no sooner disarmed than he was many times run through the body, and he was then immediately thrown overboard. Mrs. Glass and her daughter, terrified by the outcry, now came

on deck, and falling on their knees, supplicated for mercy; but they found the villains utterly destitute of the tender feelings of humanity; and Zekerman telling them to prepare for death, they embraced each other in a most affectionate manner, and were then forced from each other's arms, and thrown into the sea.

Having now put all the crew to death, excepting a boy who attended Captain Glass, and another boy who was an apprentice on board the ship, the murderers steered towards the Irish coast, and on the 3rd of December found themselves within ten leagues of the harbour of Ross. They then hoisted out the long-boat, and put into it dollars to the amount of two tons; and after knocking out the windows of the ballast ports, rowed towards shore, leaving the two boys to sink with the vessel. Captain Glass's boy could not swim, and he was therefore soon drowned; but the other lad swam to the boat, when Zekerman struck him a violent blow on the breast, which caused him immediately to sink.

Having thus massacred eight innocent persons, the villains proceeded to the mouth of the river Ross; but thinking it would be dangerous to go up the river with so much riches, they buried two hundred and fifty bags of dollars in the sand, and conveyed as much treasure as they could possibly bear about their persons to a village called Fishertown, where they stopped for refreshment. On the following day they went to Ross, and there sold twelve hundred dollars; and, having purchased each a pair of pistols, and hired horses for themselves and two guides, they rode to Dublin, and took up their residence at the Black Bull in Thomas-street.

The wreck of the ship was driven on shore on the day of their leaving Ross; and the manner in which the villains had lived at Fishertown and Ross, their general behaviour, and other circumstances, being understood as grounds for suspicion of their being pirates, an express was despatched by two gentlemen to the lords of the regency at Dublin, exhibiting the several causes of suspicion, and giving a particular description of the supposed delinquents.

On examining the wreck a sampler worked by Miss Glass was found, from which it appeared that a part of the work was done on her birthday, which afterwards turned out to be the day preceding that on which the murders were perpetrated; and the sampler proved a principal means of leading to a discovery of the guilt of these abominable villains.

The gentlemen who were commissioned to attend the lords of the regency had no sooner communicated their business than the lord mayor and sheriffs were sent for; and proper instructions being given them, they on the same night caused M'Kinlie and Zekerman to be taken into custody. The prisoners were separately examined; and they both confessed the particulars of their guilt, and that their accomplices had that morning hired a post-chaise for Cork, where they meant to embark on board a vessel bound for England. Gidley and St. Quintin were then on the next day secured at an inn on the road to Cork; and they followed the example of the other prisoners in acknowledging themselves guilty. The sheriff of Ross took possession of the effects found in the wreck, and the bags of dollars that the villains had buried in the sand, and deposited the whole in the treasury of Dublin for the benefit of the proprietors.

The prisoners being brought to trial, they confessed themselves guilty of the charges alleged in the indictment; and they were condemned, and suffered death on the 19th of December, 1765, after which their bodies were hung in chains in the neighbourhood of Dublin.

FATHER SHEEBY, JAMES BUXTON, AND JAMES FARRELL, OTHERWISE CALLED BUCK FARRELL.

EXECUTED FOR MURDER.

ABOUT the year 1766 Ireland was first visited by an atrocious gang, calling themselves White Boys, who committed numerous atrocities in armed bodies, but whose deeds of blood at this time were only a prelude to those scenes of horror which have continued to be enacted even up to the present day. They were encouraged, it was reported, by a number of disaffected Roman Catholic priests, who seduced various misguided men of property of their persuasion to connive at and assist them in their nefarious practices.

In the present instance, Father Sheeby, a Romish priest, persuaded Mr. Buxton, a gentleman of great property, and Mr. Farrell, a gay, thoughtless youth, of good family, and many others, to murder several Protestants who opposed the depredations of the White Boys. On the 28th of October, 1764, this gang of murderers met on the lands of Shanhally, where they were sworn by Father Sheeby to murder J. Bridge, Esq., J. Bagnall, Esq., the Rev. Dr. Hewitson; and in fine, every person who might oppose them. He also swore them to be true to the French king, and to assist him to conquer Ireland, whereby they might completely establish the Roman Catholic Religion. Thus prepared, these enthusiasts sallied out in pursuit of the blood of their fellow-creatures. They soon seized Mr. Bridge, accused him of giving information against the White Boys, and insisted that he should contradict upon oath all that he had said in his information; and on his refusing to do so, Edward Mecham, one of the gang (whom, however, we do not find brought to punishment), cleft his skull in two with a bill-hook, and he instantly expired in the presence of the remainder of the gang.

The persons whose names are mentioned above, having been apprehended on suspicion of being concerned in this cruel murder, were tried at Clonmel, and being found guilty, were executed in 1766.

WILLIAM GUEST.

EXECUTED FOR DIMINISHING THE COIN OF THE REALM.

GUEST was the son of a clergyman of unblemished character, of the city of Worcester, who placed him apprentice to a genteel business. He passed the term of apprenticeship to the satisfaction of his master, and then came to London, and took a shop in Holborn, where he carried on business some years with the usual success of trade. His father's good name assisted him in procuring a clerkship in the Bank of England; and there he pursued a system of fraud which procured his execution for a crime amounting to high treason—that of diminishing the gold coin of the realm.

He took a house in Broad-street Buildings, in a room in the upper part of which he used to work. Having procured a curious machine for milling guineas, not unlike that made use of by mathematical instrument-makers, he used to take guineas from his drawer at the Bank, file them, and return them to the Bank, and take out guineas of full weight in their stead. Of the filings he made ingots, which he sold to an assayer, who, on his trial, deposed that they were of the same standard as our guineas.

About three years before his conviction he became a teller at the Bank, and Mr. Leach, who was also a teller there, observing him picking out new guineas from the old ones, and having some suspicion, watched him, to discover whether this was a frequent practice; and finding that it was, he communicated his suspicions to some others. On the 4th of July 1766, Mr. Guest paid thirty guineas to Richard Still, a servant to Mr. Corner, a dyer, at Bankside, Southwark; and Leach observing him take some gold out of a bag in the drawer, and put it among the rest on the table, went after Still, asked him if his money was right, and begged he would walk with him into the Pay-office, and let him tell it over. The man consented, and Leach found three guineas that appeared to have been newly filed, which he took away, giving Still other guineas for them. He then carried the light guineas into the hall, and showed them to Mr. Robert Bell, another teller, who carried them to Mr. Race, the principal cashier. The latter weighed them, and found that they wanted from ten pence to about fourteen pence of weight each; and he then, having examined the edges, delivered them to Leach.

It is a custom at the Bank for the cashier in waiting to take the tellers' bags every night, and lock them up; and Mr. Race, after these suspicious circumstances had appeared against Guest, ordered his bags to be examined after they were taken away. This was done by Mr. Thompson, one of the under cashiers, and Kemp and Lucas, two in-door tellers, who found the whole sum they contained to be 1,800*l.* 16*s.* 6*d.*; and they found in one bag forty guineas, which appeared to have been filed on the edges, and each of which was found to be deficient in weight, from eight pence to fourteen pence.

In consequence of this disclosure, Mr. Sewallis and Mr. Humberton, servants to the Bank, went with proper officers to search Mr. Guest's house in Broad-street Buildings, and in a room up two pair of stairs, they found a mahogany nest of drawers, which, being broken open, was discovered to contain a vice, files, an instrument proper for milling the edges of guineas, two bags of gold filings, and one hundred guineas. The nest of drawers had a flap before, to let down; and a skin was found lying at the bottom, fastened to the back part of the flap, with a hole in the front part, to fasten to a button on the waistcoat, in the manner used by jewellers.

Mr. Guest was then apprehended, and being brought to trial, was found guilty, and sentenced to be executed. He subsequently zealously applied himself to the only duty which remained for him in this life to perform—that of making his peace with God, and was hanged on the 14th of October, 1767.

ELIZABETH BROWNRIGG.

EXECUTED FOR MURDER.

THE case of this most notorious criminal is too well remembered to render any introduction to it necessary. The long scene of torture in which the inhuman wretch kept the innocent object of her remorseless cruelty ere she completed the long premeditated murder, requires no comment, engaging as it did the interest, and exciting the horror of all ranks of people, and rousing the indignation of the populace more than the case of any criminal whose offences it is our duty to record, in the whole course of our melancholy narratives.

The wretched subject of this memoir passed the early part of her life in the service of many respectable families in London; but at length, being addressed by James Brownrigg, a plumber at Greenwich, she consented to marry him; and they were accordingly united in that town. After having resided at Greenwich during about seven years, they determined to remove to London, and they, in consequence, rented a house in Flower-de-Luce (Fleur-de-Lys) Court, Fleet-street, where Brownrigg carried on his trade with so much success, that he was enabled to hire a small house at Islington as a summer retreat. Their means, however, declining as their family increased to the number of sixteen, Mrs. Brownrigg applied to the overseers of the parish of St. Dunstan to be employed in the capacity of midwife to the workhouse; and testimonials having been produced of her ability—for she had already practised midwifery to a considerable extent—she was duly appointed. Her services were found to give entire satisfaction to the parish-officers, and she now hit upon a new mode of adding to her income. She, in the year 1765, opened a house in which she advertised her readiness to receive women to lie-in privately; but finding that the expense of keeping servants would be very great, she applied to the officers of the precinct of Whitefriars and of the Foundling Hospital for girls to be apprenticed to her, to learn the duties of household servants. Two girls, named Mary Mitchell and Mary Jones, were immediately placed with her, the former from Whitefriars, and the latter from the Foundling Hospital; and it would appear, that at first the poor orphans were treated with some degree of

consideration and attention, but as soon as they became familiar with their mistress and their situation, the slightest inattention was sufficient to call down upon them the most severe chastisement. The first girl who experienced this brutal treatment was Jones; and it appears that her mistress would frequently, upon the smallest possible provocation, lay her down across two chairs in the kitchen, and there whip her until she was compelled, from mere weariness, to desist. The usual termination of this scene of disgusting inhumanity was, that the mistress would throw water over her victim, or dip her head into a bucket of water, and then dismiss her to her own apartment. The room appointed for the girl to sleep in adjoined the passage leading to the street-door; and, after she had suffered this maltreatment for a considerable time, as she had received many wounds on her head, shoulders, and various parts of her body, she determined not to bear such usage any longer, if she could secure her liberty. Observing that the key was left in the street-door when the family went to bed, therefore, she opened it cautiously one morning, and escaped into the street. Thus freed from her horrid confinement, she repeatedly inquired her way to the Foundling Hospital until she found it, and was admitted after describing in what manner she had been treated, and showing the bruises she had received.

The child having been examined by a surgeon, (who found her wounds to be of a most alarming nature,) the governors of the hospital ordered Mr. Plumbtree, their solicitor, to write to James Brownrigg, threatening a prosecution, if he did not give a proper reason for the severities exercised toward the child; but no notice of this having been taken, the governors of the hospital thinking it imprudent to indict at common law, the girl was discharged, in consequence of an application to the chamberlain of London. The other girl, Mary Mitchell, continued with her mistress for the space of a year, during which she was treated with equal cruelty, and she also at length resolved to quit her service. An opportunity soon presented itself which favoured her design; but having escaped from the house, she was met in the street by the younger son of Brownrigg, who forced her to return home, where her sufferings were greatly aggravated on account of her elopement. In the interim Mrs. Brownrigg found it necessary to fill up the place occupied by her late apprentice, Mary Jones; and she applied again to the overseers of the precinct of Whitefriars, who, having learned nothing of the ill-behaviour of the woman, bound a girl named Mary Clifford to her, who

was doomed to fall a victim to her brutality, and to be the cause of her eventual execution. It was not long before the new apprentice experienced equal if not greater cruelties than those inflicted upon the other unfortunate girls. She was frequently tied up naked and beaten with a hearth-broom, a horsewhip, or a cane, till she was absolutely speechless; and the poor girl having a natural infirmity, her mistress would not permit her to lie in a bed, but placed her on a mat in a coal-hole that was remarkably cold. After some time, however, a sack and a quantity of straw formed her bed, instead of the mat; but during her confinement in this wretched situation, she had nothing to subsist on but bread and water; and her covering, during the night, consisted only of her own clothes, so that she sometimes lay almost perished with cold.

On a particular occasion, when she was almost starving with hunger, she broke open a cupboard in search of food, but found it empty; and on another day, being parched with thirst, she tore down some boards in order to procure a draught of water. These acts of what were deemed daring atrocity by her inhuman mistress, immediately pointed her out as a proper mark for the most rigorous treatment; and, having been stripped to the skin, she was kept naked during the whole day, and repeatedly beaten with the but-end of a whip. In the course of this barbarous conduct Mrs. Brownrigg fastened a jack-chain round her neck so tight as almost to strangle her, and confined her by its means to the yard-door, in order to prevent her escape, in case of her mistress' strength reviving, so as to enable her to renew the severities which she was inflicting on her; and a day having passed in the exercise of these most atrocious cruelties, the miserable girl was remanded to her cellar, her hands being tied behind her, and the chain being still round her neck, to be ready for a renewal of the cruelties on the following day. Determined then upon pursuing the wretched girl still further, Mrs. Brownrigg tied her hands together with a cord, and fixing a rope to her wrists, she drew her up to a water-pipe, which ran across the kitchen ceiling, and commenced a most unmerciful castigation, but the pipe giving way in the midst of it, she caused her husband to fix a hook in the beam, and then again hoisting up her miserable victim, she horsewhipped her until she was weary, the blood flowing at nearly every stroke. Nor was Mrs. Brownrigg the only tormentor of this wretched being, for her elder son having one day ordered her to put up a half-tester bedstead, her strength was so far gone that she was unable

to obey him, on which he whipped her until she sunk insensible under the lash.

At length the unhappy girl, being unable any longer to bear these unheard-of cruelties, complained to a French lady who lodged in the house, and entreated her interference to procure some remission of the frightful barbarities which had been practised upon her. The good-natured foreigner appealed to Mrs. Brownrigg, showing to her the inhumanity of her behaviour; but the only effect produced was a volley of abuse levelled at the person who interposed, and an attempt, on the part of the monster, to cut out the tongue of her apprentice with a pair of scissors, in the course of which she wounded her in two places.

The close of this prolonged tragedy, however, now approached, when the disgusting barbarity of Mrs. Brownrigg, at which the heart recoils and sickens, was to be discovered and punished. In the month of July, the step-mother of Clifford, who had been living out of town, came to London for the purpose of inquiring after her daughter; and, learning from the parish-officers that she was in the service of Mrs. Brownrigg, she immediately proceeded to her house, and requested to be allowed to see her. She was, however, refused admittance by Mr. Brownrigg, who even threatened to carry her before the lord mayor if she came there to make further disturbances; and upon this she was going away, when Mrs. Deacon, wife of Mr. Deacon, baker, at the adjoining house, called her in, and informed her that she and her family had often heard moanings and groans issue from Brownrigg's house, and that she suspected the apprentices were treated with unwarrantable severity.

The suspicions of the neighbourhood having thus been raised, every means was employed to procure the unravelment of the truth, and the proceedings of the guilty parties themselves obtained the discovery of all their wickedness.

At this juncture Mr. Brownrigg, going to Hampstead on business, bought a hog, which he sent home; and the animal being put into a covered yard, having a skylight, it was thought necessary to remove the window, in order to give to it air.

As soon as it was known that the sky-light was removed, Mr. Deacon ordered his servants to watch, in order, if possible, to discover the girls: accordingly one of the maids, looking from a window, saw one of them

stooping down. She immediately called her mistress, who procured the attendance of some of the neighbours, and having all of them been witnesses to the shocking scene which presented itself, some men got upon the leads, and dropped bits of dirt, in order to induce the girl to speak to them; but she seemed wholly incapable. Mrs. Deacon then sent to Clifford's mother-in-law, who immediately called upon Mr. Grundy, one of the overseers of St. Dunstan's, and represented the case. Mr. Grundy and the rest of the overseers, with the women, went and demanded a sight of Mary Clifford; but Brownrigg, who had nicknamed her Nan, told them that he knew no such person; but, if they wanted to see Mary (meaning Mary Mitchell), they might, and she accordingly produced her. Upon this Mr. Deacon's servant declared that Mary Mitchell was not the girl they wanted, and Mr. Grundy now sent for a constable to search the house. An examination took place, but, the girl being concealed, she was not found; and the officers, notwithstanding the threats of Brownrigg, took Mitchell away. On their arriving at the workhouse, she was found to be in a most wretched state. Her body was covered with ulcerated sores; and on her taking off her leathern boddice, it stuck so fast to her wounds that she shrieked with the pain; but, on being treated with great humanity, and told that she should not be sent back to Brownrigg's, she gave an account of the cruelties which she had undergone, which she described as even more terrible than we have ventured to paint them. She also stated that she had met her fellow-apprentice on the stairs immediately before the parish officers entered the house, and added that Mrs. Brownrigg had concealed her, so that she should not be found. Upon this Mr. Grundy and the others went back to Brownrigg's, and in spite of his threats of prosecution, proceeded to take him into custody. He then promised to produce the girl if he were allowed his liberty, and this being consented to, she was brought out of a cupboard, under a beaufet in the dining-room.

Words cannot adequately describe the condition of misery in which the unfortunate girl was found to be on her being examined. Medical assistance was immediately obtained, and she was pronounced to be in considerable danger; and Brownrigg was in consequence taken into custody, and conveyed to Wood-street Compter. His wife and son, alarmed at this proceeding, absconded, carrying with them some articles of value for their support; and Brownrigg subsequently being carried before Mr. Alderman Crosby, was fully committed for trial, upon the charge of having been

guilty of violent assaults. The melancholy death of the girl Clifford, however, which took place in St. Bartholomew's Hospital a few days afterwards, altered the complexion of the offence; and a Coroner's Inquest having been summoned, a verdict of wilful murder was returned against the three Brownriggs, father, mother, and son.

The two latter, in the meantime, had shifted about from place to place in London, and had taken every means in their power to disguise themselves; but at length they removed to Wandsworth, determined to await there the result of the trial of their relation. It so happened, however, that they took lodging in the house of a Mr. Dunbar, a Chandler, and that person having some suspicion of his guests, watched them narrowly; and seeing an advertisement which described their persons exactly, as being participators in the murder which had been committed, he caused their apprehension.

At the ensuing session at the Old Bailey the three prisoners were brought to trial; and, after an investigation of eleven hours' duration, Mrs. Brownrigg was capitally convicted; but her husband and son were found not guilty of the offence imputed to them. Mrs. Brownrigg was immediately sentenced to undergo the extreme penalty of the law, while the participators in her guilt were detained for trial on the minor charge of misdemeanor, of which they were eventually convicted, and were sentenced to six months' imprisonment.

After sentence had been pronounced, the unfortunate woman addressed herself to the Almighty; and, being attended by the ordinary of the jail, she confessed to him the enormity of her guilt, and that the punishment which awaited her was a just one. The parting between her and her husband and son is described to have been one which exhibited the strongest affection to exist, and which appeared to call up all those better feelings of the heart in the breast of this wretched woman, which must have lain dormant during the whole course of the maltreatment to which she subjected her wretched apprentices. On her way to the scaffold she was assailed by the mob, who expressed the most unmitigated disgust for her crime; and, before the termination of her existence, she appeared to be fully sensible of the awful situation in which she stood, and prayed the ordinary to acquaint the people that she confessed her crime, and acknowledged the justice of her sentence.

After her execution, which took place at Tyburn, September the 14th, 1767, her body was put into a hackney-coach, and conveyed to Surgeons'

Hall, where it was dissected, and her skeleton hung up.



JOHN WILLIAMSON.

EXECUTED FOR MURDER.

THE case of this criminal is a fit companion for that of the wretched being whose fate we last described.

Williamson was the son of people in but indifferent circumstances, who put him apprentice to a shoemaker. When he came to be a journeyman he pursued his business with industry; and in a short time he married an honest and sober woman, by whom he had three children. His wife dying, he continued some time a widower, maintaining himself and his children in a decent manner.

At length he contracted an acquaintance with a young woman deficient in point of intellect, to whom he made proposals of marriage, in the anticipation of receiving a small sum of money, which her relations had left her for her maintenance. The woman was nothing loth, and notwithstanding the opposition of her guardians, Williamson having procured a licence, the marriage was solemnized; and he in consequence received the money which he expected.

Within three weeks after the marriage, his ill-treatment of his unhappy wife commenced; and having frequently beaten her in the most barbarous manner, he at length fastened the miserable creature's hands behind her with handcuffs; and, by means of a rope passed through a staple in the ceiling of a closet where she was confined, drew them so tight above her head, that only the tips of her toes touched the ground. On one side of the closet was now and then put a small piece of bread-and-butter, so that she could just touch it with her mouth; and she was daily allowed a small portion of water. She once remained a whole month without being released from this miserable condition; but during that time she occasionally received assistance from a female lodger in the house, and a little girl, Williamson's daughter by his former wife. The girl having once released the poor sufferer, the inhuman villain beat her with great severity; but when the father was abroad, the child frequently gave the unhappy woman a stool to stand upon, by which means her pain was in some degree abated.

On the Sunday preceding the day on which she died, Williamson released his wife; and at dinner-time cut her some meat, of which, however, she ate only a very small quantity. Her hands being greatly swelled through the coldness of the weather and the pain occasioned by the handcuffs, she begged to be permitted to go near the fire; and the daughter joining in her request, Williamson complied; but when she had sat a few minutes, her husband, observing her throwing the vermin that swarmed upon her clothes into the fire, ordered her to “return to her kennel.” She immediately went back to the closet, the door of which was locked till the next day, and she was then found to be in a delirious state, in which she continued till the time of her death, which happened about two o’clock on the Tuesday morning.

The coroner’s jury being summoned to sit on the body, Mr. Barton, a surgeon, of Redcross-street, who had opened it, declared that he was of opinion that the deceased had perished through the want of the common necessities of life; and other evidence being adduced to criminate Williamson, he was committed to Newgate.

At the ensuing sessions at the Old Bailey he was brought to trial before Lord Chief Baron Parker; and the principal witnesses against him were his daughter, Mrs. Cole, and Mr. Barton, the surgeon who opened the body of the deceased.

The prisoner’s defence was exceedingly frivolous. He said his wife had provoked him by treading upon a kitten, and killing it, and then turning up the whites of her eyes. He had the effrontery also to declare to the Court that he had not abridged his wife of any of the necessities of life; and after sentence of death was pronounced, he reflected upon his daughter as being the cause of his destruction.

Being put into the cells, he sent for a clergyman, and acknowledged that he had treated his wife in the cruel manner represented upon the trial; adding, however, that he had no design of depriving her of life: and he afterwards behaved in a decent and penitent manner.

He was conveyed to the place of execution in a cart, attended by two clergymen and a methodist preacher. The gallows was placed on the rising ground opposite Chiswell-street, in Moorfields; and after he had sung a psalm, and prayed some time with an appearance of great devotion, he was turned off, January 19th, 1767, amidst an amazing concourse of people.

His body was conveyed to Surgeons' Hall for dissection, and his children were placed in Cripplegate workhouse.

SARAH METYARD AND SARAH MORGAN METYARD.

EXECUTED FOR THE MURDERS OF PARISH APPRENTICES.

A SINGLE year had not elapsed since the public example made of Elizabeth Brownrigg, to which the public indignation was yet alive, when these two, if possible, more cruel women, were found guilty of torturing their apprentices to death.

Sarah Metyard was a milliner, and her daughter her assistant, in Bruton-street, Hanover-square, London.

In the year 1758 the mother had five apprentice girls bound to her from different parish workhouses, among whom were Anne Naylor and her sister.

Anne Naylor, being of a sickly constitution, was not able to do so much work as the other apprentices, and she therefore became the more immediate object of the fury of her mistress. The ill-treatment which she experienced at length induced the unhappy girl to abscond; but being pursued, she was brought back and confined in an upper apartment, where her food consisted of a small piece of bread and a draught of water only each day. Seizing an opportunity, she again attempted to escape; but her young mistress was in time to see her run out, and, following her and seizing her by the neck, she brought her back, and with great violence thrust her into an upper room. The old woman then interfered, and catching the girl, she threw her on the bed, while her daughter beat her unmercifully with a hearth-brush. This done, they put her into a back room, and fixing a cord round her waist, they tied her hands behind her, and fastened her to the handle of the door so as to prevent her sitting or lying down; and in order that the example of her punishment might intimidate her fellow-apprentices, they were ordered to work in the adjoining apartment, strict injunctions, however, being given to them to afford the prisoner no relief whatever.

In this condition, without the smallest nourishment of any kind, the wretched girl remained for three days and two nights, when having been let loose, in order that she might go to bed, she crept up to the garret in a state of the greatest exhaustion. On the fourth day she faltered in her speech, but was nevertheless again conveyed to what was worse than her condemned

cell, and there, in the course of a very short time, she expired, her body being suspended by the cords which had been again placed round her person. The other girls, seeing that her whole weight was thus supported, cried out that she did not move; and the younger Metyard coming up, said, "If she does not move soon, I'll make her," and immediately beat her on the head with the heel of a shoe; but finding that in truth she was senseless, she sent for her mother to come and assist her. The body was then released from its bonds, and efforts were made to restore animation, but without effect; and Mrs. Metyard being convinced that the child was dead, removed her remains into the garret. On the return of the other children, who had been sent out of the way, they were informed that the girl had been in a fit, but was perfectly recovered; and it was added that she was now locked in a garret, in order that she should not run away: and to strengthen the effect of this story, a plate of meat was sent up to the room where the body lay in the middle of the day for her dinner.

On the fourth day, a design was formed to follow up the tale which had been related; and the body of the deceased having been locked in a box, the garret-door and the street-door were left open, and one of the apprentices was desired to call Nanny down to dinner, and to tell her that if she would promise to behave well in future, she would be no longer confined. Upon the return of the child, she said Nanny was not above stairs; and after a great parade in searching every part of the house, the Metyards reflected upon her as being of an untractable disposition, and pretended that she had run away.

The sister of the deceased, who was apprenticed to the same mistress, mentioned to a lodger in the house that she was persuaded her sister was dead; observing, that it was not probable she had gone away, since her shoes, shift, and other parts of her apparel still remained in the garret; and the suspicions of this girl coming to the knowledge of the inhuman wretches, they, with a view of preventing a discovery, cruelly murdered her, and secreted the body.

The body of Anne remained in the box two months, during which time the garret-door was kept locked, lest the offensive smell should lead to a discovery; but the stench at length becoming very powerful, they judged it prudent to remove the remains of the unhappy victim of their barbarity; and, therefore, in the evening of the 25th of December, they cut the body in pieces, and tied the head and trunk up in one cloth, and the limbs in another,

excepting one hand, a finger belonging to which had been amputated before death, which they resolved to burn.

When the apprentices were gone to bed, the old woman put the hand into the fire, saying, "The fire tells no tales;" but fearing that the consumption of the whole body would create an unpleasant smell, they determined to dispose of its parts by throwing them into the common sewer in Chick-lane. Being unable to effect this, however, they left them among the mud and water that was collected before the grate of the sewer; and some pieces of the body being discovered about twelve o'clock by the watchman, he mentioned the circumstance to the constable of the night. The constable applied to one of the overseers of the parish, by whose direction the parts of the body were collected and taken to the watch-house. On the following day the matter was communicated to Mr. Umfreville, the coroner, who examined the pieces found by the watchman; but, supposing them to be parts of a corpse taken from a churchyard for the use of some surgeon, he declined summoning a jury.

Four years elapsed before the discovery of these horrid murders; but at length the dissensions which frequently occurred between their wretched perpetrators procured their apprehension and conviction. It appears that the mother was in the habit of treating her daughter with a brutality almost equal to that which she had exhibited to her apprentices, and about two years after the murders a gentleman of the name of Rooker took lodgings in the house of Metyard, where he lived about three months, during which time he had frequent opportunities of observing the severity which she suffered.

He afterwards hired a house in Hill-street, and, influenced by compassion for her sufferings, and being desirous of relieving her from the tyranny of her mother, he invited the girl to live in his family in the capacity of a servant; which offer she cheerfully embraced, though her mother had many times violently opposed her desire of going to service. The girl had no sooner removed to Mr. Rooker's house than the old woman became perfectly outrageous; and it was almost her daily practice to create disturbances in Mr. Rooker's neighbourhood, by venting the most bitter execrations against the girl, and branding her with the most opprobrious epithets. Mr. Rooker subsequently removed to Ealing, to reside on a little estate bequeathed him by a relation; and having by this time seduced the

girl, she accompanied him, and lived with him professedly in the character of his mistress.

The old woman's visits were not less frequent at Ealing than they had been at Mr. Rooker's house in London; nor was her behaviour less outrageous.

On the 9th of June 1768, being admitted to the house, she beat her daughter in a terrible manner; and during the contention many expressions were uttered by both parties that gave great uneasiness to Mr. Rooker. The mother called Mr. Rooker "the old perfumed tea-dog;" and the girl retorted by saying, "Remember, mother, you are the perfumer; you are the Chick-lane ghost."

The mother having retired, Mr. Rooker urged the girl to explain what was meant to be insinuated by the indirect accusations introduced by both parties in the course of the dispute; and, bursting into tears, she confessed the particulars of the murders, begging that a secret so materially affecting her mother might never be divulged.

Mr. Rooker imagined that the daughter could not be rendered amenable to the law, as she performed her share in the murders by the direction of her mother, and he wrote to the overseers of the parish of Tottenham, acquainting them with what he had learned. The elder Metyard was in consequence taken into custody; and the evidence against her being conclusive, she was fully committed for trial. Some circumstances, however, having come out which served to criminate her daughter, she also was secured, and with her mother was sent to Newgate to abide her trial.

When arraigned upon the indictment preferred against them at the ensuing Old Bailey Sessions, they bitterly reproached one another with the part each had taken in the affair; and if any evidence of their guilt had been wanting, their own declarations at this time would have been sufficient to secure their conviction. The jury immediately found them guilty, and they were sentenced to undergo the severest penalty of the law. The younger prisoner pleaded that she was pregnant, on being called up to receive judgment; but a jury of matrons being assembled, they declared her plea false, and she was sentenced immediately.

On the day fixed for their execution, the elder prisoner was found to be in a state of utter insensibility, and in that condition she was carried to the scaffold, and, all efforts to restore her having failed, was turned off. Her

daughter prayed for a few minutes with the ordinary who attended her, but was in almost as melancholy a condition as her mother.

They were executed at Tyburn on the 19th July 1768, and their bodies were afterwards dissected at Surgeons' Hall.

FREDERIC, LORD BALTIMORE; ELIZABETH GRIFFENBURG; AND ANNE HARVEY.

TRIED FOR THE COMMISSION OF A RAPE, THE FEMALES AS ACCESSORIES BEFORE THE FACT.

ALTHOUGH the trial of these persons was not followed by a conviction, the extraordinary nature of the transactions described by the prosecutrix in the case renders it our duty to state the facts alleged as they appeared at the trial.

The title which was inherited by Lord Baltimore, who was a peer of Ireland, was originally granted by James I. to Mr. Calvert, from whom he was lineally descended, together with a large tract of land in America, now called Maryland. His lordship is related to have exhibited a taste for knowledge in early life, and was sent from Epsom, where he was born, to Eton, where he soon gained a considerable acquaintance with the classics. His father dying before he was of age, left him an ample fortune; and he is said to have shown at this time the existence of that passion which subsequently brought him into the difficulty from which he was compelled to extricate himself before a jury of his country.

In obedience to the custom of the times, the young lord proceeded to perform the grand tour; and it is reported that having sailed from Naples to Constantinople, he there imbibed so great an admiration for the manners of the Turks, that on his return to England in 1766, he caused a portion of his family mansion to be taken down, and to be rebuilt in the form of a harem. His lordship was not long in completing his new establishment; and, like the persons whose customs he imitated, he gave to its inmates certain rules, by which he directed that their conduct and demeanour should be regulated.

The disgusting passions of his lordship, however, knew no bounds; and agents were employed in London, whose duty it was to select new objects for the gratification of his lustful desires. Amongst others who were thus engaged in this degrading office were the women Griffenburg, who was a native of Germany, and the wife of a Dr. Griffenburg, and Harvey, whose names appear at the head of this article. They were both women of low

education, and their duty was to discover and point out persons who might be deemed worthy of the attentions of their employer, and in case of necessity to aid him in securing the end which he had in view. In the course of their brutal and inhuman searches in this occupation, they unfortunately discovered a young woman of considerable personal attractions, and of some respectability, named Woodcock, who kept a milliner's shop on Tower-hill; and Mrs. Harvey acquainting his lordship with her residence, in November 1767, he directly proceeded to the spot for the purpose of pursuing his diabolical designs. Calling at Miss Woodcock's shop, he purchased some articles of trifling value, with a view of making an acquaintance with her; and then having succeeded in opening a conversation with her, he invited her to accompany him to the theatre. Miss Woodcock declined the offer, saying that her religious opinions taught her to believe that theatrical entertainments were incompatible with the due exercise of the worship of the Almighty; and his lordship finding all his efforts to attain his object vain, retired, but only to put his agent, Mrs Harvey, to work.

Introducing herself as a customer, this infamous woman called repeatedly at the shop of her intended victim, and purchased ruffles and other articles of millinery. On the 14th of December, however, she proceeded to take active measures in her plot; and then ordering a pair of lace ruffles to be made by the following day, she directed Miss Woodcock to take them herself to her residence in the Curtain-road, Shoreditch, declaring that they were for a lady of rank and fortune, who was desirous of encouraging her in her business, and who, if the order was punctually obeyed, would, without doubt, become an excellent customer.

The ruffles were finished and carried home at the appointed time; and then Miss Woodcock being invited in, was received politely by Mrs. Harvey, who pressed her to stay to tea. She declined the invitation, on the ground that it would be dark before she could reach home if she remained; but at this moment a man named Isaacs came in, who said that he was going to the theatre, and Mrs. Harvey expressing a desire at once to convey the goods which had been brought to her to the lady for whom they were ordered, it was eventually agreed, after some objections on the part of Miss Woodcock as to her dress, that as Isaacs must hire a coach, they should all go together.

At this time Lord Baltimore's carriage was waiting in the neighbourhood, and the Jew going out, called it up, and all three got into it, Miss Woodcock making no remark as to whether it was a private or a hired conveyance. The coachman drove at a great pace; and after they had traversed many streets, the vehicle was driven into the court-yard of a house which appeared to be that of a person of consideration. Mrs. Harvey and Miss Woodcock then alighted, and being ushered into the house, they were conducted through several apartments until they reached one in which an elderly gentleman, afterwards known as Dr. Griffenburg, was seen seated; and he immediately retired, saying that he would acquaint the lady of the house with their arrival. Lord Baltimore soon afterwards entered; and Miss Woodcock was alarmed to find that he was the person who had visited her shop. He bid her rest quiet, however, saying that he was only the steward of the lady whom she was to see, and then quitted the room, but soon afterwards returned with Mrs. Griffenburg, who conversed with her as if she had expected her coming and was the lady of the house. Orders were afterwards given for tea; and on the equipage being removed from the table, Lord Baltimore presented some trinkets to Miss Woodcock, which he said he had purchased for her. As the evening advanced she became anxious to return, and expressed her fears that her relatives would be surprised at her long absence; but his lordship, in order to divert her from this purpose, took her to view the apartments in the house, and at length, on her becoming still more importunate, insisted that she should stay for supper. Private orders having been given for the preparation of this meal, and Mrs. Griffenburg having retired, his lordship began taking liberties of an indecent character with the young lady; but on her exclaiming against this treatment, Mrs. Harvey and Dr. Griffenburg appeared, as if to aid in opposing her escape in the event of her attempting to obtain her liberty. Supper was soon afterwards served; but it does not appear that any idea was entertained by Miss Woodcock of an intention to detain her forcibly until after this meal, when Lord Baltimore told her that there were no coaches to be had then, and that she must remain for the night.

Mrs. Griffenburg and Mrs. Harvey now endeavoured to prevail on the young lady to go to bed; but she declared that she would never sleep in that house; and although they conducted her to a room in which they went to rest, she continued walking about till the morning, and lamenting her unhappy fate. Looking out of the window at about eight o'clock, she

observed a young woman passing, to whom she threw out her handkerchief, which was then heavy with tears, intending to attract her attention and send to her father for assistance; but the two women, jumping out of bed, prevented the possibility of her holding any communication with her, and upbraided her for what they called the rejection of her good fortune, declaring their wishes that they were in her happy situation.

The women now quitting the room, Lord Baltimore and Dr. Griffenburg came in soon afterwards; when the former said that he was astonished at her outrageous behaviour, as he had promised that she should go home at twelve o'clock: but she replied that they had no right to detain her, and that she would go home directly, as her sister, and particularly her father, would be inexpressibly anxious on occasion of her absence.

To this no answer was made; but Lord Baltimore conducted her down stairs, and ordered breakfast. She refused, however, to eat, and having wept incessantly till twelve o'clock, at that hour she once more demanded her liberty. His lordship then said that he loved her to excess; that he could not part with her; but that he did not intend any injury to her, and would write to her father: and on this he wrote a letter, of which the following is a copy, and in it sent a bank-note of two hundred pounds:—

“Your daughter Sally sends you the enclosed, and desires you will not be uneasy on her account, because everything will turn out well with a little patience and prudence. She is at a friend’s house safe and well, in all honesty and honour; nothing else is meant, you may depend on it; and, sir, as your presence and consent are necessary, we beg of you to come in a private manner to Mr. Richard Smith’s in Broad-street Buildings.”

Having addressed this to her father, he showed it to her, and desired that she would write a few words at the bottom, signifying her compliance with its terms; and terrified by her condition, she wrote, “Dear Father—This is true, and should be glad you would come this afternoon. Your dutiful daughter.”—From the statement of the young lady, it appears that after this she conjured his lordship to give her her liberty, pointing out to him, in the most striking manner, the degradation to which she was subjected; but all her arguments were in vain, and she was again compelled to pass the night, as before, in the room with Mrs. Griffenburg and Mrs. Harvey. In the morning, by permission of his lordship, she wrote a letter to her father, desiring him to come to her immediate assistance, but saying that she had

been treated with “as much honour as she could expect;” but she still declined holding any conversation with his lordship, and used all her efforts to make her situation known to the passers-by. In this, however, she was checked by his lordship and the women, who threatened to throw her out of window in the event of her making any disturbance. Towards the middle of the day she was told that her father had called at Mr. Smith’s, but had refused to wait until she was sent for; but at midnight Mr. Broughton, his lordship’s steward, brought intelligence that Isaacs, the Jew, having offered a letter to Miss Woodcock’s father, was stopped till he should give an account where the young lady was secreted. Lord Baltimore was, or affected to be, in a violent passion, and vowed vengeance against the father; but in the interim the Jew entered, and delivered a letter which he pretended to have received from Miss Woodcock’s sister, and she took it to read: but she had wept so much that her eyes were sore; and of all she read, she could only recollect this passage:—“Only please to appoint a place where and when we may meet with you.”

The hour of retirement being now arrived, Miss Woodcock refused to go up stairs, unless she might be assured of not receiving any insult from his lordship. She had not taken any sustenance since she entered the house; and on this night she lay down in her clothes on a bed in which Mrs. Harvey reposed herself. She then asked this woman if she had ever been in love, and acknowledged that she herself was addressed by a young fellow, who appeared very fond of her, and that they were to settle in business as soon as the marriage should take place; and she desired Mrs. Harvey to show her the way out of the house that had been so obnoxious to her: but the answer of the latter was, that though she had lived in the house several years, she did not herself know the way out of it.

On the following morning, when Miss Woodcock went down stairs, she pleaded earnestly with Lord Baltimore for her liberty; on which he became most violently enraged, called her by the vilest names, and said that if she spoke to him on the subject any more, he would either throw her out of the window, or send her home in a wheelbarrow with her petticoats tied over her head; and turning to Isaacs the Jew, he said, “Take the slut to a mean house like herself;” which greatly terrified her, as she presumed he meant a house of ill fame.

The sufferings she had undergone having by this time made her extremely ill, Lord Baltimore mixed a draught for her, which he insisted on

her drinking; and in the afternoon he compelled her to sit by his side to hear him converse upon subjects of religion, in the course of which, however, he ridiculed everything sacred, and denied the existence of a soul.

After supper he made six several attempts to ravish her within two hours; but she repulsed him in such a determined manner, that he failed in accomplishing his dishonourable purpose. On that night she lay with Mrs. Harvey, but could get no rest, as she was in fear of renewed insults from his lordship.

On the Monday morning she was told that she should see her father; and having been supplied with a change of linen by Mrs. Griffenburg, she was about mid-day hurried into a coach with Lord Baltimore, Dr. Griffenburg, and the two women, and with them conveyed to Epsom, where, as we have already said, his lordship had a country-seat. Here she was told that resistance was useless, and that whatever objection she might make to submit to his lordship's desires, force would be used if her consent was not given. At supper she partook of some refreshment; and immediately afterwards she was conducted to a bedchamber, accompanied by the two women, who began to undress her. From weakness she was unable to make much resistance; and from the same cause she was prevented from opposing Lord Baltimore, who, it turned out, was in a bed which was in the apartment, and who, in spite of her cries and entreaties, twice effected his horrid purpose. In the morning Mrs. Harvey came to her, and she told her what had passed; but the only answer which was given, was a desire that she would make no more fuss, for that she had made noise enough already. It would appear that after this the proceedings of his lordship were, to a certain extent, acquiesced in by Miss Woodcock; but it was not until several days had elapsed that she ascertained the name of the person who had dishonoured her. On the afternoon on which she made this discovery, the whole party returned to London, and Miss Woodcock was there introduced to Madame Saunier, the governess of his lordship's illegitimate children. On the next day his lordship gave her some money; and when night advanced, directed that she should repair to his bed. Having been permitted on the night before to sleep by herself, she requested that the same favour might be again granted to her; but his lordship's commands being positive that she should share his couch, she consented on certain terms, which were fulfilled, while, according to her statement, a crime of a still more atrocious nature was committed.

It may now be inquired whether no steps were taken by Miss Woodcock's friends in order to procure her discovery, and her return to the roof of her parents; and it appears that some circumstances having been learned which induced them to guess the real place of her concealment, Davis, her lover, proceeded to Southampton-row, Bloomsbury, where his lordship's house was situated, and while watching there saw her at the window. He immediately communicated the discovery which he had made to her father, and the advice of Mr. Watts, an attorney, having been taken, a writ of *habeas corpus* was obtained. These proceedings, however, were heard of by his lordship, and he conversed with Miss Woodcock on the subject, and, as she alleged, extorted from her a promise to declare that she had remained at his house voluntarily and of her own free-will, promising to recompense her by settling upon her an annuity for life. She in consequence wrote a letter to her father to that effect, which was delivered by one of his lordship's servants; and on Mr. Watts' proceeding to the house to serve the writ of *habeas corpus*, she made a declaration to him having the same tendency. Lord Baltimore then said that it was necessary that she should go before Lord Mansfield and make a similar statement, and she was accordingly conveyed to his lordship's house in Bloomsbury-square. They were there shown into different apartments; and Miss Woodcock's friends having heard of the proceeding, were also in attendance in an ante-chamber, where they awaited the result of the conference.

The young lady, on being examined by Lord Mansfield, expressed her willingness to remain with Lord Baltimore, but desired to see her friends first. She was then conducted to the room where her father was awaiting the conclusion of her examination; and there the first question which she asked was, "Who is Lord Mansfield?" Having been satisfied upon this head, and also that he had the power to set her at liberty, she desired to see him again, and then said that she wished to go home with her father, and that she would no longer remain with Lord Baltimore.

On Miss Woodcock's discharge, Mr. Cay, a baker in Whitecross-street (to whom her father had delivered the two hundred pound bank note which had been enclosed in the letter by Lord Baltimore), conveyed the young lady to Sir John Fielding, before whom she swore to the actual commission of the rape by his lordship.

The two women, the coadjutors of his lordship, had been already taken into custody, on the charge of decoying away the girl; and a warrant was

now issued for the apprehension of Lord Baltimore. His lordship, however, secreted himself for the present, but surrendered himself to the Court of King's Bench on the last day of Hilary Term, 1768; when the two women being brought thither by *habeas corpus*, they were all admitted to bail, in order for trial at Kingston, in Surrey, because the crime was alleged to have been committed at his lordship's seat at Epsom.

In the interim Miss Woodcock went to the house of Mr. Cay, in Whitecross-street; but not being properly accommodated there, she proceeded to the house of a friend, where she lived in great privacy and retirement till the time arrived for the trial of the offending parties.

Bills of indictment being found against Lord Baltimore and the two women, they were all brought to trial before Lord Chief Baron Smythe; and, after the evidence against them had been given, in substance as may be collected from the preceding narrative, Lord Baltimore made the following defence, which was read in Court by Mr. Hamersley, solicitor to his lordship:—

“MY LORDS AND GENTLEMEN,—I have put myself upon my country, in hopes that prejudice and clamour will avail nothing in this place, where it is the privilege of the meanest of the king's subjects to be presumed innocent until his guilt has been made appear by legal evidence. I wish I could say that I had been treated abroad with the same candour. I have been loaded with obloquy; the most malignant libels have been circulated, and every other method which malice could devise has been taken to create general prejudice against me. I thank God that, under such circumstances, I have had firmness and resolution enough to meet my accusers face to face, and provoke an inquiry into my conduct. *Hic murus aheneus esto,—nil conscire sibi*. The charge against me, and against these poor people who are involved with me, because they might otherwise have been just witnesses of my innocence, is in its nature very easy to be made, and hard to be disproved. The accuser has the advantage of supporting it by a direct and positive oath; the defence can only be collected from circumstances.

“My defence is composed, then, of a variety of circumstances, all tending to show the falsity of this charge, the absurdity of it, the improbability that it could be true. It will be laid before the jury, under the direction of my counsel; and I have the confidence of an innocent man, that it will be manifest to your lordship, the jury, and the whole world, that the

story told by this woman is a perversion of truth in every particular. What could induce her to make such a charge, I can only suspect:—Very soon after she came to my house upon a representation to me that her father was distressed, I sent him a considerable sum of money: whether the ease with which that money was obtained from me might suggest the idea, as a means of obtaining a larger sum of money, or whether it was thought necessary to destroy me, in order to establish the character of the girl to the world, I know not; but I do aver, upon the word of a man of honour, that there is no truth in anything which has been said or sworn of my having offered violence to this girl. I ever held such brutality in abhorrence. I am totally against all force; and for me to have forced this woman, considering my weak state of health, and my strength, is not only a moral, but a physical impossibility. She is, as to bodily strength, stronger than I am. Strange opinions, upon subjects foreign to this charge, have been falsely imputed to me, to inflame this accusation. Libertine as I am represented, I hold no such opinions. Much has been said against me, that I seduced this girl from her parents: seduction is not the point of this charge; but I do assure your lordship and the jury, this part of the case has been aggravated exceedingly beyond the truth. If I have been in any degree to blame, I am sure I have sufficiently atoned for every indiscretion, which a weak attachment to this unworthy woman may have led me into, by having suffered the disgrace of being exposed as a criminal at the bar in the county which my father had the honour to represent in parliament, and where I had some pretensions to have attained the same honour, had that sort of an active life been my object.

“I will take up no more of your lordship’s time than to add that, if I had been conscious of the guilt now imputed to me, I could have kept myself and my fortune out of the reach of the laws of this country. I am a citizen of the world; I could have lived anywhere: but I love my own country, and submit to its laws, resolving that my innocence should be justified by the laws. I now, by my own voluntary act, by surrendering myself to the Court of King’s Bench, stake, upon the verdict of twelve men, my life, my fortune, and, what is dearer to me, my honour.

“March 25, 1768.”

“BALTIMORE.”

The substance of the defence of Mrs. Griffenburg and Mrs. Harvey consisted principally in alleging that Miss Woodcock had consented to all that had passed, and that no force had been used towards her either by Lord Baltimore or themselves.

The whole of the case having now been heard, Lord Chief Baron Smythe, in a clear and lucid manner, proceeded to sum up the case to the jury. Having pointed out to them the law of the case, as it affected the charge against the prisoners, and their defence, his lordship proceeded to recapitulate the evidence which had been produced, in doing which he was occupied during a period of three hours. He concluded by saying,—“In point of law, the fact is fully proved on my lord and the two other prisoners, if you believe the evidence of Sarah Woodcock. It is a crime which in its nature can only be proved by the woman on whom it is committed; for she only can tell whether she consented or no: it is, as my lord observes, very easy to be made, and hard to be disproved; and the defence can only be collected from circumstances; from these you must judge whether her evidence is or is not to be believed. Lord Hale, in his ‘History of the Pleas of the Crown,’ lays down the rules:—1. If complaint is not made soon after the injury is supposed to be received; 2. If it is not followed by a recent prosecution; a strong presumption arises that the complaint is malicious. She has owned the injury was received December 22; the complaint was not made till December 29; but she has accounted for it in the manner you have heard. The strong part of the case on behalf of the prisoners is her not complaining when she was at Lord Mansfield’s, the supreme magistrate of the kingdom in criminal matters. You have heard how she has explained and accounted for her conduct in that particular, which you will judge of. Upon the whole, if you believe that she made the discovery as soon as she knew she had an opportunity of doing it, and that her account is true, you will find all the prisoners Guilty; if you believe that she did not make the discovery as soon as she had an opportunity, and from thence, or other circumstances, are not satisfied her account is true, you will find them all Not guilty: for if he is not guilty, they cannot be so; for they cannot be accessory to a crime which was never committed.”

After an absence of an hour and twenty minutes, the jury returned with a verdict that the prisoners were not guilty.

This singular affair was tried at Kingston, in Surrey, on the 26th of March, 1768.

It would be useless to offer any observations upon this extraordinary case. From the verdict returned by the jury, there ought to exist no doubt of the innocence of the persons charged of the offence imputed to them; but although Lord Baltimore and his companions were acquitted of the charge of rape, there can be little doubt that the ruin of the unfortunate girl Woodcock—even if what was admitted by his lordship were only true—was the effect of a vile conspiracy among the prisoners to sacrifice her to the libertine passions of his lordship.

JOHN WILKES, ESQ.

CONVICTED OF SEDITION AND BLASPHEMY.

THE year 1768 will ever be memorable in the annals of English history on account of the murders and mischief committed by a deluded mob, stimulated by the writings and opposition to the government of John Wilkes, Esq. an alderman of London, and member of parliament for Aylesbury.

The most scandalous and offensive of his writings were in a periodical publication called the “North Briton,” No. 45; and a pamphlet entitled “An Essay on Woman^[12].” The “North Briton” was of a political nature; the other a piece of obscenity: the one calculated to set the people against the government; the other to corrupt their morals.

Amongst the ministers who found themselves more personally attacked in the “North Briton” was Samuel Martin, Esq. member for Camelford. This gentleman found his character, as secretary to the Treasury, so vilified, that he called the writer to the field. He had before been engaged in a duel with Lord Talbot, and had then escaped unhurt, but Mr. Martin shot him; and the wound proved so dangerous that he lay uncertain of recovering during several days, and was confined to his house for some weeks.

His sufferings, however, did not end here, for the attorney-general filed informations against him as author of “The North Briton,” No. 45^[13], and the pamphlet entitled “An Essay on Woman.” On these charges he was apprehended; and his papers having been seized and inspected, he was committed prisoner to the Tower, but was soon admitted to bail. Before his trial came on, Mr. Wilkes fled to France, under the pretext of restoring his health, which had suffered from his wound, and the harassing measures taken against him by the secretaries of state, Lord Egremont and Lord Halifax; and no sooner was he out of the kingdom, than the ministers proceeded to outlawry, dismissed him from his command as colonel of the Buckinghamshire militia, and expelled him from his seat in parliament.

While in Paris, he was challenged to fight by a Captain Forbes, on account of the reflections which he had cast upon the birthplace of the

gallant captain, Scotland; but he declined the invitation, alleging that he had still an affair to settle with Lord Egremont before he could venture to take any other duel upon his hands. The death of that noble lord, however, left him free to fight; but on his writing to accept the challenge, his antagonist was not to be found. Mr. Wilkes subsequently returned to London, and gave notice that he should appear to answer the charges preferred against him on a certain day; and then having appeared in his place, as an alderman, in Guildhall, on his return, the mob took the horses from his carriage and dragged it to his house, crying "Wilkes and liberty!" On the 21st of February 1764, the trial of Mr. Wilkes, upon the accusations alleged against him, came on before Lord Mansfield, and he was found guilty on both charges, subject to arguments upon certain points as to the validity of his apprehension, the seizure of his papers, and the judgment of outlawry which had been obtained against him. The discussions preliminary to these arguments occupied the courts at various times during a space of two years; and in the mean time, the popularity of Mr. Wilkes and the outrages of the mob increased daily.

At length, on the 27th of April 1768, Mr. Wilkes having been served with a writ of *Capias utlagatum*, was brought to the floor of the Court of King's Bench in the custody of the proper officer, in order that the question of his being admitted to bail might be considered. A long argument took place, but it terminated in favour of the crown, and Mr. Wilkes was conveyed to the King's Bench prison. On his way thither the mob seized the coach in which he was carried, and taking the horses from it, dragged him to a public-house in Spitalfields, where they permitted him to alight; but at about eleven o'clock at night he effected his escape from his over-zealous friends, and proceeding to the prison, immediately surrendered himself into lawful custody. On the following day he was visited by many of his friends; and a vast mob having collected outside the prison, it was feared that some outrage would be committed. All remained quiet, however, until night, when the rails by which the prison wall was surrounded were pulled up and burned as a bonfire, and the inhabitants of Southwark were compelled to illuminate their houses; but upon the arrival of a captain's guard of soldiers, the crowd dispersed without doing any further mischief.

On the 28th of April the case of outlawry was determined; and Mr. Serjeant Glynn having appeared on the part of Mr. Wilkes, and the Attorney-General for the crown, a learned and lengthy argument was heard,

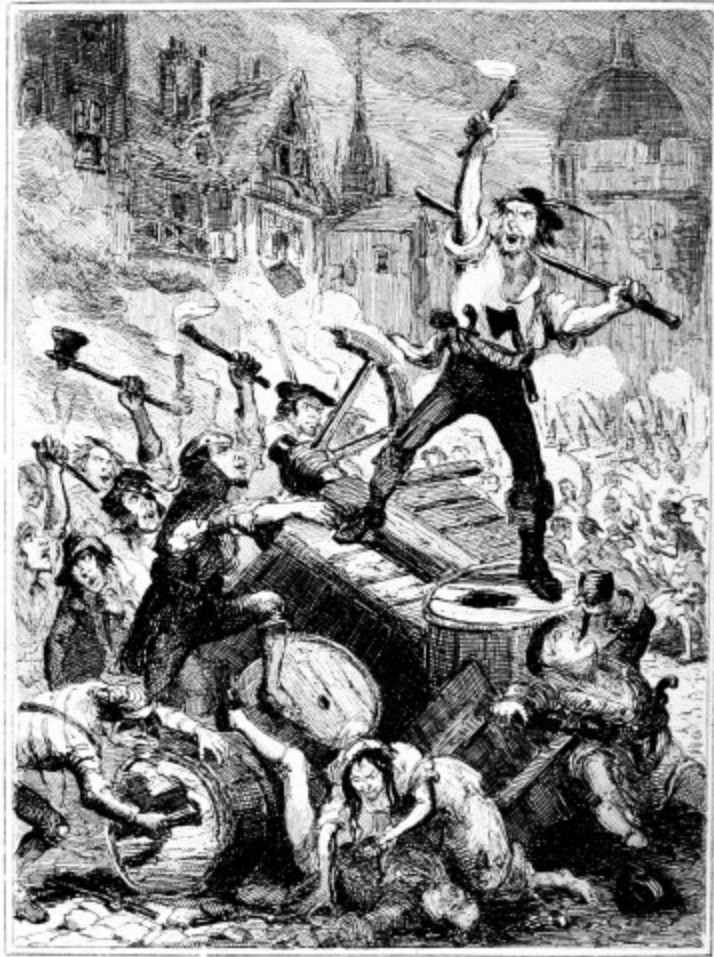
the result of which was a unanimous expression on the part of the court that the outlawry must be reversed. The general warrant on which the accused had been apprehended was next considered and declared illegal; but the counsel for the crown then immediately moved that judgment might be passed upon Mr. Wilkes upon the several convictions which had taken place. This was answered by a motion on his part in arrest of judgment, and the following Thursday was fixed upon for hearing the point argued.

In the mean time a mob had remained assembled round the prison whom no efforts of the civil force could disperse; but at length the justices appeared, followed by a troop of soldiers, determined at once to put an end to the alarming nuisance which had so long existed. All attempts to procure the separation of the crowd by fair means having failed, the Riot Act was read; and this also having no effect, the soldiers were ordered to fire. The command was instantly obeyed, and many persons were killed and dangerously wounded, some of whom were passing at a distance from the scene of confusion.

At length the day arrived on which the last effort was to be made to get rid of the charges against Mr. Wilkes; but the arguments for an arrest of judgment, though carried on with great ingenuity, would not hold, and he was found to have been legally convicted of writing the libels. For that in the “North Briton” he was fined five hundred pounds, and sentenced to two years’ imprisonment in the King’s Bench prison; and for the “Essay on Woman” five hundred pounds more, a further imprisonment of twelve months, and to find security for his good behaviour for seven years.

Previously to his imprisonment Mr. Wilkes had been elected member of parliament for Middlesex, when the address which he published to his constituents contained the following passages:—“In the whole progress of ministerial vengeance against me for several years, I have shown, to the conviction of all mankind, that my enemies have trampled on the laws, and have been actuated by the spirit of tyranny and arbitrary power.

“The *general warrant* under which I was first apprehended has been adjudged illegal. The *seizure* of my papers was condemned judicially



Wilkes' Riots.

The *outlawry*, so long the topic of violent abuse, is at last declared to have been contrary to law; and on the ground first taken by my friend, Mr. Serjeant Glynn, is formally reversed."

The mob after the election proceeded to the commission of the most violent outrages. They broke the windows of Lord Bute, the prime minister, and of the Mansion House, including even those of the lady mayoress's bedchamber, and forced the inhabitants of the metropolis to illuminate their houses, crying out "Wilkes and liberty!" and all who refused to echo it back were knocked down.

A stone was thrown by this daring mob at the Polish Count Rawotski, which he dexterously caught in his hand, the windows of his carriage in which he sat being fortunately down; and his lordship looking out and smiling, he received no other violence.

The outrages of the populace were too many to be enumerated; several innocent people were killed, and vast numbers wounded. They broke windows without number, destroyed furniture, and even insulted royalty itself.

These disgraceful tumults were not confined to the metropolis; and the lenity, or, as some did not hesitate to assert, the timidity of the government, spread disaffection into all classes of mechanics, who, thinking the time at hand when they might exact what wages they pleased, perhaps even beyond their masters' profits, struck work.

The sailors, following the example of the landsmen, went in a body of many thousands, with drums beating and colours flying, to St. James's Palace, and presented a petition to the king, praying a "Relief of Grievances." Two days afterwards they assembled in much greater numbers, and proceeded as far as Palace Yard, in order to petition Parliament for an increase of wages; when they were addressed by two gentlemen standing on the top of a hackney-coach, who told them that their petition could not be immediately attended to, but that it would be considered and answered in due time; whereupon the tars gave three cheers, and for a while dispersed. A short time afterwards, however, they re-assembled at Limehouse, and boarding several outward-bound vessels, seized their crews, pretending that they would not suffer any ships to sail until their wages were increased. The watermen, the Spitalfields weavers, the sawyers, the hatters, and the labouring classes in the country, all combined in the attempt to procure their wages to be raised; but while in London the confusion was nearly universal, in the country its effects were confined to a few districts, where some interested persons managed to excite the peaceably-disposed people to acts of outrage.

They soon discovered the error into which they had fallen, however; and a few of them having suffered execution, and others some severe imprisonments, they returned to their duty.

The folly of popular commotion was never better exemplified than in the case of Wilkes, whose patriotism was accidental and mercenary; for his letters to his daughter clearly show the contempt with which he regarded the enthusiasm in his favour, and the object he had in view in exciting hatred against the government. Many of the deluded people who shouted "Wilkes and liberty!" were severely injured in the riots; and others were

subsequently punished by the outraged laws of the country. In a short time the commotion subsided, and the author of them sunk into comparative obscurity, in which he continued until his death in 1797, at the age of seventy years.

MUNGO CAMPBELL.

CONVICTED OF THE MURDER OF THE EARL OF EGLINTON.

THIS melancholy case arose out of the existing system of game-laws.

The lamented Mr. Campbell was descended from the noble family of Argyle, and was born at Ayr in Scotland. His father was an eminent merchant—had been mayor of the town, and a justice of the peace; but having no less than twenty-four children, and meeting with many losses in his commercial transactions, it was impossible for him to make any adequate provision for his family; so that on his death, the relations took care of the children, and educated them in the liberal manner which is customary in Scotland. The unhappy subject of this narrative was protected by an uncle, who gave him a learned education; but this generous friend dying when the youth was about eighteen years of age, left him sixty pounds a year, and earnestly recommended him to the care of his other relations.

The young man was a finished scholar, but seemed averse to make choice of any of the learned professions. His attachment appeared to be to the military life, in which many of his ancestors had distinguished themselves. He soon followed the bent of his inclinations, and entered as a cadet in the royal regiment of Scots Greys, then commanded by his relation, General Campbell, and served during two campaigns, at his own expense. Being disappointed in obtaining promotion, however, he returned to Scotland in the year 1745, and Lord Loudon, to whom he was distantly related, having the command of the loyal Highlanders, who exhibited so much bravery in their opposition to the rebellion, Mr. Campbell joined that regiment, and his exertions were equally creditable to his loyalty and his courage.

After the battle of Culloden he was appointed, through the instrumentality of Lord Loudon, to fill the situation of an officer of excise, in Ayrshire; and notwithstanding the unpleasant nature of his employment, he succeeded, by his courtesy, in obtaining the good-will of all his neighbours, all of whom, with the exception of the Earl of Eglinton, gave

him permission to kill game on their estates. It was his misfortune to live immediately adjoining the property of his lordship; and it would appear that the noble earl having once detected him in killing a hare, warned him not to commit a similar offence again. Mr. Campbell apologised for the trespass of which he had been guilty, and excused himself by stating that he was in search of smugglers, and that having suddenly started the hare, he was surprised, and without thinking, he shot it. The ill-will which was raised in his lordship's mind by this circumstance, was in nowise removed by some proceedings which Mr. Campbell was compelled to take against Bartleymore, one of his servants, for smuggling; and it appears that his lordship's death was eventually attributable to the steps which he took at the instigation of this very person.

About ten in the morning of the 24th of October 1769, Campbell took his gun, and went out with another officer, with a view to detect smugglers. Mr. Campbell took with him a licence for shooting, which had been given him by Dr. Hunter, though they had no particular design of killing any game, but intended to shoot a woodcock if they should see one.

They crossed a small part of Lord Eglinton's estate, in order to reach the sea-shore, where they intended to walk; but when they arrived at this spot it was near noon, and Lord Eglinton came up in his coach, attended by Mr. Wilson, a carpenter, who was working for him, and followed by four servants on horseback. On approaching the coast his lordship met Bartleymore, who told him that there were some poachers at a distance. Mr. Wilson would have endeavoured to draw off his lordship's notice from such a business; but Bartleymore saying that Campbell was among the poachers, Lord Eglinton quitted his coach, and mounting a led horse, rode to the spot, where he saw Campbell and the other officer, whose name was Brown. His lordship said, "Mr. Campbell, I did not expect to have found you so soon again on my grounds, after your promise when you shot the hare. I must desire that you will give me your gun." Mr. Campbell refused to deliver up his property, because he said that he was not employing it in an unlawful manner, on which Lord Eglinton rode towards him, apparently with the intention of taking it from him. Mr. Campbell on this raised his gun, and retreating, presented it at his lordship's body; but the latter still followed him, and smiling, asked him if he meant to shoot him. He said that he would if he did not keep off, and then Lord Eglinton desired that his gun should be brought to him from the carriage. In the interim, his lordship

dismounted, and going close to Mr. Campbell, again required that he should deliver up the weapon which he carried, but the latter declared that he had a right to carry it, and that he would deliver it to no man, and repeated that his lordship must therefore keep off, unless he wished to be shot. Bartleymore now interfered; and Mr. Campbell stumbling against a stone, fell, and Lord Eglinton then advanced as if to seize him. In a moment, however, Mr. Campbell raised himself on his elbow, and lodged the contents of his piece in the noble earl's left breast. His lordship directly cried out that he was killed, and Mr. Campbell was seized; but his lordship desired that no violence should be used towards him.

Lord Eglinton's seat was about three miles from the place where this fatal event happened; and his servants put him into the carriage to convey him home. In the mean time Campbell's hands were tied behind him; and he was conducted to the town of Saltcoats, the place of his former station as an exciseman.

His lordship, after languishing for ten hours, died; and Mr. Campbell was then committed to the jail of Ayr to await his trial.

Upon his being arraigned upon the indictment preferred against him, various arguments were urged in his favour. It was said—"That the gun went off by accident, and therefore it could be no more than casual homicide.

"Secondly—That, supposing it had been fired with an intention to kill, yet the act was altogether justifiable, because of the violent provocation he had received; and he was doing no more than defending his life and property.

"Thirdly—It could not be murder, because it could not be supposed that Mr. Campbell had any malice against his lordship, and the action itself was too sudden to admit of deliberation."

The counsel for the prosecution urged in answer, in the first place,

"That it was certain malice was implied, in consequence of Campbell's presenting the gun to his lordship, and telling him that, unless he kept off, he would shoot him.

"Secondly—That there was no provocation given by the earl besides words, and words could not be construed a provocation in law.

"Thirdly—The earl had a right to seize his gun, in virtue of several acts of parliament, which were the established laws of the land, to which every

subject is obliged to be obedient.”

After repeated debates between the lawyers of Scotland, a day was at length appointed for the trial, which commenced on the 27th of February 1770, before the High Court of Justiciary; and, the jury having found Mr. Campbell guilty, he was sentenced to die.

The Lord Justice Clerk, before he pronounced the solemn sentence, addressed himself to the convict, advising him to make the most devout preparation for death, as all hopes of pardon would be precluded, from the nature of his offence.

The prisoner conducted himself throughout the whole proceedings with the utmost calmness, and took leave of his friends in the evening with great apparent cheerfulness; and, retiring to his apartment, he begged the favour of a visit from them on the following day. In the morning of the 28th of February 1770, however, he was found dead, hanging to the end of a form which he had set upright, and a silk handkerchief fastened round his neck.

The following lines were found upon the floor, close to the body:—

“Farewell, vain world! I’ve had enough of thee,
And now am careless what thou say’st of me:
Thy smiles I court not, nor thy frowns I fear:
My cares are past; my heart lies easy here.
What faults they find in me take care, to shun;
And look at home—enough is to be done.”

JAMES ATTAWAY AND RICHARD BAILEY.

EXECUTED FOR BURGLARY.

THE crime for which these men so justly suffered was committed in a manner most artful and daring.

About nine o'clock in the evening they went to the house of Thomas Le Merr, Esq. in Bedford-row, London, a public and genteel street. They had received information that Mr. Le Merr was in the country, and on their knocking at the door, it was opened by a footman, who was alone in the house, to whom Bailey delivered a letter, saying it was for his master. Before the servant could answer, they rushed in, shut the street door, and stabbed him in the belly with a dagger. They then drew cords from their pockets, tied the bleeding man's hands behind his back, and dragged him down stairs into the kitchen, and there bringing the rope about his neck, and across his face, in such a manner that it went through his mouth, which it kept open, and making it fast behind, thus bound, they forced him into a cellar, and bolted him in. In a few minutes one of the villains returned, asking if he was fast; and being answered, as well as the poor man could speak, that he was secure enough, they broke open the pantry, where the plate-chest was kept, forced the lock, and deliberately packed up its contents. In the mean time, however, the wounded man gnawed the rope in his mouth, and soon liberated himself. He then forced open the door which confined him, and got into the area, over which was a skylight, and, apprehensive that he was bleeding to death, he made an effort, by climbing up a pipe, to get through it, and give an alarm. In effecting this he stuck by the middle, and near his wound, a considerable time, but was not heard by the thieves, who were busily employed in securing their plunder. Making a last exertion, he succeeded in raising himself up, and, dragging the rope after him, he got to the stables behind the house, and called for help as loud as his almost exhausted strength would permit. Five or six grooms immediately came to his assistance; and, learning the cause of his alarm, they seized the robbers as they were coming out of the house; thus fortunately saving the poor fellow's life and Mr. Le Merr's property.

On this evidence the prisoners were subsequently found guilty, the wounded man being able to appear in court against them, and were executed at Tyburn, July 4, 1770.

LEVI WEIL, ASHER WEIL, JACOB LAZARUS, AND SOLOMON PORTER.

EXECUTED FOR THE MURDER OF JOHN SLOW.

THIS daring violation of the law, which long roused the public indignation against the whole Jewish people, happened in the house of Mrs. Hutchings, in the King's-road, Chelsea, who was a farmer's widow, left by her husband in good circumstances, and with three children, two boys and a girl.

On a Saturday evening, just as the Jewish Sabbath was ended, a numerous gang of Jews assembled in Chelsea Fields; and having lurked about there until ten o'clock, at that hour went to the house of Mrs. Hutchings, and demanded admittance. The family had all retired to rest, with the exception of Mrs. Hutchings and her two female servants, and being alarmed by the unseasonable request of the applicants, they proceeded in a body to know their business. The door was no sooner opened, however, than a number of fellows,—all of whom had the appearance of Jews,—rushed in, and seizing the terrified females, threatened them with instant death in the event of their offering any resistance. Mrs. Hutchings, being a woman of considerable muscular strength, for a time opposed them; but her antagonists having soon overpowered her, they tied her petticoats over her head, and proceeded to secure the servants. The girls having been tied back to back, five of the fellows proceeded to ransack the house, while the remainder of the gang remained below to guard the prisoners. Having visited the rooms occupied by the children of Mrs. Hutchings in turn, the ruffians proceeded to the apartment in which two men, employed as labourers on the farm, named John Slow and William Stone, were lying undisturbed by the outcry which had been raised below. It was soon determined that these men were likely to prove mischievous, and that they must be murdered; and Levi Weil, a Jewish physician, who was one of the party, and was the most sanguinary villain of his gang, aimed a blow at the breast of Stone, intended for his death, but which only stunned him. Slow started up, and the villains cried

“Shoot him! shoot him!” and a pistol was instantly fired at him, and he fell, exclaiming, “Lord have mercy on me! I am murdered!”

They dragged the wounded man out of the room to the head of the stairs; but in the mean time Stone, recovering his senses, jumped out of bed, and escaped to the roof of the house, through the window. The thieves now descended and plundered the house of all the plate they could discover; but finding no money, they went to Mrs. Hutchings, and threatened to murder her if she did not disclose the place of its concealment. She gave them her watch, and was afterwards compelled to give up a purse containing 65*l.*, with which they immediately retired. Mrs. Hutchings now directly set her female servants at liberty, and having gone in search of the men, she found Slow, who declared he was dying, and dropped insensible on the floor. He languished until the following afternoon, and then died of the wounds which he had received.

It was a considerable time before the perpetrators of this most diabolical outrage were discovered; but they were at length given up to justice by one of their accomplices, named Isaacs, who was a German Jew, and who, reduced to the greatest necessity, was tempted by the prospect of reward to impeach his fellows. It then turned out that the gang consisted of eight persons, who were headed by the physician before-mentioned. Dr. Weil had been educated in a superior manner. He had studied physic in the university of Leyden, where he was admitted to the degree of doctor in that faculty; and, then coming to England, he practised in London, with no inconsiderable degree of success, and was always known by the name of Doctor Weil; but so destitute was he of all principle, and such was the depravity of his heart, that he determined to engage in the dangerous practice of robbery; and, having formed this fatal resolution, he wrote to Amsterdam, to some poor Jews, to come to England, and assist him in his intended depredations on the public; and at the same time informed them that in England large sums were to be acquired by the practice of theft.

The inconsiderate men no sooner received Dr. Weil’s letter than they procured a passport from the English consul, and, embarking in the Harwich packet-boat, arrived in England.

They lost no time in repairing to London, and, immediately attending Dr. Weil, he informed them that his plan was, that they should go out in the

day-time, and minutely survey such houses near London as might probably afford a good booty, and then attack them at night.

At the sessions held at the Old Bailey, in the month of December 1771, Levi Weil, Asher Weil, Marcus Hartagh, Jacob Lazarus, Solomon Porter, and Lazarus Harry, were indicted for the felony and murder above-mentioned, when the two of the name of Weil, with Jacob Lazarus and Solomon Porter, were capitally convicted; while Marcus Hartagh and Lazarus Harry were acquitted for want of evidence.

These men, as is customary in all cases of murder, when it can be made convenient to the Court, were tried on a Friday, and on the following day they were anathematised in the synagogue. As their execution was to take place on the Monday following, one of the rabbis went to them in the press-yard of Newgate, and delivered to each of them a Hebrew book; but declined attending them to the place of death, nor even prayed with them at the time of his visit.

They were attended to Tyburn, the place of execution, by immense crowds of people, who were anxious to witness the exit of wretches, whose crimes had been so much the object of public notice.

Having prayed together, and sung a hymn in the Hebrew language, they were launched into eternity, December 9, 1771.

After the bodies had hung the customary time, they were conveyed to Surgeons' Hall to be dissected.

JAMES BOLLAND.

EXECUTED FOR FORGERY.

THE adventures of this fellow exhibit him to have been a person of a most profligate disposition. By means of his employment as a bailiff, he obtained the custody of great numbers of unfortunate debtors, whom it became his entire occupation to fleece of any small property which might be left in their possession at the time of their incarceration. Bailiffs at the present day are not much esteemed as persons of respectable character, or whose mode of life is at all calculated to raise them in the opinions of their fellows; but, judging from the case of Bolland, the race appears to have much improved since the year 1772.

Bolland was the son of a butcher in Whitechapel, and having been brought up to his father's trade, he opened a shop on his own account, almost immediately on the termination of his apprenticeship. His ideas of life, however, did not permit him to pay that attention to his business which it demanded; and having spent no small portion of his time and money in the society of bailiffs, thief-takers, and blacklegs, he at length found himself tottering on the eve of bankruptcy. To avoid a catastrophe which might have damaged him in the estimation of his companions, he now sold off his effects; and in order to indulge a taste which he appeared to have imbibed from his recent associations, he procured himself to be appointed one of the officers of the sheriff of Surrey, and opened a "sponging-house," or receptacle for newly-arrested debtors, at the bottom of Falcon-court, near St. George's Church, Southwark. The sponging-houses of the last century, as it may be well supposed, had no better qualities to recommend them than those of the present day, and that of Mr. Bolland appeared to outvie its fellows in the wretchedness and poverty of its equipments. It was, however, speedily inhabited by a number of wretched debtors, and now came the opportunity for its proprietor to exercise his power of discrimination between those who were unable to contribute to his benefit, and those whose purses even yet afforded the possibility of his squeezing from them a few golden drops. Those whose money was all spent were not long permitted to remain in his "establishment," but were sent off to the county

prison as soon as the discovery of their poverty was made; but those who could afford to pay for their accommodations, and besides to enter with him into the amusements of cards and dice, were welcomed as honoured visitors, so long as their money lasted, until, in order to avoid further imposition, they demanded to be conveyed to prison, or until the exigency of the writs upon which they had been arrested rendered their removal necessary.

It may be readily imagined that no occasion was allowed by Bolland to slip, on which, either by the exercise of fraud or artifice, he could procure money from his unfortunate guests; and situated as he was—the master of the house, all efforts to oppose his will were of course unavailing so long as his dupes remained under his roof. But while his frauds at home were carried on with the most daring effrontery, he was no less active abroad, in endeavouring to “raise the wind.” He became a horse-dealer, and a bill-discounter; and in both of these professions ample opportunities for the exercise of all sorts of chicanery were afforded. At length, however, his name and his infamous practices became so notorious that his business forsook him—his employers justly imagining that when his conduct was so villanous, they might be justly reflected upon for encouraging him—and with his business, the means of meeting his numerous and very heavy expenses declined. His creditors became clamorous, and a commission of bankruptcy was sued out by a friend, but not until he had managed to gull the public to a large extent, and to secrete a very considerable quantity of valuable effects.

Having been “whitewashed” of his old debts, upon his discharge from prison he managed once again to enter into business, and having procured new bondsmen, he was appointed an officer to the sheriff of Middlesex, and opened a sponging-house in the Savoy. His successes in his new avocation were by no means so great as those which he had experienced in his late employment in Surrey; but he managed to eke out the means of existence between his house and his successes at play in the various billiard-rooms in the vicinity of his dwelling.

At length, however, having by his fraudulent schemes involved himself in almost innumerable difficulties, he determined upon once more “passing the court,” to get rid of his liabilities; and the necessary proceedings were taken to procure a second commission of bankruptcy. During his sojourn in the Fleet Prison, whither, like many of his late victims, he was now obliged

to go, he formed acquaintances by no means calculated to improve his character for respectability, nor to induce him to adopt any new mode of life. On his discharge, through the instrumentality of some of his prison friends, he procured himself once again to be appointed a sheriff's officer of Middlesex, and he now commenced business in Great Shire Lane, Fleet-street. If his exertions as a bailiff in the Savoy had failed in procuring for him those returns which his situation might lead him to expect, he had now no reason to complain of want of patronage. His acquaintance among the "sharp practice" attorneys had been lately increasing, and he was soon almost fully employed by them. His house was again rendered the means of procuring for him the most extravagant returns for his outlay on behalf of his prisoners, and his ingenuity and impudence supplied any deficiency which might have before appeared in his income.

One or two instances of the devices to which he had recourse may prove interesting. Having been employed by a gentleman to arrest a person who was his debtor to the amount of three hundred pounds on a bill of exchange, and who held the situation of captain of an East Indiaman, Bolland immediately proceeded to make the necessary inquiries respecting his prey. He learned that his vessel was about to sail in the course of a very few days; but, determined to be beforehand with him, he caused him to be immediately arrested and carried to his lock-up house. His employer, in the mean time, had gone out of town, and therefore looked for no immediate account from the officer; but the latter having procured the debt and costs from his prisoner, suffered him immediately to depart. Some months elapsed before the plaintiff in the suit returned to London, and then he demanded to know what success the bailiff had had in procuring the payment of the debt; but he was assured by him that the vessel had sailed before the writ was lodged in his hands, and that all his efforts to procure the money had been unavailing. He then tendered a charge of the costs which had been incurred, and the amount having been paid, he walked off. His cheat was soon destined to be discovered, however; for the captain having returned, a writ was lodged in the hands of another officer, by whom he was a second time arrested. The result may be easily imagined: Bolland's receipt for the debt and costs, dated eighteen months before, was produced, and the prisoner was at once set at liberty. Proceedings were then immediately instituted against our hero, and after a long course of opposition to the law, through which he imagined that he would not be

followed, he was compelled to refund the money which he had so dishonestly obtained.

The following case shows that he did not always come off the winner:— The custom of putting in sham bail has long been well known; and although recent enactments of the legislature have put an end to this system, founded on perjury and fraud, the “men of straw” who formerly paraded Westminster Hall, ready to swear that they were worth any amount, and who were easily recognised by the straw which hung out of their shoes, are yet well remembered. Bolland, in the course of his professional avocations, had frequent necessity for the use of persons of this description; and he had gone so far as to hire two men for the exclusive use of his establishment, whom he had attired in something like decency, for the sake of giving his transactions an air of respectability. Having upon one occasion accompanied his servants to a public-house in Covent Garden, to regale them after a “good hit,” he was surprised to see them suddenly carried off by two Bow-street runners on a charge of highway-robbery. At the ensuing Old Bailey Sessions, they were put upon their trial charged with the offence alleged against them, and a verdict of conviction having been recorded, they were sentenced to be hanged. Bolland, in his capacity of sheriff’s officer, was compelled to accompany them to the gallows, and had the mortification of seeing them turned off, wearing the clothes which he had provided them, and which, by custom, became the property of the executioner.

Another instance will show how far his villany extended. A Mrs. Beauclerc was the wife of a captain in the navy, and her husband having been detained at sea for a period much longer than was expected, she contracted a debt amounting to thirty pounds. The creditor became solicitous that the money should be repaid; but Mrs. Beauclerc being devoid of the means of payment, and having no friend to whom in her strait she could apply, was at length arrested by Bolland upon a writ which had been placed in his hands for execution, and conveyed to Great Shire Lane. Having tasted all the pleasures of a residence in a sponging-house, she became anxious in a day or two for her release upon any terms which she could make; and, upon her entreaty, Bolland procured bail to be put in for her on a fee of five guineas being handed over. She had scarcely obtained her liberty, however, before she was rendered into custody by her bail, acting upon the advice of Bolland, who represented that her circumstances were such as to render the continuance of their liability in her behalf

exceedingly dangerous. Every post was expected to bring news of Captain Beauclerc, and with it the means of discharging the debt; and the poor woman, terrified at an incarceration in Newgate, with which she was threatened, was induced to raise ten pounds, in order once more to procure her liberation upon bail. The money being tendered, her jailor was too good a judge to permit her to go at large without some further security; and he insisted upon her signing a bond to confess judgment, levyable upon her furniture, as a collateral security. Mrs. Beauclerc was ignorant of the nature of such an instrument, and readily assented to everything that was proposed; and her surprise may be imagined when, on the very day after her liberation, a writ of execution was put into her house, founded upon the judgment signed upon her confession, under which all her goods were seized. Distracted at the prospect of her husband's speedy return, and at his discovery of her destitution, in a state of the wildest desperation she attempted to set fire to the house which she occupied. Her offence was, from its nature, immediately discovered, and the unhappy woman was dragged to Newgate to await her trial. Scarcely had she become an inmate of the jail, the name of which she had before so much dreaded, when her husband arrived in London, and was horror-struck at discovering her situation. Every effort was made by him on her behalf; but before the trial of his wretched wife came on, he was suddenly arrested by Bolland, upon a writ sued out upon an affidavit of debt, falsely sworn at the instance of the officer. His condition may be easily supposed to have been heart-rending in the extreme; and his wife, deprived of the assistance which she might have obtained had he been at large, was convicted and received sentence of death. The captain, in order as soon as possible to be able to render his wife that comfort which her situation demanded, and to make some exertions in her behalf, procured his liberation, though it was by paying the debt to which he was sworn to be liable; and the case of his wife being represented to the king, she was at length released from confinement, upon an unconditional pardon which was granted to her.

By these and other artifices, and by the most unblushing effrontery, Bolland succeeded at length in amassing a sum of two thousand pounds; and the office of City-marshal becoming vacant, he determined, if possible, to become its possessor by way of purchase. The situation, as was then customary, was put up for sale, and after a spirited bidding, he became the buyer at a price of two thousand four hundred pounds; and having paid the

deposit-money, and raised such portion of the whole sum as he did not possess, he only waited the approval of the Court of Aldermen at once to take upon himself the duties of the office. His character had, however, become too notorious to permit of his being allowed to assume a situation of so much importance in the City; and a message was communicated to him by the recorder, in which the nature of the grounds of the refusal were stated. An action was threatened upon the breach of contract, as well as upon the defamation of his character, conveyed by the message of the recorder; but finding that he was likely to gain nothing by an opposition to the corporation of London, he desisted from any further proceedings, and demanded the restitution of the amount of the deposit money. But here he was doomed to suffer another disappointment. The amount handed over had been attached by the persons, who had become his sureties to the sheriff, on account of certain liabilities which he had incurred to them under their bail bonds, and it was detained in order to await the decision of a court of law upon the claim.

Before the proceedings which arose upon the subject, however, had terminated, Bolland was guilty of the offence for which he became liable to trial, and was convicted and executed. It appears that his crime consisted in the introduction of a false indorsement upon the back of a bill of exchange, made by Bolland for the purpose of giving it a fictitious value. A person named Jesson having discounted a bill for him, they accidentally met at the George and Vulture Tavern, Cornhill, on the day when it became due. Jesson demanded payment; but Bolland declared that he was unprepared with the money requisite to take up the instrument, and tendered another bill for one hundred pounds, accepted by a Mr. Bradshaw, as an equivalent. Jesson, after some demur, consented to take the bill; and Bolland indorsed it with his own name. This was exclaimed against by Jesson, on the ground that it would not be negotiable if his name appeared on it; and he then took a knife, and, according to Jesson's belief, scratched out the whole name, while, in reality, he scratched out all except the initial, which he left, and to which he added the letters "anks," so as to make the name "James Banks." The bill was then handed back to Jesson; and on the following day it was discounted for him by a person named Cardineaux. The latter subsequently demanded to know who Banks was; and Bolland informed him that he was a victualler in the neighbourhood of Rathbone Place, in an extensive and reputable way of business. Before the bill became due it was again

discounted for Cardineaux by his banker, and Bradshaw, the acceptor, became bankrupt. Cardineaux, in consequence, applied to Jesson to take up the bill, and he in turn went to Bolland; but the latter positively refused to have anything to do with it, and even went so far as to deny, with the utmost effrontery, that he had ever seen it. At a subsequent meeting between Cardineaux, Jesson, and Bolland, the latter endeavoured to excuse himself from payment, by alleging that his name did not appear on the instrument; but on his being called upon to explain how Banks's indorsement came upon it, he desired that all further disputes might subside, and that he would take it up. An investigation, however, subsequently took place, and Jesson, annoyed at the double fraud which had been practised upon him, took the advice of counsel as to what should be done. An opinion was given that an indictment for forgery would lie, and Bolland was taken into custody; but then immediately a person, who stated his name to be Banks, applied to Cardineaux to take up the bill. The one hundred pounds were accepted, and the supposed Mr. Banks obtained a receipt for that amount; but on his demanding the delivery of the bill, he was informed that it was detained in order to be produced in evidence at the trial, after which he should be welcome to it.

The prisoner was indicted at the ensuing Old Bailey sessions, when proof of the facts which we have detailed having been given, and all efforts to prove the existence of any such Mr. Banks as had been described having failed, a verdict of Guilty was returned. Every effort was subsequently made by the prisoner's counsel, on a motion in arrest of judgment, to procure the verdict to be set aside, but in vain, and sentence of death was passed upon him in the usual form.

On the morning of his execution, the unhappy wretch confessed that he had been guilty of innumerable sins, but declared that he had no fraudulent intention in indorsing the bill when he put it off.

He was hanged at Tyburn on the 18th of March 1772, and his body was in the evening conveyed to Bunhill Fields, and there buried.

WILLIAM GRIFFITHS.

EXECUTED FOR HIGHWAY ROBBERY.

THE person robbed in this case was the celebrated and unfortunate Dr. Dodd, whom, a few years afterwards, Fate decreed to be hanged at the very spot where Griffiths suffered.

William Griffiths was a native of Shropshire, and followed the business of husbandry till he had attained his eighteenth year, when he engaged in a naval life, and remained near three years in the East Indies. The ship was paid off on his return to England; and our hero receiving a considerable sum for wages, spent his money, as sailors generally do, in no very reputable company, at public-houses in Wapping and adjacent parts.

Being now reduced to poverty, he was persuaded by two fellows named David Evans and Timothy Johnson to join them in the commission of highway robberies. Their efforts were attended with small success, and Griffiths's reign was soon terminated. It appears that the Rev. Dr. Dodd and his lady were returning from a visit they had been making to a gentleman at St. Albans, but were detained on the way at Barnet, because a post-chaise could not be immediately procured. Night was hastily approaching when they left Barnet; but they proceeded unmolested until they came near the turnpike at the extremity of Tottenham-Court-Road, when three men called to the driver of the carriage, and threatened his instant destruction if he did not stop. The postboy did not hesitate to obey the summons; but no sooner was the carriage stopped than a pistol was fired, the ball from which went through the front glass of the chaise, but did not take any effect to the injury of the parties in it. Griffiths then immediately opened the door of the chaise; on which the doctor begged him to behave with civility, on account of the presence of the lady. He delivered his purse, which contained only two guineas, and a bill of exchange, and also gave the robber some loose silver. Griffiths, having received the booty, decamped with the utmost precipitation; but Dr. Dodd lost no time in repairing to Sir John Fielding's office, where he and his lady gave so full a description of the person of the principal robber, that he was immediately apprehended.

At the trial, the doctor declared that he had only come forward on account of the pistol having been fired, but refused to swear to the person of the prisoner. His lady, however, was more positive in her evidence; and no doubt being left as to his identity, he was found guilty and received sentence of death.

He afterwards confessed the crimes of which he had been guilty, and was executed on the 20th of January 1773, apparently sincerely penitent for his offences.

JOHN LEONARD.

EXECUTED FOR A RAPE.

THE circumstances of this case are marked by peculiar atrocity. It appears that a man named Vere, a sheriff's officer, having put an execution into a house of Mr. Brailsford, in Petty France, Westminster, he placed Leonard, Graves, and Gay, three of his followers, in possession.

A young woman named Boss resided in an apartment on the second floor of the house, and on the 15th June, 1773, the family of Mr. Brailsford having all gone out in search of the means of getting rid of their unwelcome visitants, she was left alone in the house with the three officers. She was at work in her own room, when, about mid-day, Leonard opened the door, and began in a familiar manner to speak to her. Terror for a while deprived her of utterance; but finding him proceed to take those liberties which female virtue can never suffer, she resisted, screamed out, seized the villain by the throat, struggled until she was exhausted, and then sank down, deprived of reason. In this situation her assailant used her in the way that constituted the offence for which he was justly executed.

A neighbour hearing the cries of the distressed female, and suspecting some foul deed, knocked at the street-door, and inquired the cause of the noise; to which Leonard, opening the window, replied that it was only a drunken woman: and the inquirer retired.

The three villains, Leonard, Graves, and Gay, were afterwards indicted for this cruel outrage: Leonard as the principal, and the others as accessories to the fact; and upon their trial they were all found guilty. Graves and Gay were burned in the hand and imprisoned; but sentence of death was immediately passed upon Leonard.

Although convicted upon the clearest evidence, this obdurate man denied that he was guilty; and on the Sunday before he suffered, he received the sacrament from the hands of the Rev. Mr. Temple, and then, in the most solemn manner, declared to that gentleman that he was entirely innocent of the fact for which he was to die; that he had been repeatedly intimate with Miss Boss, with her own consent; and that all the reason he could

conjecture for her prosecuting him was, that he had communicated this matter to Graves, one of the other followers, who availed himself of the secret, and found means to get into the young lady's room, and who really perpetrated the fact with which she had falsely accused him.

In this story he persisted all the time he remained in Newgate; but Mr. Temple, suspecting his veracity, delivered a paper to Mr. Toll, another gentleman who usually administered spiritual comfort to the malefactors in their last moments, in which he requested him to ask Leonard about those two assertions before he was turned off.

This request Mr. Toll and his colleague punctually complied with, and the unhappy man then acknowledged that he had taken the sacrament to an absolute falsehood; that there was not a word of truth in his impeaching Miss Boss, but that he alone abused her; that he was taught in Newgate to believe that the falsehood might do him service; that he found his mistake too late, and all the atonement he could make was to acknowledge the truth before he left the world, and to beg pardon of God for having acted in so atrocious a manner.

He was executed on the 11th August, 1773, at Tyburn.

SAMUEL MALE.

EXECUTED FOR ROBBERY.

THE short life of this culprit was remarkable for producing two surprising instances of the uncertainty of identity.

On the 4th of September, 1772, he was arraigned at the bar of the Old Bailey for a robbery upon a Mrs. Ryan.

The prosecutrix and other witnesses swore positively that the prisoner committed the robbery on the 17th of June then last past.

The court consequently supposed conviction would follow; but being called on for his defence, he said he was innocent, and that the books of the court would prove where he was on the day of the robbery.

Reference was immediately made to the records; and strange yet true to relate, that, on the very day and hour sworn to, Male was actually on his trial at the bar where he then stood, for another robbery, when he was unfortunate enough to have been mistaken for another person. He was consequently acquitted; but the force of example did not deter him from the commission of crime, and although he was discharged from prison without reproach, he came out a determined thief.

His career of villany was soon ended; for in six months afterwards we find him expiating his crimes at the gallows. He was charged with a real robbery, committed by him on the person of Mrs. Grignon, and being unable again to prove an *alibi*, as he had hitherto done, he was found guilty, and was executed at Tyburn on the 25th of March, 1773.

WILLIAM FARMERY.

EXECUTED FOR THE MURDER OF HIS MOTHER.

WHILE we sketch the shocking crime of this monster, we have some consolation in observing that, in our long researches into the baseness of mankind, he is the first we have met with, who, with long-lurking malice, shed the blood of his mother.

A subject so strangely horrid and unnatural we shall dismiss by a bare recital of the shocking circumstance.

It appears that among other undutiful acts, he had one morning given offence to his parent, for which he was justly reproached, whereupon he went out of her house, took the knife from his pocket, and deliberately whetted it till quite sharp. Then returning with the murderous instrument in his hand, he found his unfortunate mother in the act of making his own bed.

Without uttering a word, he threw her down, and as a butcher kills a sheep, he stuck her in the throat, and left her weltering in her blood, of which wound she died.

On his examination he confessed the fact, and said that he had determined upon his mother's death three years before; for that he had treasured up malice against her since she had corrected him for some trifling fault when a little boy.

He was executed at Lincoln, where his offence was committed, on the 5th of August, 1775.

AMOS MERRITT.

EXECUTED FOR BURGLARY.

THE case of this prisoner is a fit successor to that of Samuel Male, which has been just related. His execution arose out of the following circumstances. On the 19th August, 1774, Patrick Maden, convicted of a foot-robbery on the highway, and William Waine and Levi Barnet for burglary, were carried to Tyburn for execution, pursuant to their sentence. When the cart was drawn under the gallows, a man among the crowd of spectators called out for the others to make way for him, as he had something to communicate to the sheriff respecting one of the prisoners. This being effected, the man, who proved to be Amos Merritt, addressed Mr. Reynolds, the under-sheriff, and declared that Patrick Maden was innocent of the crime for which he was about to suffer. Mr. Reynolds desired he would look upon the prisoner, and speak aloud what he had represented to him. He did so, and declared that he was not guilty; but declined accusing himself. The sheriffs, on hearing this declaration, despatched Mr. Reynolds with the information to the secretary of state, and to request his further orders; and a respite being obtained for Maden, he was carried back to Newgate, amid the acclamations of the people.

Merritt was then taken into custody, and at the public office in Bow-street, before Mr. Justice Addington, confessed that he himself was the person who had committed the robbery of which Maden had been convicted, and the last-named prisoner was then pardoned.

Though no doubt remained of Merritt's guilt, yet, as no proof could be adduced to that effect, he for a while escaped justice.

He had been guilty of many robberies, the particulars of which are not interesting, and we shall therefore come to that for which he suffered.

At the sessions held at the Old Bailey in the month of December 1774, Amos Merritt was indicted for feloniously breaking and entering the dwelling-house of Edward Ellicott, early in the morning of the 26th of October, and stealing from it a quantity of plate, a gold watch, and other valuable articles, to a large amount.

Mr. Ellicott deposed that he lived in Hornsey-lane, near Highgate, that he was awakened by his wife, who inquired what noise was in the house; and ringing the bell, both of them jumped out of bed. The first words they then heard were, "Come up directly;" and then some person said, "D—n your bloods, we will murder every soul in the house!" Mrs. Ellicott said, "Lord bless me, the door is open!" and running to the door, pushed it close. Mr. Ellicott gave immediate assistance; and a person who was without, who he believed from his voice was the prisoner, said, "D—n you, if you do not open the door, I will murder every one of you!"

The rest of the evidence was to the following effect:—The villains attempted to force open the door, putting a hanger with a scabbard between that and the post; but Mr. Ellicott, who was a powerful man, kept them out by mere strength, and having fastened the door with a drop bolt, which went into the flooring, he ran to the window, and called out "Thieves!" In the mean time Mrs. Ellicott, by perpetual ringing of the bell, hail alarmed the servants, who ran into the road after the thieves, who had by this time got off with the property.

Notice having been given at Sir John Fielding's, Merritt and his accomplices were taken into custody on suspicion, and after an examination at Bow-street were committed to Newgate.

At the trial the evidence was deemed so satisfactory that the jury did not hesitate to find Merritt guilty; in consequence of which he received sentence of death, and was executed at Tyburn on the 18th of January, 1775, within six months of the period of his saving the unfortunate Maden from an untimely and ignominious fate.

Connected with the two cases just detailed, we may relate an anecdote of a very remarkable instance of personal similitude which happened at New York, in North America, in the year 1804.

A man was indicted for bigamy under the name of James Hoag. He was met in a distant part of the country by some friends of his supposed first wife, and apprehended. The prisoner denied the charge, and said his name was Thomas Parker. On the trial, Mrs. Hoag, her relations, and many other credible witnesses, swore that he was James Hoag, and the former swore positively that he was her husband. On the other side, an equal number of witnesses, equally respectable, swore that the prisoner was Thomas Parker; and Mrs. Parker appeared, and claimed him as her husband. The first

witnesses were again called by the Court, and they not only again deposed to him, but swore that by stature, shape, gesture, complexion, looks, voice, and speech, he was James Hoag. They even described a particular scar on his forehead, by which he could be known. On turning back the hair, the scar appeared. The others, in return, swore that he had lived among them, worked with them, and was in their company on the very day of his alleged marriage with Mrs. Hoag. Here the scales of testimony were balanced, for the jury knew not to which party to give credit. Mrs. Hoag, anxious to gain back her husband, declared he had a certain more particular mark on the sole of his foot. Mrs. Parker avowed that her husband had no such mark; and the man was ordered to pull off his shoes and stockings. His feet were examined, and no mark appeared.

The ladies now contended for the man, and Mrs. Hoag vowed that she had lost her husband, and she would have him; but during this strife, a justice of the peace from the place where the prisoner was apprehended entered the Court, and turned the scale in his favour. His worship swore him to be Thomas Parker; that he had known, and occasionally employed him, from his infancy; whereupon Mrs. Parker embraced and carried off her husband in triumph, by the verdict of the jury.

The following anecdote was related by Mr. Baron Garrow upon the trial of a prisoner, whose identity was questionable, on the Oxford Circuit. The learned judge was in the course of summing up the case to the jury, when he stated that a few years before, a prisoner was on his trial before him, upon a charge of highway robbery. His person was identified positively by the prosecutor, who even went so far as to say that he now wore the same clothes in which he had been attired on the occasion on which the robbery was committed; and the jury were on the point of being dismissed to the consideration of their verdict, when suddenly shouts were heard in the yard attached to the Court-house;—cries of “Make way—make way,” were distinguished;—and a man on horseback, whose appearance denoted the rapidity with which he had ridden, rushed in among the people congregated to await the result of the trial, and, throwing himself from his horse, which was covered with foam, made his way with the greatest expedition to the entrance of the Court. The outcry which was raised had stopped the learned judge in his concluding observations, and before he could resume his address to the jury, the man, booted and spurred, and covered with mud, called upon him to “stop the case, for that he had ridden fifty miles to save

the life of a fellow-creature—the prisoner at the bar.” His lordship and the Court were astonished at the interruption, and called upon the stranger to explain his conduct. His answer was that he knew that the prisoner could not be guilty of the offence imputed to him; and he called upon the prosecutor of the indictment to say whether, after having seen *him*, he could still swear that the prisoner was the offender. The prosecutor again entered the witness-box, and surveyed the stranger from head to foot. He was dressed in a manner precisely similar to that in which the prisoner was attired—a green coat with brass buttons, drab breeches, and top-boots;—their countenances were so nearly alike in style, that from the transient view he had had of the robber, he was unable to distinguish which was the real thief. The Court were unwilling to suffer a person who was really innocent to be convicted, and proceeded to make inquiries of the stranger as to his reasons for interrupting the trial, and as to his knowledge of the circumstances of the robbery. Upon the former point, the only explanation which could be obtained from him was, that he was perfectly satisfied that the prisoner was innocent; upon the latter he declined to answer any queries, insinuating that, situated as he was, the Court would not compel him to criminate himself. The prisoner now reiterated the protestations of innocence which he had before made; and the prosecutor, being strictly examined by the Court, declared that he was so confused by the similarity which existed between the prisoner and the stranger, that he was unable to swear that the former was actually the thief; and that his impression now was, that the latter was the real offender. Under these circumstances, it was left to the jury to say, whether they could with safety declare the prisoner to be guilty; and a verdict of acquittal was in consequence returned, to the apparent satisfaction of the Court. It now became the duty of the judge to determine what further proceedings should be taken. A robbery, there was no doubt, had been committed, and its commission lay between the person who had just been acquitted and the stranger. The former must be presumed to be not guilty, because the jury had declared him to be so; and a bill of indictment was therefore directed to be preferred against the latter, who was taken into custody. The same evidence which had before been given was now repeated, and a true bill was returned. The trial came on in the course of the ensuing day, and a fresh jury being impanelled, the new prisoner was put upon his defence. It was a simple and plain one; “he was not guilty. The prosecutor had sworn positively to the person of the prisoner, who had been

tried on the previous day, and could he now be permitted so to alter his testimony, as to procure the conviction of another? He had before declared that he could not distinguish the real offender, and what better opportunity had been since afforded him? Besides, his evidence now went only to his ‘belief’ as to the identity of the person charged: and surely if the jury had before acquitted a prisoner to whom he had sworn positively, they would not now convict, when his testimony was qualified.” This reasoning was too much for the jury; the prisoner had made no confession of his own guilt, and he was declared not guilty. The sequel was soon discovered; the two men were brothers: the first prisoner was the guilty party, and the whole “scene” got up by the stranger was a mere fabrication, invented for the purpose of gulling the Court and jury. No proceedings could be taken against either party; for although the Court had been imposed upon, the imposition was backed by no perjury, and the two thieves—for so they turned out—escaped unpunished.

Another instance of remarkable imposition being practised upon the Court, occurred subsequently at York. The case of a person who was charged with an extensive robbery on the highway, had attracted considerable attention. The prisoner, when apprehended, was attired in the habit of a working man; but the prosecutor, whose evidence as to his identity was positive, swore that when the robbery was committed he was well dressed, and mounted. The trial came on at the York assizes, and the Court was crowded with persons. Upon the evening preceding the day on which the case was fixed for trial, a gentleman drove up to one of the principal inns of the city in a travelling chariot, and requested to be accommodated with a bed. A handsome supper was ordered, and the stranger retired to rest. In the morning breakfast was served, and the landlord was sent for. The gentleman said that he was unacquainted with the town, and found that he was a day too early for the business upon which he had come to York: and he therefore desired to know whether there were any amusements going on, with which he could entertain himself until dinner-time. The castle, the minster, and various other curiosities were alluded to, in which he appeared to take no interest; and the landlord at length mentioned that the assizes were on, and suggested that he might probably derive some entertainment from listening to the trials; and he stated that a remarkable case of highway robbery was fixed for trial on that morning, and had by that time probably commenced. Some curiosity on this point

was expressed; and the landlord, conducting his guest to the Court-house, obtained for him a seat upon the bench, upon assuring the high sheriff of his being a person of great apparent respectability, which the landlord had good reason to believe, from his having seen him with a bundle of notes in his possession of no inconsiderable size, which he observed that he had placed in his trunk with his pocket-book on his quitting the inn. The case of highway robbery, as the landlord suggested, had already commenced; the prisoner appeared to be a poor man, and was standing at the bar, with his face buried in his handkerchief, apparently deeply affected by the situation in which he was placed, and almost unconscious of what was passing around him. The trial now approached its termination; the evidence for the prosecution was completed, and the learned judge called on the prisoner for his defence. He raised himself languidly from the place where he had been resting, and assured the jury that he was innocent, when, suddenly starting, he exclaimed passionately. "There, there, my lord, there is a gentleman seated on your lordship's bench who can prove that I am not guilty!" All eyes were turned to the person to whom the prisoner's finger, in support of his declaration, was pointed; and the stranger was found to be the object of the remark. He expressed great surprise at being thus called upon, and declared that he was at a loss to know how the prisoner could appeal to him, for that he had no immediate recollection that he had ever seen him before. The learned judge demanded that the prisoner should explain himself; and he then stated that on the very day named in the indictment, and by the witnesses, as that on which the robbery had been committed, he was at Dover, and had conveyed the gentleman's luggage in a wheelbarrow from the Ship Inn to the steam-packet, in which he was about to start for Calais. The gentleman, in answer to the questions put to him, said that he certainly had been at Dover about the time mentioned, and that he had lodged at the Ship Inn, and had gone from thence by steam to Calais. He remembered too that a man had carried his trunks as the prisoner had described; but that although he now had some distant recollection of the features of the man at the bar, he was unable to recognize him as the person he had employed; and he could not besides swear to the date of the transaction. The court inquired whether he was in the habit of making memoranda of his proceedings, and whether, by referring to any documents, he should be able to give any more decided information upon the subject? He answered, that being engaged in a large mercantile business it was certainly his custom to make notes in his

pocket-book, but that the book was at his inn, locked in his trunk. The court said that in such a case it was desirable that the most minute inspection should take place, and desired that the gentleman should go for his book. The latter was unwilling to take this trouble, but would give his keys to the officer of the court, who might, in the presence of his landlord, open his trunk and bring the book to the court. Messengers were in consequence despatched, with directions to make further inquiries of the landlord as to the stranger; and in the meantime the prisoner proceeded to ask him questions, reminding him of certain occurrences which had taken place on the day in question on their way from the inn to the quay, and more especially that the packet was late in starting. To most of these the gentleman assented, and the pocket-book being now arrived he referred to it, and declared that the date mentioned was the very day on which he had quitted Dover as described; and from all the circumstances which the prisoner had detailed, he was decidedly of opinion that he was the person whom he had employed. The circumstances attending the arrival and sojourn of the stranger at the inn, as detailed by the landlord, who had come into court, were now whispered to the judge; and the gentleman having given his name, and stated himself to be connected with a most respectable banking firm in the city of London, the learned judge summed up the case, commenting upon the very remarkable coincidence which had occurred; and the jury, giving full credit to the testimony of the stranger, at once returned a verdict of not guilty in favour of the prisoner. This decision appeared to give perfect satisfaction to the court, and the prisoner was ordered to be immediately discharged. The stranger was complimented by the judge upon the essential service which he had been the means of rendering to a fellow creature, and left the court, declaring his happiness at his having been able to give such testimony. Within a fortnight afterwards, the late prisoner and his friend, the London merchant, were lodged in York Castle, charged with a most daring act of housebreaking, in which they had been concerned. The notes which the latter had sported at the inn were found to be drawn upon the “Bank of Fashion” instead of upon the “Bank of England;” and upon the prisoners being tried at the ensuing assizes, they were found guilty, and their lives were justly forfeited to the laws of their country.

JOHN RANN, *alias* SIXTEEN STRINGED JACK.

EXECUTED FOR HIGHWAY ROBBERY.

THE name of this criminal will be immediately recollected as one which has attained no small share of notoriety. He was born at a village a few miles from Bath, of poor parents; and during the greater part of his youth he obtained a living by pursuing the business of a costermonger. At the age of twelve years he was hired by a lady of distinction, whom he accompanied to London; and subsequently being employed in her stables, he obtained some knowledge of horses, and having served in the more humble capacity of post-boy at an inn, he was at length taken into the service of a gentleman of fortune, in Portman-square, as coachman. It was at this period that he dressed in the manner which gave rise to his appellation of Sixteen-stringed Jack, by wearing breeches with eight strings on each knee; but after having been employed by several noblemen he lost his character, and turned pickpocket, in company with three fellows named Jones, Clayton, and College, the latter of whom, a mere boy, obtained the name of Eight-stringed Jack.

The first appearance which our hero appears to have made at the bar of any Court of Justice was at the sessions held at the Old Bailey in April, 1774, when, with Clayton and one Shepherd, he was tried for robbing Mr. William Somers on the highway, and acquitted for want of evidence. They were again tried for robbing Mr. Langford, but acquitted for the same reason.

He was soon destined to be again in custody, however, and on the 30th of May following, he was charged with robbing John Devall, Esq. near the nine-mile stone on the Hounslow road, of his watch and money. It appeared that he had given the watch to a young woman with whom he lived, named Roche, who had delivered it to Catherine Smith, by whom it was offered in pledge to Mr. Hallam a pawnbroker, who, suspecting it was not honestly obtained, caused the parties to be taken into custody. Roche was now charged with receiving the watch, knowing it to have been stolen; and Smith, being sworn, deposed that on the day Mr. Devall was robbed, Roche told her that "she expected Rann to bring her some money in the evening;"

that he accordingly came about ten at night, and having retired some time with Roche, she, on her return, owned that she had received a watch and five guineas from him, which he said he had taken from a gentleman on the highway; and that she, Smith, carried the watch to pawn to Mr. Hallam at the request of Roche. Upon this charge the prisoner Rann was again sent to Newgate; but on his trial in July 1774, he was acquitted. On his appearing at the bar, he was dressed in a manner above his style of life and his circumstances. He had a bundle of flowers in the breast of his coat almost as large as a broom; and his irons were tied up with a number of blue ribands.

Two or three days after this acquittal Rann engaged to sup with a girl at her lodgings in Bow Street; but not being punctual to his appointment, the woman went to bed, and her paramour being unable to obtain admittance by the door, proceeded to effect an entrance through the window; and had nearly accomplished his purpose, when a watchman interrupted him, and took him into custody. He was charged at Bow-street on the 27th of July with this alleged burglarious attempt; but the “young lady” appearing, declared the prisoner could have had no felonious intent, for that so far from her opposing his entry, had she been awake, she would instantly have admitted him; and besides that he was quite welcome to share everything that she possessed, even to her bed. Upon this declaration, the prisoner was dismissed, with a caution to adopt a less dangerous method of pursuing his amours.

After this it seems that the proceedings of our hero became pretty notorious, and he took no trouble either to conceal or disguise his person or his acts. He did not hesitate to proclaim himself as “Sixteen-stringed Jack, the famous highwayman,” and to appear at public places attired in a peculiar manner so as to excite observation and attention. It does not appear that his attacks were marked by any great degree of atrocity; and the celebrity which he obtained was rather of his own seeking. A short time before he was convicted of the offence which cost him his life, he attended a public execution at Tyburn, and getting in the ring formed by the constables round the gallows, desired that he might be permitted to stand there, “for,” said he, “perhaps it is very proper that I should be a spectator on this occasion.”

On the 26th of September, 1774, he went with William Collier on the Uxbridge-road, with a view to commit robberies on the highway; and being

apprehended on the Wednesday following, they were examined at the public office in Bow-street on the following charge. Dr. William Bell, chaplain to the Princess Amelia, deposed that between three and four o'clock in the afternoon of Monday, the 26th of September, as he was riding near Ealing, he observed two men of rather mean appearance, who rode past him; and that he remarked they had suspicious looks; yet neither at that time, nor for some little time afterwards, had he any idea of being robbed: that soon afterwards one of them, whom he believed to be Rann, crossed the head of his horse, and demanding his money, said, "Give it to me, and take no notice, or I'll blow your brains out." On this the doctor gave him one shilling and sixpence, which was all the silver he had, and a common watch in a tortoise-shell case.

It further appeared that, on the night of the robbery, Rann's companion Eleanor Roche, and her maid-servant, Christian Stewart, went to the shop of Mr. Cordy, a pawnbroker in Oxford-road, to pledge the watch, but that he stopped it, and found out its owner by applying to Mr. Grignon, its maker, in Russell-street, Covent-garden; and evidence was also adduced as to the identity of Rann, who was proved to have been seen at Acton within twenty minutes of the time of the robbery being committed. The prisoners were thereupon sent to Newgate to take their trials; and Roche and Stewart being also apprehended, were indicted as accessories after the fact.

The evidence given on the trial, was in substance the same as that which had been adduced at Bow-street; but some favourable circumstances appearing in behalf of Collier, he was recommended to mercy, and afterwards respited during the king's pleasure. Miss Roche was sentenced to be transported for fourteen years; her servant was acquitted; and Rann was left for execution.

When Rann was brought down to take his trial he was dressed in a new suit of pea-green clothes; his hat was bound round with silver strings; he wore a ruffled shirt, and his behaviour evinced the utmost unconcern. Upon hearing the verdict of the jury, which consigned him to death, he endeavoured to force a smile, but the attempt was a failure, and it was evident that the confidence which he had before exhibited, now forsook him. He had been so certain of acquittal, that he had ordered a supper to be provided on the occasion; but his anticipations of pleasure were quickly changed into the reality of sorrow. After conviction, his behaviour was for a time unfitted for the melancholy condition in which he was placed. On

Sunday, the 23d of October, he had seven girls to dine with him, and with their mirth endeavoured to shake off the heaviness which beset him, but the warrant for his execution soon after arriving, he became more sensible of his awful situation, and began to prepare for the sad fate which awaited him. At his execution, he behaved with decent resignation, and surveyed the gallows with an eye of confidence. He was executed on the 30th of November, 1774; and having hung the usual time, his body was delivered over to his friends for interment.

ROBERT AND DANIEL PERREAU.

EXECUTED FOR FORGERY.

THE circumstances of the cases of these prisoners are of a very remarkable description. It appears that the accused persons were twin brothers, and were so much alike that it was with difficulty that they were known apart. Robert Perreau carried on business in Golden-square as an apothecary, and was in great practice; while his brother lived in a style of considerable fashion, a Mrs. Margaret Caroline Rudd living with him as his wife.

At the sessions held at the Old Bailey in June 1775, Robert Perreau was indicted for forging a bond for the payment of 7,500*l.* in the name of William Adair, Esq (then a great government contractor), and also for feloniously uttering and publishing the said bond, knowing it to be forged, with intent to defraud Messrs. Robert and Henry Drummond, bankers.

From the evidence which was adduced at the trial, it appeared that on the 10th of March, 1775, the prisoner under trial, whose character up to that time had been considered unimpeachable, went to the house of Messrs. Drummond, and seeing Mr. Henry Drummond, one of the partners, said that he had been making a purchase of an estate in Norfolk or Suffolk, for which he was to give 12,000*l.*, but that he had not sufficient cash to pay the whole purchase-money. That he had a bond, however, which Mr. Adair had given to his brother Daniel, for 7,500*l.*, upon which he desired to raise a sum of 5000*l.*, out of which he was willing to pay 1,400*l.*, which he had already borrowed of the firm.

Mr. Drummond, on the production of the bond, had no sooner looked at the signature than he doubted its authenticity, and very politely asked the prisoner if he had seen Mr. Adair sign it. The latter said he had not, but that he had no doubt that it was authentic, from the nature of the connexion that subsisted between Mrs. Rudd, who was known to live with Daniel, and that gentleman; a suggestion having previously been thrown out that she was his natural daughter. Mr. Drummond, however, declined advancing any money without the sanction of his brother, and he desired Perreau to leave the

bond, saying that it should either be returned on the next day, or the money produced. The prisoner made no scruple to obey this suggestion, and he retired, promising to call again the next day.

In the interim, Mr. Drummond examined the bond with greater attention; and Mr. Stephens, secretary of the Admiralty, happening to call, his opinion was demanded, when, comparing the signature to the bond with letters which he had lately received from Mr. Adair, he was firmly convinced that it was forged. When Perreau came on the following day, Mr. Drummond spoke more freely than he had done before, and told him that he imagined he had been imposed on; but begged, that to remove all doubt, he would go with him to Mr. Adair, and get that gentleman to acknowledge the validity of the bond, on which the money would be advanced. This was immediately acceded to; and on Mr. Adair seeing the document, he at once declared that the signature was a forgery. The prisoner smiled incredulously, and said that he jested; but Mr. Adair remarked that it was no jesting matter, and that it lay on him to clear up the affair. On this he went away, requesting to have the bond, in order to make the necessary inquiries—a request which was refused; and persons being employed to watch him, it was found that immediately on his arrival at his house, he and his brother and Mrs. Rudd got into a coach, carrying with them all the valuables which they could collect, with a design to make their escape. They were, however, stopped, and taken into custody, and being conveyed to Sir John Fielding's, at Bow-street, they there underwent an examination, and upon the evidence adduced, were committed to prison. Other charges were subsequently brought against them by Sir Thomas Frankland, from whom they had obtained two sums of 5000*l.* and 4000*l.* on similar forged bonds, as well as 4000*l.* which they had paid when the amount became due; and by Dr. Brooke, who alleged that they had obtained from him 1500*l.* in bonds of the Ayr bank, upon the security of a forged bond for 3100*l.*; and Mrs. Rudd was then admitted as evidence for the Crown. Her deposition then was, that she was the daughter of a nobleman in Scotland; that, when young, she married an officer in the army named Rudd, against the consent of her friends; that her fortune was considerable; that on a disagreement with her husband, they resolved to part; that she made a reserve of money, jewels, and effects, to the amount of thirteen thousand pounds, all of which she gave to Daniel Perreau, whom she said she loved with the tenderness of a wife; that she had three children by him; that he had returned her kindness in every

respect till lately, when, having been unfortunate in gaming in the alley, he had become uneasy, peevish, and much altered to her; that he cruelly constrained her to sign the bond now in question, by holding a knife to her throat, and swearing that he would murder her if she did not comply; that, being struck with remorse, she had acquainted Mr. Adair with what she had done; and that she was now willing to declare every transaction with which she was acquainted, whenever she should be called upon by law so to do.

Upon the cross-examination of Mr. Drummond, however, he swore that Mrs. Rudd on her being first apprehended, took the whole on herself, and acknowledged that she had forged the bonds; that she begged them “for God’s sake to have mercy on an innocent man,” and that she said no injury was intended to any person, and that all would be paid; and that she acknowledged delivering the bond to the prisoner. They then entertained an opinion that the prisoner was her dupe; and Mr. Robert Drummond having expressed a notion that she could not have forged a handwriting so dissimilar from that of a woman as Mr. Adair’s, she immediately, in order to satisfy them of the truth of what she said, wrote the name “William Adair” on a paper exactly like the signature which appeared attached to the bond.

Mr. Watson, a money-scrivener, also deposed, that he had filled up the bonds at the desire of one of the brothers, and in pursuance of instructions received from him; but he hesitated to fix on either, on account of their great personal resemblance; and being pressed to make a positive declaration, he fixed on Daniel as his employer.

The case for the prosecution being concluded, the prisoner entered upon his defence. In a long and ingenious speech, which he addressed to the jury, he strove hard to prove that he was the victim of the artifices of Mrs. Rudd.

He said that she was constantly conversing about the influence she had over Mr. W. Adair; and that Mr. Adair had, by his interest with the king, obtained the promise of a baronetage for Daniel Perreau, and was about procuring him a seat in parliament. That Mr. Adair had promised to open a bank, and take the brothers Perreau into partnership with him. That the prisoner received many letters signed “William Adair,” which he had no doubt came from that gentleman, in which were promises of giving them a considerable part of his fortune during his life; and that he was to allow Daniel Perreau two thousand four hundred pounds a year for his household expenses, and six hundred pounds a year for Mrs. Rudd’s pin-money. That

Mr. Daniel Perreau purchased a house in Harley-street for four thousand pounds, which money Mr. William Adair was to give them. That when Daniel Perreau was pressed by the person of whom he bought the house for the money, the prisoner understood that they applied to Mr. William Adair, and that his answer was, that he had lent the king seventy thousand pounds, and had purchased a house in Pall Mall at seven thousand pounds, in which to carry on the banking business, and therefore could not spare the four thousand pounds at that time.

He declared that all attempts at personal communication with Mr. Adair were strenuously opposed by Mrs. Rudd as being likely to destroy the effects of her exertions on his behalf, and contended that his conduct throughout the whole transaction with Mr. Drummond, showed that he was innocent of any guilty intention, and that he firmly believed that he was acting honestly and justly.

He then proceeded to call the following witnesses, whose evidence we shall give in the most concise manner:—

George Kinder deposed that Mrs. Perreau (the only name by which he knew Mrs. Rudd) told him “that she was a near relation of Mr. James Adair; that he looked upon her as his child, had promised to make her fortune, and with that view had recommended her to Mr. William Adair, a near relation and intimate friend of his, who had promised to set her husband and the prisoner up in the banking business.” He also deposed that she said that Mr. Daniel Perreau was to be made a baronet, and described how she would act when she became a lady. The witness further deposed that Mrs. Rudd often pretended that Mr. William Adair had called to see her, but that he never had seen that gentleman on any visit.

John Moody, a livery-servant of Daniel Perreau, deposed that his mistress wrote two very different hands; in one of which she wrote letters to his master, as from Mr. William Adair, and in the other the ordinary business of the family. That the letters written in the name of William Adair were pretended to have been left in his master’s absence; that his mistress ordered him to give them to his master, and pretend that Mr. Adair had been with his mistress for a longer or shorter time, as circumstances required. This witness likewise proved that the hand at the bottom of the bond and that of his mistress’s fictitious writing were precisely the same; that she used different pens, ink, and paper, in writing her common and fictitious

letters; and that she sometimes gave the witness half-a-crown when he had delivered a letter to her satisfaction. He said he had seen her go two or three times to Mr. J. Adair's, but never to William's; and that Mr. J. Adair once visited his mistress on her lying-in.

Susannah Perreau (the prisoner's sister) deposed to her having seen a note delivered to Daniel Perreau, by Mrs. Rudd, for nineteen thousand pounds, drawn as by William Adair, on Mr. Croft, the banker, in favour of Daniel Perreau.

Elizabeth Perkins swore that a week before the forgery was discovered, her mistress gave her a letter to bring back to her in a quarter of an hour, and say it was brought by Mr. Coverley, who had been servant to Daniel Perreau; that she gave her mistress this letter, and her master instantly broke the seal.

Daniel Perreau swore that the purport of this letter was "that Mr. Adair desired her to apply to his brother, the prisoner, to procure him five thousand pounds upon his (Adair's) bond, in the same manner as he had done before; that Mr. Adair was unwilling to have it appear that the money was raised for him, and therefore desired him to have the bond lodged with some confidential friend, who would not require an assignment of it; that his brother, on being made acquainted with his request, showed a vast deal of reluctance, and said it was very unpleasant work; but undertook it with a view of obliging Mr. William Adair."

The counsel for the prosecution demanding "if he did not disclaim all knowledge of the affair before Mr. Adair," he said he denied ever having seen the bond before, nor had he a perfect knowledge of it till he saw it in the hands of Mr. Adair.

David Cassady, who assisted Mr. R. Perreau as an apothecary, deposed that he lived much within the profits of his profession, and that it was reported he was going into the banking business.

John Leigh, clerk to Sir John Fielding, swore to the prisoner's coming voluntarily to the office before his apprehension, and giving information that a forgery had been committed. Mr. Leigh was asked if Mrs. Rudd "ever charged the prisoner with any knowledge of the transaction till the justices were hearing evidence to prove her confession of the fact;" and he answered that he did not recollect that circumstance, but that on her first examination she did not accuse the prisoner.

Mr. Perreau now called several persons of rank to his character. Lady Lyttleton being asked if she thought him capable of such a crime, supposed she could have done it as soon herself. Sir John Moore, Sir John Chapman, General Rebow, Captain Ellis, Captain Burgoyne, and other gentlemen, spoke most highly to the character of the prisoner; but the jury found him guilty.

It will be unnecessary now to give anything more than a succinct account of the trial of Daniel Perreau, which immediately followed that of his brother. He was indicted for forging and counterfeiting a bond, in the name of William Adair, for three thousand three hundred pounds, to defraud the said William Adair, and for uttering the same knowing it to be forged, to defraud Thomas Brooke, doctor of physic. Mr. Scroope Ogilvie, clerk to Mr. William Adair, proved the forgery; and Dr. Brooke swore to the uttering of the bond.

The defence set up by the prisoner was, that Mrs. Rudd had given the bond to him as a true one; and he asserted, in the most solemn manner, that he had had no intention to defraud any man. Like his brother, he called several witnesses to show the artifices of which Mrs. Rudd had been guilty; and many persons proved the great respectability of his character.

The jury, however, returned a verdict of guilty, and both prisoners were sentenced to death; but the execution did not take place until January 1776, in consequence of the proceedings which were subsequently taken against Mrs. Rudd.

After conviction the behaviour of the brothers was, in every respect, proper for their unhappy situation. Great interest was made to obtain a pardon for them, particularly for Robert, in whose favour seventy-eight bankers and merchants of London signed a petition to the king: the news papers were filled with paragraphs, evidently written by disinterested persons, in favour of men whom they thought dupes to the designs of an artful woman: but all was of no avail.

On the day of execution the brothers were favoured with a mourning-coach, in which to be conveyed to the scaffold; and their conduct throughout was of the most exemplary description. After the customary devotions were concluded, they crossed hands, and joining the four together, in that manner were launched into eternity. They had not hanged

more than half a minute when their hands dropped asunder, and they appeared to die without pain.

Each of them delivered a paper to the Ordinary of Newgate, which stated their innocence, and ascribed the blame of the whole transaction to the artifices of Mrs. Rudd; and, indeed, thousands of people gave credit to their assertions, and a great majority of the public thought Robert wholly innocent.

Daniel Perreau and Robert Perreau were executed at Tyburn on the 17th of January, 1776.

On the Sunday following, the bodies were carried from the house of Robert, in Golden-square, and, after the usual solemnities, deposited in the vault of St. Martin's church. A mob of thirty thousand persons attended the execution, and an equal number appeared at the funeral, but nothing occurred to disturb the solemnity of either scene.

MARGARET CAROLINE RUDD.

TRIED FOR FORGERY.

ON the 16th of September, 1775, Mrs. Rudd was put to the bar at the Old Bailey, to be tried for forgery; but the counsel for the prisoner pleading that, as she had been already admitted an evidence for the crown, it was unprecedented to detain her for trial, and the judges differing in opinion on the point of law, she was remanded to prison till the opinion of the judges could be taken on a subject of so much importance.

On the 8th of December, 1775, she was arraigned on an indictment for feloniously forging a bond, purporting to be signed by William Adair, and for feloniously uttering and publishing the same.

Mr. Justice Aston now addressed the prisoner, informing her that eleven of the judges had met (the Chief Justice of the Common Pleas being indisposed), “and were unanimous in opinion, that in cases not within any statute, an accomplice, who fully discloses the joint guilt of himself and his companions, and is admitted by justices of the peace as a witness, and who appears to have acted a fair and ingenuous part in the disclosure of all the circumstances of the cases in which he has been concerned, ought not to be prosecuted for the offences so by him confessed, but cannot by law plead this in bar of any indictment, but merely as an equitable claim to mercy from the crown: and nine of the judges were of opinion that all the circumstances relative to this claim ought to be laid before the Court, to enable the judges to exercise their discretion whether the trial should proceed or not. With respect to the case before them, the same nine judges were of opinion that if the matter stood singly upon the two informations of the prisoner, compared with the indictments against her, she ought to have been tried upon all, or any of them, for from her information she is no accomplice. She exhibits a charge against Robert and Daniel Perreau, the first soliciting her to imitate the hand-writing of William Adair, the other forcing her to execute the forgery under the threat of death. Her two informations are contradictory: if she has suppressed the truth, she has no equitable claim to favour; and if she has told the truth, and the whole truth, she cannot be convicted. As to the indictments preferred against her by Sir

Thomas Frankland, as her informations before the justices have no relation to his charges, she can claim no sort of advantage from these informations.”

The trial then proceeded.—The principal evidences were the wife of Robert Perreau, and John Moody, a servant to Daniel. The first endeavoured to prove that the bond was published, the latter that it was forged. Sir Thomas Frankland proved that he had lent money on the bond. It was objected by the counsel for the prisoner, that Mrs. Perreau was an incompetent witness, as she would be interested in the event; but the Court overruled this objection.

Mrs. Perreau deposed that, on the 24th December, she saw Mrs. Rudd deliver a bond to her husband, which he laid on the table while he brushed his coat; that it was for five thousand three hundred pounds, payable to Robert Perreau, and signed “William Adair;” and that it was witnessed in the names of Arthur Jones and Thomas Start, or Hart. Mrs. Perreau, being asked when she again saw the bond, said that it was brought to her on the 8th of March (the day after her husband was convicted), when she selected it from other bonds delivered to him on the 24th of December. She made her mark on it, and deposed that when it was delivered to Mr. Perreau, Mrs. Rudd said, “Mr. Adair would be very much obliged to Mr. Perreau to try to raise upon that bond the sum of four thousand pounds of Sir Thomas Frankland.”

Sergeant Davy cross-examined Mrs. Perreau. She acknowledged that till the 24th of December she had never seen a bond in her life; and that on her first sight of that in question she had no suspicion that anything was wrong.

John Moody, the servant to Daniel Perreau, who had been examined on the former trials, was called, and repeated the testimony which he had before given. The bond which in this case was alleged to have been uttered was that for 4000*l.*, on which Sir Thomas Frankland had advanced money.

The prisoner, on being called on for her defence, in a short speech declared that she was innocent, and concluded by leaving her case in the hands of the jury, who almost immediately declared her not guilty.

As soon as the verdict was returned, she quitted the Court, and retired to the house of a friend at the west end of the town.

THE COUNTESS OF BRISTOL, OTHERWISE THE DUCHESS OF KINGSTON.

CONVICTED OF BIGAMY.

FEW females have in their time attracted so large a portion of public attention as this celebrated lady. She was the daughter of Colonel Chudleigh, the descendant of an ancient family in the county of Devon; but her father dying while she was yet young, her mother was left possessed only of a small estate with which to bring her up, and to fit her for that grade of society in which from her birth she was entitled to move. Being possessed, however, of excellent qualities, she improved the connexion which she had among persons of fashion, with a view to the future success in life of her daughter. The latter, meanwhile, as she advanced in years, improved in beauty; and upon her attaining the age of eighteen was distinguished as well for the loveliness of her person as for the wit and brilliancy of her conversation. Her education had not been neglected; and, despite the small fortune possessed by her mother, no opportunity was lost by which her mind might be improved; and a means was about this time afforded for the display of her accomplishments. The father of George the Third held his court at Leicester-house; and Mr. Pulteney, who then blazed as a meteor on the opposition benches in the House of Commons, was honoured with the particular regard of His Royal Highness. Miss Chudleigh had been introduced to Mr. Pulteney; and he had admired her for the beauties of her mind and of her person; and, his sympathies being excited in her behalf, he obtained for her, at the age of eighteen, the appointment of maid of honour to the Princess of Wales. His efforts, however, did not stop at thus elevating her to a situation of the highest honour; but he also endeavoured to improve the cultivation of her understanding by instruction; and to him Miss Chudleigh read, and with him, when separated by distance, she corresponded.

The station to which Miss Chudleigh had been advanced, combined with her numerous personal attractions, produced her many admirers: some with titles, and others in the expectation of them. Among the former was the Duke of Hamilton, whom Miss Gunning had afterwards the good fortune to

obtain for a consort. The duke was passionately attached to Miss Chudleigh; and pressed his suit with such ardour as to obtain a solemn engagement on her part, that on his return from a tour, for which he was preparing, she would become his wife. There were reasons why this event should not immediately take place; but that the engagement would be fulfilled at the specified time was considered by both parties as a moral certainty. A mutual pledge was given and accepted; the duke commenced his proposed tour; and the parting condition was, that he should write by every opportunity, and that Miss Chudleigh of course should answer his epistles. Thus the arrangement of Fortune seemed to have united a pair who possibly might have experienced much happiness, for between the duke and Miss Chudleigh there was a strong similarity of disposition; but Fate had not destined them for each other.

Miss Chudleigh had an aunt, whose name was Hanmer: at her house the Hon. Mr. Hervey, son of the Earl of Bristol, and a captain in the royal navy, was a visitor. To this gentleman Mrs. Hanmer became so exceedingly partial, that she favoured views which he entertained towards her niece, and engaged her efforts to effect, if possible, a matrimonial connexion. There were two difficulties which would have been insurmountable, had they not been opposed by the fertile genius of a female—Miss Chudleigh disliked Captain Hervey, and she was betrothed to the Duke of Hamilton.

No exertions which could possibly be made were spared to render this latter alliance nugatory; and the wits of this woman were exerted to the utmost to favour the object which she had in view. The letters of his grace were intercepted by Mrs. Hanmer; and his supposed silence giving offence to her niece, she worked so successfully on her pride as to induce her to abandon all thoughts of her lover, whose passion she had cherished with delight. A conduct the reverse of that imputed to the duke was observed by Captain Hervey: he was all that assiduity could dictate or attention perform. He had daily access to Miss Chudleigh; and each interview was artfully improved by the aunt to the promotion of her own views. The letters of his grace of Hamilton, which regularly arrived, were as regularly suppressed; until, piqued beyond endurance, Miss Chudleigh was prevailed on to accept the hand of Captain Hervey, and by a private marriage, to ensure the participation of his future honours and fortune. The ceremony was performed in a private chapel adjoining the country mansion of Mr. Merrill, at Lainston, near Winchester, in Hampshire.

On a review of life, the predominant evil experienced may be easily traced by every reflecting mind to some wilful error or injudicious mistake, operating as a determinate cause, and giving the colour to our fate. This was the case with Miss Chudleigh; and the hour at which she became united with Captain Hervey proved to her the origin of every subsequent unhappiness. The connubial rites were attended with unhappy consequences; and from the night following the day on which the marriage was solemnized, Miss Chudleigh resolved never to have any further connexion with her husband. To prevail on him not to claim her as his wife required all the art of which she was mistress; and the best dissuasive was the loss of her situation as maid of honour, should the marriage become publicly known. The circumstances of Captain Hervey were not in a flourishing condition, and were ill calculated to enable him to ride with a high hand over his wife; and the fear of the loss of the emoluments of her office operated most powerfully with him to induce him to obey the injunctions which she imposed upon him in this respect. His conduct even now, however, exhibited a strong desire to act with a degree of harshness most unusual so soon after the performance of the marriage ceremony; and the consequence was that any feelings of respect which his wife may have fancied she entertained for him were soon dispelled. Her own expression subsequently was that “her misery commenced with the arrival of Captain Hervey in England; and the greatest joy she experienced was on the intelligence of his departure.” Her marriage being unknown to mere outward observers, Miss Chudleigh, or Mrs. Hervey, a maid in appearance—a wife in disguise—would have been supposed to be placed in a most enviable condition. The attractive centre of the circle in which she moved, the invigorating spirit of the life of the society formed around her, she was universally admired. Her royal mistress smiled upon her; the friendship of many was at her call; the admiration of none could be withheld from her: but amidst all her conquests and all her fancied happiness she wanted that peace of mind which was so necessary to support her against the conflicts which arose in her own breast. Nor was her own heart, that inward monitor, the only source of her trouble. Her husband, quieted for a time, grew obstreperous as he saw the jewel admired by all, which was, he felt, entitled only to his love; and feeling that he possessed the right to her entire consideration, he resolved to assert its power. In the mean time every art which she possessed had been put into operation to soothe him to continued

silence; but her further endeavours being unsuccessful, she was compelled to grant his request, and to attend an interview which he appointed, at his own house, and to which he enforced obedience by threatening an instant and full disclosure in case of her non-compliance. The meeting was strictly private, all persons being sent from the house with the exception of a black servant; and on Mrs. Hervey's entrance to the apartment in which her husband was seated, his first care was to prevent all intrusion by locking the door. This meeting, like all others between her and her husband, was unfortunate in its effects: the fruit of it was the birth of a boy, whose existence it will be readily supposed she had much difficulty in concealing. Her removal to Brompton for a change of air became requisite during the term of her confinement; and she returned to Leicester-house, perfectly recovered from her indisposition; but the infant soon sinking in the arms of death, left only the tale of its existence to be related.

In the mean time, the sum of her unhappiness had been completed by the return of the Duke of Hamilton. His grace had no sooner arrived in England, than he hastened to pay his adoration at the feet of his idol, and to learn the cause of her silence, when his letters had been regularly despatched to her. An interview which took place soon set the character of Mrs. Hanmer in its true light; but while Miss Chudleigh was convinced of the imposition which had been practised upon her, she was unable to accept the proffered hand of her illustrious suitor, or to explain the reason for her apparently ungracious rejection of his addresses. The duke, flighty as he was in other respects, in his love for Miss Chudleigh had at least been sincere; and this strange conduct on the part of his betrothed, followed as it was by a request on her part that he would not again intrude his visits upon her, raised emotions in his mind which can hardly be described. The rejection of his grace was followed by that of several other persons of distinction; and the mother of Miss Chudleigh, who was quite unaware of her private marriage with Captain Hervey, could not conceal her regret and anger at the supposed folly of her daughter.

It was impossible that these circumstances could long remain concealed from the society in which Miss Chudleigh moved; and, in order to relieve herself from the embarrassments by which she was surrounded, she determined to travel on the Continent—trusting that time would eradicate the impression of her fickleness which she left behind her, and that change of scene would remove the pain which every day spent in the theatre of her

former operations could not fail to sink deeper into her heart. Germany was the place selected by her for her travels; and she, in turn, visited the chief cities of its principalities. Possessed as she was of introductions of the highest class, she was gratified by obtaining the acquaintance of many crowned heads. Frederic of Prussia conversed and corresponded with her. In the Electress of Saxony she found a friend whose affection for her continued to the latest period of life. The electress was a woman of sense, honour, virtue, and religion; and her letters were replete with kindness. While her hand distributed presents to Miss Chudleigh out of the treasury of abundance, her heart was interested for her happiness. This she afterwards evinced during her prosecution; for at that time a letter from the electress contained the following passage:—"You have long experienced my love; my revenue, my protection, my everything, you may command. Come then, my dear life, to an asylum of peace. Quit a country where, if you are bequeathed a cloak, some pretender may start up, and ruin you by law to prove it not your property. Let me have you at Dresden."

On her return from the Continent Miss Chudleigh ran over the career of pleasure, enlivened the court circles, and each year became more ingratiated with the mistress whom she served. She was the leader of fashion, played whist with Lord Chesterfield, and revelled with Lady Harrington and Miss Ashe. She was a constant visitant at all public places, and in 1742 appeared at a masked ball in the character of Iphigenia.

Reflection, however, put off for the day, too frequently intruded an unwelcome visit at night. Captain Hervey, like a perturbed spirit, was eternally crossing the path trodden by his wife. If in the rooms at Bath, he was sure to be there. At a rout, ridotto, or ball, this destroyer of her peace embittered every pleasure, and even menaced her with an intimation that he would disclose the marriage to the princess.

Miss Chudleigh, now persuaded of the folly and danger of any longer concealment from her royal mistress, determined that the design, which her husband had formed from a malicious feeling, should be carried out by herself from a principle of rectitude; and she, in consequence, communicated to the princess the whole of the circumstances attending her unhappy union. The recital was one which could excite no feeling of disrespect or of anger; and her royal mistress pitied her, and continued her patronage up to the hour of her death.

At length a stratagem was either suggested, or it occurred to Miss Chudleigh, at once to deprive Captain Hervey of the power to claim her as his wife. The clergyman who had married them was dead. The register-book was in careless hands. A handsome compliment was paid for the inspection; and while the person, in whose custody it was, listened to an amusing story, Miss Chudleigh tore out the register. Thus imagining the business accomplished, she for a time bade defiance to her husband, whose taste for the softer sex having subsided from some unaccountable cause, afforded Miss Chudleigh a cessation of inquietude.

A change in the circumstances of the captain, however, effected an alteration in the feelings of his wife. His father having died, he succeeded to the title of the Earl of Bristol, and his accession to nobility was not unaccompanied by an increase of fortune. Miss Chudleigh saw that by assuming the title of Countess of Bristol she would probably command increased respect, and would obtain greater power; and with a degree of unparalleled blindness, she went to the house of Mr. Merrill, the clergyman in whose chapel she had been married, to restore those proofs of her union which she had previously taken such pains to destroy. Her ostensible reason was a jaunt out of town; her real design was to procure, if possible, the insertion of her marriage with Captain Hervey in the book which she had formerly mutilated. With this view she dealt out promises with a liberal hand. The officiating clerk, who was a person of various avocations, was to be promoted to the extent of his wishes. The book was managed by the lady to her content, and she returned to London, secretly exulting in the excellence and success of her machination. While this was going on, however, her better fate influenced in her favour the heart of a man who was the exemplar of amiability—this was the Duke of Kingston: but, remarried as it were by her own stratagem, the participation of ducal honours became legally impossible. The chains of wedlock, which the lady had been so industrious in assuming or putting off, as seemed most suitable to her views, now became galling in the extreme. Every advice was taken, every means tried, by which her liberation might be obtained; but all the efforts which were made proved useless, and it was found to be necessary to acquiesce in that which could not be opposed successfully or pass unnoticed. The duke's passion, meanwhile, became more ardent and sincere; and, finding the apparent impossibility of a marriage taking place, he for a series of years cohabited with Miss Chudleigh, although with such

external observances of decorum, that their intimacy was neither generally remarked nor known.

The disagreeable nature of these proceedings on their parts was, however, felt by both parties, and efforts were again made by means of which a marriage might be solemnised. The Earl of Bristol was sounded; and it was found that, grown weary of a union with a woman whom he now disliked, and whom he never met, he was not unwilling to accept the proposals held out; but upon his learning the design with which a divorce was sought, he declared that he would never consent to it, for that his countess's vanity should not be flattered by her being raised to the rank of a duchess. The negotiations were thus for a time stopped; but afterwards, there being a lady with whom he conceived that he could make an advantageous match, he listened to the suggestions which were made to him with more complacency, and at length declared that he was ready to adopt any proceedings which should have for their effect the annihilation of the ties by which he was bound to Miss Chudleigh. The civilians were consulted, a jactitation suit was instituted; but the evidence by which the marriage could have been proved was kept back, and the Earl of Bristol failing, as it was intended he should fail, in substantiating the marriage, a decree was made, declaring the claim to be null and unsupported. Legal opinions now only remained to be taken as to the effect of this decree, and the lawyers of the Ecclesiastical Courts, highly tenacious of the rights and jurisdiction of their own judges, declared their opinion to be that the sentence could not be disturbed by the interference of any extrinsic power. In the conviction, therefore, of the most perfect safety, the marriage of the Duke of Kingston with Miss Chudleigh was publicly solemnised. The wedding favours were worn by persons of the highest distinction in the kingdom; and during the life-time of his grace, no attempt was made to dispute the legality of the proceedings. For a few years the duchess figured in the world of gaiety without apprehension or control. She was raised to the pinnacle of her fortune, and she enjoyed that which her later life had been directed to accomplish—the parade of title, but without that honour which integrity of character can alone secure. She was checked in her career of pleasure, however, by the death of her duke. The fortune which his grace possessed, it appears, was not entailed, and it was at his option, therefore, to bequeath it to the duchess or to the heirs of his family, as seemed best to his inclination. His will, excluding from every benefit an elder, and preferring a

younger nephew as the heir in tail, gave rise to the prosecution of the duchess, which ended in the beggary of her prosecutor and her own exile. The demise of the Duke of Kingston was neither sudden nor unexpected. Being attacked with a paralytic affection, he lingered but a short time, which was employed by the duchess in journeying his grace from town to town, under the false idea of prolonging his life by change of air and situation. At last, when real danger seemed to threaten, even in the opinion of the duchess, she despatched one of her swiftest-footed messengers to her solicitor, Mr. Field, of the Temple, requiring his immediate attendance. He obeyed the summons, and arriving at the house, the duchess privately imparted her wishes, which were, that he would procure the duke to execute, and be himself a subscribing witness to a will, made without his knowledge, and more to the taste of the duchess than that which had been executed. The difference between these two wills was this:—the duke had bequeathed the income of his estates to his relict during her life, and expressly under condition of her continuing in a state of widowhood. Perfectly satisfied, however, as the duchess seemed with whatever was the inclination of her dearest lord, she could not resist the opportunity of carrying her secret wishes into effect. She did not relish the temple of Hymen being shut against her. Earnestly therefore, did she press Mr. Field to have her own will immediately executed, which left her at liberty to give her hand to the conqueror of her heart; and in her anxiety to have the restraint shaken off, she had nearly deprived herself of every benefit derivable from the demise of the duke. When Mr. Field was introduced to his grace, his intellects were perceptibly affected; and, although he knew the friends who approached him, a transient knowledge of their persons was the only indication of the continuance of his mental powers which he exhibited. Mr. Field very properly remonstrated against the impropriety of introducing a will for execution to a man in such a state; but this occasioned a severe reprehension from the duchess, who reminded him that his business was only to obey the instructions of his employer. Feeling for his professional character, however, he positively refused either to tender the will or to be in any manner concerned in endeavouring to procure its execution; and with this refusal he quitted the house, the duchess beholding him with an indignant eye as the annoyer of her scheme, when, in fact, by not complying with it, he was rendering her an essential service; for had the will she proposed been executed, it would most indubitably have been set

aside, and the heirs would consequently have excluded the relict from everything, except that to which the right of dower entitled her; and the marriage being invalidated, the lady in this, as in other respects, would have been ruined by her own stratagem. Soon after the frustration of this attempt the Duke of Kingston expired.

No sooner were the funeral rites performed than the duchess adjusted her affairs, and embarked for the Continent, proposing Rome for her temporary residence. Ganganelli at that time filled the papal chair. From the moderation of his principles, the tolerant spirit which he on every occasion displayed, and the marked attention he bestowed on the English, he acquired the title of the Protestant Pope; and to such a character the duchess was a welcome visitor. Ganganelli treated her with the utmost civility—gave her, as a sovereign prince, many privileges—and she was lodged in the palace of one of the cardinals. Her vanity being thus gratified, her grace, in return, treated the Romans with a public spectacle. She had built an elegant pleasure-yacht; a gentleman who had served in the navy was the commander. Under her orders he sailed for Italy; and the vessel, at considerable trouble and expense, was conveyed up the Tiber. The sight of an English yacht in this river was one of so unusual a character that it attracted crowds of admirers; but while all seemed happiness and pleasure where the bark rested quietly on the waters of the river, proceedings were being concocted in London which would effectually put a stop to any momentary sensations of bliss which the duchess might entertain.

Mrs. Cradock, who, in the capacity of a domestic, had witnessed the marriage which had been solemnised between her grace and the Earl of Bristol, found herself so reduced in circumstances that she was compelled to apply to Mr. Field for assistance. The request was rejected; and, notwithstanding her assurance that she was perfectly well aware of all the circumstances attending the duchess's marriage, and that she should not hesitate to disclose all she knew in a quarter where she would be liberally paid—namely, to the disappointed relations of the Duke of Kingston—she was set at defiance. Thus refused, starvation stared her in the face; and, stung by the ingratitude of the duchess' solicitor, she immediately set about the work of ruin which she contemplated. The Duke of Kingston had borne a marked dislike to one of his nephews, Mr. Evelyn Meadows, one of the sons of his sister, Lady Frances Pierpoint. This gentleman being excluded from the presumptive heirship, joyfully received the intelligence that a

method of revenging himself against the duchess was presented to him. He saw Mrs. Cradock; learned from her the particulars of the statement, which she would be able to make upon oath; and, being perfectly



The Duchess of Kingston forcing her refractory Banker to cash up.

satisfied of its truth, he preferred a bill of indictment against the Duchess of Kingston for bigamy, which was duly returned a true bill. Notice was immediately given to Mr. Field of the proceedings, and advices were forthwith sent to the duchess to appear and plead to the indictment, to prevent a judgment of outlawry.

The duchess's immediate return to England being thus required, she set about making the necessary preparations for her journey; and as money was

one of the commodities requisite to enable her to commence her homeward march, she proceeded to the house of Mr. Jenkins, the banker in Rome, in whose hands she had placed security for the advance of all such sums as she might require. The opposition of her enemies, however, had already commenced; they had adopted a line of policy exactly suited to the lady with whom they had to deal. Mr. Jenkins was out, and could not be found. She apprised him, by letter, of her intended journey, and her consequent want of money; but still he avoided seeing her. Suspecting the trick, her grace was not to be trifled with, and finding all her efforts fail, she took a pair of pistols in her pocket, and driving to Mr. Jenkins's house, once again demanded to be admitted. The customary answer, that Mr. Jenkins was out, was given; but the duchess declared that she was determined to wait until she saw him, even if it should not be until a day, month, or year, had elapsed; and she took her seat on the steps of the door, which she kept open with the muzzle of one of her pistols, apparently determined to remain there. She knew that business would compel his return, if he were not already in-doors; and at length, Mr. Jenkins, finding further opposition useless, appeared. The nature of her business was soon explained. The conversation was not of the mildest kind. Money was demanded, not asked. A little prevarication ensued; but the production of a pistol served as the most powerful mode of reasoning; and the necessary sum being instantly obtained, the duchess quitted Rome. Her journey was retarded before she reached the Alps; a violent fever seemed to seize on her vitals: but she recovered, to the astonishment of her attendants. An abscess then formed in her side, which rendering it impossible for her to endure the motion of the carriage, a kind of litter was provided, in which she slowly travelled. In this situation nature was relieved by the breaking of the abscess; and, after a painfully tedious journey, the duchess reached Calais. At that place she made a pause; and there it was that her apprehension got the better of her reason. In idea she was fettered and incarcerated in the worst cell of the worst prison in London. She was totally ignorant of the bailable nature of her offence, and therefore expected the utmost that can be imagined. Colonel West, a brother of the late Lord Delaware, whom the duchess had known in England, became her principal associate; but he was not lawyer enough to satisfy her doubts. By the means of former connexions, and through a benevolence in his own nature, the Earl of Mansfield had a

private meeting with the duchess; and the venerable peer conducted himself in a manner which did honour to his heart and character.

Her spirits being soothed by the interview, the duchess embarked for Dover, landed, drove post to Kingston-house, and found friends displaying both zeal and alacrity in her cause. The first measure taken was to have the duchess bailed. This was done before Lord Mansfield; the Duke of Newcastle, Lord Mountstuart, Mr. Glover, and other characters of rank attending. The prosecution and consequent trial of the duchess becoming objects of magnitude, the public curiosity and expectation were proportionably excited. The duchess had through life distinguished herself as a most eccentric character. Her turn of mind was original, and many of her actions were without a parallel. Even when she moved in the sphere of amusement, it was in a style peculiarly her own. If others invited admiration by a partial display of their charms at a masquerade, she at once threw off the veil, and set censure at defiance. Thus, at midnight assemblies, where Bacchus revelled, and the altars of Venus were encircled by the votaries of love, the duchess, then Miss Chudleigh, appeared almost in the unadorned simplicity of primitive nature. The dilemma, therefore, into which she was thrown by the pending prosecution, was, to such a character, of the most perplexing kind.

She had already in a manner invited the disgrace, and she now neglected the means of preventing it. Mrs. Cradock, the only existing evidence against her, again personally solicited a maintenance for the remaining years of her life; and voluntarily offered, in case a stipend should be settled on her, to retire to her native village, and never more intrude. The offer was rejected by the duchess, who would only consent to allow her twenty pounds a year, on condition of her sequestering herself in some place near the Peak of Derbyshire. This the duchess considered as a most liberal offer; and she expressed her astonishment that it should be rejected.

Under the assurances of her lawyers, the duchess was as quiet as that troublesome monitor, her own heart, would permit her to be; and reconciled in some measure to the encounter with which she was about to meet, her repose was most painfully disturbed by an adversary, who appeared in a new and most unexpected quarter. This was the celebrated Foote, the actor, who, having mixed in the first circles of fashion, was perfectly acquainted with the leading transactions of the duchess's life, and had resolved to turn his knowledge to his own advantage. As, in the opinion of Mandeville,

private vices are public benefits, so Foote deemed the crimes and vices of individuals lawful game for his wit. On this principle he proceeded with the Duchess of Kingston; and he wrote a piece, founded on her life, called "The Trip to Calais." The scenes were humorous; the character of the duchess admirably drawn; and the effect of the performance of the farce on the stage would have been that which was most congenial to the tastes of the scandal-mongers of the day—namely, to make the duchess ashamed of herself. The real object of Mr. Foote, however, was one of a nature more likely to prove advantageous to himself—it was to obtain money to secure the suppression of the piece; and with this view he contrived to have it communicated to her grace that the Haymarket Theatre would open with an entertainment in which she was taken off to the life. Alarmed at this, she sent for Foote, who attended with the piece in his pocket; but having been desired to read it, he had not gone far before the character of Lady Kitty Crocodile being introduced, the duchess could no longer control her anger, and rising in a violent rage, she exclaimed, "Why, this is scandalous; what a wretch you have made me." Mr. Foote assured her that the character was not intended to "caricature her;"—even in his serious moments being unable to control his desire to pun—for he left her to infer that it was a true picture; and the duchess, having taken a few turns about the room, became more composed, and requested that the piece might be left for her perusal, engaging that it should be returned by the ensuing evening. The actor readily complied, and retired; but the lady being left to consider her own portrait, was so displeased with the likeness, that she determined, if possible, to prevent its exposure on the stage. The artist had no objection to sell his work, and she was inclined to become the purchaser; but on the former being questioned as to the sum which he should expect for suppressing the piece, he proportioned his expectations to what he deemed the duchess's power of gratifying them, and demanded two thousand guineas, besides a sum to be paid as compensation for the loss of the scenes, which had been painted for the farce, and which were not applicable to any other purpose. The magnitude of the demand, as well it might, staggered the duchess; and having intimated her extreme astonishment at so exorbitant a proposition, she expressed a wish that the sum might be fixed at one within the bounds of moderation and reason. The actor was positive; concluding, that as his was the only article in the market, he might name his own price: but the result was, that by demanding too much, he lost all. A cheque for fourteen

hundred pounds was offered; the amount was increased to sixteen hundred pounds, and a draft on Messrs. Drummond's was actually signed; but the obstinacy of the actor was so great, that he refused to abate one guinea from his original demand. The circumstance might at any other time have passed among the indifferent events of the day, and as wholly undeserving of the public notice; but those long connected with the duchess, and in habits of intimacy, felt the attack made on her as directed by a ruffian hand, at a moment when she was least able to make resistance. His grace the Duke of Newcastle was consulted. The chamberlain of the household (the Earl of Hertford) was apprised of the circumstance; and his prohibitory interference was earnestly solicited. He sent for the manuscript copy of "The Trip to Calais." perused, and censured it.

But besides these and other powerful aids, the duchess called in professional advice. The sages of the robe were consulted, and their opinions were that the piece was a malicious libel; and that, should it be represented, a short-hand writer ought to be employed to attend on the night of representation, to minute each offensive passage, as the groundwork of a prosecution. This advice was followed, and Foote was intimidated. He denied having made a demand of two thousand guineas; but the Rev. Mr. Foster contradicted him in an affidavit. Thus defeated in point of fact, Foote found himself baffled also in point of design. The chamberlain would not permit the piece to be represented.

Foote now had recourse to another expedient:—He caused it to be intimated "that it was in his power to publish if not to perform; but were his expenses reimbursed (and the sum which her grace had formerly offered would do the business), he would desist." This being communicated to the duchess, she in this, as in too many cases, asked the opinion of her friends, with a secret determination to follow her own. Foote, finding that she began to yield, pressed his desire incessantly; and she had actually provided bills to the amount of one thousand six hundred pounds, which she would have given him but for the Rev. Mr. Jackson, who, being asked his opinion of the demand, returned this answer: "Instead of complying with it, your grace should obtain complete evidence of the menace and demand, and then consult your counsel whether a prosecution will not lie for endeavouring to extort money by threats. Your grace must remember the attack on the first Duke of Marlborough by a stranger, who had formed a design either on his purse or his interest, and endeavoured to menace him into a compliance."

This answer struck the Earl of Peterborough and Mr. Foster very forcibly, as in perfect coincidence with their own opinions; and Mr. Jackson was then solicited to wait on Mr. Foote; Mr. Foster, the chaplain of the duchess, professing himself to be too far advanced in years to enter into the field of literary combat. Mr. Jackson consented to be the champion on the following condition—that the duchess would give her honour never to retract her determination, nor to let Foote extort from her a single guinea. Her grace subscribing to this condition, Mr. Jackson waited on Mr. Foote at his house in Suffolk-street, and intimated to him the resolution to which the duchess had come. The actor, however, still wished to have matters compromised; and to this end he addressed a letter to the duchess, which began with stating “that a member of the privy council and a friend of her grace (by whom he meant the Duke of Newcastle) had conversed with him on the subject of the dispute between them; and that, for himself, he was ready to have everything adjusted.” This letter afforded the duchess a triumph. Every line contained a concession; and, contrary to the advice of her friends, she insisted upon the publication of the whole correspondence.

This circumstance for a time served to turn the current of attention into a new channel. But while the public notice was withdrawn from her grace, she felt too heavily the necessity which existed to adopt some course to enable her either to evade or meet the impending danger. Her line of procedure was soon determined upon—she affected an earnest desire to have the trial, if possible, accelerated, while in secret she took every means in her power to evade the measures which her opponents had taken against her. Her conduct in other respects appears to have been strangely inconsistent. An opportunity presented itself which remained only to be embraced to secure her object. It became the subject of a discussion in the House of Lords whether the trial of her grace should not be conducted in Westminster Hall; and the expense which would necessarily be incurred by the country was by many urged as being a burden which ought not to rest upon the public purse. Lord Mansfield, privately desiring to save the duchess from the disgrace and ignominy of a public trial, strove to avail himself of this objection in her favour; and so great had become the differences of opinion entertained upon the subject, that the withdrawal of the prosecution altogether would have been a matter which would have been considered desirable rather than improper. Here then was the critical moment at which the duchess might have determined her future fate. A hint

was privately conveyed to her that the sum of ten thousand pounds would satisfy every expectation, and put an end to the prosecution; and doubts being expressed of the sincerity of the proposal, the offer was made in distinct terms. The duchess was entreated by her friends to accept the proposition which was made, and so at once to relieve herself and them from all fear of the consequences which might result to her; but through a fatal mistaken confidence either in the legal construction of her case, or in her own machinations, she refused to accede to the offers which were held out. Resting assured of her acquittal, she resisted every attempt at dissuasion from her purpose of going to trial; and she assumed an air of indifference about the business which but ill accorded with the doubtful nature of her position. She talked of the absolute necessity of setting out for Rome; affected to have some material business to settle with the Pope; and, in consequence, took every means and urged every argument in her power to procure the speedy termination of the proceedings—as if the regular course of justice had not been swift enough to overtake her. In the midst of her confidence, however, she did not abandon her manœuvring; but at the very moment when she was petitioning for a speedy trial, she was engaged in a scheme to get rid of the principal witness against her. Mrs. Cradock, to whom before she had refused a trifling remuneration, might now have demanded thousands as the price of her evidence. A negotiation was carried on through the medium of a relation of hers, who was a letter-carrier, which had for its object her removal from England; and an interview was arranged to take place between her and the duchess, at which the latter was to appear disguised, and was to reveal herself only after some conversation, the object of which was that terms might be proposed; but her grace was duped: for having changed her clothes to those of a man, she waited at the appointed hour and place without seeing either Mrs. Cradock or the person who had promised to effect the meeting; and she afterwards learned that every particular of this business had been communicated to the prosecutors, who instructed the letter-carrier to pretend an acquiescence in the scheme.

Thus baffled in a project which had a plausible appearance of success, the only method left was the best possible arrangement of matters preparatory to the trial. On the 15th day of April, 1766, the business came on in Westminster-hall, when the queen was present, accompanied by the prince of Wales, princess royal, and others of the royal family. Many foreign ambassadors also attended, as well as several of the nobility. These

having taken their seats, the duchess came forward, attended by Mrs. Edgerton, Mrs. Barrington, and Miss Chudleigh, three of the ladies of her bedchamber, and her chaplain, physician, and apothecary; and as she approached the bar she made three reverences, and then dropped on her knees, when the lord high steward said, "Madam, you may rise." Having risen, she courtesied to the lord high steward and the house of peers, and her compliments were returned.

Proclamation being made for silence, the lord high steward mentioned to the prisoner the fatal consequences attending the crime of which she stood indicted, signifying that, however alarming and awful her present circumstances, she might derive great consolation from considering that she was to be tried by the most liberal, candid, and august assembly in the universe.

The duchess then read a paper, setting forth that she was guiltless of the offence alleged against her, and that the agitation of her mind arose, not from the consciousness of guilt, but from the painful circumstance of being called before so awful a tribunal on a criminal accusation. She begged, therefore, that if she was deficient in the observance of any ceremonial points, her failure might not be understood as proceeding from wilful disrespect, but should be attributed to the unfortunate peculiarity of her situation. It was added, that she had travelled from Rome in so dangerous a state of health that it was necessary for her to be conveyed in a litter; and that she was perfectly satisfied that she should have a fair trial, since the determination respecting her cause, on which materially depended her honour and fortune, would proceed from the most unprejudiced and august assembly in the world.

The lord high steward then desired the lady to give attention while she was arraigned on an indictment for bigamy; and proclamation for silence having been again made, the duchess (who had been permitted to sit) arose, and read a paper, representing to the Court that she was advised by her counsel to plead the sentence of the Ecclesiastical Court in the year 1769 as a bar to her being tried on the present indictment. The lord high steward informed her that, she must plead to the indictment; in consequence of which she was arraigned; and being asked by the clerk of the crown whether she was guilty of the felony with which she stood charged, she answered, with great firmness, "Not guilty, my lords." The clerk of the crown then asking her how she would be tried, she said, "By God and my

peers;" on which the clerk said, "God send your ladyship a good deliverance."

Four days were occupied in arguments of counsel respecting the admission or rejection of a sentence of the Spiritual Court; but the peers having decided that it could not be admitted, the trial proceeded. The first witness examined was

Anne Cradock, whose testimony was as follows:—I have known her grace the Duchess of Kingston ever since the year 1742, at which time she came on a visit to the house of Mr. Merrill, at Lainston, in Hampshire, during the Winchester races. At that time I lived in the service of Mrs. Hanmer, Miss Chudleigh's aunt, who was then on a visit at Mr. Merrill's, where Mr. Hervey and Miss Chudleigh first met, and soon conceived a mutual attachment for each other. They were privately married one evening at about eleven o'clock in Lainston church, in the presence of Mr. Mountney, Mrs. Hanmer, the Rev. Mr. Ames, the rector, who performed the ceremony, and myself. I was ordered out of the church to entice Mr. Merrill's servants out of the way. I saw the bride and bridegroom put to bed together, and Mrs. Hanmer obliged them to rise again; they went to bed together the following night. In a few days Mr. Hervey was under the necessity of going to Portsmouth in order to join Sir John Danvers's fleet, in which he was then a lieutenant; and being ordered to call him at five o'clock in the morning, I went into the bedchamber at the appointed hour, and found him and his lady sleeping in bed together. I was unwilling to disturb them, as I thought that the delay of an hour or two would make no difference, but they afterwards parted. My husband, to whom I was not then married, accompanied Mr. Hervey in the capacity of servant. When Mr. Hervey returned from the Mediterranean, he and his lady lived together, and I then thought that she was pregnant. Some months after, Mr. Hervey went again to sea, and during his absence I was informed that the lady was brought to bed; and I was afterwards confirmed in the information by the lady herself, who said that she had a little boy at nurse, whose features greatly resembled those of Mr. Hervey.

In answer to questions put by the Duke of Grafton, the witness said that she had never seen the child; that it was dark when the marriage took place in the church, and that Mr. Mountney carried a wax light attached to the crown of his hat. Upon being asked by the Earl of Hilsborough whether she had not received a letter containing some offer to induce her to appear now

as a witness, she admitted that Mr. Fossard of Piccadilly had written to her, offering her a sinecure place on condition of her coming forward to give evidence against her grace, and stating that she might, if she pleased, exhibit the letter to the Earl of Bristol. The cross-examination of the witness on this point was continued during the remainder of the sitting of their lordships; and on the following day (the 20th of April) it was resumed, the Earls of Derby, Hilsborough, and Buckinghamshire questioning her with considerable acumen. She at length confessed that pecuniary offers had been made to her to induce her to appear, and that she had acceded to the terms proposed.

Mrs. Sophia Pettiplace was examined as to the facts deposed to by Mrs. Cradock; but she was able to afford no positive information upon the subject. She lived with her grace at the time of the supposed marriage, but was not present at the ceremony, and only believed that the duchess had mentioned the circumstance to her.

Cæsar Hawkins, Esq. deposed that he had been acquainted with the duchess several years, he believed not less than thirty. He had heard of a marriage between Mr. Hervey and the lady at the bar, which circumstance was afterwards mentioned to him by both parties, previous to Mr. Hervey's last going to sea. By the desire of her grace, he was in the room when the issue of the marriage was born, and once saw the child. He was sent for by Mr. Hervey soon after his return from sea, and desired by him to wait upon the lady, with proposals for procuring a divorce, which he accordingly did; when her grace declared herself absolutely determined against listening to such terms; and he knew that many messages passed on the subject. Her grace some time after informed him, at his own house, that she had instituted a jactitation suit against Mr. Hervey in Doctors' Commons. On another visit she appeared very grave, and desiring him to retire into another apartment, said she was exceedingly unhappy, in consequence of an oath, which she had long dreaded, having been tendered to her at Doctors' Commons to disavow her marriage, which she would not do for ten thousand worlds. Upon another visit, a short time after, she informed him that a sentence had passed in her favour at Doctors' Commons, which would be irrevocable unless Mr. Hervey pursued certain measures within a limited time, which she did not apprehend he would do. Hereupon he inquired how she got over the oath; and her reply was, that the circumstance of her marriage was so blended with falsities, that she could easily reconcile

the matter to her conscience; since the ceremony was a business of so scrambling and shabby a nature, that she could as safely swear she was *not* as that she *was* married.

Judith Philips, being called, swore that she was the widow of the Rev. Mr. Ames; that she remembered when her late husband performed the marriage ceremony between Mr. Hervey and the prisoner; that she was not present, but derived her information from her husband; that some time after the marriage the lady desired her to prevail upon her husband to grant a certificate, which she said she believed her husband would not refuse; that Mr. Merrill, who accompanied the lady, advised her to consult his attorney from Worcester; that in compliance with the attorney's advice, a register-book was purchased, and the marriage inserted therein, with some late burials in the parish. The book was here produced, and the witness swore to the writing of her late husband.

The writing of the Rev. Mr. Ames was also proved by the Rev. Mr. Inchin and the Rev. Mr. Dennis; and the entry of a caveat to the duke's will was proved by a clerk from Doctors' Commons. The book in which the marriage of the Duke of Kingston with the lady at the bar was registered on the 8th of March, 1769, was produced by the Rev. Mr. Trebeck, of St. Margaret's, Westminster; and the Rev. Mr. Samuel Harpur, of the British Museum, swore that he performed the marriage ceremony between the parties on the day mentioned in the books produced by Mr. Trebeck.

Monday, the 22nd of April, after the attorney-general had declared the evidence on behalf of the prosecution to be concluded, the lord high steward called upon the prisoner for her defence, which she read; and the following are the most material arguments it contained to invalidate the evidence adduced for the prosecutor:—She appealed to the Searcher of all hearts, that she never considered herself as legally married to Mr. Hervey; she said that she considered herself as a single woman, and as such was addressed by the late Duke of Kingston; and that, influenced by a legitimate attachment to his grace, she instituted a suit in the Ecclesiastical Court, when her supposed marriage with Mr. Hervey was declared null and void; but, anxious for every conscientious as well as legal sanction, she submitted an authentic statement of her case to the Archbishop of Canterbury, who, in the most decisive and unreserved manner, declared that she was at liberty to marry, and afterwards granted, and delivered to Dr. Collier, a special licence for her marriage with the late Duke of Kingston. She said that on her

marriage she experienced every mark of gracious esteem from their majesties, and her late royal mistress, the Princess Dowager of Wales, and was publicly recognized as Duchess of Kingston. Under such respectable sanctions and virtuous motives for the conduct she pursued, strengthened by a decision that had been esteemed conclusive and irrevocable for the space of seven centuries, if their lordships should deem her guilty on any rigid principle of law, she hoped, nay, she was conscious, they would attribute her failure as proceeding from a mistaken judgment and erroneous advice, and would not censure her for intentional guilt. She bestowed the highest encomiums on the deceased duke, and solemnly assured the Court that she had in no one instance abused her ascendancy over him; and that so far from endeavouring to engross his possessions, she had declared herself amply provided for by that fortune for life which he was extremely anxious to bequeath to her in perpetuity. As to the neglect of the duke's eldest nephew, she said it was entirely the consequence of his disrespectful behaviour to her; and she was not dissatisfied at a preference to another nephew, whose respect and attention to her had been such as the duke judged to be her due on her advancement to the honour of being the wife of his grace.

The lord high steward then desired Mr. Wallace to proceed with the evidence on behalf of the duchess. The advocate stated the nature of the evidence he meant to produce to prove that Anne Cradock had asserted to different people that she had no recollection of the marriage between Mr. Hervey and the lady at the bar; and that she placed a reliance on a promise of having a provision made for her in consequence of the evidence she was to give on the present trial: and to invalidate the depositions of Judith Philips, he ordered the clerk to read a letter, wherein she supplicated her grace to exert her influence to prevent her husband's discharge from the duke's service; and observed, that Mrs. Philips had, on the preceding day, sworn that her husband was not dismissed, but voluntarily quitted his station in the household of his grace.

Mr. Wallace called Mr. Berkley, Lord Bristol's attorney, who said his lordship told him he was desirous of obtaining a divorce, and directed him to Anne Cradock, saying she was the only person then living who was present at his marriage; and that a short time previous to the commencement of the jactitation suit, he waited upon Anne Cradock, who informed him that her memory was bad, and that she could remember

nothing perfectly in relation to the marriage, which must have been a long time before.

Anne Pritchard deposed, that about three months before she had been informed by Mrs. Cradock that she expected to be provided for soon after the trial, and that she expected to be enabled to procure a place in the Custom-house for one of her relations.

This being the whole of the evidence to be produced on behalf of her grace, the lord high steward addressed their lordships, saying, that the evidence on both sides having been heard, it now became their lordships' duty to proceed to the consideration of the case; that the importance and solemnity of the occasion required that they should severally pronounce their opinions in the absence of the prisoner at the bar, and that it was for the junior baron to speak first.

The prisoner having then been removed, their lordships declared that they found her guilty of the offence imputed to her.

Proclamation was then made that the usher of the black rod should replace the prisoner at the bar; and immediately on her appearing, the lord high steward informed her that the lords had maturely considered the evidence adduced against her, as well as the testimony of the witnesses who had been called on her behalf, and that they had pronounced her guilty of the felony for which she was indicted. He then inquired whether she had anything to say why judgment should not be pronounced against her?

The duchess immediately handed in a paper containing the words, "I plead the privilege of the peerage," which were read by the clerk at the table.

The lord high steward then informed her grace that the lords had considered the plea, and agreed to allow it, adding, "Madam, you will be discharged on paying the usual fees."

The duchess during the trial appeared to be perfectly collected, but on sentence being pronounced she fainted, and was carried out of court.

This solemnity was concluded on the 22nd of April, 1776; but the prosecutors still had a plan in embryo to confine the person of the Countess of Bristol, for to this rank she was now again reduced, to the kingdom, and to deprive her of her personal property; and a writ of *ne exeat regno* was actually in the course of preparation: but private notice being conveyed to her of this circumstance, she was advised immediately to quit the country.

In order to conceal her flight, she caused her carriage to be driven publicly through the streets, and invited a large party to dine at her house; but, without waiting to apologise to her guests, she drove to Dover in a post-chaise, and there entering a boat with Mr. Harvey, the captain of her yacht, she accompanied him to Calais. Circumstances of which she had been advised, and which had occurred during the period of her absence from Rome, rendered her immediate presence in that city necessary, and proceeding thither, without loss of time, she found that a Spanish friar, whom she had left in charge of her palace and furniture, had found means to convert her property into money, and after having seduced a young English girl, who had also been left in the palace, had absconded. Having now obtained the whole of her plate from the public bank where she had deposited it, she returned to Calais, which she adopted as the best place at which she could fix her residence, in consequence of the expeditious communication which existed between that town and London, by means of which she might be afforded the earliest intelligence of the proceedings of her opponents. Their business was now to set aside, if possible, the will of the Duke of Kingston. There was no probability of the success of the attempt, but there was sufficient doubt upon the subject in the mind of the countess to keep all her apprehensions alive.

The will of his grace of Kingston, however, received every confirmation which the courts of justice could give, and the object of the countess now was to dissipate rather than expend the income of his estates. A house which she had purchased at Calais was not sufficient for her purpose; a mansion at Mont Martre, near Paris, was fixed on, and the purchase of it was negotiated in as short a time as the duchess could desire. There were only a few obstacles to enjoyment which were not considered until the purchase was completed. The house was in so ruinous a condition as to be in momentary danger of falling. The land was more like the field of the slothful than the vineyard of the industrious; and these evils were not perceived by the countess till she was in possession of her wishes. A lawsuit with the owner of the estate was the consequence, and the countess went to St. Petersburg, and there turned brandy distiller, and returned to Paris before it was concluded. The possession of such a place, however, was not sufficient for the countess, and she proceeded to make a second purchase of a house, built upon a scale of infinite grandeur. The brother of the existing French king was the owner of a domain, suited in every respect for the

residence of a person of such nobility, and the countess determined to become its mistress. It was called the territory of St. Assise, and was situated at a pleasant distance from Paris, abounding in game of all descriptions, and rich in all the luxuriant embellishments of nature. The mansion was of a size which rendered it fit for the occupation of a king; it contained three hundred beds. The value of such an estate was too considerable to be expected in one payment: she therefore agreed to discharge the whole of the sum demanded, which was fifty-five thousand pounds, by instalments. The purchase on the part of the countess was a good one. It afforded not only game, but rabbits in plenty; and finding them of superior quality and flavour, her ladyship, during the first week of her possession, had as many killed and sold as brought her three hundred guineas. At St. Petersburg she had been a distiller of brandy; and now at Paris she turned rabbit-merchant.

Such was her situation, when one day, while she was at dinner, her servants received the intelligence that judgment respecting the house near Paris had been awarded against her. The sudden communication of the news produced an agitation of her whole frame. She flew into a violent passion, and burst an internal blood-vessel: but she appeared to have surmounted even this, until a few days afterwards, when preparing to rise from her bed, a servant who had long been with her endeavoured to dissuade her from her purpose. The countess said, "I am not very well, but I will rise;" and on a remonstrance being attempted, she said, "At your peril disobey me: I will get up and walk about the room; ring for the secretary to assist me." She was obeyed, dressed, and the secretary entered the chamber. The countess then walked about, complained of thirst, and said, "I could drink a glass of my fine Madeira, and eat a slice of toasted bread. I shall be quite well afterwards; but let it be a large glass of wine." The attendant reluctantly brought, and the countess drank the wine. She then said, "I am perfectly recovered; I knew the Madeira would do me good. My heart feels oddly. I will have another glass." The servant here observed that such a quantity of wine in the morning might intoxicate rather than benefit. The countess persisted in her orders, and the second glass of Madeira being produced, she drank that also, and pronounced herself to be charmingly indeed. She then walked a little about the room, and afterwards said, "I will lie down on the couch; I can sleep, and after that I shall be entirely recovered." She seated herself on the couch, a female having hold of each hand. In this situation

she soon appeared to have fallen into a sound sleep, until the women felt her hands colder than ordinary, and she was found to have expired. She died August 26th, 1796.

PETER LE MAITRE.

CONVICTED OF ROBBING THE ASHMOLEAN MUSEUM AT OXFORD.

WHEN Lord Thurlow was chancellor of England some villains broke into his house, in Great Ormond-street, and stole the great seal of England, which was never recovered, nor were the thieves known. We have heard also of a valuable diamond being stolen from the late Duke of Cumberland, when pressing into the theatre in the Haymarket to see the bubble of the bottle conjurer. It is also a fact that the Duke of Beaufort was robbed of his diamond order of St. George as he went to Court on a royal birthday; but we have yet to tell that a museum was robbed of its curious medals.

Peter Le Maitre, the thief, was a French teacher at Oxford, and being supposed to be a man of industry and good morals, he was indulged with free admission to the Ashmolean Museum. Thither he frequently went, and appeared very studious over the rare books, and other valuable articles there deposited. He was frequently left alone to his researches. At one of such times he stole two medals, and at another he secreted himself until the doors were locked for the night. When all had retired he came from his lurking-place, and broke open the cabinet where the medals were locked up, and possessed himself of its contents; he then wrenched a bar from the window, and, unsuspected, made his escape.

The college was thrown into the utmost consternation on finding their Museum thus plundered. Some were suspected, but least of all Le Maitre, until it was discovered that he had privately left the city in a post-chaise and four, and that he had pledged two of the stolen medals to pay the post-boys. This left little doubt that he was the ungrateful thief. He was advertised and described, and by this means apprehended in Ireland.

He was conveyed back to Oxford, in order to take his trial; and it appeared that two of the stolen medals were found in a bureau in his lodgings, of which he had the use; and two more were traced to the persons to whom he had sold them.

He had little to offer in extenuation of his crime, and on the clearest evidence he was found guilty on the 7th March, 1777; and he paid the

penalty of his offence by enduring five years' hard labour at ballast-heaving on the river Thames.

Whether the ungrateful depredation of Le Maitre stimulated others to the commission of similar crimes we know not, but it is certain that soon afterwards Magdalen College Chapel, Oxford, was broken open by two thieves, who stole from the altar a pair of large silver candlesticks and a silver dish, with which they escaped undetected.

DAVID BROWN DIGNUM.

CONVICTED OF PRETENDING TO SELL PLACES UNDER GOVERNMENT.

THE case of this offender may be well looked upon as a warning to many of those whose advertisements are daily seen in the newspapers of the present day, offering a premium to any person who will find a situation for the advertiser. Many persons have recently been duped in their search after employment, by fellows who have obtained their money by means of false pretences; but few have gone the length to pretend to put the advertiser in possession of the place which he sought.

Dignum was indicted on the 5th of April, 1777, at the Guildhall, Westminster, for defrauding Mr. John Clarke of the sum of one hundred pounds two shillings and tenpence, which he had obtained from him under pretence of investing him with the office of clerk of the minutes in his majesty's custom-house in Dublin. The evidence in the case was very simple. The negotiation was commenced between Mr. Clarke and the prisoner at an early period in the year; and the money having been paid over, the prisoner handed to the prosecutor a stamped paper or warrant, bearing the signature of Lord Weymouth, and countersigned by "Thomas Daw," which he told him would enable him to assume the office which it mentioned. Upon his proceeding to do so, however, he was found to have been hoaxed; and upon inquiry, he discovered that the signatures were forged, and that the seals attached to the warrant had been taken from some other instrument. The jury immediately found the prisoner guilty; but the magistrates hesitated a long time on the punishment which should be inflicted on such an offender, and at length sentenced him to work five years on the river Thames.

The prisoner, while in Tothill-fields Bridewell, tried every means in his power to effect his escape, and offered to bribe an attendant in the prison with a bank-note of ten pounds, to favour his escape in a large chest. Upon his conviction, no time was now lost in conveying him on board the ballast-lighter. Being possessed of plenty of money, and having high notions of gentility, he went to Woolwich in a post-chaise, with his negro servant behind, expecting that his money would procure every indulgence in his

favour, and that his servant would be still admitted to attend him: but in this he was egregiously mistaken. The keepers of the lighter would not permit him to come on board, and Dignum was immediately put to the duty of the wheelbarrow.

On Monday, the 5th of May, Dignum sent a forged draft for five hundred pounds for acceptance to Mr. Drummond, banker, at Charing-cross, who, discovering the imposition, carried the publishers before Sir John Fielding: but they were discharged; and it was intended to procure an habeas corpus to remove Dignum to London for examination.

This plan, however, was soon seen through; for, on consideration, it seemed evident that Dignum, by sending the forged draft from on board the lighter, preferred the chance of escape, even though death presented itself on the other side, to his situation; so that no further steps were taken in the affair, and he remained at work for the period to which he was sentenced by the laws of his country.

JAMES HILL, *alias* HIND, *alias* ATKINS, *alias* JOHN THE PAINTER.

EXECUTED FOR FIRING PORTSMOUTH DOCK-YARD.

A MORE dangerous character than this has rarely existed. His offence was of a nature aimed at the very safety of the kingdom, and, if successful, and followed up by the operations of his more powerful friends, for whose benefit it eventually appeared that he had committed the foul crime of which he was guilty, the most disastrous consequences might have ensued.

Hill, it appears, was a Scotchman by birth, and was by trade a painter; from which circumstance he obtained the name by which he is generally known, of “John the Painter.” Having gone to America at an early age, during a residence there of some years, he imbibed principles opposed to the interests of his own country. Transported with party zeal, he formed the desperate resolution of committing a most atrocious crime against the welfare of England—namely, the burning of the dock-yards at Portsmouth and Plymouth. At about four o’clock in the afternoon of the 7th of December, 1776, a fire broke out in the round-house of Portsmouth dock, by which the whole of that building was consumed, and from whose ravages the rest of the surrounding warehouses were with difficulty saved. The fire was at first attributed to accident; but on the 5th of January following, three men, who were engaged in the hemp-house, discovered a tin machine, somewhat resembling a tea-canister, and near the same spot a wooden box, containing various kinds of combustibles. This circumstance being communicated to the commissioner of the dock, and circulated among the public, several vague and indefinite suspicions fell upon Hill, who had been lurking about the dock-yard, where he was distinguished by the appellation of “John the Painter.”

In consequence of advertisements in the newspapers, offering a reward of fifty pounds for apprehending him, he was secured at Odiham, and on the 17th of February the prisoner was examined at Sir John Fielding’s office, Bow-street, where John Baldwin, who exercised the trade of a painter in different parts of America, attended, by the direction of Lord Temple. The

prisoner's conversations with Baldwin operated very materially to secure his conviction.

He had said he had taken a view of most of the dock-yards and fortifications about England, the number of ships in the navy, and had observed their weight of metal and their number of men, and had been to France two or three times to inform Silas Deane, the American envoy, of his discoveries; that Deane gave him bills to the amount of three hundred pounds, and letters of recommendation to a merchant in the city, which he had burned, lest they should lead to a discovery. He informed Baldwin further, that he had instructed a tinman's apprentice at Canterbury to make him a tin canister, which he carried to Portsmouth, where he hired a lodging at one Mrs. Boxall's, and tried his preparations for setting fire to the dock-yard. After recounting the manner of preparing matches and combustibles, he said that, on the 6th of the preceding December, he got into the hemp-house, and having placed a candle in a wooden box, and a tin canister over it, and sprinkled turpentine over some of the hemp, he proceeded to the rope-house, where he placed a bottle of turpentine among the loose hemp, which he sprinkled also with turpentine; and having laid matches, made of paper daubed over with powdered charcoal and gun powder diluted with water, and other combustibles, about the place, he returned to his lodgings. These matches were so contrived as to continue burning for twenty-four hours, so that by cutting them into proper lengths he might provide for his escape, knowing the precise time when the fire would reach the combustibles. He had hired lodgings in two other houses to which he also intended to set fire, that the engines might not be all employed together in quenching the conflagration at the dock. On the 7th he again went to the hemp-house, intending to set it on fire; but he was unable to effect his object, owing to a halfpenny-worth of common house matches that he had bought not being sufficiently dry. This disappointment, he said, rendered him exceedingly uneasy, and he went from the hemp-house to the rope-house, and set fire to the matches he had placed there. His uneasiness was increased because he could not return to his lodging, where he had left a bundle containing an "Ovid's Metamorphoses," a "Treatise on War and making Fireworks," a "Justin," a pistol, and a French passport, in which his real name was inserted; and also because he could not fire them too, in accordance with his original plan.

When he had set fire to the rope-house he proceeded towards London, deeply regretting his failure in attempting to fire the other building, and was strongly inclined to discharge a pistol into the windows of the women who had sold him the bad matches. He jumped into a cart, and gave the woman who drove it sixpence to induce her to drive quick; and when he had passed the sentinels, he observed that the fire had made so rapid a progress that the elements seemed in a blaze. At about ten o'clock the next morning he arrived at Kingston, and having remained there until dusk, at that time he proceeded on towards London in the stage. Soon after his arrival, he went to the house of the gentleman on whom the bills had been drawn, but having related his story, he was received with distrust, and therefore went away. On his reaching Hammersmith he wrote back to the merchant, saying that he was going to Bristol; and he added, that "the handy works he meant to perform there would soon be known to the public." Soon after his arrival in Bristol, he set fire to several houses, which were all burning at one time and the flames were not extinguished until damage to the amount of 15,000*l.* had been caused. He also set fire to some combustibles which he had placed among the oil-barrels on the quay; but in this instance without the effect which he desired.

His trial commenced on the 6th of March, 1777, at Winchester Castle, when witnesses were produced from different parts of the country, who proved the whole of his confession to Baldwin to be true, and gave other evidence of his guilt.

When called upon for his defence, he complained of the reports circulated to his prejudice; and observed, that it was easy for such a man as Baldwin to feign the story he had told, and for a number of witnesses to be collected to give it support. He declared that God alone knew whether he was, or was not, the person who set fire to the dock-yard; and begged it might be attended to how far Baldwin ought to be credited: that if he had art enough, by lies, to insinuate anything out of him, his giving it to the knowledge of others was a breach of confidence; and if he would speak falsely to deceive him, he might also impose upon a jury.

The learned judge having delivered his charge to the jury, after a moment's consideration, they returned a verdict of Guilty. The sentence of death was immediately passed upon the prisoner, and he was ordered for execution on the 10th of March following, when he was hanged within sight of the ruins which he had occasioned.

His body for several years hung in chains on Blockhouse Point, on the opposite side of the harbour to the town.

To these particulars we shall add his confession. On the morning after his condemnation he informed the turnkey, of his own accord, that he felt an earnest desire to confess his crime, and to lay the history of his life before the public; and that by discovering the whole of his unaccountable plots and treasonable practices, he might make some atonement to his injured country for the wrongs he had done it, of which he was now truly sensible.

This request being made known to the Earl of Sandwich, then first lord of the admiralty, that nobleman directed Sir John Fielding to send down proper persons to take and attest his confession.

He said that the diabolical scheme of setting fire to the dock-yards and the shipping originated in his own wicked mind, on the very breaking out of the rebellion in America; and he had no peace until he proceeded to put it in practice. The more he thought of it, the more practicable it appeared; and with this wicked intent he crossed the Atlantic. He had no sooner landed than he proceeded to take surveys of the different dock-yards; and he then went to Paris, and had several conferences with Silas Deane, the rebel minister to the court of France. Deane was astonished at Hill's proposals, which embraced the destruction of the English dock-yards and the shipping; but finding the projector an enthusiast in the cause of America, and a man of daring spirit, he gradually listened to his schemes, and supplied him with money to enable him to carry them into execution, procured him a French passport, and gave him a letter of credit on a merchant in London. He then confirmed the evidence given against him, and in particular that of the witness Baldwin; and he added, that had he been successful in his attempt upon Portsmouth and Plymouth dock-yards, he should have been rewarded with a commission in the American navy.

FRANCIS MERCIER, *alias* LOUIS DE BUTTE.

EXECUTED FOR MURDER.

THE case of this criminal was attended by circumstances of very great atrocity. The malefactor and his unfortunate victim were natives of France.

The unfortunate Jacques Mondroyte was a jeweller and watchmaker of Paris, and had made a journey to London, in order to find a market for different articles of his manufacture. His stock consisted of curious and costly trinkets, worth, as was computed, a few thousand pounds. He took lodgings in Prince's-street, and engaged Mercier, who had resided some time in London, as his interpreter, on a liberal gratuity, and treated him as a friend.

It appeared that the ungrateful villain had long determined upon murdering his employer, in order to possess himself of the whole of his valuable property. To this diabolical end, he gave orders for an instrument to be made of a singular construction, which was a principal means of leading to his discovery as the murderer. It was shaped somewhat like an Indian tomahawk; and this instrument of death he concealed until an opportunity offered to effect his detestable purpose.

One day, his employer, Monsieur Mondroyte, invited him to spend the evening: they played at cards, sang some French songs, and took a cheerful glass, but with that moderation peculiarly observable among Frenchmen; and a late hour having arrived, the kind heart of the host forbade his dismissing his friend without offering him a bed for the night. The offer was accepted after some hesitation, and both parties retired to rest. As soon as the neighbours were wrapped in sleep, Mercier took from the lining of his coat, where it had remained constantly concealed, the fatal weapon which had been prepared, and with it he struck his victim repeated blows on the head until he killed him. He then thrust the body into one of the trunks in which the owner had brought over his merchandise, and having ransacked and plundered the apartments, he locked the doors and made his escape.

On the next day he had the hardihood to return to the house, and to inquire whether Monsieur Mondroyte had set off, pretending that he had

proposed a journey into the country; and the people of the house concluding that he had let himself out before they had risen, and that this accounted for their finding the street door on the latch, replied that he must have departed, giving that circumstance as a reason for such belief. This audacious farce was acted by the murderer for some days, during which time he frequently called to know whether his friend had returned. The family, however, beginning to entertain suspicions of some foul play, procured a ladder, entered the chamber window of their unfortunate lodger, and soon discovered the body crammed into the trunk, which was only two feet four inches long, already beginning to putrefy. There appeared on the head several deep wounds.

A warrant was thereupon granted to apprehend Mercier, who was taken just as he was alighting from a post-chaise, in which he had been jaunting with a woman of the town. In his lodgings, and on his person, were found sixteen gold watches, some of great value; a great number of brilliant diamond and other rings; a variety of gold trinkets; and seventy-five guineas.

On his examination he confessed his guilt, which, added to the proof that the manufactured articles had been the property of Mondroyte, secured his conviction. He was subsequently tried at the Old Bailey, and a verdict of Guilty being returned, he was sentenced to be hanged on the following Monday.

He was carried to execution opposite the place where he committed the murder; and no man ever met death with more dread. He used every evasion to prolong the fatal hour, repeatedly craving time for his devotions, until the sheriff, perceiving his motive, gave the signal, and he was turned off, on the 8th of December 1777, amidst the execrations of the surrounding spectators.

JOHN HOLMES AND PETER WILLIAMS.

WHIPPED FOR STEALING DEAD BODIES.

THESE impious robbers were of a class now, happily, no longer in existence, thanks to the exertions of modern legislators, who have made such enactments as render the stealing dead bodies no longer profitable. The names by which such fellows were formerly known were “resurrectionists,” and “body-snatchers;” and so common—nay, so necessary was their trade for the purposes of science, that it was carried on without the smallest attempt at concealment. A monthly publication, in March 1776, says, “The remains of more than twenty dead bodies were discovered in a shed in Tottenham-court-road, supposed to have been deposited there by traders to the surgeons, of whom there is one, it is said, in the Borough, who makes an open profession of dealing in dead bodies, and is well known by the name of “The Resurrectionist.”

It is notorious that when Hunter, the famous anatomist, was in full practice, he had a surgical theatre behind his house in Windmill-street, where he gave lectures to a very numerous class of pupils, demonstrating upon stolen “subjects.” To this place such numbers of dead bodies were brought during the winter season, that the mob rose several times, and were upon the point of pulling down his house. Numberless were the instances of dead bodies being seized on their way to the surgeons; and it was known that hackney-coachmen, for an extra fare, and porters with hampers, were often employed by the resurrection-men to convey their plunder to its market.

In more recent days the establishment of Brookes, which was carried on for a purpose exactly similar to that of Hunter, has been equally well known to be supplied in the same manner. But at the same time that such a trade must have been most disgusting, and its effects most harrowing to persons, the bodies of whose friends or relations may have been carried off to be placed under the knife of the anatomist, every excuse must be made for those by whom it was supported. The advancement of science was most desirable to be obtained, and most important for the existing generation; and where the law was deficient in providing the proper means of obtaining

this great end, it became requisite that measures, unlawful in themselves, it must be owned, should be adopted to secure an object, the absolute necessity of which was universally admitted.

Provisions have recently been made by Parliament, by which all body-stealing has been effectually stopped. The bodies of unclaimed paupers and suicides are now submitted to the anatomist; and under the excellent arrangements of a superintendant officer who is appointed, all hospitals and schools are well supplied, the number of bodies at his disposal being generally more than adequate to meet the demand. It should be added, that the remains are invariably buried with all that decorum and respect, which would be observed in the interment of a body under other circumstances.

But to proceed to the case now before us. Holmes, the principal offender, was grave-digger of St. George's, Bloomsbury; Williams was his assistant; and a woman named Esther Donaldson was charged as an accomplice. They were all indicted, in December 1777, for stealing the body of Mrs. Jane Sainsbury, who departed this life on the 9th of October then last past, and whose corpse had been interred in the burying-ground of St. George's on the Monday following. They were detected before they could secure their booty; and the widower, however unpleasant, determined to prosecute them. In order to secure their conviction, he had to undergo the painful task of viewing and identifying the remains of his wife.

The grave-digger and his deputy were convicted on the fullest evidence; and the acquittal of the woman was much regretted, as no doubt remained of her equal guilt. She was therefore released; but Holmes and Williams were sentenced to six months' imprisonment, and to be whipped twice on their bare backs from the end of Kingsgate-street, Holborn, to Dyot-street, St. Giles's, a distance of half a mile. The sentence was duly carried out, amidst crowds of well-satisfied and approving spectators.

DR. WILLIAM DODD.

EXECUTED FOR FORGERY.

THE character and the offence of this unfortunate divine are too well known to render it necessary that any introduction to the recital of the circumstances of his case should be attempted.

Dr. Dodd was the eldest son of a clergyman who held the vicarage of Bourne in the county of Lincoln, and was born at Bourne on the 29th of May 1729; and after finishing his school education, was admitted a sizar of Clare Hall, Cambridge, in the year 1745, under the tuition of Mr. John Courtail, afterwards Archdeacon of Lewes. At the University he acquired the approbation of his superiors by his close attention to his studies; and at the close of the year 1749 he took his first degree of bachelor of arts with considerable reputation, his name being included in the list of wranglers. It was not only in his academical pursuits, however, that he was emulous of distinction. Having a pleasing manner, a genteel address, and a lively imagination, he was equally celebrated for his accomplishments and his learning. In particular he was fond of the elegances of dress, and became, as he ludicrously expressed it, “a zealous votary of





Resurrectionists.

the god of Dancing,” to whose service he dedicated much of that time which he could borrow from his more important avocations.

The talent which he possessed was very early displayed to the public; and by the time he had attained the age of eighteen years, prompted by the desire of fame, and perhaps also to increase his income, he commenced author, in which character he began to obtain some degree of reputation. At this period of his life, young, thoughtless, volatile and inexperienced, he precipitately quitted the University, and, relying entirely on his pen, removed to the metropolis, where he entered largely into the gaities of the town, and followed every species of amusement with the most dangerous avidity. In this course, however, he did not continue long. To the surprise of his friends, who least suspected him of taking such a step, without fortune, and destitute of all means of supporting a family, he hastily united himself,

on the 15th of April 1751, in marriage with Miss Mary Perkins, daughter of one of the domestics of Sir John Dolben, a young lady then residing in Frith-street, Soho, who, though endowed with personal attractions, was deficient in those of birth and fortune. To a person circumstanced as Mr. Dodd then was, no measure could be more imprudent, or apparently more ruinous and destructive to his future prospects in life. He did not, however, seem to view it in that light, but, with a degree of thoughtlessness natural to him, he immediately took and furnished a house in Wardour-street. His friends now began to be alarmed at his situation, and his father came to town in great distress upon the occasion; and in consequence of the advice which he gave him, his son quitted his house before the commencement of winter, and, urged by the same preceptor, he was induced to adopt a new plan for his future subsistence. On the 19th of October in the same year, he was ordained a deacon by the Bishop of Ely, at Caius College, Cambridge; and, with more prudence than he had ever shown before, he now devoted himself with great assiduity to the study and duties of his profession. In these pursuits he appeared so sincere, that he even renounced all his attention to his favourite objects—polite letters. At the end of his preface to the “*Beauties of Shakspeare*,” published in this year, he says, “For my own part, better and more important things henceforth demand my attention; and I here with no small pleasure take leave of Shakspeare and the critics. As this work was begun and finished before I entered upon the sacred function in which I am now happily employed, let me trust this juvenile performance will prove no objection, since graver, and some very eminent, members of the Church have thought it no improper employ to comment upon, explain, and publish the works of their own country poets.”

The first service in which he was engaged as a clergyman was to assist the Rev. Mr. Wyatt, vicar of West Ham, as his curate: thither he removed, and there he spent the happiest and more honourable moments of his life. His behaviour was proper, decent, and exemplary. It acquired for him the respect and secured for him the favour of his parishioners so far, that on the death of their lecturer, in 1752, he was chosen to succeed him. His abilities had at this time every opportunity of being shown to advantage; and his exertions were so properly directed, that he soon became a favourite and popular preacher. Those who were at this period of his life acquainted with his character and his talents, bear testimony to the indefatigable zeal which he exhibited in his ministry, and the success with which his efforts were

crowned. The follies of his youth seemed entirely past, and his friends viewed the alteration in his conduct with the greatest satisfaction; while the world promised itself an example to hold out for the imitation of others. At this early season of his life, he entertained sentiments favourable towards the opinions of Mr. Hutchinson, and he was suspected to incline towards Methodism; but subsequent consideration confirmed his belief in the doctrines of the Established Church. In 1752 he was selected lecturer of St. James, Garlick-hill, which, two years afterwards, he exchanged for the same post at St. Olave, Hart-street; and about the same time he was appointed to preach Lady Moyer's lectures at St. Paul's, where, from the visit of the three angels to Abraham, and other similar passages in the Old Testament, he endeavoured to prove the commonly-received doctrine of the Trinity. On the establishment of the Magdalen House in 1758, he was amongst the first and most active promoters of that excellent charitable institution, which derived great advantage from his zeal for its prosperity, and which, even up to the unhappy termination of his life, continued to be materially benefited by the exercise of his talents in its behalf. His exertions, however, were not confined to this hospital, but he was also one of the promoters of the Society for the Relief of Poor Debtors, and of the Humane Society for the recovery of persons apparently drowned.

From the time that he entered upon the service of the Church, Dr. Dodd had resided at West Ham, and made up the deficiency in his income by superintending the education of a few young gentlemen who were placed under his care; an occupation for which he was well fitted. In 1759 he took the degree of Master of Arts, and in 1763 he was appointed chaplain in ordinary to the King; and about the same time he became acquainted with Dr. Squire, the bishop of St. David's, who received him into his patronage, presented him to the prebend of Brecon, and recommended him to the Earl of Chesterfield as a proper person to be intrusted with the tuition of his successor in the title. The following year saw him chaplain to the King; and in 1766 he took the degree of Doctor of Laws at Cambridge.

The expectations which he had long entertained of succeeding to the rectory of West Ham now appeared hopeless; and having given up all prospect of their being realised, after having been twice disappointed, he resigned his lectureship both there and in the City, and quitted the place—"a place," said he to Lord Chesterfield in a dedication to a sermon entitled "Popery inconsistent with the natural Rights of Men in general, and

Englishmen in particular,” published in 1768, “ever dear, and ever regretted by me, the loss of which, truly affecting to my mind (for there I was useful, and there I trust I was loved), nothing but your lordship’s friendship and connexion could have counterbalanced.” The “Thoughts in Prison” of the unfortunate gentleman contain a passage of a similar tendency, from which it may be inferred that he was compelled to quit this his favourite residence; a circumstance which he pathetically laments, and probably with great reason, as the first step to that change in his situation which led him insensibly to his last fatal catastrophe.

On his quitting West Ham, he removed to a house in Southampton-row; and at the same time he launched out into scenes of expense, which his income, although now by no means a small one, was inadequate to support. He provided himself with a country-house at Ealing, and exchanged his chariot for a coach, in order to accommodate his pupils, who, besides his noble charge, were in general persons of family and fortune. About the same time it was his misfortune to obtain a prize of 1000*l.* in the state lottery; and elated with his success, he engaged with a builder in a plan to erect a chapel near the palace of the Queen, from whom it took its name. He entered also into a like partnership at Charlotte Chapel, Bloomsbury, and both these schemes were for some time very beneficial to him, though their proceeds were much inferior to his expensive habits of living. His expectations from the former of these undertakings were extremely sanguine. It is reported that in fitting up his chapel near the palace, he flattered himself with the hopes of having some young royal auditors, and in that expectation assigned a particular pew or gallery for the heir-apparent. But in this, as in many other of his views, he was disappointed.

In the year 1772 he obtained the rectory of Hockliffe in Bedfordshire, the first cure of souls he ever had. With this also he held the vicarage of Chalgrove; and the two were soon after consolidated. An accident happened about this time, from which he narrowly escaped with his life. Returning from Barnet, he was stopped near St. Pancras by a highwayman, who discharged a pistol into the carriage, which, happily, only broke the glass. For this fact the delinquent was tried, and, on Mrs. Dodd’s evidence, convicted and hanged. Early in the next year Lord Chesterfield died, and was succeeded by Dr. Dodd’s pupil, who appointed his preceptor to be his chaplain.

At this period Dr. Dodd appears to have been in the zenith of his popularity and reputation. Beloved and respected by all orders of people, he would have reached, in all probability, the situation which was the object of his wishes, had he possessed patience enough to have waited for it, and prudence sufficient to keep himself out of those difficulties which might prove fatal to his integrity. But the habits of dissipation and expense had acquired too great an influence over him; and he had by their means involved himself in considerable debts. To extricate himself from them, he was tempted to an act which entirely cut off every hope which he could entertain of rising in his profession, and totally ruined him in the opinion of the world. On the translation of Bishop Moss, in February 1774, to the see of Bath and Wells, the valuable rectory of St. George, Hanover-square, fell to the disposal of the Crown, by virtue of the King's prerogative. Whether from the suggestion of his own mind, or from the persuasion of some friend, is uncertain; but on this occasion he took a step of all others the most wild and extravagant, and the least likely to be attended with success. He caused an anonymous letter to be sent to Lady Apsley, offering the sum of three thousand pounds if by her means he could be presented to the living. The letter was immediately communicated to the chancellor, and, after being traced to the writer, was laid before his majesty. The insult offered to so high an officer by the proposal was followed by instant punishment. Dr. Dodd's name was ordered to be struck out of the list of chaplains. The press teemed with satire and invective; he was abused and ridiculed in the papers of the day; and to crown the whole, the transaction became a subject of entertainment in one of Mr. Foote's pieces at the Haymarket.

As no explanation could justify so absurd a measure, so no apology could palliate it. An evasive letter in the newspapers, promising a justification at a future day, was treated with universal contempt; and stung with remorse, and feelingly alive to the disgrace he had brought on himself, he hastily quitted the place where neglect and insult only attended him, and going to Geneva to his late pupil, he was presented by him with the living of Winge in Buckinghamshire, which he held with that of Hockliffe, by virtue of a dispensation. Though encumbered with debts, he might still have retrieved his circumstances, if not his character, had he attended to the dictates of prudence; but his extravagance continued undiminished, and drove him to pursue schemes which overwhelmed him with additional infamy. He became the editor of a newspaper; and it is said that he even

attempted, by means of a commission of bankruptcy, to clear himself from his debts; an attempt in which, however, he failed. From this period it would appear that every step which he took led to complete his ruin. In the summer of 1776, he went to France, and there, with little regard to decency or the observances proper to be maintained by a minister of religion, he paraded himself in a phaeton at the races on the plains of Sablons, dressed in all the foppery of the kingdom in which he was temporarily resident. At the beginning of winter he returned to London, and continued there to exercise the duties of his profession until the very moment of his committing the offence for which his life was subsequently forfeited to the offended laws of his country. On the 2nd of February 1777, he preached his last sermon at the Magdalen Chapel, where he was still heard with approbation and pleasure; and on the 4th of the same month he forged a bond, purporting to be that of his late pupil, the Earl of Chesterfield, for 4200*l*. Pressed by creditors, and unable any longer to meet their demands or soothe their importunities, he was driven to commit this crime, as the only expedient to which he could have recourse to aid him in his escape from his difficulties. The method which he adopted in completing the forgery was very remarkable. He pretended that the noble earl had urgent occasion to borrow 4000*l*. but that he did not choose to be his own agent, and he begged that the matter therefore might be secretly and expeditiously conducted. A person named Lewis Robertson was the person whom he employed as broker to negotiate the transaction; and he presented to him a bond, not filled up or signed, that he might find a person ready to advance the sum required, as he directed him to say, to a young nobleman who had lately come of age. Several applications were made by Robertson without success, the persons refusing because they were not to be present when the bond was executed; but at length the agent, confiding in the honour and integrity of his employer went to Messrs. Fletcher and Peach, who agreed to advance the money. Mr. Robertson then carried the bond back to the doctor, in order that it might be filled up and executed; and on the following day it was returned, bearing the signature of the Earl of Chesterfield, and attested by the doctor himself. Mr. Robertson, knowing that Mr. Fletcher was a man who required all legal observances to be attended to, and that he would therefore object to the bond as bearing the name of one witness only, put his name under that of Dr. Dodd, and in that state he carried the bond to him,

and received from him the sum of 4000*l.* in return, which he paid over to his employer.

The bond was subsequently produced to the Earl of Chesterfield; but immediately on his seeing it, he disowned it, and expressed himself at a loss to know by whom such a forgery upon him could have been committed. It was evident, however, that the supposed attesting witnesses must, if their signatures were genuine, be acquainted with its author; and Mr. Manly, his lordship's agent, went directly to consult Mr. Fletcher upon the best course to be taken; and after some deliberation, Mr. Fletcher, a Mr. Innis, and Mr. Manly proceeded to Guildhall to prefer an information with regard to the forgery against Dr. Dodd and Mr. Robertson. Mr. Robertson was without difficulty secured; and then Fletcher, Innis, and Manly, accompanied by two of the lord mayor's officers, went to the house of the doctor in Argyle-street, whither he had recently removed.

Upon their explaining the nature of their business to him, he appeared much struck and affected, and declared his willingness to make any reparation in his power. Mr. Manly told him that his instantly returning the money was the only mode which remained for him to save himself; and he immediately gave up six notes of 500*l.* each, making 3000*l.*, and he drew on his banker for 500*l.* more. The broker then returned 100*l.* and the doctor gave a second draft on his banker for 200*l.*, and a judgment on his goods for the remaining 400*l.* All this was done by the doctor in full reliance on the honour of the parties that the bond should be returned to him cancelled; but, notwithstanding this restitution, he was taken before the lord mayor, and charged with the forgery. The doctor declared that he had no intention to defraud Lord Chesterfield or the gentlemen who advanced the money, and hoped that the satisfaction he had made in returning it would atone for his offence. He was pressed, he said, exceedingly for 300*l.* to pay some bills due to tradesmen, and took this step as a temporary resource, and would have repaid the money in half a year. "My Lord Chesterfield," added he, "cannot but have some tenderness for me as my pupil. I love him, and he knows it. There is nobody wishes to prosecute. I am sure my Lord Chesterfield don't want my life,—I hope he will show clemency to me. Mercy should triumph over justice." Clemency, however, was denied; and the doctor was committed to the Compter in preparation for his trial. On the 19th of February, Dr. Dodd, being put to the bar at the Old Bailey, addressed the Court in the following words:—

“My lords,—I am informed that the bill of indictment against me has been found on the evidence of Mr. Robertson, who was taken out of Newgate, without any authority or leave from your lordships, for the purpose of procuring the bill to be found. Mr. Robertson is a subscribing witness to the bond, and, as I conceive, would be swearing to exculpate himself if he should be admitted as a witness against me; and as the bill has been found upon his evidence, which was surreptitiously obtained, I submit to your lordships that I ought not to be compelled to plead on this indictment; and upon this question I beg to be heard by my counsel. I beg leave also further to observe to your lordships, that the gentlemen on the other side of the question are bound over to prosecute Mr. Robertson.”

Previously to the arguments of the counsel, an order which had been surreptitiously obtained from an officer of the court, dated Wednesday, February 19, and directed to the keeper of Newgate, commanding him to carry Lewis Robertson to Hicks’s Hall, in order to his giving evidence before the grand inquest on the present bill of indictment—as well as a resolution of the Court, reprobating the said order—and also the recognizance entered into by Mr. Manly, Mr. Peach, Mr. Innis, and the Right Hon. the Earl of Chesterfield to prosecute and give evidence against Dr. Dodd and Lewis Robertson for forgery—were ordered to be read; and the clerk of the arraigns was directed to inform the Court whether the name “Lewis Robertson” was indorsed as a witness on the back of the indictment, which was answered in the affirmative.

The counsel now proceeded in their arguments for and against the prisoner. Mr. Howarth, one of Dr. Dodd’s advocates, contended that no person ought to plead or answer to an indictment, if it appeared upon the face of that indictment that the evidence upon which the bill was found was not legal, or competent to have been adduced before the grand jury.

Mr. Cooper and Mr. Buller, on the same side, pursued the same line of argument with equal ingenuity, and expressed a hope that Dr. Dodd would not be called upon to plead to an indictment found upon such evidence as had been pointed out, but that the indictment would be ordered to be quashed.

The counsel for the prosecution advanced various arguments in opposition to those employed on the other side, and the learned judge having taken a note of the objection, it was agreed that the trial should

proceed, the question of the competency of Mr. Robertson as a witness being reserved for the consideration of the twelve judges.

The doctor was then arraigned upon the indictment, which charged him in the usual terms with the forgery upon the Earl of Chesterfield; and the evidence in proof of the facts above stated having been given, the Court called upon the prisoner for his defence. He addressed the Court and jury in the following terms:—

“My lords and gentlemen of the jury,—Upon the evidence which has this day been produced against me, I find it very difficult to address your lordships. There is no man in the world who has a deeper sense of the heinous nature of the crime for which I stand indicted than myself: I view it, my lords, in all its extent of malignancy towards a commercial state like ours; but, my lords, I humbly apprehend, though no lawyer, that the moral turpitude and malignancy of the crime always, both in the eye of the law and of religion, consists in the intention. I am informed, my lords, that the act of parliament on this head runs perpetually in this style, *with an intention to defraud*. Such an intention, my lords and gentlemen of the jury, I believe, has not been attempted to be proved upon me, and the consequences that have happened, which have appeared before you, sufficiently prove that a perfect and ample restitution has been made. I leave it, my lords, to you and the gentlemen of the jury to consider, that if an unhappy man ever deviates from the law of right, yet if in the single first moment of recollection he does all that he can to make a full and perfect amends, what, my lords and gentlemen of the jury, can God and man desire further? My lords, there are a variety of little circumstances too tedious to trouble you with, with respect to this matter. Were I to give loose to my feelings, I have many things to say which I am sure you would feel with respect to me; but as it appears on all hands, that no injury, intentional or real, has been done to any man living, I hope that you will consider the case in its true state of clemency. I must observe to your lordships, that though I have met with all candour in this court, yet I have been pursued with excessive cruelty; I have been prosecuted after the most express engagements, after the most solemn assurances, after the most delusive, soothing arguments of Mr. Manly; I have been prosecuted with a cruelty scarcely to be paralleled. A person avowedly criminal in the same indictment with myself has been brought forth as a capital witness against me; a fact, I believe, totally unexampled. My lords, oppressed as I am with

infamy, loaded as I am with distress, sunk under this cruel prosecution, your lordships and the gentlemen of the jury cannot think life a matter of any value to me. No, my lords, I solemnly protest, that death of all blessings would be the most pleasant to me after this pain. I have yet, my lords, ties which call upon me—ties which render me desirous even to continue this miserable existence. I have a wife, my lords, who, for twenty-seven years, has lived an unparalleled example of conjugal attachment and fidelity, and whose behaviour during this trying scene would draw tears of approbation, I am sure, even from the most inhuman. My lords, I have creditors, honest men, who will lose much by my death. I hope, for the sake of justice towards them, some mercy will be shown to me. If, upon the whole, these considerations at all avail with you—if, upon the most impartial survey of matters, not the slightest intention of injury can appear to any one—(and I solemnly declare it was in my power to replace it in three months—of this I assured Mr. Robertson frequently, and had his solemn assurances that no man should be privy to it but Mr. Fletcher and himself)—and if no injury was done to any man upon earth, I then hope, I trust, I fully confide myself in the tenderness, humanity, and protection, of my country.”

The jury retired for about ten minutes, and then returned with a verdict that “the prisoner was guilty;” but at the same time presented a petition, humbly recommending the doctor to the royal mercy.

It was afterwards declared that upon the reserved point, the opinion of the judges was, that he had been legally convicted. On the last day of the sessions Dr. Dodd was again put to the bar to receive judgment. The clerk of the arraigns then addressed him, saying,

“Dr. William Dodd, you stand convicted of forgery, what have you to say why this court should not give you judgment to die, according to law?”

In reply Dr. Dodd addressed the court as follows:—

“My lord,—I now stand before you a dreadful example of human infirmity. I entered upon public life with the expectations common to young men whose education has been liberal, and whose abilities have been flattered; and, when I became a clergyman, I considered myself as not impairing the dignity of the order. I was not an idle, nor, I hope, an useless minister: I taught the truths of Christianity with the zeal of conviction and the authority of innocence.

“My labours were approved, my pulpit became popular, and I have reason to believe that, of those who heard me, some have been preserved from sin, and some have been reclaimed. Condescend, my lord, to think, if these considerations aggravate my crime, how much they must embitter my punishment! Being distinguished and elevated by the confidence of mankind, I had too much confidence in myself; and, thinking my integrity—what others thought it—established in sincerity, and fortified by religion, I did not consider the danger of vanity, nor suspect the deceitfulness of mine own heart. The day of conflict came, in which temptation seized and overwhelmed me! I committed the crime, which I entreat your lordship to believe that my conscience hourly represents to me in its full bulk of mischief and malignity. Many have been overpowered by temptation, who are now among the penitent in heaven! To an act now waiting the decision of vindictive justice I will now presume to oppose the counterbalance of almost thirty years (a great part of the life of man) passed in exciting and exercising charity—in relieving such distresses as I now feel—in administering those consolations which I now want. I will not otherwise extenuate my offence than by declaring, what I hope will appear to many, and what many circumstances make probable, that I did not intend finally to defraud: nor will it become me to apportion my own punishment, by alleging that my sufferings have been not much less than my guilt; I have fallen from reputation which ought to have made me cautious, and from a fortune which ought to have given me content. I am sunk at once into poverty and scorn; my name and my crime fill the ballads in the streets; the sport of the thoughtless, and the triumph of the wicked! It may seem strange, my lord, that, remembering what I have lately been, I should still wish to continue what I am! but contempt of death, how speciously soever it may mingle with heathen virtues, has nothing in it suitable to Christian penitence. Many motives impel me to beg earnestly for life. I feel the natural horror of a violent death, the universal dread of untimely dissolution. I am desirous to recompense the injury I have done to the clergy, to the world, and to religion, and to efface the scandal of my crime, by the example of my repentance: but, above all, I wish to die with thoughts more composed, and calmer preparation. The gloom and confusion of a prison, the anxiety of a trial, the horrors of suspense, and the inevitable vicissitudes of passion, leave not the mind in a due disposition for the holy exercises of prayer and self-examination. Let not a little life be denied me,

in which I may, by meditation and contrition, prepare myself to stand at the tribunal of Omnipotence, and support the presence of that Judge, who shall distribute to all according to their works: who will receive and pardon the repenting sinner, and from whom the merciful shall obtain mercy! For these reasons, my lords, amidst shame and misery, I yet wish to live; and most humbly implore, that I may be recommended by your lordship to the clemency of his majesty.”

Here he sunk down overcome with mental agony, and some time elapsed before he was sufficiently recovered to hear the dreadful sentence of the law, which the Recorder pronounced upon him in the following words:

“Dr. William Dodd,

“You have been convicted of the offence of publishing a forged and counterfeit bond, knowing it to be forged and counterfeited; and you have had the advantage which the laws of this country afford to every man in your situation, a fair, an impartial, and an attentive trial. The jury, to whose justice you appealed, have found you guilty; their verdict has undergone the consideration of the learned judges, and they found no ground to impeach the justice of that verdict; you yourself have admitted the justice of it; and now the very painful duty that the necessity of the law imposes upon the court, to pronounce the sentence of that law against you, remains only to be performed. You appear to entertain a very proper sense of the enormity of the offence which you have committed; you appear, too, in a state of contrition of mind, and, I doubt not, have duly reflected how far the dangerous tendency of the offence you have been guilty of is increased by the influence of example, in being committed by a person of your character, and of the sacred function of which you are a member. These sentiments seem to be yours; I would wish to cultivate such sentiments; but I would not wish to add to the anguish of your mind by dwelling upon your situation. Your application for mercy must be made elsewhere; it would be cruel in the court to flatter you; there is a power of dispensing mercy, where you may apply. Your own good sense, and the contrition you express, will induce you to lessen the influence of the example by publishing your hearty and sincere detestation of the offence of which you are convicted; and will show you that to attempt to palliate or extenuate it, would indeed add to the influence of a crime of this kind being committed by a person of your character and known abilities. I would therefore warn you against anything of that kind. Now, having said this, I am obliged to pronounce the sentence

of the law, which is—That you, Doctor William Dodd, be carried from hence to the place from whence you came; that from thence you be carried to the place of execution, and that there you be hanged by the neck until you are dead.” To this Dr. Dodd replied, “Lord Jesus, receive my soul!” and was immediately conveyed from the bar.

Great exertions were now made to save Dr. Dodd. The newspapers were filled with letters and paragraphs in his favour; individuals of all ranks exerted themselves in his behalf; the members of several charities which had been benefited by him joined in application to the throne for mercy; parish officers went in mourning from house to house, to procure subscriptions to a petition to the king; and this petition, which, with the names of nearly thirty thousand persons, filled twenty-three sheets of parchment, was actually presented. Even the lord mayor and common council went in a body to St. James’s, to solicit mercy for the convict. These were, however, of no avail. On the 15th of June the privy council assembled, and deliberated on the cases of the several prisoners then under condemnation; and in the end a warrant was ordered to be made out for the execution of Dr. Dodd, with two others (one of whom was afterwards reprieved), on the 27th of the same month.

Having been flattered with the hopes of a pardon, he appeared to be much shocked at the intimation of his approaching destiny; but resumed in a short time a degree of fortitude sufficient to enable him to pass through the last scene of his life with firmness and decency. On the 26th he took leave of his wife and some friends, and he afterwards declared himself ready to atone for the offence he had given to the world. His deportment was meek, humble, and devout, expressive of resignation and contrition, and calculated to inspire sentiments of respect for his person, and concern for his unhappy fate.

He was attended to the fatal spot, in a mourning-coach, by the Rev. Mr. Villette, Ordinary of Newgate, and the Rev. Mr. Dobey. Another criminal, named John Harris, was executed at the same time. It is impossible to give an idea of the immense crowds of people that thronged the streets from Newgate to Tyburn. When the prisoners arrived at the fatal tree, and were placed in the cart, Dr. Dodd exhorted his fellow sufferer in so generous a manner, as testified that he had not forgotten his duty as a clergyman; and he was also very fervent in the exercise of his own devotions. Just before he was turned off, he was observed to whisper to the executioner; and,

although we have not the means of ascertaining the precise purport of his remark, it is pretty obvious from the fact, that as soon as the cart had been drawn away from the gibbet, he ran immediately under the scaffold and took hold of the doctor's legs as if to steady his body, and the unfortunate gentleman appeared to die without pain.

Of his behaviour before execution a particular account was given by Mr. Villette, Ordinary of Newgate, in the following terms:—

“On the morning of his death I went to him, with the Rev. Mr. Dobey, Chaplain of the Magdalen, whom he desired to attend him to the place of execution. He appeared composed; and when I asked him how he had been supported, he said that he had had some comfortable sleep, by which he should be the better enabled to perform his duty.

“As we went from his room, in our way to the chapel, we were joined by his friend, who had spent the foregoing evening with him, and also by another clergyman. When we were in the Vestry adjoining the Chapel, he exhorted his fellow-sufferer, who had attempted to destroy himself, but had been prevented by the vigilance of the keeper. He spoke to him with great tenderness and emotion of heart, entreating him to consider that he had but a short time to live, and that it was highly necessary that he, as well as himself, made good use of their time, implored pardon of God under a deep sense of sin, and looked to that Lord by whose merits alone sinners can be saved. He desired me to call in the other gentlemen, who likewise assisted him to move the heart of the poor youth; but the Doctor's words were the most pathetic and effectual. He lifted up his hands, and cried out ‘Oh! Lord Jesus, have mercy upon us! and give, oh! give unto him, my fellow sinner, that, as we suffer together, we may go together to Heaven!’ His conversation to this poor youth was so moving, that tears flowed from the eyes of all present.

“When we went into the chapel to prayer and the holy communion, true contrition and warmth of devotion appeared evident in him throughout the whole service. After it was ended, he again addressed himself to Harris in the most moving and persuasive manner, and not without effect; for he declared that he was glad that he had not made away with himself, and said he was easier, and hoped he should now go to Heaven. The Doctor told him how Christ had suffered for them; and that he himself was a greater sinner than he, as he had sinned more against light and conviction, and therefore

his guilt was greater; and that as he was confident that mercy was shown to his soul, so he should look to Christ and trust in his merits.

“He prayed God to bless his friends who were present with him, and to give his blessing to all his brethren the clergy; that he would pour out his spirit upon them, and make them true ministers of Jesus Christ, and that they might follow the divine precepts of their heavenly Master. Turning to one who stood near him, he stretched out his hand, and said, ‘Now, my dear friend, speculation is at an end; all must be real! What poor ignorant beings we are!’ He prayed for the Magdalens, and wished they were there, to sing for him the 23d Psalm.

“After he had waited some time for the officers, he asked what o’clock it was; and, being told that it was half an hour after eight, he said ‘I wish they were ready, for I long to be gone.’ He requested of his friends, who were in tears about him, to pray for him; to which he was answered, by two of them, ‘We pray more than language can utter.’ He replied, ‘I believe it.’

“At length he was summoned to go down into a part of the yard which is enclosed from the rest of the gaol, where the two unhappy convicts and the friends of the doctor were alone. On his seeing two prisoners looking out of the windows, he went to them, and exhorted them so pathetically, that they both wept abundantly. He said once, ‘I am now a spectacle to men, and shall soon be a spectacle to angels.’

“Just before the sheriff’s officers came with the halters, one who was walking with him told him that there was yet a little ceremony he must; pass through before he went out. He asked ‘What is that?’ ‘You will be bound.’ He looked up, and said, ‘Yet I am free; my freedom is there,’ pointing upwards. He bore it with Christian patience, and beyond what might have been expected; and, when the men^[14] offered to excuse tying his hands, he desired them to do their duty, and thanked them for their kindness. After he was bound, I offered to assist him with my arm in conducting him through the yard, where several people were assembled to see him; but he replied, with seeming pleasure, ‘No, I am as firm as a rock.’ As he passed along the yard, the spectators and prisoners wept and bemoaned him; and he, in return, prayed God to bless them.

“On the way to execution he consoled himself in reflecting and speaking on what Christ had suffered for him; lamented the depravity of human nature, which made sanguinary laws necessary; and said he could gladly

have died in the prison-yard, as being led out to public execution tended greatly to distress him. He desired me to read to him the 51st Psalm, and also pointed out an admirable penitential prayer from 'Rossell's Prisoner's Director.' He prayed again for the king, and likewise for the people.

"When he came near the street where he formerly dwelt he was much affected, and wept. He said, probably his tears would seem to be the effect of cowardice, but it was a weakness he could not well help; and added, he hoped he was going to a better home.

"When he arrived at the gallows he ascended the cart, and spoke to his fellow-sufferer. He then prayed, not only for himself, but also for his wife, and the unfortunate youth that suffered with him; and, declaring that he died in the true faith of the Gospel of Christ, in perfect love and charity with all mankind, and with thankfulness to his friends, he was launched into eternity, imploring mercy for his soul for the sake of his blessed Redeemer."

A paper, of which the following is a copy, had been delivered by Dr. Dodd to Mr. Villette to be read at the place of execution, but was omitted as it seemed impossible to make all present aware of its contents.

“To the words of dying men regard has always been paid. I am brought hither to suffer death for an act of fraud, of which I confess myself guilty with shame, such as my former state of life naturally produces, and I hope with such sorrow as He, to whom the heart is known, will not disregard. I repent that I have violated the laws by which peace and confidence are established among men; I repent that I have attempted to injure my fellow-creatures; and I repent that I have brought disgrace upon my order, and discredit upon religion: but my offences against God are without number, and can admit only of general confession and general repentance. Grant, Almighty God, for the sake of Jesus Christ, that my repentance, however late, however imperfect, may not be in vain!

“The little good that now remains in my power is to warn others against those temptations by which I have been seduced. I have always sinned against conviction; my principles have never been shaken; I have always considered the Christian religion as a revelation from God, and its divine Author as the Saviour of the world; but the laws of God, though never disowned by me, have often been forgotten. I was led astray from religious strictness by the delusion of show and the delights of voluptuousness. I never knew or attended to the calls of frugality, or the needful minuteness of painful economy. Vanity and pleasure, into which I plunged, required expense disproportionate to my income; expense brought distress upon me; and distress, importunate distress, urged me to temporary fraud.

“For this fraud I am to die; and I die declaring, in the most solemn manner, that, however I have deviated from my own precepts, I have taught others, to the best of my knowledge, and with all sincerity, the true way to eternal happiness. My life, for some few unhappy years past, has been dreadfully erroneous; but my ministry has been always sincere. I have constantly believed; and I now leave the world solemnly avowing my conviction, that there is no other name under Heaven by which we can be saved but only the name of the Lord Jesus; and I entreat all who are here to join with me in my last petition, that, for the sake of that Lord Jesus Christ, my sins may be forgiven, and my soul received into his everlasting kingdom.

“June 27, 1777.”

“WILLIAM DODD.”

The body of the Doctor was on the Monday following carried to Cowley, in Buckinghamshire, and deposited in the church there.

During the doctor's confinement in Newgate (a period of several months) he chiefly employed himself in writing various pieces, which show at once his piety and talent. The principal of these were his "Thoughts in Prison," in five parts, from which we cannot doubt but that our readers, in finishing our life of so eminent, yet unfortunate, a man, will be gratified by the insertion of a few short extracts. "I began these Thoughts," says the unhappy man, writing in Newgate, under date of the 23d of April, 1777, after his condemnation, "merely from the impression in my mind, without plan, purpose, or motive, more than the situation of my soul.

"I continued thence on a thoughtful and regular plan; and I have been enabled wonderfully, in a state which in better days I should have supposed would have destroyed all power of reflection, to bring them nearly to a conclusion. I dedicate them to God, and the reflecting serious among my fellow-creatures; and I bless the Almighty for the ability to go through them amidst the terrors of this dire place (Newgate), and the bitter anguish of my disconsolate mind! The thinking will easily pardon all inaccuracies, as I am neither able nor willing to read over these melancholy lines with a curious or critical eye. They are imperfect, but in the language of the heart; and, had I time and inclination, might, and should be, improved.—But——

(Signed)

"W. D."

The unfortunate author's Thoughts on his Imprisonment are thus introduced:—

“My friends are gone! harsh on its sullen hinge
Grates the dread door: the massy bolts respond
Tremendous to the surly keeper’s touch:
The dire keys clang, with movement dull and slow,
While their behest the ponderous locks perform:
And, fasten’d firm, the object of their care
Is left to solitude—to sorrow left.

“But wherefore fasten’d? Oh! still stronger bonds
Than bolts, or locks, or doors of molten brass,
To solitude and sorrow could consign
His anguish’d soul, and prison him, though free!
For whither should he fly, or where produce
In open day, and to the golden sun,
His hapless head! whence every laurel torn,
On his bald brow sits grinning infamy:
And all in sportive triumph twines around
The keen, the stinging arrows of disgrace.”

After dwelling on the miseries of that dreary confinement, at sight of which he formerly started back with horror, he adds,

“O dismal change! now not in friendly sort
A Christian visitor, to pour the balm
Of Christian comfort in some wretch’s ear—
I am that wretch myself! and want, much want,
That Christian consolation I bestow’d;
So cheerfully bestow’d! Want, want, my God,
From thee the mercy, which, thou know’st my gladsome soul
Ever sprang forth with transport to impart.

“Why then, mysterious Providence, pursued
With such unfeeling ardour? Why pursued
To death’s dread bourn, by men to me unknown!
Why—stop the deep question; it o’erwhelms my soul;
It reels, it staggers! Earth turns round! My brain
Whirls in confusion! My impetuous heart
Throbs with pulsation not to be restrain’d;
Why?—Where?—O Chesterfield, my son, my son!”

The unfortunate divine afterwards thus proceeds:—

“Nay, talk not of composure! I had thought
In older time, that my weak heart was soft,
And pity’s self might break it. I had thought
That marble-eyed Severity would crack
The slender nerves which guide my reins of sense,
And give me up to madness! ’Tis not so;
My heart is callous, and my nerves are tough;
It will not break; they will not crack; or else
What more, just heaven! was wanting to the deed,
Than to behold—Oh! that eternal night
Had in that moment screened from myself!
My Stanhope to behold! Ah! piercing sight!
Forget it; ’tis distraction: speak who can!
But I am lost! a criminal adjudged!”

It is not a little singular that Dr. Dodd, a few years before his death, published a Sermon, intitled, “The frequency of capital punishments inconsistent with justice, sound policy, and religion.” This, he says, was intended to have been preached at the Chapel-royal, at St. James’s; but omitted on account of the absence of the court, during the author’s month of waiting.

The following extract will show the unfortunate man’s opinion on this subject, although there is no reason to suppose that he then contemplated the commission of the crime for which he suffered. He says,

“It would be easy to show the injustice of those laws which demand blood for the slightest offences; the superior justice and propriety of inflicting perpetual and laborious servitude; the greater utility hereof to the sufferer, as well as to the state, especially wherein we have a variety of necessary occupations, peculiarly noxious and prejudicial to the lives of the honest and industrious, and in which they might be employed, who had forfeited their lives and their liberties to society.”

THOMAS HORNER AND JAMES FRYER,

EXECUTED FOR BURGLARY.

THE offence of these prisoners was attended by circumstances of great daring. From the evidence adduced at their trial, which took place at the Old Bailey Sessions in the month of April, 1778, it appeared that on the evening of the 1st of March, the prisoners, with three other men, were seen at Finchley together, and that while drinking in a public-house they made many inquiries of the persons present with regard to the house and family of a Mr. Clewen, a gentleman of respectability who resided in the neighbourhood. On the same night, between twelve and one o'clock, Mr. Clewen's house was entered by five persons, whose faces were disguised, and the noise created by their rushing up stairs being heard by Miss Clewen and her servant, they immediately ran out of their bed-chambers to see what was the matter. They were forced to return, however, and three of the men having entered their room, compelled them to cover their heads with the bed-clothes, uttering loud threats in case of their offering any resistance. The men-servants, who slept at the top of the house, being now alarmed, the thieves proceeded to their apartment, and one of them named Quick having got up, he received a severe blow with an iron bar, and, like his mistress, was compelled, with his fellows, to cover himself up with the bed-clothes. Two fellows then remained to watch them, while the rest went to Mr. Clewen's room, and treated him in the same manner, and then they proceeded to the bed-chamber of his son, whom they forced to go to his father's bed, holding his hands before his eyes, so that he should not distinguish who were his assailants. They then ransacked the house, and in about half-an-hour returned, saying that if young Clewen would tell them where the money was, they would give him his watch, which they had taken from under his pillow, but this being refused, they went away, saying that they were only going for some victuals, and would return. The house was then immediately examined by Mr. Clewen; and it was found that the thieves had effected an entrance by means of the back-door, and that they had fastened up that as well as the front entrance by nailing staples over the locks. It was afterwards discovered that they had carried off twenty-two

guineas, fifty pounds in bank notes, a quantity of plate, several gold rings, a silver watch, and other property to a considerable amount. Information of the robbery was immediately conveyed to Sir John Fielding, whose officers, recognising the offenders from the description given of their persons, succeeded in securing the prisoners: Fryer at a small house which he occupied in the City Road, where there were found a number of picklock keys, and a hanger; and Horner at his lodgings in Perkins' Rents, Westminster, a cutlass being concealed under his bed. Two supposed accomplices, named Condon and Jordan, were also apprehended, but nothing distinct being proved against them they escaped: Jordan, however, being afterwards convicted for a second burglary in Copenhagen House, for which he received sentence of death.

Conviction having followed the production of this evidence, sentence of death was passed. Upon the sacrament being administered to Horner and Fryer, they admitted their guilt, and were executed at Tyburn on the 24th of June, 1778. The other offenders were subsequently also apprehended and executed.

THE REV. JAMES HACKMAN.

EXECUTED FOR MURDER.

THE case of this unfortunate gentleman was long the topic of general conversation. Pamphlets and poems were written on the subject; and the fate of Mr. Hackman was generally pitied, as it was conceived that he was the victim of an insane love—a conclusion which will now be the more readily arrived at when the circumstances under which the murder, of which he was found guilty, was committed are considered.

It appears that Mr. Hackman was born at Gosport in Hampshire, and was originally designed for trade, in which his father was engaged. It was found, however, that his disposition was of too volatile a nature to admit of his success in any business; and his parents, willing to promote his interests to the extent of their power, purchased for him a commission as ensign in the 68th regiment of foot. He had not been long in the service before he was entrusted with the command of a recruiting party, and going to Huntingdon, in pursuance of his instructions, he there became known to the Earl of Sandwich, who had a seat in the neighbourhood, and by whom he was frequently invited to dinner. It appears that he now first became acquainted with the object of his passion, and the victim of his crime.

Miss Reay was the daughter of a staymaker in Covent Garden, and served her apprenticeship to a mantuamaker, in George's-court, St. John's lane, Clerkenwell. She was bound when only thirteen; and during her apprenticeship was taken notice of by the nobleman above mentioned, who took her under his protection, and treated her with every mark of tenderness. At the time of her being introduced to Mr. Hackman, she had lived with her noble protector during a period of nineteen years, and in the course of that time had borne him nine children; but although she was nearly twice the age of Mr. Hackman, no sooner had he seen her than he became violently enamoured of her.

It was while he was tormented by this unhappy and ungovernable passion that he found that any hopes which he might entertain of preferment in the army were not likely to be realised, and he determined to turn his

thoughts to the church. In pursuance of this design he took orders, and he obtained the living of Wiverton, in Norfolk, only about Christmas preceding the shocking deed which cost him his life.

How long he had been in London previous to this affair is not certainly known; but at the time of its occurrence he lodged in Duke's-court, St. Martin's-lane. On the morning of the 7th of April, 1779, he sat for a considerable time in his closet, reading "Blair's Sermons;" but in the evening he took a walk to the Admiralty, where he saw Miss Reay go into the coach along with Signora Galli, who attended her. The coach drove to Covent Garden Theatre, where the ladies stayed to see the performance of "Love in a Village," and Mr. Hackman went into the theatre at the same time; but not being able to contain the violence of his passion, he returned, and again went to his lodgings, and having loaded two pistols went to the playhouse, where he waited till the play was over. Seeing Miss Reay ready to step into the coach, he took a pistol in each hand, one of which he discharged against her, which killed her on the spot, and the other at himself, which, however, did not take effect. He then beat himself with the butt-end, on his head, in order to destroy himself, so fully was he bent on the destruction of both; but after a struggle he was secured, his wounds dressed, and then he was carried before Sir John Fielding, who committed him to Tothillfields' Bridewell, and next to Newgate, where a person was appointed to attend him, lest he should lay violent hands on himself. In Newgate, as he knew he had no favour to expect, he prepared himself for the awful change which was about to take place. He had dined with his sister on the day on which the murder was committed, and in the afternoon he wrote a letter to her husband, Mr. Booth, an eminent attorney, informing him of his intention to destroy himself, and desiring him to sell what effects he had, in order to pay a small debt which he owed; but it appears that the letter was not despatched, as it was found in his pocket.

The prisoner was indicted at the ensuing Old Bailey sessions, and it was proved by Mr. MacNamara, that on Wednesday, the 7th of April, he was quitting the theatre, when seeing Miss Reay, with whom he was slightly acquainted, he offered her his assistance in reaching her carriage. She accepted his preferred arm, and just as they were in the piazza he heard the report of a pistol, when he directly felt his arm compressed by the lady's hand, and she then immediately fell to the ground. He thought at first that the lady had fallen from fright only, but on stooping to raise her up, he

found that his hand was bloody, and he then saw that she was wounded. He immediately conveyed her into the Shakspeare Tavern, whither the prisoner soon after followed in custody. He asked him some questions about his reason for shooting Miss Reay, but the only answer which he gave was, that that was not the place to satisfy him. The prisoner afterwards said that his name was Hackman; and he sent for Mr. Booth, who lived in Craven-street. Other evidence was also adduced, from which it appeared that the prisoner followed Miss Reay out of the theatre, and having tapped her on the shoulder to attract her attention, he suddenly drew two pistols from his pocket, one of which he discharged at her and the other at himself. They both fell feet to feet, and the prisoner then beat himself about the head, and called out for some one to kill him. He was secured by a Mr. McMahon, who dressed his wounds, and conveyed him to the Shakspeare Tavern, where Miss Reay almost immediately afterwards died.

On his being called upon for his defence, the prisoner addressed the Court in the following terms:—"I should not have troubled the Court with the examination of witnesses to support the charge against me, had I not thought that the pleading guilty to the indictment gave an indication of contemning death not suitable to my present condition, and was, in some measure, being accessory to a second peril of my life: and I therefore thought that the justice of my country ought to be satisfied by suffering my offence to be proved, and the fact established by evidence.

"I stand here this day the most wretched of human beings, and confess myself criminal in a high degree; yet while I acknowledge, with shame and repentance, that my determination against my own life was formal and complete, I protest, with that regard to truth which becomes my situation, that the will to destroy her, who was ever dearer to me than life, was never mine till a momentary frenzy overcame me, and induced me to commit the deed I now deplore. The letter which I meant for my brother-in-law after my decease will have its due weight as to this point with good men.

"Before this dreadful act I trust nothing will be found in the tenor of my life which the common charity of mankind will not excuse. I have no wish to avoid the punishment which the laws of my country appoint for my crime; but being already too unhappy to feel a punishment in death or a satisfaction in life, I submit myself with penitence and patience to the disposal and judgment of Almighty God, and to the consequences of this inquiry into my conduct and intention."

The following letter was then read:—

“My dear Frederic,—When this reaches you I shall be no more; but do not let my unhappy fate distress you too much: I have strove against it as long as possible, but it now overpowers me. You well know where my affections were placed: my having by some means or other lost hers (an idea which I could not support) has driven me to madness. The world will condemn me, but your good heart will pity me. God bless you, my dear Frederic! Would I had a sum to leave you to convince you of my great regard! You was my only friend. I have hid one circumstance from you which gives me great pain. I owe Mr. Knight of Gosport one hundred pounds, for which he has the writings of my houses; but I hope in God, when they are sold and all other matters collected, there will be nearly enough to settle our account. May Almighty God bless you and yours with comfort and happiness; and may you ever be a stranger to the pangs I now feel! May Heaven protect my beloved woman, and forgive this act, which alone could relieve me from a world of misery I have long endured! Oh! if it should ever be in your power to do her an act of friendship, remember your faithful friend,

“J. HACKMAN.”

The jury immediately returned their fatal verdict. The unhappy man heard the sentence pronounced against him with calm resignation to his fate, and employed the very short time allowed murderers after conviction in repentance and prayer.

During the procession to the fatal tree at Tyburn he seemed much affected, and said but little; and when he arrived at Tyburn, and got out of the coach and mounted the cart, he took leave of Dr. Porter and the Ordinary in the most affectionate manner.

After some time spent in prayer, he was turned off, on April the 19th 1779; and having hung the usual time, his body was carried to Surgeons Hall for dissection.

JAMES DONALLY.

EXECUTED FOR ROBBERY.

THIS offender was one of a class of the most mischievous and most daring robbers; and the case which we have to relate, is one of a most atrocious nature,—the extortion of money by means of threats to charge the person imposed upon with a detestable crime, an offence which, we regret to say, has been but too prevalent in later years.

In the month of February, 1779, James, alias Patrick Donally, was indicted at the sessions held at the Old Bailey, for “that he, on the king’s highway, in and upon the Honourable Charles Fielding, did make an assault, putting him in corporeal fear and danger of his life, and did steal from his person, and against his will, half-a-guinea, on the 18th of January:” and there was also a second count, which imputed to him a similar offence on the 20th of the same month, in robbing the prosecutor of a guinea.

From the evidence adduced, it appeared that the prosecutor was the second son of the Earl of Denbigh. Between six and seven o’clock on the evening of the 18th of January, he was going from the house of a lady, with whom he had dined, to Covent Garden Theatre, when, on passing through Soho-square, the prisoner came up to him and demanded some money. Mr. Fielding was surprised at this address, and requested to know upon what ground he applied to him; upon which the prisoner immediately said, that if he did not comply, he would take him before a magistrate, and impute to him the commission of a foul crime. Terrified by the insinuation, he handed half-a-guinea to him, which was all the money then in his possession, and returning to the house which he had just quitted, he borrowed half-a-guinea of the servant, in order that he might pursue his original intention of going to the theatre. On the 20th of the same month he was in Oxford-road, when the prisoner again accosted him, and saying that he could not have forgotten what passed the other night in Soho-square, declared that he must have money, or else, that he would follow up the intention which he had before expressed, and added that he knew it would go hard with him, unless he could prove an *alibi*. Mr. Fielding at this time was without money, but going to Mr. Waters, a grocer in Bond-street, he borrowed a guinea from

him, which, under the influence of fear, he handed to the prisoner. On the 12th February, a third attempt at extortion was made by the prisoner; but in this instance, owing to the great resemblance between Mr. Fielding and his brother Lord Fielding, he mistook the latter for the former; Lord Fielding was on Hay-hill, when the prisoner accosted him in terms implying that he had seen him before. His lordship, however, expressed himself at a loss to know what he meant, when he asked him if he did not remember giving him a half-guinea in Soho-square, and a guinea at the grocer's in Bond-street? Lord Fielding utterly denied all recollection of either affair, and said that the prisoner should go before a magistrate to explain his meaning. The prisoner assented, and they proceeded together in the direction of Bow-street; but they had not gone many paces before the prisoner held back, and said that he would go no further. Lord Fielding became rather alarmed, and, being terrified by the prisoner's threats, he allowed him to escape. On the Tuesday following, however, as he was passing near the same spot, a voice, which he recognised as that of the prisoner, called out, "My Lord, I have met you again," and the prisoner at the same time coming from behind him, his Lordship seized him by the collar; the prisoner declared that he had been used ill when he last saw his Lordship, upon which the latter declared that he had used him too well, and would take care now that he should not get away again.

Donally now desired to be treated like a *gentleman*, saying he would not be dragged, but would go quietly, and Lord Fielding, not seeing any person who was likely to assist him, and apprehending a rescue, told him that, if he would walk along quietly to the next coffee-house, he would not drag him. They walked down Dover-street together; but the prisoner increasing his pace, Lord Fielding followed, and seized him. He fell down twice, but was again seized as soon as he arose.

By this time a crowd was assembled; Major Hartly, and two other gentlemen, happened to come by, and with their aid, the prisoner was secured, and conveyed to Bow-street, where the magistrates, on hearing the evidence, thought that the crime amounted to a highway robbery, and committed him for trial accordingly.

Donally in his defence, acknowledged that he had met Lord Fielding twice; that he had addressed him with decency, and desired him to hear something respecting his brother; and that Sir John Fielding had made the Honourable Charles Fielding carry on the prosecution. He did not deny the

receipt of the guinea at the grocer's in Bond-Street; but averred that he did not deserve death on account of the charge against him.

The jury, having considered the whole evidence, brought in a verdict of "Guilty;" but Mr. Justice Buller, before whom the offender was tried, reserved the case for the opinion of the judges on a point of law.

On the 29th of April, 1779, the judges met, and gave their opinion on this case, pronouncing it a new species of robbery to evade the law, but which was *not* to be evaded; and the prisoner therefore underwent its sentence, which he had, with most abominable wickedness, brought upon his own head.

Another diabolical villain of this description, named John Staples, was, on the 6th of December, 1779, hanged at Tyburn, for extorting money from Thomas Harris Crosby, Esq. by charging him with an abominable crime.

MORGAN PHILLIPS.

EXECUTED FOR MURDER AND ARSON.

THE case of this malefactor so strongly resembles that of a person named Edward Morgan, an account of whose crime we have already given, that we are induced to hope, for the sake of humanity, that some mistake has arisen in describing them as separate offences.

The crime for which the person whose case we are now considering, most justly suffered, was attended with extraordinary acts of cruelty.

The inhabitants of Narbeth, a small village in the county of Pembroke, were, in the middle of one night in the month of March, 1779, alarmed with the appearance of fire bursting from a farm-house near the turnpike. Before they could render assistance the house was nearly razed to the ground, and the family were missing. On examining the ruins the remains of the owner, Mr. Thomas, an old and respectable farmer, were found on a bench in a leaning posture, but so much burnt that it was impossible to determine whether he had been first murdered, or had perished by the flames.

Proceeding in the search, the next unhappy victim found was his niece, a fine young woman of about thirty years of age, whose body lay across the feet of a half burnt bedstead, with a thigh broken, and an arm missing. Among the ruins of another room was discovered the body of a labouring man, much burnt, but with a large wound on the back of his head, from which much blood had issued; and Mrs. Thomas' servant-woman, who was exceedingly robust, was also found dead at the entrance of one of the rooms, with several deep wounds in her head, and her hair clotted with blood. Her body was not so much burned as the others; and near her was discovered a large kitchen spit, half bent, with which it was conjectured she had opposed the murderers, for there could now be no doubt that the horrid scene which presented itself was the work of some person who, for the sake of plundering the house, had massacred its inhabitants and had then fired the premises, in order to conceal his bloody crimes. So horrible a deed excited universal attention, and every means was taken to secure its author.

A man named John Morris, a lazy, worthless character, who had been already in custody upon other charges, was apprehended on suspicion of being concerned in the affair; but he effectually put an end to all hopes of eliciting any information from him by throwing himself into a coal-pit, in spite of the efforts of the constables, in whose care he was, to restrain him, where his mangled remains were afterwards found. At length suspicion fell on Morgan Philips, and he, finding the general belief to be that he was guilty of this most horrible crime, at length confessed that he and Morris had been its perpetrators; that they had broken into the house of the farmer, and having murdered the family, from whom they met with considerable resistance, they had carried off all the valuable property which they could find, and had then set fire to the farm to prevent discovery.

The prisoner being put upon his trial at Haverfordwest, his confession was read to him, and assented to as being true; and its leading points being corroborated by other witnesses, he was found guilty, and suffered death at the same place on 5th April, 1779.





The London Riots.

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JAMES MATHISON.

EXECUTED FOR FORGERY.

THIS offender was tried on Thursday, the 20th of May, 1779. There perhaps never appeared in any court of justice so ingenious a man in his style as this person. His practice for some time past had been to go to the Bank, and take out a note; this he counterfeited, passed the copy, and, after some time, returned the original. His frequent applications at length exciting suspicions, which were increased by his appearance in life, and other circumstances, he was taken up. When brought before Justice Fielding, he was there known to be the person charged with forgeries upon the bank at Darlington. The particular forgery now charged on him was for making and uttering a note for payment of twenty pounds, with intent to defraud Mr. Mann, of Coventry, and the Bank of England. The note was produced in court, and the witnesses were brought to prove its having been negotiated by him.

This fact being established, the next circumstance in consideration was to prove that the note was absolutely a counterfeit one. This his prosecutors were totally unable to do by any testimony they could adduce, so minutely and so dexterously had he feigned all the different marks. The note itself was not only so made as to render it altogether impossible for any human eyes to perceive a difference; but the very hands of the cashier and the entering clerk were also so counterfeited as entirely to preclude a positive discrimination even by those persons themselves. The water mark in the paper, too, namely, "Bank of England," which the bankers had considered as an infallible criterion of fair notes, a mark which could not be resembled by any possible means, was also hit off by this man, so as to put it out of the power of the most exact observer to perceive a difference. Several paper-makers were of opinion that this mark must have been put on in the making of the paper; but Mathison declared that he put it on afterwards by a peculiar method, known only to himself. The extreme similitude of the fair and false notes had such an effect upon the judge and jury that the prisoner would certainly have been discharged, for want of evidence to prove the counterfeit, if his own information, taken at Fielding's, had not been

produced against him, which immediately turned the scale, and he was found guilty.

He was executed at Tyburn, pursuant to his sentence, on July 28th 1779. At the place of execution he made a speech which took up some minutes; wherein he acknowledged his guilt, and hoped for forgiveness from the Almighty. He also warned others to avoid the crime for which he suffered, and forgave his prosecutors.

THE RIOTS OF LONDON.

BEGINNING ON THE 2ND JUNE, 1780, WITH THE EXECUTION OF THE RIOTERS.

THE history of London, from its earliest epoch, exhibits the occurrence of no event of a more calamitous nature, or more pregnant with mischief, than the riots of 1780. A commotion so rapid, and so daring in its progress, was perhaps never known. The sovereignty of the King, and the safety of the property of the subject, rested on laws which were unsupported; the magistrates were confessedly intimidated; and all good and loyal citizens were seized with a terror and panic, which were alone dispelled by the restoration of tranquillity through the instrumentality of the military force.

The origin of the riot is ascribed to the passing of an act of Parliament, about two years previously, for “relieving his majesty’s subjects, of the Catholic Religion, from certain penalties and disabilities imposed upon them during the reign of William III.” A petition to Parliament was framed for its repeal, and a general meeting of a body of people, forming the Protestant Association, headed by Lord George Gordon, was held on the 29th May, at the Coachmakers’ Hall, Noble-street, Aldersgate-street. At this meeting the noble lord moved the following resolutions.

“Whereas no hall in London can contain forty thousand persons,

“Resolved,—That this association do meet on Friday next in St. George’s-fields, at ten o’clock in the morning, to consider the most prudent and respectful manner of attending their petition, which will be presented the same day to the House of Commons.

“Resolved,—For the sake of good order and regularity, that this association, in coming to the ground, do separate themselves into four divisions, viz.—the London division, the Westminster division, the Southwark division, and the Scotch division.

“Resolved,—That the London division do take place of the ground towards Southwark; the Westminster division second; the Southwark division third; and the Scotch division upon the left, all wearing blue cockades, to distinguish themselves from the papists, and those who approve of the late act in favour of popery.

“Resolved,—That the magistrates of London, Westminster, and Southwark, are requested to attend; that their presence may overawe and control any riotous or evil-minded persons who may wish to disturb the legal and peaceable deportment of his majesty’s subjects.”

His lordship having intimated that he would not present the petition unless twenty thousand persons attended the meeting, and the resolutions having been published and placarded through the streets, on the day appointed a vast concourse of people from all parts of the City and its environs assembled in St. George’s-fields. The main body took their route over London-bridge, marching in order, six or eight in a rank, through the City towards Westminster, accompanied by flags bearing the words “No Popery.” At Charing-Cross, the mob was increased by additional numbers on foot, on horseback, and in various vehicles, so that by the time the different parties met together, all the avenues to both houses of Parliament were entirely filled with the crowd. The rabble now took possession of all the passages leading to the House of Commons, from the outer doors to the very entrance for the members; which latter they twice attempted to force open; and a like attempt was made at the House of Lords, but without success in either instance. In the meantime, Lord George Gordon came into the House of Commons with an unembarrassed countenance, and a blue cockade in his hat, after “riding in the whirlwind and directing the storm;” but finding it gave offence he took it out and put it in his pocket; not however before Captain Herbert, of the navy, one of the members, threatened to pull it out; while Colonel Murray, another member, declared that, if the mob broke into the house, he (looking at Lord George) should instantly be the victim.

The petition having been presented, the populace separated into parties, and proceeded to demolish the Catholic chapels, in Duke-street, Lincoln’s Inn Fields, and Warwick-street, Golden-square; and all the furniture, ornaments, and altars of both chapels were committed to the flames. After various other outrages, the prison of Newgate was attacked. They demanded from the keeper, Mr. Ackerman, the release of their confined associates: he refused to comply; yet, dreading the consequence, he went to the sheriff’s to know their pleasure. On his return he found his house in flames; and the jail itself was soon in a similar situation. The doors and entrances were broken open with crowbars and sledge-hammers; and it is scarcely to be credited with what rapidity this strong prison was destroyed. The public office in

Bow-street, and Sir John Fielding's house, adjoining were presently destroyed, and all their furniture and effects, books, papers, &c. committed to the flames. Justice Coxe's house in Great Queen-street, Lincoln's Inn Fields, was similarly treated; and the two prisons at Clerkenwell set open, and the prisoners liberated. The King's Bench Prison, with some houses adjoining, a tavern, and the New Bridewell, were also set on fire, and almost entirely consumed.

The mob now appeared to consider themselves as superior to all authority; they declared their resolution to burn all the remaining public prisons; and demolish the Bank, the Temple, Gray's Inn, Lincoln's Inn, the Mansion House, the royal palaces, and the arsenal at Woolwich. The attempt upon the Bank of England was actually made twice in the course of one day; but both attacks were but feebly conducted, and the rioters easily repulsed, several of them falling by the fire of the military, and many others being severely wounded.

To form an adequate idea of the distress of the inhabitants in every part of the city would be impossible. Six-and-thirty fires were to be seen blazing in the metropolis during the night.

At length the continued arrival of fresh troops, from all parts of the country, within fifty or sixty miles of the metropolis, intimidated the rabble; and soon after the disturbances were quelled.

The Royal Exchange, the public buildings, the squares, and the principal streets, were all occupied by troops; the shops were closed; while immense volumes of dense smoke were still rising from the ruins of consumed edifices.

During the riots, many persons, terrified by the alarming outrages of the mob, fled from London, and took refuge at places at a considerable distance from town. The following account was written by Dr. Johnson to Mrs. Thrale, who had gone into the country for safety; and may not prove uninteresting. The doctor was an eye-witness to many of the scenes which he depicts:—

“On Friday, the 2d of June, the good Protestants met in St. George's Fields, at the summons of Lord George Gordon, and, marching to Westminster, insulted the Lords and Commons, who all bore it with great tameness. At night the outrages began by the demolishing the Mass-house near Lincoln's Inn.

“On Monday, Mr. Strahan, who had been insulted, spoke to Lord Mansfield, who had been insulted too, of the licentiousness of the populace; and his lordship treated it as a very slight irregularity.

“On Tuesday night they pulled down Fielding’s house (the public office in Bow-street), and burnt his goods in the street. They had gutted, on Monday, Sir George Saville’s house; but the building was saved. On Tuesday evening, leaving Fielding’s ruins, they went to Newgate, to demand their companions, who had been seized for demolishing the chapel. The keeper could not release them but by the mayor’s permission, which he went to ask. At his return he found all the prisoners released, and Newgate in a blaze. They then went to Bloomsbury, and fixed upon Lord Mansfield’s house, which they partly pulled down; and, as for his goods, they totally burnt them. They went to Caen Wood (his lordship’s country-seat); but a guard was there before them. They plundered several Papists, and burned a Mass-house, and some dwelling-houses in Moorfields, the same night.

“On Wednesday I walked with Dr. Scott, to look at Newgate, and found it in ruins, with the fire yet glowing. As I went by, the Protestants were plundering the Sessions House at the Old Bailey. There was not, I believe, a hundred; but they did their work at leisure, in full security, without sentinels, and without trepidation, as men lawfully employed in full day. Such is the cowardice of a commercial place!

“On Wednesday they broke open the Fleet Prison, the King’s Bench and Marshalsea Prisons, Wood-street Compter, and Clerkenwell Bridewell. At night they set fire to the Fleet and the King’s Bench, and I know not how many other places; and one might see the glare of conflagration fill the sky from many parts.—The sight was dreadful. Some people were threatened: Mr. Strahan advised me to take care of myself. Such a time of terror you would have been happy in not seeing.

“The king said in council ‘That the magistrates had not done their duty, but that he would do his own;’ and a proclamation was published, directing us to keep our servants within doors, as the peace was now to be preserved by force.

“The soldiers were sent out to different parts, and the town is now quiet. They are stationed so as to be everywhere within call; there is no longer any body of rioters, and the individuals are hunted to their holes, and led to prison: Lord George Gordon was last night sent to the Tower.

“Mr. John Wilkes was this day in my neighbourhood, to seize the publishers of a seditious pamphlet.

“Several chapels have been destroyed, and several inoffensive Papists have been plundered: but the high sport was to burn the gaols. This was a good rabble trick. The debtors and the criminals were set at liberty; but of the criminals, as has always happened, many are already retaken; and two pirates have surrendered themselves, and it is expected they will be pardoned.

“Government now acts with its proper force; and we are all now again under the protection of the king and the law. I thought it would be agreeable to you to have my testimony to the public security; and that you would sleep more quietly when I told you that you were safe.

“There has been, indeed, an universal panic, from which the king was the first that recovered. Without the concurrence or assistance of his ministers, or even the assistance of the civil magistrates, he put the soldiers in motion, and saved the town from calamities such as a rabble’s government must naturally produce.

“The public has escaped a very heavy calamity. The rioters attempted the Bank on Wednesday night, but in no great numbers; Jack Wilkes headed the party that drove them away. It is agreed, that if they had seized the Bank, on Tuesday, at the height of the pause, when no resistance had been prepared, they might have carried away whatever they had found.”

The number of persons killed in this dreadful riot is variously stated. Many persons, strangers to the attempt, were destroyed by the necessarily indiscriminate fire of the soldiers and militia; and although it is impossible to calculate the precise number who lost their lives, from the circumstance of many being carried off by their friends, it is believed to be about 500.

Lord George Gordon, the leader and instigator of these riots, was subsequently tried in the Court of King’s Bench, and by some good fortune escaped conviction. There was little doubt that he was occasionally subject to aberrations of intellect. His death took place some years afterwards in the King’s Bench Prison. He had been indicted for a libel on Marie Antoinette, the late unfortunate French queen, and the Count d’Ademar, one of the ministers of state, and having been convicted, fled from punishment; and was afterwards apprehended in Birmingham, attired in the garb of a Jew,

with a long beard, &c., where he had undergone circumcision, and had embraced the religion of the unbelievers. He died professing the same faith.

Many of the rioters were apprehended, and having been recognised, were convicted, and suffered death in most instances opposite to the places in which the scenes were enacted, in which they were proved to have taken a part. Among them were many women and boys but there was not one individual of respectability or character. They were all of the lowest class, whose only object was plunder.

Among the rioters, to sum up the account of their infamy and wretchedness, was Jack Ketch himself. This miscreant, whose real name was Edward Dennis, was convicted of pulling down the house of Mr. Boggis, of New Turnstile. The keeper of Tothill-fields' Bridewell would not suffer Jack Ketch to go among the other prisoners, lest they should tear him to pieces. In order that he might hang up his brother rioters, he was granted a pardon!

The following is an extract from the king's speech to both houses of parliament, the 18th of June, soon after the riots were ended:—

“My Lords and Gentlemen,—The outrages committed by bands of lawless and desperate men, in various parts of this metropolis, broke forth with such violence into acts of felony and treason, had so far overborne all civil authority, and threatened directly the immediate subversion of all legal power, the destruction of all property, and the confusion of every order of the state, that I found myself obliged, by every tie of duty and affection to my people, to suppress, in every part, those rebellious insurrections, and to provide for the public safety by the most effectual and immediate application of the force entrusted to me by parliament. I have directed copies of the proclamations issued upon that occasion to be laid before you.

“Proper orders have been given for bringing the authors and abettors of these insurrections, and the perpetrators of such criminal acts, to speedy trial, and to such condign punishment as the laws of their country prescribe, and the vindication of public justice demands.

“Though I trust it is not necessary, yet I think it right, at this time, to renew to you my solemn assurances that I have no other object but to make the laws of the realm, and the principles of our excellent constitution in Church and State, the rule and measure of my conduct; and that I shall ever consider it as the first duty of my station, and the chief glory of my reign, to

maintain and preserve the established religion of my kingdoms, and, as far as in me lies, to secure and to perpetuate the rights and liberties of my people.”

ABRAHAM DURNFORD AND WILLIAM NEWTON.

EXECUTED FOR ROBBERY.

IN the case of these men we present a species of robbery different in the plan of its commission from every one yet described.

It was proved, on their trial at the Old Bailey, that they hired an empty house, No. 21, Water-lane, Fleet-street; and, having a bill of exchange lying at the bank of Smith, Wright, and Gray, they directed it for payment at this house. They made preparation for cleaning, in order, as they pretended, to furnish it with despatch; but the landlord, not liking this extraordinary haste, or his new tenants, desired Mrs. Boucher, the mistress of a public-house opposite, to have an eye on their proceedings.

Accordingly, on the day the bill became due, being the 5th of August, 1780, she observed the new tenants, Durnford and Newton, then prisoners at the bar, enter the house, and open the parlour windows. Soon after she saw a third man knock at the door, which was open, and he entered. Watching the event, she heard an uncommon noise, and, stepping over the way to listen, heard the cry of "Murder!" as from a hoarse faint voice, succeeded by a kind of groaning, which very much alarmed her; and, looking through the key-hole, she saw two men dragging a third down the cellar stairs; on which she cried out loudly "They're murdering a man!" She knocked hard at the door, and begged the people in the street to break it open; but none would interfere. Being enraged at their not assisting her, she burst open the window, and was entering the house, when Newton jumped out of the one pair of stairs' window, and was running off; but, on the cry of "Stop thief!" he was instantly taken; Mrs. Boucher seized the other by the throat herself, and dragged him to her own house.

The house was then immediately searched, and in a back cellar was found a man, bound, and nearly choked to prevent his calling out. He proved to be a collecting clerk for Smith, Wright, and Gray, named James Watts. They had robbed him of his pocket-book, and would have murdered him had not the woman saved his life.

Mr. Watts, a young Quaker, aged eighteen, the party robbed and alluded to, would not, according to the doctrines of the particular sect to which he belonged, be sworn, which is required by the law in all cases, so that their conviction rested chiefly on the evidence of Mrs. Boucher; but not a shadow of a doubt existed of their guilt, and they were convicted and executed on the 22nd of November, 1780.

The story of Mr. Watts was that on his knocking at the door, he was admitted immediately, and having entered the house he was collared and seized by two men, whom he afterwards knew to be the prisoners, who attempted to gag him, and forced him down stairs. Fearing that their intention was to murder him, he succeeded in getting from them by an extraordinary effort, and ran to the street-door; but finding it locked he was unable to offer any further opposition to their violence. His screams providentially alarmed Mrs. Boucher, but not until his book, containing upwards of 4000*l.* had been taken from him. It is rather singular that Mr. Watts was himself convicted of robbing his employers in the year 1781, and subjected to two years' imprisonment.

FRANCIS HENRY DE LA MOTTE.

EXECUTED FOR HIGH TREASON.

THE offence of this man was one of the most despicable character. A native of France, and in the service of the French king, he lived long in London, employing himself as a spy upon the proceedings of the English government. He occupied elegant lodgings in Bond-street, dressed like a gentleman, kept the best company, and passed for a foreigner of fortune. At length, however, suspicions arose of his real character, and a watch being set upon his motions, they were found to be fully justified, and he was apprehended and committed to the Tower.

On his trial various acts of treason were proved against him, and he was found guilty.

Sentence was immediately pronounced upon him, “that he should be hanged by the neck, but not until he was dead; that he should then be cut down, and his bowels taken out and burnt before his face; and that his head should be taken off, his body cut into four quarters, and be placed at his majesty’s disposal.”

He was remanded to the Tower, and at the expiration of a fortnight a warrant was issued from the office of the secretary of state for his execution.

The sheriffs demanded his body, on the 27th of July, 1781, of the lieutenant of the Tower, and carried him to Newgate, from thence in about a quarter of an hour they set out with him to Tyburn.

La Motte was dressed in a suit of black. His deportment was manly and serious: he seemed to be totally abstracted from the surrounding multitude, as he scarcely ever took his eyes from a devotional book which he held in his hand.

Upon his arrival at the fatal tree he was immediately removed from the sledge in which he had been conveyed. He then employed some minutes in earnest devotion; after which he twice bowed respectfully to the sheriffs, and turned to the executioner, desiring him immediately to perform his office.

After hanging fifty-seven minutes the body was cut down and laid on a block, when (a fire having been previously kindled) the executioner severed the head from the trunk, and making an incision from his breast, ripped out the heart, which, after being exposed to the surrounding spectators, was thrown into the flames.

The body was then scorched, together with the head, and put into a very handsome coffin, which was delivered to an undertaker for interment.

Amongst other effects of the handiwork of La Motte in favour of his own country, it is said that the attack of a French fleet under the command of Commodore Suffrein upon the British fleet under Commodore Johnstone, in the neutral harbour of Port Praya Road, on its way to the East Indies, whither it was convoying a number of merchantmen, was attributable to him. The English fleet was taken in an unexpected manner. As many as one thousand five hundred of its men are related to have been on shore at the time of the attack; some of whom were employed in collecting water, and others in obtaining exercise, when the Frenchmen hove in sight; and before the necessary arrangements could be made to receive them, forced their way in line into the very midst of the British vessels. Commodore Johnstone, however, with the bravery of a British sailor, succeeded in compelling them to sheer off; but not until he had sustained a loss of upwards of two hundred men. The movements and strength of the English fleets were at that time made no secrets; and La Motte, having obtained the necessary information in the instance in question, conveyed it to his own country through the medium of one Lutterlok, a Dutchman, who succeeded in effecting his escape, while his companion in iniquity suffered an ignominious death.

JOHN DONELLAN, ESQ.

**EXECUTED FOR THE MURDER OF SIR THEODOSIUS BOUGHTON, BART., HIS
BROTHER-IN-LAW.**

THE case of Mr. Donellan is one of a very remarkable nature, and from the character of the testimony produced has been the subject of much conversation and remark amongst persons connected with the professions of medicine and chemistry.

The accused, Mr. Donellan, had been a captain in the army, and was the son of Colonel Donellan. At the age of twelve years he entered into the Royal Regiment of Artillery, with part of which he went to the East Indies in 1754. On his arrival there he changed his service into the 39th foot; but on that regiment being ordered home, he, with many other of his officers, had his majesty's leave to remain in the service of the East India Company, without prejudice to their rank in the army. He then obtained a company, and certainly distinguished himself as a good soldier, not only having been much wounded in the service, but, if his own account may be credited, being singularly instrumental to the taking of Mazulapatam. Being appointed, however, one of the four agents for prize-money, he condescended to receive presents from some black merchants, to whom part of their effects had been ordered to be restored, for which he was tried by a court-martial, and cashiered. He subsequently purchased a share in the Pantheon, where he figured for some time as master of the ceremonies; and after a variety of applications he at length obtained a certificate from the War-office, that he had behaved in the East Indies "like a gallant officer;" in consequence of which he was put upon half-pay in the 39th regiment. But notwithstanding the most strenuous memorials and petitions representing his great services, and insisting that the offence for which he was broke was of a civil nature only, and not cognizable by a court-martial, he never could obtain a restoration into the Company's service. In June, 1777, he married Miss Boughton; and on Friday, March 30th, 1781, he was tried at the assizes at Warwick for the wilful murder of Sir Theodosius Edward Allesley Boughton, Bart., his brother-in-law. The evidence was of such a nature that

the fairest mode of stating it will be by repeating it as it appeared on the trial.

Mr. Powell, apothecary of Rugby, deposed that he had attended Sir Theodosius Boughton for two months before his death, on account of a slight complaint of a certain description.

On Wednesday morning, the 27th of February, he was sent for to Lawton Hall, and on his arrival there at a little before nine o'clock, Capt. Donellan conducted him to the apartment of Sir Theodosius. On his entering, he perceived that the baronet was dead, and on his examining the body he concluded that it was about an hour since life had fled. He had some conversation with Captain Donellan with regard to the deceased, and he was told by him that, he had "died in convulsions." He could not recollect the precise nature of the conversation, but the general effect of what Captain Donellan said was, that the deceased gentleman had taken cold.

Lady Boughton, the mother of the deceased, deposed that Sir Theodosius was twenty years old on the 3rd of August last. On his coming of age, he would have been entitled to above 2000*l.* a year; and in the event of his dying a minor, the greater part of his fortune was to descend to his sister, the wife of Mr. Donellan. It was known in the family on the evening of Tuesday, the 26th, that Sir Theodosius was to take his physic the next morning. He used to put his physic in the dressing-room. He happened once to omit to take it; upon which Mr. Donellan said, "Why don't you set it in your outer room? then you would not so soon forget it." After this he several times put the medicines upon his shelf over the chimney-piece in his outer room. On the evening of Tuesday, the 26th, about six o'clock, Sir Theodosius went out fishing, attended only by one servant, Samuel Frost. Witness and Mrs. Donellan took a walk in the garden, and were there above an hour. To the best of her recollection she had seen nothing of Mr. Donellan after dinner till about seven o'clock, when he came out of the house-door in the garden, and told them that "he had been to see them fishing, and that he would have persuaded Sir Theodosius to come in, lest he should take cold, but he could not." Sir Theodosius came home a little after nine, apparently very well; and he went up into his own room soon after, and went to bed. He requested her to call him the next morning and give him his physic.

She accordingly went into his room about seven in the morning, when he appeared to be very well. She asked him "Where the bottle was?" and he said "It stands there upon the shelf." He desired her to read the label, which she accordingly did, and found there was written upon it "Purging draught for Sir Theodosius Boughton." As he was taking it, he observed, "it smelled and tasted very nauseous;" upon which she said "I think it smells very strongly like bitter almonds." He then remarked that "he thought he should not be able to keep the medicine upon his stomach."

Here a bottle was delivered to Lady Boughton, containing the genuine draught, which she was desired to smell at, and inform the Court whether it smelt like the medicine Sir Theodosius took. She answered in the negative. She was then desired to smell at another, containing the draught with the addition of laurel-water, which she said had a smell very much like that of the medicine she gave to Sir Theodosius. Lady Boughton then proceeded with her evidence. In two minutes after Sir Theodosius had taken the draught, he struggled very much. It appeared to her as if it was to keep the draught down. He made a prodigious rattling in his stomach, and guggling; and these symptoms continued about ten minutes. He then seemed as if he was going to sleep, or inclined to dose; and perceiving him a little composed, she went out of the room. She returned in about five minutes after, and to her great surprise found him with his eyes fixed upwards, his teeth clenched, and foam running out of his mouth. She instantly desired a servant to take the first horse he could get and go for Mr. Powell. She saw Mr. Donellan in less than five minutes after. He came into the room where Sir Theodosius lay, and said to her, "What do you want?" She answered that she wanted to inform him what a terrible thing had happened; that it was an unaccountable thing in the doctor to send such a medicine, for if it had been taken by a dog it would have killed him; and she did not think her son would live. He inquired in what way Sir Theodosius then was; and on being told, he asked her where the physic bottle was; on which she showed him the two draughts; when he took up one of the bottles, and said, "Is this it?" She answered "Yes." He then, after rinsing it, emptied it in some dirty water that was in a wash-hand basin; and on his doing so she said, "What are you at? you should not meddle with the bottles." Upon that he snatched up the other bottle and rinsed it, and then he put his finger to it and tasted it. She repeated that he ought not to meddle with the bottles; upon which he replied, that "he did it to taste it." Two servants, named Sarah Blundell and

Catherine Amos, afterwards came into the room, and he desired the former to take away the basin and the bottles, and he put the bottles into her hands. The witness, however, took the bottles from her, and set them down, bidding her not to touch them; and the prisoner then desired that the room might be cleaned, and the dirty clothes thrown into the inner room. This being done, the witness turned her back for a moment, on which the prisoner again handed the servant the bottles, and bid her take them away, and she accordingly removed them. Witness soon afterwards went into the parlour, where she found Mr. and Mrs. Donellan; and the former told his wife "that her mother had been pleased to take notice of his washing the bottles, and that he did not know what he should have done, if he had not thought of saying that he put the water into them to put his finger to it to taste." The witness made an answer to this observation, and the prisoner directed his wife to ring the bell in order to call up the servant. When the servant came, he ordered him to send in the coachman; and when he came, the prisoner said, "Will, don't you remember that I set out of these iron gates at seven o'clock this morning?" "Yes, sir," said he. "And that was the first time of my going out; I have never been on the other side of the house this morning: you remember that I set out there this morning at seven o'clock, and asked for a horse to go to the wells?" "Yes, sir." Mr. Donellan said, "then you are my evidence." The servant answered, "Yes, sir." She did not recollect that the prisoner made any observation. The witness further said that Mr. Donellan received a letter from Sir William Wheeler, desiring the body might be opened, and that he showed her his answer to this letter. She told him he had better let it alone, and not to send such a letter as that; but she did not tell him the reason of her disliking it. He replied, that "it was necessary to send an answer, and he would send that." She afterwards attended before the coroner and the jury in order to be examined, when Mr. Donellan also was present; and she mentioned to the jury the circumstance of the prisoner's rinsing the bottles. Being returned to Lawford Hall, the prisoner said to his wife before the witness, that she had no occasion to have told the circumstance of his washing the bottles: she was only to answer such questions as were put to her; and that question had not been asked her. Being asked whether Mr. Donellan did not endeavour to account to her for her son's death, she answered, that when the things were removed in order to be put in the inner room, he said to the maid, "Here, take his stockings; they have been wet; he has caught cold, to be sure: and that

might occasion his death.” On that she examined the stockings, and there was no mark or appearance of their having been wet. In answer to some further questions, she denied that she or any of the family had ever declined eating of the same dishes that Sir Theodosius did. Mr. Donellan, indeed, had recommended to her not to drink out of the same cup, because he was affected with a certain disorder; nor to touch the bread he did, because there might be arsenic about his fingers, as he used that poison when he was fishing.

Catherine Amos corroborated the testimony of her mistress, and said, that she was called up stairs to the room where Sir Theodosius lay, at the time when the surgeons were engaged in opening the body, and she heard Mr. Donellan say “that there was nothing the matter; and that it was a blood-vessel which broke, which had occasioned the death of his brother-in-law.” About a fortnight afterwards Mr. Donellan brought her a still, which had been recently washed, and he desired her to put it into the oven to dry, in order that it might not rust.

Mr. Kerr, surgeon of Northampton, deposed, that he attended Sir Theodosius when he was at Mr. Jones’s. His disorder was so slight that he did not think it a subject of medicine at all. He ordered him some lotion to wash with, and dissuaded him from the use of medicine.

Dr. Rattray, of Coventry, deposed, that in consequence of an anonymous note which he received, and which desired him to bring Mr. Wilmer with him, in order to open the body of Sir Theodosius Boughton, they went together, and met Mr. Bucknell, Mr. Powell, and Mr. Snow, in Newbold churchyard. Mr. Bucknell opened the body. The witness then proceeded to describe the external appearances of the body, and its appearances in the dissecting. He was asked whether, as he had heard the evidence of Mr. Powell and Lady Boughton, he could, from that evidence, totally independent of the appearances he had described, form a judgment as to the cause of the death of Sir Theodosius. He answered, that, exclusive of these appearances, he was of opinion, from the symptoms that followed the taking of the draught, that it was poison, and the certain cause of his death. Being desired to smell at the bottle, and asked what was the noxious medicine in it, he said it was a distillation of laurel-leaves, called laurel-water. Here he entered into a detail of several experiments on animals, tending to show the instantaneous and mortal effects of the laurel-water. He knew nothing in medicine that corresponded in smell with that mixture,

which was like that of bitter almonds. He further said that the quantity of laurel-water contained in the bottle shown to him was sufficient to be the death of any human creature; and that the appearances of the body confirmed him in his opinion that the deceased was poisoned, so far as, upon the viewing a body so long after the death of the subject, one could be allowed to form a judgment upon such appearances.

Mr. Wilmer and Dr. Parsons, professor of anatomy at Oxford, confirmed the evidence of Dr. Rattray.

Dr. Ashe, of Birmingham, was of opinion, from the symptoms described, that the deceased died by poison. If the laurel-water were distilled strong enough to collect the essential oil, a tea-spoonful of it would destroy animal life in a few seconds; and he believed as strong a poison might be made from bitter almonds.

Mary Lymnes deposed, that she had been servant to Lady Boughton. Mr. Donellan was in the habit of distilling roses occasionally, and he kept his still in an apartment which was called his room, and in which he slept when Mrs. Donellan lay in.

Francis Amos, gardener to Lady Boughton, deposed, that he was with Sir Theodosius the whole time he was fishing, the night before he died. Mr. Donellan was not there. Two or three days after Sir Theodosius died, he brought him a still to clean; it was full of wet lime. He said he used the lime to kill fleas. The witness used to gather lavender for him to distil. In the garden there were laurels, bays, and laurustinus.

William Crofts, one of the coroner's jury, deposed, that on the examination of Lady Boughton, when she said that "Captain Donellan rinsed the bottle," he saw the captain catch her by the gown, and give her a twitch.

John Darbyshire deposed, that he had been a prisoner in Warwick jail for debt; that Mr. Donellan and he had a bed in the same room for a month or five weeks. He remembered to have had a conversation with him about Sir Theodosius being poisoned. On his asking him whether the body was poisoned or not, he said, "There was no doubt of it." The witness said, "For God's sake, captain, who could do it?" He answered, "It was amongst themselves; he had no hand in it." The witness asked, "Whom he meant by themselves?" He said, "Sir Theodosius himself, Lady Boughton, the footman, and the apothecary." The witness replied, "Sure, Sir Theodosius

could not do it himself!” He said he did not think he did—he could not believe he would. The witness answered, “the apothecary could hardly do it—he would lose a good patient; the footman could have no interest in it; and it was unnatural to suppose that Lady Boughton would do it.” He then said, “how covetous Lady Boughton was! she had received an anonymous letter the day after Sir Theodosius’s death, charging her plump with poisoning him; that she called him and read it to him, and she trembled; she desired he would not let his wife know of that letter, and asked him if he would give up his right to the personal estate, and to some estates of about two hundred pounds a year, belonging to the family.” The conversation was about a month after the captain came into the jail. At other times he said, “that it was impossible he could do a thing that never was in his power.”

This being the chief evidence, the prisoner in his defence pleaded a total ignorance of the fact, and several respectable characters bore testimony to his integrity. The jury, however, found him guilty, and he received sentence of death.

At seven o’clock on the next day, the 2nd of April, 1781, he was carried to the place of execution at Warwick, in a mourning-coach, followed by a hearse and the sheriff’s officers in deep mourning. As he went on he frequently put his head out of the coach, desiring the prayers of the people around him.

On his arrival at the fatal spot he alighted from the coach, and, ascending a few steps of the ladder, prayed for a considerable time, and then joined in the usual service with the greatest appearance of devotion: he next in an audible tone of voice addressed the spectators to this effect:—That, as he was then going to appear before God, to whom all deceit was known, he solemnly declared that he was innocent of the crime for which he was to suffer; that he had drawn up a vindication of himself, which he hoped the world would believe, for it was of more consequence to him to speak truth than falsehood, and he had no doubt but that time would reveal the many mysteries that had arisen in his trial.

After praying fervently some time he let his handkerchief fall—a signal agreed upon between him and the executioner—and was launched into eternity. When the body had hung the usual time it was put into a black coffin, and conveyed to the Town Hall to be dissected.

It is almost needless to inform our readers, that the poison with which the unfortunate Sir Theodosius was murdered was prussic acid, at that time only recently introduced and little known.



DAVID TYRIE.

EXECUTED FOR HIGH TREASON.

THE charge against this malefactor was that of sending intelligence of our naval affairs to France during the time of war. The prisoner was by birth a Scotchman, and having lived as a clerk in the service of a Mr. Powell for five years, he entered into business for himself, but was so far unsuccessful as to be made a bankrupt. He subsequently obtained a situation in the Navy Office, Portsmouth, where he was most traitorously guilty of the offence imputed to him.

He was tried at Winchester, by virtue of a special commission, on the 10th of August, 1782, when the charge alleged against him was supported by the following testimony.

Maria Harvey proved that a bundle of papers, the property of Tyrie, had been delivered to her by a Mrs. Askew, about the 13th of February; that the particular charge given with them had raised her curiosity to inquire into the contents of the bundle. She had been induced in consequence to open them, and thinking that the contents were of a dangerous nature, she carried them to a Mr. Page, in Westminster, who being of the same opinion, they were conveyed to the office of the secretary of state. The papers on being examined proved to be copies of papers called the "Navy Progresses;" being a list of all the ships of the navy, the situation and state of repair of each, &c. To these were added remarks on their destination, a description of the dock-yards at Portsmouth, Plymouth, and all the public, and even of several private, docks. They also contained a plan, by which it was proposed to furnish a person in France with intelligence on very moderate terms, when the importance of the object was considered; the particulars were, an express to be employed which would travel four hundred and fifty miles, to be paid at thirteen pence per mile; a monthly salary of five or six guineas to a person at each of the dock-yards; also a salary of two or three guineas to a man in the lesser yards. There were a number of other papers produced, all going to the purpose of giving information to the enemies.

Captain William James also proved that Tyrie had bargained with him to go to Boulogne to purchase wines. He had agreed to pay him fifteen guineas in money for the voyage, and to provide him with a letter of credit for fifty pounds to trade with. Upon his being about to sail, the prisoner delivered to him a packet of letters for the commandant of the port, and a passport for Boulogne or Cherbourg; but feeling that it was not proper to carry letters to the French coast in time of war, he consulted a Captain Harrison upon the propriety of doing so. The latter advised him against it, and they opened the packet: it contained five letters, which gave an account of the sailing of some frigates to intercept a fleet of French transports; a particular account of the departure of the East and West India fleets, together with the names and strength of their respective convoys, besides other important information of the same character. One of these letters, it appeared, was signed by the prisoner, in his own name, and the others in the name of Croix; and it was proved that the whole of them, as well as the papers produced by Mrs. Harvey, were in his handwriting.

The case having been left to the jury for their consideration, they immediately returned a verdict of guilty.

Mr. Justice Heath then passed upon the unhappy prisoner the sentence of the law, which was the same as that in the case of La Motte, which has very recently been alluded to, and which was subsequently carried out in its fullest terms.

The prisoner behaved during his trial with remarkable composure, and met his fate without any apparent emotion.

WILLIAM WYNNE RYLAND.

EXECUTED FOR FORGERY.

IN the execution of this unhappy man, the world may be said to have sustained a severe loss; for Mr. Ryland was an engraver of first-rate abilities, and of very considerable celebrity. He was a native of Wales, and his father having been patronised by the Welch baronet, Sir Watkin Williams Wynne, he was named after that individual. While yet young, he displayed considerable talent, and in the early part of his apprenticeship he engraved a head of his godfather in a style which betokened unusual taste and power. Having completed his term, he visited the French and Italian schools; and in the former obtained the honorary medal, which was presented to him in Paris. On his return to England, he introduced the admired art of engraving in imitation of chalk drawings; and soon after George III. had ascended the throne, he was appointed by him to the situation of his engraver, with a salary of two hundred pounds a year; and the queen added one hundred pounds a year more out of her privy purse, as a testimony of her approbation of his extraordinary talents.

A few years previous to the fatal act for which he suffered, Mr. Ryland entered into partnership with a Mr. Bryer, and they jointly opened a shop in Cornhill, where they carried on a very extensive trade in prints; the former still continuing to exercise his abilities in the art of engraving. But although their business was productive of great profit, several heavy losses, occurring almost at the same time, so deranged their pecuniary affairs, that a bankruptcy ensued.

Some years after this failure, Mr. Ryland, on his own separate account, opened a print-shop in the Strand, where he had every prospect of success; but being fond of a private life, he quitted his business, and retired to Pimlico, and thence to Knightsbridge, where, by one fatal act, he entirely ruined his reputation as a man; but his name, as an artist, will ever stand in the highest estimation. At this time Mr. Ryland had recovered his losses in trade, and was bequeathed shares in the Liverpool Water Works, which were then deemed to be worth ten thousand pounds: his business was worth two thousand pounds a year, and his stock was valued at ten thousand

pounds more. Such was his own statement of his property, in his defence on his trial; and it was supposed that, in order to engross the remaining shares in his Liverpool concern, he committed the forgery for which he suffered.

The forged instruments so exactly resembled the real bills that it was scarcely possible to know one from the other; but it being discovered that two bills of the same tenor and date were out, and consequently that one of them must prove a forgery, suspicion fell so strong on Ryland that he was induced to secrete himself, and a reward was offered for his apprehension. He went in disguise to Stepney, and took an obscure lodging at the hovel of one Richard Freeman, a cobbler, accompanied by Mrs. Ryland, the wretched partner of his misfortune, passing as Mr. and Mrs. Jackson; and there he continued for some time to evade the search after him, till one fatal step of the unfortunate woman who was watching over his safety caused his apprehension. She took, unconscious of danger, one of her husband's shoes to the cobbler to be mended, with the name of "Ryland" on the inside of it. This was fatal: the cobbler, in order to obtain the reward, delivered up his lodger.

When the officers of justice went to apprehend Ryland, they found him in a corner of the room on his knees, and heard a noise like a guggling in his throat, and upon approaching him they found that he had attempted suicide. He had a razor in his hand, and a basin stood before him; but the wound which he had inflicted did not prove mortal.

On the 20th July, 1783, he was arraigned at the bar of the Old Bailey, on an indictment charging him with feloniously forging and uttering a certain bill of exchange for 210*l.* sterling, purporting to be a bill drawn by the gentlemen of the factory at Fort George, Madras, on the Hon. East India Company, with intent to defraud the said Company, &c.

The solicitor to the East India Company, who prosecuted the prisoner, endeavoured, by several proofs, to bring home the charge to the accused; but, though forgery was manifest, yet it was so nice a point to distinguish the true bill from the false one, that it was, during the trial, supposed that they could not convict him, until Mr. Whatman, paper-manufacturer at Maidstone, appeared as a witness.

Mr. Whatman deposed that the paper of the forged bill was of his manufacture. He then explained to the Court his reasons for thinking so: the moulds, he said, in which the paper of the bill was made, were received by

him in February, 1780, but were not used before the December following: they were then worked with; and the first paper sent to London made by them was on the 27th of April, 1781: but he was convinced that the paper on which the bill was written was not sent before the 3d of May, 1782; and the way by which he knew it was, that there were defects in it, which exactly agreed with those in the sheets of paper which he produced, and which had been made by him at that period. It was further proved that the instruments bore date antecedent to the time of the paper being made; and this evidence being conclusive, in spite of the prisoner's arguments that his fortune being ample he had no reason to commit the offence imputed to him, he was found guilty.

He was executed at Tyburn on the 29th August, 1783, being the last person who suffered by the hands of the executioner at that place.

CHRISTOPHER TRUSTY, AND OTHERS.

EXECUTED FOR RETURNING FROM TRANSPORTATION.

THE year 1783 crowded the prisons of England to a degree never before known, though the offences of the prisoners were not distinguished by any particular enormity, and were generally devoid of that interest which entitles them to a place in our Calendar.

Of these numerous offenders, one hundred and fifty were proceeding to North America, on board the Swift transport, pursuant to their sentence, when they rose on the captain and crew, in the Downs, on the 30th of August, and, after confining them, got on shore at Deal, and all made their escape.

On this intelligence reaching London, Mr. Justice Blackborow ordered the constables attending at his office to search for the fugitives in the different places of iniquitous resort. Having armed themselves each with cutlasses, Redgrave, Season, and Isaacs, accordingly went to a house in Onslow-street, Saffron-hill, where, in one room, they found five returned transports, two of whom ran up stairs, and escaped by lowering themselves from a back window, by means of the bed-clothes: but the others, arming themselves, one with a poker, another with a shovel, and a third with a clasp-knife, having a blade about six inches long, as with one voice, cried out “Cut away! we shall be hanged, if taken; and we will die on the spot, rather than submit!” All expostulation proving fruitless, the officers attempted to seize them, upon which a dreadful conflict ensued, and many wounds were given and received, but at length the villains surrendered, and were conveyed before Mr. Blackborow for examination. Being asked by the magistrate by what means they had procured their liberty, they acknowledged that they had run the ship on shore; adding, that to recover their liberty was not difficult, as, in compassion of their sufferings, the captain permitted eighteen or twenty convicts to be upon deck at one time, unfettered: that, on the third day of being thus indulged, they (the prisoners), and others who were upon deck, liberated the rest; and, having confined the captain and crew, ran the vessel on the sands, and got on shore in the two long-boats: that no cruelty was exercised upon any part of the

crew, nor any property stolen from the vessel, except that some of the convicts obliged the sailors to change clothes with them: that they concealed themselves in hedges and ditches till night, and then took different routes: that they collected half-a-crown among themselves, which they gave to a countryman for conducting them to Rye, whence they walked up to London, where they had arrived but a very short time before they were apprehended.

In the September sessions, at the Old Bailey, Christopher Trusty, and twenty-three others, were capitally convicted of the offence of being found at large in this kingdom before the term for which they were ordered to be transported had expired, and received judgment of death.

Six of the ringleaders, viz. Charles Thomas, William Matthews, Thomas Millington, Christopher Trusty, David Hart, and Abraham Hyams, were selected for immediate execution, and were hanged on the 22d of September, sentence having been passed upon them on the 20th.

No fewer than fifty-four prisoners received sentence of death on the same day, in many of whose cases the extreme penalty of the law was subsequently inflicted.

SAMUEL HARRIS AND JOHN NORTH.

EXECUTED FOR MURDER.

AT the Admiralty sessions, held on the 11th of November, 1784, these men were tried for the wilful murder of John M'Nier, one of the mariners belonging to his majesty's cutter the Nimble, in the service of the Customs.

On the trial it appeared that on the night of the 30th of April last, it being clear moonlight, a vessel was observed at about two miles distance from Deal, hovering or standing in towards the shore, which was supposed to be a smuggler. Lieutenant Bray, commander of the Nimble, being acquainted with the fact, manned three boats, and proceeded to speak to her, and, coming within hail, told them his name and business, which was to board and search her. He was answered by many voices with imprecations, bidding him keep off; and a volley was instantly fired into his boat, whereby M'Nier, one of the crew, received a shot in his right breast, near the pap, of which he instantly died. Lieutenant Bray then proceeded to board the vessel, which proved to be the Juliet lugger, of Deal, (laden with about four hundred tubs or half-ankers of spirits,) but he received another volley: he however persisted, and boarded the lugger, when an engagement began, in which some men fell. North leaped overboard, but was taken, and Harris was found concealed in the hold. He said that he was only a passenger, and had been waiter at the assembly-house at Margate, where he was then going; but unluckily for him he had on a pair of trousers and a seaman's jacket, in the pockets of which were found several musket and pistol balls.

On this evidence the prisoners were found guilty; and on the morning of the 13th, two days after conviction, they were taken from the cells of Newgate, put into a cart, and conveyed to the gallows, which was erected on a platform at Execution Dock, and there executed.

CHARLES PRICE.

CHARGED WITH FORGERY.

THE subject of this narrative was born about the year 1730, in London—his father lived in Monmouth-street, and carried on the trade of a salesman in old clothes, and there he died, in the year 1752, of a broken heart, occasioned, it is said, by the bad conduct of his children.

In early life Price exhibited those traits of duplicity, which were manifested in his subsequent career, frequently defrauding his father, and disposing of the property, which he carried off to the Jews, disguised in his brother's clothes. By this means his brother was occasionally chastised in his place, while he escaped unpunished.

The following anecdote of his ingenuity is highly characteristic of his disposition. His father, tired of his tricks and knaveries, put him apprentice to a hosier in St. James's-street, but even here he was unable to restrain his appetite for fraud. Having managed, on the occasion of one of his visits to his home, to carry off a suit of clothes of elegant workmanship, he dressed himself with becoming taste, and, thus disguised, proceeded to his master's shop. Calling himself the Hon. Mr. Bolingbroke, he selected a variety of silk stockings of beautiful texture, undiscovered by his employer, and on quitting the house, he desired that the goods should be sent to him at Hanover House in an hour's time, when he promised that he would pay for them. Being perfectly aware that it would be his duty to carry home the goods, Price immediately stripped himself of his disguise, and, returning to his master's residence, was directed to convey the parcel to Hanover House. He soon came back declaring that Mr. Bolingbroke was out, and that he had left the stockings with the bill; but it being speedily ascertained that they had been lodged with a pawnbroker instead of the supposed customer, and his ingenious scheme being discovered, he was dismissed from his employment.

He had not been long at liberty, before he sailed for Holland, and there assuming the name of Johnson, he obtained a situation as clerk in the counting-house of a merchant, by means of a forged letter of introduction.

Having debauched his master's daughter, and carried off a considerable sum of money, he thought it prudent to return to England; but having there soon expended the proceeds of his fraud in dissipation, he was again thrown upon the world.

His wits, however, were not exhausted, nor did they ever slumber long. He determined upon a trial to establish a brewery, by obtaining a partner with money; and as a first step towards it, in the year 1775, he issued the following curious advertisement:—

“Wanted,—A partner of character, probity, and extensive acquaintance, upon a plan permanent and productive. Fifty per cent. without risk, may be obtained. It is not necessary he should have any knowledge of the business, which the advertiser possesses to its fullest extent; but he must possess a capital of between five hundred and one thousand pounds to purchase materials, with which, to the knowledge of the advertiser, a large fortune must be made in a very short time.

“Address to P. C., Cardigan Head, Charing Cross.

“P. S. None but principals, and those of liberal ideas, will be treated with.”

To this advertisement the famous comedian, Samuel Foote, paid attention. Eager to seize what he thought a golden opportunity, he advanced the sum of five hundred pounds for a brewery; we need not add, that the sum soon disappeared, and Foote retired from the concern, having gained nothing but experience and disappointment. Price, however, had the impudence to apply to him again, wishing him to unite in the baking trade; but the comedian archly replied, “As you have brewed, so you may bake; but I'll be cursed if ever you bake as you have brewed!”

After this unfortunate business, Mr. Price turned methodist preacher, and in this character defrauded several persons of large sums of money. Advertising in order to get gentlemen wives, he swindled a person of the name of Wigmore of fifty guineas, for which he was indicted; but having refunded a part, he effected his escape.

With astonishing impudence he afterwards again set up a brewery in Gray's Inn Lane; and after various frauds, he became a bankrupt in 1776. Ever fruitful in resources, he set out for Germany, where he engaged in some smuggling scheme, for which he was imprisoned; but he returned to England, having managed to pocket three hundred pounds in the course of

his trip. A brewery in Lambeth was then again tried, but ineffectually; and he was afterwards successively a begging-letter impostor and a lottery office keeper; and then he assumed the trade by which he qualified himself to become the subject of remark in the Newgate Calendar. Having leagued himself with a number of adventurers whose business consisted in making and selling forged notes, he entered into their schemes; but, fearful of being himself employed in the dangerous act of putting off the notes, in the year 1780, memorable for the riots in London, he assumed the name of Brant, and engaged a plain, simple, honest fellow, as a servant, whom he converted into the instrument of passing his forged notes without detection. He advertised for this servant, and conducted himself in a manner truly curious towards him. The young man, having answered the advertisement, heard nothing relative to it for about a week. One evening, however, just about dusk, a coachman was heard inquiring for him, saying there was a gentleman over the way in a coach who wanted to speak to him. On this the young fellow was called, and went to the coach, when he was desired to step in; and there he found an apparently old man, affecting the foreigner, seemingly very much afflicted with the gout, as he was completely wrapped up in flannel about the legs, and wearing a camlet surtout, buttoned over his chin, close up to his mouth; a large black patch over his left eye; and almost every part of his face so hid, that the young fellow could scarcely discover a feature except his nose, his right eye, and a part of that cheek. The young man's character was found to suit, and he was engaged; but his surprise may easily be imagined, when on his next seeing his employer, he found him a thin, genteel-looking young man.

The simplicity of the young man whom he had thus duped into his service was such, that Price found no difficulty whatever in negotiating through his means notes to the amount of about fifteen hundred pounds, which were principally expended in the purchase of lottery-tickets and shares; but the unfortunate wretch was eventually taken into custody, and was left by his employer to suffer all the fears likely to arise in his mind upon the contemplation of the supposed consequences of his crime. His innocence was, however, at length proved, and he was set at liberty, but not until he had suffered nearly twelve months' imprisonment. His late master in the mean time had retired from public life, and nothing more was heard of him until the year 1782, when, having exhausted the proceeds of his former villanies, he was compelled to come forth again to renew his

depredations on the public. He began by employing a lad named Power as the instrument of his minor proceedings, but emboldened by success, through the medium of his disguises, he succeeded occasionally in obtaining very large sums. The following anecdote is related of the success with which he carried on his trade. He had frequently been at the shop of a Mr. Roberts, grocer, in Oxford Street, where he now and then bought a few articles, and took many opportunities of showing his importance. Upon one occasion he called in a hackney-coach, disguised as an old man, and bought some few articles: a day or two afterwards he repeated his visit; and on a third day, when he knew Mr. Roberts was not in the way, went again, with his face so painted that he appeared to be diseased with the yellow-jandice. The shopman, to whom he enumerated his complaints, kindly informed him of a prescription for that disorder, by which his father had been cured of it. Price gladly accepted of the receipt, promising that if it succeeded, he would call again, and handsomely reward him for his civility: in conformity with which he entered the shop a few days afterwards, apparently perfectly free from the complaint, and acknowledged his great obligations to the shopman; after which he expatiated freely on his affluent circumstances, the short time he had to live, and the few relations he had to leave his property to, and made him a present of a ten-pound bank-note. It will naturally be conceived this was a forgery, but it had the desired effect with Price; for at the same time he said he wanted cash for another, which was a fifty-pound note. This the obliging and unsuspecting shopman got change for at an opposite neighbour's. The next day, during Mr. Roberts's absence, he called again, and entreated the lad to get small notes for five other notes of fifty pounds each: the lad, however, telling him his master was not at home, Price begged he would take them to his master's bankers', and there get them changed. This request was immediately complied with. The bankers, Messrs. Burchall and Co., complied with Mr. Roberts' supposed request, immediately changed them, and small notes were that day given to Price for them.

He practised his frauds with equal effect upon Mr. Spilsbury, the vender of a celebrated quack-medicine, with whom he traded in the name of Wilmot, and upon many others; and so great was his success, that in one day he negotiated sixty 10*l.* notes, and besides, exchanged fourteen 50*l.* for seven 100*l.* notes of the Bank of England.

In his last attempt on the Bank, which ended in his detection, he assumed the name of Palton, pretending he was an Irish linen factor, and employed two young men to circulate his notes, whilst he, still greatly disguised, kept back in obscurity.

By means of a pawnbroker, he was found out with great difficulty; and on his seizure he solemnly declared his innocence, and before the magistrate behaved with considerable insolence. His detection took place on the 14th of January, 1786; and notwithstanding his disguises, he was soon sworn to by more persons than one; and seeing no way to escape, he pretended, to his wife in particular, great penitence. The Bank was fully intent on his prosecution, and there appeared no doubt of his dying by the hands of the executioner; but even this he managed to avoid, for one evening he was found hanging against the post of his door, in the apartment allotted him in Tothillfields' Bridewell. In this situation he was discovered by the keeper of the prison, who cut him down quite dead, and found in his bosom three letters; in one of which, addressed to the directors of the Bank, he confessed everything relative to the forgery, and the manner of circulating the notes; another, addressed to his wife, was written in a most affecting style; and in the third, directed to the keeper, he thanked him for the very humane treatment he had experienced during his confinement.

A coroner's jury was summoned, as usual in such cases, and returned a verdict of "self-murder;" in consequence of which his body was thrown into the ground in Tothillfields, and a stake driven through it.

In a box belonging to Price were found, after his death, two artificial noses, very curiously executed, in imitation of nature. These, it is obvious, he occasionally wore as a part of the various disguises by which he had been enabled so long to elude the hand of justice. The counterfeit plates were found buried in a field near Tottenham-court Road, the turf being replaced on the spot, and, with the rolling-press, and other materials found at his lodgings, were ordered by Sir Sampson Wright, the presiding magistrate, to be destroyed.

His wife, who had been confined with him as an accomplice, and by whom he had a family of eight children, was ordered to be discharged immediately after his burial.

HENRY STERNE, *alias* GENTLEMAN HARRY.

CONVICTED OF STEALING THE DUKE OF BEAUFORT'S "GEORGE."

THIS offender was one of the class called "gentlemen pickpockets." Being a fellow of good address, and of tolerable education, he managed by some means to intrude himself into decent society, where he found it easy to carry on his schemes of depredation.

He was indicted on the 12th of September, 1787, for robbing his Grace the Duke of Beaufort of his "George," meaning the star of the order of the garter, on the 4th of June previous, which was the King's birthday.

From the evidence of his grace, it appeared that he was quitting his majesty's levee on the day in question, followed by his servants, his "George" being pendent from his neck by the ribbon; when, on his reaching the corner of St. James's-street, he found himself suddenly surrounded by a great crowd of people, who pushed him about. He did not at first understand the meaning of it, when presently a thought struck him that the object was to rob him, and he found that his "George" was gone. He called for his servants, who directly came up, and his grace pointed out a man in black as the thief. He was searched, however, but nothing found; and then the prisoner being seized, the ornament was discovered in his pocket.

The prisoner denied the charge imputed to him, and hoped that the jury would not suffer any reports which they had heard of his character to operate to his prejudice; but he was found guilty, and sentenced to be transported for seven years to Botany Bay.

SAMUEL BURT.

CONVICTED OF FORGERY.

MR. BURT, previously to the occurrence for which he was tried and executed, bore a most exemplary character. The particulars of the forgery of which he was guilty do not appear to have come out on the trial, when the prisoner pleaded guilty; but his object in its commission, as well as in refusing to deny his guilt, may be collected from the manner in which he addressed the Court on his being called up for judgment.

He said, "My lord,—I am too sensible of the crime I have committed, and for which I justly deserve to suffer, not to know that I have forfeited my life, and I wish to resign it into the hands of Him who gave it. To give my reasons for this would only satisfy an idle curiosity: no one can feel a more sensible, heartfelt satisfaction in the hopes of shortly passing into eternity, wherein, I trust, I shall meet with great felicity. I have no desire to live; and as the jury and court in my trial thought proper to recommend me to mercy, if his majesty should in consequence thereof grant me a reprieve, I here vow in the face of Heaven, that I will put an end to my own existence as soon as I can. It is death that I wish for, because nothing but death can extricate me from the troubles in which my follies have involved me."

Sentence was then passed in due form, but we do not find any entry of its having been carried out; and it is therefore very likely that the recommendation of the jury, alluded to by the prisoner, was attended to. The last notice which is taken of the case in the books is in the following terms:—"Samuel Burt, the unhappy youth who, under a depression of mind, abhorring the guilt of suicide, committed a forgery in order to suffer death by the law, was respited;" dated December, 1787.

From the observations made by the prisoner, it is pretty evident that he was labouring under a species of insanity, by which he was persuaded that he must suffer death. The following instances of a similar description are of a character far more melancholy, inasmuch as that in each the murder of a fellow-creature was the means adopted by the unhappy maniac, for the offenders can be considered in no other light, to secure his own death.

On the 4th of September, 1760, when North America was a British province, Mr. Robert Scull and several gentlemen were playing at billiards in Philadelphia, when Captain Bruluman, late of the Royal American regiment, came into the room, and, without the smallest provocation, levelled a loaded gun, which he had brought with him, and shot Mr. Scull through the body just after he had struck his ball.

It afterwards appeared that this desperate man had been brought up a silversmith; and that having entered the army, he became an officer in the Royal American regiment, but was broke on his being detected in counterfeiting or uttering base money. He then returned to Philadelphia, and growing insupportable to himself, and yet unwilling to put an end to his own life, he determined upon the commission of some crime, for which he would certainly be hanged by the law.

Having formed this design, he loaded his gun with a brace of balls, and asked his landlord to go shooting with him, intending to murder him before his return; but the landlord, fortunately for himself, being particularly engaged at home, escaped the danger. He then went out alone, and on the way met a man whom he was about to kill; but recollecting that there were no witnesses to prove him guilty, he suffered the man to pass.

He next proceeded to the tavern, where he drank some liquor; and hearing people playing at billiards in a room above that in which he sat, he went up stairs, and entered into conversation with the players in apparent good humour. In a little time he called the landlord, and desired him to hang up the gun. Mr. Scull having struck his antagonist's ball in one of the pockets, Bruluman said to him, "Sir, you are a good marksman; now I'll show you a fine stroke." He immediately took down his gun, levelled it, deliberately took aim at Mr. Scull (who imagined him in jest), and shot both the balls through his body. He then went up to the dying man, who was still sensible, and said to him, "Sir, I have no malice or ill will against you; I never saw you before; but I was determined to kill somebody that I might be hanged, and you happen to be the man; and I am very sorry for your misfortune." Mr. Scull had just time left in this world to send for his friends, and make his will. He forgave his murderer, and if it could be done, desired he might be pardoned; but Bruluman died on the gallows, exulting in his fate.

The same volume from which we make the above extract contains another case of the like nature, and, if possible, more extraordinary. It appears, however, that in this instance the judges of the unfortunate offender treated him as was most proper—as a maniac. The scene of this second murder is not mentioned.

It is stated that a youth of the name of David Williams, when about fifteen years of age, was one day against his wish detained from school by his stepfather, who greatly wanted his assistance on the farm. While thus employed, a log rolled on one of his legs, which injured it to such a degree that it became nearly useless; and by another accident he soon after hurt the other limb, so that he was rendered a cripple before he had attained the years of manhood.

At these misfortunes he continually repined; blamed his stepfather for keeping him that day from school, whereby he received his first injury; and, mortified at his appearance among his comrades, some of whom, he said, ridiculed him, he became weary of the world, and determined to terminate his misfortunes with his life.

For this end suicide and murder presented themselves. The first he thought the most eligible; but then it brought to his mind the horrors of appearing by his own violence before God, for which he feared he should not be pardoned; and therefore he was induced to abandon that for the latter, which he conceived would afford him a better excuse to the Almighty. He familiarised himself with this act of desperation by continually thinking of it; so that in time it became a pleasing subject of contemplation.

The idea of the grief which it must occasion his mother at times almost unbent his resolution; but then the idea of its proving a sweet revenge on his stepfather bore down every other consideration. Thus determined, the next step of this unhappy youth was to select a proper subject on whom the deed should be committed. A grown person or a child was the question. The former, he concluded, must be under sin and guilt; therefore by sudden death and thus unprepared, his damnation might be chargeable to him, and he be doubly guilty: the latter being innocent, he might avoid that charge, and he therefore resolved upon murdering some child.

Now the particular object for this horrid purpose was the next consideration; but he confessed that, though he thought of it more than six

months, yet none occurred until within five minutes of his committing his long-determined and bloody deed.

All the morning of the fatal day he said that he felt an unaccountable and far stronger desire to commit murder than before;—to use his own words, “something like hankering after fruit.”

At this unfortunate moment he chanced to spy a little boy, named Ira, the son of Mr. Lane, a neighbour, gathering plums; and finding the parents absent, he determined on seizing the opportunity and subject. He instantly took a gun, fired at, and slightly wounded the child in the side of the abdomen. Finding his victim yet alive, he limped to him, led him to the house, placed him upon a bed, and took a station at the door. The poor devoted little Ira had yet strength left to get from the bed, in order to see “whether his father was coming to cure him;” and Williams answered that his father would come by-and-by, and bade him go to bed again and lie still. Again the murderer listened for the dying groan of the boy; but finding his work incomplete, (horrid to relate!) he took an axe, went to the bed, looked upon the innocent child, and while it held up its little hands for help, the monster struck it on the head, and, by repeated blows, chopped it in pieces.

The wretched murderer was a youth of extraordinary mental talents for his years until the fatal gloom overspread him. After the horrid deed was done, he spoke of it with calmness, observing that, though he had often considered the grief he should bring on his own mother, it never occurred to him the distraction it must cause her who bore the murdered child.

His whole intent was to get himself hanged; and he supposed that the palliating circumstances under which the murder was committed would induce the Almighty to forgive him.

Upon his trial he was deemed to be insane, and was treated as such.

THOMAS GORDON, THE YOUNGER.

EXECUTED FOR MURDER.

MR. GORDON, the father of this wretched youth, was a surgeon and apothecary in London, from whence he removed his family into Northamptonshire not long before the fatal circumstance, which is about to be described, happened.

Mr. Gordon continued to practise in the country, and soon became envied and disliked from his being a stranger; and the consequence was, that frequent quarrels took place. At length a justice's warrant was obtained against the father on a pretended charge of assault, and the constable went to Mr. Gordon's house in order to apprehend him; but the wife and son told the officer he was not at home. The constable, however, knew that he was in the house and went away, but soon returned with some neighbours, and with them was about to make a forcible entry, when the mother and son opposed them, the latter being armed with a gun. The populace threw stones at the windows, when the mother, in an unlucky moment, bade her son fire: he did so, and killed the constable on the spot.

Both mother and son were tried, and found guilty of the murder; but Baron Thompson, who presided on the bench, observing that the mother was indicted as an accessory before the fact, and that the evidence proved that she was a principal, he had doubts whether she was properly convicted, and therefore reserved the case for the opinion of the twelve judges, who, upon solemn argument, confirmed the sentence against the son, but at the same time adjudged the indictment against the mother to be bad; and the poor youth received sentence of death. He was three times reprieved; from which he hoped, and the world flattered him with an opinion, that his pardon would ultimately follow; but an order at length came for his execution, and although he was in a state of insanity at the time, brought on by the cruel suspense in which he had been kept as to his fate, he was executed at Northampton on the 17th of August, 1789, aged only nineteen years.

THOMAS PHIPPS, ESQ. THE ELDER, AND THOMAS PHIPPS, THE YOUNGER.

EXECUTED FOR FORGERY.

THESE malefactors were father and son; and their final exit from this life was attended by circumstances of the most heart-rending and melancholy description. The father was a man of good property, and lived on his own estate at Llwyney Mapsis, in Shropshire; and he and his son were indicted for uttering a note of hand for twenty pounds, purporting to be that of Mr. Richard Coleman of Oswestry, knowing the same to have been forged.

It was proved on their trial that Mr. Coleman never had had any transactions with Mr. Phipps that required the signing of any note whatever; that about the Christmas before, Mr. Coleman was served with a copy of a writ at the suit of Mr. Phipps the elder, which action Mr. Coleman defended, and for want of further proceedings on the part of the plaintiff, a *non pros.* was signed, with two pounds three shillings costs of suit against Phipps. Upon this an affidavit was drawn up and sworn by Phipps the elder, Phipps the younger, and William Thomas, their clerk, for the purpose of moving the Court of Exchequer to set aside the judgment of *non pros.* and therein they swore that the cause of action was a note of the said Coleman's for twenty pounds, which was given as satisfaction for a trespass by him committed in carrying some hay off the land of one of Mr. Phipps the elder's tenants.

The Court thereupon granted a rule to show cause why the judgment should not be set aside; but Mr. Coleman insisting that the note was a forgery, the present prosecution was instituted against the father, son, and Thomas.

After a full hearing at the assizes at Shrewsbury, the father and son were pronounced "Guilty of uttering and publishing the note, knowing it to be forged;" and William Thomas was found "Not Guilty."

Though convicted on the fullest evidence, the unhappy men, until the morning of their execution, persisted in their innocence; but when about to leave the jail, young Phipps made the following confession: "It was I alone

who committed the forgery: my father is entirely innocent, and was ignorant of the note being forged when he published it.”

They were taken in a mourning-coach to the place of execution, accompanied by a clergyman and a friend who attended them daily after their condemnation.

On their way to the fatal tree the father said to the son, “Tommy, thou hast brought me to this shameful end, but I freely forgive thee;” to which the son made no reply. It being remarkably wet weather, their devotions were chiefly performed in the coach. When the awful moment arrived, Mr. Phipps said to his son, “You have brought me hither; do you lead the way!” which the youth immediately did, and in the most composed manner ascended the ladder to a temporary scaffold erected for the purpose of their execution, followed by his father.

When their devotions were finished, and the halters tied to the gallows, this most wretched father and son embraced each other, and in a few moments the scaffold fell, and they were hand-in-hand launched into eternity, September the 5th 1789, amid a vast concourse of pitying spectators.

The father was forty-eight, and the son just twenty years of age.

RENWICK WILLIAMS, COMMONLY CALLED “THE MONSTER.”

IMPRISONED FOR A BRUTAL AND WANTON ASSAULT ON A FEMALE.

THE mind is utterly at a loss to conceive any reason which could urge this unnatural brute to the commission of the crimes which upon his trial were distinctly proved against him. The offence of which he was found guilty was that of making a most wanton and unmanly attack upon an unprotected female, upon whom he inflicted a very severe wound, no provocation whatever having been offered to him. For a considerable time before the apprehension of this offender, a report was very generally prevalent that many young and respectable females had been privately and suddenly wounded in various parts of their person while walking through the streets, in some cases in open day, by a villain, who invariably succeeded in making his escape. Sometimes it was reported that the wound was given at a time when the man approached the lady for the purpose of presenting a nosegay to her; and it was said that, holding the flowers to her nose, he would stab her in the face with a sharp instrument which was concealed among their stems; while at others it was said that the wound was given in the thigh, behind, or in private parts of the person, so that occasionally the most serious injury was inflicted; and an almost universal terror prevailed.

At length a man named Renwick Williams was apprehended, who was distinctly sworn to by a Miss Porter, upon whom he had inflicted a wound; and at the sessions held on the 18th of July 1790, he was put on his trial at the Old Bailey for the offence alleged against him.

The indictment charged that the prisoner, on the 18th of January, with force and arms, in the parish of St. James, on the King's highway upon Anne Porter did make an assault; and that he did unlawfully, wilfully, and maliciously inflict upon her a certain wound, &c. against the peace. A second count charged the said Renwick Williams, that on the same day and year he did unlawfully, wilfully, and maliciously tear, spoil, cut, and deface

the garments and clothes—to wit, the cloak, gown, petticoat, and shift of the said Anne Porter, contrary to the statute, and against the peace, &c.

Miss Anne Porter deposed that she had been at St. James's to see the ball on the night of the 18th of January 1790, accompanied by her sister, Miss Sarah Porter, and another lady; that her father had appointed to meet them at twelve o'clock, the hour the ball generally breaks up; but that it ended at eleven, and she was therefore under the necessity either of staying where she was, until her father came, or of returning home at that time. Her father, she said, lived in St. James's-street, and kept a tavern and a cold bath there; and as it was not far, she agreed to go home with her party. As they proceeded up St. James's-street her sister appeared much agitated, and called to her to hasten home, which she and her company accordingly did. Her sister was the first to reach the hall-door, and as the witness turned the corner of the rails she received a blow on the right hip. She turned round and saw the prisoner stoop down: she had seen him before several times, on each of which he had followed close behind her, and used language so gross that the Court did not press on her to relate the particulars.

He did not immediately run away when he struck her, but looked on her face, and she thus had a perfect opportunity of observing him. She had no doubt, she said, of the prisoner being the man that wounded her. She supposed that the wound was inflicted with a sharp instrument, because her clothes were cut and she was wounded through them. The prisoner at that time escaped; but on the 13th of June, as she was walking in St. James's Park with her mother and two sisters, and a Mr. Coleman, she saw him again, and being agitated, her alarm was remarked, and the prisoner was eventually secured upon her pointing him out.

The evidence of Miss Sarah Porter, the sister of the last witness, was to the same effect. She stated that she was well acquainted with the prisoner's person, and that he had followed her, and talked to her in language the most shocking and obscene. She had seen him four or five different times. On that night when her sister was cut, she saw him standing near the bottom of St. James's-street, and spying her, he exclaimed, "O ho! are you there!" and immediately struck her a violent blow on the side of the head. She then, as well as she was able, being almost stunned, called to her sister to make haste, adding, "Don't you see the wretch behind us?" Upon coming to their own door, the prisoner rushed between them, and about the time he struck her sister, he also rent the witness's gown.

It was proved further, that the prisoner, on his being pointed out by Miss Porter, was followed by Mr. Coleman as far as South Molton-street, where he entered a house, but being followed, his address was demanded. He for some time declined complying with the request which was made, but eventually said that he lived at No. 52, Jermyn-street. Mr. Coleman, however, felt that he ought not to permit him to escape, and he therefore compelled him to accompany him to Miss Porter's house. He at first objected to doing so, on the ground of its being late, but force being used, he was obliged to obey. On his arrival, Miss Anne and Miss Sarah Porter fainted away, exclaiming, "Oh, my God! that is the wretch!" Upon which the prisoner said, "The young ladies' conduct is very strange. They don't take me for the monster who is advertised?" He was assured, however, that he was known to be that person; and he was then conveyed in custody before the magistrates, by whom he was committed for trial. It was also proved that the wound which had been inflicted on Miss Porter was of a very serious description. It was at the beginning, and for two or three inches, only skin deep, but then it suddenly sunk to the depth of four inches, gradually becoming more shallow towards the end. Its length from the hip downwards was nine or ten inches.

The prisoner, being called upon for his defence, begged the indulgence of the Court, in supplying the deficiency of his memory upon what he wished to state from a written paper. He accordingly read as follows:—

"He stood," he said, "an object equally demanding the attention and compassion of the Court. That, conscious of his innocence, he was ready to admit the justice of whatever sufferings he had hitherto undergone, arising from suspicion. He had the greatest confidence in the justice and liberality of an English jury; and hoped they would not suffer his fate to be decided by the popular prejudice raised against him. The hope of proving his innocence had hitherto sustained him.

"He professed himself the warm friend and admirer of that sex whose cause was now asserted; and concluded with solemnly declaring that the whole prosecution was founded on a dreadful mistake, which he had no doubt the evidence he was about to call would clear up to the satisfaction of the Court."

He then called two witnesses, who gave him a good character; and who stated that he was at work for his master, Mr. Mitchell, an artificial flower

maker, in Dover-street, Piccadilly, up to the hour of one o'clock on the night in question.

Mr. Justice Buller summed up the case to the jury. Having commented upon the evidence which had been produced, he said that he should reserve the case for the opinion of the twelve judges, for several reasons: first, because this was completely and perfectly a new case in itself; and secondly, because this was the first indictment of the kind that was ever tried. Therefore, although he himself entertained but little doubt upon the first point, yet, as the case was new, it would be right to have a solemn decision upon it. Upon the second point he owned that he entertained some doubts. This indictment was certainly the first of the kind that was ever drawn in this kingdom. It was founded upon the statute of the 6th George I. Upon this statute it must be proved that it was the intent of the party accused, not only to wound the body, but also cut, tear, and spoil the garment:—one part of this charge was quite clear, namely, that Miss Porter was wounded, and her clothes torn. The first question, therefore, for the consideration of the jury would be, whether this was done wilfully, and with intent to spoil the garment, as well as to wound the body. That was a fact for the jury to decide; and if they agreed upon this, then, whether the prisoner was the man who did it. It should be observed, that here there was a wound given, with an instrument that was not calculated solely for the purpose of affecting the body, such, for instance, as piercing or stabbing, by making a hole; but here was an actual cutting, and the wound was of a very considerable length, and so was the rent in the clothes. It was for the jury to decide whether, as both body and clothes were cut, he who intended the end did not also intend the means. He left it to the jury to say, upon the whole case, whether the prisoner was guilty or innocent.

The jury immediately, without hesitation, found the prisoner guilty.

Mr. Justice Buller then ordered the judgment in this case to be arrested, and the recognizances of the persons bound to prosecute to be respited until the December sessions.

At the commencement of the sessions at the Old Bailey, on the 10th of December 1790, Judge Ashurst addressed the prisoner nearly in the following terms:—"You have been capitally convicted, under the statute 6 George I., of maliciously tearing, cutting, spoiling, and defacing the garments of Anne Porter, on the 18th of January last. Judgment has been

arrested on two points,—one that the indictment is informal, the other that the statute does not reach the crime. Upon solemn consideration, the judges are of opinion that both the objections are well founded: but, although you are discharged from this indictment, yet you are within the purview of the common law. You are therefore to be remanded to be tried for a misdemeanor.”

He was accordingly, on the 13th of the same month, tried at Hicks’s Hall for the misdemeanor, in making an assault on Miss Anne Porter.

The trial lasted sixteen hours: there were three counts in the indictment; viz. for assaulting with intent to kill, for assaulting and wounding, and for a common assault.

The same witnesses were then called in support of the charge as appeared on the trial at the Old Bailey; and they gave very clear, correct, and circumstantial evidence, positively swearing to the person of the prisoner.

The prisoner produced two witnesses, Miss Amet and Mr. Mitchell, who attempted to prove an *alibi*, and the credit of their testimony was not impeached by any contradiction. The question therefore was, to which the jury would give credit; for the evidence on both sides was equally fair and unexceptionable, and the prisoner was acquitted.

The prisoner was again put to the bar at ten o’clock the next morning, and tried on the remaining indictments, on three of which he was found guilty; when the Court sentenced him to two years’ imprisonment in Newgate for each, and at the expiration of the time to find security for his good behaviour, himself in two hundred pounds, and two sureties in one hundred pounds each.

EDWARD LOWE AND WILLIAM JOBBINS.

EXECUTED FOR ARSON.

THESE prisoners were indicted at the Old Bailey sessions for feloniously setting fire to the house of Francis Gilding, in Aldersgate-street, on the 16th of May 1790.

From the evidence of the apprentice of Mr. Gilding, who was an accomplice in the wicked deed, it appeared that he was acquainted with the two prisoners, who were persons of bad character; and that it was determined among them that Mr. Gilding's house, which was the Red Lion Inn, should be set on fire, in order that they might plunder it. Accordingly at about twelve o'clock on the night of Saturday, 16th May, they met in the inn-yard, and Lowe got up into the hay-loft, and placing some combustibles there, set them alight with a pipe, which he was smoking. The fire soon blazed out, and the prisoners were very active in carrying off the goods, which they took away in a cart. The witness was in the act of carrying away a chest of drawers when he was stopped by Lucie, a constable, upon whose evidence he was convicted. He subsequently, however, on condition of his being pardoned, consented to give evidence against the prisoners. This testimony being confirmed by that of other witnesses, the jury returned a verdict of guilty against the prisoners, and on the 2nd November they were brought up to receive judgment. The learned Recorder then addressed them in the following terms: "I hardly know how to find words to express the abhorrence that I feel, or that the public entertains, of the crime of which you stand convicted.—The setting fire to houses in the dead of night, for the purpose of plunder, at the risk of the lives of the inhabitants of a great city, is a crime not yet to be met with upon the records of villany that have been brought forward in this court. As the crime is singular, so the punishment must be marked: I take it it will be so marked, and hope the example will be such, that, if there should be left any persons of the same wicked intentions, they will take example from your fate. As your crime is singular and novel, I hope it will be the only one brought into this court of the same description. You therefore must prepare to die, and consider yourselves as men without hope in this world.—And, give me leave to assure you, that it is my decided

opinion that, for an offence so very atrocious as yours, you can never expect salvation in the world to come, unless you will make some reparation to your injured country, and to God, whom you have offended, by a sincere confession of all the offences of which you have been guilty, and by a disclosure of the names of all persons who either have engaged, or are about to engage in crimes so detestable as that of which you stand convicted;—nothing therefore remains, but that I should pray to Almighty God, and it is now my earnest prayer to Him, that you may all obtain forgiveness and remission of your sins.”

On the morning of the 20th of November these incendiaries were brought out of Newgate, and placed on a high seat, which had been fixed in the cart to render them more conspicuous to the spectators. They were then conveyed, attended by the Sheriffs and other City officers, to Aldersgate-street, where a temporary gallows was erected opposite the spot where stood the house of Mr. Gilding, to which they had set fire. They arrived at the fatal tree about a quarter before nine o’clock, when Mr. Villette, the Ordinary, went into the cart, and prayed with them for about twenty minutes, after which they were turned off. They both confessed to Mr. Villette the facts for which they had so justly suffered.

Jobbins had been educated at St. Paul’s school, was bred a surgeon, and was only nineteen years of age when he suffered. Lowe was about twenty-three years of age.

A boy named Mead was on the 31st August in the ensuing year executed for a similar offence in firing the house of his master, Mr. Walter Cavardine, a publican, in Red Lion-street.

JOSEPH WOOD AND THOMAS UNDERWOOD,

EXECUTED FOR ROBBERY.

THE whole parties in this case may be literally called children, the malefactors being but fourteen years of age each; and the prosecutor no more than twelve!

Though of this tender age, yet were they convicted as old and daring depredators. So often had they already been arraigned at that bar, where they were condemned, that the judge declared, notwithstanding their appearance, (they were short, dirty, ill-visaged boys,) it was necessary, for the public safety, to cut them off, in order that other boys might learn, that, inured to wickedness, their tender age would not save them from an ignominious fate.

The crime for which they suffered was committed with every circumstance of barbarity. They forcibly took away a bundle, containing a jacket, shirt, and waistcoat, from a little boy, and then fell upon him, and would probably have murdered him, had they not been secured. They had long belonged to a most desperate gang of pickpockets and footpads; but so hardened and obstinate were they, that they would not impeach their companions, though the hopes of mercy were held out to them, on making a confession, so that the villains might have been apprehended.

They were executed at Newgate, July 6th, 1791, apparently insensible of their dreadful situation.

WILLIAM GADESBY,

EXECUTED FOR ROBBERY.

IN recording the case of this culprit, a Scotch newspaper says, “He was one of the most notorious villains that has figured in the line of roguery in this country for many years; and though only twenty-eight years of age, his criminal exploits appear, both in variety and number, to equal, if not to exceed, the achievements of the most dextrous and grey-headed offender.”

As this fellow lived, so he determined to die—with notoriety.

He was brought to the gallows at Edinburgh, February the 20th, 1791, dressed in a suit of white cloth, trimmed with black. The awful ceremony, the dreadful apparatus of death, the surrounding multitude of spectators, appeared not to shake his frame, nor to agitate his mind. He mounted the platform of death with a firm step, and stood with great composure till the apparatus was adjusted; and then, in a collected manner, and in an audible voice, gave a brief account of his life.

He said that the first robbery he committed was in a stationer’s shop, where he purloined a pocket-book. The success of this childish theft encouraged him to commit others: and in a short time he gave himself wholly up to thieving, never letting an opportunity slip of possessing himself of money or goods, by fraud or force, until the day he was committed to jail. He said that he often escaped in hackney-chairs, and advised the officer on guard at the Castle to search all such vehicles.

He declared most solemnly that three miserable men, who had been executed two years before at the place where he then stood, of the names of Falconer, Bruce, and Dick, were innocent, for that he himself had committed the robberies for which they were condemned!

With exultation he continued to say—that the sums he had acquired by thieving and cheating did not amount to less than two thousand pounds, besides the fortune of an unhappy woman whom he seduced and ruined. It was high time to stop the monster’s speech, and the platform was therefore dropped, while yet he was exulting in his sins!

“Scotland,” says the paper from which we extract this unparalleled case, “seems to be in an improving state: the following ingenious contrivance was lately practised at Glasgow:—While a merchant in King-street was counting some money and bank-notes on a counter, a staff or small rod, overlaid with birdlime, was suddenly thrust in at the door, which having touched the notes, two of them were thereby carried off; and, before the merchant could pursue, the ingenious actor had made his escape.”

THE BIRMINGHAM RIOTS.

THESE riots were of a nature very similar to those which broke out in London in the year 1780. The outbreak appears to have been occasioned by no immediate cause, but rather by a general feeling of discontent which pervaded the minds of the people in this great manufacturing town, aided by the celebration of the anniversary of the French Revolution, and a seditious hand-bill, which had been previously circulated.

The riot was commenced by an attack being made upon a tavern, in Temple-lane, in which eighty or ninety persons had sat down to a dinner provided on Thursday, the 14th July 1791, in order to celebrate the event referred to, when, notwithstanding the personal interference of the magistrates, the windows in front of the house were demolished, and many of the company were assaulted. The popular anger being thus excited, the mob proceeded to destroy Dr. Priestley's meeting-house, and the old meeting-house, the first of which they set on fire, while they contented themselves with burning the furniture of the latter in the burial-ground. Dr. Priestley's house at Fair Hill, together with his valuable collection of apparatus for philosophical experiments, was also destroyed, and the mob then dispersed for the night. On the next morning, however, they again assembled, and being unopposed by any civil or military force, they proceeded to the commission of new outrages. Many were armed with bludgeons and weapons of offence, and shouting "Church and King," they attacked the houses of all who were obnoxious to them, or opposed to the principles which they professed. The mansion of Mr. John Ryland, at Easy Hill, was the first object to which they directed their fury, but many of them having got into the cellars, got so drunk with the wine which they found there, as to be unable to effect their escape, while their associates without, unmindful of their safety, set fire to the house, and they were buried beneath its ruins.

Bordesley Hall, the residence of John Taylor, Esq., shared a similar fate, the mob refusing to listen to any proposition to induce them to retire; and on the same night the house of Mr. Hutton in the town was completely stripped. A number of special constables were in the mean time sworn in, and attacked the mob with some determination; but being far inferior in

numbers, and quite undisciplined, they were compelled to retire. Saturday only dawned to exhibit fresh ravages; Mr. Hutton's house at Washwood Heath, three miles from the town, Mr. Humphery's mansion at Spark Brook, Mr. W. Russell's house at Shewell Green, Mr. T. Hawkes's house at Moseley Wake Green, and Moseley Hall, the seat of the Dowager Countess of Carhampton, were in turn attacked, and were all in flames at the same time. Business was brought to a stand, and no military force arriving, the mob continued their acts of lawless atrocity undisturbed. At night many of them levied contributions from the inhabitants of the town of meat and money, and on the following day they pursued the same course in the outskirts in reference to all persons they met. The Sabbath even did not restrain them in their diabolical proceedings, for on that day they burned two dissenting meeting-houses, and the ministers' dwellings, situated at about six miles from Birmingham.

At night, soon after ten o'clock, three troops of the 15th Light Dragoons arrived amid the acclamations of the inhabitants, whose hopes and fears had been depicted through the day in every countenance, as reports of the near approach of the soldiery were spread and contradicted. The town was immediately illuminated, and before morning every thing was tolerably quiet; but the rioters were still continuing their depredations in the country. They exhausted the cellars at each place, and received various sums of money to prevent their proceeding to further violence.

They were in great force at the time the troops arrived, of which they no sooner had intimation than they began to slink off in small parties; and the peasantry, taking courage, put the rest to flight in various directions.

On Monday the town appeared in perfect security, but as much crowded as during the three preceding days, in viewing the military; the mob keeping at such a distance as to render all accounts of them dubious; at one time being said to be at Alcester, the next hour at Bromsgrove, &c.

On Tuesday there were flying rumours of depredations near Hagley, Hales Owen, &c.; and in the evening certain information was received that a party of rioters were then attacking Mr. Male's, of Belle Vue. A few of the Light Dragoons immediately went to his assistance; but the rioters had been previously overpowered by a body of people in that neighbourhood, and ten of them were confined at Hales Owen.

On Wednesday morning the country round, for ten miles, was scoured by the light horse, but not one rioter was to be met with, and all the manufactories were at work, as if no interruption had taken place. Three troops of the 11th Light Dragoons marched in this morning, and more soldiers soon after making their appearance, the whole neighbourhood was soon restored to tranquillity.

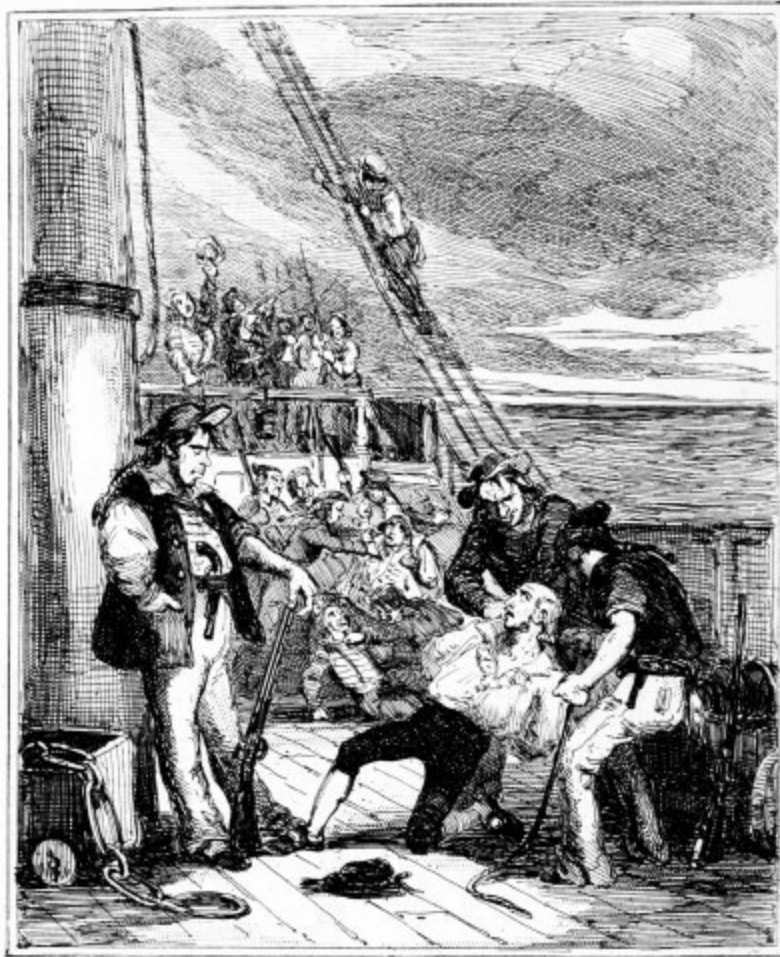
At the ensuing assizes held at Warwick on the 22d August, a great number of the persons concerned in these outrages were put upon their trial, before Mr. Baron Perryn. They were indicted under the Black Act, and although in several cases the jury appear to have acted in a manner somewhat extraordinary, in declaring the prisoners not guilty, many were convicted and received sentence of death. Two of them, however, were pardoned, but the remainder expiated their offences on the scaffold.

THE MUTINY OF THE BOUNTY.

THE case of the mutineers of the *Bounty* has always attracted considerable attention. The *Bounty* was an armed vessel, commanded by Capt. Bligh, which quitted England in the autumn of 1789, for the purpose of making discoveries, and of trading among the Southern Islands; and having visited the Friendly and the Otaheitan Islands in the South Pacific Ocean, in the month of May 1790, she set sail on her way back to England. On the 27th of that month they lost sight of land; and up to that time there had been nothing in the conduct of the crew or petty officers which could induce a supposition that any disorder was likely to take place. The mid watch was duly relieved; but at daybreak on the following morning the cabin of the captain was forcibly entered by the officer of the watch, Fletcher Christian, who held the rank of master's mate, and who had previously been considered a good and faithful seaman, aided by three others, who dragged their commander on deck, threatening instant death if he dared to speak. The captain exerted all his eloquence to bring back the mutineers to their duty, but his exertions were of no avail, and he soon afterwards found the peaceful part of the crew and the officers brought upon deck and pinioned. The mutineers told them that they need hope for no escape by employing violence, for that all the muskets were charged; and they corroborated their assertions by exhibiting an armed body of their own number with muskets and fixed bayonets. The captain at once perceived that he was in the power of his men; and his doubts as to his fate were speedily put an end to by his seeing the long-boat lowered over the side, which he and his fellows, to the number of eighteen, were commanded to enter, no other nourishment being afforded them but about one hundred and forty pounds of bread, thirty pounds of meat, a gallon and a half of rum, an equal quantity of wine, and a few gallons of water. A compass and quadrant were seized by the captain as his unfortunate companions were entering the boat; and as soon as he had taken his place, the mutineers gave three cheers, and stood away, as they said, for Otaheite.

Captain Bligh on taking muster of the remains of his crew left to him, found that he had in his boat the boatswain, the carpenter, the gunner, the surgeon's-mate, two midshipmen, and one master's-mate, with Mr. Nelson

the botanist, and a few inferior officers. After a short consultation, it was deemed expedient to put back to the Friendly Islands; and having reached the coast of one of them, they landed, in hopes of improving their stock of provisions. For several days they continued unmolested; but at length, on the 30th of April, they were attacked by the natives with such violence



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that one man was killed, and several wounded. They were, therefore, compelled immediately to sheer off; and it became now the subject of inquiry and deliberation as to what should be their next place of destination. Otaheite was proposed, as it was supposed that the natives would be friendly to them; but the apprehension of falling in with the *Bounty*

determined them against this course; and with one assent they made up their minds to shape their course for Timor, a settlement belonging to the Dutch.

To effect this enterprise they were compelled to calculate the distance with a view to the apportionment of their provisions; and having discovered that it was near four thousand miles, they agreed that their rations should not exceed an ounce of bread and a gill of water a day for each man. Upon this scanty allowance they subsisted without any other nourishment until the 6th of June, when they made the coast of New Holland, and collected a few shell-fish; and with this small relief they held on their way to Timor, which they reached on the 12th, after being forty-six days in a crazy open boat, so confined in its dimensions as to prevent any of them lying down for repose, and without the least awning to protect them from the rain, which fell almost incessantly for forty days; a heavy sea and squally weather augmenting their misery during a considerable part of the time.

On their reaching Timor, they received every assistance from the governor; and having remained until the 20th of August to recruit their strength, they procured a vessel, in which they took their passage to Batavia. They reached that port on the 2nd of October, and from thence they immediately embarked for the Cape of Good Hope. Captain Bligh quitted the Cape in the month of December, and having reached England, he communicated the particulars of the mutiny to the Admiralty, and H. M. S. the Pandora was immediately despatched in search of the mutineers.

It was not until the 25th of April 1792, that despatches were received from Captain Edwards, stating that on the Pandora appearing off Otaheite, two men swam from the shore, and solicited to be taken on board. They proved to be two of the Bounty's mutineers, and gave intelligence where fourteen of their companions were concealed on the island. A part of the Pandora's crew were sent in search of them; and after some resistance they were taken and brought prisoners on board.

It then turned out that Christian had taken upon himself the command of the Bounty immediately on the captain's having quitted her, and that his crew consisted of twenty-five men. When the Pandora arrived, Christian, with the other nine mutineers, had previously sailed in the Bounty to some remote island, and every exertion to discover their retreat proved ineffectual. On her return home, the Pandora struck upon a reef of rocks in Endeavour Straits. Her crew escaped from their perilous situation to an

island in the Straits, except thirty-three men, and three of the Bounty's people, who perished by the boat oversetting. Captain Edwards was reduced to the necessity of sending one of his officers and some seamen in a small boat to Timor, which they were fourteen days in reaching, and where a vessel was procured, which proceeded to the assistance of the remainder of the crew.

So much had the mutineers of the Bounty conformed to the custom and manners of Otaheite, that when two men of Christian's crew swam off to the Pandora, they were so tattooed, and exhibited so many other characteristic stains, that on being first received on board, the Pandora's people took them for natives of the island. The names of the above metamorphosed mutineers were, Peter Heywood, a midshipman, and Joseph Coleman, the armourer; the latter of whom, Captain Bligh observes, "was detained by Christian contrary to his inclination."

On the 12th of September a court-martial commenced on board the Duke, in Portsmouth harbour, on Joseph Coleman, Charles Norman, Thomas Mackintosh, Peter Heywood, Isaac Morris, John Millward, William Muspratt, Thomas Birkett, Thomas Ellison, and Michael Burn. The evidence for the prosecution closed on Friday night, the 14th, and the Court indulged the prisoners till Monday to give in their defence; and on Tuesday took the whole into their consideration, when they were pleased to pass sentence of death on Heywood, Morris, Millward, Muspratt, Birkett, and Ellison, the two first of whom the Court recommended to mercy. Coleman, Norman, Mackintosh, and Burn were acquitted, and discharged.

On the 29th of October, Millward, Birkett, and Ellison, were executed on board the Brunswick: Heywood and Morris were pardoned, in compliance with the recommendation of the Court.

**NATHANIEL LILLEY, JAMES MARTIN, MARY BRIANT,
WILLIAM ALLEN, AND JOHN BUTCHER.**

CONVICTED OF RETURNING FROM TRANSPORTATION.

THE offence with which these prisoners stood charged was that of returning from transportation at a period earlier than that to which by their sentences they were required to remain in the penal settlement to which they had been sent.

Their trial took place on the 8th of July 1792, and the following facts were proved. It appeared that the prisoners had all been tried in England, and sentenced to undergo various terms of transportation, and in pursuance of their sentence were sent to Botany Bay. The small settlement which then existed would be hardly recognised in the flourishing colony which, through the employment of English wealth and enterprise, now rears its head upon the shores of New Holland; and it is not surprising that these unhappy persons should have been anxious to escape from a place where slavery and misery alone awaited them. For this purpose they formed a species of society or club among themselves, and having collected together what money they possessed, they entrusted one of their number, named Briant, the husband of the prisoner Mary Briant, to apply to Captain Schmidt, the commander of a Dutch vessel, who had recently before brought a cargo of provisions to the colony, to induce him to sell them one of his boats, a sail, a quadrant, and the necessary quantity of provisions for the voyage which they intended to make. The enterprise was dangerous to both parties, for it was a felony to aid the escape of convicts; but the Dutchman tempted by the bribe, which was considerable, let them have an old six-oared boat, with a lug-sail, and about 100 lbs. of rice, and 14 lbs. of pork, with which, together with about 200 lbs. of flour, which they purchased of a baker in the colony, they determined to set sail on their expedition. Having got all their provisions on board, they started on the night of the 28th March 1791; the party consisting of Briant and his wife and two children, of the ages of one and three years, the three male prisoners, and also Samuel Bird, James Cox, and William Martin; the point

of their destination being Timor, which by the nearest run is distant about 1300 miles from the place of their embarkation.

They were forced to keep along the coast, as much as they could, for the convenience of procuring supplies of fresh water; and on these occasions, and when the weather was extremely tempestuous, they would sometimes sleep on shore, hauling their boat on the land. The savage natives, wherever they put on shore, came down in numbers to murder them; and they now found two old muskets, and a small quantity of powder which Captain Schmidt had given them, particularly serviceable in firing over the heads of these multitudes, on which they ran off with great precipitation; but they were always forced to keep a strict watch. In lat. 26. 27. they discovered a small uninhabited island, where were plenty of turtles, which proved a great relief to them; but they were very near being lost in landing. On this island they dried as much turtle as they could carry, which lasted them ten days.

At length, after suffering almost innumerable hardships and dangers, they landed at Cupang, on the island of Timor, a Dutch settlement, on 6th June 1791, having sailed considerably more than five thousand miles, and been ten weeks all but one day in performing this voyage. At Cupang they informed the governor that they had belonged to an English ship, which was wrecked on her passage to New South Wales, and he treated them with great humanity; but at length overhearing a conversation among them, he discovered that they were convicts, who had escaped from the colony in New South Wales.

On the 29th of August 1791, the Pandora, of twenty guns, Captain Edwards, was wrecked on a reef of rocks near New South Wales. The captain, and those of the crew who were saved, got to Cupang in their boats; when the governor gave the captain an account of the eleven persons he had there, and of the conversation he had overheard.

The captain took them with him to Batavia, where William Briant and his eldest child died. The rest were put on board a Dutch ship, in which Captain Edwards sailed with them, for the Cape of Good Hope. On their passage to the Cape, James Cox fell overboard and was drowned, and Samuel Bird and William Martin died. At the Cape, Captain Edwards delivered the survivors to Captain Parker, of the Gorgon, and they sailed with him for England; and in their passage home, the younger child of Mary Briant died.

On their trials the prisoners described the hardships which they had undergone in the most piteous manner; and the Court, in consideration of their sufferings, ordered them to remain on their former sentence, until they should be discharged by the course of law.

**THE REV. RICHARD BURGH, JOHN CUMMINGS,
THOMAS TOWNLEY M'CAN, ESQRS., JAMES DAVIS,
AND JOHN BOURNE.**

CONVICTED OF A CONSPIRACY TO BURN THE KING'S BENCH PRISON.

THE prisoner Burgh, who is first named in this case, was the private chaplain, and a relation to the speaker of the Irish House of Commons; the other prisoners were persons who were entitled to be ranked as gentlemen, and it appears that they were all confined in the King's Bench Prison for debt.

On the trial of the conspirators, the Attorney-general said he flattered himself it would be found that he had done no more than his duty in bringing the several defendants before the Court. The offence with which they were charged was of the utmost importance to the peace and safety of the capital; for it not only had for its object the demolition of the King's Bench Prison, but involved the burning of other houses, bloodshed, and murder. He lamented that five persons, all of education and respectable families, should, by their folly and imprudence, to call it by the softest name, bring themselves into such an unfortunate situation; one was a reverend divine, another an officer in the army, another had been in the profession of the law, and the others were of respectable parents, and, as he understood, set out in the world with fair prospects of being honourable and useful members of the community. The Attorney-general further said, that this case was pregnant with the most alarming circumstances, which would be better detailed by the witnesses than described by him.

Edward Webb was then examined, and he said he knew all the prisoners; he was introduced into a society, called "The Convivials," held in a room in the King's Bench Prison, of which the prisoners were members. M'Can expressed himself very freely upon the subject of Lord Rawdon's bill, then pending, respecting insolvent debtors, and said if that bill did not pass into a law, he and others were determined to do something to liberate themselves, and that there was a scheme in agitation for that purpose, but that the parties were sworn to secrecy, and therefore he could not divulge it; the witness

said he might safely communicate the business to him; and the prisoners, Cummings and Davis, being present, M'Can said, the plan in which he and the other prisoners were concerned, was to effect their own enlargement by demolishing the walls of the prison, as they were determined not to be confined within those walls for debt; the execution of this plan would, however, depend upon the rejection of Lord Rawdon's bill: after they had effected their escape by setting fire to the prison, they would then go to the Fleet Prison, and liberate the prisoners; after which they should proceed to the houses of Lords Thurlow and Kenyon, which they would destroy. Davis said he should not hesitate, himself, to blow out the brains of those noble lords; the same witness saw the other defendants, who conversed upon the subject; and it was proposed to procure some sailors to assist them. This scheme was, however, defeated by the vigilance of the marshal, who sent for the guards and had the prison searched. The witness soon afterwards saw the prisoners M'Can, Cummings and Davis, who said that they were defeated in their former scheme, and that they were determined to put some other plot into execution; and, on the next day, Cummings, who was nicknamed "the Captain," said that the best plan would be "to blow the d—d walls up." He then conducted the witness to the bake-house, and pointed to a place where the drain was opened, saying, that he meant to introduce a box into it, containing 50lbs. weight of gunpowder; and that he had planned how the tubes, by which the fire should be conveyed to it, should run. He then asked the witness to get the box made; and the plan having been communicated to M'Can and Davis, they declared that it would be "glorious," and that they would lose their lives in the attempt. Bourne was then acquainted with the plot, as he had some gunpowder, and he acquiesced in it; and it was determined that, as he had not got enough powder, a motion should be made at the next meeting of the Convivials for a subscription of five shillings each to buy more, under the pretence that it was to fee counsel, to know whether the marshal had any right to enter their rooms when he pleased. It was then further agreed that the powder should be deposited in a hole in the floor of Burgh's room, which was looked upon as the best place of concealment; and that on the day of the "explosion," M'Can and Bourne were to get up a sham fencing-match, in order to give all the prisoners an opportunity of being collected together and making their escape in a body. The day fixed upon for the completion of the scheme was Sunday, and it was determined that seven o'clock should be the hour of the

train being fired, because there were generally a great number of strangers in the prison then; but the whole affair being in the mean time communicated to the marshal, the plot was put an end to, by the apprehension of the prisoners, and the seizure of their powder.

Other witnesses confirmed this testimony, and the prisoners were found guilty.

On Tuesday, 12th February 1793, they were placed at the bar to receive judgment, and were severally sentenced to three years' imprisonment in different jails.

LAURENCE JONES,

INDICTED FOR ROBBERY.

THIS unfortunate man was a native of London, where he received a good education, and moved in genteel society, but having been guilty of some fraudulent practices, he was discharged from the situation which he held. Being now driven to “seek his fortune,” he determined to commence swindler, and having a considerable sum of money left him by a relation, he took a very handsome house in St. James’s, had it elegantly furnished, and kept his carriage and servants.

During his abode here he defrauded Mr. Hudson, a silversmith, of plate, to the value of near three thousand pounds; Mr. Kempton, a mercer, of silks, and other goods, to a large amount; and Mr. Bailey, a watchmaker and jeweller, of a gold repeater, and other goods, to the value of three hundred pounds.

The time of payment coming on, and suspicion being entertained of his honesty, he thought it time to decamp, and he effected his purpose just in time to avoid a warrant out against him.

After this he lived privately for some time, that suspicion might die away before he again began his fraudulent practices, which he carried on with his usual success, till the occurrence of the affair for which he was condemned; the particulars of which are as follow:—

Mr. Campbell, the collecting clerk to Vere, Lucadou, and Co., bankers, in Lombard-street, in the course of his business called at a house in Hatton-garden for the purpose of demanding payment of a bill. No sooner had he knocked at the door than it was opened by a person, in appearance a gentleman, who desired him to walk into the counting-house, and, having entered, a man came behind him, and covered his head and face over with a thick cap, so that he could see nothing. He was then thrown on the floor, and wrapped in a green baize, in which condition he was bound hand and foot, and carried down stairs. His assailants now proceeded to rob him of his pocket-book, with bank-notes and bills to the amount of nine hundred pounds, and having secured the money, they took measures to prevent a

discovery before they could receive the money for the bills, &c. which they had stolen.

They first laid their victim flat on his back on a board, and chained him hand and foot, and then carried him down stairs into a back kitchen, where they chained him to the bars of a grate, threatening that if he made a noise they would blow his brains out. Then, after placing before him some bread, some ham, and some water, they left him.

In this condition he remained for about eight hours, not daring to make the least noise, expecting every moment to be murdered if he spoke: but Providence preserved him from this dreadful fate; for, hearing no more of them for so many hours, he at last had the courage to call out, and he at length succeeded in alarming a man who was at work in a house behind that in which he was confined. The fellow had the resolution to break open the door of the house from whence the noise proceeded, when, directed by the cry, he went down stairs, and there discovered the unfortunate Mr. Campbell almost expiring, and exhausted with struggling and crying out.

Jones was afterwards apprehended by Jealous and Kennedy, officers of Bow-street, at the King's Arms, in Bridge-street, Westminster, and on being seen by Mr. Campbell, he was immediately recognised by him as one of the men by whom he had been robbed.

Being committed to Newgate, he was afterwards tried, and found guilty, when he received sentence, and was ordered for execution on Wednesday, December 8, 1793, in Hatton-garden, near the house where he committed the robbery; but on the Saturday previous, about six o'clock in the morning, when the turnkey entered the cell to prepare him to hear the condemned sermon and to receive the sacrament, he found him dead. It appeared that he had made several attempts on his life before, but was prevented: and the manner in which he at last accomplished his purpose was very extraordinary: he had taken the knee-strings with which his fetters were supported, and tied them round his neck; then, tying the other end to the ring to which his chain was fastened, he placed his feet against the wall, and strangled himself. The coroner's jury pronounced a verdict of *Felo de se*.

In consequence of this verdict, the body was, on Wednesday morning, carried out of Newgate, extended upon a plank on the top of a cart, his face being covered with a cloth, and his clothes being upon his person, and in that condition, with a stake driven through his body, he was thrown into a

pit, which was dug at the end of Hatton-garden, at the brow of Holborn hill,
and buried.

ROBERT WATT AND DAVID DOWNIE.

CONVICTED OF HIGH TREASON.

WE are now arrived at an alarming period in the modern history of our country. Just engaged in the war with France, we were perplexed with disaffection at home, and threatened with invasion by our enemy. Confederate bodies of dissatisfied men were formed, from London to Edinburgh, and a systematic course of treason and correspondence was maintained until government stretched out its powerful arm to defeat their plans.

Watt and Downie were principals in the Scottish conspiracy, and their trial came on before the High Court of Justiciary, at Edinburgh, on the 3d of September 1794. Watt was first tried, when Mr. Anstruther stated the case on the part of the Crown. He began by observing, that such was the peculiar happiness of that country (Scotland), that they had been unacquainted with the law of treason for nearly half a century.

The laws of treason were now the same in England and Scotland, and the duty of the subjects of both kingdoms should be the same. Scotland, in this instance, had reaped much benefit by the Union, as her laws of treason, previous to that period, were much more severe. The act of Edward III. stated three distinct species of treason: 1. Compassing and imagining the death of the king; 2. Levying war against him; 3. Assisting his enemies. He would not trouble the Court or Jury with the two last: for the single species of treason charged in the present case was the compassing and imagining the death of the king; which was defined by the conceiving such a design; not the actual act, but the attempt to effect it. But the law which thus anxiously guarded the sovereign was equally favourable to the subject; for it did not affect him until that imagination was fully proved before “men of his condition.” An overt act of treason was the means used for effectuating the purpose of the mind: it was not necessary to prove a direct attempt to assassinate the king; for the crime was the intention, and the overt act the means used to effect it.

After explaining more fully the distinct species of treason which applied to the present case, Mr. Anstruther said that he trusted that if he could prove any design whereby the king's life was put in jeopardy, that would be considered an overt act. He should now state the facts, upon which these principles of law were to be founded. The present conspiracy was not that of a few inconsiderable individuals; it had risen indeed from small beginnings, from meetings for pretended reforms. It had been fostered by seditious correspondence, the distribution of libellous writings, and had at last risen to a height, which, but for the vigilance of the administration, might have deluged the country, from one end to the other, with blood. The proceedings of these societies, calling, or rather miscalling, themselves Friends of the People, were well known: their first intention was apparently to obtain reform; but this not answering their purpose, they proceeded to greater lengths. He meant to detail the general plans and designs formed among the seditious, and then to state how far the prisoners were implicated in them.

The first dawning of this daring plan was in a letter from Hardy, secretary to the London Corresponding Society; to Skirving, the secretary to the Friends of the People in Scotland. He wrote that, as their petitions had been unsuccessful, they must use separate and more effectual measures; and Skirving answered, and admitted the necessity of more effectual measures, and said that he foresaw the downfall of this government. Here also was the first notice of a Convention; a measure which it was no wonder they were fond of, when they saw its effects in a neighbouring kingdom (France). They meant not to petition Parliament, but to proceed in their own plan, and to supersede the existing government of the country: and, in that case, the king's life was put in danger.

Soon after, a Convention, a body unknown to the laws of this country, met; and in this there would have been little harm, had their views been peaceable; but their objects were avowedly unconstitutional, for their intention was to carry on their plans by force, and thus virtually to lay aside the prerogative of the king. This convention met, using all the terms and regulations adopted by the convention of another country. They meant not to apply to Parliament; for whenever that was mentioned, they proceeded to the order of the day. They resolved to oppose every act of Parliament which they deemed contrary to the spirit of the Constitution, and were determined to sit, until compelled to rise by a force superior to their own.

The Convention, indeed, was dispersed by the spirited conduct of a magistrate, (Provost Elder,) but another Convention was attempted to be called, who were to frame their own laws, and to be independent of the Legislature; or, as they said, independent of their plunderers, enemies, and oppressors, meaning the King, Lords, and Commons: their resolutions would prove that they meant to create a government of their own, to do away the authority of what they called hereditary senators, and packed majorities; all which proved the intention of putting the king's life in danger.

But what, it might be said, was all this to the prisoner at the bar? who, surprising as it might appear, about two years before wrote letters to Mr. Secretary Dundas, offering to give information as to certain designs of the Friends of the People. Those letters were answered by that honourable gentleman with that propriety which had ever marked his public conduct. The prisoner then corresponded with the Lord Advocate, but since September 1793, this correspondence had ceased. Previous to that period, the prisoner was not a member of the Society of Friends of the People, nor of the British Convention; but his accession since to its measures, and the calling of another Convention, could be substantiated. A Committee of Correspondence, of which the prisoner was a member, was instituted by a new Convention, whose object it was to carry into effect the views of the last British Convention, and to elect delegates to a new one. Mr. Watt attended this committee, and coincided in its measures, which were expressly to supersede the Legislature. The prisoner had moved for a Committee of Union; and another was appointed, called the Committee of Ways and Means; of both which he was a member. This last was a Secret Committee, kept no minutes, was permanent, and empowered to collect money to support "the great cause." Mr. Downie was appointed treasurer, and it was to be the medium through which all instructions and directions were to be given to all friends of the people throughout the kingdom, and was to procure information of the number of those that would spare no exertions to support the great cause. They corresponded with Hardy respecting the calling of a new Convention, which was to follow up the purposes of the old one; and, as the prisoner was present, he was in this way coupled with the British Convention.

Their next attempt was to debauch the minds of the soldiers, and to excite them to mutiny; for which purpose a paper was printed, and

circulated among a regiment of Fencibles then at Dalkeith. This paper, which was evidently seditious, was brought home to the prisoner, for the types from which it was printed were found in his house, and a copy traced from him into the hands of a soldier.

The next charge to be brought against the prisoner, and the committee of which he was a member, was a distinct and deliberate plan to overturn the existing government of the country. The plan proposed was this:—A fire was to be raised near the Excise-office (Edinburgh), which would require the attendance of the soldiers in the Castle, who were to be met there by a body of the friends of the people; another party of whom were to issue from the West Bow, to confine the soldiers between two fires, and cut off their retreat; the Castle was next to be attempted; the judges (particularly the Lord Justice Clerk) were to be seized; and all the public banks were to be secured. A proclamation was then to be issued, ordering all the farmers to bring in their grain to market as usual; and enjoining all country gentlemen to keep within their houses, or three miles from them, under penalty of death. Then an address was to be sent to his majesty, commanding him to put an end to the war, change the ministers, or take the consequences. Such was the plan of the Committee of Ways and Means, as proposed by the prisoner.

Previous to this, it should have been mentioned that all the friends of the people were to be armed; for which purpose, one Fairley was despatched round the country to levy contributions, and disperse seditious pamphlets; for which he received particular instructions from the prisoner. Reports were spread through the same channel that the Goldsmiths' Hall Association were arming, and that it was necessary for the friends of the people to arm also, for they would be butchered either by them or the French. It was proved that the prisoner gave orders to Robert Orrock to make four thousand pikes; and also to one Brown for the same purpose. These were to be used for completing the great plan; and Fairley's mission was to inform the country of these intended proceedings. Another representative body was also formed, called "collectors of sense and money," who were to have the distribution of the pikes, and to command the different parties.

Mr. Anstruther then recapitulated shortly the different heads, and concluded an elaborate and most clear and distinct pleading of more than two hours and a half, by requesting the jury to lay no farther stress on what he had said than it should be proved, as it was meant merely as a clue to the

evidence which should be brought before them. Witnesses were then called who spoke to the facts alluded to by the learned counsel, and who proved to the fullest extent the charge made against the prisoner.

The evidence for the Crown being closed,

Mr. W. Erskine, junior counsel for the prisoner, proceeded to open the defence. He said that he would rest his defence upon the correspondence carried on between the Right Hon. Henry Dundas, the lord-advocate, and the prisoner, by which it would appear that he had attended the meetings of the Friends of the People with no other view than a design to give information of their proceedings. A letter from the prisoner to Mr. Secretary Dundas was read, which stated in substance that, as he did not approve of the dangerous principles which then prevailed in Scotland, and was friend to the constitution of his country, he thought it his duty to communicate to him, as a good subject, what information he could procure of the proceedings of those who styled themselves "Friends of the People." From an acquaintance with several of the leading men among them, he flattered himself he had this in his power; and he then went on to mention some of the names of those leading men in Perth, Dundee, and Edinburgh. In the first of these places, he said, he had been educated, and had resided in the two last for a considerable number of years. It concluded with enjoining secrecy.

To this letter an answer was returned which was also read. It acknowledged the receipt of Mr. Watt's; and after expressing a hope that things were not so bad as he represented, desired him to go on, and he might depend upon his communications being kept perfectly secret. Another letter from Mr. Dundas to Mr. M'Ritchie, the prisoner's agent, was next read in answer to one from Mr. M'Ritchie, requesting of Mr. Dundas what letters he had of the prisoner's. The answer was that all the letters he had received from Mr. Watt had been delivered to the lord-advocate.

The Lord-Advocate being sworn, in exculpation, he gave a distinct account of the transactions which he had had with the prisoner. He had conversed with him several times at his own lodgings; and he had at one time given him some information which he thought of importance. This was respecting the disaffection of some dragoons at Perth, which upon inquiry turned out to be ill-founded. In March 1793, his lordship said an offer had been made to him to disclose some important secrets, provided he would

give the prisoner 1000*l*. This he absolutely refused. However, some time after the prisoner having informed him that he was much pressed for money to retrieve a bill of 30*l*., his lordship, who was then in London, not wishing he should be distressed for such a small sum, sent him an order for the payment of it. All this happened previous to the meeting of the convention, since which time he did not recollect to have seen or corresponded with the prisoner.

Upon this evidence it was contended by Mr. Hamilton, that the prisoner was engaged as a spy for government; and it was well known that a spy was obliged to assume not only the appearance of those whose secrets he meant to reveal, but even to take part in their proceedings in order to prevent a discovery. A spy in an army, he said, was obliged not only to assume the uniform of the enemy, but even to appear in arms; and it would be exceedingly hard indeed, if taken in a conflict, that he should be punished for discharging his duty. He concluded with hoping the jury would bring in a verdict finding the charges not proved.

The Lord-President, after clearly defining the laws of treason, summed up the evidence, narrating and explaining the various parts with much candour, and leaving it entirely to the jury to return such a verdict as their judgment should direct.

The jury withdrew about half-past five o'clock in the morning, and in about five minutes returned with a verdict—Guilty.

The trial lasted nearly twenty-two hours.

The case of Downie afterwards came on; and the jury after some time found him guilty, reconciling themselves to this verdict, by unanimously consenting to recommending him to mercy, which they did in a very strong manner.

Shortly after, the following awful sentence of the Court was passed upon these unfortunate men:—

“Robert Watt and David Downie, you have been found guilty of high treason by your peers. The sentence of the Court is, therefore, that you be taken from the place whence you came, from thence you shall be drawn on a sledge to the place of execution, on Wednesday the 15th of October, there to hang by your necks till you are both dead; your bowels to be taken out and cast in your faces; and each of your bodies to be cut in four quarters, to be at the disposal of his Majesty: and the Lord have mercy on your souls!”

The unfortunate prisoners received the dreadful sentence with much firmness and composure, and were immediately conducted to the Castle.

The prisoner Downie subsequently received a respite, and his punishment was changed for that of transportation for life; but Watt was ordered to be executed on the 15th of October.

On the appointed day, therefore, at half-past one o'clock, the two junior magistrates, with white rods in their hands, the Rev. Principal Baird, and a number of constables, attended by the town-officers, and the city-guard lining the streets, walked in procession from the Council-chamber to the east end of Castle-hill, when a message was sent to the sheriffs in the Castle, that they were there waiting to receive the prisoner.

The prisoner was immediately placed on a hurdle, with his back to the horse; and the executioner, with a large axe in his hand, took his seat opposite him at the further end of the hurdle.

The procession then set out from the Castle, the sheriffs walking in front, a number of county constables surrounding the hurdle, and the military keeping off the crowd. In this manner they proceeded until they joined the magistrates, when the military returned to the Castle, and then the procession was conducted to the place of execution.

When they had reached the Tolbooth door, the prisoner was taken from the hurdle, and carried into the prison, where a considerable time was spent in devotional exercise. He then came out upon the platform, attended by the magistrates, sheriffs, Principal Baird, &c.; and after a short time further being spent in prayer, he mounted the drop-board, and was immediately launched into eternity.

When the body was taken down it was stretched upon a table; and the executioner, with two blows of the axe, severed off the head, which was received into a basket, and then held up to the multitude, while the executioner called aloud, "There is the head of a traitor, and so perish all traitors!"

The body and head were then placed in a coffin and removed.

The execution was conducted throughout with the greatest solemnity, and the prisoner appeared to be deeply sensible of the awful situation in which he was placed. He was so emaciated that his appearance was entirely changed since his trial.

Robert Watt was born in the shire of Kincardine, and was at the time of his execution about thirty-six years old. He was the natural son of a Mr. Barclay, a gentleman of fortune and respectability; but like most other children of illegitimate parentage, he was brought up and educated under the name of his mother. He was, at about ten years of age, sent to Perth, where he received a very good education; and at the age of sixteen he engaged himself with a lawyer in that place; but being of a religious disposition, he was disgusted at his profession, and soon withdrew from the desk of his master. Soon after, he went to Edinburgh, and engaged as a clerk in a paper warehouse, where he lived happily and respectably for some years; but having a desire to share in the profits as well as the toils of the business, he wrote to his father, and prevailed upon him to assist him with some money, to enable him to procure a partnership with his master.

He then made proposals to the above purpose, which were, however, rejected by his employer; but being provided with money, he entered into the wine and spirit trade. His success in business continued very promising, until he was almost ruined by the commencement of the war. At this period his acquaintance with the Friends of the People commenced. Its unfortunate termination is already made known to our readers.

ARCHIBALD HAMILTON ROWAN, ESQ.

CONVICTED OF PUBLISHING A SEDITIOUS LIBEL.

ALTHOUGH we do not consider the numerous instances of conviction for the publication of seditious libels, which took place in Dublin about this time, as being strictly within the plan of our work, yet the extraordinary and romantic circumstances attending the escape of Mr. Rowan induce us to give his case insertion. The agitation produced both in England and Ireland, immediately after the French revolution, in which many persons sought to excite the people to follow the example of their Gallic neighbours, produced a number of prosecutions, the recital of which alone would be sufficient to fill our volume.

Among other convictions which took place was that of Mr. Archibald Hamilton Rowan, who was found guilty in the Court of King's Bench, Dublin, on the 29th of January 1794, of publishing in the year 1792 a false, scandalous, and malicious libel against the Government, purporting to be an address from a society called the United Irishmen of Dublin to the Volunteers of Ireland, and signed by Mr. Rowan as their secretary,—an offence for which he was sentenced to be imprisoned for two years, to pay a fine of 500*l.*, and to find security in the amount of 4000*l.* for his good behaviour for seven years.

It appears that after about two or three months of the term of imprisonment had expired, William Jackson, a divine of some notoriety in England, and several others were arrested on a charge of high treason, in which it appeared probable that Rowan would be implicated. He therefore determined on effecting his escape; and the manner in which he accomplished it has been thus narrated:—

Having discovered, on the 28th of April 1794, the extent of the danger in which he was involved, he arranged a plan of flight, to be put into execution on the night of the 1st of May. He had the address to prevail on the jailer of Newgate, who knew nothing farther of his prisoner than that he was under sentence of confinement for a political libel, to accompany him at night to his own house. They were received by Mrs. Rowan, who had a supper

prepared in the front room of the second floor. The supper over, the prisoner requested the jailer's permission to say a word or two in private to his wife in the adjoining room. The latter consented, on condition of the door between the two rooms remaining open; and he had so little suspicion of what was meditated, that, instead of examining the state of the other room, he contented himself with shifting his chair at the supper-table, so as to give him a view of the open door-way. In a few seconds his prisoner was beyond his reach, having descended by a single rope, which had been slung from the window of the back chamber, into the street. In his stable he found a horse ready saddled, and a peasant's outside coat to disguise him; and with these he posted to the house of Mr. Matthew Dowling, his attorney, who was aware of his design, and was under an engagement to aid him, both by his advice and personal assistance. On his arrival at the attorney's house, he found it full of company; but the host coming to him pointed out the imprudence of his giving him shelter, and directed him to wait for him at the Rotunda, a building in Sackville-street, where he would join him, as soon as he could dispose of his guests. For an hour and a half, tormented by hopes and fears, did the fugitive await the coming of his friend; but Irish gentlemen in those days, as well as in modern times, were not the men to quit their bottle; and it was not until the expiration of that time that Mr. Dowling made his appearance. He at length arrived, however; and after a short and anxious conference, it was determined that it was best for Mr. Rowan to proceed at once to the house of a friend, a Mr. Sweetman, about four miles off, at the north of the Bay of Dublin, whence it was anticipated he might in a day or two make his escape by boat. He accordingly proceeded thither with all possible speed, but three days elapsed before the design could be carried out. Mr. Sweetman's pleasure-boat was then manned by some fellows who lived on the spot, and who undertook to convey their passenger to the coast of France. They put to sea at night; but a gale of wind coming on, they were compelled to put back, and take shelter under the Hill of Howth. They lay there at anchor until the following morning; and they were then about again to proceed on their voyage, when a small revenue cruiser sailing by threw into the boat copies of a proclamation, which had issued, offering a reward of 2000*l.* for the apprehension of the fugitive. The bills were read, but no remark made; and in the bustle attending the getting the little vessel under way, no further notice was taken of them. When they had reached mid-channel, however, a

second inspection of them took place, and the unfortunate exile beheld the brows of his crew contracted, as they looked from the printed papers to him, apparently engaged in comparing the description which was given of the fugitive with his person. He knew the generous character of the Irish peasantry. He was himself an Irishman; he knew the loyalty and devotion of their hearts to persons in distress; and he could calculate upon receiving from them, as strangers, that aid which they would not have more readily given to their own brothers. His course was immediately determined upon; he admitted that their conjectures were right—that he was the runaway, Hamilton Rowan; but he added, “You are Irishmen.” The answer which he received was characteristic of their country. They gave a cheer, threw the proclamation overboard, and set about hastening their passage to the place of their destination.

On the third morning, a little after daybreak, they arrived in sight of St. Paul de Leon, a fortified town on the coast of Bretagne; and as the sun rose, a thick mist, which had hovered over them, was dissipated, and they discovered, about two miles astern, the British Channel-fleet moving along under easy sail; through which their little vessel had passed unperceived. The party soon effected a landing, and, being seen, were seized and conducted to prison as suspected spies; but, in a few days, their real character being explained, an order from the French Government procured for their liberation; and the honest crew returned to Dublin with their boat, while Mr. Rowan proceeded at once to Paris. In a political convulsion, which subsequently occurred in that city, it was his fate once more to effect his escape in a wherry down the Seine, in which he was unaccompanied by any person; and although the banks of that river were lined with military, he answered their challenges with so much address, that he was permitted to pass unmolested. Having reached a French port, he embarked for the United States of America, and there, unaffected by the political changes of his own country, he continued to live for several years.

At length, the merits of his personal character prevailed against the remembrance of his political aberrations; and an act of royal clemency, generously conceded without any humiliating conditions, restored him once more to his country; where he continued to reside, in the bosom of domestic quiet, and in the habitual exercise of every virtue. He had the satisfaction, too, in his old age, of finding that, in a public point of view, his debt of gratitude to the Crown had not been wholly unpaid. In his eldest son,

Captain Hamilton, of the Cambrian frigate, he gave to the British navy one of its most gallant and distinguished commanders.

WILLIAM BUTTERWORTH AND FRANCIS JENNISON.

EXECUTED FOR MURDER.

THE case of these wretched culprits is so disgusting in its details, that we feel justified in giving it only in as short a form as possible.

At the Hants assizes, in the beginning of August 1794, William Butterworth and Francis Jennison, two convicts at Cumberland Fort, were tried before Mr. Justice Grose and Mr. Baron Thompson, for the murder of Mr. John Groundwater, one of the persons deputed to look after them. The circumstances of this murder were of the most brutal and atrocious nature. These hardened wretches, on being reprimanded by Mr. Groundwater, who threatened to report them for ill-behaviour, swore that they would rip his bowels out; and were heard by another of the convicts debating about the manner of perpetrating the murder. In accordance with a resolution which they arrived at, about six in the evening of the same day, they fell upon him with two iron shovels, with which they had been at work in spreading gravel, and with which they gave him three such wounds on the skull, that his brains fell out in the quantity of a double handful. They then struck down one of the shovels upon his neck, with intent to sever the head from the body, but, striking against the bone, it had not the intended effect. The rest of the convicts ran to the spot, and one of them caught hold of Butterworth, to prevent his mangling the body any more; but, after a struggle, he disengaged himself, ran back to the unfortunate sufferer, and, catching up the spade again, gave him several cuts, saying, "There, damn him, I have done him out and out." On being remonstrated with for his inhuman conduct, he replied that he was transported for life, and he would rather be hanged than suffer that sentence. It is a most extraordinary circumstance, established on the evidence of Mr. Hill, surgeon, who attended him, that Mr. Groundwater lived eighteen hours after he had received these grievous wounds, notwithstanding the brains had fallen out, and a prodigious effusion of blood had taken place. He never spoke after the second blow was given him, but the action of the pulse was strong, and respiration continued during the whole of the eighteen hours above mentioned.

Butterworth, though thus steeled in cruelty, was only nineteen years old; his wretched companion was twenty-five. The publicity of the deed, and the consequent clear evidence of their guilt, would not admit of their setting up any defence. The jury pronounced them guilty; and they were sentenced to be executed in three days after in Lanston Harbour, and their bodies were ordered to be hung in chains in Cumberland Fort.

They were taken from jail at about four o'clock on Monday morning, and reached Portsea about eleven. The number of spectators who crowded to see the execution was immense. Both the prisoners acknowledged that they alone were the persons who committed the murder, exculpating all the other convicts from a participation in this horrid offence. Their behaviour was very penitent, and they seemed to feel sensibly the enormity of their crime. The execution took place about twelve o'clock, and their bodies were afterwards hung in chains, pursuant to sentence, near the spot where the murder was committed.

Both prisoners, it appears, had been convicted of burglary, for which they were sentenced to death, but had been reprieved on condition of their being transported for life. They had been at the hulks only about seven days, when they committed the murder for which they were executed.

ANNE BROADRIC.

INDICTED FOR MURDER.

THE case of this unfortunate young woman excited at the time of its occurrence nearly universal pity.

It appeared that Mr. Errington, the object of her attack, was a gentleman of large landed and personal property residing at Grays, in Essex, and his name had become well known from the circumstance of his having been divorced from his wife, a few years before the melancholy event which we are about to relate. About three years after the termination of the proceedings in the Ecclesiastical Courts, he became acquainted with Miss Broadric, who was a young lady possessed of considerable accomplishments, of a fine figure, and in personal charms superior to the generality of her sex. Miss Broadric before this had lived with a Captain Robinson, but it appears that being addressed by Mr. Errington with great solicitude, she consented to reside with him in the character of his wife. A mutual attachment sprung up in the course of their connexion; but after a lapse of three years, during which they lived together with every appearance of domestic felicity, Mr. Errington bestowed his affections and his hand on a lady of respectability in the neighbourhood, acquainting Miss Broadric that he could see her no more. On her quitting him, he made what he conceived to be a suitable provision for her future wants, and she retired apparently deeply grieved at the unfortunate change which had taken place in the feelings of her late protector. On the 11th September 1794, she wrote a letter to him in the following terms:—

“Dear Errington,—That you have betrayed and abandoned the most tender and affectionate heart that ever warmed a human bosom, cannot be denied by any person who is in the least acquainted with me. Wretched and miserable as I have been since you left me, there is still a method remaining that would suspend, for a time, the melancholy sufferings and distress which I labour under at this moment; and still, inhuman as thou art, I am half persuaded, when I tell you the power is in your hands, that you will not withhold it from me.—What I allude to is the permission of seeing you once more, and, perhaps, for the last time. If you consider that the request

comes from a woman you once flattered into a belief of her being the sole possessor of your love, you may not perhaps think it unreasonable. Recollect, however, Errington, ere you send a refusal, that the roaring of the tempest, and the lightnings from heaven, are not more terrible than the rage and vengeance of a disappointed woman. Hitherto you can only answer for the weakness and frailty of my nature. There is a further knowledge of my disposition you must have if you do not grant me the favour demanded. I wish it to come voluntarily from yourself, or else I will force it from you. Believe me, in that case I would seek you in the farthest corner of the globe, rush into your presence, and, with the same rapture that nerved the arm of Charlotte Cordet, when she assassinated the monster Marat, would I put an end to the existence of a man, who is the author of all the agonies and care that at present oppress the heart of

“ANNE BROADRIC.”

“P. S. This comes by William (the servant you have discarded on my account), who has orders to wait for your answer.”

Her request being refused, she persisted by letters to endeavour to induce Mr. Errington to permit her once more to see him, but finding him inexorable, she wrote to him that if nothing could induce him to do her an act of justice, he must prepare himself for the fatal alternative, as she was determined that he should not long survive his infidelity.

To this, as well as to the rest of her letters, Mr. Errington preserved a strict silence, and in about a month after Miss Broadric carried out her dreadful resolution. On Friday morning, the 15th of May, she dressed herself elegantly, and going to the Three Nuns Inn, Whitechapel, she took her place in the Southend coach, which passed close to Mr. Errington's seat. Having descended at the avenue-gate, she went towards the house, but being seen by Mr. Errington, he begged Mrs. Errington to retire for a few minutes, saying that “his tormentor was coming, but that he would soon get rid of her.” The latter, however, desired him to leave the interview to her management, and desiring her husband to go into the drawing-room, she awaited the arrival of Miss Broadric in the parlour. In the mean time the latter had entered the house by the kitchen, and having learned from the footman that Mr. Errington was at home, she was proceeding up stairs, attended by the gardener, when she met Mrs. Errington. She demanded to see Mr. Errington, and was told that he was not to be seen, but saying “I am

not to be so satisfied; I know the ways of this house too well, and will search for him:" she rushed up stairs into the drawing-room. She there found the object of her inquiry, and going up to him she suddenly drew from her pocket a small brass-barrelled pistol, with a new hagged flint, and presenting it to his left side in a direction towards his heart, exclaimed, "Errington, I am come to perform my dreadful promise," and she immediately fired. Mrs. Errington, who had followed her, fainted, but Miss Broadric observing that Mr. Errington did not fall, she said that she feared she had not despatched him. Mr. Errington demanded to know how he had deserved such treatment at her hands, but she made no answer, and the servants, alarmed by the report of the pistol, then coming into the room, she threw the pistol on the carpet, and exclaimed, laughing, "Here, take me; hang me; do what you like with me: I do not care now." Mr. Miller, a surgeon, soon after attended, and found that the ball had penetrated the lowest rib, had cut three ribs asunder, and then passed round the back, and lodged under the shoulder-bone, from whence every effort was made to extract it, but in vain. Mr. Button, a magistrate, now came, who took the examination of Mr. Errington after his wound was dressed. He asked Miss Broadric what could induce her to commit such an act of extreme violence, and her answer was, "That she was determined that neither Mr. Errington nor herself should long outlive her lost peace of mind!" Mr. Errington entreated the magistrate not to detain her in custody, but let her depart, as he was sure he should do well; but this request Miss Broadric refused to accept, and the magistrate to grant. Her commitment being made out, she was conveyed that evening to Chelmsford jail, where she remained tolerably composed till she heard of Mr. Errington's death, when she burst into a flood of tears, and lamented bitterly that she had been its cause. The coroner's inquest sat on the body on Tuesday, the 19th of May, and brought in their verdict, "Wilful murder, by the hands of Anne Broadric." Mr. Errington was in the thirty-ninth year of his age.

Friday, the 17th of July, was fixed for the trial of the prisoner, and at six o'clock in the morning, the prisoner was conveyed from the jail, in a chaise, to a room in the shire-hall; and about ten minutes before the Lord Chief Baron Macdonald, the sheriffs, and magistrates, appeared on the bench, she was conveyed into the bail-dock in the criminal court, attended by three ladies and her apothecary. She was dressed in mourning, without powder; and, after the first perturbations were over, occasioned by the concourse of

surrounding spectators, she sat down on a chair prepared for her, and was tolerably composed, except at intervals, when she discovered violent agitations, as her mind became affected by various objects and circumstances. When the indictment was reading, she paid a marked attention to it; and on the words, “that on the right breast of the said G. Errington she did wilfully and feloniously inflict one mortal wound,” &c. she exclaimed, “Oh, my great God!” and burst into a torrent of tears.

The facts above stated having been proved in evidence, the prisoner’s counsel proceeded to call witnesses in support of her defence, who all joined in stating, that they had known her repeatedly to exhibit symptoms of insanity.

This defence was not traversed by the counsel on the other side, and the Jury, after a few minutes’ consideration, returned a verdict of not guilty.

The judges, on leaving the town, after the assizes were over, directed that Miss Broadric should be examined before two magistrates, that she might be safely removed, under their order, to the place of her settlement, with a particular recommendation annexed thereto, that she might be taken all possible care of.

THE REV. MR. JACKSON.

CONVICTED OF TREASON.

IN connexion with the case of the unfortunate, or rather the fortunate, Mr. Hamilton Rowan, this case may prove interesting, as showing the extent to which that gentleman was engaged in plotting against the Government. Mr. Jackson was a native of Ireland, and a minister of the Church of England. Early in life he preached at Tavistock Chapel, London, and for several years resided in chambers in Lyon's Inn; but the emoluments of his clerical occupation not affording him a sufficient subsistence, he applied his talents to literature, and was for a considerable time editor of a newspaper, in which situation he made himself very conspicuous. He afterwards entered into a criminal conspiracy, and was tried at Dublin for high treason, on the 23d of April, 1795.

The indictment charged the prisoner with two species of treason, namely, compassing the king's death, and adhering to his enemies; and stated fourteen overt acts. The Attorney-general opened the prosecution on the part of the Crown; and having dwelt at some length on the doctrine of treason, proceeded to substantiate the charges in the indictment, for which purpose he called Mr. Cockayne, an attorney of London, who deposed that he had been for a series of years the law-agent and intimate friend of Mr. Jackson, who a few years since went to France (as the witness understood) to transact some private business for Mr. Pitt, where he resided a considerable time. Soon after his return, Mr. Cockayne said he called on Jackson, who told him in confidence that he had formed a design of going to Ireland, to sound the people, for the purpose of procuring a supply of provisions, &c. from them for the French, and requested him (the witness) to accompany him. Having accepted the invitation, he immediately waited on Mr. Pitt, and discovered to him the whole of Mr. Jackson's plans. The minister thanked him for the information, and hinted that, as the matter was to become a subject of legal investigation, it would be necessary for him to substantiate the allegations; the witness in consequence accompanied Mr. Jackson to Ireland, for the purpose of making himself acquainted with his proceedings. Shortly after their arrival in Dublin, where they lived together,

the prisoner expressed a wish to be introduced to Mr. Hamilton Rowan, who was then confined in Newgate; and at length, through the interference of a friend, he obtained an interview, at which Mr. Cockayne was present. In the course of conversation, the prisoner delivered two papers to Mr. Rowan, for the purpose of convincing him that he was a person in whom he might confide. From that time an intimacy took place between them; and the witness always accompanied Mr. Jackson in his visits to Mr. Rowan, and constantly took a part in their conversation. They agreed, he said, that a person should be sent to France to procure a force to make a descent on Ireland; and Counsellor Wolfe Tone was mentioned as a fit person for that purpose, who at first appeared to acquiesce, but afterwards declined the office. Dr. Reynolds was then proposed by Mr. Rowan, but objected to by the prisoner, as he did not understand the French language. It was, however, at length agreed that the doctor should undertake the embassy; but in a short time, he also refused to enter into the business. On this, it was agreed that Mr. Jackson should write several letters, which were directed for a Mr. Stone, of the firm of Lawrence and Co., London. These contained inclosures for houses at Hamburgh and Amsterdam; and some of them, to the French agents, described the situation of Ireland at the time, invited an invasion, and pointed out the proper places to land. These letters having been sent to the Post-office, the witness went to the secretary and informed him of the subject of them, on which they were detained. The plot, matured thus far, having been discovered, the prisoner was taken into custody.

The defence was grounded upon the suggestion, that the evidence adduced in support of the prosecution was undeserving of credit; but the jury found the prisoner guilty.

A motion, in arrest of judgment, was then made by Mr. Curran, who appeared as counsel for the prisoner, on a point of law; in consequence of which, he was remanded. He was brought up again on the 30th April; when, before the arguments of counsel commenced, he was observed to be in a sinking state, and an apothecary being called in, he was found to have taken poison. He expired almost immediately afterwards in the presence of the Court and Bar.

LEWIS JEREMIAH AVERSHAW.

EXECUTED FOR MURDER, IN SHOOTING A PEACE-OFFICER.

THIS criminal was one of the most daring and unrepentant sinners that ever died by the hands of the executioner. There has too frequently been, among the most hardened, an affected contempt of death, and a foolhardiness of behaviour, on their exit from this world, which makes every one shudder. In this criminal it was peculiarly exemplified.

Avershaw was an old offender, and had committed numerous crimes which called aloud for justice. He was at length brought to trial at Croydon, in Surrey, on the 30th of July, 1795, charged on two indictments; one for having, at the Three Brewers' public-house, Southwark, feloniously shot at, and murdered, David Price, an officer belonging to the police-office, held at Union Hall, in the Borough; the other, for having, at the same time and place, fired a pistol at Bernard Turner, another officer attached to that office, with intent to murder him. Mr. Garrow, the leading counsel for the prosecution, opened the case by stating, that the prisoner at the bar, being a person of ill-fame, had been suspected of having perpetrated a number of felonies; and the magistrates of the police-office in the borough of Southwark, having received information against him, sent, as was their duty, an order for his apprehension. To execute the warrant, the deceased, Price, and another officer, went to the Three Brewers, a public-house, where they understood he was drinking in company with some other persons. At the entrance of a parlour in the house the prisoner appeared in a posture of resistance; and holding a loaded pistol in each of his hands he, with threats and imprecations, desired the officers to stand off, as he would otherwise fire at them. The officers, however, attempted to rush in and seize him; on which he discharged both the pistols at the same instant, lodging the contents of one in the body of Price, and with the other wounding Turner very severely in the head. Price, after languishing a few hours, died of the wound. Mr. Garrow was very pathetic and animated in his description of the several circumstances composing the shocking act of barbarity. To prove it, he would call four witnesses, whose evidence, he said, would clearly establish the prisoner's guilt. He accordingly called Turner, the landlord of

the house, a surgeon, and a fourth witness; but, as the substance of their evidence is comprised in the opening of the indictment, it would be superfluous to repeat it. Turner said positively, that he saw the prisoner discharge the pistols, from one of which he himself received his wound, and the contents of the other were lodged in the body of Price, who died very shortly after. The surgeon proved that the death was in consequence of the wound. Mr. Knowlys and Mr. Best were counsel for the prisoner; but the weight of the evidence against him was too strong to be combated by any exertions.

Mr. Baron Perryn summed up the evidence; and the jury, after a consultation of about three minutes, pronounced the verdict of guilty. Through a flaw in the indictment for the murder, an objection was taken by counsel. This was urged nearly two hours, when Mr. Baron Perryn intimating a wish to take the opinion of the twelve judges, the counsel for the prosecution, waving the point for the present, insisted on the prisoner's being tried on the second indictment, for feloniously shooting at Bernard Turner. He was accordingly tried; and, upon the testimony of one witness, found guilty on a second capital indictment. The prisoner, who, contrary to general expectation, had in a great measure hitherto refrained from his usual audacity, now began with unparalleled insolence of expression and gesture, to ask his lordship if he "was to be murdered by the evidence of one witness?" several times repeating the question, till the jury returned him—guilty. When Mr. Baron Perryn put on the black cap, the prisoner, regardless of his dreadful situation, at the same time put on his hat, observing the judge with contemptuous looks while he was passing the sentence.

When the constables were removing him from the dock to a coach, he continued to vent torrents of abuse against the judge and jury, whom he charged with, as he styled it, his murder. As his desperate disposition was well known, he was, to prevent resistance, handcuffed, and his thighs and arms also bound strongly together; in which situation he was conveyed back to prison. So callous was this ruffian to every degree of feeling, that on his way to be tried, as he was passing near the usual place of execution on Kennington Common, he put his head out of the coach window, and, with all the *sang froid* imaginable, asked some of those who guarded him, if they did not think he would be *twisted* on that pretty spot by Saturday? After receiving sentence of death, he was conducted back to prison; where having got some black cherries, he amused himself with painting on the white

walls of the room in which he was confined, various sketches of robberies which he had committed; one representing him running up to the horses' heads of a post-chaise, presenting a pistol at the driver, and the words,—“D—n your eyes, stop,” issuing out of his mouth; another exhibited a scene, where he was firing into the chaise; a third, where the parties had quitted the carriage, and several others, in which he was described in the act of taking the money from the passengers, being fired at, where his companions were shot dead, &c.

At the place of execution, he appeared entirely unconcerned. He had a flower in his mouth, his bosom was thrown open, and he kept up an incessant conversation with the persons who rode beside the cart; frequently laughing and nodding to others of his acquaintance, whom he perceived in the crowd.

He suffered August 3, 1795, at Kennington Common.

**WILLIAM TILLEY, JOHN CROSSWELL, GEORGE
HARDWICK, JAMES HAYDEN, JOHN HAWDEN, SIMON
JACOBS, JOHN SOLOMONS, JOHN PHILLIPS, AND JOHN
HENLEY.**

CONVICTED OF A CONSPIRACY.

THIS most extraordinary conspiracy to procure the liberation of a prisoner occurred on the 4th of April 1795.

It appears that a fellow named Isdwell, a Jew, stood charged with a forgery on the Stamp-Office, and for security was committed to the custody of the keeper of the New Prison, Clerkenwell. On the day in question, he persuaded two of the turnkeys that an aunt of his, who was very rich, then lay at the point of death, and that he had been informed that, could she see him before she died, she would give him one thousand pounds.

He proposed, therefore, that if they would let him out, and accompany him to the place, he would give them fifty guineas each for their trouble: and suggested that the matter might be effected without the knowledge of the keeper of the prison, or any other person, they having the keys of it at night, and the time required being very short. To this proposal the turnkeys agreed; and accordingly, about one o'clock in the morning, the gates were opened, and Isdwell, with his irons on, was conducted in a hackney-coach by one of them, armed with a blunderbuss, to the house in Artillery-lane, Bishopsgate-street, where, inquiring for the sick lady, they were ushered up stairs.

Isdwell entered the room first, on which several fellows rushed forth, and attempted to keep the turnkey out; but, not succeeding, they put the candles out, wrested the blunderbuss out of his hand, and discharged it at him. At this instant Isdwell was endeavouring to make his escape out of the window, but he received the whole charge in his body, and fell dead on the spot. A desperate conflict then took place, in the course of which the jailor was very severely beaten, but some persons being attracted to the spot by the uproar, the officer was rescued, and the prisoners were apprehended, and lodged in safe custody.

The prisoners were tried for the murder of their companion, to which their offence in reality amounted, his death having been caused by them in executing an unlawful deed, on the 21st April; but the prosecution failed in consequence of the absence of any proof to establish the fact distinctly, the occurrence having happened in the dark; but, being detained to be tried for the conspiracy to procure the liberation of the deceased Isdwell, they were convicted, and received sentence of transportation.

CHARLES SCOLDWELL.

CONVICTED OF STEALING.

THE case of this fellow may prove a wholesome lesson to some of the constables and bailiffs of the present day.

The very remarkable transaction, upon which the indictment against the prisoner arose, took place at Bedfont; and the trial came on at the Old Bailey, on the 23rd July 1796. The indictment charged the prisoner with feloniously stealing, taking, and carrying away two live tame ducks, the property of John Spurling, on the 22nd of the previous month of June.

From the evidence which was adduced, it appeared that Mr. Spurling was a baker at Bedfont, and that the prisoner was a bailiff. On the 22nd June, the latter was entrusted with a writ of execution against Mr. Spurling; and accompanied by his follower, a man named Taylor, he proceeded to Bedfont, to secure his person. The debt amounted to 16*l.* 7*s.*; and at two o'clock at night the prisoner made his appearance at the prosecutor's house. Upon his being required to explain his business, he said that he had a writ, and that Mr. Spurling must accompany him to Newgate. Mr. Spurling demurred at proceeding to prison at so late an hour at night, and suggested that he might settle the demand; but the prisoner, with all the insolence usually assumed by persons holding similar situations, declared that there was no use in talking, and that the prosecutor must hire a post-chaise, and go off with him at once. This new demand of a post-chaise was looked upon as a hardship, almost equal to that of going to prison, by Mr. Spurling, and he offered his own one-horse chaise for the purpose of his transportation to town, but all was of no avail; the bailiff and the bully were united in the person of Mr. Scoldwell, and nothing but a post-chaise and an immediate visit to Newgate would suit his pleasure. At length, however, Mr. Taylor, his follower, whose caution was rather greater than that of his master, ventured to inquire what sort of a settlement could be tendered by Mr. Spurling, and the latter immediately offered to pay 15*l.*, which he had in the house, and to give security for the remainder of the debt. "Have you a watch?" peremptorily demanded Mr. Scoldwell, "if so, I must have it;" and the poor baker was compelled to give up his watch, worth four times the amount of

the balance of the demand. The officer, however, was not yet satisfied. "Such gentlemen as we," said he, "cannot come into the country without something to cover our expenses. You must pay us for our trouble and time;" and ten shillings in halfpence, the amount of the day's earnings in the shop, were handed over to him. His wife was as much an object of consideration as himself, he next suggested. She had been deprived of his company, and he must carry something to her by way of a recompense. Were there no fowls in the house? Mr. Spurling had none. A goose would do;—Mrs. Scoldwell was very fond of goose, and Mr. Spurling being entitled to a goose which was feeding on the common, Taylor was despatched to take possession of it on behalf of his master. Still, however, the bailiff was dissatisfied; and he demanded that some additional security should be given for the debt; and having discovered that the baker had a lease of his house, he procured that also to be delivered to him, together with a note for forty pounds, with a condition, that unless the debt and costs were paid within twenty-one days all should be his. Thus pretty well secured, the prisoner, between four and five o'clock in the morning, proposed to depart, and the baker proceeded to his oven. While there, however, he saw the prisoner go to his stable where his ducks were confined, and in the morning the two ducks, mentioned in the indictment, were found to have been carried off. On his way to London, the prisoner joked with the stage-coachman about his having done the baker out of his watch, and having carried off his ducks without his knowledge; and Mr. Spurling having subsequently redeemed his watch, lease, and the note of hand for 40*l.*, by paying the balance of the debt and the costs, he immediately gave the prisoner into custody.

These facts being clearly proved in evidence, the Recorder summed up the case to the jury, and a verdict of guilty was returned.

The prisoner was afterwards sentenced to seven years transportation a punishment which he richly deserved.

JOSEPH HODGES AND RICHARD PROBIN.

CONVICTED OF CROSS DROPPING.

THE trick of cross-dropping has become so notorious of late years, that, any description of the mode in which it was practised is almost unnecessary. As, however, this is the first case of the kind with which we have met in the course of our search in the records of crime, we shall give it a place in our calendar.

The dupe, in this instance, was William Headley, an ironmonger at Cambridge, who, on the trial of these robbers, deposed that on the 7th of July 1796, he was in town, going from Shoe-lane to the Angel Inn, St. Clement's, to take a place on the outside of the coach to go into Wiltshire; when he met Hodges who was a stranger in Butcher-row, and left him to take his place. He went on to Clare Market, where Hodges overtook him, and they walked together through Portugal-street. While in that street Hodges suddenly stopped, and clapping his cane on a parcel which was lying on the ground, said that he had a "finding." He picked up the parcel, and opened the outer covering, and the witness saw in it something like a red pocket-book. He inquired what it was? but the prisoner refused to show him in the street, and they, in consequence, went into a public-house in order to open it. Having called for some liquor, the prisoner opened the parcel, and produced from it what looked like a diamond cross, and a receipt in the following terms:—

"London. 20th June, 1796. Received of John King, Esq. the sum of three hundred and twenty pounds, for one brilliant diamond cross, by me, William Smith."

The prisoner seemed much alarmed and confused on seeing this, but the witness having read the receipt, suggested that the parcel should be taken to Mr. Smith. This, however, was opposed by Hodges, who asked whether they had not better inquire of the gentleman sitting by (the prisoner Probin) what his opinion was? This was assented to, and upon his being addressed, he suggested that Hodges ought to give the witness a present, as having been by when the cross was found, and that he should keep it. The cross

was then taken out and examined, and Hodges said that he did not mind giving the witness something, but he must go to his banker's first, and get some drafts changed. He then went out, leaving the cross with the witness and Probin, but returned, saying that his banker was out, and could not be seen until four o'clock, and a meeting at that hour was eventually appointed to take place at the Angel Inn, St. Clement's. Each party then gave his name. Hodges said that he came from Worcester, and was a hop-merchant; and Probin said that his name was William Jones, and that he lived at No. 7, Charing-cross. A discussion now took place, to whom the care of the cross should be entrusted; and Probin suggested, that the witness perhaps would be better satisfied if it were left in his hands, and that if he deposited something he might carry it away until four o'clock. He asked what would be required, and they said that he ought to leave one hundred pounds at least. He then produced a Bank bill, payable on demand, for that amount from his stocking, where he had concealed it, and handing it to Hodges, he said that that would do. The witness then went away, but subsequently showing the cross to a friend, he found that it was quite valueless. Information was, in consequence, given at Bow-street of the robbery, and both prisoners were apprehended in the course of the ensuing day, money to the amount of nearly fifty pounds being found on each. It afterwards turned out, that the prisoner Hodges changed Mr. Headley's Bank bill almost immediately after he had received it. In his possession was found a second cross, precisely similar to that palmed off upon the prosecutor.

The prisoners being found guilty, were sentenced to be transported for seven years.

THE MUTINY AT THE NORE. RICHARD PARKER.

EXECUTED FOR MUTINY.

IN the year 1797, when the threatening aspect of affairs abroad made the condition of her naval force a matter of vital consequence to Britain, several most alarming mutinies broke out among the various fleets stationed around the shores of the country. In April of the year mentioned, the seamen of the grand fleet lying at Portsmouth disowned the authority of their officers, seized upon the ships, and declared their determination not to lift an anchor, or obey any orders whatsoever, until certain grievances of which they complained were redressed. After some delay, satisfactory concessions were made to them by the government, and the men returned to their duty. But the spirit of insubordination had spread among other squadrons in the service, and about the middle of May, immediately after the Portsmouth fleet had sailed peacefully for the Bay of Biscay, the seamen of the large fleet lying at the Nore broke out also into open mutiny. The most prominent personage in this insurrection was an individual named Richard Parker, whose history it is our object in this paper to lay before the reader.

Richard Parker was a native of Exeter, where he was born about the year 1765 or 1766. His father was a reputable tradesman, and kept a baker's shop at St. Sidwell's, in the bounds of the city mentioned. Young Parker received an excellent education, and in the course of time went to sea, which he had chosen as the scene of his future career. He served for a considerable period in the royal navy as midshipman and master's mate, and at one period also, it is said, held the post of lieutenant. He appears to have given up the naval profession on his marriage with Miss Ann Machardy, a young lady resident in Exeter, but of Scottish origin, being a member of a respectable family in the county of Aberdeen. This connexion led Parker to remove to Scotland, where he embarked in some mercantile speculations that proved unsuccessful. The issue was, that he ere long found himself involved in difficulties, and without the means to maintain his wife and two children. In Edinburgh, where these embarrassments fell upon him, he had no friends to apply to, and, in a moment of desperation, he took the

king's bounty, and became a common sailor on board a tender at Leith. When he communicated to his wife the step he had taken, she was in the greatest distress, and resolved to set off instantly for Aberdeen, in order to procure from her brother there the means of hiring two seamen as substitutes for her husband. Though successful in raising the necessary funds, no time was allowed her to complete her project. On her return from Aberdeen, she was only in time to see the tender sail for the Nore, with her husband on board. Her grief on this occasion was bitterly aggravated by the death of one of her children. Parker's sufferings were shown to be equally acute by his conduct when the vessel sailed. Exclaiming that he saw the body of his child floating on the waves, he leaped overboard, and was with difficulty rescued and restored to life.

It was in the beginning of May 1797 that Parker reached the Nore, or point of land dividing the mouths of the Thames and the Medway. Probably on account of his former experience and station as a seaman, he was drafted on board the Sandwich, which was the guard-ship, and bore the flag of Admiral Buckner, the port-admiral. The mutinous spirit which afterwards broke out, certainly existed on board of the Nore squadron before Parker's arrival. Communications were kept up in secret between the various crews, and the mischief was gradually drawing to a head. But though he did not originate the feeling of insubordination, the ardent temper, boldness, and superior intelligence of Parker, soon became known to his comrades, and he became a prominent man among them. Their plans being at length matured, the seamen rose simultaneously against their officers, and deprived them of their arms, as well as of all command in the ships, though behaving respectfully to them in all other respects. Each vessel was put under the government of a committee of twelve men, and, to represent the whole body of seamen, every man-of-war appointed two delegates, and each gun-boat one, to act for the common good. Of these delegates Richard Parker was chosen president, and, in an unhappy hour for himself, he accepted the office. This representative body drew up a list of grievances, of which they demanded the removal, offering to return immediately afterwards to their duty. It is unnecessary to specify these demands further, than that they related to increase of pay and provisions, a more equal division of prize-money, liberty to go on shore, proper payment of arrears, and other points of naval discipline. A committee of naval inquiry subsequently *granted* almost all that was demanded, thereby acknowledging the general justice of

the complaints made. Parker signed these documents, and they were published over the whole kingdom with his name, as well as presented to Port-admiral Buckner, through whom they were sent to government.

When these proceedings commenced, the mutineers were suffered to go on shore, and they paraded about Sheerness, where a part of the fleet lay, with music, flags (*red* in colour—the customary hue of insubordination), and other appendages of a triumphal procession. But, on the 22d of May, troops were sent to Sheerness to put a stop to this indulgence. Being thus confined to their ships, the mutineers, having come to no agreement with Admiral Buckner, began to take more decisive measures for extorting compliance with their demands, as well as for insuring their own safety. The vessels at Sheerness moved down to the Nore, and the combined force of the insurgents, which at its greatest height consisted of twenty-four sail, proceeded to block up the Thames, by refusing a free passage, up or down, to the London trade. Foreign vessels, and a few small craft, were suffered to go by, first receiving a passport, signed by Richard Parker as president of the delegates. In a day or two the mutineers had an immense number of vessels under detention. The mode in which they kept these was as follows:—The ships of war were ranged in a line, at considerable distances from each other, and in the interspaces were placed the merchant-vessels, having the broadsides of the men-of-war pointed to them. The appearance of the whole assemblage is described as having been at once grand and appalling. The red flag floated from the mast-head of every one of the mutineer ships. It may be well imagined that the alarm of the citizens of London was extreme. The government, however, though unable at the period to quell the insurgents by force, remained firm in their demand of “unconditional submission as a necessary preliminary to any intercourse.” This, perhaps, was the very best line of conduct that could have been adopted. The seamen, to their great honour, never seemed to think of assuming an offensive attitude, and were thereby left in quiet to meditate on the dangerous position in which they stood in hostility to a whole country. They grew timorous; the more so, as the government had caused all the buoys to be removed from the mouth of the Thames and the adjacent coasts, so that no vessel durst attempt to move away for fear of running aground. The mutineering vessels held together, nevertheless, till the 30th of May, when the Clyde frigate was carried off through a combination of its officers with

some of the seamen, and was followed by the St. Fiorenzo. These vessels were fired upon, but escaped up the river.

On the 4th of June, the king's birth-day, the Nore fleet showed that their loyalty to their sovereign was undiminished, by firing a general salute. On the 5th, another frigate left the fleet, but its place was supplied by a sloop and four men-of-war, which had left Admiral Duncan's fleet at the Texel to join the mutiny. On the 6th, Lord Northesk met the delegates by desire on board the Sandwich, and received from them proposals for an accommodation, to which the unfortunate Parker still put his name as president. The answer was a direct refusal, and this firmness seems to have fairly humbled the remaining spirit of the mutineers. From that time one vessel after another deserted the band, and put themselves under the protection of the fort at Sheerness. On the 10th, the merchantmen were allowed by common consent to pass up the river, and such a multitude of ships certainly never entered a port by one tide. By the 12th, only seven ships had the red flag flying, and on the 16th the mutiny had terminated, every ship having been restored to the command of its officers. A party of soldiers went on board the Sandwich, and to them the officers surrendered the delegates of the ship, namely, a man named Davies, and Richard Parker.

Richard Parker, to whom the title of Admiral Parker had been given by the fleet and by the public during the whole of this affair, was the individual on whom all eyes were turned as the ringleader of the mutineers. He was brought singly to trial on the 22d of June, after being confined during the interval in the black-hole of Sheerness garrison. Ten officers, under the presidency of Vice-Admiral Sir Thomas Paisley, composed the court-martial, which sat on board the Neptune, off Greenhithe. The prisoner conducted his own defence, exhibiting great presence of mind, and preserving a respectful and manly deference throughout for his judges. The prosecution on the part of the Crown lasted two days, and on the 26th, Parker called witnesses in his favour, and read a long and able defence which he had previously prepared. The line of argument adopted by him was—that the situation he had held had been in a measure forced upon him; that he had consented to assume it chiefly from the hope of restraining the men from excesses; that he had restrained them in various instances; that he might have taken all the ships to sea, or to an enemy's ports, had his motives been disloyal, &c. &c. Parker unquestionably spoke the truth on many of these points. Throughout the whole affair, the injury done to

property was trifling, the taking of some flour from a vessel being the chief act of the kind. This was mainly owing to him. But he had indubitably been the head of the mutineers. He was proved to have gone from ship to ship giving orders, and haranguing the men—to have been cheered as he passed along, and treated with the honours of a chief. Nothing could save him. He was sentenced to death. When his doom was pronounced, he stood up, and uttered these words in a firm voice: “I shall submit to your sentence with all due respect, being confident of the innocence of my intentions, and that God will receive me into favour; and I sincerely hope that my death will be the means of restoring tranquillity to the navy, and that those men who have been implicated in the business may be reinstated in their former situations, and again be serviceable to their country.”

On the morning of the 30th of June, the yellow flag, the signal of death, was hoisted on board of the Sandwich, where Richard Parker lay, and where he was to meet his fate. The whole fleet was ranged a little below Sheerness, in sight of the Sandwich, and the crew of every ship was piped to the forecastle. Parker was awaked from a sound sleep on that morning, and after being shaved, he dressed himself in a suit of deep mourning. He mentioned to his attendants that he had made a will, leaving his wife heir to some property belonging to him. On coming to the deck, he was pale, but perfectly composed, and drank a glass of wine “to the salvation of his soul, and forgiveness of all his enemies!.” He said nothing to his mates on the forecastle but “Good bye to you,” and expressed a hope that “his death would be deemed a sufficient atonement, and save the lives of others!” He was strung up to the yard-arm at half-past nine o’clock. A dead silence reigned among the crews around during the ceremony. In closing their account of this affair, the journals of the day state that the body of Parker was put into a shell, and interred, within an hour or two after the execution, in the New Naval Burying Ground at Sheerness. A curious sequel to this account, however, it is now in our power to present to the reader.

Richard Parker’s unfortunate wife had not left Scotland, when the rumour came to her ears that the Nore fleet had mutinied, and that the ringleader was one Richard Parker. She could not doubt that this was her husband, and immediately took a place in the mail for London, to save him if possible. On her arrival, she heard that Parker had been tried, but the result was unknown. Being able to think of no way but petitioning the king, she gave a person a guinea to draw up a paper, praying that her husband’s

life might be spared. She attempted to make her way with this to his majesty's presence, but was obliged finally to hand it to a lord-in-waiting, who gave her the cruel intelligence that all applications for mercy would be attended to, except for Parker. The distracted woman then took coach for Rochester, where she got on board a king's ship, and learnt that Parker was to be executed next day: she sat up, in a state of unspeakable wretchedness, the whole of that night, and at four o'clock in the morning went to the river-side, to hire a boat to take her to the Sandwich, that she might at least bid her poor husband farewell. Her feelings had been deeply agonised by hearing every person she met talking on the subject of her distress, and now, the first waterman to whom she spoke exclaimed, "No! I cannot take one passenger. The brave Admiral Parker is to die to-day, and I will get any sum I choose to ask for a party." Finally, the wretched wife was glad to go on board a Sheerness market-boat, but no boat was allowed to come alongside the Sandwich. In her desperation she called on Parker by name, and prevailed on the boat-people, by the mere spectacle of her suffering, to attempt to go nearer, when they were stopped by a sentinel threatening to fire at them. As the hour drew nigh, she saw her husband appear on deck between two clergymen. She called on him, and he heard her voice, for he exclaimed, "There is my dear wife from Scotland." Immediately afterwards, she fell back in a state of insensibility, and did not recover till some time after she was taken ashore. By this time all was over, but the poor woman could not believe it so. She hired another boat, and again reached the Sandwich. Her exclamation from the boat must have startled all who heard it. "Pass the word," she cried, in her delusion, "for Richard Parker!" The truth was now told to her, and she was further informed that his body had just been taken ashore for burial. She immediately caused herself to be rowed ashore again, and proceeded to the churchyard, but found the ceremony over, and the gate locked. She then went to the admiral and sought the key, which was refused to her. Excited almost to madness by the information that the surgeons would probably disinter the body that night, she waited around the churchyard till dusk, and then, clambering over the wall, readily found her husband's grave. The shell was not buried deep, and she was not long in scraping away the loose earth that intervened between her and the object of her search. She got the lid removed, and then she clasped the cold hand of her husband in her own!

Her determination to possess the body aroused the widow from the enjoyment of this melancholy pleasure. She left the churchyard, and communicated her situation to two women, who, in their turn, got several men to undertake the task of lifting the body. This was accomplished successfully, and at three o'clock in the morning, the shell containing the corpse was placed in a van, and conveyed to Rochester, where, for the sum of six guineas, Mrs. Parker procured another waggon to carry it to London. On the road they met hundreds of persons all inquiring about and talking of the fate of "Admiral Parker." At eleven P.M. the van reached London; but here the poor widow had no private house or friends to go to, and was obliged to stop at the Hoop and Horse-Shoe on Tower-Hill, which was full of people. Mrs. Parker got the body into her room, and sat down beside it; but the secret could not long be kept in such a place, more particularly as the news of the exhumation had been brought by express that day to London. A great crowd, by and bye, assembled about the house, anxious to see the body of Parker, which, however, the widow would not permit. The Lord Mayor heard of the affair, and came to ask the widow what she intended to do with her husband's remains. She replied, "To inter them decently at Exeter or in Scotland." The Lord Mayor said that the body would not be taken from her, but prevailed on her to have it decently buried in London. Arrangements were made with this view, and finally the corpse of the unfortunate Parker was inhumed in Whitechapel churchyard; although not until it had to be removed to Aldgate workhouse, on account of the crowds attracted by it, and which caused some fears lest "Admiral Parker's remains should create a civil war." After the closing ceremony was over, Mrs. Parker, who had in person seen her husband consigned to the grave, gave a certificate that all had been done to her satisfaction. But, though strictly questioned as to the parties who had aided her in the disinterment, she firmly refused to disclose their names.

Parker, as has been said, made a will, leaving to his wife a small property on which he had claims near Exeter. This she enjoyed for a number of years, but ultimately her rights, whether erroneously or not, were decided to be invalid, and she was deprived of the pittance which had formed her maintenance. She was thrown into great distress, and was compelled to solicit assistance from the charitable, having become nearly if not entirely blind. The late King William gave her at one time 10*l.*, and at another 20*l.* In 1836, the forlorn and miserable condition of poor Parker's widow was

made known to the London magistrates, and a temporary refuge was provided for her. But temporary assistance was of little avail to one whose physical infirmities rendered her incapable any longer of helping herself, and again her miserable condition came under the cognizance of the public authorities. An appeal to the charitable has recently been made, by a portion of the daily press, in her favour, but with what success we are unable to say. She is now seventy years of age, blind, and friendless. Time and misfortune have not quenched her affection for the partner of her early days. Of him she yet speaks with all the enthusiasm of youthful affection, and still mourns his fate.

MARIA THERESA PHIPOE, *alias* MARY BENSON

EXECUTED FOR MURDER.

WE do not recollect ever to have seen the case of any woman who has exhibited so much masculine determination as Mrs. Phipoe. She was twice tried at the Old Bailey upon charges equally atrocious, and each equally exhibiting the ferocity of her disposition.

In the first case, the indictment charged that she had feloniously assaulted Mr. John Cortois, with intent to kill and murder him. Her trial came on at the Old Bailey in the month of January 1795, when it was proved in evidence that the prisoner was a person of abandoned character, and that she kept a house, where she was in the habit of receiving visits of a certain character from gentlemen. Among her other patrons was Mr. John Cortois, a gentleman of considerable property; and it appears that Mr. Cortois having called upon her one evening, he was alarmed at finding himself suddenly seized from behind by his paramour, and her servant, a woman almost as powerful as herself, by whom he was speedily overpowered, and bound to his chair with strong cords. His person being thus secured, Mrs. Phipoe immediately, with horrid imprecations, demanded that he should sign a note or bill in her favour for 2000*l.*, threatening that, in the event of his refusal, she would instantly cut his throat; and even enforcing her demands by holding a knife at his throat in such a position as that on the smallest movement on his part would have procured the infliction of a wound. In a state of the utmost terror and alarm, he consented to attach his name to the instrument which was produced, ready drawn by Mrs. Phipoe, and then he imagined, as a matter of course, that he should be at liberty. But Mrs. Phipoe by this time had begun to consider the possibility of his preventing the negotiation of the note, and determining that “Dead men tell no tales,” she had made up her mind that he should have no opportunity of disclosing the means by which it had been obtained. For this diabolical purpose, she now made a violent attack upon him with a knife, and wounded him in many places; but Mr. Cortois, becoming desperate in his turn, burst the bonds by which he was confined with a violent effort, and attacked his assailant. A struggle took place, in

which Mr. Cortois was again mastered by the united efforts of Mrs. Phipoe and her servant; and then a choice was tendered to him whether he would die by poison, by being shot, or by the knife which Mrs. Phipoe brandished in a threatening manner over his head. The unfortunate gentleman was now much weakened by loss of blood, and was almost prevented from opposing the further violence of his demoniac assailants, when, luckily, the cries which he had raised brought him assistance in the shape of a watchman, through whose instrumentality Mrs. Phipoe was secured.

Upon this testimony a verdict of guilty was returned; but a point of law being subsequently raised in favour of the prisoner, it was declared that the judgment must be arrested.

Mrs. Phipoe was, however, subsequently, on the 23rd of May, indicted for the common assault upon Mr. Cortois, and a verdict of guilty having been a second time returned, she was subjected to twelve months' imprisonment in Newgate.

A year had scarcely elapsed after the termination of the period of her incarceration, before Mrs. Phipoe, or Mrs. Benson, as she was now called, was again in custody on a charge of murder.

She was indicted on the 8th of December 1797, for the wilful murder of Mary Cox; and it appeared that at the time of the commission of this offence, the prisoner lived in lodgings in Garden-street, St. George's in the East. On the night of the murder, Mrs. Cox called upon her; but within a short time after she had entered her room, a scuffle was heard, followed by loud groans. The mistress of the house demanded to know the cause of the disturbance, but the prisoner declared that it was only Mrs. Cox in a fit. The door being opened, however, Mrs. Benson was observed to be covered with blood, and Mrs. Cox was found lying on the ground desperately wounded. Two persons immediately went for a doctor, while a constable was also sent for, by whom the prisoner was taken into custody. Mrs. Cox, on being examined, was found to have sustained some severe wounds, from which there was no prospect of her recovering; and she pointed out Mrs. Benson as the person by whom they had been inflicted. A large clasp-knife, covered with blood, was found on the table in the room; and by its side lay a part of a finger; and on Mrs. Benson being questioned, she admitted that that was the knife with which "she had done the woman's business;" and said that her own finger had been cut off in the scuffle. Mrs. Cox subsequently died

in the hospital, from the effects of the stabs she had received, having previously made a declaration before a magistrate as to the circumstances attending her murder. She said that having purchased a gold watch of the prisoner for 11*l.*, she asked that a coffee-cup, which she pointed out, might be given to her into the bargain. The prisoner bade her take it; but on her raising her hand to remove it from the shelf, she received a stab in the neck, which was followed by many others in the same place and on different parts of her body. The prisoner subsequently got her on the bed, and swore that she would murder her outright, that she should not tell her own tale; but she was interrupted by the entrance of the landlady.

The prisoner in her defence declared that Mrs. Cox had abused her, and had violently wounded her, so as to cut off part of her finger before she offered any violence to her; but that then, being maddened with pain and rage, she admitted she had attacked her. She knew nothing of what subsequently occurred, until she was found by her landlady in her own room covered with blood.

The jury having returned a verdict that the prisoner was guilty, she behaved with great hardihood, frequently interrupting the learned judge (Mr. Baron Perryn) in his observations, while condemning her to death.

Sentence having been passed, however, that she should be hanged and subsequently dissected, she was removed from the bar, and then she appeared to be fully sensible of her guilt, and of the nature of her present position.

She was executed before Newgate, December the 11th, 1797; and after hanging an hour in the view of a great number of spectators, one-third of whom were females, the body was cut down, and delivered to the surgeons for dissection.

In her last moments she confessed the justice of her sentence, but denied having cut off her own finger, saying it was done in the scuffle with the woman she murdered. She owned to have been guilty of many enormities, and attributed her frequent gusts of passion to the use of laudanum.

Her body was publicly exhibited in a place built for the purpose in the Old Bailey.

JAMES O'COIGLEY, *alias* FAVEY.

EXECUTED FOR HIGH TREASON.

JAMES O'COIGLEY was indicted at Maidstone, on the 21st of May 1798, for high treason. The indictment was read by Mr. Knapp, who afterwards stated the charges it contained in a summary manner. He said there were three distinct species of treason charged in the indictment and seven overt acts. The first treason was compassing and imagining the death of the king; the second, adhering to his enemies; the third, compassing and imagining, inventing, devising and intending, to move and stir certain foreigners and strangers, that is to say, the persons exercising the powers of government in France, to invade this kingdom. The first overt act was sending intelligence to the enemy; the other overt acts were attempts to hire vessels, and to leave the kingdom.

At the trial, which lasted during the whole of two days, an immense body of evidence was produced in support of the charges preferred against the prisoner. A pocket-book, however, which had been found in his great-coat, and in which was a letter addressed to the Executive Directory of France, afforded conclusive evidence of his guilt.

Upon his being called upon for his defence, he addressed the jury in the following terms:—

“It is impossible for me to prove a negative; but it is a duty I owe to you, and to myself, solemnly to declare that I never was the bearer of any message or paper of this kind to France in the course of my life. That paper is not mine: it never belonged to me. It states that it was to be carried by the bearer of the last: this is something which might have been proved, but it is impossible for me to prove a negative. There is also in this paper an allusion to secret committees and political societies. I declare that I never attended any political society whatever. With these considerations I consign my life to your justice; not doubting but that you will conduct yourselves as English jurymen ever do, and that your verdict will be such as shall receive the approbation of your own conscience, your country, and your God.”

The jury, after about half-an-hour's consideration, found O'Coigley Guilty.

Mr. Justice Buller, in an address to the prisoner, which he read from a written paper previously to his passing the sentence, observed that he had been clearly convicted of the most atrocious crime which could be committed in any country—that of meditating the destruction of a sovereign, who was one of the best, the most just, upright, and amiable of princes that ever graced a throne; and he could not conceive what were the motives which could actuate any man even to wish for the death of one who had ever been the father of his people.

The prisoner was also found guilty of conspiring to overturn the constitution of these kingdoms—a constitution which, from the experiment of years, had been found to be the best calculated of any that ever existed in the world to ensure the liberty, security, and happiness of the people who lived under it.

These atrocious crimes became still greater from the manner in which they were intended to be perpetrated—that of inviting a foreign enemy to come and invade and conquer these countries.

Those people who had fancied such an event to be a desirable one ought to think seriously what the consequences of it would be, provided it was possible to be accomplished. Did they suppose that (desperate as their present situation might be) their condition would be bettered by having their country put into the possession of people who were holding out the delusive hopes of what they call liberty to other nations? Could such persons hope that they themselves should enjoy liberty, even supposing the conquerors to have enjoyed as free a constitution as any in the world? No; they would become suspected, be despised, and destroyed by them.

A celebrated writer (Montesquieu) very justly observed upon this subject, that a country conquered by a democratic nation always enjoyed less liberty, was more miserable, and more enslaved, than if that country happened to have been conquered by a nation whose government was monarchical. But if there was any illustration of this observation wanting, one had only to look to the conduct of the French at this moment towards Holland, Italy, Switzerland, and every other country they had conquered. His lordship believed that the prisoner might have been actuated by motives similar to those which used formerly to induce many people to think that

the killing of men of a different religion would give them a claim to canonization. But, though the motives might be similar, the subjects connected with them were very different. In the present times he did not believe that any person entertained such sentiments about religion. On the contrary, he was sorry to find that religion was too much neglected, and that the peace and tranquillity of numbers of people were destroyed in consequence of their having lost all belief of the existence of a Divine Providence, and totally abandoned all hopes of a future state. He was afraid that the prisoner had been infected with this infidelity; and if he was, he (the judge) prayed that the Almighty God, in his infinite mercy and goodness, would change his heart, and cause him to repent of his sins.

His lordship then, in a solemn and awful manner, passed the following sentence:—

“That the prisoner be taken from the bar to prison, and from thence to the place of execution; there to be hanged, but not until he be dead, to be cut down while yet alive, and then to have his heart and bowels taken out and burnt before his face; his head to be severed from his body, and his body to be divided into four quarters.”

Mr. O’Coigley listened to this address and sentence with attention, but at the same time with the greatest coolness. He bowed his head when the judge concluded, his countenance expressing at once resignation and firmness.

Thursday, 7th June, being fixed upon for the execution, on the previous day, the unhappy prisoner received an intimation to that effect without emotion. He spent the evening very calmly. He had but one thing, he said, on his mind which created any anxiety; that was, an apprehension that he might be misrepresented after his death. He was anxious to be faithfully reported, and that was all he wanted. On Thursday, at a quarter past eleven o’clock, O’Coigley left the jail. He was dressed in black; his hair was cropped and powdered, his shirt-collar open, and he wore no neckcloth. His elbows were tied behind with ropes, and over his shoulders was the rope with which he was to be executed. He stepped into the hurdle; and on his sitting down, a chain was put round his waist to fasten him. The executioner sat opposite to him. The cavalcade was well guarded by a large body of the Kent Volunteers; and throughout the journey to Pennenden Heath, the prisoner was engaged in reading from a book of devotions.

Upon their arrival at the place of execution, the military formed a square. The prisoner being unchained, he rose up and stood in the hurdle, and read two prayers, one of them aloud in Latin. He then took out of his pocket an orange, and also a penknife; but being unable to cut the orange, from his hands being bound, he gave it to a friend, whom he beckoned to come near him, saying, "Open this orange with my penknife; it has been said they would not trust me with a penknife, lest I should cut my throat; but they little knew that I would not deprive myself of the glory of dying in this way." He desired his friend to keep the penknife for his sake, and to hold the orange, several pieces of which he ate.

After finishing his devotions, the clergyman gave him absolution; and having ascended the platform, he bid farewell to the jailor, thanking him for the many civilities he had shown him. On his being tied up to the gallows, he made the following speech:—

"I shall only here solemnly declare, that I am innocent of the charge for which I suffer. I never was in my life the bearer of any letter, or other paper or message, printed, written, or verbal, to the Directory of France, nor to any person on their behalf; neither was I ever a member of the London Corresponding Society, or of any other political society in Great Britain; nor did I attend any of their meetings, public or private, so help me God! I know not whether I shall be believed here in what I say, but I am sure I shall be believed in the world to come. It can scarcely be supposed that one like me, in this situation, going to eternity, before the most awful tribunal, would die with a falsehood in his mouth; and I do declare, by the hopes I confidently feel of salvation and happiness in a future state, that my life is falsely and maliciously taken away by corrupt and base perjury, in some cases proceeding from mistake, no doubt, but in others from design. Almighty God, forgive all my enemies. I beg of you to pray that God will grant me grace—for I have many sins to answer for; but they are the sins of my private life, and not the charge for which I now die. (Raising his voice.) Lord have mercy on me, and receive my soul."

A white nightcap was then drawn over his face, and he made a signal by dropping a handkerchief. The board was then let down, and he remained suspended for twelve or thirteen minutes. Upon his being taken down, his head was taken off by a surgeon, and the executioner held it up to the populace, saying "This is the head of a traitor." Both head and body were then put into a shell, and buried at the foot of the gallows.

GEORGE WALDRON, *alias* BARRINGTON.

TRANSPORTED FOR PICKING POCKETS.

THIS notorious offender was born of decent parents in the year 1755, in the town of Maynooth, county Kildare, Ireland. His father, whose name was Waldron, was a working silversmith; and his mother followed the occupation of mantua-maker, and occasionally joined with it the profession of a midwife. Owing to a law-suit in which they were engaged with a relative, for the recovery of a legacy to which they conceived themselves entitled, their circumstances were by no means affluent. But although they were unable to procure for their son the advantages of a superior education, they had him instructed at an early age in reading and writing; and afterwards, through the bounty of a medical gentleman in the neighbourhood, he was taught the principles of arithmetic, and the elements of geography and English grammar.

When he had entered his sixteenth year, he had the good fortune to attract the notice of a dignitary of the Church of Ireland, through whose interest he was placed at a free grammar-school in the Irish capital, where his patron proposed he should fit himself for the University; and in order that he might be able to make an appearance equal to that of the youths with whom he was to associate, his generous protector supplied him with money and every other necessary that could render his situation at school not only comfortable, but respectable.

These advantages he enjoyed but a short time, for the impetuosity of his passions hurried him into an action by which he lost his patron's favour for ever. When he had been about half a year at the grammar-school, he was involved in a quarrel with a lad much older and stronger than himself. Some blows passed, in which George suffered considerably; but in order to be revenged, he stabbed his antagonist with a penknife; and had he not been prevented, would probably have murdered him. For this atrocious offence the discipline of the house was inflicted with proper severity, which irritated the youth to such a degree, that he formed the resolution of abandoning not only the school, but also his family and friends. His plan of escape was no sooner formed than it was carried into execution; but before his departure

he found means to steal ten or twelve guineas from the master, and a gold repeating-watch from his sister. With this booty he safely effected his escape from the school-house in the middle of a still night in the month of May 1771; and pursuing the great north road from Dublin all that night and the next day, he arrived late in the evening at Drogheda without interruption.

Having reached this town, where he thought that he should be safe from the chances of pursuit and discovery, by a species of forced march, without rest or refreshment, he entered a small public-house in order to procure the one and the other; but the following morning introduced to his notice a band of strolling players, whose acquaintance he immediately made. A friendship commenced under such unfavourable circumstances, it might be thought would scarcely last many days, but it was nevertheless maintained through choice and affection for several years; and it appears that whilst engaged as a member of the company, he picked up much information which was exceedingly useful to him in his subsequent career.

Price, the manager of the company, having lived some time in London, in the capacity of clerk to a pettifogging attorney, was intimately acquainted with the town, and all the arts of fraud, deception, or violence, which are practised in it by the most unprincipled classes to procure money. For indulging these vicious propensities, he subjected himself to the lash of the law, and was at this time an involuntary exile in Ireland till the expiration of the term for which he was to be transported; and this man soon became the confidant and counsellor of the young fugitive. By his advice he renounced his paternal name, assumed that of Barrington, and entered into the company; and in the course of four days he became so well initiated in the mysteries of his profession as to be able to perform the part of Jaffier in "Venice Preserved," without the aid of a prompter, in a crowded barn in the neighbourhood of Drogheda with the most flattering demonstrations of applause.

His success, however, was by far too great to render it at all desirable that he should continue his performances so near the scene of his late depredations; and in obedience to the dictates of prudence, lest our hero might be called upon to make his last appearance on a "stage" fitted up with a drop, before his character as a player was fully established, it was resolved that the whole company should, without delay, move northwards with all speed, so as to get out of the way, with the anticipation of their

being able to reach sixty or eighty miles from Dublin without any long bait. In order to carry this resolution into effect, however, it was recollected that some means must be found to feed the strollers, as the produce of their late performances was not so weighty as to require any great exertion on the part of the treasurer to squeeze it into his waistcoat pocket; and the gold repeater being remembered, it was immediately given up by our hero, *pro bono publico*, with a degree of liberality which procured for him a burst of applause from his companions in the search of histrionic fame. The watch being disposed off, its proceeds were equally divided, and the party set out on its march; but when they arrived at Londonderry, it was found that the Belvidera of the company had surrendered her heart to the new Jaffier. A reciprocal attachment was found to exist, and the connexion was only dissolved by the death of the lady. It appears that she was the daughter of a respectable tradesman at Coventry; and having eloped from her father's house, at the age of sixteen years, with a lieutenant of marines, conducted by him to Dublin, and there, in less than three months, was infamously abandoned to all the horrors of penury and want. Reduced to this extremity, she readily embraced a proposal made to her by Price, to join his company, as her only resource; and being young and beautiful, it is not extraordinary that she should have excited a flame in the bosom of her new admirer. She was unfortunately drowned, in her eighteenth year, in crossing the Boyne, through the negligence of the ferryman.

To return, however, to the Company. The money which had been raised was found to be quite expended on their arrival at Londonderry, and some means, it was determined, must be found to recruit their bank. In this dilemma, Price insinuated to our adventurer that a young man of his address and appearance might easily introduce himself into the public places, to which the merchants and dealers of the town resorted, and that he might, without difficulty, find opportunities of picking their pockets, and escaping unseen and undiscovered. The idea pleased Barrington, and the fair coming on, offered a favourable juncture at which to commence his new profession. The design was carried into execution in the course of the ensuing day with very great success, their acquisitions amounting to about forty guineas in cash, and one hundred and fifty pounds in Bank notes. The circumstance, it may readily be supposed, excited no small alarm among the honest traders, on its becoming generally known that robberies to so large an amount had been effected; but the players remaining in the town, suspicion did not rest

upon them, and the depredation was put down to the score of some of the ordinary scamps who then, as well as now, followed the fairs, in Ireland and England. It was resolved, however, that the company should quit Derry, and after having played a few nights with more applause than profit, they removed to Ballyshannon, where our hero may be said to have commenced the business of a professed pickpocket in the summer of the year 1771, in the 16th year of his age.

At Ballyshannon he passed the autumn and winter of 1771 with the company to which he belonged, playing two days in the week, and picking pockets whenever opportunity offered; and this business, though attended with some danger and certain infamy, he found so much more lucrative than that of the theatre, where his fame and his proficiency by no means kept pace with the expectations raised by his first appearance, that he determined to quit the stage.

He now commenced what is called a “gentleman pickpocket,” by affecting the airs and importance of a man of fashion; but he was so much alarmed at the detection and conviction of his preceptor, Price (who was sentenced to transportation for seven years), that he hastened to Dublin, where he practised his pilfering art during dark evenings only. He soon made his own country too hot to hold him, for at one of the races in the county of Carlow he was detected picking the pocket of a nobleman; but, upon restoring the property, his lordship declined any prosecution, and he therefore left Ireland, and for the first time appeared in England in 1773. On his first visit to Ranelagh with a party, he quitted his friends, and picked the pockets of the Duke of Leinster and Sir William Draper of a considerable sum; and he also took from a lady a watch, with all which he got off undiscovered, and rejoined his friends.

In 1775 he visited the most celebrated watering-places, particularly Bath; and, being supposed to be a gentleman of fortune and family, he was noticed by persons of the first distinction. On his return to London he formed a connexion with one Lowe, and became a most daring pickpocket. He went to court on the queen’s birthday, as a clergyman, and not only picked several pockets, but found means to deprive a nobleman of his diamond order, and retired from the palace without suspicion.

In the course of the winter of 1775 the celebrated Russian Prince Orloff visited England. The various circumstances of his history, the high favour

he enjoyed at the court of his sovereign, and the valuable presents he had received from her, were frequently mentioned in the public prints. Among the rest, a gold snuff-box, set with brilliants, and valued at the enormous sum of thirty thousand pounds, particularly attracted the attention of Barrington. It was not long before he formed a plan for obtaining possession of it. A favourable opportunity one night presenting itself at Covent-garden Theatre, he contrived to get near the prince, and found means to convey the precious trinket out of his excellency's waistcoat pocket into his own. This operation, however, was not performed with such dexterity as to escape detection. The prince felt the attack so impudently made upon him, and immediately seized the depredator by the collar. During the confusion that ensued, Barrington slipped the box into the hand of the owner, who was doubtless well pleased at having recovered it so easily; but the delinquent was, nevertheless, secured, and committed to Tothill-fields Bridewell, previous to his examination at Bow-street for the offence. On this occasion he represented himself as belonging to an affluent and respectable family in Ireland, adding that he had been educated for the medical profession, and had come to London to improve himself in it; and having accompanied this plausible representation with many tears, and seeming to rest so much on his being an unfortunate gentleman rather than a guilty culprit, Prince Orloff declined to prosecute, and he was dismissed by the magistrate, with some wholesome admonition.

This adventure, however, had no effect with our hero. He had gone too far to recede, and he was compelled to continue his depredations upon the public, in order to obtain a living.

In pursuit of his business, it was his custom to attend the sittings of the two Houses of Parliament; but being one day in the House of Peers, he was recognised by a stranger who was present, and turned out by one of the ushers, who was made acquainted with his character. A threat of vengeance was heard to slip from the lips of the thief, and he was taken into custody, and being unable to give security for his future good behaviour, he was committed to Tothill-fields Bridewell, and remained there during a considerable period of time. On his discharge, his only refuge was his old profession: but he had not pursued it long before he was detected in picking the pocket of a woman in Drury-lane Theatre, for which he was indicted and convicted at the Old Bailey in the year 1777, and was sentenced to three years' hard labour on board the hulks at Woolwich. The excellence of

his deportment there, however, procured for him a mitigation of his punishment, and at the termination of a year he was set at liberty, in obedience to the recommendation of the superintendants of his gang.

Within six months after his release, he was detected in picking the pocket of a lady during divine service in St. Sepulchre's church, and being convicted of this offence, he was again sentenced to hard labour on the river; but for a period of five years, and in pursuance of his sentence, he was removed to the hulks a second time, in the year 1778.

During this second confinement, he either found that his sufferings were more severe or his situation more desperate than in his former imprisonment, and, wearied out with labour and disgusted with life, he determined to commit suicide. With this view he stabbed himself in the breast with a penknife; but the wound, though deep and dangerous, did not prove mortal, and it healed slowly, although it left the unfortunate prisoner in a state of the greatest weakness. While he was in this state, he had the good fortune to attract the attention of a gentleman of rank, who happened to visit the hulks for the purpose of inquiring into the state of the convicts, and who, commiserating his wretched plight, exerted his influence and procured for him a pardon, on condition of his quitting the kingdom. The condition was eagerly accepted, and having been provided with money by his benefactor, he proceeded at once to Dublin.

He had scarcely arrived in this city, however, before he was apprehended on a charge of picking the pocket of a nobleman of his gold watch and money at a theatre; but the evidence being defective, he was acquitted and discharged. Upon his defence to this charge he displayed considerable powers of oratory, and having been addressed by the Judge in terms of suitable admonition, he spoke with great animation, and enlarged upon what he termed the force of prejudice, insinuating that the calumnies which, he contended, had been uttered against him in England, had followed him to his native country.

He then quitted the bar, and as soon as he had obtained his liberty, he deemed it prudent to retire from Dublin, and he proceeded to Edinburgh. Suspensions were, however, soon entertained of his character there, and, braving all danger, he returned to London, and there frequented the theatres, the Opera House, Pantheon, and other places of public resort, but was at length taken into custody. Having been acquitted for want of evidence of

the charge brought against him, he was unexpectedly detained for having returned to England in violation of the condition on which his majesty was pleased to grant him a remission of his punishment, and was accordingly confined in Newgate during the remainder of the time that he was originally to have served on the river Thames.

On the expiration of his captivity he returned to his former practices, but with greater caution: but in spite of all his cares, he was at length apprehended for picking the pocket of Mr. Le Mesurier, at Drury-lane playhouse, but effected his escape from the constable; and while the lawyers were outlawing him, and the constables endeavouring to take him, he evaded detection by travelling in various disguises and characters through the northern counties of the kingdom.

The appearances of a clergyman, a quack doctor, and a rider or traveller, were in turn assumed; but going to Newcastle-upon-Tyne, he was secured and removed to London by a writ of habeas corpus. He now employed counsel, and had the outlawry against him reversed; and being then tried for stealing Mr. Le Mesurier's purse, was acquitted in consequence of the absence of a material witness.

Being once more enlarged, he had the presumption to visit Dublin again, where having been soon suspected, he with difficulty escaped to England; but, soon after his arrival, he was taken into custody for picking the pocket of Henry Hare Townsend, Esq. at Epsom Races. For this he was tried at the Old Bailey, September 1, 1798, and found guilty, notwithstanding he made an ingenious defence. On September 22d the Recorder pronounced the sentence of transportation on him for seven years, when Barrington addressed the Court to the following effect:—

“My Lord,—I have a great deal to say in extenuation of the cause for which I now stand convicted at this bar; but, upon consideration, I will not arrest the attention of the honourable Court too long. Among the extraordinary vicissitudes incident to human nature, it is the peculiar and unfortunate lot of some devoted persons to have their best wishes, and their most earnest endeavours to deserve the good opinion of the most respectable part of society, entirely frustrated. Whatever they can say or whatever they can do, every word and its meaning, every action and its motive, is represented in an unfavourable light, and is distorted from the real intention of the speaker or the actor. That this has been my unhappy

fate, does not seem to stand in need of any confirmation. Every effort to deserve well of mankind, and my heart bore witness to its rectitude, has been thwarted by such measures as those, and consequently has been rendered abortive. Many of the circumstances of my life I can, without any violation of truth, declare to have, therefore, happened absolutely in spite of myself. The world, my lord, has given me credit for abilities, indeed, much greater than I possess, and therefore much more than I deserved; but I have never found any kind hand to foster these abilities. I might ask, where was the generous and powerful hand that was ever stretched forth to rescue George Barrington from infamy? In an age like this, which, in several respects, is so justly famed for liberal sentiments, it was my severe lot that no noble-minded gentleman stepped forward, and said to me, 'Barrington, you are possessed of talents which may be useful to society. I feel for your situation; and as long as you act the part of a good citizen, I will be your protector: you will then have time and opportunity to rescue yourself from the obloquy of your former conduct.' Alas, my Lord, George Barrington never had the supreme felicity of having such comfort administered to his wounded spirit. As matters have unfortunately turned out, the die is cast,—and as it is, I bend resigned to my fate, without one murmur or complaint."

Having concluded this address, rendered more forcible by his pathetic manner, he left the bar with a respectful bow, and thus retired from public life in Europe, to act his part in a new hemisphere.

From the period of his conviction Barrington's conduct was such as to retrieve his character from the disgrace with which he had loaded it during the former portion of his life. Soon after the ship in which he, with many other culprits, embarked for Botany Bay, had left England, a circumstance occurred which may justly be asserted to have laid the foundation of his subsequent good fortune.

The humanity of the captain had induced him to release many of the convicts who were in a weakly state from their irons, and to permit them alternately, ten at a time, to walk upon deck. Two of them, who were Americans, formed the design of seizing the ship, and prevailed on the majority of their comrades to enter into the plot. It was agreed, that on the first favourable opportunity, part of those who were on deck should force the arm-chest, overpower the sentinels, and then give a signal for those below to join them. This design was planned with great secrecy, and executed with equal spirit and audacity. One day, the captain and most of

the officers being below, Barrington, who was the only man on deck except the man at the helm, heard a noise on the main-deck, and going forward to ascertain its cause, was met by one of the Americans and another convict, who presented a sabre at his breast, which they had just wrenched from one of the sentinels, and commanded him instantly to stop, and to make no noise. The sentinel at the moment came up, and with a pistol which he had just snapped at the villain's head, knocked up the weapon; and Barrington, seizing the opportunity, snatched up a hand-spike, and felled his assailant to the ground. The man at the helm was a witness to this scene of violence, and gave the alarm, while Barrington meanwhile kept his situation, guarding the passage of the quarter-deck. His antagonists now retreated a few paces, but, being joined by many others, were rushing upon him, when the discharge of a blunderbuss from behind our hero wounded several, and they retreated; and Barrington being by this time aided by the captain and the rest of the officers, the mutineers were in a few minutes driven below. An attempt of this kind required the most exemplary punishment; and, accordingly, two of the ringleaders were immediately hanged at the yard-arm, and several others severely flogged.

Order being restored, the captain paid Barrington many handsome compliments for his conduct, to which he attributed the salvation of the ship, promised him a recompense for his services, and directed his steward to supply him with everything he wanted during the voyage. Accordingly, on the arrival of the ship at the Cape of Good Hope, he gave Barrington a draft on a merchant there for one hundred dollars, with permission to go on shore as often as he pleased. Nor was this all; for, when they reached the place of their final destination, the captain made such a favourable report of Barrington's character and merits to the governor of Port Jackson, that he immediately appointed him superintendant of convicts at a kind of colony from the parent settlement, called Paramatta, where a convenient habitation was assigned him.

Barrington's conduct in this situation was marked by such undeviating rectitude as not only to obtain him the esteem of the governor and other officers, but also to procure him the appointment of high constable of Paramatta, with a salary of fifty pounds a-year; on which occasion the governor complimented him on the faithful discharge of his duty, which he considered as effacing his former misconduct.

In this situation he continued some time, but in 1801 he was a mere living skeleton; and, having lost the use of his intellectual faculties, had retired on a small pension. He died in 1804, a melancholy instance of perverted talents; and it is supposed that his mental imbecility was brought on by remorse and conscious sensibility, operating on a mind capable of better things.

JAMES HADFIELD.

TRIED FOR HIGH TREASON, IN SHOOTING AT THE KING.

THE case of this unfortunate man has attracted universal attention, but its circumstances exhibit only that the most lamentable insanity existed in the mind of the prisoner.

The trial of the wretched man came on in the Court of King's Bench, on the 26th June, 1800, when the prisoner was arraigned upon an indictment, which charged him with shooting at the King in Drury-Lane Theatre on the 15th May preceding.

The indictment having been read, the prisoner pleaded Not Guilty, and the Attorney-general then opened the case against him.

Mr. Joseph Craig was the first witness examined. He deposed, that he was a musician at Drury-Lane Theatre, and was there on the night of his Majesty honouring the performance with his presence. His attention was suddenly drawn to the prisoner, whose figure he saw elevated above the rest; his right hand being extended with a pistol pointed towards his Majesty. The pistol was immediately discharged, and then it fell down instantly. Several persons seized the prisoner at once, and he assisted in pulling him over the rails, and in taking him into the music room. Mr. Sheridan and the Duke of York afterwards entered the room, when the prisoner said, "God bless your Royal Highness! I like you very well, you are a good fellow."

Other witnesses deposed to the same effect; and stated, in addition, that they had remarked that the prisoner was a pitiful object before the dreadful attempt which he made. The situation which the prisoner selected was the best which he could have chosen for the object which he had in view; he was observed to be agitated on the entrance of his Majesty; and on his bowing a second time to the audience, the prisoner raised his arm and fired. The pistol was picked up from the ground in front of him, after he was taken into the music room.

Mr. Law, one of the counsel for the prosecution, here desired that the Duke of York might be called; upon which the prisoner, in a paroxysm of

enthusiasm, cried out, "God bless the duke! I love him." The Court, seeing his agitation, immediately gave directions that he should be permitted to sit down; and Mr. Kirby, the keeper of Newgate, (who all the time sat next to him,) told him he had permission of the Court to sit down, which he did, and remained composed during the remainder of the trial.

The Duke of York then stated, that he was present at the examination; he remarked at the time that he knew the prisoner, and that he had been one of his orderly men. The prisoner said, "He knew his own life was forfeited; he regretted the fate of his wife only; he would be only two days longer from his wife;" and he added, "The worst is not come yet." His royal highness said the prisoner appeared to be perfectly collected. After his majesty had retired, his royal highness directed a search to be made in the king's box, when a hole was discovered, evidently made by the impression of a shot, fourteen inches from his majesty's head. It had perforated the pillar. In searching below, some slugs were found; and by the smell, it appeared that they had been recently fired off. Mr. Erskine asked his royal highness if the most loyal and brave men were not usually selected to be the orderly men. His royal highness answered, that the most tried and trusty men were appointed orderly men. When the prisoner was asked what could induce him to commit so atrocious an act, he said he was tired of life, and thought he should have been killed.

The evidence for the prosecution being closed, Mr. Erskine addressed the jury at considerable length.

Major Ryan, of the 15th light dragoons, in which the prisoner was a private, Hercules M'Gill, private in the same regiment, and John Lane, of the Guards, all knew the prisoner, and deposed to his having been guilty of different acts of insanity.

Mr. Cline, surgeon; Dr. Crichton, physician; and Dr. Letherne, surgeon to the 15th regiment, as professional gentlemen, gave testimony to their belief of the prisoner's insanity.

Captain Wilson and Christopher Lawton, of the 15th light dragoons; David Hadfield, brother to the prisoner; Mary Gore, sister-in-law to the prisoner; Catharine Harrison, and Elizabeth Roberts, detailed different acts of insanity, particularly on the day previous to and on which he committed the crime for which he stood indicted: and the prisoner was found by the

jury to be insane, and was remanded to be dealt with according to his Majesty's pleasure.

He was subsequently removed to Bedlam, where he remains.

Ravillac, who stabbed King Henry IV. of France, while in his coach, and surrounded by his guards, was tortured to death in the following inhuman manner:—

At the place of execution, his right hand, with which he gave the fatal blow, was put into a furnace flaming with fire and brimstone, and there consumed. His flesh was pulled from his bones with red-hot pincers; boiling oil, resin, and brimstone, were poured upon the wounds, and melted lead upon his navel. To close the scene of horror, four horses were fastened to the four quarters of his body, which were torn asunder.

He declared to the last moment that he had no accomplices, and that the only motive which impelled him to act the regicide was, because the king tolerated two religions in France.

His parents were banished their country, never more to return, on pain of immediate death; and his whole kindred, nay, every individual bearing the name, were ordered to renounce it; so that the name of Ravillac should never more be heard of in France.

RICHARD FERGUSON, *alias* GALLOPING DICK.

HANGED FOR HIGHWAY ROBBERY.

THE adventures of Galloping Dick are scarcely less notorious than those of the celebrated Turpin, or the unfortunate Dick King, the “Gentleman Highwayman.”

Richard Ferguson was the son of a gentleman’s valet, and was a native of Hertfordshire. Having received some little education, he was at an early age taken into employment in the establishment of his father’s master as a stable-boy. Being an active lad, and withal well versed in the management of horses, he was temporarily employed as postilion during the illness of the regular servant; but, being at length compelled to return to his more humble duties of stable-boy, his pride could ill brook the degradation; and he determined to look for higher employment. A friend of his master was in want of a postilion, and young Dick applied for the place. His qualifications were at once admitted, and he was engaged, and immediately accompanied his new employer to London. His habits were, at this time, of such a nature as to render him a favourite with his master, and, by means of steadiness and perseverance, he remained during a considerable period in the same service; but, being at length discovered in a situation with one of the female servants which left no doubt of his claims to a character for gallantry, he was dismissed.

He remained out of place during a considerable period, and, resorting to public-houses, he became acquainted with a number of persons of his own condition, from whom he speedily acquired a knowledge of all the vices fashionable among the party-coloured gentry. He, at length, was compelled to accept employment in the service of a livery-stable keeper in Piccadilly; but his master dying, he was again thrown upon the town, though not altogether without provision, for he had so far gained his master’s good opinion, that he had left him a legacy of 50*l*.

Dick was now the owner of a sum far greater than he had ever yet had the good fortune to possess; and he determined to commence business in a new line—that of gentleman. Purchasing mourning out of respect to his last

employer, he frequented the theatres, and while at Drury-lane he became acquainted with a woman, his admiration of whose charms eventually, though by indirect means, proved his ruin. At first, he was disposed to imagine that she was a person of respectability, but, meeting with a ready acquiescence in his request to be permitted to accompany her home, he soon discovered the mistake into which he had fallen. Day after day he visited his dulcinea, until he had disposed of all the cash he possessed, and then he began to find, that there were others, whose visits were more welcome than his. He, not unfrequently, met persons in their way in or out of the house, with whose figures he became speedily familiar, and an accident subsequently made him acquainted with the nature of their avocations.

Finding that he was no longer welcome to the house of his lady, he resolved now to endeavour to procure the means by which he hoped again to secure her favour; and he accepted a situation as postilion at an inn in Piccadilly.

In his drives round the metropolis, he not unfrequently saw his rivals gaily dressed and mounted, but he was rather surprised one day, while on the North Road, at receiving a sudden summons to stop from a man, whose figure he fancied he recognised as that of one of them, but whose face was covered with crape. He speedily obeyed the order which he had so peremptorily received; and while the man who had called to him stood by his side with a pistol at his head, another, similarly disguised, galloped from a by-road to the chaise and demanded the money of its occupant. A sudden gust of wind now enabled our hero to satisfy himself of the truth of his surmises as to the highwayman near him, for the crape being momentarily blown from his face, he at once recognised in him one of the admirers of the lady of his affections, whom he subsequently found to be Jerry Avershaw. He stared at the man, but some persons at this moment appearing in view, the highwayman precipitately rode off.

Avershaw, it appears, was no less uneasy at the discovery, which he knew had been made, than Ferguson was astonished; and, pulling up with his companion at a roadside inn, they gave directions, that Dick should be introduced to them on his stopping there to water his horses, on his way home with the return chaise. Upon his entry, an offer was immediately made to him of a bribe, to prevent his discovering the haunts of the thieves, and his acquiescence procured for him an invitation to sup with the

highwaymen on the same evening at their rendezvous in the Borough. With the money our hero flew to his doxy, but the lady having now discovered his situation declined to have anything more to say to him.

The chance, which had operated to deprive him of the society of the lady, however, gained for him the companionship of her visitors; and, meeting Avershaw at the house which he had appointed, he was received with every mark of attention. A sumptuous supper was served, and a large party having assembled, the night was spent in boisterous hilarity. Ferguson was delighted with the society to which he was introduced, and at once assented to a proposition, that he should become one of their number—a sharer in their dangers and profits. In obedience to a suggestion which was offered, it was determined, however, that he should not yet be called upon to enter into active service, but that he should furnish his associates with information as to the routes of the various chaises which went from the inn where he was employed, so that they might intercept them, and rob them. He pursued this diabolical plan with so much success as frequently to obtain some share of very large booties; but, at length, his connexion with the highwaymen being suspected, he lost his place, and was compelled to take the road himself. In this new employment, he was long remarked for the most extraordinary success. Of a bold and daring disposition, he defied danger. His skill in horses was found to be of the greatest importance to him; and the headlong pace at which he would travel, when in pursuit of an object, or when chased, procured for him the name of “Galloping Dick.” Numerous were the escapes which he succeeded in making from his pursuers, after he had committed robberies; and, in one instance, having been concerned with two others in stopping two gentlemen in the Edgeware Road, he succeeded in galloping off, while his companions were secured, and upon being tried were convicted and executed.

Nor were his successes confined to the road. In his amours he was equally bold and enterprising, and equally happy. He persuaded two married women, the wives of publicans in the Borough, to elope with him, and his intrigues were almost innumerable.

To follow him through the whole of his exploits would be to occupy a very considerable portion of our limits with the recital of his case alone. He was concerned in almost every robbery which was committed in the neighbourhood of the metropolis during the period at which he was celebrated, and his acquaintance and connexion with other thieves were

almost as extensive as his crimes. He was repeatedly in custody at Bow-street, and was several times tried at the Old Bailey, but acquitted: but at length having been a party to a most daring robbery near Aylesbury, he was taken into custody within a short time of the commission of his offence, and being fully identified, he was committed for trial.

He was indicted at the ensuing assizes, and a verdict of guilty having been found, he was sentenced to death.

Upon his discovering that all hopes of mercy were vain, he sedulously applied himself to a preparation for his approaching end, and upon the day of execution conducted himself with decent resignation.

He was executed at Aylesbury in the month of April, 1800.

JOSEPH WALL, ESQ.

EXECUTED FOR MURDER.

MR. WALL, or as he has been more commonly called, Governor Wall, was descended from a good family in Ireland, and entered into the army at an early age. He was of a severe and rather unaccommodating temper; nor was he much liked among the officers.

Mr. Wall was Lieutenant-governor of Senegambia, but acted as chief, the first appointment being vacant. His emoluments were very considerable, as, besides his military appointments, he was superintendant of trade to the colony. It was an office he held but a short time—not more than two years; during which he committed the crime for which he suffered, by ordering Benjamin Armstrong to receive eight hundred lashes, on the 10th of July, 1782, of which he died in five days afterwards.

As soon as the account of the murder reached the board of admiralty, a reward was offered for his apprehension; but, having evaded justice in 1784, he lived on the Continent, sometimes in France, and sometimes in Italy, but mostly in France, under an assumed name, where he was admitted into good society.

It is most extraordinary that a species of fatality almost invariably appears to attend persons who have been guilty of offences like that of Mr. Wall. A gnawing desire to return to London constantly preyed on the mind of that gentleman, and at length in the year 1797, having first written to a confidential friend to procure him lodgings, he once more appeared in the metropolis. His presence was quickly notified to his relations, who constantly urged the imprudence of this step, and the importance of his again retiring beyond the reach of the laws of England, but all remonstrance proved vain, and he continued to reside in his lodgings in Lambeth, scarcely exhibiting any desire to conceal his name, character, or situation. He soon afterwards removed to new apartments in Upper Thornhaugh-street, Bedford-square, and from this time he seems to have contemplated surrendering himself to the Government, in order that he might take his trial for the offence imputed to him. His mind appeared ill at ease, but he was

evidently incapable of coming to any firm determination upon a point of so much importance to his interests and those of his family. It was not until the year 1801 that he at length summoned up courage to do that which he now looked upon as his duty to his country, and then he wrote to the Government in terms singularly indicative of his disposition, saving that “He was ready to give himself up,” but not immediately tendering his person to custody.

A communication of this character was not to be overlooked by a minister of state, and although it was extremely possible, that in case of his continued silence, no steps would have been taken to procure the apprehension of Mr. Wall, orders were now given that he should be secured. At this period he was still living in Upper Thornhaugh-street, and there he was apprehended by officers, who received instructions from the office of the Secretary of State for the Home Department.

On the 20th of January, 1802, about twenty years after the commission of the crime with which he stood charged, Mr. Wall was indicted at the Old Bailey, and his trial came on before the Chief Baron of the Exchequer, Mr. Justice Rook, and Mr. Justice Lawrence.

Upon the case being called on, the prisoner informed the Court that he was deaf, and requested to be permitted to sit near his counsel, but the Lord Chief Baron informed him, that such an application could not be acceded to, for that there was a situation pointed out for persons placed in his condition, and that any distinction would be invidious. The case then proceeded, and it was proved by the witnesses, that Armstrong was far from being undutiful in his behaviour; that he was, however, tied to the gun-carriage; black men, brought there for the purpose—not the drummers, who in the ordinary course of things would have had to flog him, supposing him to have deserved flogging;—but black men were ordered to inflict the punishment ordered. Each man took his turn, and gave this unhappy sufferer twenty-five lashes, until he had received the number of eight hundred; and the instrument with which the punishment was inflicted was not a cat-o’-nine tails, which is usually employed, but a piece of rope of a greater thickness, which was much more severe than the cat. During the time at which this inhuman punishment was being inflicted, the prisoner stood by, and with a degree of cruelty almost unparalleled urged the executioners to “cut him to the heart and liver,” and in answer to the poor wretch’s cries for mercy, he was proved to have declared that “the sick

season coming on, with the punishment, would do for him.” At the conclusion of the flogging, the miserable being was conducted to the hospital, and there, at the expiration of five days, he died, declaring that he had been punished without trial.

The defence set up was, that the deceased had been guilty of mutiny, and that the punishment was not so severe as reported, but that the deceased was suffered to drink strong spirits when in the hospital. Several witnesses were called on the part of the prisoner, particularly Mrs. Lacy, widow of the captain who succeeded Mr. Wall, and Mary Falkner, who not only agreed with him in the outrageous conduct of the men, and the violent language they used, but both positively swore that Lewis, the first witness against the prisoner, was not the orderly serjeant on that day.—John Falkner, Peter Williams, and some others who were present, were also examined, and their testimony went in full corroboration of the account given by the prisoner, and so far went to his justification; but in many material points it was in direct contradiction to the evidence which had been given by the witnesses for the Crown.

The jury, after being out of court some time, pronounced a verdict of “guilty.” The Recorder then proceeded to pass sentence of death upon the prisoner; that he be executed the following morning, and that his body be afterwards delivered to be anatomized according to the statute. Mr. Wall seemed sensibly affected by the sentence, but said nothing more than to request the court would allow him a little time to prepare himself for death. On the 21st of January, a respite was sent from Lord Pelham’s office, deferring his execution until the 25th, and on the 24th, he was further respited till the 28th. During the time of his confinement, previous to trial, he occupied the apartment which was formerly the residence of Mr. Ridgway, the bookseller. His wife lived with him for the last fortnight; although he was allowed two hours a-day, from twelve to two, to walk in the yard, he did not once embrace this indulgence; and during his whole confinement, he never went out of his room, except into the lobby to consult his counsel. He lived well, and was at times very facetious, easy in his manners, and pleasant in conversation; but during the night he frequently sat up in his bed and sang psalms, overheard by his fellow-prisoner. He had not many visitors, and his only attendant was a prisoner, who was appointed for that purpose by the turnkey.

After trial he did not return to his old apartment, but was conducted to a cell; and he was so far favoured as not to have irons put on, but a person was employed as a guard to watch him during the night to prevent him doing violence to himself. On his return from court, on the day of trial, his bed was brought to him in the cell, on which he threw himself in an agony of mind, saying it was his intention not to rise until they called him on the fatal morning.

The sheriffs were particularly pointed and precise in their orders, with respect to confining him to the usual diet of bread and water, preparatory to the awful event, and this order was scrupulously fulfilled. The prisoner, during a part of the night, slept, owing to fatigue and perturbation of mind. The next morning his wife applied, but was refused admittance without an order from one of the sheriffs. She applied to Mr. Sheriff Cox, who attended her to the prison.

From the time of the first respite, until twelve o'clock on Wednesday night, he did not cease to entertain hopes of his safety. The interest made to save him was very great. The whole of Wednesday occupied the great law officers; the judges met at the chancellor's in the afternoon, and the conference which then took place lasted upwards of three hours.

All hopes were, however, vain, and at a little after four o'clock, on Thursday the 28th, the scaffold began to be erected by torch-light.

The prisoner had had an affecting interview with his wife, the night before, from whom he was painfully separated about eleven o'clock. Mrs. Wall then reluctantly departed, overwhelmed with grief, and bathed with tears; while the unfortunate husband declared that he could now, with Christian fortitude, submit to his unhappy fate.

During the greater part of the night he slept but little; but at about four o'clock in the morning his sleep was observed to become sound, and, according to the best recollection of his attendant, he continued in this sleep rather more than an hour; so that he could not have heard the fatal machine in its passage to the Debtors'-door. His voice preserved its usual strength and tone to the end; and, though very particular in his questions respecting the machinery in every part, yet he spoke of his approaching execution and death with perfect calmness. At half after six in the morning, his prison attendant, going to his cell, was asked by him "whether the noise he heard

was not that of erecting his scaffold?" but he was humanely answered in the negative.

The Ordinary, Dr. Ford, soon after entered, when the prisoner devoutly joined him for some time in prayer. They then passed on to an ante room, when the governor asked "whether it was a fine morning?" On being answered in the affirmative, he said, "The time hangs heavily: I am anxious for the close of this scene." One of the officers then proceeded to bind his arms with a cord, for which he extended them out firmly; but recollecting himself, he said, "I beg your pardon a moment;" and putting his hand in his pocket, he drew out two white handkerchiefs, one of which he bound over his temples so as nearly to conceal his eyes, over which he placed a white cap, and then put on a round hat; the other handkerchief he kept between his hands. He then observed, "the cord cuts me; but it's no matter:" on which Dr. Ford desired it to be loosened, for which the prisoner bowed, and thanked him.

As the clock struck eight, the door was thrown open, and Sheriff Cox and his officers appeared. The governor approaching him, said, "I attend you, sir;" and the procession to the scaffold, over the Debtors'-door, immediately succeeded. He had no sooner ascended it, accompanied by the Ordinary, than three successive shouts from an innumerable populace, the brutal effusion of one common sentiment, evidently deprived him of the small portion of fortitude which he had summoned up. He bowed his head under the extreme pressure of ignominy, when the hangman put the halter over it. This done, Mr. Wall stooped forward and spoke to the Ordinary, who, no doubt at his request, pulled the cap over the lower part of the face, when in an instant, without waiting for any signal, the platform dropped.

From the knot of the rope turning round to the back of the neck, and his legs not being pulled, as at his particular request, he was suspended in convulsive agony for more than a quarter of an hour. After hanging a full hour, his body was cut down, put into a cart, and immediately conveyed to a building in Cow-cross-street to be dissected. He was dressed in a mixed coloured loose coat, with a black collar, swan-down waistcoat, blue pantaloons, and white silk stockings. He appeared a miserable and emaciated object, never having quitted the bed of his cell from the day of condemnation till the morning of his execution.

The body of the unfortunate gentleman was not exposed to public view, as was usual in such cases. Mr. Belfour, secretary to the Surgeons' Company, applied to Lord Kenyon to know whether such an exposure was necessary; and finding that the forms of dissection only were required, the body, after those forms had been complied with, was consigned to the relations of the unhappy man, upon their paying fifty guineas to the Philanthropic Society.

JOHN TERRY AND JOSEPH HEALD.

EXECUTED FOR MURDER.

THESE villains were executed for the wilful murder of a poor old woman, named Elizabeth Smith, aged sixty-seven years; their object being to possess themselves of a small sum of money, known to have been recently before transmitted to her by her son.

Their trial came on at York, on Friday the 18th of March 1803; and the indictment alleged the murder to have been committed at Flaminshaw, near Wakefield, in the same county.

It appeared that the deceased was a respectable woman, who obtained an humble living by disposing of the produce of two cows which she possessed. Misfortune, however, fell upon her, and her cows died; but through the instrumentality of her neighbours a subscription was raised for her, by which one cow was purchased. Her son, who was engaged in a decent way of life at Leeds, sent her eighteen guineas to buy another; and this was the bait by which the wretched men, whose crime we are about to describe, were allured. On the morning of the 14th of January 1803, the poor old woman was found to have been murdered in her own house, under circumstances of very great barbarity; and suspicion having fallen upon the prisoners, they were taken into custody. Terry then, driven by remorse, made a confession to Shaw and Linley, the constables by whom he had been secured. He said that he and Heald, having determined upon the perpetration of the murder, agreed to meet outside the house of the deceased at about one o'clock on the morning of the 14th of January. They met in accordance with their appointment; and Heald having first entered the house, by making his way through the first-floor window, with his (Terry's) assistance, he directly afterwards placed something against the side of the house by means of which he was enabled to follow him. On their gaining the room of Mrs. Smith, they found that she had been alarmed by the noise which they had made, and was getting up; but they directly attacked her, and knocked her down; and when Heald had struck her several blows, he took out a razor. The deceased was now still on the ground, and he (Terry) held her head, while Heald cut her throat; but at length his fingers being

wounded, he called to his companion to desist, as they had done enough, and proposed that they should go and see if all was safe. He then ran down stairs, but returning in a few moments, he found that Heald had got the old woman into another room, and was beating her over the head with a pair of tongs. Upon seeing him, he struck her no more, and then they directly secured the money and made off. From the evidence of the constables it further appeared that Heald, on hearing the confession of the other prisoner, upbraided him for deceiving him, and added, "Thou knowest I was not with thee." Terry answered, "Thou knowest there is a God above, who knows all;" and upon Heald remarking, "Thou hadst better lay it upon somebody else," he replied, "I will not hang an innocent man; thou knowest there were but us two, and God for our witness."

This, together with some other circumstances of suspicion, proved against the two prisoners, constituted the evidence against them; and the jury returned a verdict of Guilty. Sentence of death was then immediately





John Smith robbing a Hackney Coachman.

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passed, and was ordered to be put into execution on the following Monday; but in the mean time a most extraordinary change took place in the demeanour of the prisoner Terry.

Upon his being attended by Mr. Brown, the Ordinary, he asserted that Heald was not guilty, and that if he were hanged, he should be guilty of two murders instead of only one. He entreated that the clergyman would endeavour to procure the respite of his fellow-prisoner, and declared that he could not bear to be hanged with an innocent man. The whole of the circumstances were in consequence submitted to the consideration of the learned judge; and every measure of precaution was instantly taken by that learned individual to prevent the occurrence of an event which might deprive an innocent person of life; but as it was found that Heald made no

attempt to join in the protestations of his companion, and further that the whole of Terry's conduct appeared to arise from a desire only that the execution should be respited, and that his declarations were contradictory and evidently devoid of truth, the law was ordered to take its course.

On the way from his cell to the scaffold Terry appeared to be in the highest state of excitement; and upon his appearance on the platform, he exhibited a most extraordinary degree of stubbornness. He shouted to the mob assembled, that they were going to hang an innocent man, and even made an effort to escape, by jumping from the ladder placed against the gallows, and which he was only prevented from doing by the clergyman, who seized him by the collar. He then renewed his protestations of his own guilt, and the innocence of his companion; and in spite of the entreaties of the clergyman, and of Heald, that he would allow him the benefit of the prayers, he continued to make the most clamorous resistance to the execution of the sentence. By the united exertions of five men, he was at length dragged to the drop, and the rope was forced over his head; but in his efforts he tore off the cap; and at the moment at which the platform sunk, he made a spring, and throwing himself towards the side of the gallows, got his foot upon the beam, and caught the corner-post with his arm. In this dreadful situation he supported himself for about a minute, when he was forced off by the executioner, and then, with his face uncovered, he was left suspended. In a few moments both he and his companion in crime were lifeless.

ROBERT SMITH.

EXECUTED FOR ROBBERY.

THIS singular robber was a Scotchman, and one of those adventurers who, ingenious in wickedness, devise new plans of depredation, and make the industrious, whose hard earnings they enjoy, the chief objects of their prey.

The mode of robbery which this man adopted, was that of employing a hackney-coach to drive him to some outlet, and then robbing the coachman in the first lonesome place he came to; in which for some time he was very successful. This trade he commenced early in the month of March, 1803, when, being genteelly dressed, at night about ten o'clock, he hired a hackney-coach at Charing-cross, and ordered the coachman to drive to St. John's Farm, near the one mile-stone on the Edgeware-road. When the coach got to the top of the lane leading to St. John's Farm, Smith pulled the string, and told the coachman to let him get out, for he had passed the house he wanted to go to; upon which the coachman got off his box, and let him out of the coach. Smith then asking what his fare was, he told him, five shillings and sixpence; when he put his hand into a side-pocket, pulled out a pistol, and swore that he would immediately shoot him if he did not deliver his money. The coachman complied; and upon his demanding his watch, delivered that up also; and the robber succeeded in making his escape across the fields.

On Monday the 6th of March, at about eleven o'clock at night, Smith hired another coach, and ordered the driver to proceed to St. George's-row, on the Uxbridge-road. Upon his arrival at the place of his destination, he demanded the coachman's money and watch with the most horrid imprecations; and on some hesitation being shown to comply with his request, he produced a pistol and a tuck-stick, with the latter of which he wounded the driver in the side. Two seven-shilling pieces, and eight and sixpence in silver, were then handed over to him, and he decamped, threatening the coachman with instant death in case of his attempting to pursue him.

His career of guilt, however, was destined soon to close; for being met in King's-road, Chelsea, by a patrol named Jones, on Sunday night, the 20th of March, under suspicious circumstances, he was taken into custody, and a pistol and sword-stick were found in his possession. Information of his capture being published, on the morning of his examination at Bow-street, he was instantly recognised by Jones and Treadwell, the two coachmen, his robberies upon whom we have described; and further proof of his identity in the former case was found in a duplicate which was taken from his pocket, referring to the pawning of the watch of the prosecutor.

Three other charges of a similar character were subsequently preferred against him by other coachmen, whom he had induced to convey him to unfrequented places in the vicinity of London; and a fourth case of robbery on the highway was proved by John Chilton, a porter at Messrs. Spode's Staffordshire warehouse, whom he had met at Bayswater, and whom, after having maltreated and wounded, he had robbed of three shillings and sixpence.

On his trial the prisoner was recognised as a discharged artillery-man, and was identified by Treadwell, one of his prosecutors, as having been his fellow-prisoner in the King's Bench; and he was found guilty, and sentenced to death.

He was hanged at the Old Bailey in the month of June 1803, apparently fully sensible of the enormity of the crimes which he had committed.

GEORGE FOSTER.

EXECUTED FOR THE MURDER OF HIS WIFE AND CHILD.

THE conviction of this wretched man was founded entirely upon circumstantial evidence.

He was indicted on the 14th January, 1803, at the Old Bailey, for the wilful murder of his wife and child.

From the testimony of the witnesses called in support of the case for the prosecution, it appeared, that the prisoner lived in a place called North row, Grosvenor-square, and that his wife and child lived with the mother of the former in Old Boswell-court, but were in the habit of going to the prisoner's lodgings to sleep, every Saturday night. On the 4th December, in compliance with this custom, his wife quitted her mother's house with the child, and was never more seen by her until the Wednesday following, when her body was picked up in the Paddington Canal, near the Mitre Tavern, at a distance of about two miles from Paddington. Inquiries were subsequently made, the result of which proved, that the prisoner had been seen with his wife at the Mitre, as late as half-past four o'clock on the evening of the 5th December, and that then they went away together, walking by the side of the canal towards London. The prisoner was met in town, by an acquaintance, at about six o'clock; but no suspicion was entertained until the discovery of the body. The prisoner was then taken into custody, when he declared that immediately on his leaving the Mitre, he had quitted his wife, and had gone across the fields as far as Whetstone, on his way to Barnet to see two of his children, who were in the workhouse there; but that on his arrival there, it was so dark that he returned to London at about eight o'clock, but that he never saw his wife again.

The learned judge, in summing up the case to the jury, remarked to them that the prisoner's story was utterly at variance and inconsistent with the evidence adduced; and a verdict of Guilty was returned, and the prisoner was sentenced to death.

He subsequently confessed the justice of his conviction and punishment; and admitted that he had conducted his wife twice to the same spot with the

same object, before he could summon up courage to destroy her. He assigned no reason for the diabolical deed, except that he had taken an unaccountable dislike for her, and did not know how otherwise to rid himself of her.

He was executed at the Old Bailey, on the 18th January, 1803.

After he had hung the usual time, his body was cut down and conveyed to a house not far distant, where it was subjected to the Galvanic process, by Professor Aldini, under the inspection of Mr. Keate, Mr. Carpue, and other medical gentlemen. M. Aldini, who was the nephew of the discoverer of this most interesting science, showed the powers of Galvanism to be far superior to those of any other stimulant. On the first application of the process to the face, the jaw of the deceased criminal began to quiver, and the adjoining muscles were horribly contorted, and one eye actually opened. In the subsequent part of the process, the right hand was raised and clenched, and the legs and thighs were set in motion. Mr. Pass, the beadle of the Surgeons' Company, being officially present during the time of these extraordinary experiments, was so alarmed, that on his going home he died from fright.

An experiment of another description was made on a convict, named Patrick Redmond, who was hanged for a street-robbery, on the 24th of February, 1767, in order to bring him to life. It appears that the sufferer had hung twenty-eight minutes, when the mob rescued the body, and carried it to an appointed place, where a surgeon was in attendance to try the experiment of *bronchotomy*, which is an incision in the windpipe, and which, in less than six hours, produced the desired effect. A collection was made for the poor fellow, and interest made to obtain his pardon, for it will be remembered that the law says the condemned shall *hang until he is dead*; consequently, men who, like Redmond, recovered, are liable to be again hanged up until they are dead.

ROBERT EMMET.

EXECUTED FOR HIGH TREASON.

THIS enthusiast was the son of Dr. Emmet, a man of good family, and possessed of considerable wealth; but who, having imbibed opinions favourable to republicanism, took care to instil them into his children. His eldest son was implicated in the Irish rebellion of 1798, and escaped with his life upon the terms offered to Arthur O'Connor, Dr. M'Nevin, and others, and accepted by them, and, like them, became an exile in a foreign land.

The hero of the present sketch was intended for the Irish Bar, and received a most liberal education. In Trinity College he became conspicuous, not only for his abilities, but for his display of eloquence in the "Historical Debating Society," a school which matured the talents of Bushe, Burrows, and several other members of the Irish Bar. Young Emmet, however, wanted discretion; and having too often avowed his political principles, a prosecution was threatened, to avoid which he precipitately fled to France, where his republican opinions were confirmed.

In 1803 he returned to Dublin, not being then more than twenty-four years of age, and found himself in possession of three thousand five hundred pounds, left him by his father, then recently deceased. With this money, and the talents and connexions which he possessed, he might easily have established his own independence; but the sober business of life had no attractions for him; he aspired to greater fame, and resolved to attempt the separation of his country from England.

Wild and extravagant as the scheme was, he entered seriously upon it, and easily found abettors among those who had escaped the angry vengeance of 1798. Having procured several associates, he took a house in Patrick-street, and converted it into a rebel depôt for powder, guns, swords, pikes, &c. In the purchase and preparation of these he expended upwards of one thousand pounds; but before the plan of insurrection was ripe, the powder in the magazine, through accident, ignited, and the whole depôt was blown into the air. Such, however, was the fidelity of Emmet's partisans,

that no discovery took place, further than that caused by the explosion; and the government, who ordered the guns to be brought to the Castle, remained ignorant of the purpose for which those destructive implements were provided.

A mind so sanguine as that of Emmet was not to be damped by an accidental disappointment: he collected his partisans, took another house in a lane in Thomas-street, and again commenced preparations for a popular rebellion. The ramifications of treason were easily extended through Ireland, where the discontent of the Catholics induced them to join in any extravagant scheme which promised them redress of grievances. Emmet had correspondents in every county; and the 23rd of July 1803 was the day appointed for a general rising, the signal of which was to be an attack upon Dublin.

The plan of surprising the metropolis was admirably adapted for its sanguinary purpose; but fortunately several disappointments took place, and Emmet was unable to proceed as he intended. In the confusion of such a moment the rebels deceived one another, and several hundred men, who came in from the country, returned home, being told that the *rising* was postponed, while those who remained were crowded into the depôt, and impeded the preparations. It was too late, however, to retract, or alter the intended movement, as Emmet expected the whole country to rise on that night. He therefore made the desperate attempt, and, with eighty followers, sallied out, at nine o'clock, into Thomas-street, and made towards the Castle, which he intended to surprise.

The experience of a few minutes showed him his madness and folly; for he quickly found himself without authority, in the midst of a ruffianly mob, who would neither obey nor accompany him; but who soon convinced him, that, though cowardly, they were brutal and sanguinary. When he had arrived at the market-house, his followers had diminished to eighteen, and as he was now convinced of his rashness, he prevented the discharge of a rocket which was to be the signal for the outposts to commence hostilities. This act saved the lives of hundreds, for the Wexford men, to the number of three hundred, had assembled on the Coal-quay, and other large bodies had met in the barley-fields behind Mountjoy-square; all of whom, in consequence, escaped uninjured, and were prevented from inflicting injury on others.

The rebel band in Thomas-street, meanwhile, largely increased in numbers; but, being without a leader, they remained confused and inactive. At this moment, however, an act of atrocity was perpetrated, sufficiently serious to exhibit the nature of the design. The coach of the lamented Lord Kilwarden, chief-justice of the Court of King's Bench, containing his lordship, and his nephew and niece, the Rev. Mr. Wolfe, and Miss Wolfe, drove up, and was instantly surrounded. Much confusion prevailed, and his lordship received a deadly stab from the hand of an assassin which eventually deprived him of life: his nephew was dragged from the vehicle and ill-treated; but Miss Wolfe was borne to an opposite house in the arms of a lusty rebel, apparently more humane than his comrades.

The precise particulars of the murder of Lord Kilwarden are not known, and have always been the subject of controversy. By some it is alleged that it was the unpremeditated act of a ferocious rabble; by others, that he was mistaken for another person; but there is another account, which admits the mistake in the first instance, but subjoins other particulars, which appear sufficiently probable. It is related, that, in the year 1795, when his lordship was attorney-general, a number of young men, between the ages of fifteen and twenty years, were indicted for high treason, and upon the day appointed for their trial they appeared at the bar, wearing shirts with tuckers and open collars, in the manner usual with boys. When the chief-justice of the King's Bench appeared in court to proceed with their trial, he remarked, "Well, Mr. Attorney, I suppose you are ready to go on with the trial of these tuckered traitors?" The attorney-general was quite prepared to proceed at once; but, disgusted with the remark which had been made, he said, "No, my lord, I am not ready;" and he added in a lower tone to the prisoners' counsel, "If I have any power to save the lives of these boys, whose extreme youth I did not before observe, that man shall never have the gratification of passing sentence upon one of these *tuckered* traitors." He performed his promise, and soon afterwards procured pardons for them all, upon condition of their going abroad. One of them, however, refused to accept the pardon upon the condition imposed; and being obstinate, he was tried, convicted, and executed. After his death, it is said that his relatives, readily listening to every misrepresentation which flattered their resentment, became persuaded that the attorney-general had selected him alone to suffer the utmost severity of the laws. One of these, a person named Shannon, was an insurgent of the 23rd July; and when Lord

Kilwarden, hearing the popular cry of vengeance, exclaimed from his carriage, "It is I, Kilwarden, chief-justice of the King's Bench," Shannon immediately cried out, "Then you are the man I want," and instantly plunged a pike into his lordship's body.

Whatever may be the truth or falsehood of this story, his lordship's death, there is no doubt, was the effect of the violence of the mob on this occasion; and it appears, that the fatal wound had scarcely been given, when a party of military reaching the spot, the people were put to flight, and his lordship's body rescued from further violence, and conveyed to Werburgh-street.

Major Swan soon after arrived, and in his fury at the attack upon so good a man, exclaimed indignantly, that every rebel taken with arms in his hands ought to be instantly hanged; when his lordship, who still lived, turned round, and impressively exhorted him "to let no man suffer but by the laws of his country." In a few minutes after, this great and good man expired.

For a few hours the rebels continued to skirmish with the military, and several men were killed. By morning, however, all appearance of rebellion had vanished, and large rewards were offered for the apprehension of the leader, Robert Emmet, who had escaped to the county of Wicklow, where he arrived in time to prevent a rising of the assembled rebels.

This unfortunate young man was every way an enthusiast; for his love was as extravagant as his patriotism. It appears that soon after his return from France he visited at the house of Curran, the celebrated Irish barrister, and became attached to that gentleman's youngest daughter. Their affection was mutual, but unknown to Mr. Curran. Upon the failure of the insurrection Emmet might easily have effected his departure from the kingdom, had he attended solely to his safety; but, in the same spirit of romantic enthusiasm which distinguished his short career, he could not submit to leave the country to which he could never more return, without making an effort to have one final interview with the object of his unfortunate attachment, in order to receive her personal forgiveness for what he now considered as the deepest injury. With a view of obtaining this last gratification, he selected a place of concealment midway between Mr. Curran's country-house and Dublin; but before the meeting took place he was arrested. On his person were found some papers, which showed that he corresponded with Mr. Curran's family, in consequence of which that

gentleman's house was searched, and the letters there found were produced in evidence against him.

His trial came on, at the sessions-house, Green-street, Dublin, September the 19th, 1803, before Lord Norbury; and the evidence being conclusive, his conviction followed. When called upon in the usual way, before passing sentence, he addressed the Court as follows:—

“I am asked if I have anything to say why sentence of death should not be pronounced upon me. Was I to suffer only death, after being adjudged guilty, I should bow in silence; but a man in my situation has not only to combat with the difficulties of fortune, but also the difficulties of prejudice: the sentence of the law which delivers over his body to the executioner, consigns his character to obloquy. The man dies, but his memory lives; and that mine may not forfeit all claim to the respect of my countrymen, I use this occasion to vindicate myself from some of the charges advanced against me.

“I am charged with being an emissary of France:—’tis false! I am no emissary—I did not wish to deliver up my country to a foreign power, and least of all, to France. No! never did I entertain the idea of establishing French power in Ireland—God forbid! On the contrary, it is evident from the introductory paragraph of the Address of the Provisional Government, that every hazard attending an independent effort was deemed preferable to the more fatal risk of introducing a French army into the country. Small would be our claims to patriotism and to sense, and palpable our affectation of the love of liberty, if we were to encourage the profanation of our shores by a people who are slaves themselves, and the unprincipled and abandoned instruments of imposing slavery on others. If such an inference be drawn from any part of the proclamation of the Provisional Government, it calumniates their views, and is not warranted by the fact.—How could they speak of freedom to their countrymen? How assume such an exalted motive, and meditate the introduction of a power which has been the enemy of freedom in every part of the globe? Reviewing the conduct of France to other countries, could we expect better towards us? No! Let not, then, any man attaint my memory by believing that I could have hoped for freedom through the aid of France, and betrayed the sacred cause of liberty, by committing it to the power of her most determined foe: had I done so, I had not deserved to live; and dying with such a weight upon my character, I had

merited the honest execration of that country which gave me birth, and to which I would have given freedom.

“Had I been in Switzerland, I would have fought against the French—in the dignity of freedom, I would have expired on the threshold of that country, and they should have entered it only by passing over my lifeless corpse. Is it, then, to be supposed, that I would be slow to make the same sacrifice to my native land? Am I, who lived but to be of service to my country, and who would subject myself to the bondage of the grave to give her independence—am I to be loaded with the foul and grievous calumny of being an emissary of France? My Lords, it may be part of the system of angry justice to bow a man’s mind by humiliation to meet the ignominy of the scaffold; but worse to me than the scaffold’s shame or the scaffold’s terrors, would be the imputation of having been the agent of French despotism and ambition; and while I have breath I will call upon my countrymen not to believe me guilty of so foul a crime against their liberties and their happiness.

“Though you, my lord, sit there a judge, and I stand here a culprit, yet you are but a man, and I am another; I have a right therefore to vindicate my character and motives from the aspersions of calumny; and as a man to whom fame is dearer than life, I will make the last use of that life in rescuing my name and my memory from the afflicting imputation of having been an emissary of France, or seeking her interference in the internal regulation of our affairs.

“Did I live to see a French army approach this country, I would meet it on the shore with a torch in one hand and a sword in the other—I would receive them with all the destruction of war! I would animate my countrymen to immolate them in their very boats; and before our native soil should be polluted by a foreign foe, if they succeeded in landing, I would burn every blade of grass before them, raze every house, contend to the last for every inch of ground, and the last spot on which the hope of freedom should desert me, that spot I would make my grave: what I cannot do, I leave a legacy to my country, because I feel conscious that my death were unprofitable, and all hope of liberty extinct, the moment a French army obtained a footing in this land. God forbid that I should see my country under the hands of a foreign power. If the French should come as a foreign enemy, Oh! my countrymen! meet them on the shore with a torch in one hand, a sword in the other: receive them with all the destruction of war;

immolate them in their boats before our native soil shall be polluted by a foreign foe! If they proceed in landing, fight them on the strand, burn every blade of grass before them as they advance—raze every house; and if you are driven to the centre of your country, collect your provisions, your property, your wives, and your daughters; form a circle around them—fight while but two men are left; and when but one remains, let that man set fire to the pile, and release himself, and the families of his fallen countrymen, from the tyranny of France.

“My lamp of life is nearly expired—my race is finished: the grave opens to receive me, and I sink into its bosom. All I request, then, at parting from the world, is the charity of its silence. Let no man write my epitaph; for as no man, who knows my motives, dare vindicate them, let not prejudice or ignorance asperse them; let them and me repose in obscurity and peace, and my tomb remain undescribed, till other times and other men can do justice to my character.”

Judgment was then passed on him in the usual form, and he was ordered for execution. On his return to Newgate he drew up a statement of the insurrection, and the cause of its failure, which he requested might be sent to his brother, Thomas Addis, who was then at Paris.

The unfortunate young man, on the night before his execution, wrote to Mr. Curran and his son Robert, excusing himself for his conduct towards Miss Curran, and the firmness and regularity of the original hand-writing contain an affecting proof of the little influence which the approaching event exerted over his frame. The same enthusiasm which allured him to his destruction enabled him to support its utmost rigour. He met his fate with unostentatious fortitude; and although few could ever think of justifying his projects or regretting their failure, yet his youth, his talents, and the great respectability of his connexions, and the evident delusion of which he was the victim, have excited more general sympathy for his unfortunate end, and more forbearance towards his memory, than is usually extended to the errors or sufferings of political offenders.

Moore, the celebrated Irish bard, has lamented his fate in the following melody:—

Oh! breathe not his name—let it sleep in the shade!
Where cold and unhonor'd his relics are laid!
Sad, silent, and dark, be the tears that we shed,
As the night-dew that falls on the grass o'er his head.

But the night-dew that falls, though in silence it weeps,
Shall brighten with verdure the grave where he sleeps;
And the tear that we shed, though in secret it rolls,
Shall long keep his memory green in our souls.

Several of Emmet's deluded followers met the fate of their leader, and by their ignominious deaths, taught their countrymen the folly and madness of attempting to separate Ireland from this kingdom by violent means.

The following pathetic history of Miss Curran, after the death of her lover, is extracted from Washington Irving's "Sketch Book," in which it appears under the title of "The Broken Heart." It is rather long, but its beauty will amply repay the trouble of its perusal:—

"Every one must recollect the tragical story of young E——, the Irish patriot; it was too touching to be soon forgotten. During the troubles in Ireland he was tried, condemned, and executed, on a charge of treason. His fate made a deep impression on public sympathy. He was so young—so intelligent—so generous—so brave—so everything that we are apt to like in a young man. His conduct under trial, too, was so lofty and intrepid! The noble indignation with which he repelled the charge of treason against his country—the eloquent vindication of his name—and his pathetic appeal to posterity, in the hopeless hour of condemnation—all these entered deeply into every generous bosom, and even his enemies lamented the stern policy that dictated his execution.

"But there was one heart, whose anguish it would be impossible to describe. In happier days and fairer fortunes, he had won the affections of a beautiful and interesting girl, the daughter of a late celebrated Irish barrister. She loved him with the disinterested fervour of a woman's first and early love. When every worldly maxim arrayed itself against him; when blasted in fortune, and disgrace and danger darkened around his name, she loved him the more ardently for his very sufferings. If, then, his fate could awaken the sympathy even of his foes, what must have been the agony of her whose soul was occupied by his image! Let those tell who have had the portals of the tomb suddenly closed between them and the being they most loved on

earth—who have sat at its threshold, as one shut out in a cold and lonely world, from whence all that was most lovely and loving had departed.

“But then the horrors of such a grave! so frightful, so dishonoured! There was nothing for memory to dwell on that could soothe the pang of separation—none of those tender, though melancholy circumstances, that endear the parting scene—nothing to melt sorrow into those blessed tears, sent, like the dews of heaven, to revive the heart in the parching hour of anguish.

“To render her widowed situation more desolate, she had incurred her father’s displeasure by her unfortunate attachment, and was an exile from the paternal roof. But could the sympathy and kind offices of friends have reached a spirit so shocked and driven in by horror, she would have experienced no want of consolation; for the Irish are a people of quick and generous sensibilities. The most delicate and cherishing attentions were paid her by families of wealth and distinction. She was led into society, and they tried by all kinds of occupation and amusement to dissipate her grief, and wean her from the tragical story of her lover. But it was all in vain. There are some strokes of calamity that scathe and scorch the soul—that penetrate to the vital seat of happiness—and blast it, never again to put forth bud or blossom. She never objected to frequent the haunts of pleasure, but she was as much alone there as in the depth of solitude. She walked about in a sad reverie, apparently unconscious of the world around her. She carried with her an inward woe that mocked at all the blandishments of friendship, and ‘heeded not the song of the charmer, charm he never so wisely.’

“The person who told me her story had seen her at a masquerade. There can be no exhibition of far-gone wretchedness more striking and painful than to meet it in such a scene. To find it wandering like a spectre, lonely and joyless, where all around is gay—to see it dressed out in the trappings of mirth, and looking so wan and woe-begone, as if it had tried in vain to cheat the poor heart into a momentary forgetfulness of sorrow. After strolling through the splendid rooms and giddy crowd with an utter air of abstraction, she sat herself down on the steps of an orchestra, and looking about some time with a vacant air, that showed her insensibility of the garish scene, she began, with the capriciousness of a sickly heart, to warble a little plaintive air. She had an exquisite voice; but on this occasion it was so simple, so touching, it breathed forth such a soul of wretchedness, that

she drew a crowd mute and silent around her, and melted every one into tears.

“The story of one so true and tender could not but excite great interest in a country remarkable for enthusiasm. It completely won the heart of a brave officer, who paid his addresses to her, and thought that one so true to the dead could not but prove affectionate to the living. She declined his attentions, for her thoughts were irrevocably engrossed by the memory of her former lover. He, however, persisted in his suit. He solicited not her tenderness, but her esteem. He was assisted by her conviction of his worth, and her sense of her own destitute and dependent situation; for she was existing on the kindness of her friends. In a word, he at length succeeded in gaining her hand, though with the solemn assurance that her heart was unalterably another’s.

“He took her with him to Sicily, hoping that a change of scene might wear out the remembrance of early woes. She was an amiable and exemplary wife, and made an effort to be a happy one; but nothing could cure the silent and devouring melancholy that had entered into her very soul. She wasted away in a slow, but hopeless decline; and at length sank into the grave, the victim of a broken heart.”

COLONEL EDWARD MARCUS DESPARD, JOHN FRANCIS, JOHN WOOD, AND OTHERS.

EXECUTED FOR HIGH TREASON.

THE professed object of the plot, in which these misguided men were engaged, was neither more or less than the overthrow of the Government, and the destruction of the Royal Family.

The men, who were found guilty of being concerned in the project, were Edward Marcus Despard, aged fifty, a colonel in the army; John Francis, a private soldier, aged twenty-three; John Wood, a private soldier, aged thirty-six; Thomas Broughton, a carpenter, aged twenty-six; James Sedgwick Wratten, a shoemaker, aged thirty-five; John Macnamara, a carpenter, aged fifty; and Arthur Graham, a slater, aged fifty-three.

Colonel Despard, the ill-starred leader of the conspirators, was descended from a very ancient and respectable family, in the Queen's County in Ireland. He was the youngest of six brothers, all of whom, except the eldest, had served their country, either in the army or navy.

In 1766 he entered the army as an ensign in the 5th regiment; and he afterwards served in the same regiment as a lieutenant; and in the 79th he successively held rank as lieutenant, quarter-master, captain-lieutenant, and captain. From his superior officers he received many marks of approbation, particularly from General Calcraft, of the 50th, General Meadows, and the Duke of Northumberland. He had been, for the last twenty years before his execution, detached from any particular corps, and intrusted with important offices.

In 1779, he was appointed chief engineer to the St. Juan expedition, and conducted himself so as to obtain distinguished praise. He also received the thanks of the council and assembly of Jamaica, for the construction of public works there, and was, in consequence of these services, appointed, by the governor of Jamaica, to be commander-in-chief of the island of Rattan and its dependencies, and of the troops there; and to rank as lieutenant-colonel and field-engineer; and he commanded, as such, on the Spanish Main in Rattan, and on the Musquito shore, and Bay of Honduras.

After this, at Cape Gracias á Dios, he put himself at the head of the inhabitants, who voluntarily solicited him to take the command, and retook from the Spaniards Black River, the principal settlement of the coast. For this service he received the thanks of the governor, council, and assembly of Jamaica, and of the king himself. In 1783, he was promoted to the rank of colonel. In 1784, he was appointed first commissioner for settling and receiving the territory ceded to Britain by the sixth article of the definitive treaty of peace with Spain, in 1783; and he so well discharged his duty as colonel, that he was appointed superintendant of his majesty's affairs on the coast of Honduras, which office he held much to the advantage of the crown of England, for he obtained from that of Spain some very important privileges. The clashing interests, however, of the inhabitants of this coast produced much discontent, and the colonel was, by a party of them, accused of various misdemeanours to his majesty's ministers.

He now came home, and demanded that his conduct should be investigated; but, after two years' constant attendance on all the departments of government, he was at last told by the ministers, that there was no charge against him worthy of notice, and that his Majesty had thought proper to abolish the office of superintendant at Honduras, otherwise he should have been reinstated in it; but he was then, and on every occasion, assured, that his services should not be forgotten, but that they should, in due time, meet their reward.

Irritated by continued disappointments, he began to vent his indignation in an unguarded manner, and thus rendering himself liable to suspicion, he was for a considerable time confined in Cold Bath-fields' Prison, under the provisions of the Habeas Corpus Suspension Act, then recently passed. On his liberation it was found that his passions were not cooled by the imprisonment which he had undergone; and inflamed against the government himself, he at length succeeded in gaining over to his views others whose causes of complaint were even more trivial than those of their leader. Their proceeding soon became so notorious, that it was determined that the existence of the society which they had formed was no longer consistent with public safety; and in consequence of representations which were made, a search-warrant was issued, which was placed in the hands of the police for execution. A strong body of constables having assembled, they all proceeded to the Oakley Arms, Oakley-street, Lambeth, where they found and apprehended Colonel Despard and about forty other persons

assembled in a room together, the greater part of whom were men of indifferent character, and of low station in life. The prisoners were on the following day carried to Union Hall, to be examined by the magistrates sitting there; and in the end Colonel Despard, and thirty-two of his companions, were committed to Horsemonger-lane Gaol to await the final and determinate investigation of their cases before a jury.

For the better and more effectual trial of the prisoners, a special commission was issued, by virtue of which they were arraigned, on indictments which had been found against them, on the 7th February, 1803.

The first case gone into was that of Despard, and the indictment having been read, the case for the prosecution was opened by the attorney-general; and he stated that the prisoners had formed a society, the object of which was to overturn the government. His Majesty having intended to meet his Parliament a week earlier than he actually did, namely, on the 16th January instead of on the 23rd, the society proposed on that day to carry out their plan, which was in the first instance to lay a restraint upon the King's person, and to destroy him. They frequently attempted to seduce soldiers into their club, and on any of them being persuaded to join them, they administered false oaths to them, and gave them copies of the oath, in order that they might endeavour to make proselytes in their turn. Among others thus gained over was one Windsor, but soon after he had joined he became dissatisfied, and gave information of the conspiracy to a Mr. Bonus, to whom he showed a copy of the oath, but by the advice of that gentleman, he remained a member of the society with the design of learning whether there were any persons of note among its members. On the Friday before the intended assassination of the King, a meeting was held, at which Broughton, the prisoner, prevailed upon two of the associates to go to the Flying Horse, Newington, where they would meet with a "nice man," and it turned out that the person so described was Colonel Despard.

The witnesses were then examined; and after proof of the apprehension of the prisoners, as described already, had been given, and the printed papers which had been found, and which contained the form of the oath, &c., had been read, Thomas Windsor, the chief witness, was called.

He deposed as to the manner in which he took the oath, the effect of which was to bind him to support the views of the society in opposition to the King and his Government, and then proceeded to detail the plan which

was proposed to be put into execution. Despard was the leader and director of the whole proceedings; and he recommended that the proposed attack should be made on that day when his Majesty went to open Parliament. The object was to seize the person of the King; and Despard declared that "he had weighed the matter well, and that his heart was callous, and the King must be put to death." When the murder of his Majesty had been effected, the mail-coaches were to be stopped, so as to convey information to the agents of the plotters in the country of what had occurred; and then a simultaneous rising was to take place. The witness was to be engaged as an active party in the proceedings of the conspirators, and he was desired by the prisoner to meet him on Tower-hill, with some comrades, who were desirous of joining the society, to consider the best mode of surprising the Tower and securing the arms. Accompanied by the prisoner Wood therefore, and two other men, he went to the Tiger public-house, Tower-hill, where Despard soon joined them. The determination to destroy the reigning monarch was then again mentioned by Despard; and after a long discussion, it was agreed that Wood, whose turn it would be to stand sentry in the Park, near the great gun, should fire into the King's carriage. Before this diabolical design, however, could be carried into execution, the parties to the plot were apprehended.

Mr. Serjeant Best and Mr. Gurney, who were retained as counsel for Despard, severally addressed the jury on his behalf, contending that the testimony of Windsor was of such a character as to be entitled to no belief; and they then called Lord Nelson, Sir A. Clarke, and Sir E. Nepean, all of whom bore testimony to the character of the prisoner as a zealous and gallant officer. Lord Ellenborough, however, having summed up the evidence, the jury returned a verdict of Guilty, but earnestly recommended the prisoner to mercy, on account of his previous good character, and the services he had rendered to his country.

The other prisoners were subsequently tried, and twelve of them convicted upon the same evidence, three of whom were recommended to mercy.

On the prisoners being brought up to receive judgment, Colonel Despard, who had hitherto invariably preserved a strict silence, declared his innocence of the charge imputed to him of seducing the soldiers, and urged that the jury ought not to have convicted him upon such evidence as had been adduced.

The sentence was then pronounced upon them as traitors in the usual form; and on Saturday the 19th of February, information was received that the warrant of execution, authorising their being hanged on the Monday following, was made out, a portion of their sentence, namely, the taking out and burning of the bowels, being remitted. It was sent to the keeper of the New Gaol in the Borough, at six o'clock on Saturday evening, and included the names already given, three other prisoners, named Newman, Tyndal and Lander, being respited. As soon as the warrant for execution was received, it was communicated to the unhappy persons by the keeper of the prison; when Colonel Despard observed that the time was short, yet he had not had, from the first, any strong expectation that the recommendation of the jury would be effectual. The mediation of Lord Nelson, and a petition to the crown, were tried; but Colonel Despard was convinced, according to report, that they would be unavailing. Mrs. Despard, who was a native of the Bay of Honduras, was greatly affected when she first heard his fate was sealed; but she afterwards recovered her fortitude, and bore up with great firmness at parting with her husband.

The other prisoners bore their doom with equal fortitude, but conducted themselves with less solemnity than the colonel. Their wives were allowed to take a farewell of them on the same day, and the scene was truly distressing.

At day-light on Sunday morning, the drop, scaffold, and gallows, on which they were to be executed, were erected on the top of the gaol. All the Bow-street patrol, and many other peace-officers, were on duty all day and night; and a large body of the military was drawn up close to it.

On the following morning, Monday the 21st of February, 1803, at half-past six o'clock, the prison bell rang—the signal for unlocking the cells. At seven, Broughton, Francis, Graham, Wood, and Wratten went into the chapel with the Rev. Mr. Winkworth. They attended to the prayers with great earnestness, but at the same time without seeming to lose that firmness which they had displayed since their trial. Before they received the sacrament, four of them confessed they had done wrong, but not to the extent charged against them by the evidence. The fifth, Graham, said that he was innocent of the charges brought against him; but he admitted that he had attended two meetings, the second at the instigation of Francis.

For some time the clergyman refused to administer the sacrament to Francis, because he persisted in declaring he had been guilty of no crime. The clergyman said to him, "You admit you attended meetings?" He answered, "Yes." "You knew they were for the purpose of overturning the constitution of the country? I by no means wish you to enter into particulars. I only wish you to acknowledge generally." Francis rejoined, "I admit I have done wrong in attending those meetings;" and the sacrament was then administered to them.

Colonel Despard and Macnamara were then brought down from their cells, their irons knocked off, and their arms bound with ropes. On observing the sledge and apparatus the colonel smilingly cried out, "Ha! ha! what nonsensical mummerly is this!"

When the awful procession began, which was at half-past eight o'clock precisely, Macnamara was the first that came out. Colonel Despard was the last that appeared. He stepped into the hurdle with much fortitude, having an executioner on the right and on the left, on the same seat, with naked cutlasses. He was thus conducted to the outer lodge, whence he ascended the staircase leading to the place of execution. The prisoners were preceded by the sheriff, Sir R. Ford, the clergyman, Mr. Winkworth, and the Roman Catholic clergyman, Mr. Griffith.

Coffins, or shells, which had been previously placed in a room under the scaffold, were then brought up, and placed on the platform, on which the drop was erected; a bag of sawdust, to catch the blood when the heads were severed from the bodies, was placed beside them. The block was near the scaffold. There were about a hundred spectators on the platform, among whom were some persons of distinction, but the greatest order was observed.

Macnamara was the first on the platform; and when the cord was placed round his neck, he exclaimed, "Lord Jesus, have mercy upon me! O Lord, look down with pity upon me!" The populace were much struck by his appearance. Graham came second; he looked pale and ghastly, but spoke not; Wratten was the third; he ascended the scaffold with much firmness. Broughton, who was the fourth, joined in prayer with much earnestness. Wood was the fifth, and Francis the sixth. They were all equally composed.

Colonel Despard ascended the scaffold with great firmness, and his countenance underwent not the slightest change while the awful ceremony

of fastening the rope round his neck, and placing the cap on his head, was performing; he even assisted the executioner in adjusting the rope; and looked at the multitude with perfect calmness.

The clergyman, who ascended the scaffold after the prisoners were tied up, spoke to him a few words as he passed, and the colonel bowed and thanked him. The ceremony of fastening the prisoners being finished, the colonel advanced, as near as he could, to the edge of the scaffold, and made the following speech to the multitude:—

“Fellow Citizens,—I come here, as you see, after having served my country—faithfully, honourably, and usefully served it, for thirty years and upwards—to suffer death upon a scaffold for a crime of which I protest I am not guilty. I solemnly declare that I am no more guilty of it than any of you who may be now hearing me. But, though his Majesty’s ministers know as well as I do that I am not guilty, yet they avail themselves of a legal pretext to destroy a man, because he has been a friend to truth, to liberty, and justice——” [There was a considerable huzza from part of the populace the nearest to him, but who, from the height of the scaffold from the ground, could not, for a certainty, distinctly hear what was said. The colonel proceeded]——“because he has been a friend to the poor and distressed. But, citizens, I hope and trust, notwithstanding my fate, and the fate of those who no doubt will soon follow me, that the principles of freedom, of humanity, and of justice, will finally triumph over falsehood, tyranny, and delusion, and every principle hostile to the interests of the human race. And now, having said this, I have little more to add——” [The colonel’s voice seemed to falter a little here—he paused a moment, as if he had meant to say something more, but had forgotten it. He then concluded in the following manner.] “I have little more to add, except to wish you all health, happiness, and freedom, which I have endeavoured, as far as was in my power, to procure for you and for mankind in general.”

The Colonel generally spoke in a firm and audible tone of voice, and left off sooner than was expected. There was no public expression of feeling at the conclusion of his address.

As soon as he had ceased speaking, the clergyman prayed with the other prisoners, and after a few minutes he shook each by the hand. The executioners then pulled the caps over the faces of the unhappy men, and having quitted the scaffold, the signal was immediately afterwards given,

and the drop fell. The Colonel had not one struggle; twice he opened and shut his hands, convulsively, and he stirred no more. Macnamara, Graham, Wood, and Wratten were motionless after a few struggles, but Broughton and Francis were much convulsed for some time after their companions had ceased to live.

After they had hung for about half an hour, and when they were quite dead, they were cut down. Colonel Despard was the first who was removed from the gallows; his body was placed upon sawdust, and his head upon a block; and after his coat had been taken off, his head was severed from his body by persons engaged on purpose to perform that ceremony. The executioner then took the head by the hair, and carrying it to the edge of the parapet on the right hand, held it up to the view of the populace, and exclaimed "This is the head of a traitor, Edward Marcus Despard." The same ceremony was performed on the parapet at the left hand. There was some hooting and hissing when the colonel's head was exhibited. His remains were now put into the shell that had been prepared for them.

The other prisoners were afterwards successively cut down, their heads severed from their bodies, and exhibited to the populace, with the same exclamation of, "This is the head of another traitor:" and the bodies were put into their different shells, and delivered to their friends for interment.

The crowd at the entrance of Horsemonger-lane was immense; and as the time of execution drew near, the people from all parts came with such force as to bear down all opposition. Those who had been in dry situations were pushed into the middle of the road, where they stood almost up to the knees in mud, and many lost their shoes by the continual pushing and jostling.

While the heads were exhibiting, the populace took off their hats. The execution was over by ten o'clock, and the populace soon after dispersed quietly. There was not the least tendency to riot or disturbance. The precautions, however, taken by Government, were only such as were highly necessary and proper. A sky-rocket was sent to the keeper of the prison to be let off, as a signal to the military, in case of any disturbance.

The body of Colonel Despard having lain at Mount-row, opposite the Asylum, was taken away on the first of March, by his friends, with a hearse and three mourning-coaches, and interred near the north door of St. Paul's Cathedral, St. Paul's churchyard. The crowd was great; but when the grave

was covered in, the people immediately and quietly dispersed. The city marshal was present, lest there should be any disturbance on the occasion.

JOHN HATFIELD.

EXECUTED FOR FORGERY.

THE variety of the adventures of this man render his name worthy to be recorded in the annals of crime.

It appears that he was the son of poor parents, who lived at Mortram, near Longdale, in Cheshire, and that he was born there, in the year 1759. Having by some means procured the situation of rider or traveller to a linen-draper in the north of England, in the course of his travels he became acquainted with a young woman, who was under the guardianship of a respectable farmer, but who was in reality the natural daughter of Lord Robert Manners. The secret of her birth was not generally known, but it was communicated to our hero, with an intimation that upon her marriage, provided it should be with the consent of her father, a dowry of 1000*l.* would be paid. He therefore lost no time in securing the good will of the young lady, and having then obtained the consent of her noble father, he was married to her, and received from his lordship the sum of 1500*l.* The money, however, was soon spent in the gaieties of London, by the bridegroom, and with his wife he was compelled to retreat into the country, where he continued until the year 1782. He, then, again visited the metropolis, having deserted his wife and three children, and in spite of his fallen fortunes he proceeded to live in a style of considerable extravagance, boasting of his near connexion with the Rutland family, and of his estates in the country. In the course of his residence in London, his unhappy wife died, and our hero was almost immediately afterwards conveyed to the King's Bench Prison for a debt of 160*l.* By the practice of an imposture he succeeded in obtaining the payment of his debt by the Duke of Rutland, and his consequent discharge, and he was then again thrown upon town to live upon his wits.

In the year 1785, the Duke of Rutland was appointed lord-lieutenant of Ireland; and directly after his arrival in Dublin, Hatfield followed him, and taking up his abode at a hotel in College-green, acquainted the landlord with his pretended connexion with the viceroy, and declared that he was only prevented from proceeding at once to the Castle, by the circumstance

of his carriage, and horses, and servants, not having yet arrived. A month was passed by the lodger in a pretended continued state of disappointment at the non-appearance of his equipage, and at the expiration of that period the landlord took the liberty of presenting his bill, which amounted to upwards of sixty pounds. Mr. Hatfield was in nowise confused, but said that although, fortunately, his agent was then in Ireland holding a public situation, he was, at that time, on a visit in the country, from which he would not return for three days. The landlord was satisfied; but on the fourth day he again made his appearance, and having been now directed to a gentleman at the Castle, he forthwith proceeded to him with his account. The answer was of a nature most unsatisfactory to his wishes; for the supposed agent very frankly told him, that he was the dupe of an impudent impostor; but he received some consolation from his being informed that others had suffered as well as he. His guest, however, was one who was no longer welcome at his table, but being under the necessity of driving him from his own house, he provided him with other lodgings in the Marshalsea, to which he was conveyed by virtue of a writ issued at his instance. On his entering the jail, Hatfield whispered the keeper and his wife, “to be sure and keep it a profound secret that he was a relation of the viceroy, as it might not be agreeable to his Excellency, that it should be known that he was in prison;” and the people, astonished at the discovery, which they then made for the first time, conducted him to the best apartment, had a table provided, and continued to furnish him with all the necessary commodities for his support during the ensuing three weeks. In the meantime, however, he had again petitioned the Duke for fresh supplies, and his Grace, being apprehensive that he might continue his impositions in Dublin, released him on condition of his quitting Ireland; and in order to be assured that this stipulation was obeyed, he sent a servant to see him on board the next vessel sailing for Holyhead.

He next visited Scarborough, and there practised similar impositions; but his frauds being discovered, he was arrested and lodged in jail, where he now continued for a period of eight years and a half. At the expiration of that time, a Miss Nation, of Devonshire, paid his debts and procured his liberation; and furthermore bestowed her hand on him in marriage. He then had the good fortune to obtain admission into a respectable firm at Tiverton as partner, and continued to live during about three years in apparent respectability; but then, having put up as a candidate for the borough of

Queenborough, his real character was discovered, and he was made a bankrupt. He now retired, leaving his second wife and two children behind him; and nothing more was heard of him until the year 1802, when he drove up in a carriage to the Queen's Head Inn, at Keswick, and assumed the name of Colonel the Hon. Alexander Augustus Hope, brother of the Earl of Hopetoun, and member for Linlithgow. Unfortunately some evil genius directed his steps to the once happy cottage of poor Mary, the only daughter of Mr. and Mrs. Robinson, an old couple, who kept a small public-house at the side of the beautiful lake of Buttermere, Cumberland; and who, by their industry, had amassed a small property; and poor Mary of Buttermere, whose charms have since become so celebrated from Wordsworth's sweet poem in which they are described, was doomed to become the victim of his villanous schemes. During a short stay at Buttermere, he contrived to wheedle himself into the good graces of poor Mary; but he was not to be satisfied with the possession of a country girl, when higher game came in view. On his first arrival at Keswick, he became acquainted with an Irish gentleman named Murphy, a member of the then existing Irish House of Commons, who with his family, and accompanied by a young lady, possessed of a considerable fortune, and no less personal attractions, was on a tour through the justly admired lakes of England. The affable condescension with which his advances were received, induced him to suppose, that his address and manners were not displeasing to the young lady, or her guardian, and he resolved to improve upon the opportunity which presented itself. Quitting the society of the gentle Mary, therefore, he returned to Keswick, and, ere long, he had so far ingratiated himself with the young lady, as to obtain from her a promise of her hand in marriage. Being known only by his assumed title, he was urged to write to Lord Hopetoun, to acquaint him with the intended union, and he promised instantly to comply with a request which appeared so reasonable. Writing letters, therefore, which by virtue of his pretended rank of M.P. he franked, he despatched them, and until answers were received, he proposed various trips to while away the time. The preparations for the marriage, however, occupied the time and attention of the young lady to too great a degree to permit her quitting Keswick, and Hatfield seized the opportunity to continue his courtship to the Beauty of Buttermere. In this manner some weeks elapsed, without any communication being received from the Earl of

Hopetoun; and the frequent, and now prolonged, absences of the supposed colonel excited some degree of surprise among his Irish friends.

At length, on the 1st October 1802, a letter was received from Hatfield, dated Buttermere, by Mr. Murphy, in which a request was contained that a draft inclosed, purporting to be drawn by Col. Hope, on Mr. Crampt, a banker in Liverpool, might be cashed; and that gentleman, still having no good reason to doubt the integrity of his correspondent, immediately transmitted to him 30*l.*, the amount of the check. On the 4th of the same month, however, Wood, the landlord of the Queen's Head, where the whole party had been stopping, brought over intelligence from the village of Lorton, in Buttermere, that Colonel Hope had been married on the previous day to Mary Robinson. On inquiry it turned out that this was perfectly true, and that the marriage having taken place, the bride and bridegroom had gone into Scotland to spend the honeymoon; and it being now obvious, that the latter, whoever he might be, had acted most dishonourably towards his ward, Mr. Murphy determined to write to Lord Hopetoun, for the purpose of ascertaining how far he was entitled to the name and rank which he had assumed. Circumstances soon transpired, which induced a belief that he had no pretensions to the character which he had taken, and a warrant was issued for his apprehension. In the meantime, he had proceeded with his bride, as far as Longtown, on their wedding trip, but on reaching that spot, he pretended surprise at not meeting some friends, whom, he said, he had expected, and returned to Buttermere. He was there charged with having assumed a fictitious name, but he flatly denied the truth of the allegation; but the warrant being brought, by which he was alleged to have forged several franks, as M.P. for Linlithgow, he was committed to the care of a constable. He, however, found means to make his escape from this custody; and having with great boldness passed through several towns, where his person was known, he was at length apprehended within sixteen miles of Swansea, and committed to Brecon jail. Before the magistrates, he declared that his name was Tudor Henry, but his person being identified, he was sent to London to be examined. He was then transmitted to Cumberland, where he was charged with forging several franks, and also with forging the bill for which he had obtained cash at Keswick, and he was committed for trial; the charge for bigamy, which also stood against him, not being preferred.

He was indicted at the ensuing assizes at Carlisle, and tried before Sir A. Thompson, when the jury found him guilty, and he was sentenced to death.

A notion very generally prevailed that he would escape capital punishment, and the arrival of the mail was daily expected with the greatest impatience. No pardon arriving, however, September 3, 1803, (Saturday,) was at last fixed upon for the execution.

The gallows was erected on the preceding night, between twelve and three, in an island formed by the river Eden, on the north side of the town, between the two bridges. From the hour when the jury found him guilty, he behaved with the utmost serenity and cheerfulness. He received the visits of all who wished to see him, and talked upon the topics of the day with the greatest interest or indifference. He could scarcely ever be brought to speak of his own case, and he neither blamed the verdict, nor made any confession of his guilt. He said that he had no intention to defraud those whose names he forged; but was never heard to say that he was to die unjustly. The alarming nature of the crime of forgery, in a commercial country, had taught him from the beginning to entertain no hope of mercy.

By ten o'clock in the morning of September 3, his irons were struck off; and he then appeared as usual, and no alteration or increased agitation, whatever, was observed in his manner.

Soon after ten o'clock he sent for the "Carlisle Journal," and perused it for some time, and a little after he had laid aside the paper, two clergymen attended him, and prayed with him. He afterwards wrote several letters and shaved himself, and at three o'clock he ate a hearty dinner with the jailor. Having afterwards drunk two glasses of wine, he partook of some coffee, and then set out for the scaffold. He was pinioned in the turnkey's lodge, where he sent for the executioner and gave him some silver. He afterwards exhibited great composure, and when he came to the gallows, he asked whether that "was the tree he was to die on?" On being answered in the affirmative, he exclaimed, "Oh! a happy sight, I see it with pleasure."

He then ascended the cart, which had been placed under the rope, and appeared perfectly cool and collected. Having himself assisted in completing the requisite preparations, he took leave of the sheriffs, and prepared himself calmly for his fate.

On his being turned off, great apprehensions were entertained that it would be necessary to tie him up a second time. The noose slipped twice, and he fell down above eighteen inches, and his feet at last were almost touching the ground; but his excessive weight, which occasioned this

accident, speedily relieved him from pain. He expired in a moment, and without any struggle.

He was cut down after he had hung about an hour. On the preceding Wednesday he had had a carpenter to take his measure for his coffin, and he ordered it to be a strong oak one, plain and neat, requesting that, after he was taken down, he might be put into it immediately, with the apparel he might have on, and carried to the churchyard of Burgh-on-Sands, there to be interred in the evening.

The conscientious parishioners of Burgh, however, objected to his being laid there, and the body was consequently conveyed in the hearse to St. Mary's, Carlisle, where it was interred in a distant corner of the churchyard, far from the other tombs. No priest attended, and the coffin was lowered without any religious service. Notwithstanding his various and complicated enormities, his untimely end excited considerable commiseration. His manners were extremely polished and insinuating, and he was possessed of qualities which might have rendered him an ornament of society.





Shooting a Ghost.

P. 399

FRANCIS SMITH.

CONDEMNED FOR THE MURDER OF A SUPPOSED GHOST.

THE Hammersmith Ghost will be in the remembrance of every one. Its vagaries and mischievous pranks were in some cases productive of very serious consequences, and in no instance were more melancholy effects produced than in that of the unfortunate prisoner, whose case is now before us, who shot a poor man, who offended only in wearing the garb of his trade at night, and who was afterwards tried and condemned to death for the offence.

Among the other evil effects produced by the absurd proceedings of the ghost, it appears that one poor woman in particular, who was far advanced in her pregnancy of a second child, was so much shocked on seeing him, that she took to her bed, and survived only two days. She had been crossing near the churchyard about ten o'clock at night, when she beheld something, as she described, rise from the tomb-stones. The figure was very tall, and very white. She attempted to run, but the ghost soon overtook her, and, pressing her in his arms, she fainted, and fell to the ground. In this situation she remained some hours, till discovered by some neighbours, who kindly led her home, when she took to her bed, from which she never rose.

The ghost had so much alarmed a waggoner, belonging to Mr. Russel, driving a team of eight horses, and which had sixteen passengers at the time, that the driver took to his heels, and left the waggon and horses so precipitately, that the whole were greatly endangered.

Francis Smith, the subject of this sketch, doubtless incensed at the unknown person who was in the habit of assuming this supernatural character, and thus frightening the superstitious inhabitants of the village, rashly determined on watching for, and shooting the ghost; when unfortunately he shot a poor man, named Thomas Milwood, a bricklayer, who was in a white dress, the usual habiliment of his occupation. This rash act having been judged wilful murder by the coroner's inquest, Smith was committed to jail, and took his trial at the ensuing sessions at the Old Bailey, on the 13th January.

The evidence adduced was, that the unfortunate deceased had quitted the residence of his father and mother only five minutes before he was killed; and that, as he was passing along Black Lion-lane, the prisoner saw him and called out, "Damn you, who are you? I'll shoot you, if you don't speak." No answer was returned, and the prisoner then fired and the contents of his gun struck the deceased on the jaw, and he fell down dead. The prisoner immediately went in search of assistance, but it was found to be too late, and he then surrendered himself into custody. It afterwards proved that he had agreed with a watchman to go in search of the ghost; and that his only object was to rid the neighbourhood of the visitor, who had occasioned so much mischievous alarm.

The defence set up was that no bad design actuated the prisoner in his attack upon the supposed spirit, and many witnesses were called, who proved the alarm which had been occasioned by the visits of a preternatural being.

The Lord Chief Baron, Mr. Justice Rooke, and Mr. Justice Lawrence, who were on the Bench, severally expressed their opinion, that the case proved amounted to murder; and that if a man killed another by design, without authority, but from a supposition that he ought to be killed, the offence amounted to murder. The Jury attempted to bring in a verdict of manslaughter only, but the opinion of the learned Judges being repeated they returned a general verdict of guilty, and recommended the prisoner to mercy.

The Recorder then passed sentence of death on the prisoner in the usual form; which was, that he should be executed on the following Monday, and his body given to the surgeons to be dissected.

The prisoner, who was dressed in a suit of black clothes, was twenty-nine years of age, a short but well-made man, with dark hair and eye brows; and the pallid hue of his countenance, during the whole trial, together with all the signs of contrition which he exhibited, commanded the sympathy of every spectator.

The case excited great interest, and the Court and its environs were crowded during the trial, by persons anxious to learn his fate.

The Lord Chief Baron having told the jury, after they had given their verdict, that he would immediately report the case to his Majesty, was so speedy in this humane office, that a respite during pleasure was sent to the

Old Bailey before seven o'clock, and on the twenty-fifth, the prisoner received a pardon on condition of his being imprisoned during one year.

The ghost appears to have taken alarm at the consequences of his absurd trifling with the feelings of his fellow subjects, and he was not again seen.

We cannot dismiss this subject without referring to other cases of supposed ghosts, which in their time attracted no inconsiderable portion of public attention, and excited no small degree of alarm. The most famous of these was known by the name of the "Cock Lane Ghost," and the circumstances connected with the case are so curious, and afford so fair a specimen of the easy credulity even of well-informed and otherwise sensible people, that we feel little hesitation in placing an account of them before our readers.

The Cock Lane Ghost kept London in a state of commotion for no short time, and was the universal theme of conversation among the learned and the illiterate, and in every circle of society, "from the prince to the peasant." It appears that at the commencement of the year 1760, there resided in Cock Lane, near West Smithfield, in the house of one Parsons, the parish clerk of St. Sepulchre's, a stockbroker, named Kent. The wife of this gentleman had died in child-bed during the previous year; and his sister-in-law, Miss Fanny, had arrived from Norfolk to keep his house for him. They soon conceived a mutual affection, and each of them made a will in the other's favour. They lived some months in the house of Parsons, who, being a needy man, borrowed money of his lodger. Some differences arose betwixt them, and Mr. Kent left the house, and instituted legal proceedings against the parish clerk for the recovery of his money.

While this matter was yet pending, Miss Fanny was suddenly taken ill of the small-pox, and, notwithstanding every care and attention, she died in a few days, and was buried in a vault under Clerkenwell church. Parsons now began to hint that the poor lady had come unfairly by her death, and that Mr. Kent was accessory to it, from his too great eagerness to enter into possession of the property she had bequeathed him. Nothing further was said for nearly two years; but it would appear that Parsons was of so revengeful a character, that he had never forgotten or forgiven his differences with Mr. Kent, and the indignity of having been sued for the borrowed money. The strong passions of pride and avarice were silently at work during all that interval, hatching schemes of revenge, but dismissing

them one after the other as impracticable, until, at last, a notable one suggested itself. About the beginning of the year 1762, the alarm was spread over all the neighbourhood of Cock Lane, that the house of Parsons was haunted by the ghost of poor Fanny, and that the daughter of Parsons, a girl about twelve years of age, had several times seen and conversed with the spirit, who had, moreover, informed her, that she had not died of the small-pox, as was currently reported, but of poison, administered by Mr. Kent. Parsons, who originated, took good care to countenance these reports; and, in answer to numerous inquiries, said his house was every night, and had been for two years—in fact ever since the death of Fanny, troubled by a loud knocking at the doors and in the walls. Having thus prepared the ignorant and credulous neighbours to believe or exaggerate for themselves what he had told them, he sent for a gentleman of a higher class in life, to come and witness these extraordinary occurrences. The gentleman came accordingly, and found the daughter of Parsons, to whom the spirit alone appeared, and whom alone it answered, in bed, trembling violently, having just seen the ghost, and been again informed that she had died from poison. A loud knocking was also heard from every part of the chamber, which so mystified the not very clear understanding of the visiter, that he departed, afraid to doubt and ashamed to believe, but with a promise to bring the clergyman of the parish and several other gentlemen on the following day, to report upon the mystery.

On the following night he returned, bringing with him three clergymen, and about twenty other persons, including two negroes, when, upon a consultation with Parsons, they resolved to sit up the whole night, and await the ghost's arrival. It was then explained by Parsons, that although the ghost would never render itself visible to anybody but his daughter, it had no objection to answer the questions that might be put to it by any person present, and that it expressed an affirmation by one knock, a negative by two, and its displeasure by a kind of scratching. The child was then put into bed along with her sister, and the clergymen examined the bed and bed-clothes to satisfy themselves that no trick was played, by knocking upon any substance concealed among the clothes, as, on the previous night, the bed was observed to shake violently.

After some hours, during which they all waited with exemplary patience, the mysterious knocking was heard in the wall, and the child declared that she saw the ghost of poor Fanny. The following questions were then gravely

put by the clergyman, through the medium of one Mary Frazer, the servant of Parsons, and to whom it was said the deceased lady had been much attached. The answers were in the usual fashion, by a knock or knocks:—

“Do you make this disturbance on account of the ill usage you received from Mr. Kent?”—“Yes.”

“Were you brought to an untimely end by poison?”—“Yes.”

“How was the poison administered, in beer or in purl?”—“In purl.”

“How long was that before your death?”—“About three hours.”

“Can your former servant, Carrots, give any information about the poison?”—“Yes.”

“Are you Kent’s wife’s sister?”—“Yes.”

“Were you married to Kent after your sister’s death?”—“No.”

“Was anybody else, besides Kent, concerned in your murder?”—“No.”

“Can you, if you like, appear visibly to any one?”—“Yes.”

“Will you do so?”—“Yes.”

“Can you go out of this house?”—“Yes.”

“Is it your intention to follow this child about everywhere?”—“Yes.”

“Are you pleased in being asked these questions?”—“Yes.”

“Does it ease your troubled soul?”—“Yes.”

[Here there was heard a mysterious noise, which some wiseacre present compared to the fluttering of wings.]

“How long before your death did you tell your servant, Carrots, that you were poisoned?—An hour?”—“Yes.”

[Carrots, who was present, was appealed to; but she stated positively that such was not the fact, as the deceased was quite speechless an hour before her death. This shook the faith of some of the spectators, but the examination was allowed to continue.]

“How long did Carrots live with you?”—“Three or four days.”

[Carrots was again appealed to, and said that this was true.]

“If Mr. Kent is arrested for this murder, will he confess?”—“Yes.”

“Would your soul be at rest if he were hanged for it?”—“Yes.”

“Will he be hanged for it?”—“Yes.”

“How long a time first?”—“Three years.”

“How many clergymen are there in this room?”—“Three.”

“How many negroes?”—“Two.”

“Is this watch (held up by one of the clergymen) white?”—“No.”

“Is it yellow?”—“No.”

“Is it blue?”—“No.”

“Is it black?”—“Yes.”

[The watch was in a black shagreen case.]

“At what time this morning will you take your departure?”

The answer to this question was four knocks, very distinctly heard by every person present; and accordingly, at four o’clock precisely, the ghost took its departure to the Wheatsheaf public-house, close by, where it frightened mine host and his lady almost out of their wits by knocking in the ceiling right above their bed.

The rumour of these occurrences very soon spread over London, and every day Cock-lane was rendered impassable by the crowds of people who assembled around the house of the parish clerk, in expectation of either seeing the ghost or of hearing the mysterious knocks. It was at last found necessary, so clamorous were they for admission within the haunted precincts, to admit those only who would pay a certain fee; an arrangement which was very convenient to the needy and money-loving Mr. Parsons. Indeed, things had taken a turn greatly to his satisfaction; he not only had his revenge, but he made a profit out of it. The ghost, in consequence, played its antics every night, to the great amusement of many hundreds of people, and the great perplexity of a still greater number.

Unhappily, however, for the parish clerk, the ghost was induced to make some promises which were the means of utterly destroying its reputation. It promised, in answer to the questions of the Reverend Mr. Aldritch of Clerkenwell, that it would not only follow the little Miss Parsons wherever she went, but would also attend him, or any other gentleman, into the vault under St. John’s church, where the body of the murdered woman was deposited, and would there give notice of its presence by a distinct knock upon the coffin. As a preliminary, the girl was conveyed to the house of Mr. Aldritch near the church, where a large party of ladies and gentlemen, eminent for their acquirements, their rank, or their wealth, had assembled. About ten o’clock on the night of the 1st of February, the girl, having been

brought from Cock-lane in a coach, was put to bed by several ladies in the house of Mr. Aldritch, a strict examination having been previously made that nothing was hidden in the bedclothes. While the gentlemen, in an adjoining chamber, were deliberating whether they should proceed in a body to the vault, they were summoned into the bedroom by the ladies, who affirmed, in great alarm, that the ghost was come, and that they heard the knocks and scratches. The gentlemen entered accordingly, with a determination to suffer no deception. The little girl, on being asked whether she saw the ghost, replied, "No; but she felt it on her back like a mouse." She was then required to put her hands out of bed, and they being held by some of the ladies, the spirit was summoned in the usual manner to answer, if it were in the room. The question was several times put with great solemnity; but the customary knock was not heard in reply in the walls, neither was there any scratching. The ghost was then asked to render itself visible, but it did not choose to grant the request. It was next solicited to give some token of its presence by a sound of any sort, or by touching the hand or cheek of any lady or gentleman in the room; but even with this request the ghost would not comply.

There was now a considerable pause, and one of the clergymen went down-stairs to interrogate the father of the girl, who was waiting the result of the experiment. He positively denied that there was any deception, and even went so far as to say that he himself, upon one occasion, had seen and conversed with the awful ghost. This having been communicated to the company, it was unanimously resolved to give the ghost another trial; and the clergyman called out in a loud voice to the supposed spirit that the gentleman to whom it had promised to appear in the vault was about to repair to that place, where he claimed the fulfilment of its promise. At one hour after midnight they all proceeded to the church, and the gentleman in question, with another, entered the vault alone, and took up their position alongside of the coffin of poor Fanny. The ghost was then summoned to appear, but it appeared not; it was summoned to knock, but it knocked not; it was summoned to scratch, but it scratched not; and the two retired from the vault, with the firm belief that the whole business was a deception practised by Parsons and his daughter. There were others, however, who did not wish to jump so hastily to a conclusion, and who suggested that they were, perhaps, trifling with this awful and supernatural being, which, being offended with them for their presumption, would not condescend to answer

them. Again, after a serious consultation, it was agreed on all hands that, if the ghost answered anybody at all, it would answer Mr. Kent, the supposed murderer; and he was accordingly requested to go down into the vault. He went with several others, and summoned the ghost to answer whether he had indeed poisoned her. There being no answer, the question was put by Mr. Aldritch, who conjured it, if it were indeed a spirit, to end their doubts—make a sign of its presence, and point out the guilty person. There being still no answer for the space of half an hour, during which time all these boobies waited with the most praiseworthy perseverance, they returned to the house of Mr. Aldritch, and ordered the girl to get up and dress herself. She was strictly examined, but persisted in her statement that she used no deception, and that the ghost had really appeared to her.

So many persons had, by their openly expressed belief of the reality of the visitation, identified themselves with it, that Parsons and his family were far from being the only persons interested in the continuance of the delusion. The result of the experiment convinced most people; but these were not to be convinced by any evidence, however positive, and they therefore spread about the rumour, that the ghost had not appeared in the vault, because Mr. Kent had taken care beforehand to have the coffin removed. That gentleman, whose position was a very painful one, immediately procured competent witnesses, in whose presence the vault was entered, and the coffin of poor Fanny opened. Their deposition was then published; and Mr. Kent indicted Parsons and his wife, his daughter, Mary Frazer the servant, the Rev. Mr. Moor, and a tradesman, two of the most prominent patrons of the deception, for a conspiracy. The trial came on in the Court of King's Bench, on the 10th of July, before Lord Chief-Justice Mansfield, when, after an investigation which lasted twelve hours, the whole of the conspirators were found guilty. The Rev. Mr. Moor and his friend were severely reprimanded in open court, and recommended to make some pecuniary compensation to the prosecutor for the aspersions they had been instrumental in throwing upon his character. Parsons was sentenced to stand three times in the pillory, and to be imprisoned for two years: his wife to one year's, and his servant to six months' imprisonment in the Bridewell. A printer, who had been employed by them to publish an account of the proceedings for their profit, was also fined fifty pounds, and discharged.

The precise manner in which the deception was carried on has never been explained. The knocking in the wall appears to have been the work of

Parsons' wife, while the scratching part of the business was left to the little girl. That any contrivance so clumsy could have deceived anybody, cannot fail to excite our wonder. But thus it always is. If two or three persons can only be found to take the lead in any absurdity, however great, there is sure to be plenty of imitators. Like sheep in a field, if one clears the stile, the rest will follow.

About ten years afterwards, London was again alarmed by the story of a haunted house. Stockwell, near Vauxhall, the scene of the antics of this new ghost, became almost as celebrated in the annals of superstition as Cock Lane. Mrs. Golding, an elderly lady, who resided alone with her servant, Anne Robinson, was sorely surprised on the evening of Twelfth-day, 1772, to observe a most extraordinary commotion among her crockery. Cups and saucers rattled down the chimney—pots and pans were whirled down stairs, or through the windows; and hams, cheeses, and loaves of bread disported themselves upon the floor as if the devil were in them. This, at least, was the conclusion that Mrs. Golding came to; and being greatly alarmed, she invited some of her neighbours to stay with her, and protect her from the evil one. Their presence, however, did not put a stop to the insurrection of china, and every room in the house was in a short time strewn with the fragments. The chairs and tables joined, at last, in the tumult, and things looked altogether so serious and inexplicable, that the neighbours, dreading that the house itself would next be seized with a fit of motion, and tumble about their ears, left poor Mrs. Golding to bear the brunt of it by herself. The ghost in this case was solemnly remonstrated with, and urged to take its departure; but the demolition continuing as great as before, Mrs. Golding finally made up her mind to quit the house altogether. She took refuge with Anne Robinson in the house of a neighbour; but his glass and crockery being immediately subjected to the same persecution, he was reluctantly compelled to give her notice to quit. The old lady, thus forced back to her own house, endured the disturbance for some days longer, when suspecting that Anne Robinson was the cause of all the mischief, she dismissed her from her service. The extraordinary appearances immediately ceased, and were never afterwards renewed; a fact which is of itself sufficient to point out the real disturber. A long time afterwards, Anne Robinson confessed the whole matter to the Rev. Mr. Brayfield. This gentleman confided the story to Mr. Hone, who has published an explanation of the mystery. Anne, it appears, was anxious to have a clear house, to carry on an intrigue with her

lover, and resorted to this trick to effect her purpose. She placed the china on the shelves in such a manner that it fell on the slightest motion, and attached horse-hairs to other articles, so that she could jerk them down from an adjoining room without being perceived by any one. She was exceedingly dexterous at this sort of work, and would have proved a formidable rival to many a juggler by profession.

In later days, the alarming vagaries of “Swing,” and “Spring-heeled Jack,” have occasioned scarcely less alarm. Their claims to supernatural powers have not been supported by such plausible evidence as those of any of the ghosts which we have yet named, but their proceedings have been no less troublesome and mischievous to the well-disposed of the subjects of this realm.

One or two anecdotes with regard to haunted houses, though rather beside the immediate object of this work, may yet prove interesting, as illustrative of the general subject of ghosts, and the degree of belief to be put in such supernatural visitors.

One of the best stories which we recollect to have heard of a haunted house, is that which is related of the Royal Palace at Woodstock, in the year 1649, when the commissioners sent from London by the Long Parliament to take possession of it, and efface all the emblems of royalty about it, were fairly driven out by their fear of the devil, and the annoyances they suffered from a roguish cavalier, who played the imp to admiration. The commissioners, dreading at that time no devil, arrived at Woodstock on the 13th of October 1649. They took up their lodgings in the late King’s apartments—turned the beautiful bed-rooms and withdrawing-rooms into kitchens and sculleries—the council-hall into a brewhouse, and made the dining-room a place to keep firewood in. They pulled down all the insignia of royal state, and treated with the utmost indignity everything that recalled to their memory the name or the majesty of Charles Stuart. One Giles Sharp accompanied them in the capacity of clerk, and seconded their efforts apparently with the greatest zeal. He aided them to uproot a noble old tree, merely because it was called the King’s Oak, and tossed the fragments into the dining-room to make cheerful fires for the commissioners. During the first two days they heard some strange noises about the house, but they paid no great attention to them. On the third, however, they began to suspect they had got into bad company; for they heard, as they thought, a supernatural dog under their bed, which gnawed their bedclothes. On the

next day the chairs and tables began to dance, apparently of their own accord. On the fifth day, something came into the bedchamber and walked up and down, and fetching the warming-pan out of the withdrawing-room, made so much noise with it that they thought five church-bells were ringing in their ears. On the sixth day, the plates and dishes were thrown up and down the dining-room. On the seventh, they penetrated into the bed-room in company with several logs of wood, and usurped the soft pillows intended for the commissioners. On the eighth and ninth nights, there was a cessation of hostilities; but on the tenth the bricks in the chimneys became locomotive, and rattled and danced about the floors, and round the heads of the commissioners all the night long. On the eleventh, the demon ran away with their breeches; and on the twelfth filled their beds so full of pewter-platters that they could not get into them. On the thirteenth night, the glass became unaccountably seized with a fit of cracking, and fell into shivers in all parts of the house. On the fourteenth, there was a noise as if forty pieces of artillery had been fired off, and a shower of pebble-stones, which so alarmed the commissioners, that, “struck with great horror, they cried out to one another for help.”

They first of all tried the efficacy of prayers to drive away the evil spirits; but these proving unavailing, they began seriously to reflect whether it would not be much better to leave the place altogether to the devil that inhabited it. They ultimately resolved, however, to try it a little longer; and having craved forgiveness of all their sins, betook themselves to bed. That night they slept in tolerable comfort, but it was merely a trick of their tormentor to lull them into false security. When, on the succeeding night, they heard no noises, they began to flatter themselves that the devil was driven out, and prepared accordingly to take up their quarters for the whole winter in the palace. These symptoms on their part became the signal for renewed uproar among the fiends. On the 1st of November, they heard something walking with a slow and solemn pace up and down the withdrawing-room, and immediately afterwards a shower of stones, bricks, mortar, and broken glass pelted about their ears. On the 2nd the steps were again heard in the withdrawing-room, sounding to their fancy very much like the treading of an enormous bear, which continued for about a quarter of an hour. This noise having ceased, a



Witchery at Woodstock.

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large warming-pan was thrown violently upon the table, followed by a number of stones, and the jawbone of a horse. Some of the boldest walked valiantly into the withdrawing-room, armed with swords and pistols, but could discover nothing. They were afraid that night to go to sleep, and sat up, making fires in every room, and burning candles and lamps in great abundance; thinking that, as the fiends loved darkness, they would not disturb a company surrounded with so much light. They were deceived, however: buckets of water came down the chimneys and extinguished the fires, and the candles were blown out, they knew not how. Some of the servants who had betaken themselves to bed were drenched with putrid

ditch-water as they lay; and arose in great fright, muttering incoherent prayers, and exposing to the wondering eyes of the commissioners their linen all dripping with green moisture, and their knuckles red with the blows they had at the same time received from some invisible tormentors. While they were still speaking, there was a noise like the loudest thunder, or the firing of a whole park of artillery; upon which they all fell down upon their knees and implored the protection of the Almighty. One of the commissioners then arose, the others still kneeling, and asked in a courageous voice, and in the name of God, who was there, and what they had done that they should be troubled in that manner. No answer was returned, and the noises ceased for a while. At length, however, as the commissioners said, “the devil came again, and brought with it seven devils worse than itself.” Being again in darkness, they lighted a candle and placed it in the doorway that it might throw a light upon the two chambers at once; but it was suddenly blown out, and one commissioner said that he had “seen the similitude of a horse’s hoof striking the candle and candlestick into the middle of the chamber, and afterwards making three escapes on the snuff to put it out.” Upon this, the same person was so bold as to draw his sword; but he asserted positively that he had hardly withdrawn it from the scabbard before an invisible hand seized hold of it and tugged with him for it, and prevailing, struck him so violent a blow with the pommel that he was quite stunned. Then the noises began again; upon which, with one accord, they all retired into the presence-chamber, where they passed the night, praying and singing psalms.

They were by this time convinced that it was useless to struggle any longer with the powers of evil, that seemed determined to make Woodstock their own. These things happened on the Saturday night; and, being repeated on the Sunday, they determined to leave the place immediately, and return to London. By Tuesday morning early, all their preparations were completed; and shaking the dust off their feet, and devoting Woodstock and all its inhabitants to the infernal gods, they finally took their departure.^[15]

Many years elapsed before the true cause of these disturbances was discovered. It was ascertained, at the Restoration, that the whole was the work of Giles Sharp, the trusty clerk of the commissioners. This man whose real name was Joseph Collins, was a concealed royalist, and had passed his early life within the bowers of Woodstock; so that he knew every hole and corner of the place, and the numerous trap-doors and secret passages that

abounded in the building. The commissioners, never suspecting the true state of his opinions, but believing him to be revolutionary to the backbone, placed the utmost reliance upon him; a confidence which he abused in the manner above detailed, to his own great amusement, and that of the few cavaliers whom he let into the secret.

Quite as extraordinary and as cleverly managed was the trick played off at Tedworth, in 1661, at the house of Mr. Mompesson, and which is so circumstantially narrated by the Rev. Joseph Glanvil, under the title of "The Demon of Tedworth," and appended, among other proofs of witchcraft, to his noted work, called "Sadducismus Triumphatus." About the middle of April, in the year above mentioned, Mr. Mompesson, having returned to his house at Tedworth, from a journey he had taken to London, was informed by his wife that during his absence they had been troubled with the most extraordinary noises. Three nights afterwards he heard the noise himself; and it appeared to him to be that of "a great knocking at his doors, and on the outside of his walls." He immediately arose, dressed himself, took down a pair of pistols, and walked valiantly forth to discover the disturber, under the impression that it must be a robber; but, as he went, the noise seemed to travel before or behind him; and, when he arrived at the door from which he thought it proceeded, he saw nothing, but still heard "a strange hollow sound." He puzzled his brains for a long time, and searched every corner of the house; but, discovering nothing, he went to bed again. He was no sooner snug under the clothes, than the noise began again more furiously than ever, sounding very much like a "thumping and drumming on the top of his house, and then by degrees going off into the air."

These things continued for several nights, when it came to the recollection of Mr. Mompesson that, some time before, he had given orders for the arrest and imprisonment of a wandering drummer, who went about the country with a large drum, disturbing quiet people and soliciting alms, and that he had detained the man's drum, and that, probably, the drummer was a wizard, and had sent evil spirits to haunt his house, to be revenged of him. He became strengthened in his opinion every day, especially when the noises assumed, to his fancy, a resemblance to the beating of a drum, "like that at the breaking up of a guard." Mrs. Mompesson being brought to bed, the devil, or the drummer, very kindly and considerately refrained from making the usual riot; but, as soon as she recovered strength, began again, "in a ruder manner than before, following and vexing the young children,

and beating their bedsteads with so much violence that every one expected they would fall in pieces." For an hour together, as the worthy Mr. Mompesson repeated to his wondering neighbours, this infernal drummer "would beat 'Roundheads and Cuckolds,' the 'Tat-too,' and several other points of war, as cleverly as any soldier." When this had lasted long enough, he changed his tactics, and scratched with his iron talons under the children's bed. "On the 5th of November," says the Rev. Joseph Glanvil, "it made a mighty noise; and a servant, observing two boards in the children's room seeming to move, he bid it give him one of them. Upon which the board came (nothing moving it, that he saw) within a yard of him. The man added, 'Nay, let me have it in my hand;' upon which the spirit, devil, or drummer, pushed it towards him so close, that he might touch it. This," continues Glanvil, "was in the day-time, and was seen by a whole room-full of people. That morning it left a sulphurous smell behind it, which was very offensive. At night the minister, one Mr. Cragg, and several of the neighbours, came to the house on a visit. Mr. Cragg went to prayers with them, kneeling at the children's bedside, where it then became very troublesome and loud. During prayer-time, the spirit withdrew into the cock-loft, but returned as soon as prayers were done; and then, in sight of the company, the chairs walked about the room of themselves, the children's shoes were hurled over their heads, and every loose thing moved about the chamber. At the same time, a bed-staff was thrown at the minister, which hit him on the leg, but so favourably, that a lock of wool could not have fallen more softly." On another occasion, the blacksmith of the village, a fellow who cared neither for ghost nor devil, slept with John the footman, that he also might hear the disturbance, and be cured of his incredulity, when there "came a noise in the room, as if one had been shoeing a horse, and somewhat came, as it were, with a pair of pinchers," snipping and snapping at the poor blacksmith's nose the greater part of the night. Next day it came, panting like a dog out of breath; upon which some woman present took a bed-staff to knock at it, "which was caught suddenly out of her hand, and thrown away; and company coming up, the room was presently filled with a *bloomy noisome smell*, and was very hot, though without fire, in a very sharp and severe winter. It continued in the bed, panting and scratching for an hour and a half, and then went into the next room, where it knocked a little, and seemed to rattle a chain."

The rumour of these wonderful occurrences soon spread all over the country, and people from far and near flocked to the haunted house of Tedworth, to believe or doubt, as their natures led them, but all filled with intense curiosity. It appears, too, that the fame of these events reached the royal ear, and that some gentlemen were sent by the King to investigate the circumstances, and draw up a report of what they saw or heard. Whether the royal commissioners were more sensible men than the neighbours of Mr. Mompesson, and required more clear and positive evidence than they, or whether the powers with which they were armed to punish anybody who might be found carrying on this deception frightened the evil-doers, is not certain; but Glanvil himself confesses, that all the time they were in the house the noises ceased, and nothing was heard or seen. "However," says he, "as to the quiet of the house when the courtiers were there, the intermission may have been accidental, or perhaps the demon was not willing to give so public a testimony of those transactions which might possibly convince those who he had rather should continue in unbelief of his existence."

As soon as the royal commissioners took their departure, the infernal drummer recommenced his antics, and hundreds of persons were daily present to hear and wonder. Mr. Mompesson's servant was so fortunate as not only to hear, but to see this pertinacious demon; for it came and stood at the foot of his bed. The exact shape and proportion of it he could not discover; but "he saw a great body, with two red and glaring eyes, which, for some time, were fixed steadily on him, and at length disappeared." Innumerable were the antics it played. Once it purred like a cat; beat the children's legs black and blue; put a long spike into Mr. Mompesson's bed, and a knife into his mother's; filled the porringers with ashes; hid a Bible under the grate; and turned the money black in people's pockets. "One night," says Mr. Mompesson, "there were seven or eight of these devils in the shape of men, who, as soon as a gun was fired, would shuffle away into an arbour;" a circumstance which might have convinced Mr. Mompesson of the mortal nature of his persecutors, if he had not been of the number of those worse than blind, who shut their eyes, and refuse to see.

In the mean time, the drummer, the supposed cause of all the mischief, passed his time in Gloucester gaol, whither he had been committed as a rogue and a vagabond. Being visited one day by some person from the neighbourhood of Tedworth, he asked what was the news in Wiltshire, and

whether people did not talk a great deal about a drumming in a gentleman's house there? The visiter replied, that he heard of nothing else; upon which the drummer observed, "I have done it; I have thus plagued him! and he shall never be quiet until he hath made me satisfaction for taking away my drum." No doubt the fellow, who seems to have been a gipsy, spoke the truth, and that the gang of which he was a member knew more about the noises at Mr. Mompesson's house than anybody else. Upon these words, however, he was brought to trial at Salisbury for witchcraft; and, being found guilty, was sentenced to transportation; a sentence which, for its leniency, excited no little wonder in that age, when such an accusation, whether proved or not, generally insured the stake or the gibbet. Glanvil says, that the noises ceased immediately the drummer was sent beyond the seas; but that, somehow or other, he managed to return from transportation,—“by raising storms and affrighting the seamen, it was said;” when the disturbances were forthwith renewed, and continued at intervals for several years. It was believed by many at the time, that Mr. Mompesson himself was privy to the whole matter, and permitted and encouraged these tricks in his house for the sake of notoriety; but it seems more probable that the gipsies were the real delinquents, and that Mr. Mompesson was as much alarmed and bewildered as his credulous neighbours, whose excited imaginations conjured up no small portion of these stories,—

“Which roll'd, and, as they roll'd, grew larger every hour.”

Many instances of a similar kind, during the seventeenth century, might be gleaned from Glanvil and other writers of that period; but they do not differ sufficiently from these to justify a detail of them.

ROBERT ASLETT,

CONDEMNED TO DEATH FOR EMBEZZLING PUBLIC PROPERTY.

MR. ASLETT had been in the employ of the Governor and Company of the Bank of England for about twenty-five years, and had conducted himself faithfully and meritoriously until he was induced, unfortunately, to speculate in the funds; when, in dereliction of that duty and fidelity which he owed to his employers, he subtracted immense sums from the property entrusted to his care.

In the year 1799, having gone through the necessary and regular gradations, he was appointed one of the cashiers. It was a part of the business of the Bank to purchase exchequer bills, to supply the exigencies of government; and the purchases were entrusted to the care of Mr. A. Newland; but on account of that gentleman's growing infirmities, he having been fifty-eight years in the service of the Bank, the management was left wholly under the care and direction of Mr. Aslett. The purchases were made of Mr. Goldsmid, by the means of Mr. Templeman, a broker. It was usual to make out a bill in the name of the person from whom they were made, which was delivered to Mr. Aslett, to examine and enter in what is called the Bought-book, and he gave orders to the cashiers to reimburse the broker. The bills were afterwards deposited in a strong chest, kept in Mr. Newland's room; and when they had increased in bulk by subsequent purchases, they were selected by Mr. Aslett, who tied them up in large bundles, and carried them to the parlour, that is to say, the room in which the Directors held their meetings, accompanied by one of the clerks, with the original book of entry, when the Directors in waiting received the envelope, and deposited it in the strong iron chest, which had three keys, and to which none but the Directors had access; and from which it could not be brought forth until the time of payment, unless by consent of at least two of the Directors. Therefore it was not possible for them to find their way into the hands of the public or the monied market, unless embezzled for that purpose. On the 26th of February, 1803, Mr. Aslett, according to the practice, made up three envelopes of exchequer bills, of 1000*l.* each bill; the first containing bills to the amount of 100,000*l.*, the second 200,000*l.*, and

the third 400,000*l.*; making in the whole 700,000*l.* These were, or in fact ought to have been, carried into the parlour, and were signed as being received by two of the Directors, Messrs. Paget and Smith; but one of the bundles, namely, that containing the 200,000*l.* worth of bills, was withdrawn.

The confidence which the Governor and Company had placed in Mr. Aslett had enabled him to conceal the transaction from the 26th of February to the 9th of April; but on that day, in consequence of an application made by Mr. Bish, the whole was discovered. On the 16th of March, Mr. Aslett went to that gentleman, and requested he would purchase for him 50,000*l.* Consols, to which request no objection was made, provided he deposited the requisite securities. The fluctuation of the market at that time was six per cent., and Aslett, in order to cover any deficit, deposited with Mr. Bish three exchequer bills, Nos. 341, 1060, and 2694, which he knew had been previously deposited in the Bank. From some circumstances, and from his general knowledge of the whole of the business of the funds, Mr. Bish suspected all was not right, and he accordingly went to the Bank, where an investigation took place, at which Mr. B. Watson, one of the Directors, was present. Mr. Newland was sent for, and asked whether any of the exchequer bills could, by possibility, get into the market again from the Bank? To which he answered in the negative, observing that they were a dormant security. The same question was put to Mr. Aslett, and the same answer given by him. It was found necessary to tell him that the bills in question, which could be proved to have been in the Bank, had found their way into the money-market; and at the same time it was observed, that he had made purchases, to a large amount, of stock, with the bills: this was acknowledged by him; but he said he had done so for a friend, named Hosier, residing at the west end of the town; and he declared that they were not Bank property, nor to be found in the Bought-book. The Directors, however, were not satisfied on this point, and he was immediately secured. His trial was postponed to July, as it occurred to those employed in the prosecution that the bills in question had been issued with an informality in them, not having the signature of the Auditor of the Exchequer. They were aware of the objections that might be taken, and Parliament not then being sitting, it was thought advisable to postpone the trial, lest it might create an alarm in the money-market. The fact was no sooner known, than a bill was

brought into Parliament for remedying those defects, and to render the bills valid.

On Friday, July 8, 1804, Mr. Aslett's trial commenced. Mr. Garrow, on the part of the prosecution, stated the facts above mentioned; but when about to call witnesses to give evidence, Mr. Erskine insisted that the exchequer bills, which the prisoner stood charged with having stolen, were not good bills till the act of parliament had made them so, and consequently that they were pieces of waste paper when stolen. The Chief Baron Macdonald, Mr. Justice Rooke, and Mr. Justice Lawrence concurred, that the present indictment could not be maintained; and the jury were accordingly desired to acquit the prisoner.

He was afterwards, however, tried on nine other indictments, the evidence being the same, Mr. Garrow having applied to the Court to detain him in custody, it being, he said, the intention of the Bank Directors to issue a civil process against him for one hundred thousand pounds, and upwards, the moneys paid for the bills which he had converted to his own use.

Mr. Kirby at first hesitated to receive the prisoner, understanding he was acquitted; but was peremptorily desired by the Court to take him back.

Mr. Aslett was dressed in a lightish brown coat, his hair being full powdered. He appeared quite collected, but held down his head, never once looking up, except when the application was made to keep him in custody, when he expressed symptoms of great surprise, and looked very steadfastly at the Court.

On Saturday, September 17, Mr. Aslett was again brought to the bar of the Old Bailey, before Baron Chambre and Mr. Justice Le Blanc. The prisoner was attended by four or five gentlemen, who continued in the Dock during the whole time of the trial.

Three indictments were read, with two counts in each, charging the prisoner with secreting and embezzling three notes. The first indictment was, for that he, being an officer or servant of the Governor and Company of the Bank of England, had secreted and embezzled a certain piece of paper, partly written, and partly printed, being No. 835, purporting to be of the value of five hundred pounds; the second, 2694, for one thousand pounds; and the third, No. 6061, for one thousand pounds. One count in each stated them as securities, and the other as effects belonging to the said Governor and Company. There were other counts, diversifying the

statement of the property in other forms, such as were deemed to come within the law.

Mr. Garrow stated the case at considerable length to the jury. There was one point, to which he called particular attention, and that was that the prisoner had been tried before, and acquitted of the offence of purloining exchequer bills to an immense amount; as it was then proved to the satisfaction of the learned judges on the bench, for whom he entertained the highest respect, that they were not actually such as might in law be termed exchequer bills, in consequence of their not having been signed as the act directs. The present indictments, however, stated them as papers *purporting* to be exchequer bills, which they evidently were on the face of them, and subdivided the charge, by stating them one time as securities, and at another time as effects belonging to the Company. This he had no doubt that the jury would be convinced of upon hearing them read; and it was an important duty which the Bank owed to the public, that they should not suffer so great a delinquent to escape the justice of the country, in consequence of any want of exertion on their part.

Mr. Erskine, in behalf of the prisoner, delivered a most animated address to the jury. He stated, that the former indictments against the gentleman at the bar had been objected to on grounds which were approved of by the learned judges who then sat upon the bench.—He was now brought up again to be tried for exactly the same offence, though differently stated; and he thought that the present proceeding was liable to the same objections which were then admitted to be valid by the bench; but he should oppose it on much stronger grounds. He then objected to the legality of Mr. Jennings's signature, in the place of that of Lord Grenville, as Auditor of the Exchequer. That the same illegality in a criminal sense existed with respect to all bills issued at that time from the Exchequer, was manifest from the circumstance of the legislature having found it necessary to pass an act expressly for the purpose of making them legal in a civil view; and that act had a most humane proviso, which declared, in plain terms, that the act was to be considered to make the exchequer bills issued at that time valid only in a civil view, and was not to have any retrospective view to any criminal offence committed before the passing of that act. The learned gentleman stated, that as securities, they were nothing in law, for a person, at the time of their being passed, could not recover at law. As to the idea of calling them effects, he considered that, though the legislature had thought proper

to pass an act for the protection of that company above all others, by passing what is generally termed the Bank Act, in consequence of the immense magnitude of that concern, yet effects must obviously mean the same as in a case of petty larceny would be considered as effects, that is something intrinsically valuable in themselves, without taking in or mixing in the mind the idea of their professed or avowed value. If that was not the case, a clerk who took away a loose half sheet of paper lying about the office, or a pen that was worn to the stump, came within the limits of the act, and would be liable to a prosecution for felony. If he did not know the highly respectable character which that Company supported, and the very great ability by which they were counselled, he should be induced to say that the prosecution of the gentleman at the bar a second time, for exactly the same offence of which he had been before acquitted by law, was vexatious; and he should declare, not only as a lawyer, but as a man, that they were rather inclined to be severe towards the prisoner, than that they should be thought in the least to relax from their duty, or from an idea of justice to the public. The articles stated in the indictments must either be really and *bonâ fide* exchequer bills, or else they were no securities; they were no effects in law; they were no more than pieces of waste paper, for the embezzlement of which he had never known a prosecution to be sustained at law. The generosity of government, or the justice of the country, could not at that time pay a single farthing for them; the strings of the national purse were only to be drawn by the consent of the legislature, and at that time there was no such consent obtained; the articles in the indictment were at that time nothing but so many pieces of waste, printed, and written paper, which had not been called into existence as anything of valuable property, as any effects belonging to the Bank which had obtained the sanction of Parliament; they had not been animated by the breath of the legislature. The learned gentleman then quoted several cases from the Reports, showing that chattels or effects must be something valuable intrinsically in themselves; and said that it was his firm belief that the learned judges at present on the bench would deliver an opinion similar in effect to that which had already been delivered by the learned judges sitting on that bench at the time of Mr. Aslett's former trial: he believed that they would find themselves in the same situation, and instruct the jury to find a verdict for the acquittal of that gentleman without hearing any evidence

upon the case; as in his opinion it was not such as could be supported in law.

Mr. Serjeant Best followed on the same side, and the Court determined to reserve the point for consideration. Evidence was then given in proof of the facts stated at the beginning of this article, and the jury returned a verdict of Guilty.

Mr. Aslett betrayed neither a symptom of fear, nor levity, but seemed to pay the greatest attention to everything that passed, and conducted himself with a becoming firmness throughout the whole of the trial. When the verdict was pronounced, there was a great buz in the Court: Mr. Aslett waited for about two minutes, then bowed to the Court, and withdrew, accompanied by his friends.

On February 16, 1804, Mr. Aslett was brought to the bar to receive his sentence, when Mr. Baron Hothan addressed him as follows:—

“Robert Aslett, you were tried and convicted in this Court, in the September sessions, 1803, for embezzling effects belonging to the Governor and Company of the Bank of England, you being an officer and servant of that Bank, and, as such, entrusted with their property. It was argued by your counsel, that the bills were not valid or legal bills, having been signed by a person not properly authorised by Lord Grenville, though they had been issued as good, and paid as such. On this indictment you have been lawfully convicted by a jury of your countrymen; but judgment has been suspended till the opinion of the twelve judges of England was taken on this important case, in order to ascertain whether these bills were good, according to the statute 15 Geo. II. Eleven of these judges were of opinion that some of the objections, so ably argued by your counsel, should be sustained; they have since held various conferences, which produced various different opinions; and it is now my duty to communicate to you the result of their investigation. Several points were urged in your favour, upon all of which, however except one, the Judges have given their decision against you. The only material question for consideration was, whether or not these bills fall within the meaning of the statute 15 Geo. II., and can be denominated effects according to that act. On this point, indeed, the judges were not unanimous, but the majority are of opinion that they are effects and securities within the true meaning of the act. The great object of the legislature was to add security and administer protection to the Bank of

England. The immense national concerns with which it was and still is entrusted, called upon the legislature for particular provisions in its favour. The principles of legislation must now be applied to the object under contemplation; and the view we take of any code of laws must be more comprehensive when it concerns so materially such a large incorporated body, than when it only relates to private individuals. Considering this law then in the enlarged and liberal view on which it was framed by the legislature (at the same time that all the judges disclaim any wish to strain any part of it where it is so penal,) the recollection of the enormous weight of exchequer bills, in which the public were so deeply and materially concerned, cannot fail to occur to every mind. That these bills had become the fair and valuable property of the Bank was allowed on all hands; but still it was argued that they were not such securities as fell within the true meaning of the Act of Parliament, because they were not of any positive or intrinsic value. Now, whatever shall be deposited with the Bank, was expressly guarded by the words of the act; and although the bills in question be of no descriptive legal value, yet they carry about them such a consequence at least as may make their preservation of the utmost importance to the Bank. In that view, therefore, they surely have their value. They are at least valuable papers, whatever they may be called, and the holders of them have them as such, having paid for them the value which they respectively import. They are therefore to be included in the true meaning of the word securities, which may be in the end available to any person who may be possessed of them.”

The conviction was therefore determined to be good, and on the following Monday, 20th February, 1804, this unfortunate man received sentence of death. This punishment was, however, subsequently commuted to transportation.

SAMUEL WILD MITCHELL.

EXECUTED FOR MURDER.

THIS wretched man was hanged for the murder of his daughter, Sarah Mitchell, a girl about twelve years of age. He was a spinner living in Spitalfields, and he had brought the girl up as an apprentice to his trade. It would appear that frequent disputes took place between him and his wife, in consequence of which he became subject to frequent violent bursts of passion. It was on the occasion of his having excited himself to a degree of rage amounting to madness, that he committed the crime for which he was hanged. The girl was sitting at her work, when her father came into the room, and suddenly attacking her, cut her throat through the windpipe with a razor, which he held in his hand. He immediately afterwards ran from the house, but was apprehended subsequently on the same evening, when he made a full confession of his crime. On his trial, which took place at the Old Bailey on the 11th of January, 1805, he presented a miserable aspect. Almost bereft of reason by the dreadful deed which he had committed, he seemed for some time unconscious of what was passing around him. His hair was grey, and his head was covered with an old miserable nightcap.

Evidence as to the fact of the murder was adduced, and the prisoner's confession was also read. He said—"I had a daughter named Sally, and my wife had a daughter named Elizabeth, who at one time did live with me, but whom I afterwards took to my apartment, where I instructed her in the art of weaving, and we lived all together: this said daughter of my wife's caused some uneasiness, as I thought; and I thought my wife was more indulgent of her faults, and favoured her more than she ought, which was the reason of our separation on the 17th of December last; my wife also took with her Sarah Mitchell, whom I loved with the most ardent affection, which vexed me a great deal, as I saw there would be a continual dispute. I could not bear the little girl coming to see me, as coming on a visit. I resolved that neither my wife nor me should possess her. I seized the moment of the mother going away; the child was sitting by the fire winding quills. I took the razor from the drawer; my affection made me almost lay it down again, but my resolution overcame that. I turned round, and cut her throat. I was

too resolute to make a faint attempt; the child was dead in a moment; she neither made noise nor resistance. When I had done the deed, the child fell. As I went out, I saw her blood; then I ran down stairs. After this act was done to my child, Sarah Mitchell, I went to a man named Bell, where I had lived, and left word for him to run and secure my master's work; then I went to Mr. Dellafour, and my friends at Wapping."

The prisoner, on his being called on for his defence, at once admitted that he was guilty of the crime imputed to him, but declared that he was led on to its commission by a mind which had been deranged by the frequent quarrels which he had with his wife.

The jury having found him guilty, the prisoner was asked what he had to say for himself, why sentence of death should not be passed according to law? He distinctly replied, "I have nothing to say."

The awful sentence, that he was to be hanged on the succeeding Monday, and his body afterwards dissected and anatomized, was immediately pronounced by the recorder; which the prisoner heard without any visible emotion. The court was crowded in almost every part, and particularly with ladies; and not only the women, but even the jury, the counsel, and nearly all present, were melted into tears. During the whole trial the prisoner appeared calm, but not insensible. He was very attentive to the evidence, and appeared frequently to utter a low ejaculation.

On the morning after his trial, this unhappy man expressed a desire to see his wife, that they might exchange forgiveness. The day following (Sunday) she came to visit him in Newgate, but was so ill that she was obliged to be conveyed in a hackney-coach, supported between two friends. As soon as the distressing interview was over, he applied himself devoutly to prayer, in which he continued nearly the whole of the day. On that day he was extremely solicitous to obtain Dr. Ford's promise to publish to the world that he died in the faith of the Church of England; as it had been generally understood that he belonged to the sect denominated Methodists. At half-past six o'clock on Monday morning Mitchell's cell was unlocked, and the Ordinary attended him to the chapel to prayers; which being concluded, he returned to the Press-yard, and there walked for some time, holding two friends by the arms; meanwhile his mind was occupied with his unhappy situation; and he begged of all around him to pray with him. The unhappy man blessed the memory of his murdered child, and trusted the

sacrifice he was about to make would, in some degree, expiate his crime in heaven, which he did not despair to see.

His last petition was to the sheriffs, to request that, after the surgeons had practised upon his body, his mangled remains might be given to his daughter, for burial; which request the sheriffs promised should be complied with.

The wretched being seemed to attend with much earnestness and fervour to the clergyman, and he was seen to clasp his hands together the instant the rope was fixed. After the drop fell he appeared to feel great pain, as he swung round twice, which was occasioned by the violence of the convulsive struggles he sustained.

He suffered before Newgate, January the 14th 1805, and, after hanging the usual time, was taken to St. Bartholomew's hospital for dissection.

RICHARD HAYWOOD.

EXECUTED FOR ROBBERY.

THE termination of the career of this criminal exhibited him to be a man of the most depraved and diabolical disposition.

He was indicted for having stolen two pillows and two bolsters, value 10s., the property of Richard Crabtree, and also for cutting Benjamin Chantrey with a certain sharp instrument, in order to prevent his apprehension.

It appears that some suspicions being entertained of an intention to rob Mr. Crabtree's house, which was left unoccupied, although furnished. Miss Jenkins the cousin of that gentleman, and a Mrs. Wilson, determined to watch it, and they accordingly took their station in the house of a Mr. Wilkinson, situated directly opposite to it, in Thayer-street, Manchester-square. They had not been long on the look-out, before they saw two men enter it, having opened the door with a key. Mrs. Wilson, in consequence, went and knocked at the door, on which the two men ran out, and one running to the left made his escape, while the other (the prisoner) made a blow at Mrs. Wilson, and ran to the right. He was afterwards pursued by a Mr. Holford, and on Mr. Chantrey stepping out from his own house to seize him, he struck him a violent blow on the head with an iron crowbar. He was eventually secured, and it was then found, that the articles mentioned in the indictment had been removed ready to be carried off.

After conviction, the prisoner behaved with shocking depravity, seeming to exult in his guilt, and regretting he had not done a deed more deserving of death. It was his constant boast that he would, on the scaffold, surpass the notorious Avershaw in evincing his contempt for life; and he constantly endeavoured to instil into the mind of his fellow-sufferer those diabolical principles which he had imbibed himself.

His fellow-sufferer was John Tennant, who had lived as footman with Robert Shaw, Esq. a solicitor, in New Bridge-street, Blackfriars; but, inflated with the *ambition* of keeping a public-house, he quitted his service, and obtained the command of a tap in Little Suffolk-street, Dirty-lane,

behind the King's Bench Prison. Finding his golden prospects in a public-house, in a great measure, delusive, he determined on robbing his late master, Mr. Shaw; and, being well acquainted with his house, broke open his money-drawers, and stole to the amount of more than five thousand pounds in cash, bank-notes, and other property. With such a prize such a man could not long remain unsuspected, and he was soon detected in passing some of the stolen notes. The relentless Haywood corrupted the mind of Tennant, and, in the condemned cells, stimulated him to follow his horrid example. They uttered the most blasphemous expressions, and sang lewd songs during the whole time they ought to have been employed in making their peace with offended Heaven.

When the keeper went to warn them of their approaching execution, they behaved in so riotous a manner, that it was necessary to secure them with irons to the floor. Haywood, who was supposed to have procured a knife from his wife, while she was permitted to see him, rushed upon the keeper, and would have stabbed him with it if he had not left the cell. They uttered the most horrid imprecations; and, after declaring, in cant terms, that they would *die game*, threatened to murder the Ordinary if he attempted to visit them. Their behaviour, in other respects, was so abandoned, that the necessary attendants were deterred from further interference, and left them to the dreadful fate which awaited them.

When the time for quitting the court-yard arrived, Haywood called to a friend, who was present, to deliver him a bundle he had in his hand, out of which he took an old jacket, and a pair of old shoes, and put them on. "Thus," said he, "will I defeat the prophecies of my enemies: they have often said I would die in my coat and shoes, and I am determined to die in neither." Being told it was time to be conducted to the scaffold, he cheerfully attended the summons, having first eaten some bread and cheese, and drunk a quantity of coffee. Before, however, he departed, he called out in a loud voice to the prisoners, who were looking through the upper windows at him, "Farewell, my lads; I am just going off: God bless you."—"We are sorry for you," replied the prisoners. "I want none of your pity," rejoined Haywood; "keep your snivelling till it be your own turn." Immediately on his arrival upon the scaffold, in a loud laugh, he gave the mob three cheers, introducing each with a "Hip, ho!" While the cord was preparing, he continued hallooing to the mob, "How are you?—Well, here goes." It was found necessary, before the usual time, to put the cap over his

eyes, besides a silk handkerchief, by way of bandage, that his attention might be entirely abstracted from the spectators.

At the suggestion of Mr. Holdsworth, however, Tennant made some alteration in his conduct. This officer, finding his advice attended to in this instance, entreated him no longer to follow the evil counsel of Haywood, but to employ the few moments he had left in a Christian-like manner. Tennant shed tears, showed some contrition, and suffered the Ordinary to attend him to the scaffold. Dr. Ford continued in prayer with him; and, though he did not join with, yet he listened to him attentively. He came on the platform with great resolution, but did not then follow the daring and abandoned example of his companion: he was cleanly dressed, and observed a suitable propriety of conduct; he shook hands with Haywood; and, just as the noose was placed round his neck, he emphatically exclaimed, "Lord, have mercy upon me!" Haywood uttered some words in reply, which were not perfectly understood, but were supposed to be said to Tennant by way of reproach. He then gave another halloo, and kicked off his shoes among the spectators, many of whom were deeply affected at the obduracy of his conduct. Soon afterwards the platform dropped. They suffered on the 30th of April 1805.

HENRY PERFECT.

TRANSPORTED FOR FRAUD.

HENRY PERFECT was a person who, by means of the most specious pretences and ingenious frauds, succeeded in levying very large contributions on the public. Instances of fellows devoid of principle pursuing similar plans of imposture have been but too frequent of late years, but the system, which was for a long time so successful, of writing begging letters, has been now almost entirely put an end to, by the praiseworthy exertions of the officers of that very respectable institution the Mendicity Society, the object of which is at once to relieve the necessitous, and to protect the public from imposition.

The case of this person may be taken as a very fair instance of the degree of ingenuity exercised by individuals resorting to similar artifices as the means of gulling the humane.

Perfect was a man of respectable parentage, and of excellent abilities. His father was a clergyman living in Leicestershire, and our hero, at the completion of his education, entered the army as a lieutenant in the 69th regiment of foot. He was twice married, and received a handsome property with each of his wives; but their estates being held during life only, upon the demise of his second helpmate he was thrown upon his own resources. His commission had long since been disposed of, and he determined to endeavour to procure contributions by writing letters to persons of known charitable dispositions, setting forth fictitious details of distress. In the course of his numerous impositions, he assumed the various and imaginary characters of the Rev. Mr. Paul, the Rev. Daniel Bennett, Mrs. Grant, Mrs. Smith, and others, but at last he was detected in an attempt to procure money from the Earl of Clarendon, whom he addressed in a letter signed "H. Grant."

He was indicted at the Middlesex sessions for this offence; and his trial, which came on at Hicks' Hall, on the 27th of October 1804, occupied the whole day.

It then appeared that the Earl of Clarendon being at his seat at Wade's Mill, Hertfordshire, in the previous month of July, he received a letter, purporting to be from Mrs. Grant, which stated in substance:—

That the writer having heard from a lady, whose name she was not at liberty to reveal, the most charming character of his lordship for kindness and benevolence, she was induced to lay before him a statement of her distressed circumstances. The supposed lady then detailed her case, which was, that she was a native of Jamaica, of affluent and respectable family; that a young man, a Scotchman, and surgeon's mate to a man-of-war, was introduced at her father's house, who so far ingratiated himself with her father, that he seriously recommended him to her for her husband. She did not like him, because he was proud, and for ever vaunting of his high family; but as her father's will had always been a law, she acquiesced on condition that he would live at Jamaica. They were accordingly married, and her father gave him one thousand pounds. He, however, soon became discontented with remaining at Jamaica, and continually importuned her to go with him to Scotland; and as her friends joined in the solicitation, she consented. She had now been six months in England; but her husband had always evaded going to Scotland, and had left her whenever she spoke upon the subject. In short he had gamed, drunk, and committed every excess; and within the last six weeks he had died in a rapid decline, leaving her a widow, with two children, and hourly expecting to be delivered of a third. She was not twenty-three years of age, and never knew want till now; but she was left without a shilling to support herself and miserable children: she owed for her husband's funeral, and the apothecary's bill, for which she was afraid of being arrested. To avoid this she was going to seek shelter with a poor widow in Essex; and if his lordship would write to her at the post-office at Harlow, she would, if brought to bed in the meanwhile, get some safe person to go for the letter.

His lordship's answer evinced the benevolence of his heart. He expressed his readiness to alleviate her distress, but justly observed that her tale ought to be authenticated by something more than the recital of a perfect stranger. He desired to know who the lady was who had recommended the application to him, and assured the writer she need not conceal her, for that he considered it was doing him a great kindness to afford him the means of rendering service to the necessitous. On the 14th of July his lordship received a note nearly as follows:—

Mrs. Smith, widow of Captain Smith, begged leave to inform Lord Clarendon that Mrs. Grant was brought to bed. It was she who recommended Mrs. Grant to Lord Clarendon: while her husband was living, she had frequently been with him on the recruiting service in Hertfordshire, where she had heard of the benevolent character of his lordship. She added, that Captain Smith, when in Jamaica, had frequently visited Mrs. Grant's father, who was a person of great wealth; that she had herself done more than she could afford for an amiable and unfortunate young woman. She had no doubt but that as soon as her letter should reach Jamaica, Mrs. Grant's father would send her abundant relief; but till then she might, without the friendship of some individual, be totally lost.

In consequence of this last note, his lordship returned an answer, and enclosed a draft for five guineas, offering at the same time to write to any person at Harlow who might be of assistance to her, particularly to any medical person. On July the 23rd the supposed Mrs. Grant wrote again to his lordship, acknowledging the receipt of the five guineas, and stating that she had the offer of a passage home: but she said that she wished to see his lordship, to return her grateful thanks for his kindness. At the same time she was extremely delicate, lest their meeting should be misconstrued by a malignant world, and entreated that it might take place a little distance from town. The answer to this letter she begged might be addressed to A. B. C. at George's Coffee-house, to which place she would send for it. His lordship at her request, wrote an answer, and appointed the Bell Inn, at Kilburn. Before the arrival of the day of meeting, however, his lordship received another letter from Mrs. Grant, stating that ever since she came to town, she had met nothing but trouble. Her last child had died, and she was seized with a milk-fever; that she had twelve shillings left of his lordship's, and Mrs. Smith's bounty, when she came to town; that she was afraid of coming further than Whitechapel, lest her creditors might arrest her; and she concluded with the request of the loan of five pounds, to be inclosed in a note addressed to Mr. Paul, to be left at the Saracen's Head Inn, Aldgate. His lordship, in reply to this note, sent the money requested, and with great humanity condoled on her supposed situation. He then proposed to take her into the country, where she might live quiet, and free of expense, until she heard from her friends. The next letter introduced another actor on the stage. It came from the Rev. H. Paul. Mr. Paul, at the desire of Mrs. Grant, (then said to be delirious,) acknowledged the receipt of the five pounds. He

would write again, and say anything Mrs. Grant might dictate in a lucid interval. He begged his answer might be left at the Chapter Coffee-house. His lordship accordingly wrote to the Rev. H. Paul, with particular inquiries after the state of Mrs. Grant, and proposed to send the proper medical assistance. The Rev. Mr. Paul replied to this letter, and stated the description of Mrs. Grant's complaint, which was of a delicate nature. He then stated the high notions of Mrs. Grant, who would not condescend to see any person from his lordship in her present wretched state; and added that she thought her situation such, that it was not delicate to admit any one to see her but those absolutely necessary. Mr. Paul therefore had promised, he said, not to divulge her residence; but declared that in her lucid intervals, Mrs. Grant expressed the utmost anxiety to be enabled to thank her benefactor.

This correspondence produced a meeting between the supposed Rev. H. Paul and his lordship, which took place at the Bell Inn, at Kilburn, on the 8th of August. The prisoner then introduced himself to his lordship as the Rev. Henry Paul. They entered into conversation on the subject of Mrs. Grant, when his lordship asked every question as to her situation, with a view to alleviate it. Mr. Paul said he had not seen her distinctly, for the curtains were closed round her; but the opium had had an effect which he had known it frequently to produce: it had given her eyes more than usual brilliancy: with respect to her lodging, it was a very small room. The woman who attended her seemed a good sort of a woman enough, and she was also attended by a surgeon or apothecary. As Mr. Paul seemed to be a man of respectability, his lordship asked him at what seminary he had been brought up: the prisoner replied he had been educated at Westminster and Oxford, and had the living of St. Kitt's, in Jamaica, worth about 700*l.* per annum; that he had property in Ireland, and was going to America on private business. To his lordship's question how he was so fortunate as to meet this young woman, he said it was by an accident, that quite looked like a romance.—He was coming to town in the Ongar stage, in which were a young woman, two children, and a lady, all in mourning. He entered into conversation with the lady, and was surprised to find her the daughter of a person at whose house, in Jamaica, he had himself been frequently received with kindness. Although his business pressed, he determined to stay and afford her some assistance. He then stated that he had that day given her a 2*l.* note, which his lordship, at this interview, returned (being the note on

which the indictment was founded). He added, that Mrs. Grant's father was extremely affluent, and he should not wonder if he was to remit 500*l.* at the first intelligence of his daughter's situation. His lordship in his evidence said, that he seemed to express himself in language of the purest truth and benevolence; and as he appeared a well-educated gentleman, who had seen the world, he had no suspicion of any fraud.

After this interview a correspondence took place between the pretended clergyman and his lordship, in which the former stated the progression of the patient, Mrs. Grant, towards convalescence, and at her desire requested that linen, poultry, fruit, and wine, might be forwarded, all of which were supplied by the bounty of the noble lord.

At length Mrs. Grant was sufficiently recovered to be able to write to his lordship, and in her letter she expressed her unbounded thanks for the benevolence which she had experienced at his hands, and remarked that but for the friendly introduction of the Rev. Mr. Paul, she believed that she would have been lost. She then went on to say, that although she had been ordered by her medical attendant to keep herself perfectly quiet, yet she could not resist the temptation of sitting up in bed to write to her benefactor, whom she hoped to be able shortly to thank personally for his numerous kindnesses.

The last letter from Mr. Paul was dated August 23. He acknowledged the receipt of 6*l.* 2*s.* which had been expended for Mrs. Grant; and informed his lordship that the sheets which had been last sent, had, by some accident, been near brimstone, which affected Mrs. Grant very much; that her situation required fine old linen, if his lordship had any such. He apologized, if there should be any inaccuracy in his letter, because he *had a head-ache and some degree of fever.*

The farce now began to draw to its conclusion. His lordship received another letter from Mrs. Grant, dated Saturday, September 1st, in which the supposed lady said:—

“Last Saturday, her father's sister came to town, and found her out. She was a sour old lady, a man-hater, and snarled at the whole sex. She had taken Mrs. G. into the country with her, although she was removed at the peril of her life. The lady she was with was nearly as bad as her aunt; but, as the latter was going out for a few days, her Argus would let her come to town, which would enable her to meet his lordship. As her ill-tempered aunt

had given her neither money nor clothes, she begged 4*l.* of his lordship. If this opportunity was lost, she should never be able to see him, as her aunt was a vigilant woman, and hated the men so much, that at the first entrance into her room, finding the Rev. Mr. Paul there, she most grossly affronted him. She could not have any letter addressed in her own name lest it should fall into the hands of her aunt, and therefore begged his lordship to direct to Mrs. Harriet, Post-office, Waltham.”

His lordship, in his answer to this letter, expressed some suspicions that he had been duped; in answer to which Mrs. Grant thanked Lord Clarendon for his favours, and declared that she was sorry to think he should conceive himself duped, but he would find his mistake when she got home to the West Indies. In a postscript, she added—“That best of men, Mr. Paul, died suddenly on Saturday last.”

This closed the intercourse between his lordship and his correspondents, Mrs. Grant and Mr. Paul. Soon afterwards, however, he received another letter from a Rev. Mr. Bennett, setting forth a deplorable tale of misery; but his suspicions being awakened, he employed his steward to trace the supposed Rev. Mr. Bennett, when it turned out to be the prisoner at the bar, who had imposed himself on his lordship as the Rev. Mr. Paul, that “best of men,” whom Mrs. Grant stated to have “died suddenly.” His lodgings being searched, a book was found in his own handwriting, giving an account of money received, (by which it appeared that he had plundered the public to the amount of four hundred and eighty-eight pounds within two years,) with a list of the donors’ names, among whom were, the Duchess of Beaufort, Lord Willoughby de Broke, Lord Lyttleton, Lady Howard, Lady Mary Duncan, Bishops of London, Salisbury, and Durham, Earls of Kingston and Radnor, Lord C. Spencer, Hon. Mrs. Fox, &c. &c.

Other memoranda were also found, which showed that the prisoner had reduced his mode of proceeding to a perfect system, notes being taken of the style of handwriting which he assumed, under his different names, and of the description of sealing-wax, wafer, and paper, used in his letters.

The jury found the prisoner guilty, and the Court immediately sentenced him to seven years’ transportation. He was sent to Botany Bay in April 1805.

Frequent convictions of a similar character have taken place, but it is to be hoped, that if the exertions of the police have not been fully successful in

putting a stop to the system, the public, at least, have been so far put upon their guard, as that they will not submit to be duped, but that they will first inquire into and ascertain the real claims of the applicants before they extend their charity to them.

THOMAS PICTON, ESQ.

INDICTED FOR APPLYING THE TORTURE TO LOUISA CALDERON, TO EXTORT A CONFESSION.

THE cruelty of the application of the torture to extort confession, cannot but be universally admitted in the present enlightened age. The following remarks of the French philosopher Voltaire admirably illustrate this feeling, and serve well to introduce the case of Governor Picton:—

“All mankind being exposed to the attempts of violence and perfidy,” says he, “detest the crimes of which they may possibly be the victims; all desire that the principal offender and his accomplices may be punished; nevertheless, there is a natural compassion in the human heart, which makes all men detest the cruelty of torturing the accused into confession. The law has not condemned them; and yet, though uncertain of the crime, you inflict a punishment more horrible than that which they are to suffer when their guilt is confirmed. ‘Possibly thou mayest be innocent; but I will torture thee that I may be satisfied; not that I intend to make thee any recompense for the thousand deaths which I have made thee suffer in lieu of that which is preparing for thee.’ Who does not shudder at the idea? St. Augustin opposed such cruelty. The Romans tortured their slaves only; and Quintilian, recollecting that they were men, reproved the Romans for such want of humanity.”

The defendant, Thomas Picton, Esq. was indicted for putting to the torture a female, Louisa Calderon, one of his majesty’s subjects in the island of Trinidad in the West Indies, in order to extort confession.

Mr. Garrow stated the case for the prosecution; and, whilst he expressed the strongest desire to bring to condign punishment the perpetrator of an offence so flagrant as that charged upon the defendant, yet much more happy would he be to find that there was no ground upon which the charge could be supported, and that the British character was not stained by the adoption of so cruel a measure. The island of Trinidad, he said, surrendered to Sir Ralph Abercrombie in the year 1797; and he entered into a stipulation, by which he conceded to the inhabitants the continuance of their

laws, and appointed a new governor, until his majesty's pleasure should be known, or, in other words, until the king should extend to this new acquisition to his empire all the sacred privileges of the laws of England. He had the authority of the defendant himself for stating, that the system of jurisprudence adopted under the Spanish monarch, for his colonial establishments, was benignant, and adapted to the protection of the subject, previous to the surrender of this island to the British arms.

In December 1801, when this crime was perpetrated, Louisa Calderon was of the tender age of ten or eleven years. At that early period she had been induced to live with a person named Pedro Ruiz, as his mistress; and although it appeared to them very singular that she should sustain such a situation at that time of life, yet it was a fact, that in that climate, women often became mothers at twelve years old, and were in a state of concubinage, if, from their condition, they could not form a more honourable connexion. While she lived with Ruiz, she was engaged in an intrigue with Carlos Gonzalez, the pretended friend of the former, who robbed him of a quantity of dollars. Gonzalez was apprehended, and she also, as some suspicion fell upon her, in consequence of the affair, was taken into custody. She was taken before the justice, and, in his presence, she denied having any concern in the business. The magistrate felt that his powers were at an end; and whether the object of her denial were to protect herself, or her friend, was not material. The extent of his authority being thus limited, the officer of justice resorted to General Picton; and he had now to produce, in the handwriting of the defendant, this bloody sentence:—"Inflict the torture upon Louisa Calderon." There was no delay in proceeding to its execution. The girl was informed in the jail, that, if she did not confess, she would be subjected to the torture; that under this process she might probably lose her limbs or her life; but the calamity would be on her own head, for, if she would confess, she would not be required to endure it. While her mind was in the state of agitation this notice produced, her fears were aggravated by the introduction of two or three negresses into her prison, who were to suffer under the same experiment for witchcraft, and as a means of extorting confession. In this situation of alarm and horror, the young woman persisted in her innocence: and a punishment was inflicted, improperly called picketing. That was a military punishment, perfectly distinct in its nature. This was not picketing, but the torture. It was true, the soldier, exposed to this, did stand with his foot on a picket, or

sharp piece of wood; but, in mercy to him, a means of reposing was afforded, on the *rotundus major*, or interior of the arm. Her position might be easily described. The great toe was lodged upon a sharp piece of wood, while the opposite wrist was suspended in a pulley, and the other hand and foot were lashed together. Another time the horrid ceremony was repeated, with this difference, that her feet were changed.

[The learned counsel here produced a drawing in water-colours, in which the situation of the sufferer, and the magistrate, executioner, and secretary, was described. He then proceeded]:—

“It appeared to him, that the case, on the part of the prosecution, would be complete when these facts were established in evidence; but he was to be told, that though the highest authority in this country could not practise this on the humblest individual, yet that, by the laws of Spain, it could be perpetrated in the island of Trinidad. He would venture to assert, that if it were written in characters impossible to be misunderstood, that if it were the acknowledged law of Trinidad, it could be no justification of a British governor. Nothing could vindicate such a person, but the law of imperious necessity, to which all must submit. It was his duty to impress upon the minds of the people of that colony, the great advantages they would derive from the benign influence of British jurisprudence; and that in consequence of being received within the pale of this government, torture would be for ever banished from the island. It was not sufficient for him, therefore, to establish this sort of apology; it was required of him to show, that he complied with the institutions, under circumstances of irresistible necessity. This governor ought to have been aware that the torture was not known in England; and that it never would be, never could be tolerated in this country.

“The trial by rack was utterly unknown to the law of England, though once, when the Dukes of Exeter and Suffolk, and other ministers of Henry VI. had laid a design to introduce the civil law into this kingdom, as the rule of government, for a beginning thereof they erected a rack for torture, which was called in derision the Duke of Exeter’s daughter, and still remained in the Tower of London, where it was occasionally used as an engine of state, not of law, more than once in the reign of Queen Elizabeth. But when, upon the assassination of Villiers, Duke of Buckingham, by Felton, it was proposed in the Privy Council to put the assassin to the rack, in order to discover his accomplices, the judges, being consulted, declared

unanimously, to their own honour, and the honour of the English law, that no such proceeding was allowable by the laws of England.

“Such was the effect of the observations of the elegant and learned author of the Commentaries of the Law of England on this subject; and as the strongest method of showing the horror of the practice, he gave this question in the form of an arithmetical problem:—‘The strength of the muscles and the sensibility of the nerves being given, it was required to know what degree of pain would be necessary to make any particular individual confess his guilt.’

“But what were they to say to this man, who, so far from having found torture in practice under the former governors, had attached to himself all the infamy of having invented this instrument of cruelty? Like the Duke of Exeter’s Daughter, it never had existence until the defendant cursed the island with its production. He had incontestible evidence to show this ingenuity of tyranny in a British governor; and the moment he produced the sanguinary order, the man was left absolutely without defence. The date of this transaction was removed at some distance. It was directed that a commission should conduct the affairs of the government, and among the persons appointed to this important situation was Colonel Fullarton. In the exercise of his duties in that situation, he attained the knowledge of these facts; and with this information he thought it incumbent on him to bring this defendant before the jury; and with the defendant the victim of this enormity would also be produced.”

Louisa Calderon was then called. She appeared about eighteen years of age, of a very interesting countenance, being a Mulatto or Creole, and of a very genteel appearance. She was dressed in white, with a turban of white muslin, tied on in the custom of the country. Her person was slender and graceful. She spoke English but very indifferently; and was examined by Mr. Adam, through the medium of a Spanish interpreter.

She deposed that she resided in the island of Trinidad in the year 1798; and lived in the house of Don Pedro Ruiz, and remembered the robbery. She and her mother were taken up on suspicion, and brought before Governor Picton, who committed them to prison, under the escort of three soldiers. She was put into close confinement; and before she was taken there the governor said, “If she did not confess who had stolen the money, the hangman would have to deal with her.”

She was afterwards carried to the room where the torture was prepared. Her left hand was tied up to the ceiling by a rope, with a pulley; her right hand was tied behind, so that her right foot and hand came in contact, while the extremity of her left foot rested on the wooden spike. A drawing representing the exact situation, with the negro holding the rope by which she was suspended, was then shown to her; when she gave a shudder, expressive of horror, which nothing but the most painful recollection of her situation could have excited; on which Mr. Garrow expressed his concern that his Lordship was not in a position to witness this accidental, but conclusive, evidence of the fact.

The remainder of the witness's evidence corroborated the statement of Mr. Garrow. She remained upon the spike three quarters of an hour, and the next day twenty-two minutes. She swooned away each time before she was taken down, and was then put into irons, called the "grillos," which were long pieces of iron, with two rings for the feet, fastened to the wall, and in this situation she remained during eight months. The effect produced by the torture was excruciating pain; her wrists and ankles were much swollen, and the former bore the marks of the barbarity employed towards her to the present day.

Don Rafael Shandoz, an alguazil in the island, bore testimony to his having seen the girl immediately after the application of the torture. The apartment, in which she was afterwards confined, was like a garret, with sloping sides, and the grillos were so placed that, by the lowness of the room, she could by no means raise herself up, during the eight months of her confinement. There was no advocate appointed to attend on her behalf, and no surgeon to assist her. No one but a negro, belonging to Ballot, the gaoler, to pull the rope. The witness had been four or five





The Torture.

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years in the post of alguazil. He never knew the torture inflicted in the island, until the arrival of the defendant. There had been before no instrument for the purpose. The first he saw was in the barracks among the soldiers. Before Louisa Calderon, the instrument had been introduced into the gaol perhaps about six months. The first person he saw tortured in Trinidad was by direction of the defendant, who said to the gaoler, "Go and fetch the black man to the picket-guard, and put him to the torture." After the eight months' confinement, both Carlos and Louisa were discharged.

The order for the application of the torture, in the following words—"Applicase la question a Louisa Calderon"—(Apply the torture to Louisa Calderon)—was then proved to be in the handwriting of the defendant; and

the suggestion of the alcade Beggerat, before whom the girl had been examined, that slight torture should be applied, was read.

Don Juan Montes then said that he had known the island of Trinidad since the year 1793. That the torture was never introduced until after the conquest of the island, and was then practised by order of the defendant. It was first used with the military in 1799, and two years afterwards in the gaol.

Mr. Dallas, for the defendant, rested his defence upon the following statements:—

First,—By the law of Spain, in the present instance, torture was directed; and, being bound to administer that law, he was vindicated in its application.

Secondly,—The order for the torture, if not unlawfully, was not maliciously issued.

Thirdly,—If it were unlawful, yet, if the order were erroneously or mistakenly issued, it was a complete answer to a criminal charge.

The learned counsel entered at considerable length into these positions, during which he compared the law of Spain, as it prevailed in Trinidad, to the law of England, as it subsisted in some of our own islands; and he contended that the conduct of General Picton was gentleness and humanity, compared to what might be practised with impunity under the authority of the British government.

Mr. Gloucester, the Attorney-General of his Majesty in the island, was then called, and he deposed to the authenticity of several books on the laws of the island, among which were the *Elisondo*, the *Curia Philippica*, the *Bobadilla*, the *Colom*, and the *Recopilacion de Leyes*.

Various passages in these books were referred to, and translated, for the purpose of showing that torture was not only permitted in certain cases, but in the particular instance before the jury.

Mr. Garrow was then allowed to call a witness, to show that, however such a law might at any time have existed, or might still exist, in Spain, it did not prevail in the West Indian colonies of that power. To this end, Don Pedro de Vargass was sworn. He deposed that, during the early part of his life, he had been regularly initiated and admitted to the office of an advocate of the Spanish law-courts in the colonies; that he had practised after his admission, in the regular course, for two years, and had resided at

five or six of the West India islands, in the pursuit of his profession; and that, according to his knowledge of the Book of Recapitulation, by which the laws were administered, there was nothing contained in it to justify the infliction of torture, nor was torture, to his knowledge, ever resorted to. There was a law of Old Castile, of the year 1260, which justified the torture in certain cases, but he never understood that it extended to the West Indies, and it was so much abhorred in Spain, that it was either repealed, or had fallen entirely into disuse.

Mr. Dallas and Mr. Garrow then severally addressed the jury; and Lord Ellenborough in summing up, recommended them to divest their minds of every feeling which they might have contracted in the course of the present trial, and to throw every part of the case out of their consideration, except that which related to this simple point:—What was the law by which the island of Trinidad was governed at the period of its capture by the British? It was for the consideration of the jury whether the law then subsisting authorised personal torture to be inflicted. By the indulgence of the government of this country, the subsisting law was to continue; the question was, What was that subsisting law? The jury would observe, that it did not necessarily follow, because Trinidad was a colony of Old Spain, that it must therefore, in every part, have the laws of Old Spain. It did not originally form any part of that country, but had been annexed to it; and on what terms there was no positive evidence. It did not appear that either the schedule peculiar to this island, or the recapitulation, embraced the criminal law, or made any mention of torture. So, if torture did subsist in this island, it must be on the authority of law books read to the jury; and it was ascertained by several persons, apparently of competent knowledge, that torture had not, within their recollection, ever been practised in the island. It was, therefore, for the jury to say, in the absence of all positive proof on the subject, and in the face of so much negative evidence, whether the law of Spain was so fully and completely established in Trinidad as to make torture a part of the law of that island. Without going through the authorities, he thought the jury might take it to be the existing law of Old Spain, that torture might be inflicted. It was too much to say, that a discontinuance of a practice could repeal a law; but they had to determine whether they were convinced that torture had ever been part of the law of Trinidad; and also whether they were convinced that it was part of the law of Trinidad at the time of its

capture. If so, they would enter a special verdict; if otherwise they would find the defendant guilty.

The jury found—There was no such law existing in the island of Trinidad, as that of torture, at the time of the surrender of that island to the British.

Lord Ellenborough—“Then, gentlemen, General Picton cannot derive any protection from a supposed law, after you have found that no such law remained in that island at the surrender of it, and when he became its governor; and therefore your verdict should be, that he is guilty.”

By the direction of Lord Ellenborough they therefore found the defendant “Guilty.”

The trial lasted from nine in the morning till seven at night.

Governor Picton walked the hall of the courts during the whole of the trial. He was a tall man, of a very sallow complexion, apparently about fifty years of age, and was dressed in black. He was accompanied by several of the civil officers of the island.

Mr. Dallas moved on the 25th of April for a new trial, upon the following grounds:—

First,—The infamous character of the girl, who lived in open prostitution with Pedro Ruiz, and who had been privy to a robbery committed upon her paramour by Carlos Gonzalez; and that when a complaint laid against her had been brought before a magistrate, she, refusing to confess, had been ordered to be tortured.

Secondly,—That Governor Picton, who condemned her to this torture, did not proceed from any motives of malice, but from a conviction that the right of torture was sanctioned by the laws of Trinidad; and that he was rooted in this opinion by a reference to the legal written authorities in that island.

Thirdly,—That whatever his conduct might be, it was certainly neither personal malice, nor disposition to tyranny, but resulted, if it should prove to be wrong, from a misapprehension of the laws of Trinidad.

Fourthly,—That one of the principal witnesses in this trial, M. Vargass, had brought forward a book, entitled “*Recopilacion des Leyes des Indes*,” expressly compiled for the Spanish colonies, which did not authorise torture; and that the defendant had no opportunity of ever seeing that book;

but it had been purchased by the British Institution at the sale of the Marquis of Lansdowne's library, subsequent to his indictment, and that having consulted it, it appeared that when that code was silent upon criminal cases, recourse was always to be had to the laws of Old Spain, and that those laws sanctioned the torture.

The Court, after some consideration, granted the rule to show cause why a new trial should not be had, and as the second trial, which was eventually allowed, was attended with a different result from that of the first, we think it no more than just to the memory of Governor Picton to conclude our notice of this affair with the following apology for his conduct, which is extracted from a respectable monthly publication:—

“In an evil hour the British Colonel associated with him, in the government of the island, the British naval commander on the station, and Colonel Fullarton. This was, as might naturally have been expected, and as certainly was designed by one of the parties, the origin of disputes and the source of anarchy. It is well known that Fullarton, on his return to England, preferred charges against Picton, which were taken into consideration by the Privy Council, and gave rise to a prosecution that lasted for several years. No pains were spared to sully his character, to ruin his fortunes, and to render him an object of public indignation. A little strumpet, by name Louisa Calderon, who cohabited with a petty tradesman in the capital of Trinidad, let another paramour into his house (of which she had the charge) during his absence, who robbed him, with her knowledge and privity, of all he was worth in the world. The girl was taken before the regular judges of the place; who, in the course of their investigation, ascertained the fact that she was privy to the robbery, and therefore sentenced her, in conformity with the laws of Spain, then prevalent in the island, to undergo the punishment of the *picket* (the same as is adopted in our own regiments of horse); but, as it was necessary that this sentence should receive the governor's confirmation before it could be carried into effect, a paper, stating the necessity of it, was sent to the government-house, and the governor, by his signature, conveyed his assent to the judges. The girl was accordingly picketed, when she acknowledged the facts above stated, and discovered her accomplice. That the life of this girl was forfeited by the laws of every civilised country is a fact that will not admit of dispute; yet clemency was here extended to her, and she was released, having suffered only the punishment above stated; which was so slight, that she walked a

considerable distance to the prison, without the least appearance of suffering, immediately after it was inflicted. But what was the return for the lenity of the governor? He was accused by Colonel Fullarton of having put this girl (whom he had never even *seen*) to the *torture*, contrary to law; and the caricaturists of England were enlisted in the service of persecution. After a trial which seemed to have no end, after an expense of *seven thousand pounds*, which must have completed his ruin, had not his venerable uncle, General Picton, defrayed the whole costs of the suit, while the expenses of his prosecutor were all paid *by the government*, his honour and justice were established on the firmest basis, and to the perfect satisfaction of every upright mind.”

RICHARD PATCH.

EXECUTED FOR THE MURDER OF MR. BLIGHT.

THE case of this offender is one of those which fully prove, that the most wicked caution, the most deliberately planned scheme, or the most artful preparatory measures to attach suspicion to some other than the real cause, or to make it fall upon the guiltless, will never conceal murder.

Richard Patch was born in the year 1770, at the village of Heavytree, Devonshire, within two miles of Exeter, and his family had a name somewhat respectable among the yeomen of the county. The grandfather of Patch had a freehold estate in land, of the value of fifty pounds per annum, in a neighbouring village. His father, according to the custom of many of the petty farmers who reside on the sea-coast in the distant counties, was a smuggler, and he was noted for a fierceness and an unusual degree of intrepidity; but as the life of a smuggler is variable in its scenes, so he was doomed to change his bold deeds and his unlawful proceedings for a quiet sojourn in the New Gaol at Exeter, where he was sentenced to be imprisoned for twelve months, on a conviction obtained at the instance of the officers of Excise. At the termination of the period of his imprisonment, he was engaged by the keeper of the prison as a gaoler, and he continued to occupy that post until the period of his death. He left several children, of whom our hero was the eldest. He had been bound apprentice to a butcher at Ebmere, a small village, the most notorious in the county for the immorality of its inhabitants, and it is exceedingly probable that his mind was early inured to thoughts of evil deeds. Upon his father's decease, he quitted his service as a butcher, and taking possession of the property, to which, as the eldest son, he was entitled, he became a farmer. His efforts, however, in this line were attended with no success, and he was soon obliged to mortgage the property which he possessed for more than one-half its value.

Some years were afterwards passed at Ebmere, when an accident drove him from his home. From motives which it is unnecessary to examine, he had quarrelled with the rector of his parish, and, in order to be revenged, he removed the produce of his farm from his land, without setting out the

tenths for the rector; or, in other words, he refused to pay the tithes. The consequence was a lawsuit, and an immediate action in the Exchequer. Patch, shuddering at the expense of the litigation, and the certain result which awaited him, and already somewhat embarrassed in his circumstances, quitted Devonshire, in the spring of the year 1803.

Upon his coming to London, he immediately presented himself at Mr. Blight's, with whom his sister, at that time, lived as a menial servant; together with a brother of his who was brought up a baker, but, for some reasons which it is unnecessary to enter into, was now in the service of Mr. Blight, as a kind of overseer or superintendant in the shipping business.

Mr. Blight, it appears, had formerly been a West India merchant, and had failed; upon which he engaged in the ship-breaking business, and was at this time carrying it on with great success.

Patch had not long entered the service of Mr. Blight, when, from jealousy or some uneasiness, his brother quitted it. He had been disappointed in endeavouring to set up for himself in the business of a baker to which he was bred; and this mortification, aggravated by the conduct of his brother Richard, excited such a disgust in his mind, that he immediately went to sea, sailed to the West Indies, where he soon died a victim to the yellow fever.

The thoughts of a partnership with his employer ere long struck our hero, and he was induced to look upon the scheme with some anticipations of its realisation, hoping to be able to purchase a share of the business with the proceeds of his estate in Devonshire. He, in consequence, proceeded into that county, and having disposed of his land, he cleared off all its encumbrances, and received a sum of 350*l.* as the surplus, after the payment of all expenses. On his return to London at the close of the year 1804, he made his desire known to his employer, and he paid over to him a sum of 250*l.* as a portion of the purchase-money, and deposited the remainder in the hands of a banker.

The exact nature of the agreement made does not appear, but whatever the negotiations may have been, they were suddenly stopped by the murder of Mr. Blight, who was mortally wounded, while sitting in his own house, by a pistol discharged by an unseen hand, on the 23rd September 1805. The extraordinary nature of the murder, and the still more singular method of its perpetration attracted universal attention, and a minute investigation of all

the circumstances having taken place before Mr. Graham a magistrate, suspicion fell upon Patch, and he was committed to prison.

His trial came on at the Surrey assizes, continued by adjournment to Horsemonger-lane, in the Borough, on Saturday, 5th April 1806. In the mean time the interest produced in reference to the case was of the most extraordinary nature.

By five o'clock in the morning of the trial, a vast concourse of the populace had assembled, and on the opening of the Court it was with the utmost difficulty that the law-officers and others could obtain an entrance. The Dukes of Sussex, Cumberland, and Orleans; Lords Portsmouth, Grantley, Cranley, Montford, William Russel, Deerhurst, and G. Seymour; Sir John Frederick, Sir John Shelley, Sir Thomas Turton, Sir William Clayton, Sir J. Mawby; Count Woronzow, the Russian ambassador, and his secretary, were present. The magistrates had made every accommodation that the Court would admit of: and a box was fitted up for the royal family.

The prisoner was conducted into court soon after nine o'clock, and took his station at the bar, attended by two or three friends. He was genteelly dressed in black, and perfect composure marked his countenance and manner. Precisely at ten o'clock, the Lord Chief Baron Macdonald took his seat on the bench; and to the indictment the prisoner pleaded, in an audible voice, "Not guilty."

He peremptorily challenged three jurors; after which a jury was sworn, and the indictment read.

The first witness called was Mr. Richard Frost, a publican, who kept the Dog and Duck. The first part of his testimony related merely to the fact of the death of Mr. Blight. He stated, that on the morning of the 23rd of September last, he was sent for by the prisoner, in consequence of the deceased having been killed by a pistol-shot: he went, and found him leaning on his hands and wounded.

Mr. Astley Cooper said he was called in to the assistance of Mr. Blight. Upon examining him he found he had received a wound near the navel, and another in the groin. He observed that they were gun-shot wounds; and as the body of the deceased was considerably inflated, he pronounced them mortal: he observed the bowels coming through the wounds. The next morning, at seven o'clock, Patch came to him, said the deceased was in extreme pain, and wished to know whether anything could be done for him.

The witness told him he feared there could not; but he rose and went to him, and found him in a very swollen state. He promised to return in the afternoon with a physician. He went to town, and came back with Dr. Barrington; but Mr. Blight had been dead about three quarters of an hour. He had not the smallest doubt that the wounds were the occasion of his death.

Richard Frost was again called up to speak to the firing of the gun. He stated that on Thursday, the 19th, "there was a report of the firing of a gun at Mr. Blight's house;" he went out to ascertain the cause, but did not perceive any person coming from the premises; and he was in a situation in which, had the person who fired it attempted to make his escape, he must have observed him; it was about eight o'clock in the evening, and it was dark; but he was near enough to have seen any one run away, or climb the wall.

Miss Ann Davis and Miss Martha Davis, sisters, who happened to be walking by the premises in a different direction from the last witness, stated, that they also saw the flash, and heard the report of a gun, and must have seen any person attempting to escape; but all was quiet, and they concluded that the gun was fired by some one on the premises.

After this head of evidence, to establish that the gun fired on the Thursday preceding the death of Mr. Blight, was not by any stranger, but by the prisoner, witnesses were called to relate the circumstances which occurred on the 23rd.

Mr. Michael Wright stated that he was going past Mr. Blight's house a little after eight, when he heard the report of a pistol in the house; and having become acquainted by the rumour of the former attempt, he was induced to go up to the house with a view to offer his assistance. He knocked for some time and was not admitted; but insisting on having the door opened, Patch made his appearance, and began informing him what a dreadful accident had happened. The witness was impatient at hearing this story; he thought that some means should be rather adopted to pursue the murderer, and recommended Patch to commission him to apply to Bow-street, as an inquiry taking place instantly after the assassination would most probably be attended with success. Patch seemed reluctant, and thought that no good effect could result from it. The witness therefore went away.

Hester Kitchener's evidence applied to the two days. She stated that on the 19th she had been ordered by the prisoner to shut up the shutters of the house earlier than usual. Her master and mistress were then at Margate. At eight o'clock the prisoner sent her out for some oysters; and as she returned, she heard the report of a gun, but she did not see any one. When she saw Patch, he cried, "Oh, Hester, I have been shot at!" She rejoined, "Lord forbid!" They then looked for the ball, which she found. The witness continued to state that her master returned to town on the Monday morning; that in the evening he and the prisoner drank tea together in the back parlour, and afterwards had some grog. Her master was fatigued, heavy, and sleepy with his journey and the liquor; and Patch came down in a hurry to her in the kitchen, and complaining of a pain in his bowels, wanted a light to go into the yard. She gave it to him, as also a key of the counting-house, through which it was necessary he should pass. She heard him enter the back place and slam the door after him, and immediately after, she heard the report of a pistol. Her master ran down into the kitchen, exclaiming, "Oh, Hester, I am a dead man!" and supported himself upon the dresser. She ran up to shut the door; and as she was half-way down the passage, on her return, she heard Patch knocking violently for admittance. He asked what was the matter; she told him; on which he went down and offered his assistance. He asked the deceased if he knew of any one who could owe him a grudge? Mr. Blight answered, "No, as he was not at enmity with any man in the world."

Mr. Christopher Morgan said that he was passing by when the fatal shot was fired; he went to the house, and saw Mr. Blight lying in a wounded situation, and recommended Mr. Patch, in the first instance, to search the premises all over. Patch told him to go and search an old ship that was off the wharf, as he had reason to think that the perpetrator might have escaped there; for he heard a noise in that direction on the night when the gun was previously fired; and he went, but found that the ship was lying at the distance of sixteen feet from the wharf; that it was low water: that from the top of the wharf to the mud was ten feet; that the soil was soft mud, and that any one who might attempt to escape that way must have been up to his middle. Besides, the mud did not bear the appearance of any one having passed through it; and he was, therefore, perfectly convinced that no one escaped over the wharf towards the water.

Six other persons, who happened to be in different directions leading from Mr. Blight's house to the public roads, most distinctly proved, that when the shot was fired which killed Mr. Blight, everything was quiet on the outside of the premises; that there was no appearance of any person attempting to escape; and if there had been, that there was no possibility of his eluding observation.

The next series of evidence went to show that the prisoner was carrying on a system of delusion and fraud against the deceased, in respect to certain pecuniary transactions between them. It was proved by Mrs. Blight, the deceased's widow, that her husband, who had fallen into some embarrassments, had, in order to mask his property, made a nominal assignment of it to Patch; but the assignment was not to be carried into effect, unless the trustees of his creditors should, as he apprehended, become importunate. This confidential assignment Patch wished to convert into an absolute sale, for consideration given on his part; but Mrs. Blight declared that he had never paid her husband any money, excepting two hundred and fifty pounds, part of one thousand two hundred and fifty pounds, the consideration for a share of his business.

The next branch of evidence referred to the stockings which the prisoner had on the night that Mr. Blight lost his life. It was proved that he generally wore boots; but the witnesses' memory enabled them to say that he had white stockings on during the evening of the 23rd. Mr. Stafford, of the police-office, stated that, on examining the bed-room of Mr. Patch, they were folded up like a clean pair, but that, on opening them, the soles appeared dirty, as if a person had walked in them without shoes: the inference from this was, that the prisoner had taken off his shoes in order that he might walk out of the necessary without being heard by the maid.

The last important fact was the discovery of the ramrod of a pistol in the privy, and the proof that that place had not recently been visited by any person suffering under a bowel complaint. This, and a vast variety of circumstantial evidence, concluded the case on the part of the crown.

The prisoner being called upon for his defence, delivered in a long and elaborate address, supposed to have been written by his counsel, which he requested might be read by the officer of the court: it began by thanking the learned judge for moving his trial from a place where prejudice might have operated against him; complained much of that prejudice having been

excited against him by premature reports in the public journals; and then entered into a general train of argument, inferring, that in a case of life and death, a jury ought not to convict upon circumstantial evidence; the more especially where the proof appeared, as in the present case, so dubious. He stated that whatever might be the result of their judgment upon the evidence, it was almost a matter of indifference to him on his own account; for he was borne down and subdued by the unjust prejudices of the public, by the long imprisonment he had endured, and by the enormous expenses to which he had been subjected; but he had those relations who made life dear to him: he had children who looked to him for support, and who would not only be dishonoured, but ruined by his death. The only evidence which he adduced was that of three persons who spoke to his general character.

The Lord Chief Baron summed up the evidence in the most perspicuous manner, occupying nearly two hours in commenting upon every part of it; when the jury retired for about a quarter of an hour, and on their return pronounced a verdict of Guilty.

His lordship then proceeded to pronounce the awful sentence of the law. He observed, that the prisoner had begun his career of guilt in a system of fraud towards his friend; he had continued it in ingratitude, and had terminated it in blood. He then directed that he should be executed on Monday, and that his body should be delivered for dissection.

Patch, who had the appearance of a decent yeoman, and was about thirty-eight years of age, during the whole of the trial never betrayed the slightest symptom of embarrassment: his appearance evinced a seeming composure, which innocence alone could manifest, or the most consummate villany could counterfeit. He heard the dreadful sentence with a degree of apathy, as if he had previously made up his mind to the event. The execution was eventually deferred till the next Tuesday, it being deemed advisable that he should suffer with a man and his wife, Benjamin and Sarah Herring, who had been convicted at Kingston, March 28, of coining, in order to obviate the inconvenience of having two public executions following each other so closely. It was in consequence of this suggestion of Mr. Ives, the keeper, to the Chief Baron (who, with the Dukes of Sussex and Gloucester, retired to his house after the trial), that his lordship was induced to order the respite, which he wrote thus on the margin of the first order for execution:—

“Let the execution be respited till Tuesday, the 8th day of April, 1806.

“A. MACDONALD.”

It seems that Herring and his wife had carried on the trade of coining to a great extent, at their own house in St. George’s Fields. On searching their premises, a complete set of coining implements, punches, aquafortis, &c., were found, besides upwards of seventy shillings, a quantity of dollars, half-crowns, and sixpences, all ready for circulation.

But to return to Patch.—This criminal, after condemnation, remained perfectly calm and unembarrassed. He slept well during the greater part of the Saturday night, rose at nine o’clock on the next morning, and attended divine service at half-past ten. About a quarter before eleven, the Rev. Mr. Mann, the ordinary, preached the condemned sermon, in a style the most impressive and affecting; to which Mr. Patch paid becoming attention. On his return, he looked the gaoler steadfastly in the face for about two minutes, and then ejaculated, “I am innocent;” but he appeared composed as usual during the remainder of the day. He continued to preserve a sullen silence until Monday afternoon, when that composure which had marked his countenance left him. He was informed by the ordinary of the gaol, that his friends approached to take their last farewell of him for ever, when he gave up all hope of a reprieve, and exclaimed, “Is no mercy to be expected?” His relations, viz., his sister, who had lived with Mr. Blight, a younger brother, who bore a strong resemblance in person to the unfortunate man, and a brother-in-law, with his wife, a nephew, and another distant relation, were admitted to him, and remained with him until three o’clock, when they took their last farewell. Patch was now most sensibly affected, and the scene was truly distressing. He embraced each of his relatives, and wept bitterly, clinging to them until the moment had arrived when their absence was required. After this affecting scene, Mr. Ives, the governor of the prison, went to his cell, and Patch here uttered an expression adequate to a confession of his guilt. He said, “I have confessed my sins to God; man can give me no relief.” He was also visited by the Rev. Mr. Mann, and three dissenting ministers. In their interviews with him he evinced the strongest proofs of a penitent sinner; but invariably declined to give any answer to the urgent entreaties of the clergymen to acknowledge the crime for which he was to die. Mr Graham, the magistrate who committed him to prison, was the last person admitted to see him on this

night. Before they parted Mr. Patch took him by the hand, and said, emphatically, "We shall, I trust, meet in Heaven."

The three dissenting ministers remained with him during the night, and he appeared extremely penitent and devout.

At about half-past six o'clock on Tuesday morning, the Rev. Mr. Mann, and the curate of the Rev. Mr. Rowland Hill, came to the prison, and after a short interview Patch and Herring received the sacrament, Mrs. Herring, who was a Catholic, being left with a priest, the Rev. Mr. Griffiths.

About five minutes before nine o'clock the high-sheriff demanded the bodies of the unfortunate sufferers; and immediately after, they began to move in the usual order, followed by Mr. Ives, the keeper of the prison. When they got to the open yard, Herring and his wife were placed on a sledge, and drawn to the entrance of the stair-case leading to the apparatus for the execution, from which they ascended the stairs with as much firmness as could be expected. Patch displayed his usual intrepidity.

While Jack Ketch was fastening the ropes, the Rev. Mr. Mann attended Patch, and, for the last time, attempted to draw from him a confession, but with no better success. The sheriff then went to him, and entreated him to confess; but he steadfastly refused. At this time the cap was drawn upon his face, and everything prepared to launch him into eternity. Apparently displeased at being pressed so much upon the subject, he now threw himself considerably back with impatience. From the violent motion of his body, some of the spectators supposed that he meant to break his neck, as Avershaw did on Kennington-common; Mr. Ives immediately went to him and said, "My good friend, what are you about?" and they conversed together for about a minute and a half. The unfortunate prisoners were then immediately put to death by the falling of the drop.

The execution took place on the 8th of April, 1806.

The body of Patch, after hanging the usual time, was taken to the hospital of the prison, in order to be anatomised by the county surgeon. He was an athletic, broad-shouldered man, about five feet seven inches high, and to the last maintained his florid looks, which, however, were constitutional, and not the effect of any extraordinary degree of determination.

WILLIAM DUNCAN,

CONVICTED OF THE MURDER OF HIS MASTER.

THIS case is worthy of remark from the singular mode in which the murder of the unfortunate gentleman, the employer of the prisoner, was committed. It appears that Duncan was in the service of Mr. Chivers, a gentleman between seventy and eighty years of age, and much troubled with the gout, who resided at Clapham-common, as gardener. On the morning of the 24th of January, 1807, he was at work as usual in the garden, when his master, according to his custom, went out to him to superintend his proceedings. At about half-past 11 o'clock, the gardener suddenly ran in doors, exclaiming, "Lord, what have I done; I have struck my master, and he has fallen," and immediately left the house. The footman proceeded into the garden to discover what had happened, and found his master lying on the ground, with his face most frightfully cut. He directly procured surgical aid, when it was found that Mr. Chivers had received a wound with a spade, the end of which had entered the lower part of his nose, had broken both his jaw-bones, and had penetrated nearly to a line with his ears, so that his head was almost divided. The unfortunate gentleman died immediately afterwards, and the prisoner was subsequently secured, and committed to Horsemonger-lane gaol.

The prisoner was indicted at the ensuing assizes, when the offence having been brought home to him by the witnesses for the prosecution, he was called on for his defence. He then addressed the Court as follows:—

"I beg leave to assure your lordship that I never bore Mr. Chivers any malice whatever. On Saturday morning I had been employed in digging some ground, and with my spade in my hand I went to the green-house to give it some air, and there I left my spade. I then went for some refreshment, at eleven o'clock in the morning, as was usual, and, on going into the kitchen, I saw the footman, of whom I asked how long it was since Mr. Chivers went out. I went into the garden, and to the green-house, into which I let a little more air, and, with my spade in my hand, I looked at a vine. I saw Mr. Chivers, told him that I had finished my digging, and said I was very sorry to have left so good a place, and now to be turned off. A few

words passed between Mr. Chivers and me; and the last expression he used was, 'You scoundrel, I will break your skull.' He shook his cane over me; he made an attempt to strike at me, when I, turning aside, escaped; he again endeavoured to strike, and I avoided the blow. After this he followed me up with his cane, and I then had, as I before said, a spade in my hand. I raised the spade, and to my surprise struck him.

"Immediately afterwards I went into the green-house, with the full intention of taking away my own life, but I had not sufficient courage to do it. I then went into the kitchen, and called Henry, who said 'What is the matter?' and I replied, 'Good Lord, I have struck my master, and he fell!' I went out towards Clapham, and the first persons I saw were a butler and a gardener. I went to the garden of Mr. Robert Thornton, and asked for Mr. Dixon, who is one of the gardeners. They said he was cutting a vine; but they went to him, and Mr. Dixon sent me word that I might come to him. I then informed Mr. Dixon of what had happened, and upon his advice surrendered myself into custody."

Witnesses having been called, who gave the prisoner an excellent character, the jury found him guilty, and he was sentenced to be executed on the following Monday in the usual form. He was, however, twice respited, and eventually ordered to be transported for life.

JOHN HOLLOWAY AND OWEN HAGGERTY,

EXECUTED FOR MURDER.

THE fatal accident which happened on the spot and at the moment of the execution of these men, by which more than forty people lost their lives, and many more were terribly bruised, will cause their memory, as well as their crimes, to remain a dreadful warning to many generations. Their whole case was attended with singular and awful circumstances. Of their guilt many entertained doubts, which are not yet entirely removed, although no further discovery has been made respecting the horrid deed; and as lately as the year 1813, a man named Ward was indicted for the same murder, but acquitted. Their conviction rested, certainly, upon the evidence of a wretch as base as themselves, who stated himself to have been their accomplice; but the public indignation against them was excited to such a pitch, that it is scarcely to be wondered at that a jury pronounced them guilty.

On the 6th of November, 1802, Mr. John Cole Steele, who kept the Lavender Warehouse in Catharine-street, Strand, was murdered, with much barbarity, on Hounslow Heath, and his pockets rifled of their contents. The murderers escaped; and, though rewards were offered for their apprehension, no discovery was made.

Every search had been made by the officers of the police after them; several loose characters had been apprehended on suspicion, but discharged on examination; and all hopes had been given up of tracing the murderers, when a circumstance occurred, about four years afterwards, which led to the apprehension of John Holloway and Owen Haggerty.—A man of the name of Benjamin Hanfield, who had been convicted, at the Old Bailey, of grand larceny, in stealing a pair of shoes, was sentenced to seven years' transportation, and was conveyed on board a hulk at Portsmouth, to await his departure for New South Wales; but having been taken with a severe illness, and being tortured in his mind by the apparent recollection of a murder, about which he constantly raved, he said he wished to make a discovery before he died. A messenger was immediately despatched to the police magistrates at Bow-street, to communicate the circumstance, and an officer was sent to bring him before them. When he was brought on shore,

they were obliged to wait several days, during which his illness would not permit his removal. On his arrival in town, he made a full disclosure of the circumstances attending the murder of Mr. Steele, and the magistrates having sent him, in custody of an officer, to Hounslow Heath, he there pointed out the fatal spot where the murder was perpetrated. As his evidence implicated Haggerty and Holloway, measures were taken to apprehend them, and, after a long search, they were taken into custody. Several private examinations of all the parties took place. Hanfield was admitted king's evidence, and the public once more cherished a hope that the murderers would meet the punishment they deserved.

Monday, February 9, 1807, being the day appointed for the final examination of the prisoners, they were brought before Mr. Moser, at Worship-street Police-office.

There was a great body of evidence adduced, none of which tended materially to criminate the prisoners, except that of Hanfield, the accomplice, who, under the promise of pardon, had turned king's evidence. The prisoners denied having any knowledge whatever of the crime laid to their charge, and heartily hoped that punishment would come to the guilty; but, the magistrates, after maturely considering the whole of the proofs adduced, thought proper to commit them for trial at the next sessions at the Old Bailey, and bound over no less than twenty-four persons to appear and give evidence on the trial.

Such was the eager curiosity of the public to know the issue of this trial, which came on February 20, before Sir Simon Le Blanc, knight, that the whole Court and area of the Old Bailey were greatly crowded.—When put to the bar, Holloway appeared to be about forty years of age, of great muscular strength, tall, and of savage, brutal, and ferocious countenance, with large thick lips, depressed nose, and high cheek bones. Haggerty was a small man, twenty-four years of age.

Evidence was then adduced to show, that Mr. Steele, besides his residence in Catherine-street, had a house and grounds at Feltham, where he cultivated lavender and distilled it for sale in London. On the 5th of November, 1802, he left Catherine-street, giving his family to understand that he should return on the following evening, and on the same night he arrived at Feltham. On the next afternoon (Saturday) he quitted Feltham at about seven o'clock, on his way back to London, but he was never seen

alive by any member of his family afterwards. His continued absence creating alarm, some persons were employed to search for him, and at length his body was found lying at the bottom of a ditch, near a clump of trees, at a short distance from the barracks on Hounslow Heath. From the wounds which appeared about his person, it was evident that his death had been caused by violence, and Mr. Frogley, a surgeon, being called in, it was found that his skull was severely fractured, and that he was otherwise wounded in a most dreadful manner. It was found also that he had been robbed of any money which he might have had about him, as well as of his hat and boots: an old pair of shoes and a common felt hat being left in their stead, close to the spot where the body was found. Notwithstanding the most strenuous exertions were subsequently made by the police to discover the perpetrators of this most barbarous murder, no trace was found until the confession of the accomplice Hanfield, when Vickery, the officer, was despatched to Portsmouth to bring that person to London. On his way over Hounslow Heath, he pointed out the exact spot where the body was found, as that at which the murder was perpetrated, and in consequence of his information Holloway was apprehended at Brentford, during the election, and Haggerty was taken into custody on board the Shannon frigate, in the Channel, where he was serving as a marine. They were both taken to the police-office and confronted, but they denied all knowledge of each other, and of Hanfield, and they both gave accounts of themselves as to their condition and situation at the time of the murder, which, however, turned out to be untrue. While confined in the lock-up, attached to the office, Bishop, the officer, secreted himself in the privy adjoining, where he could hear all their conversation, and he heard them make use of expressions, which left no doubt of their being acquainted, or of their having been at Hounslow on the night of the murder.

The king's pardon, under the great seal, to Hanfield *alias* Enfield, remitting his sentence of transportation for seven years, for a larceny of which he had been convicted, and restoring him to his competency as a witness, having then been read, that witness was called, and made the following statement on oath:—"I have known Haggerty eight or nine years, and Holloway six or seven. We were accustomed to meet at the Black Horse, and Turk's Head, public-houses, in Dyot-street. I was in their company in the month of November 1802. Holloway, just before the murder, called me out from the Turk's Head, and asked me if I had any

objection to be in a good thing? I replied I had not. He said it was a '*Low Toby*' meaning it was a footpad robbery. I asked when and where, and he said he would let me know. We parted, and two days after we met again, and Saturday, the 6th of November, was appointed. I asked who was to go with us? He replied that Haggerty had agreed to make one. We all three met on the Saturday at the Black Horse, when Holloway said, 'Our business is to *sarve* a gentleman on Hounslow Heath, who, I understand, travels that road with property.' We then drank for about three or four hours, and about the middle of the day we set off for Hounslow. We stopped at the Bell public-house, and took some porter. We proceeded from thence upon the road towards Belfont, and expressed our hope that we should get a good booty. We stopped near the eleventh mile-stone, and secreted ourselves in a clump of trees. While there, the moon got up, and Holloway said we had come too soon. After loitering about a considerable time, Holloway said he heard a footstep, and we proceeded towards Belfont. We presently saw a man coming towards us, and, on approaching him, we ordered him to stop, which he immediately did. Holloway went round him, and told him to deliver. He said we should have his money, and hoped we would not ill-use him. The deceased put his hand in his pocket, and gave Haggerty his money. I demanded his pocket-book. He replied that he had none.—Holloway insisted that he had a book, and if he did not deliver it he would knock him down. I then laid hold of his legs. Holloway stood at his head, and said if he cried out he would knock out his brains. The deceased again said he hoped we would not ill-use him. Haggerty proceeded to search him, when the deceased made some resistance, and struggled so much, that we got across the road. He cried out severely; and, as a carriage was coming up, Holloway said, with a terrible oath, 'Take care, I will silence him;' and immediately struck him several violent blows on the head and body. The deceased heaved a deep groan, and stretched himself out lifeless. I felt alarmed, and said, 'John, you have killed the man.' Holloway replied that it was a lie, for he was only stunned. I said I would stay no longer, and immediately set off towards London, leaving Holloway and Haggerty with the body. I came to Hounslow, and stopped at the end of the town for near an hour. Holloway and Haggerty then came up, and said they had done the trick, and as a token, put the deceased's hat into my hand.—The hat Holloway went down in was like a soldier's hat. I told Holloway it was a cruel piece of business, and that I was sorry I had any hand in it. We all

turned down a lane, and returned to London. As we came along I asked Holloway if he had got the pocket-book. He replied it was no matter, for, as I had refused to share the danger, I should not share the booty. We came to the Black Horse in Dyot-street, had half a pint of gin, and parted. Haggerty went down in shoes, but I don't know if he came back in them. The next day I observed Holloway had a hat upon his head which was too small for him. I asked him if it was the same he got the preceding night. He said it was. We met again on the Monday, when I told Holloway that he acted imprudently in wearing the hat, as it might lead to a discovery. He put the hat into my hand, and I observed the name of Steele in it. I repeated my fears.—At night Holloway brought the hat in a handkerchief, and we went to Westminster-bridge, filled the hat with stones, and, having tied the lining over it, threw it into the Thames.”

The witness, being cross-examined by the counsel for the prisoners, said he had made no other minutes of the transactions he had been detailing than what his conscience took cognisance of. It was accident that led to this disclosure. He was talking with other prisoners in Newgate of particular robberies that had taken place; and the Hounslow robbery and murder being stated amongst others, he inadvertently said, that there were only three persons who knew of that transaction. The remark was circulated and observed upon, and a rumour ran through the prison that he was about to turn “nose” and he was obliged to hold his tongue, lest he should be ill-used.—When at Portsmouth, on board the hulks, the compunctions of conscience came upon him, and he was obliged to dissipate his thoughts by drinking, to prevent him from divulging all he knew. He admitted that he had led a vicious life, that he had been concerned in several robberies, and had entered and deserted from several regiments. He had served in the East and West London militias, had enlisted into the ninth and fourteenth light dragoons, and had been in the army of reserve. He added that he was ashamed and sorry at what he had been, and would endeavour to mend his life in future.

Evidence, in corroboration of his statement, with regard to the hat and boots fitting Holloway, was also given by Mr. Steele's tradespeople, and the prosecution being closed, the prisoners were called upon to make their defence.

Haggerty protested that he was completely innocent of the charge, and was totally unacquainted with the witness, Hanfield. He denied ever having

been at Hounslow, and endeavoured to point out some inconsistencies in the evidence which had been adduced.

Holloway declared that he was equally innocent; but admitted that he had been at Hounslow more than once; and that he might have been in the company of the prisoner Haggerty and Hanfield, although he said that he was not acquainted with either of them.

Mr. Justice Le Blanc summed up the evidence in a very clear and perspicuous manner, and the jury having retired for about a quarter of an hour, returned with a verdict of Guilty against both the prisoners.

The recorder immediately passed sentence in the most solemn and impressive manner, and the unhappy men were ordered for execution on the following Monday morning, February the 23rd, 1807.

They went from the bar reiterating protestations of their innocence, and apparently careless of the miserable and ignominious fate that awaited them.

After conviction Haggerty and Holloway conducted themselves with the most decided indifference. On Saturday, February 21, the cell-door, No. 1, in which they were both confined, was opened about half-past two. They were reading in two prayer-books by candle-light, as the cell was very dark. On Sunday, neither of them attended the condemned sermon, and several magistrates interrogated them; but they still persisted in their innocence.

During the whole of Sunday night the convicts were engaged in prayer. They never slept, but broke the awful stillness of midnight by frequent reciprocal protestations of innocence. At five they were called, dressed, and shaved, and about seven were brought into the press-yard. There was some difficulty in knocking off the irons of Haggerty, and he voluntarily assisted, though he seemed much dejected. A message was then delivered to the sheriffs, that Holloway wanted to speak with them in private. This excited very sanguine expectations of confession; but the sheriffs, on their return, intimated to the gentlemen in the press-yard, that Holloway wanted to address them publicly; and therefore requested they would form themselves into a circle, from the centre of which Holloway delivered, in the most solemn manner, the following energetic address:—"Gentlemen, I am quite innocent of this affair. I never was with Hanfield, nor do I know the spot. I will kneel and swear it." He then knelt down and imprecated curses on his

head if he were guilty, and he concluded by saying, “By God, I am innocent.”

Owen Haggerty first ascended the scaffold. His arms were pinioned, and the halter had been already placed round his neck: he wore a white cap, and a light olive shag great-coat: he looked downwards, and was silent. He was attended by a Roman Catholic clergyman, who read to him, and to whom the unfortunate culprit seemed to pay great attention; he made no public acknowledgment of guilt. After the executioner had tied the fatal noose, he brought up Holloway, who wore a smock frock and jacket, as it had been stated by the approver that he did at the time of the murder: he had also a white cap on, was pinioned, and had a halter round his neck: he had his hat in his hand; and mounting the scaffold, he jumped and made an awkward bow, and said, “I am innocent, innocent, by God!” He then turned round, and, bowing, made use of the same expressions, “Innocent, innocent, innocent! Gentlemen!—No verdict! No verdict! No verdict! Gentlemen. Innocent! innocent!” At this moment, and while in the act of saying something more, the executioner proceeded to do his office, by placing the cap over his face; to which he, with apparent reluctance, complied; at the same time uttering some words which were not heard. As soon as the rope was fixed round his neck, he continued quiet. He was attended in his devotions by an assistant at Rowland Hill’s Chapel.

The last that mounted the scaffold was Elizabeth Godfrey. She had been a woman of the town, aged 34, and had been capitally convicted of the wilful murder of Richard Prince, in Mary-le-bone parish, on the 25th of December 1806, by giving him a mortal wound with a pocket-knife in the left eye, of which wound he languished and died. Immediately on receiving sentence, this woman’s firmness and recollection seemed to fail her, and she appeared bordering upon a state of frenzy. At the place of execution she was dressed in white, with a close cap, and long sleeves, and was attended by the Rev. Mr. Ford, the Ordinary of Newgate; but her feelings appeared to be so much overpowered, that notwithstanding she bore the appearance of resignation in her countenance, her whole frame was so shaken by the terror of her situation, that she was incapable of any actual devotion.

They were all launched off together, at about a quarter after eight. It was a long time before the body of the poor female seemed to have gone through its last suffering.

The crowd which assembled to witness this execution was unparalleled, being, according to the best calculation, near 40,000; and the fatal catastrophe, which happened in consequence, will cause the day long to be remembered. By eight o'clock, not an inch of ground was unoccupied in view of the platform, and the pressure of the crowd was so great, that before the malefactors appeared, numbers of persons were crying out in vain to escape from it. The attempt only tended to increase the confusion, and several females of low stature, who had been so imprudent as to venture among the mob, were in a dismal situation: their cries were dreadful. Some, who could be no longer supported by the men, were suffered to fall, and were trampled to death, and this was also the case with several boys. In all parts there were continual cries of "Murder! murder!" particularly from the female part of the spectators and children, some of whom were seen expiring without the possibility of obtaining the least assistance, every one being employed in endeavours to preserve his own life. The most affecting scene of distress was seen at Green Arbour Lane, nearly opposite the Debtor's-door. The terrible occurrence which took place near this spot was attributed to the circumstance of two pie-men attending there to dispose of their pies, and it appears that one of them having his basket overthrown, which stood upon a sort of stool upon four legs, some of the mob, not being aware of what had happened, and at the same time being severely pressed, fell over the basket and the man, at the moment he was picking it up, together with its contents. Those who fell were never more suffered to rise, and were soon numbered with the dead.

At this fatal place a man of the name of Herrington was thrown down, who had in his hand his youngest son, a fine boy, about twelve years of age. The youth was soon trampled to death; but the father recovered, though much bruised, and was amongst the wounded in St. Bartholomew's Hospital. A woman, who was so imprudent as to bring with her a child at the breast, was one of the number killed: whilst in the act of falling, she forced the child into the arms of the man nearest to her, requesting him, for God's sake, to save its life; but the man, finding it required all his exertions to preserve himself, threw the infant from him. It was fortunately caught at a distance by another man, who, finding it difficult to ensure its safety or his own, got rid of it in a similar way. The child was then again caught by a person, who contrived to struggle with it to a cart, under which he deposited it until the danger was over, and the mob had dispersed.

In other parts, the pressure was so great that a horrible scene of confusion ensued, and seven persons lost their lives by suffocation alone. A cart which was overloaded with spectators broke down, and some of the persons falling from the vehicle, were trampled under foot and never recovered.

During the hour for which the malefactors hung, little assistance could be afforded to the unhappy sufferers; but after the bodies were cut down, and the gallows removed to the Old Bailey yard, the marshals and constables cleared the street, and then, shocking to relate, there lay near one hundred persons dead, or in a state of insensibility, strewed round the street. Twenty-seven dead bodies were taken to St. Bartholomew's Hospital; four to St. Sepulchre's church; one to the Swan on Snow-hill, one to a public-house opposite St. Andrew's church, Holborn; one, an apprentice, to his master's, Mr. Broadwood, pianoforte maker, Golden-square; a mother was seen carrying away the body of her dead boy; and the body of Mr. Harrison, a respectable gentleman, was taken to his house at Holloway. There was a sailor-boy killed opposite Newgate by suffocation: he carried a small bag, in which he had some bread and cheese, from which it was concluded that he had come some distance to witness the execution.

After the dead, dying, and wounded, were carried away, there was a cart-load of shoes, hats, petticoats, and other articles of wearing apparel, picked up. Until four o'clock in the afternoon, most of the surrounding houses contained some persons in a wounded state, who were afterwards taken away by their friends on shutters, or in hackney-coaches. The doors of St. Bartholomew's Hospital were closed against the populace, until after the bodies of the dead were stripped and washed. They were ranged round a ward on the first floor, on the women's side, and were placed on the floor with sheets over them, and their clothes put as pillows under their heads: their faces were uncovered: and a rail was placed along the centre of the room. The persons who were admitted to see the shocking spectacle went up on one side, and returned on the other. Until two o'clock in the morning, the entrances to the hospital were beset with persons anxiously seeking for their lost relatives and friends.

Seldom had such a scene of distress and misery presented itself in this metropolis. When the gates were opened, a great concourse was admitted; and when the yard was full, the gates were again closed, until the first visitors returned from the scene of woe: as soon as any of the deceased

were recognised, the body was either put into a shell or the face covered over, with the name of the party written on a paper, and pinned over the body.

The next day (Tuesday) a coroner's inquest sat in St. Bartholomew's Hospital, and other places where the bodies were, on the remains of the sufferers. Several witnesses were examined with respect to the circumstances of the accident; and on Friday, when the inquest terminated, the verdict was, "That the several persons came by their death from compression and suffocation."

GEORGE ALLEN.

EXECUTED FOR THE MURDER OF HIS THREE CHILDREN.

THERE can be little doubt that the horrid offence committed by this wretched man was prompted by insanity; and it is surprising that a jury should have found him guilty of the crime imputed to him, without declaring this to be their opinion.

It appeared on his trial, which took place at Stafford in the month of March 1807, that on the evening of the 12th of January, he retired to rest with his wife, and that in about an hour the latter was awoke by her finding her husband sitting upright in bed, smoking a pipe. In another bed in the same room lay three of his infant children asleep, the eldest boy about ten years old, the second, a girl, about six, and another boy about three, and Mrs. Allen also had an infant at her breast. On his perceiving his wife to be awake, the prisoner demanded to know “what other man she had in the house with her;” to which she answered “that there was no man there but himself.” He, however, insisted to the contrary, and jumped out of bed, and ran down stairs. His wife followed him; but he returned, and meeting her on the stairs, bade her go back. He then went to the bed where his children were, and turned down the clothes. On her endeavouring to hold him, he told her “to let him alone, or he would serve her the same sauce,” and immediately attempted to cut her throat, in which he partly succeeded, and also wounded her right breast; but a handkerchief she wore about her head and neck prevented the wound from being fatal. She then extricated herself (having the babe in her arms all the time, which she preserved unhurt), and jumped, or rather fell, down stairs; but before she could well rise from the ground, one of the children (the girl) fell at her feet, with its head nearly cut off, which her wretched husband had murdered and thrown after her. The woman opened the door, and screamed out “that her husband was cutting off their children’s heads;” and a neighbour shortly came to her assistance; and a light having been procured, the monster was found standing in the middle of the house-place, with a razor in his hand. He was asked what he had been doing; when he replied coolly, “Nothing yet; I have only killed three of them.” On their going up stairs, a most dreadful spectacle presented

itself: the head of one of the boys was very nearly severed from his body, and the bellies of both were partly cut and partly ripped open, and the bowels torn completely out and thrown on the floor. Allen made no attempt to escape, and was taken without resistance. He said that it was his intention to murder his wife and all her children, and then to have put an end to himself. He also declared that he meant to have murdered an old woman who lay bed-ridden in the same house.

An inquest was subsequently held on the bodies of the three children, before Mr. Hand, coroner, of Uttoxeter, when the miserable man confessed his guilt, but without expressing any contrition. He promised also to confess something that had lain heavily on his mind; and Mr. Hand, supposing it might relate to a crime he had before committed, caused him to be examined in the presence of other gentlemen, when he told an incoherent story of a ghost, in the shape of a horse, having about four years before enticed him into a stable, where it drew blood from him, and then flew into the sky. With respect to the murder of his children, he observed to the coroner, with apparent unconcern, that he supposed "it was as bad a case as ever he heard of."

The horrid circumstances of these murders having been fully proved, he was convicted, and suffered the final sentence of the law at Stafford, March 30th 1807.

MARTHA ALDEN.

EXECUTED FOR THE MURDER OF HER HUSBAND.

OF the numerous instances which we have already adduced, wherein women have committed that very worst of all crimes, the murder of their husbands, perhaps no case has been attended with more malice, art, and cruelty, than that of Martha Alden.

Her trial for this offence came on at the Summer Assizes for the county of Norfolk, in the year 1807.

From the evidence adduced, it appeared that the deceased was a labouring man of rather diminutive stature, and lived with the prisoner in a small cottage near Attleburgh, in Norfolk. On the night of Saturday the 13th of July, the deceased and his wife were in company with a man named Draper at the White Horse public-house, Attleburgh, drinking together, and about ten o'clock the prisoner went away, saying she should go home. At twelve o'clock Draper conducted Alden, who was slightly intoxicated, to his own door, and left him there with the prisoner. In the morning, at about three o'clock, a man named Hill was passing the prisoner's house on his way to see a relation at about ten miles off, when the prisoner accosted him, saying that "She could not think what smart young man it was going down the common." A short conversation ensued, in which the prisoner said that "she had not returned long from the town, where she had been drinking with her husband and Draper, and that her husband had then gone, she did not know where, but that she thought he had gone to a brother of his, who lived in Essex." It was remarked by Hill, "that he knew that Alden had let himself to Mr. Parson for the harvest," to which the prisoner assented, but said that she knew he would never come back, and that if he got a job he would never settle to it. Between six and seven o'clock the prisoner was met in the road by Mr. Parson, a farmer, accompanied by a young woman named Orrice, when she said that she had lost her husband, and expressing herself very unhappy about him, declared her belief that he was either murdered or drowned, and on the following morning she was again seen by the same person, when she said that she had walked above thirty miles in search of him, but could not find him. On the Monday evening the prisoner

borrowed a spade from a neighbour named Leeder, with an alleged intention of mending her hedge, which had been destroyed by pigs, which had got in and rooted up her potatoes; and one having been lent to her, she went away, and was afterwards seen at work in the ditch surrounding her garden. Up to this time no traces of her husband had been discovered; but on Tuesday night Mrs. Leeder went to a pond on the common to look for some ducks, which she had missed, and having found them, she was on her way home, when she remarked something in a large pit or pond, which lay in her path. She went to the edge of the pond, and touched the object with a stick, and it sank and rose again; but although the moon shone, she could not distinguish what it was, and she went home. Her curiosity, however, having been raised, she returned to the spot on the following morning, and then she again touched the substance with a stick, on which it turned over, and to her terror, she saw two hands appear, the arms being clothed in a shirt, which was stained with blood. The alarm was immediately given, and the body being taken out, it proved to be that of the prisoner's husband. It was covered only with an old coat, with a slop or shirt over it, and the head appeared to be dreadfully mangled. The face was much chopped, and the head nearly cut off, and other injuries were inflicted, which could not have been done by the unfortunate deceased himself. The body was immediately conveyed in a cart to the house of the prisoner, who was taken into custody. On her house being examined, the bedding and bed were found to be smeared with blood, and the walls of the bed-room bore marks of their having been spattered with the same fluid, but partly washed. Two sacks, also bloody, were discovered concealed under a peat-stack, and from a dark cupboard was produced a bill-hook with which the foul deed was evidently perpetrated, and from which the blood had been only partially removed. On the garden being searched, a species of grave was found to have been dug about forty yards from the house, and at the spot where the prisoner had been seen at work, sufficiently broad and long to receive the body of the deceased, but only about eighteen inches deep. In addition, however, to these facts, the testimony of the girl Orrice, whose name had been already mentioned, was procured.

She stated that she had been acquainted with the prisoner a good while, and had frequently been at her house. On Sunday (the 19th) the prisoner asked her to go with her to her house; and when she got there, the prisoner said to her, "I have killed my husband;" and, taking her into the bed-room,

showed her the body lying on the bed, quite dead, with the wounds as before described: her account of the state and appearance of the room perfectly coincided with the descriptions of the former witnesses; she also saw a hook lying on the floor all bloody: when the hook was shown to her in court, she said it was the very same she had then seen. The prisoner then produced a common corn-sack, and, at her request, the witness held it whilst the prisoner put the body into it; the prisoner then carried the body from the bed-room, through the passage and kitchen, out of the house, across the road to the ditch surrounding the garden, and left it there, after throwing some mould over it. The witness then left the prisoner, and went to Larling; and the prisoner slept that night at the witness's father's house. On the following night, between nine and ten o'clock, the witness was again in company with the prisoner, and saw her remove the body of her husband from the ditch of the garden to the pit on the common, dragging it herself along the ground in the sack; and, when arrived at the pit, the prisoner shot the body into it out of the sack, which she afterwards carried away with her: the deceased had a shirt and slop on. The prisoner said nothing to her at the time, and she went home. The next morning (Tuesday) the witness went to the prisoner's house, and assisted in cleaning it up, taking some warm water, and washing and scraping the wall next the bed. The prisoner took up some loose straw, and told the witness she would carry and throw it into Mr. Parson's ditch, because it was bloody. The prisoner bade the witness to be sure not to say a word about the matter; for, if she did, she (the witness) would certainly be hanged. Upon being questioned to that effect by the judge, this witness further stated that she had told the story to her father on the Tuesday night, and to nobody else.

On his lordship asking the prisoner what she had to say in her defence, she told an incoherent story, which, however, as far as it was at all intelligible, seemed rather to aim at making the testimony of the last witness appear contradictory and suspicious, and to implicate her in the guilt of the transaction, than to deny the general charges which had been adduced against herself.

The learned judge then summed up the evidence in a very full and able manner, and the jury returned a verdict of Guilty.

The prisoner was immediately sentenced to death. Her behaviour subsequently was becoming the awful situation in which she was placed. She confessed the justice of her conviction, and admitted that she had

murdered her husband with the bill-hook. She declared, however, that it was not the result of premeditated malice, but that her husband having threatened to beat her, the thought came into her head when he lay down to go to sleep.

She was drawn on a hurdle to the place of execution on the Castle-hill, on the 31st of July 1807, and there underwent the punishment of death pursuant to her sentence.

JOHN PALMER.

EXECUTED FOR BURGLARY.

THIS prisoner, although at the time of his execution he was only twenty-three years of age, was, nevertheless, an old offender, and richly merited the fate which befel him.

He was indicted at the Old Bailey sessions, in September 1808, for having, on the 8th of the same month, feloniously assaulted William Waller; and for having with a certain sharp instrument, which he held in his right hand, stabbed and cut him in and upon his head, with intent in so doing to kill and murder him. In another indictment he was charged with burglariously breaking and entering the dwelling-house of Henry Kimpton, with intent to steal, and stealing therein a pair of snuffers.

The facts which were proved in evidence were, that the house in question was situated at No. 20, Manchester-square, and that, being furnished and unoccupied, Waller was placed in it, to take care of it, by Mr. Kimpton, who was an auctioneer. On the 8th of September, at about four o'clock in the afternoon, Waller went out, having previously carefully shut up the doors and windows of the house, and he did not return until near twelve o'clock at night. He then found the house, to all appearance, undisturbed; but upon his going up to the room in which he slept, which was on the garret floor, he perceived that his bed was in disorder. He was in the act of turning round to ascertain whether any person was in the adjoining apartment, when he was suddenly seized from behind by a man, whom he presently saw was the prisoner. He cried, "Lord have mercy upon me;" but the prisoner said, "Do not speak a word; lie down on the bed, that is all you have to do;" and then pushing him, threw him on his face on his bed. At this moment a second man, whom the prisoner called Joseph, made his appearance, and Waller attempting to offer some resistance, they threatened him with instant death. He, however, continued to struggle; and having at length, extricated himself from the grasp of the prisoner, he was running towards the window to give an alarm, when he was suddenly felled to the ground by a tremendous blow on the head from an iron crowbar. He managed to rise and open the window, and cry "murder," but he was again

violently assailed; but then the people below having called to him to go down and open the door, he managed to escape, and run down into the passage. He was pursued by the prisoner, whom however he missed on his reaching the ground floor; and he was employed in opening the street door, when the people without, who had been alarmed by his cries, suddenly burst it in upon him, and knocked him down. At this moment the prisoner was seen to ascend the area steps, and to jump over the gate into the street, and being seized, he declared that he belonged to the house, and that they were trying to murder the man up stairs; but Waller was by this time sufficiently recovered to recognise him, and having informed the mob, which had by this time assembled, that he was the person by whom he had been so violently attacked, he was handed over to the custody of a watchman. All search after his companion having proved fruitless, the prisoner was carried to the watch-house, and then on his being searched, a phosphorus box with matches was found in his possession, and a paper bearing the following memorandum:—"No 13, Edward-street, and a house in Harley-street; No. 30, Oxford-street, and No. 20, Manchester-square—done." A pair of snuffers, which was proved to have been taken from Mr. Kimpton's house, was also taken from him, besides a large bunch of picklock and skeleton keys.

The prisoner, when called on for his defence, denied that he was the person who had escaped from the house, and declared that having come up with the crowd upon hearing the outcry, he had picked up the snuffers and keys, which were found upon him. He said that he had served in the navy, and had only returned seven months from the Mediterranean station, where he had been a seaman on board the *Lion*, Captain Rolles.

His protestations of innocence were, however, vain, and the jury returned a verdict of Guilty on both indictments.

Sentence of death was subsequently passed in the usual form; and of all those prisoners who by their crimes subjected themselves to condign punishment, and who were tried at these sessions, Palmer was the only one who was ordered for execution. In the course of the time which intervened between his conviction and the termination of his career, he gave evident proofs of his wicked disposition, and of the justice with which he was selected as the object upon whom capital punishment should be inflicted.

A few weeks before his execution he formed a plan of escape, which, had it been fully carried out, would have involved him in the additional guilt of murder. Finding it necessary to procure the aid of a fellow-prisoner, he selected a fellow who was also under sentence of death, to whom he communicated his project, and he at once consented to participate in his danger, in the hope of sharing in his success. It was arranged that the plot should be put into execution on the Sunday following. Palmer and his associate having then excused themselves from attending chapel, whither the other prisoners and the principal turnkeys would have gone, on the score of illness, they were to attack the gaoler, whose duty it would be to attend upon them, and having deprived him of life and possessed themselves of his keys, they were to make the best of their way to the outer gate. Here they were aware that they should meet with another gaoler; but having overcome him by threats or by main force, they were to secure their escape to the street, where their friends would be in attendance to receive them. In order to further their design, Palmer had already furnished himself with spring saws, to remove their irons; and rope ladders had also been provided, to be used in case of any further impediment presenting itself to them, and by which they would be able to scale the walls.

So far as its arrangement, the plot had gone on with perfect success, when Palmer's companion, being conscience-stricken at the crime which was contemplated, communicated all that had been determined on to Mr. Newman, the keeper of the prison, and proper means were in consequence taken for the security of the prisoners.

Palmer finding himself thus foiled in his object, which he had entertained sanguine hopes that he should have been able to accomplish, now proceeded to apply himself to those duties which he had hitherto neglected. As the period approached for his execution, he expressed himself anxious that the time allowed him for preparation should be prolonged; but his wish being conveyed to the Government by Mr. Sheriff Hunter, it was determined that it could not be acceded to, and the law was directed to take its course.

Wednesday, 23rd of November, 1808, having been fixed for the termination of his life, on that morning his sentence was carried out. On his way to the scaffold he was attended by Dr. Ford, the ordinary of the jail, to whom he confessed the justice of his punishment. He appeared to be perfectly resigned to his fate, and expressed a hope that his death would be

an example to others. In order to atone for his own errors, he made a full confession of every robbery and burglary in which he had been concerned, and gave many particulars of the practices and haunts of thieves, which subsequently proved extremely useful to the police. When on the scaffold, he attempted to address the mob; but his speech failed him, and his eyes having been covered with a silk handkerchief at his own request, the drop fell at the usual signal, and in a few minutes he ceased to live.

THOMAS SIMMONS.

EXECUTED FOR MURDER.

THE offence of this miscreant was of a most horribly atrocious nature.

It appears that he was the son of poor parents, but being thought to be a likely lad, he was taken into the service of a Mr. Boreham, who lived at Hoddesden, at an early period of his life. He continued in this situation for several years; but on his reaching the age of nineteen years, he was dismissed on account of his brutal ferocity of disposition, which had displayed itself on various occasions. He had, it appears, paid his addresses to Elizabeth Harris, the servant in the house, who was many years older than he; but, by the advice of her mistress, the woman declined having anything to say to him. In consequence of this circumstance, the villain vowed vengeance against the servant and her mistress, and on the afternoon of the 20th of October, 1807, he proceeded to his late master's to satisfy his revenge in a manner most horrible and atrocious. There were at the time of his going to the house, Mr. and Mrs. Boreham and their four daughters in the building, besides a Mrs. Hummerstone and the servant, Elizabeth Harris. About a quarter past nine at night, the party sitting in the parlour was alarmed by hearing a loud noise of voices at the back part of the house, and upon listening they heard Simmons disputing with the servant, and demanding admittance. This was, however, refused, and presently afterwards the former plunged his hand, armed with a knife, through the lattice-window, and attempted to stab the girl, but without success. Mrs. Hummerstone on this went to the scullery, from which the noise proceeded, and opening the door, found that Simmons had penetrated through the farm-yard, and was within the stone-yard. On her opening the door, he suddenly rushed at her, and with his knife stabbed her in the jugular artery, and, pulling the knife forward, laid open her throat on the left side. She ran forward, as is supposed for the purpose of alarming the neighbourhood, but fell, and rose no more.

The murderer then pursued his sanguinary purpose, and rushing into the parlour, raised and brandished his bloody knife, swearing a dreadful oath, that "he would give it them all." Mrs. Warner, Mr. Boreham's eldest

daughter, was the person next him; and, without allowing her time to rise from her chair, he gave her so many stabs in the jugular vein, and about her neck and breast, that she fell from her chair, covered with streams of blood, and expired. Fortunately Miss Anne Boreham had gone up stairs, directly before the commencement of this horrid business; and her sisters, Elizabeth and Sarah, terrified at the horrors they saw, ran up stairs too, for safety.

The villain immediately afterwards attacked the aged Mrs. Boreham, by a similar aim at her jugular artery, but missed the point, and wounded her deep in the neck, though not mortally. The poor old gentleman was now making his way towards the kitchen, where the servant-maid was; but the miscreant pursued him, and in endeavouring to reach the same place, overset him, and then endeavoured to stab the servant in the throat: she struggled with him, caught at the knife, and was wounded severely in the hand and arm, and the knife fell in the struggle. The girl, however, escaped from his grasp, and running into the street, by her screams and cries of “murder,” she alarmed the whole neighbourhood. Several persons instantly came to her assistance, and whilst some offered their aid to the unhappy beings who had been wounded, others sought for the murderer. Their search was for some time in vain, but they at length succeeded in discovering him concealed in a cow-crib in the farm-yard. He was immediately secured, and so tightly bound to prevent his escape, that the circulation was almost stopped, and in the night death was near cheating Justice of her victim. The ligatures were, however, loosed in the morning, in ample time to preserve him to undergo the punishment to which his crimes had subjected him.

Upon the attendance of two professional men, they found that all attempts to assist Mrs. Warner and Mrs. Hummerstone would be useless, as they were already dead; and they directly turned their attention to Mrs. Boreham and the servant. Mr. Boreham was found lying on the ground with a poker by his side; but being afflicted with the palsy, and being besides very aged, he had been unable to use it in opposition to his assailant.

A coroner’s inquest was subsequently held upon the bodies of the deceased persons, and a verdict of “Wilful Murder” was returned against the prisoner, upon which he was committed to Hertford Jail to await his trial. Mr. Boreham being a Quaker, he refused to prosecute in the case of Mrs. Warner; but an indictment was preferred in the case of Mrs. Hummerstone, upon which the prisoner was arraigned at the Hertford Assizes on the 4th of March, 1808. The above facts having been proved in

evidence, as well as the additional circumstance of the prisoner having confessed his guilt when before the coroner, and of his having declared that his intention was to murder Mrs. Boreham, Mrs. Warner, and Elizabeth Harris the servant, a verdict of Guilty was returned.

The awful sentence of death was then pronounced upon him, and he was hanged on the 7th of March, 1808, having exhibited throughout the whole transaction the utmost coolness and indifference.

ALEXANDER CAMPBELL, ESQ.

EXECUTED FOR A MURDER COMMITTED IN A DUEL.

THIS is a case arising out of an absurd deference being paid to the laws of honour.

Alexander Campbell was tried at the Armagh Assizes, in Ireland, August 13, 1808, for the wilful murder of Alexander Boyd, captain in the 21st regiment, by shooting him with a pistol-bullet, on the 23rd day of June, 1807. The evidence was, that the prisoner was major, and the deceased captain of the 21st regiment of Foot; and that on the 22nd of June, after the mess-dinner, a dispute arose between them, which was terminated by the prisoner inquiring, "Do you say I am wrong?" and the deceased answering, "Yes, I do." Major Campbell then retired, and went and took tea with his family; and he afterwards sent a message to Captain Boyd upon the provocation given, in consequence of which they met. Being unattended by friends, the immediate circumstances which attended the duel were not proved in evidence; but it appears that Captain Boyd being wounded, Lieutenant Macpherson, Surgeon Price, and others were called to his assistance, in whose presence he said to the prisoner, "You have hurried me—I wanted you to wait and have friends—Campbell, you are a bad man!" He afterwards died, and upon his body being examined, it was found that he had received a pistol-shot, and that the bullet had penetrated the extremity of the four false ribs, and lodged in the cavity of the belly, which was the cause of his death. These facts having been proved, the learned judge summed up, and the prisoner was found guilty of the capital offence, but recommended to mercy by the jury, on the score of good character alone; several persons of distinction in the army having attended, and declared that he was generally of a humane, peaceable disposition.

Sentence of death was, however, immediately passed on the unfortunate gentleman, and he was ordered for execution on the Monday; but, in consequence of the recommendation of the jury, was respited till the Wednesday se'nnight.

In the mean time, every effort was made by the friends of the unfortunate man to procure the royal mercy. Mrs. Campbell, his lady, departed immediately for England to solicit in person the royal clemency; and the grand jury of the county, and the jury who had found him guilty, presented petitions to the lord-lieutenant of Dublin. Mrs. Campbell, after the most incredible fatigue and exertion, reached England, and procured her petition to be delivered into the hands of his majesty. The respite, however, expired on the 23rd of August, and an order was sent from Dublin Castle to Armagh, for the execution to take place on the 24th. The prisoner's deportment during the whole of the melancholy interval between his condemnation and the day of his execution, was manly, but penitent—such as became a Christian towards his approaching dissolution. When he was informed that all efforts to procure a pardon had failed, he was only anxious for the immediate execution of the sentence. He had repeatedly implored that he might be shot; but as this was not suitable to the forms of the common law his entreaties were of course without success.





He was led out for execution on Wednesday, the 24th of August, 1808, just as the clock struck twelve. He was attended by Dr. Bowie, and in the whole of his deportment was manifest a pious resignation and a penitent mind. A vast crowd had collected around the scene of the catastrophe: he surveyed them a moment, then turned his head towards Heaven with a look of prayer. As soon as he appeared, the whole of the attending guards, and such of the soldiery as were spectators, took off their caps; upon which the major saluted them in turn. The spectacle was truly distressing, and tears and shrieks burst from several parts of the crowd. When the executioner approached to fix the cord, Major Campbell again looked up to Heaven. There was now the most profound silence. The executioner seemed paralysed whilst performing this last act of his duty, and there was scarcely a dry eye out of so many thousands assembled: every aspect wore the trace of grief.

After hanging the usual time, the body was put into a hearse in waiting, which left the town immediately, to convey the last remains of the unfortunate gentleman to the family depository at Ayr, in Scotland. The catastrophe is rendered still more melancholy by the unhappy circumstance that Mrs. Campbell had indulged her hopes to the last, and left London exactly at such a period of time as to arrive at Ayr on the day on which her husband's corpse would necessarily have reached that place.

JOHN RYAN AND MATTHEW KEARINGE.

EXECUTED FOR ARSON AND MURDER.

THE scene described by the witnesses in this case well depicts some of the horrors to which the inhabitants of the Sister Kingdom are occasionally subject.

At the Lent Clonmel Assizes for the year 1808, John Ryan and Matthew Kearinge were indicted for the murder of David Bourke; in a second count, with the murder of John Dougherty; in a third, with setting fire to the house of Laurence Bourke; and in a fourth, with maliciously firing at Laurence Bourke, with intent to kill him.

After the solicitor-general had opened the case, he called Laurence Bourke, the prosecutor, who stated that on the night of the 11th of October, between the hours of ten and eleven o'clock, he was informed by his servant that there were a number of men in arms advancing towards his house. In consequence of this information he went to the window, and saw the prisoners, with several others, all armed, surrounding his house: they desired him to open the door, but he refused; and they then fired several shots in through the different windows. There were in the house, Dougherty, the deceased, a man who was servant to the witness, and witness's wife and child; they were armed, but had no ammunition but what the guns were loaded with. The prisoners and the party finding they could not get into the house, set it on fire; and the witness heard the prisoner Ryan say, "Take it easy, boys; you will see what botlings we shall have by-and-by."—The witness's wife and child then went to the window, and called out to Ryan (who was her relation) not to burn the house; but he replied, with an oath, that he would; and a shot was fired at her, which though it did not take effect, frightened her so much, that she and her child fell out of the window. They were seized by the prisoner Kearinge; but they afterwards fortunately made their escape. The house was now falling in flames about the witness's head, and he therefore opened the door and ran out: several shots were fired at him, but he escaped them, and made his way to David Bourke's, his father's house. In his flight he fired his piece, and killed one of Ryan's party. When witness arrived at his father's house, he found that he had gone

to the assistance of the witness; and on returning to the place where his house stood, in search of his father, he found that Ryan and his party were gone, and his father's corpse was lying about twelve yards from the smoking ruins of his dwelling.

Winnifred Kennedy and other witnesses were examined, who corroborated the testimony of Bourke, and proved that the deceased, John Dougherty, was burned in Bourke's house. It was also proved that the whole of Ryan's party were entertained by him at dinner that day, and they all left his house armed, for the purpose of attacking Bourke.

On the part of the prisoner Ryan, an *alibi* was attempted to be proved by a woman who lived with him, which entirely failed; and, after a very minute charge from the learned judge, the jury brought in a verdict of Guilty against both the prisoners. They were executed accordingly.

JAMES COOPER.

EXECUTED FOR MURDER.

AT the Summer Assizes at Croydon, in the year 1809, James Cooper and Mary Cooper, his mother, aged seventy-one years, were indicted for the wilful murder of Joseph Hollis, at Compton, in the county of Surrey, on the 4th May preceding. The first count in the indictment alleged the murder to have been committed by fracturing the skull of the deceased, and the second count stated the cause of death to have been a wound in the throat.

This case was of a rather singular nature, and depended on circumstances, which were proved by a number of different witnesses; and the investigation lasted nearly the whole day. The deceased was a man possessing more property than is usual with persons in his class of life. He lived in a small cottage adjoining that occupied by the prisoners, and which, with the prisoners', had been formerly but one house. It had lately been divided into two tenements, the one being occupied by the deceased, and the other by the two prisoners. There was no door of communication between the two tenements; but it was proved, that whatever passed in one could be distinctly heard in the other; and, as one of the witnesses stated, the clock could be heard to *tick*.

The deceased, Hollis, was an old man of near seventy, but was hale and hearty; he was of very penurious habits, and had saved money, which he was fond of displaying. One of the witnesses described him as always carrying three canvas bags, in one of which he kept notes, in another gold and silver, and in a third copper money; and if he wanted to pay only a sixpence, he would *tip* all the gold and silver into his hand; and the witness added, that he had seen him with 100*l.* in his possession. The whole cottage in which he lived was his property, and the prisoner, Cooper, was his tenant for the part which he occupied. Nobody lived in Cooper's part but himself and his mother: and Hollis, the deceased, lived alone; a woman of the name of Wisdom going to him daily to complete his little household arrangements.

On Wednesday, the 3rd of May, the day preceding Guildford fair, he had desired a person of the name of Goddard to go with him to the fair, as he wanted to buy some sheep; Goddard told him he could not go with him, but advised him to be early. On this he declared his intention of breakfasting and setting off the next morning by four o'clock; and having stated this to Mary Wisdom, he told her that she need not come to him on the next day. She, therefore, did not on the Thursday make her daily visit; but on the Friday, about ten, she sent her daughter, a girl about thirteen years of age. The child found the door unfastened; and, on opening it, she saw Hollis lying dead on the floor, with a great deal of blood about him. She ran out, and saw Moor, the constable, crossing the common, and he immediately returned with her. A surgeon was sent for, and several people soon came. The body was lying on the floor with the legs crossed, and the head lying on the arm, evidently composed to that attitude by the murderer after the deed. A cup of coffee, half drunk, was on the table, a piece of toast before the fire, another piece, partly eaten, lay on the hearth, the butter bason was broken, and the pat of butter was on the floor near the feet of the deceased. The chair in which he had been sitting was overturned, and his hat was lying near, so that it appeared that he had been attacked while he was sitting at his breakfast. The body was most shockingly mangled, the skull was fractured in two places, the jaw broken, a finger broken, the arms bruised, and the throat cut so as almost to sever the head from the body. Under, the body was found a clasp-knife, almost covered with blood, and a poker in a similar condition. From these circumstances it appeared that some struggle must have taken place, which the prisoners must have heard in their cottage, if the murder had been committed by any stranger.

The prisoners were, therefore, apprehended on the Friday evening, and their part of the cottage searched; but no evidence of their guilt was found. The trunk of the deceased had been rummaged; and, as only two shillings were found on his person, it was presumed that the murderer had carried off his money.

The magistrates, on examination, finding nothing but suspicion against the prisoners, discharged them; but on subsequent inquiries, they were again apprehended, and the following circumstances were given in evidence. The night before the murder the deceased and the prisoner, James Cooper, had been quarrelling; upon which the deceased declared, as Cooper had not paid his rent, he would have him out of the cottage; and he actually applied to a

person to distraint upon him. In this quarrel, Cooper was heard to vow vengeance against the old man, swearing that he would be “up side” with him before a fortnight was over. Mrs. Cooper exclaimed “God forbid!” but presently she said, that it would not much matter, for that nobody liked the old man. Since the former examination of the prisoners, a more minute survey of their cottage had been taken, and concealed in the roof were found various articles of apparel, belonging to the male prisoner, which were smeared with blood. Upon subsequent inquiry, the knife and poker found in old Hollis’ house were also discovered to have belonged to the Coopers, and little doubt remained therefore of their being parties to the murder.

The prisoners were eventually committed to take their trials, and while in custody Mrs. Cooper confessed that she knew of the murder, after its commission by her son, but she denied that she was in any way a party to the foul deed. She stated that her son had gone out in the evening in question, carrying the knife and poker with him, and that soon afterwards she heard a noise in old Hollis’ house, followed by cries for help, and presently a heavy fall against the wainscot, but beyond this she knew nothing.

Upon this evidence the male prisoner was found guilty, but his mother was acquitted.

The unhappy young man immediately received sentence of death, and was executed on the following Monday, confessing the justice of his sentence and punishment.

JOSEPH BROWN.

EXECUTED FOR MURDER.

THIS case affords a striking instance of the wonderful effect of the workings of the conscience of a guilty man.

Joseph Brown was indicted at the York Assizes in the month of March 1809, for the wilful murder of Elizabeth Fletcher at Hensal, near Ferry bridge, in the month of October, in the year 1804.

The offence was alleged to have been committed by the administration of poison to the deceased woman by the prisoner, and a companion named Hazlegrove, both of whom, at the time of the occurrence, lodged in her house. The evidence with regard to the transaction was, that on the Sunday, the 21st October 1804, the prisoner, Hazlegrove, Elizabeth Fletcher, the deceased, and her sister Sarah, were all sitting together at supper, between eight and nine o'clock at night, and that Hazlegrove went to fetch some ale. On his return Brown put some sugar into it, and gave it to the deceased, and she and her sister drank the whole of it, while Brown and Hazlegrove refused to partake of it, but drank some out of another mug. In the course of the night the prisoner and his companion absconded, and nothing more was heard of them until the apprehension of the prisoner in the Isle of Wight, on the 3rd of August 1808; and in the morning Mrs. Fletcher was found to be dead, and her sister suffering severely from the effects of laudanum. It was proved that Mrs. Fletcher was known to be in the possession of a considerable sum of money, and that the prisoner had expressed a wish that he had it; and that on the Saturday the 20th of October, he had purchased six-pennyworth of laudanum of Mr. Perkins, a surgeon at Snaith, to whom he represented, that it was for the use of his father, who was unable to get any sleep. The death of the deceased it could not be doubted had been produced by laudanum.

The additional evidence, by which it was proposed to bring home the offence to the prisoner, was a confession, which he had made at the Isle of Wight, in the month of August preceding his trial, when he surrendered himself into custody, as he said at the time, on account of the anguish

produced in his mind, on his reflecting upon the dreadful crime of which he had been guilty. In his confession, he stated that he had been acquainted with Joseph Hazlegrove upwards of six years; that in the month of October 1804, he and Joseph Hazlegrove lodged with Mrs. Fletcher of Hensal, near Ferrybridge, and there formed the design of poisoning her, in order to possess themselves of some property they supposed her to possess; that for this purpose, he procured six-pennyworth of laudanum of a Mr. Perkins, of Snaith, which he gave to Hazlegrove, who mixed it with some beer, along with some sugar, and gave it to Elizabeth Fletcher and her sister; the former died in consequence of it, and early the following morning they broke open her box, and took out one guinea and a half, with which they absconded. The prisoner, it appeared, had been since subjected to prosecution, on account of some offence of which he had been guilty, but had been permitted to enter a foot regiment, in which he was still a soldier at the time of his trial.

On his being called on for his defence, he declared, with the most consummate impudence, that his confession was untrue; and that his only object in making that statement was, by putting himself upon his trial, to clear up the suspicions which were entertained against him. He then went on to say, that his acquaintance with Hazlegrove had subsisted from an earlier period than he had represented, down to the time of his trial; and that they had always lived upon terms of the closest intimacy. That in the early part of their friendship, a lady of high rank and fortune had become enamoured of his friend, and that many interesting meetings had taken place between them. He was generally employed as the go-between; and the secrecy which they were compelled to observe upon this subject gave an air of mystery to their conduct, which caused them to be spoken of with suspicion; and at length so far had the malignity of their enemies been excited against them, that they were accused of every offence which happened to be committed within a circuit of several miles. He concluded by repeating his declaration as to the object which he had in view, in surrendering himself into custody, suggesting that the death of Mrs. Fletcher might have been occasioned by a fit, and protesting his entire innocence of the crime imputed to him.

He declined calling any witnesses to substantiate the allegations which he made, however, and a verdict of guilty was returned.

The learned Judge then proceeded to pass sentence of death upon the prisoner, whom he addressed in the following terms:—

“Joseph Brown, I am called upon, in the painful exercise of my duty, to pass sentence upon a person found guilty of one of the greatest offences against society—the crime of deliberate murder. You stand an awful and striking example of the justice of Providence—of that punishment, which, sooner or later, never fails to overtake the guilty. You have been compelled by the agonies of remorse, and the upbraidings and tortures of a guilty mind, to furnish that evidence against yourself, which was wanting to establish the proof of your guilt, and to supply that link in the chain of evidence which appeared to be imperfect. I trust, that every one who hears of your fate will bear in mind, that a time will arrive, probably in this world, most certainly in another, when guilt will meet with its due punishment. In your unhappy case, that period is already come, when you must receive the reward of your crimes. Impelled by the hope of possessing the treasure which you supposed your unfortunate victim had saved from her hard earnings, you deliberately formed the design of destroying her; for this purpose you purchased a deadly drug, which you procured to be mingled in the cup which you offered to her under the guise of friendship. When the potion had taken effect, you plundered her of her property, though it was much less than your guilty cupidity had suggested. Your crime appeared likely to be perpetrated, as to this world, with impunity; more than four years had elapsed since its perpetration, and the remembrance of it began to fade from the recollection of every one but the guilty author of the deed, and it seemed probable, that nothing more would have been heard of it, if the consciousness of your crime, more poignant and destructive than the poisoned bowl, had not compelled you to disclose the horrid secret.—Chequered as your life has been with crimes, I cannot indulge the hope, that anything that I can say will have any lasting effect upon you; but I conjure you to spend the few remaining hours you have to live, in earnest prayer and supplication to Heaven for mercy; and may your unhappy fate convince others, that though their crimes may be committed in the darkness of the night, they will hereafter be proclaimed at noon-day.”

Sentence was then passed in the usual terms, and the prisoner was executed on the 20th of March 1809.

We have no record of the manner in which he met his death.

MARY BATEMAN,

Commonly called the Yorkshire Witch.

EXECUTED FOR MURDER.

THE insidious arts practised by this woman rendered her a pest to the neighbourhood in which she resided, and she richly deserved that fate which eventually befel her.

She was indicted at York on the 18th of March 1809, for the wilful murder of Rebecca Perigo, of Bramley, in the same county, in the month of May in the previous year.

The examination of the witnesses, who were called to support the case for the prosecution, showed, that Mrs. Bateman resided at Leeds, and was well known at that place, as well as in the surrounding districts, as a “witch,” in which capacity she had been frequently employed to work cures of “evil wishes,” and all the other customary imaginary illnesses, to which the credulous lower orders at that time supposed themselves liable. Her name had become much celebrated in the neighbourhood for her successes in the arts of divining and witchcraft, and it may be readily concluded that her efforts in her own behalf were no less profitable. In the spring of 1806 Mrs. Perigo, who lived with her husband, at Bramley, a village at a short distance from Leeds, was seized with a “flacking,” or fluttering in her breast, whenever she lay down, and applying to a quack doctor of the place, he assured her that it was beyond his cure, for that an “evil wish” had been laid upon her, and that the arts of sorcery must be resorted to in order to effect her relief. While in this dilemma, she was visited by her niece, a girl named Stead, who at that time filled a situation as a household servant at Leeds, and who had taken advantage of the Whitsuntide holidays to go round to see her friends. Stead expressed her sorrow to find her aunt in so terrible a situation, and recommended an immediate appeal to the prisoner, whose powers she described as fully equal to get rid of any affection of the kind, whether produced by mortal or diabolical charms. An application was at once determined on to her, and Stead was employed to broach the subject

to the diviner. She, in consequence, paid the prisoner a visit at her house in Black Dog Yard, near the bank, at Leeds, and having acquainted her with the nature of the malady by which her aunt was affected, was informed by her, that she knew a lady, who lived at Scarborough, and that if a flannel petticoat or some article of dress, which was worn next the skin of the patient, was sent to her, she would at once communicate with her upon the subject. On the following Tuesday William Perigo, the husband of the deceased, proceeded to her house, and having handed over his wife's flannel petticoat, the prisoner said that she would write to Miss Blythe, who was the lady to whom she had alluded, at Scarborough, by the same night's post, and that an answer would doubtless be returned by that day week, when he was to call again. On the day mentioned, Perigo was true to his appointment, and the prisoner produced to him a letter, saying that it had arrived from Miss Blythe, and that it contained directions as to what was to be done. After a great deal of circumlocution and mystery the letter was opened, and was read by the prisoner, and it was found that it contained an order "that Mary Bateman should go to Perigo's house, at Bramley, and should take with her four guinea notes, which were enclosed, and that she should sew them into the four corners of the bed, in which the diseased woman slept, where they were to remain for eighteen months; that Perigo was to give her four other notes of like value, to be returned to Scarborough; and that unless all these directions were strictly attended to, the charm would be useless and would not work." On the fourth of August the prisoner went over to Bramley, and having shown the four notes, proceeded apparently to sew them up in silken bags, which she delivered over to Mrs. Perigo to be placed in the bed. The four notes desired to be returned were then handed to her by Perigo, and she retired, directing her dupes frequently to send to her house, as letters might be expected from Miss Blythe. In about a fortnight, another letter was produced; and it contained directions, that two pieces of iron in the form of horse-shoes should be nailed up at Perigo's door, by the prisoner, but that the nails should not be driven in with a hammer, but with the back of a pair of pincers, and that the pincers were to be sent to Scarborough, to remain in the custody of Miss Blythe for the eighteen months already mentioned in the charm. The prisoner accordingly again visited Bramley, and having nailed up the horse-shoes received and carried off the pincers. In October

the following letter was received by Perigo, bearing the signature of the supposed Miss Blythe.

“My dear Friend.—You must go down to Mary Bateman’s, at Leeds, on Tuesday next, and carry two guinea notes with you and give her them, and she will give you other two that I have sent to her from Scarborough; and you must buy me a small cheese about six or eight pound weight, and it must be of your buying, for it is for a particular use, and it is to be carried down to Mary Bateman’s, and she will send it to me by the coach.—This letter is to be burned when you have done reading it.”

From this time to the month of March 1807, a great number of letters were received, demanding the transmission of various articles, to Miss Blythe, through the medium of the prisoner, the whole of which were to be preserved by her until the expiration of the eighteen months; and in the course of the same period money to the amount of near seventy pounds was paid over, Perigo, upon each occasion of payment, receiving silk bags containing what were pretended to be coins or notes of corresponding value, which were to be sewn up in the bed as before. In March 1807, the following letter arrived.

“My dear Friends.—I will be obliged to you if you will let me have half-a-dozen of your china, three silver spoons, half-a-pound of tea, two pounds of loaf sugar, and a tea canister to put the tea in, or else it will not do—I durst not drink out of my own china. You must burn this with a candle.”

The china, &c., not having been sent, in the month of April Miss Blythe wrote as follows:—

“My dear Friends.—*I will be obliged to you if you will buy me a camp bedstead, bed and bedding, a blanket, a pair of sheets, and a long bolster must come from your house.*—You need not buy the best feathers, common ones will do. I have laid on the floor for three nights, and I cannot lay on my own bed *owing to the planets being so bad concerning your wife*, and I must have one of your buying or it will not do.—You must bring down the china, the sugar, the caddy, the three silver spoons, and the tea at the same time when you buy the bed, and pack them up altogether.—My brother’s boat will be up in a day or two, and I will order my brother’s boatman to call for them all at Mary Bateman’s, and you must give Mary Bateman one shilling for the boatman, and I will place it to your account. Your wife must burn this as soon as it is read or it will not do.”

This had the desired effect; and the prisoner having called upon the Perigos, she accompanied them to the shops of a Mr. Dobbin, and a Mr. Musgrave, at Leeds, to purchase the various articles named, which were eventually bought at a cost of sixteen pounds, and sent to Mr. Sutton's, at the Lion and Lamb Inn, Kirkgate, there to await the arrival of the supposed messenger.

At the end of April, the following letter arrived:—"My dear Friends.—I am sorry to tell you you will take an illness in the month of May next, one or both of you, but I think both, but the works of God must have its course.—You will escape the chambers of the grave; though you seem to be dead, yet you will live. Your wife must take half-a-pound of honey down from Bramley to Mary Bateman's at Leeds, and it must remain there till you go down yourself, and she will put in such like stuff as I have sent from Scarbro' to her, and she will put it in when you come down, and see her yourself, or it will not do. You must eat pudding for six days, and you must put in such like stuff as I have sent to Mary Bateman from Scarbro', and she will give your wife it, but you must not begin to eat of this pudding while I let you know. If ever you find yourself sickly at any time, you must take each of you a teaspoonful of this honey; I will remit twenty pounds to you on the 20th day of May, and it will pay a little of what you owe. You must bring this down to Mary Bateman's, and burn it at her house, when you come down next time."

The instructions contained in this letter were complied with, and the prisoner having first mixed a white powder in the honey, handed over six others of the same colour and description to Mrs. Perigo, saying that they must be used in the precise manner mentioned upon them, or they would all be killed. On the 5th of May, another letter arrived in the following terms:

"My dear Friends.—You must begin to eat pudding on the 11th of May, and you must put one of the powders in every day as they are marked, for six days—and you must see it put in yourself every day or else it will not do. If you find yourself sickly at any time you must not have no doctor, for it will not do, and you must not let the boy that used to eat with you eat of that pudding for six days; and you must make only just as much as you can eat yourselves, if there is any left it will not do. You must keep the door fast as much as possible or you will be overcome by some enemy. Now think on and take my directions or else it will kill us all. About the 25th of May I

will come to Leeds and send for your wife to Mary Bateman's; your wife will take me by the hand and say, 'God bless you that I ever found you out.' It has pleased God to send me into the world that I might destroy the works of darkness; I call them the works of darkness because they are dark to you—now mind what I say whatever you do. This letter must be burned in straw on the hearth by your wife."

The absurd credulity of Mr. and Mrs. Perigo even yet favoured the horrid designs of the prisoner; and, in obedience to the directions which they received, they began to eat the puddings on the day named. For five days, they had no particular flavour, but upon the sixth powder being mixed, the pudding was found so nauseous, that the former could only eat one or two mouthfuls, while his wife managed to swallow three or four. They were both directly seized with violent vomiting, and Mrs. Perigo, whose faith appears to have been greater than that of her husband, at once had recourse to the honey. Their sickness continued during the whole day, but although Mrs. Perigo suffered the most intense torments, she positively refused to hear of a doctor's being sent for, lest, as she said, the charm should be broken, by Miss Blythe's directions being opposed. The recovery of the husband from the illness, by which he was affected, slowly progressed; but the wife, who persisted in eating the honey, continued daily to lose strength, and at length expired on the 24th of May, her last words being a request to her husband not to be "rash" with Mary Bateman, but to await the coming of the appointed time.

Mr. Chorley, a surgeon, was subsequently called in to see her body; but although he expressed his firm belief that the death of the deceased was caused by her having taken poison, and although that impression was confirmed by the circumstance of a cat dying immediately after it had eaten some of the pudding, no further steps were taken to ascertain the real cause of death, and Perigo even subsequently continued in communication with the prisoner.

Upon his informing her of the death of his wife, she at once declared that it was attributable to her having eaten all the honey at once, and then in the beginning of June, he received the following letter from Miss Blythe:—

"My dear Friend.—I am sorry to tell you that your wife should touch of those things which I ordered her not, and for that reason it has caused her death; it had likened to have killed me at Scarborough, and Mary Bateman

at Leeds, and you and all, and for this reason, she will rise from the grave, she will stroke your face with her right hand, and you will lose the use of one side, but I will pray for you.—I would not have you to go to no doctor, for it will not do. I would have you to eat and drink what you like, and you will be better. Now, my dear friend, take my directions, do and it will be better for you.—Pray God bless you. Amen. Amen. You must burn this letter immediately after it is read.”

Letters were also subsequently received by him, purporting to be from the same person, in which new demands for clothing, coals, and other articles were made, but at length, in the month of October 1808, two years having elapsed since the commencement of the charm, he thought that, the time had fully arrived, when, if any good effects were to be produced from it, they would have been apparent, and that therefore he was entitled to look for his money in the bed. He, in consequence, commenced a search for the little silk bags, in which his notes and money had been, as he supposed, sewn up; but although the bags indeed were in precisely the same positions in which they had been placed by his deceased wife, by some unaccountable conjuration, the notes and gold had turned to rotten cabbage-leaves and bad farthings. The darkness, by which the truth had been so long obscured, now passed away, and having communicated with the prisoner, by a stratagem, meeting her under pretence of receiving from her a bottle of medicine, which was to cure him from the effects of the puddings which still remained, he caused her to be apprehended. Upon her house being searched, nearly all the property sent to the supposed Miss Blythe was found in her possession, and a bottle containing a liquid mixed with two powders, one of which proved to be oatmeal, and the other arsenic, was taken from her pocket when she was taken into custody.

The rest of the evidence against the prisoner went to show that there was no such person as Miss Blythe living at Scarborough, and that all the letters which had been received by Perigo were in her own handwriting, and had been sent by her to Scarborough to be transmitted back again. An attempt was also proved to have been made by her to purchase some arsenic, at the shop of a Mr. Clough, in Kirkgate, in the month of April 1807, but the most important testimony was that of Mr. Chorley, the surgeon, who distinctly proved that he had analysed what remained of the pudding, and of the contents of the honey pot, and that he found them both to contain a deadly poison, called corrosive sublimate of mercury, and that the symptoms

exhibited by the deceased and her husband were such as would have arisen from the administration of such a drug.

The prisoner's defence consisted of a simple denial of the charge, and the learned judge then proceeded to address the jury. Having stated the nature of the allegations made in the indictment, he said that in order to come to a conclusion as to the guilt of the prisoner, it was necessary that three points should be clearly made out. 1st. That the deceased died of poison. 2nd. That that poison was administered by the contrivance and knowledge of the prisoner. And 3rd. That it was so done for the purpose of occasioning the death of the deceased. A large body of evidence had been laid before them, to prove that the prisoner had engaged in schemes of fraud against the deceased and her husband, which was proved not merely by the evidence of Wm. Perigo, but by the testimony of other witnesses; and the inference the prosecutors drew from this fraud was the existence of a powerful motive or temptation to commit a still greater crime, for the purpose of escaping the shame and punishment which must have attended the detection of the fraud; a fraud so gross, that it excited his surprise that any individual in that age and nation could be the dupe of it. But the jury should not go beyond this inference, and presume that, because the prisoner had been guilty of fraud, she was of course likely to have committed the crime of murder; that, if proved, must be shown by other evidence. His Lordship then proceeded to recapitulate the whole of the evidence, as detailed in the preceding pages, and concluded with the following observations. "It is impossible not to be struck with wonder at the extraordinary credulity of Wm. Perigo, which neither the loss of his property, the death of his wife, and his own severe sufferings, could dispel; and it was not until the month of October in the following year, that he ventured to open his hid treasure, and found there what every one in court must have anticipated that he would find, not a single vestige of his property; and his evidence is laid before the jury with the observation which arises from this uncommon want of judgment. His memory however appears to be very retentive, and his evidence is confirmed, and that in different parts of the narrative, by other witnesses; and many parts of the case do not rest upon his evidence at all. The illness, and peculiar symptoms, which preceded the death of his wife; his own severe sickness; and a variety of other circumstances attending the experiments made upon the pudding, were proved by separate and independent testimony; and it is

most strange, that, in a case of so much suspicion as it appeared to have excited at the time, the interment of the body should have taken place without any inquiry as to the cause of death, an inquiry which then would have been much less difficult; though the fact of the deceased having died of poison is now well established. The main question is, did the prisoner contrive the means to induce the deceased to take it?—if she did so contrive the means, the intent could only be to destroy.—Poison so deadly could not be administered with any other view. The jury will lay all the facts and circumstances together; and if they feel them press so strongly against the prisoner, as to induce a conviction of the prisoner's having procured the deceased to take poison, with an intent to occasion her death, they will find her guilty; if they do not think the evidence conclusive, they will, in that case, find the prisoner not guilty.”

The jury, after conferring for a moment, found the prisoner guilty;—and the judge proceeded to pass sentence of death upon her, in nearly the following words:—

“Mary Bateman, you have been convicted of wilful murder by a jury, who, after having examined your case with caution, have, constrained by the force of evidence, pronounced you guilty; and it only remains for me to fulfil my painful duty by passing upon you the awful sentence of the law. After you have been so long in the situation in which you now stand, and harassed as your mind must be by the long detail of your crimes, and by listening to the sufferings you have occasioned, I do not wish to add to your distress by saying more than my duty renders necessary. Of your guilt, there cannot remain a particle of doubt in the breast of any one who has heard your case.—You entered into a long and premeditated system of fraud, which you carried on for a length of time, which is most astonishing, and by means which one would have supposed could not, in this age and nation, have been practised with success. To prevent a discovery of your complicated fraud, and the punishment which must have resulted therefrom, you deliberately contrived the death of the persons you had so grossly injured, and that by means of poison, a mode of destruction against which there is no sure protection; but your guilty design was not fully accomplished.—And, after so extraordinary a lapse of time, you are reserved as a signal example of the justice of that mysterious Providence, which, sooner or later, overtakes guilt like yours; and at the very time when you were apprehended, there is the greatest reason to suppose, that if your

surviving victim had met you alone, as you wished him to do, you would have administered to him a more deadly dose, which would have completed the diabolical project you had long before formed, but which at that time only partially succeeded; for upon your person, at that moment, was found a phial containing a most deadly poison. For crimes like yours, in this world, the gates of mercy are closed. You afforded your victim no time for preparation; but the law, while it dooms you to death, has, in its mercy, afforded you time for repentance, and the assistance of pious and devout men, whose admonitions, and prayers, and counsels, may assist to prepare you for another world, where even your crimes, if sincerely repented of, may find mercy.

“The sentence of the law is, and the court doth award it. That you be taken to the place from whence you came, and from thence, on Monday next, to the place of execution, there to be hanged by the neck until you are dead; and that your body be given to the surgeons to be dissected and anatomised; and may Almighty God have mercy upon your soul.”

The prisoner having intimated that she was pregnant, the clerk of the arraigns said, “Mary Bateman, what have you to say, why immediate execution should not be awarded against you?” On which the prisoner pleaded that she was twenty-two weeks gone with child. On this plea the judge ordered the sheriff to impanel a jury of matrons; this order created a general consternation among the ladies, who hastened to quit the court, to prevent the execution of so painful an office being imposed upon them. His lordship, in consequence, ordered the doors to be closed, and in about half-an-hour, twelve married women being impannelled, they were sworn in court, and charged to inquire “whether the prisoner was with quick child?” The jury of matrons then retired with the prisoner, and on their return into court delivered their verdict, which was, that Mary Bateman is not with quick child. The execution of course was not respited, and she was remanded back to prison.

During the brief interval between her receiving sentence of death and her execution, the ordinary, the Rev. George Brown, took great pains to prevail upon her ingenuously to acknowledge and confess her crimes. Though the prisoner behaved with decorum, during the few hours that remained of her existence, and readily joined in the customary offices of devotion, no traits of that deep compunction of mind, which, for crimes like hers, must be felt where repentance is sincere, could be observed; but she maintained her

caution and mystery to the last. On the day preceding her execution, she wrote a letter to her husband, in which she enclosed her wedding-ring, with a request that it might be given to her daughter. She admitted that she had been guilty of many frauds, but still denied that she had had any intention to produce the death of Mr. or Mrs. Perigo.

Upon the Monday morning at five o'clock she was called from her cell, to undergo the last sentence of the law. She received the communion with some other prisoners, who were about to be executed on the same day, but all attempts to induce her to acknowledge the justice of her sentence, or the crime of which she had been found guilty, proved vain. She maintained the greatest firmness in her demeanour to the last, which was in no wise interrupted even upon her taking leave of her infant child, which lay sleeping in her cell, at the moment of her being called out to the scaffold.

Upon the appearance of the convict upon the platform, the deepest silence prevailed amongst the immense assemblage of persons, which had been collected to witness the execution. As a final duty, the Rev. Mr. Brown, immediately before the drop fell, again exhorted the unhappy woman to confession, but her only reply was a repetition of the declaration of her innocence, and the next moment terminated her existence.

Her body having remained suspended during the usual time, was cut down, and sent to the General Infirmary at Leeds to be anatomised. Immense crowds of persons assembled to meet the hearse, in which it was carried; and so great was the desire of the people to see her remains, that 30*l.* were collected for the use of the infirmary, by the payment of 3*d.* for each person admitted to the apartment in which they were exposed.

A short sketch of the life of this remarkable woman, and a few anecdotes of her proceedings, shall conclude this article. Mary Bateman, it appears, was born of reputable parents at Aisenby, near Thirsk, in the North-riding of Yorkshire, in the year 1768: her father, whose name was Harker, carrying on business as a small farmer. As early as at the age of five years, she exhibited much of that sly knavery, which subsequently so extraordinarily distinguished her character; and many were the frauds and falsehoods, of which she was guilty, and for which she was punished. In the year 1780, she first quitted her father's house, to undertake the duties of a servant in Thirsk, but having been guilty of some peccadilloes, she proceeded to York in 1787; but before she had been in that city more than twelve months, she

was detected in pilfering some trifling articles of property belonging to her mistress, and was compelled to run off to Leeds, without waiting either for her wages or her clothes. For a considerable time she remained without employment or friends, but at length upon the recommendation of an acquaintance of her father, she obtained an engagement in the shop of a mantua-maker, in whose service she remained for more than three years. She then became acquainted with John Bateman, to whom after a three weeks' courtship she was married in the year 1792.

Within two months after her marriage, she was found to have been guilty of many frauds, and she only escaped prosecution by inducing her husband to move frequently from place to place, so as to escape apprehension; and at length poor Bateman, driven almost wild by the tricks of his wife, entered the supplementary militia. Mrs. Bateman was now entirely thrown upon her own resources, and unable to follow any reputable trade, she in the year 1799 took up her residence in Marsh Lane, near Timble Bridge, Leeds, and proceeded to deal in fortune-telling and the sale of charms. From a long course of iniquity, carried on chiefly through the medium of the most wily arts, she had acquired a manner, and a mode of speech peculiarly adapted to her new profession; and abundance of credulous victims, upon whom she was able to prosecute her schemes, daily presented themselves to her.

Her first daring attempt was upon a Mrs. Greenwood, whom she persuaded that her husband was in a situation of the greatest peril, which would be aggravated by the circumstance being mentioned to him; that he was in danger of being accused of a crime, for which he would be instantly sacrificed, and that so relentless and determined were his prosecutors, that unless four pieces of gold, four pieces of leather, four pieces of blotting-paper, and four brass screws were given to her, to "screw them down," he would be dead before the morning. Mrs. Greenwood, unfortunately for the trick, was not possessed of even one piece of gold, and the proposition of the "witch," that she should steal what she wanted, so startled her, that she had fortitude enough to emancipate herself from the trammels which had been thrown round her.

Her next attempt was upon a poor woman named Stead, upon whose jealous fears she worked so far, as to obtain from her nearly the whole of her furniture, under pretence of "screwing down," a woman, with whom she represented that her husband was intimate. Stead was about to enter the army; and Mrs. Bateman next easily found means to persuade him, as she

had persuaded his wife, of her powers, and she obtained from him all the little money, which he had obtained as his bounty, under the pretence of “screwing down” his officers to give him promotion. The fascinating and all powerful Miss Blythe had not yet been discovered, but all her operations were now performed through the medium of a Mrs. Moore, whose existence, it may readily be supposed, was as doubtful as that of her subsequent coadjutor.

Terror was the great engine by which this woman carried on her frauds, and as the wife of Stead had still a few articles of furniture and clothing—the last sad wreck of their property, she persuaded her if something was not done to prevent it, her daughter who was then only about eight years of age, would, when she attained the age of fourteen, become pregnant of an illegitimate child, and that either she would murder herself, or would be murdered by her seducer, to prevent which, 17s. was to be placed in Mary Bateman’s hands. This money she was to hand over to the invisible Mrs. Moore, who was to reduce the coin to a “silver charm,” which charm was to be worn round the girl’s arm till the period of danger was past, but which, when the bubble burst three months after, was cut from the child’s arm, when by a strange transmutation of metal, the silver had turned to pewter.

In the midst of these scenes of fraud in one party, and weakness in the other, a relation of Stead’s came over to Leeds in a state of pregnancy, and forsaken by her lover. This young woman was a fine subject for the artful Mary Bateman, who soon learned her misfortune, and undertook, on condition that a guinea was given to her, for Mrs. Moore, to make the lover marry her. The money was paid, but no lover appeared. It was then found out that he was too strong for the first charm, and that more money and more screws would be necessary to screw him down to the altar of Hymen. Still he came not; and the girl finding the money she had fast diminishing, procured a service in a respectable family in Leeds, the master of which being a bachelor, Mary soon contrived to persuade the silly girl that she could by her arts oblige him to marry her. Here a difficulty arose—the unborn child was in the way; but Mary, ever ready to undertake any business, however desperate, engaged to remove the impediment, and for that purpose administered certain medicines to the ill-fated young woman, which produced the desired effect, and abortion ensued. The master after all was not to be caught; but the girl’s former sweetheart coming over to Leeds married her, though she was, at that time, owing as is supposed to the

medicine given to her by Mary Bateman, in a very emaciated state. In speaking of her connexion with this vile woman, she used the following remarkable expression:—"Had I never known Mary Bateman, my child would now have been in my arms, and I should have been a healthy woman—but it is in eternity, and I am going after it as fast as time and a ruined constitution can carry me." The unhappy girl died soon after, a melancholy instance of the direful effects which too great credulity and weakness of mind may produce.

The artifices and frauds of which she had been hitherto guilty, however, shrink into comparative obscurity, when opposed with the offences which Mrs. Bateman subsequently committed. The case of the unhappy Mrs. Perigo has been already mentioned, and its circumstances detailed, but there is too much reason to believe that she was concerned in producing the death of three persons, a crime of still greater and more cold-blooded cruelty. The Misses Kitchen were quaker ladies, who carried on the business of linen-draperies, near St. Peter's Square, Leeds, and Mrs. Bateman, by representations of her skill in divination, and reading the stars, managed so far to ingratiate herself into their good graces as to become their confidant and most intimate adviser. She attended their shop, was a constant visitor at their house, and her interference extended even to the domestic concerns of the family. In the month of September, 1803, the younger Miss Kitchen was attacked with a severe and painful illness, and Bateman possessing the full confidence of the family procured medicines from a person whom she described as a country doctor, but instead of their producing any improvement in the condition of the unhappy patient, in less than a week she died. Her mother arrived from Wakefield, where she lived, in time only to receive the last breath of her daughter, but in two days, she, as well as the surviving sister, died, and they were all three placed in the same grave. Throughout the whole of these distressing illnesses Mary Bateman was the sole attendant upon the unhappy women, and after their death she took upon herself the task of rendering them those last melancholy offices, which are usually the duty of the near relations of the deceased. No person was permitted by her to enter the house, under pretence that the deceased persons had been affected by the plague, except those, whose presence was rendered necessary in order to the performance of the rites of sepulture; and for many weeks the neighbourhood was shunned, lest the supposed infection might spread. Mrs. Bateman, however, in the midst of all,

exhibited the most praiseworthy and disinterested affection for the poor ladies, and in the face of all danger, hesitated not to minister to their wants, and even after death to take those precautions, in fumigating the house, which were supposed to be necessary. She prepared their meals, and by her hands alone were the medicines administered, which she professed to have been prescribed. Several months had elapsed before any inquiries were made as to the condition in which the deceased persons had died, and then some of their creditors having determined to ascertain what property they had left behind them, entered the house. To their surprise they discovered that of the furniture and stock, of which the deceased had been known to be possessed, scarce a vestige remained; and the discovery of some articles of property in the house of Bateman, which were known to have belonged to the deceased ladies, but which the former declared had been given to her by them, afforded grounds for a well-founded suspicion that poison was the “plague” of which they had died, although under the circumstances of the case, and after the lapse of so long a time, evidence could not be obtained which could be deemed conclusive upon the subject. The determined cruelty exercised in the case of the Perigos appeared to sanction the suspicions which were entertained, and after conviction Mrs. Bateman was minutely questioned upon the subject, but all efforts to induce a confession of this crime, or of that of which she was found guilty, proved unavailing.

It would be useless to follow this wretched woman through the subsequent scenes of her miserable life. Fraud and deceit were the only means, by which she was able to carry on the war, and numerous were the impudent and heartless schemes which she put into operation to dupe the unhappy objects of her attacks. Her character was such as to prevent her long pursuing her occupation in one position, and she was repeatedly compelled to change her abode until she at length took up her residence in Black Dog Lane, where she was apprehended. Her husband at this time had returned from the militia several years, and although he followed the trade to which he had been brought up, there can be little doubt that he shared the proceeds of his wife’s villanies.

Mary Bateman was neat in her person and dress, and though there was nothing ingenuous in her countenance, it had an air of placidity and composure, not ill adapted to make a favourable impression on those who visited her. Her manner of address was soft and insinuating, with the affectation of sanctity. In her domestic arrangements she was regular, and

was mistress of such qualifications in housewifery as, with an honest heart, would have enabled her to fill her station with respectability and usefulness.

A few anecdotes upon the subject of the belief in witchcraft, in former days, we trust will not prove uninteresting to our readers.

The reign of James the Sixth of Scotland, and First of England, may be said to have been the witchcraft age of Great Britain. Scotland had always been a sort of fairy land; but it remained for that sagacious prince, at a time when knowledge was beginning to dispel the mists of superstition, to contribute, by his authority and writings, to resolve a prejudice of education into an article of religious belief amongst the Scottish people. He wrote and published a “Treatise on Dæmonologie;” the purpose of which was, to “resolve the doubting hearts of many, as to the fearful abounding of those detestable slaves of the Devil, witches, or enchanterers.” The authority of Scripture was perverted, to show, not only the possibility, but certainty, that such “detestable scenes” do exist; and many most ridiculous stories of evil enchantment were added, to establish their “fearful abounding.” The treatise, which is in the form of a dialogue, treats also of the punishment which such crimes deserve; concluding, that





Meeting of Witches.

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“no sex, age, nor rank, should be excused from the punishment of death, according to the law of God, the civil and imperial law, and the municipal law of all Christian nations.” In answer to the question, “What to judge of death, I pray you?” The answer is, “It is commonlie used by fyre, but there is an indifferent thing to be used in every country, according to the law or custome thereof.”

Such, in fact, was the cruel and barbarous law of James’s native country; and such became the law also of England, when he succeeded to the sceptre of Elizabeth. Many hundreds of unfortunate creatures, in both countries, became its victims, suffering death ignominiously, for an impossible offence: neither sex, nor age, nor rank, as James had sternly enjoined, was

spared; and it was the most helpless and inoffensive, such as aged and lone women, who were most exposed to its malignant operation.

There were persons regularly employed in hunting out, and bringing to punishment, those unfortunate beings suspected of witchcraft.

Matthew Hopkins resided at Manningtree, in Essex, and was witchfinder for the associated counties of Essex, Suffolk, Norfolk, and Huntingdonshire. In the years 1644, 1645, and 1646, accompanied by one John Stern, he brought many to the fatal tree as reputed witches. He hanged, in one year, no less than sixty reputed witches of his own county of Essex. The old, the ignorant, and the indigent, such as could neither plead their own cause nor hire an advocate, were the miserable victims of this wretch's credulity, spleen, and avarice. He pretended to be a great critic in *special marks*, which were only moles, scorbutic spots, or warts, that frequently grow large and pendulous in old age; but were absurdly supposed to be teats to suckle imps. His ultimate method of proof was by tying together the thumbs and toes of the suspected person, about whose waist was fastened a cord, the ends of which were held on the banks of the river by two men, in whose power it was to strain or slacken it. Swimming, upon this experiment, was deemed a sufficient proof of guilt; for which king James (who is said to have recommended, if he did not invent it) assigned a ridiculous reason, that, "as some persons had renounced their baptism by water, so the water refuses to receive them." Sometimes those who were accused of diabolical practices, were tied neck and heels, and tossed into a pond: if they floated or swam, they were consequently guilty, and were therefore taken out and burned; but if they were innocent, they were only drowned. The experiment of swimming was at length tried upon Hopkins himself, in his own way, and he was upon the event condemned, and, as it seems, executed as a wizard. In a letter from Serjeant Widrinton to Lord Whitelocke, mention is made of another fellow of the same profession as Hopkins. This fellow received twenty shillings a-head for every witch he discovered, and thereby obtained rewards amounting to thirty pounds.

In an old print of this execrable character, he is represented with two witches. One of them, named Holt, is supposed to say, "My Impes are, 1. Ilemauzyr; 2. Pyewackett; 3. Pecke in the Crown; 4. Griezell Griediegutt." Four animals attend: Jarmara, a black dog; Sacke and Sugar, a hare; Newes, a ferret; Vinegar Tom, a bull-headed greyhound. This print is in the Pepysian library.

Amongst a number of women (as many as sixteen) whom Hopkins, in the year 1644, accused at Yarmouth, was one, of whom the following account is given. It appears that she used to work for Mr. Moulton (a stocking merchant, and alderman of the town), and upon a certain day went to his house for work; but he being from home, his man refused to let her have any till his master returned; whereupon, being exasperated against the man, she applied herself to the maid, and desired some knitting-work of her; and when she returned the like answer, she went home in great discontent against them both. That night, when she was in bed, she heard a knock at her door, and going to her window, she saw (it being moon-light) a tall black man there: and asked what he would have? He told her that she was discontented, because she could not get work; and that he would put her into a way that she should never want anything. On this, she let him in, and asked him what he had to say to her? He told her he must first see her hands; and taking out something like a penknife, he gave it a little scratch, so that a little blood followed, a scar being still visible when she told the story; then he took some of the blood in a pen, and pulling a book out of his pocket, bid her write her name; and when she said she could not, he said he would guide her hand. When this was done, he bid her now ask what she would have. And when she desired first to be revenged on the man, he promised to give her an account of it next night, and so leaving her some money went away. The next night he came to her again, and told her he could do nothing against the man, for he went constantly to church, and said his prayers morning and evening. Then she desired him to revenge her on the maid; and he again promised her an account thereof the next night: but he said the same of the maid, and that therefore he could not hurt her. But she said that there was a young child in the house, which was more easy to be dealt with. Whereupon she desired him to do what he could against it. The next night he came again, and brought with him an image of wax, and told her they must go and bury that in the church-yard, and then the child, which he had put in great pain already, should waste away as that image wasted. Whereupon they went together and buried it. The child having laid in a languishing condition for about eighteen months, and being very near death, the minister sent this woman with this account to the magistrates, who thereupon sent her to Mr. Moulton's, where, in the same room that the child lay, almost dead, she was examined concerning the particulars aforesaid; all which she confessed, and had no sooner done, but the child,

who was three years old, and was thought to be dead or dying, laughed, and began to stir and raise up itself: and from that instant began to recover. The woman was convicted upon her own confession, and was executed accordingly.

A more melancholy tale does not occur in the annals of necromancy, than that of the Lancashire Witches, in 1612. The scene of the story is in Penderbury Forest, four or five miles from Manchester, remarkable for its picturesque and gloomy situation. It had long been of ill repute, as a consecrated haunt of diabolical intercourse, when a country magistrate, Roger Nowel by name, took it into his head that he should perform a great public service by routing out a nest of witches, who had rendered the place a terror to all the neighbouring vulgar. The first persons he seized on, were Elizabeth Demdike and Ann Chattox. The former was eighty years of age, and had for some years been blind, and principally subsisted by begging, though she had a miserable hovel on the spot, which she called her own. Anne Chattox was of the same age, and had for some time been threatened with the calamity of blindness. Demdike was held to be so hardened a witch that she had trained all her family to the mystery: namely, Elizabeth Device, her daughter, and James and Alison Device, her great-grandchildren. These, together with John Balcock, and Jane his mother, Alice Natter, Catherine Hewitt, and Isabel Roby, were successively apprehended by the diligence of Nowel, and one or two neighbouring magistrates, and were all of them by some means induced, some to make a more liberal, and others a more restricted confession of their misdeeds in witchcraft, and were afterwards hurried away to Lancaster Castle, fifty miles off, to prison. Their crimes were said to have universally proceeded from malignity and resentment; and it was reported to have repeatedly happened for poor old Demdike to be led by night from her habitation into the open air, by some member of her family, where she was left alone for an hour to curse her victim, and pursue her unholy incantations, and was then sought and brought back again to her hovel, her curses never failing to produce the desired effect.

The poor wretches had been but a short time in prison, when information was given that a meeting of witches was held on Good-Friday, at Malkin's Tower, the habitation of Elizabeth Device, to the number of twenty persons, to consult how, by infernal machinations, to kill one Lovel, an officer, to blow up Lancaster Castle, deliver the prisoners, and to kill another man, of

the name of Lister. The last object was effected; the other plans, by some means, which are not related, were prevented.

The prisoners were kept in jail till the summer assizes; but in the mean time, the poor blind Demdike died in confinement.

The other prisoners were severally indicted for killing by witchcraft certain persons who were named, and were all found guilty. The principal witnesses against Elizabeth Device were James Device and Jennet Device, her grandchildren, the latter only nine years of age. When this girl was put into the witness-box, the grandmother, on seeing her, set up so dreadful a yell, intermixed with dreadful curses, that the child declared that she could not go on with her evidence, unless the prisoner was removed. This was agreed to, and both brother and sister swore that they had been present, when the Devil came to their grandmother, in the shape of a black dog, and asked her what she desired. She said the death of John Robinson; when the dog told her to make an image of Robinson in clay, and after crumble it into dust, and as fast as the image perished, the life of the victim should waste away, and in conclusion the man should die. This testimony was received; and upon the conviction, which followed, ten persons were led to the gallows, on the twentieth of August, Anne Chattox, of eighty years of age, among the rest, the day after the trials, which lasted two days, were finished.

The judges who presided on these trials were Sir James Altham and Sir Edward Bromley, barons of the exchequer.

Guluim, who gives the most simple and interesting account of this melancholy case, conjectures, with much reason, that the old women had played at the game of commerce with the Devil, in order to make their simpler neighbours afraid of them; and that they played the game so long, that in an imperfect degree they deceived themselves. But when one of them actually saw her grandchild of nine years old placed in the witness-box, with the intention of consigning her to a public and ignominious death, then the reveries of the imagination vanished, and she deeply felt the reality, that, when she had been somewhat imposing on the child, in devilish sport, she had been whetting the dagger that was to take her own life. It was then no wonder that she uttered a supernatural yell, and poured curses from her heart.

Such was the first case of the Lancashire Witches. In that which follows, the accusation was clearly traced to be founded on a most villanous conspiracy.

About the year 1634, a boy named Edmund Robinson, whose father, a very poor man, dwelt in Pendle Forest, the scene of the alleged witching, declared that, while gathering wild-flowers in one of the glades of the forest, he saw two greyhounds, which he supposed to belong to a gentleman in the neighbourhood. Seeing nobody following them, the boy alleged that he proposed to have a course; but, though a hare was started, the dogs refused to run. Young Robinson was about to punish them with a switch, when one Dame Dickenson, a neighbour's wife, started up instead of the one greyhound; and a little boy instead of the other. The witness averred that Mother Dickenson offered him money to conceal what he had seen, which he refused, saying, 'Nay; thou art a witch!' Apparently, she was determined he should have full evidence of the truth of what he said, for she pulled out of her pocket a bridle, and shot it over the head of the boy, who had so lately represented the other greyhound. He was then directly changed into a horse; Mother Dickenson mounted, and took Robinson before her. They made to a large house or barn, called Hours town, into which the boy entered with the others. He there saw six or seven persons pulling at halters, from which, as they pulled them, meat ready-dressed came flying in quantities, together with lumps of butter, porringers of milk, and whatever else might, in his fancy, complete a rustic feast. He declared that, while engaged in the charm, they made such ugly faces and looked so fiendish, that he was frightened.

This story succeeded so well, that the father of the boy took him round to the neighbouring churches, where he placed him standing on a bench after service, and bade him look round and see what he could observe. The device, however clumsy, succeeded; and no less than seventeen persons were apprehended at the boy's election, and conducted, as witches, to Lancaster Castle. These seventeen persons were tried at the assizes and found guilty; but the judge, whose name has unfortunately been lost, unlike Sir James Altham and Sir Edward Bromley, saw something in the case that excited his suspicion, and, though the juries had not hesitated in any one instance, respited the convicts, and sent up a report of the affair to the government. Twenty-two years had not elapsed since the former case, in vain. Four of the prisoners were, by the judge's recommendation, sent for to

the metropolis, and were examined, first by the king's physician, and then by Charles the First, in person. The boy's story was strictly scrutinised, and in the end, he confessed that it was all an imposture, in which he had been instructed by his father; and the whole seventeen prisoners received the royal pardon.

So late as the year 1679, several unfortunate persons were tried and executed at Borrostowness in Scotland, for witchcraft, four of them being poor widows. The following is a literal copy of the indictment upon which they were arraigned--

"Annaple Thomsonsone, widow in Borrostowness, Margaret Pringle, relect of the deceast John Campbell, seivewright there, &c. &c.

"Aye, and ilk ane of you, are indigtte and accused, that, whereas, notwithstanding the law of God particulurly sett down in the 20th chapter of Leviticus and the 18th chapter of Deuteronomy, and be the lawes and actes of parliament of this kingdome and constant practis thereof, particularlie to the 27 act, 29 parliament Q. Marie, the cryme of witchcraft is declaired to be one horreid, abominable, and capitall cryme, punishable with the pains of death and confiscatioun of moveables:—nevertheless it is of veritie, that you have comitted and are gwyllie of the said crime of witchcraft, in awa far ye have entered in practicion with the devile, the enemie of your salvatioun, and have renounced our blessed Lord and Savior, and your baptizme, and have given yoursellfes, both soulles and bodies, to the devile, and swyndrie wyth witches, in divers places. And particularlie ye, the said Annaple Thompsone, had a metting with the devile the time of your weidowhood, before you were married to your last husband, in your coming betwixt Linlithgow and Borrostowness, where the devile, in the lykeness of one black man, told you, that you was one poor puddled bodie, and had one lyiff and difficulties to win throu the world; and promesed iff ye wald followe him, and go alongst with him, you should never want, but have one better lyiff; and about fyve wekes thereafter the devile appeared to you, when you was going to the coal-hill, abowt sevin a-clock in the morning. Having renewed his former temtatioun, you did condeshend thereto and declared yourselff content to follow him and become his servant; whereupon the devile * * * and ye and each persone of you wis at several metting with the devile, in the linkes of Borrostowness, and in the house of you, Bessie Vicker; and ye did eate and drink with the devile, and with one another, and with witches in her howss in the night

tyme; and the said Wm. Crow brought the ale, which ye drank, extending about sevin gallons, from the howss of Elizabeth Hamilton; and you, the said Annapple, had another metting about fyve wekes ago, when you wis goeing to the coal-hill of Grange, and he inveitted you to go alongst and drink with him in the Grange farmes; and you, the said Margaret Pringle, have bein one witch this many yeeres by gone, hath renounced your baptizme and becum the devile's servant, and promiseis to follow him; and the devile took you by the right hand, whereby it was for eight days greivowslie pained, but, having it twitched new again, it immedeatelie became hail; and you, the said Margaret Hamilton has bein the devile's servant these eight or nine years by gone, and he appeared and conversed with you at the town well of Borrostowness, and several times at your owin howss, and drank several choppens of ale with you. * * and the devile gane you ane fyne merk piece of gold, which a lyttle after becam are skleite stone; and you, the said Margaret Hamilton, relict of James Pullevart, has been ane witch, and the devile's servant, thertie yeres since, hath renounced your baptisme, as said is

.....

And ye, and ilk of you, was at a meeting with the devile and other witches, at the croce of Murestain, above Renneil, upon the threttein of October last, where you all danced, and the devile acted the piper, and where you endeavored to have destroyed Androw Mitchell, sone to John Mitchell, elder in dean of Kenneil."

The charges thus made against the "poor puddled bodies," Annapple Thomsone and her associates, however ludicrous they may seem, were substantiated to the satisfaction of a jury; and for so meeting, and dancing, and drinking, and frolicking with his satanic majesty (who condescended to act the piper), the unfortunate defendants were solemnly condemned, "to be taken to the west end of Borrostowness, the ordinary place of execution there, upon Tuesday, the 23rd day of December current, betwixt two and four in the afternoon, and then to be wirried at a steack [that is, like a bull or a badger, by dogs in human shape] till they be dead, and thereafter to have their bodies burned to ashes."

The strange and eventful history of the Witches of New England is, perhaps, generally known to the educated and informed; still there must be many who are not aware of all its melancholy details. As a story of

witchcraft, without any poetry in it, without anything to amuse the imagination, or interest the fancy, it, perhaps, surpasses everything upon record. The prosecutions for witchcraft in New England were numerous, and they continued, with little intermission, principally at Salem, during the greater part of the year 1692. The accusations were of the most vulgar and contemptible sort—invisible pinchings and blows, fits, with the blastings and mortality of cattle, and wains stuck fast in the ground, or losing their wheels. A conspicuous feature in nearly the whole of these stories, was what they named “the spectral sight,” or, in other words, that the profligate accusers first feigned, for the most part, the injuries they received, and next saw the figures and action of the persons who inflicted them, when they were invisible to every one else. Hence the miserable prosecutors gained the power of gratifying the wantonness of their malice, by pretending that they suffered by the hand of any one against whom they had an ill will. The persons so charged, though unseen by any one but the accuser, and who in their corporal presence were at a distance of miles, and were doubtless wholly unconscious of the mischief that was hatching against them, were immediately taken up, and cast into prison. And what was more monstrous and incredible, there stood the prisoner on trial for his life, while the witnesses were permitted to swear that his spectre had haunted them, and afflicted them with all manner of injuries!

The first specimen of this sort of accusation was given by one Paris, a minister of a church at Salem, in the end of the year 1691, who had two daughters, one nine years old, the other eleven, who were afflicted with fits and convulsions. The first person fixed on as the mysterious author of these evils, was Tituba, a female slave in the family, and she was harassed by her master into a confession of unlawful practices and spells. The girls then fixed on Sarah Good, a female, known to be the victim of a morbid melancholy, and Osborne, a poor man who had for a considerable time been bed-ridden, as persons whose spectres had perpetually haunted and tormented them, and Good was, twelve months afterwards, hanged on this accusation.

A person, who was one of the first to fall under the imputation, was one George Burroughs, also a minister of Salem. He had, it seems, buried two wives, both of whom the busy gossips said he had used ill in their life-time, and, consequently, it was whispered he had murdered them. He was accustomed, foolishly, to vaunt that he knew what people said of him in his

absence, and this was brought as a proof that he dealt with the devil. Two women, who were witnesses against him, interrupted their testimony with exclaiming that they saw the ghosts of the murdered wives present (who had promised them they would come), though no one else in the court saw them; and this was taken in evidence. Burroughs conducted himself in a very injudicious way on his trial; but, when he came to be hanged, made so impressive a speech on the ladder, with fervent protestations of innocence, as melted many of the spectators into tears.

The accusations, founded upon such stories as these, spread, with wonderful rapidity. In Salem, many were seized with fits, exhibited frightful contortions of their limbs and features, and became a fearful spectacle to the bystanders. They were asked to assign the cause of all this; and pretended to suppose, that they saw some neighbour, already solitary and afflicted, and on that account in ill odour with the townspeople, scowling upon, threatening, and tormenting them. Presently persons, specially gifted with the 'spectral sight,' formed a class by themselves, and were sent about at the public expense from place to place, that they might see what no one else could see. The prisons were filled with the persons accused, and the utmost horror was entertained, as of a calamity which in such a degree had never before visited that part of the world. It happened, most unfortunately, that Baxter's "Certainty of the World of Spirits" had been published but the year before, and a number of copies had been sent out to New England. There seemed a strange coincidence and sympathy between vital christianity in its most honourable sense, and the fear of the devil, who appeared to be "come down unto them, with great wrath." Mr. Increase Mather, and Mr. Cotton Mather, his son, two clergymen of the highest reputation in the neighbourhood, by the solemnity and awe with which they treated the subject, and the earnestness and zeal which they displayed, gave a sanction to the lowest superstition and virulence of the ignorant. All the forms of justice were brought forward on this occasion. There was no lack of judges, and grand juries, and petty juries, and executioners, and still less of prosecutors and witnesses. The first person that was hanged was on the 10th of June, five more on the 19th of July, five on the 19th of August, and eight on the 22nd of September. Multitudes confessed that they were witches; for this appeared the only way for the accused to save their lives. Husbands and children fell down on their knees, and implored their wives and mothers to own their guilt. Many were tortured by being tied neck and heels together,

till they confessed whatever was suggested to them. It is remarkable, however, that not one persisted in her confession at the place of execution.

The most interesting story that occurred in this affair, was of Giles Cory, and Martha, his wife. The woman was tried on the 9th of September, and hanged on the 22nd. In the interval, on the 16th, the husband was brought up for trial. He said he was not guilty; but being asked how he would be tried, he refused to go through the customary form, and say, "By God, and my country." He observed that, of all that had been tried, not one had as yet been pronounced not guilty; and he resolutely refused in that mode to undergo a trial. The judge directed, therefore, that according to the barbarous mode prescribed in the mother country, he should be laid on his back, and pressed to death with weights gradually accumulated on the upper surface of his body, a proceeding which had never yet been resorted to by the English in North America. The man persisted in his resolution, and remained mute till he expired.

The whole of this dreadful tragedy, says Mr. Godwin, in his "Lives of the Necromancers," was kept together by a thread. The spectre-seers, for a considerable time, prudently restricted their accusations to persons of ill repute, or otherwise of no consequence in the community. By-and-bye, however, they lost sight of this caution, and pretended they saw the figures of some persons well connected, and of unquestioned honour and reputation, engaged in acts of witchcraft. Immediately the whole fell through in a moment. The leading inhabitants presently saw how unsafe it would be to trust their reputations and their lives to the mercy of these profligate accusers. Of fifty-six bills of indictment that were offered to the grand jury on the 3rd of January, 1693, twenty-six only were found true bills, and thirty thrown out. On the twenty-six bills that were found, three persons only were pronounced guilty by the petty jury, and these three received their pardon from the government. The prisons were thrown open; fifty confessed witches, together with two hundred persons imprisoned on suspicion, were set at liberty, and no more accusations were heard of. The "afflicted," as they were technically termed, recovered their health; the "spectral sight" was universally scouted; and men began to wonder how they could ever have been the victims of so horrible a delusion.

Dr. Cook, in his General and Historical Review of Christianity, gives a melancholy description of the condemnation of a woman for witchcraft, by a tribunal at Geneva, about the middle of the seventeenth century. An

enumeration of some of the particulars of this case will afford a tolerably correct notion of the horrible cruelty, which, in almost all proceedings against witchcraft, was practised in different parts of Europe. The woman was accused of having sent devils into two young women, and of having brought distempers upon several others,—a charge sufficiently vague. To substantiate the accusation, the members of the tribunal availed themselves of an opinion, that the devil imprinted certain marks upon his chosen disciples, the effect of which was, that no pain could be produced by any application to the parts of the body where these marks were. They sent two surgeons to examine whether such marks could be discovered in the accused; who reported, not much to the credit of their medical skill and philosophy, that they had found a mark, and that, having thrust a needle into it, the length of a finger, she had felt no pain, and that no blood had issued from the wound. Being brought to the bar, the prisoner denied the statement of the surgeons; upon which she was examined by three more, with whom were joined two physicians. It might have been expected that a body of men, who had received a liberal education, and who must have had some acquaintance with the nature and construction of the human frame, would have presented a report, showing the absurdity of the examination upon which they were employed. This, however, did not occur to them; for they gravely proceeded to thrust sharp instruments into the mark already mentioned, and into others which they thought they had found out; but, as the miserable patient gave plain indication that she suffered from their operations, they were staggered, and satisfied themselves with declaring, that there was something extraordinary in the marks, and that they were not perfectly like those commonly to be seen in witches. She was, notwithstanding, doomed to another investigation, the result of which was, that after some barbarous experiments, she felt no pain, and hence it was inferred that the marks were satanical. She had previously to this last inquiry, been actually put to the rack; but she retained her fortitude and presence of mind, firmly maintaining that she had sent no devils into the persons whom it was alleged she had thus injured. She was again threatened with the torture; and, from dread of undergoing it, made a confession, which it is painful to think was not at once discerned to be the raving of insanity. Similar proceedings were continued; and the conclusion of the whole was, that she was condemned to be hanged and burned, for giving up herself to the devil, and for bewitching two girls!

We conclude this article by the well-known case of the trial and acquittal of Lady Fowlis.

Catherine Ross, Lady Fowlis, was the daughter of Ross of Balnagown, and second wife of the fifteenth Baron of Fowlis. The object of her crimes was to destroy her step-sons, Robert and Hector Monro, with about thirty of their principal kinsmen, in order that her own children might succeed to the possessions of their father, which were considerable, and lay in the counties of Ross, Sutherland, and Inverness. Her brother, George Ross, seems to have been in league with her for the accomplishment of this diabolical purpose, and his wife, the young Lady Balnagown, was marked out as a victim, whose removal, with that of the rest of the family, might pave the way for his marriage with the wife of Robert Monro, the young laird. Their schemes were brought into active operation in the summer of 1577. Towards the end of that year, four of their accomplices, Agnes Roy, Christian Ross, of Canorth, William M'Gillievoricdam, and Thomas M'Kane More M'Allan M'Evoch, were arraigned in a justice court, held in the Cathedral Kirk of Ross, convicted, and burnt. One of the judges who presided at this trial, was Robert Monro, the husband of the principal instigator of the crimes, and father of the family whose lives were practised against. Lady Fowlis, upon the discovery of her wickedness, fled into the county of Caithness, and, after remaining there for the space of three quarters of a year, her husband was persuaded to receive her home again; and she seems to have lived unmolested during the rest of the life of the old baron; and even the young laird, for whose destruction she had perseveringly laboured, made no exertion to bring her to justice. His brother Hector, however, on succeeding him in 1590, procured a commission for the punishment of certain witches and sorcerers, which was understood to be aimed at his step-mother; but before he had time to act upon the power thus granted, she had influence enough to obtain a suspension of the commission; and it was not till July 1591 that she was brought to trial. The evidence mainly rested upon, was that of the notoriety of the facts, and the confession of the accomplices; each count of the indictment closed with a reference to the record of the process before the provincial court, with the occasional addition of "as is notour," "as is manifest be the haill countie of Roiss," or words to that effect. The verdict was favourable to the accused; but Mr. Pitcairn is of opinion, that her escape was owing to her powerful influence. "The inquest," he says, "bears all the appearance of a selected or

packed jury, being very inferior in rank and station of life, contrary to the usual custom.” The dittory or indictment is the only part of the proceedings that is preserved; indeed, the reading of it seems to have constituted the whole case of the prosecutor, and the simple denial of the “samin and the haill poyntis thereof,” the whole case for the accused; after which the jury retired to consider their verdict.

The first method adopted to compass the deaths of the persons who stood in the way of her ambition, was to form figures to represent the young Laird of Fowlis and the young Lady Balnagown, which were to be shot at with elf-arrows, in conformity with the belief, that, if these charmed weapons struck the typical bodies, the wounds would be felt in the real bodies, and produce invisibly the desired effect. For the performance of the necessary rites, a meeting of three witches took place in the house of Christian Ross, at Canorth, Christian herself being one of them, Lady Fowlis another, and Marjory M’Allester, a hag of peculiar eminence, distinguished also by the name of Loskie Loncart, the third. Having constructed two images of clay, they placed them on the north side of the western chamber, and Loskie, producing two elf-arrows, delivered one to Christian Ross, who stood by with it in her hand, while, with the other, Lady Fowlis shot twice at the figure of Lady Balnagown, and Loskie three times at that of Robert Monro, without success. In the mean time, the images not having been properly compacted, crumbled to pieces; and their purpose being thus thwarted for the present, the unhallowed convocation broke up, Loskie having engaged, at the command of Lady Fowlis, to make two other figures. M’Gillievorickdam seems now to have been taken into their counsels; and by his advice, an image in butter of the young Laird of Fowlis was placed by the side of the wall in the same western chamber of Canorth, and shot at eight times with an elf-arrow by Loskie, without effect. This was on the 2nd of July, 1577; and nothing discouraged by repeated failures, a clay figure of the same person was constructed on the 6th, when the indefatigable Loskie discharged the elf-arrow twelve times, sometimes reaching the image, but never wounding it. The other two hags stood by, anxiously watching for a successful shot, Christian Ross having provided three quarters of fine linen cloth, to be bound about the typical corpse, which was to be interred opposite the gate of the Stank of Fowlis, in order to complete the enactment by a full representation of every circumstance which they were desirous of producing as its consequence. The main part of

the rite, however, consisted in the infliction of a wound; and this not having been accomplished, they desisted from the vain labour.

The more secret arts of witchcraft having failed to effect the desired ends, Lady Fowlis next had recourse to poison; and numerous were the consultations held to concoct drugs and devise means for administering them. The same assistants figured as the chief agents in this equally abominable work. A stoup full of poisoned ale was first mixed in the barn of Drumnyer, but opportunity not serving for its immediate use, it was kept three nights in the kiln, and the stoup being leaky, the liquor was lost, all but a very small quantity; to prove the strength of which, Lady Fowlis caused her servant lad, Donald Mackay, to swallow it. The three confederates were assembled on this occasion, and as the draught did not kill the boy, but only threw him into a state of stupor, Loskie Loncart was dismissed, with an injunction to make “ane pig-full of ranker poysoune.” The obedient hag prepared the potion, and sent it to her patroness, by whom it was delivered to her nurse, Mary More, to be conveyed to Angus Leith’s house, where the young laird then was, that it might be employed for his destruction. Night was the time chosen for despatching her on this errand: she broke the vessel by the way, spilt the liquor, and, wishing probably to ascertain the nature of what had been intrusted to her under such circumstances of mystery, tasted it, and paid the forfeit of her curiosity with her life; and what helps to show the deadly qualities of their preparation, the indictment adds, that “the place quhair the said pig brak, the gers that grew upon the samin wes so hirsch by (beyond) the natur of other gers, that nather cow nor scheip evir preavit (tasted) thair of.” It were endless to detail all the traffickings and messengers kept scouring the country to collect the required quantity of poison. Loskie Loncart was lodged and maintained a whole summer in Christian Ross’s house, for the greater convenience of assisting to drug drinks, and devise means of administering them. M’Gillievoricdam was sent to consult the gipsies about the most effectual way of poisoning the young laird. He also purchased a quantity of the powder used to destroy rats, of a merchant in Elgin, and another portion in Tain, and was strictly questioned by Lady Fowlis, whether it would suit best to mix the ingredient with egg, brose, or kail. No fitting opportunity seems to have occurred for administering any of the portions to Robert Monroe; but, after three interviews, John M’Farquhar, Lady Balnagown’s cook, was prevailed upon by the present of two ells of grey cloth, a shirt, and twelve

and fourpence (Scots), to lend them his aid in accomplishing their purpose on his mistress. That young lady being to entertain a party of friends one night at her house at Ardmore, a witch, named Catherine Mynday, carried poison thither to M'Farquhar, who poured it on the principal dish, which was kidneys. This woman remained to witness the effects, and afterwards declared that she "skunnerit," or revolted at the sight, which was "the sarest and maist cruell that evir scho saw, seeing the vomit and vexacioun that was on the young Lady Balnagown and her company." The victim of these horrible practices did not die immediately, but contracted a deadly sickness, "quhairin," says the indictment, "scho remains yet (that is twelve years after taking the poison) incurable."

The persons named as privy to the designs of Lady Fowlis were numerous, and included the daughter of a baronet of her own name, whose interest in the matter seems to have been merely that of a connexion, or, at most, a clanswoman; and the bribes with which she purchased assistance and secrecy were of the paltriest kind. She provided lodgings in the houses of her adherents, for some whom she wished to have near her, for the better maturing of her schemes. The cook of young Lady Balnagown was bribed, as we have seen, with little more than a shirt and a shilling sterling! The fidelity of Christian Ross was bespoken, by reminding her that she ought not to reveal anything against one who was her lady and mistress. Another of the gang was paid with 'ane-half furlett of meill.' M'Gillievoricdam got four ells of linen for his trouble, but, besides, appropriated six and eightpence (Scots) of the money given to him to be expended for poison; at other times, however, this person was conciliated with 20s., a firloft of meal, five ells of linen, and 16s. The brother of Lady Fowlis is also said to have promised to Thomas M'Kane More M'Allan M'Evoch 'ane garmounthe of clais' (suit of clothes) for his services in the same base plot.

From a review of this whole case, with others of the same date, it will appear that the crimes of former times were distinguished from those of the present day, not so much by the greater atrocity of any single act, as by the length of time for which they were meditated, and the number of persons admitted to a knowledge of them, without any fear of disclosure. They were the offspring of habitual thought rather than the effect of sudden starts of passion.

Immediately after the acquittal of Lady Fowlis, her step-son and prosecutor, the seventeenth Baron of Fowlis, was presented at the bar on an

accusation in some respects similar, of which he also was found not guilty, by a jury, the majority of whom had sat on the preceding trial. In January, 1588-9, this gentleman being taken ill, sent a servant with his own horse, to bring to his assistance Marion M'Ingarach, who is characterised as being 'ane of the maist notorious and rank wichis in all this realme,' and who, as soon as she entered the house where he lay sick, gave him three drinks of water from three stones (probably rude stone cups). After a long consultation, she declared there was no hope of recovery, unless the principal man of the patient's house should suffer death for him; and it was determined, after some discussion, that this substitute should be George Monro, eldest son of Catharine Monro, Lady Fowlis. A plan was next devised for transferring the *onus moriendi*, for the present, to George; according to which, in the first place, no person was to have admittance to the house in which Hector lay, until his half-brother came; and on his arrival, the sick man, with his left hand, was to take his visitor by the right, and not to speak until spoken to by him. In conformity with these injunctions, several friends, who called to inquire for the patient, were excluded, and messengers were despatched, both to George Monro's house and to other parts of the country, where he was thought to be engaged in the sports of the chase. Before he could be found, seven expresses had been sent after him, and five days expired. On the intelligence that his brother desired earnestly to see him, he repaired to the place, and was received in the form prescribed by the witch, Hector with his hand grasping George's right, and abstaining from speaking until asked "how he did," to which he replied, "the better that you have come to visit me," and he uttered not a word more, notwithstanding his urgency to obtain an interview. The younger Monro having, in this manner, been brought fairly within the compass of the witch's spells, she that night mustered certain of her accomplices, and having provided spades, repaired to a spot where two lairds' lands met, and, at 'ane after midnycht,' digged a grave of the exact length of Hector Monro, and laid the turf of it carefully aside. They then came home, and M'Ingarach gave her assistants instructions concerning the part that each was to perform in the remaining ceremonies. The object—namely, the preservation of Hector's life and the death of George in his stead—being now openly stated, some of those present objected, that if the latter should be cut off suddenly, the hue and cry would be raised, and all their lives would be in danger. They therefore pressed the presiding witch

not to make the sacrifice immediately, but to cause it to follow after such an interval as might obviate suspicion, which she accordingly engaged to accomplish, and warranted him to live till the 17th day of the ensuing April, at least. This being arranged to the satisfaction of the persons assembled, the sick man was laid in a pair of blankets, and carried out to the place where the grave had been prepared. The party were strictly enjoined to be silent, and only M'Ingarrach, and Christian Neill, Hector's foster-mother, were to utter the necessary incantations. Being come to the spot, their living burden was deposited in the grave, the turf being spread over him, and held down with staves. M'Ingarrach stood by the side of the grave, and Neill, holding a boy, a son of Hector Leith, by the hand, ran the breadth of nine rings, then returned, and demanded, 'which is your choice?' Thereupon the other replied, 'Mr. Hector, I choose you to live, and your brother George to die for you.' This form of conjuration was twice gone through that night; and, on its completion, the sick man was lifted, carried home—not one of the company uttering a word further—and replaced in bed.

To the efficacy of this spell was attributed not only the recovery of Hector, but the death of George Monro, though the latter continued in perfect health not only for the time warranted by the witch, but for a year longer. He was taken ill in April, 1590, and died on the 3rd of June following. M'Ingarrach was highly favoured by the gentleman who supposed he owed to her his life. As soon as his health was restored, 'be the dewilisch moyan foirsaid,' he carried her to the house of his uncle at Kilurmmody, where she was entertained with as much obsequious attention as if she had been his spouse, and obtained such pre-eminence in the country that no one durst offend her, though her ostensible character was only that of keeper to his sheep. Upon the information of Lady Fowlis, the protector of M'Ingarrach was compelled to present her at Aberdeen, where she was examined before the king, and produced the stones out of which she had made the baron drink. These enchanted cups were delivered to the keeping of the justice clerk; but we are not informed as to the fate of the witch herself.

The indictment charged the prisoner that 'ye gat yowr health be the develisch means foirsaid.' And further, it said, 'ye are indicted for art and part of the cruel, odious, and shameful slaughter of the said George Monro, your brother, by the enchantments and witchcrafts used upon him by you and of your devise, by speaking to him within youre bed, taking of him by

the right hand, conform to the injunctions given to you by the said Marian Ingarrach, in the said month of January, 1589 years; *throw the which inchantmentis he tuke ane deidlie seiknets in the moneth of Apryle, 1590 yetris, and continew and thairin until Junii thairafter, diceissit in the said moneth of Junii, being the third day of that instant!*'

JAMES HARDY VAUX,

TRANSPORTED FOR PRIVATELY STEALING.

THE adventures of James Hardy Vaux are not inferior in interest to those of the renowned Guzman d'Alfarache, or Lazarillo de Tormes, and like those celebrated rogues, in order that the public may profit by his example, he has given the world a narrative of his exploits, in which philosophers may read the workings of an unprincipled conscience, the legislator may discover the effect of the existing laws upon the mind of a criminal, and by means of which the citizen may learn to detect the frauds by which he is so constantly, and, but too frequently, so successfully beset. So excellent a moral is to be derived from the memoirs of this criminal, well written as they appear to be, that we shall furnish the reader with occasional extracts from them, giving an abridgment of those portions of them which present features of less interest.

James Hardy Vaux was born at Guildford, in the county of Surrey, in the year 1782, where his father, who was a foreigner, lived in the service of a Mr. Sumner, as cook and house-steward. It appears that the mother of this unfortunate man was born of highly respectable parents, her father being a Mr. Lowe, a solicitor in London, and that her marriage with her husband took place much against the wishes of her friends. In 1785, Mr. Lowe retired from business, and going to live in the country, he took with him his little grandson, whom he treated with parental fondness; sent him to school, and gave him a liberal education, such as to qualify him for his own profession. Mrs. Vaux's first imprudence had partially alienated the affections of her parents, and her subsequent conduct did not tend to restore their good opinion. Young Vaux, therefore, was entirely abandoned to the care of his grandfather and grandmother, and he complains that his natural parents never treated him with anything like a proper affection.

After six years' residence in the country, Mr. Lowe was prevailed upon to live with his daughter and son-in-law, who had recently commenced the hat business at Great Turnstile, Holborn. Young Vaux, being at this time nine years old, was sent to a respectable boarding-school at Stockwell; and after three years he returned to his grandfather, who had quitted, in

consequence of family disagreements, the house of his son-in-law, and then resided in one of the squares. Mrs. Lowe's health declining, the family removed to Wisbeach, Cambridgeshire, where they continued for some time, and then returned to their original residence in Shropshire, young Vaux being now fourteen years of age. Here he became acquainted with the son of John Maultrie, Esq., a resident in the vicinity, and, on that youth's removal to college, his father proposed to pay for Vaux to accompany him; but his indecision and obstinacy rendered the proffered kindness of no avail. The army or navy was his ambition; but, as his grandfather would not consent to his entering either of these professions, the desire was abandoned, and, after much hesitation, he was ultimately bound an apprentice to Parker and Co. linen-drappers, at Liverpool.

As this step may be called his first entrance into life, we will let him speak for himself, as his conduct in his first situation clearly indicates his character, while it forcibly reminds youth of the danger they run in yielding to the first incentives to crime. "I was now," said Hardy Vaux, "turned of fourteen; my health and constitution good, my spirits elevated, and I felt all those pleasing sensations which naturally arise in a youthful mind, happy in conscious innocence, and flattered by the prospect of rising to honourable independence. The gaiety and bustle of this beautiful and improving borough at once charmed and amused me; I spent a week in viewing the public buildings, the environs, &c.; but, above all, my admiration was excited by the numerous and capacious docks, by which ships of large burden are admitted, as it were, into the heart of the town, and discharge their rich and varied cargoes with surprising facility, which are deposited in spacious warehouses, of amazing extent, and from twelve to fourteen stories high, with which these noble docks are nearly surrounded.

"The opportunities I had, during my residence in Liverpool, of viewing the daily arrivals and sailings of merchant ships to and from all parts of the world, particularly the Guineamen, which formed a remarkably fine class of vessels, revived the latent desire I had for a seafaring life; and I wanted but little incitement, had the smallest opportunity offered, to take French leave of my masters, and gratify my rambling propensity. However, the bustle in which I was continually involved, and the new scenes of amusement which every succeeding day presented, suppressed the inclination for a time; but that it was not totally subdued will be seen hereafter. The establishment and economy of our house were upon the most regular plan; the former

consisted of six apprentices (myself among the number), and four assistants at very liberal stipends, besides, a nephew of the elder partner, who superintended the whole and officiated in the counting-house; there were also several porters and other subordinates, for all of whom full employment was found. Being the junior apprentice, it was my province to polish the counters, trim the lamps, carry out small parcels, and to perform other inferior duties; when disengaged from which, I assisted in waiting on retail customers and making myself otherwise useful behind the counter. We had a plentiful table appropriated to us, to which we retired in turn during the hours of business, commodious and airy chambers, and, in short, we enjoyed every comfort we could desire. For the first month of my probation I behaved extremely well, and by my quickness and assiduity gained the good opinion of my employers, who wrote of me in the most favourable terms to my friends in Shropshire; nor did my expenses exceed my allowance for pocket-money, which was fully adequate to every rational enjoyment.

“Among my fellow-apprentices was a young man named King, some years older than myself, with whom, from a similarity of sentiment, I formed a close intimacy. He was of an excellent disposition, but a great lover of pleasure; and as his servitude was far advanced, and his prospects peculiarly flattering, he was under very little restraint, but gave the rein to his passion for dissipation. His expenses were profuse, but whether he indulged in them at the expense of his probity I could never ascertain. He soon introduced me to several young men of his own stamp, and I became in a short time as great a rake as the best of them: nor was our conversation confined to our own sex, scarcely a night passing without our visiting one or other of those houses consecrated to the Cyprian Goddess, with which the town of Liverpool abounds. In such a course of life, it is not likely that I could submit to limited hours: my companions and I seldom returned home before midnight, and sometimes not until the ensuing morning. Though we took measures to keep this from the ears of our employers, it could not fail to be known in time; and the consequence was a strong but tender remonstrance on my imprudence, which much affected me at the moment; but the impression was transitory and soon effaced. I plunged deeper and deeper into the vortex of folly and dissipation, until I was obliged to have recourse for advice to the Æsculapius of Gilead House. This irregular mode of life had borne hard upon my finances, and I had not, as yet, had recourse

to fraud or peculation. I was liberally supplied by my relations on leaving Shropshire, and had received my first quarterly allowance; but an event, which soon followed, tempted me to the first breach of confidence and integrity. I had in my youth been passionately fond of cocking, a sport for which the county of Salop has been always famed; and, though so young, I had constantly kept several cocks at walk, unknown to my parents; so that I had acquired a considerable share of experience and knowledge on the subject. One day, when I was sent with some muslins to wait on a lady in the environs of Liverpool, near the canal, I accidentally passed a cock-pit, where a great crowd was assembled; and I understood that a grand main was about to commence. Elated at this pleasing intelligence, I hastened to execute my commission; and returning to the house, entered it, and, leaving my wrapper of goods in the care of the landlady, I ascended to the pit, and took my seat. The company was, as usual, of a motley description; but there were many genteel persons. I ventured a few trifling bets at first with various success; but at length an opportunity offering, which I considered as next to a certainty, I laid the odds to a large amount, flattering myself that, by this stroke of judgment, I should be enabled to figure away with increased éclat among my gay companions. After I had so done, greater odds were still vociferated; but in a moment the scene was changed! the fallen cock, in the agonies of death, made a desperate effort, and, rising for a moment, cut the throat of his antagonist, who was standing over him, in the act of crowing with exultation on his victory! The latter immediately fell, choked with the effusion of blood, nor did the victor survive him many moments. The whole pit resounded with acclamation, and the discord which ensued beggars description. I was not the only sufferer by this revolution of fortune; many others had laid higher odds than myself, and to a much greater amount. I was soon surrounded by my creditors, to whom I disbursed every shilling I had about me, among which were some pounds I had just received from the lady for goods, and for which I had given her a receipt. I was still something deficient, for which I pledged my honour to one of the parties, giving my address, and promising payment on an early day. I now returned home, filled with remorse and shame; but, as the first false step of a young person insensibly leads to another, I added to my guilt by concealing the affair from my employers, and directed them to book the articles the lady had selected. I had a degree of false shame about me, which rendered me incapable of confessing the truth and promising

amendment, or all might still have been well. In the evening I had recourse to the bottle to drown my chagrin; and I determined to purloin a certain sum every day, in the course of my attendance on retail customers, until I had liquidated my debt of honour! Then I vowed to stop and reform. Delusive idea! how little did I then know my own weakness, or the futility of such resolutions in a young mind! And who, that once begins a career of vice, can say to himself, "Thus far will I go, and no farther?" After I had discharged my engagement I found a small sum must be raised for pocket-money, and other exigencies, as it would be above two months before I could expect a remittance.

"I therefore continued my speculation, and at length my evil genius suggested to me, that I might, by venturing a small sum, become more fortunate at the cock-pit, and repair the loss I had sustained; as miracles don't happen every day, and the odds must win in the long run. Thus I argued with myself; and, fatally for me, I tried the experiment.

"From this moment I never missed a day's fighting at the cock-pit; and when sent on business which required my speedy return, I could not tear myself from the spot, but frequently stayed out several hours, and, afterwards forged a lie to account for my delay. I sometimes came off a winner; but, as I was not then acquainted with the art of hedging, by which the knowing ones commonly saved themselves, I was sure to be a loser at every week's end. But I managed matters so well, that my frequent secretions from the till were not discovered, however they might be suspected. The extensive trade of the shop rendered it next to impossible; and what I abstracted was a trifle compared to the gross receipts of the day. My continued misconduct became now the subject of frequent remonstrances on the part of Mr. Parker, the resident partner; which not having had the desired effect, that gentleman wrote to my friends, informing them in general terms that I had unhappily formed improper connexions, and that my late levity of conduct rendered me unfit to be received into their house; therefore desiring I might be recalled without delay. Mr. Parker concluded with a remark, which I shall never forget, and which was peculiarly gratifying to my grandfather's (perhaps too partial) feelings: after expatiating on my general capacity for business, he added, 'his smartness and activity are really wonderful.' This letter produced a speedy answer, in consequence of which I was directed to hasten my departure, which took place in a few days, Mr. Parker giving me a great

deal of wholesome advice at parting; observing that although it was not in his power to charge me with any direct criminality, my inconsiderate behaviour, and the continued excesses of my conduct, left but too much room for unfavourable conjectures.

“Behold me now returned to my grandfather, after an absence of nearly five months; and this excursion may be called my first entrance into life. I could not help blushing at the consciousness of my own unworthiness; but the blind partiality of my dear parents induced them to believe me less culpable than I really was, and to listen readily to anything I had to offer in palliation of my errors.”

Having now tasted the vicious cup of pleasure, Vaux found a village too limited a sphere for his ambition, and resolved to try his fortune in London. His grandfather, having many friends in his own profession, gave him letters of introduction, which, on his arrival in the metropolis, procured him a situation as copying clerk in a solicitor’s office. Resolving to be master of his own conduct, he did not visit the house of his father, who by this time had tried many businesses, but was unfortunate in all; but took private lodgings, and for three months conducted himself with great propriety. But, getting acquainted with several young persons of both sexes, he gradually gave way to dissipation, visited the theatres, and became irregular in his attendance at his office, in consequence of which he was formally dismissed.

Finding it still necessary to have some employment, he procured, through one of his dissipated companions, the son of a wealthy citizen, a situation, as clerk in the warehouse of Messrs. Key and Sons, wholesale stationers, in Abchurch Lane, Lombard Street, at a guinea a week. Here, however, he continued but for a short time; for he could not endure a confinement in the East End, so far from the resort of his old acquaintances, who chiefly frequented Covent Garden and the purlieus of Drury Lane.

“During an abode,” says he, “of ten months in London, as I was frequently pushed for money, I availed myself of a genteel appearance, and pretty good address; and, taking advantage of the credulity of several tradesmen in the neighbourhood, I ordered wearing apparel of various kinds, and sometimes other goods, upon credit, without much concern about the day of payment; however, I always took care to procure a bill of parcels with the articles, which precluded any charge of fraud, and left the matter,

at the worst, but a debt contracted; for which, being a minor, I knew I could not be arrested. This was my first deviation from honesty since I left Liverpool. I was also frequently obliged to change my lodgings; and, as payment of my rent would have required ready money, for which I had so many other uses, I commonly decamped under favour of the night, having previously removed my effects by various stratagems. As I was ashamed to let my grandfather know the true state of my affairs, and as I really grieved at the expenses I had already caused him, which I knew had much inconvenienced him, I forbore at last to trouble him for remittances; but falsely assured him that I was doing well, and enabled to live upon the profits of my industry. I desired he would abandon the idea of articling me to the law, as the expenses attending admission had of late years been so much increased by stamp duties; and as I could, if I continued the study, at a future period, practise under the sanction of another person's name; a custom then very prevalent, though irregular. By these assurances I quieted the good old man, and silenced any inquiries my friends might have instituted respecting me; as I now really wished to continue free from all restraint upon my person or actions, and foolishly flattered myself that I should, by some lucky event, ultimately secure the means of independence. These conjectures were, however, perfectly vague, and proceeding from no fixed idea whatever.

“On quitting my city employment, I returned to the law, for which I still retained a partiality; and obtained a more liberal salary than before in an office equally respectable. Indeed I was now become more useful, and had improved much, both in person and address, since my arrival in town.

“I was still frequently reduced to pecuniary straits, and obliged to have recourse to various expedients, known only to men of the town, for my support: some of them, indeed, were bordering on dishonesty, and none of them very honourable. But to describe them individually is impossible; and a man who lives by his wits, as the phrase is, will assure you, if called to account, that he really could not for his life tell by what distinct means he makes out a living.

“As I now wrote uncommonly fast, I quitted the station of a weekly clerk, and obtained writings to copy by the sheet, from the law-stationers, by which I could earn considerably more money; and in this employment I continued to labour diligently for several hours every day, and sometimes half the night.

“When I had a mind to relax from this occupation, and particularly if my finances were at a low ebb, I frequently resorted to the Blue Lion, in Gray’s Inn Lane, a house noted for selling fine ale, and crowded every night by a motley assemblage of visitors, among whom were many thieves, sharpers, and other desperate characters, with their doxies. I was introduced to this house (from which hundreds of young persons may date their ruin) by a fellow-clerk, who appeared to have a personal intimacy with most of these obnoxious persons; however, though I listened eagerly to their conversation, (part of which was then unintelligible to me,) and fancied them people of uncommon spirit, I was not yet sufficiently depraved to cultivate their acquaintance; but sat with a pipe in my mouth, enveloped in smoke, ruminating, like a philosopher, on the various characters who tread the great stage of life, and felt a sort of secret presentiment that I was myself born to undergo a more than common share of vicissitudes and disappointments.”

During his nightly resort to the Blue Lion he became acquainted with a young man named D——, who had been steward on board a king’s ship, but who had spent all his money, and had now resolved to go to Portsmouth, in the hope of procuring a situation similar to the one he had left. Vaux, naturally inconstant, determined on accompanying him; and, having converted most of their clothes into money, they set off on foot; but had not proceeded farther than Kingston when their cash became exhausted, and they owed a trifle to the mistress of the Eight Bells.

“In this dilemma,” says Vaux, “a sudden thought struck me. Calling for pen, ink, and paper, I told my companion I had a scheme in my head for raising a supply, but would not impart it until I had tried its success. I then drew up a sort of memorial to the following effect:—‘To the Ladies and Gentlemen of Kingston.—The writer hereof, a young man of respectable family, and good education, having, by a series of misfortunes, been reduced to the greatest distress, is now on his way to Portsmouth, in hopes of procuring a situation in the navy; but, being destitute of money for his present support, humbly solicits your charitable assistance towards enabling him to pursue his journey. To a noble mind, the pleasure of doing a good action is its own reward. The smallest donation will be gratefully received, and any lady or gentleman inclined to relieve the writer is earnestly requested to subscribe his or her name hereto.’—Having completed this production, I desired my friend to wait patiently for my return, and assured

him I doubted not of bringing speedy relief. I now set out on my expedition, and immediately waited on Mr. Mayor, who was a grocer; but in this first essay I was unsuccessful. His worship declared he never encouraged applications of this sort from strangers; and desired me to go about my business. I, however, took the liberty of subscribing his name to my memorial, by way of sanction, and gave his charity credit for a donation of five shillings. Young as I was at that time, I well knew that example, in matters of this kind, goes a great way; and that many persons, without a grain of Christian benevolence in their composition, will give liberally from motives of ostentation, when they see that their neighbours have already contributed, and that their own names and donations will also be made public. I experienced the truth of this notion, for I was successful in almost every application I afterwards made. Having visited a number of genteel houses, with various success, I was on the point of returning, to impart my good luck to my companion, when, coming to a very handsome mansion-house in the suburbs of the town, I thought I ought not to omit calling, and a person at that moment passing by, I inquired whose residence it was, and which was the entrance to the premises; for the house was situated in the midst of a spacious pleasure-ground, remote from the high road, and, it being quite dusk, I had not observed any avenue by which I could gain access to it. I was informed that it was the residence of Lady W——; that a little further on I should perceive a door in the brick wall, which extended along the road-side; and that if I entered at that door, and proceeded in a straight direction, I should arrive at the servants' hall; but my informer cautioned me to keep close to another wall on my left hand, which divided this avenue from the lawn in front of the mansion, because there was a very large and fierce dog at the upper end, but which, being chained up, could not reach me, if I followed the above directions. I thanked this obliging person, and immediately proceeded to the door described, which I entered, and walked cautiously, and not without some fear, by the wall-side, till I perceived, by the lights in the kitchen and out-offices, that I was near the premises.

“It was now very dark, and I was carefully exploring my way, my mind full of apprehensions at the thought of this terrible dog; when lo! at that instant, to my inexpressible consternation, the ferocious animal made a spring at me, and I gave myself up for dead. However, though he was certainly within a yard of me, he did me no mischief; but my alarm was so

great, that, without knowing how or where to fly for refuge, I ran precipitately from the spot; and, when I recovered myself from the fright, found myself in the pleasure-ground in front of the mansion-house. It appeared that I had, without knowing, escaped through a door in the wall, which was open on my left hand at the moment I was alarmed by the dog. I was now more at a loss than ever, for I knew of no way to get out of the pleasure-ground except by the aforesaid door, and fear of the dog prevented my attempting that passage. After wandering about for a few minutes, I approached the mansion, and, going up to one of the parlour windows, which were very large, and on a level with the terrace before the house, I applied my eye to the glass, and discovered, through an aperture in the inside shutters, a numerous and splendid party of ladies and gentlemen at dinner. Having considered a moment, I determined on a very bold step, as I saw no alternative but remaining all night in the open air, exposed to the inclemency of the weather. Taking advantage of a pause in the company's conversation, I tapped with my finger at the window, and immediately the whole party were struck with wonder. In the midst of their surprise I repeated my knock; and then, after several voices exclaiming 'Good God! there is certainly somebody at the window,' &c. a gentleman rose from the table, and, advancing towards me, opened first the shutters, and then the window itself, which might, in fact, be called a pair of folding-doors; and these being thrown back, I walked in with the most respectful air I could assume, and presented myself to the astonished company. Having bowed twice or thrice, and given time for their alarm to subside, I began to make my speech.

"Apologizing for my presumptuous intrusion, I stated in a concise manner the fright I had endured from the dog, my embarrassment at not being able to find means of egress from the pleasure-ground, and my having consequently taken the liberty of knocking at the window. I then presented my memorial, which was read in turn by most of the company, each of whom surveyed me with evident surprise. Having answered such queries as they thought proper to put to me, I was desired by the lady of the house to withdraw to the kitchen for a short time; and a servant was ordered to attend me thither. Here I had my story to repeat for the information of the domestics, who laughed heartily at the adventure of the dog, but afterwards seriously assured me that, had the animal not been chained, or had I approached within his reach, he would inevitably have torn me to pieces.

The parlour dinner being over, and the dishes brought out, I was desired to fall to; and, being really hungry, I wanted no pressing, but selected from the variety of good things on the table a very fine buttock of beef, on which substantial fare I made a sumptuous meal. There was no scarcity of good malt liquor, and Lady W—— very kindly sent me out a pint of red port, with a particular injunction (which, by-the-by, was unnecessary) that I should eat and drink heartily.

“At length I was summoned to attend the company in the parlour; and her ladyship then expressing her concern for my misfortunes, and her anxious hope that I should speedily find an end to them, presented me with half a guinea. The rest of the party also said many handsome things, and the majority of them contributed to my relief. In addition to these favours, one of the gentlemen at the particular request of Lady W——, took the trouble to write a letter in my behalf to the captain of a man-of-war, supposed to be then lying at Portsmouth, entreating him to give me an appointment under him. Her ladyship, after obliging me to take another glass of wine, and repeating her sorrow for my distress, advised me to lose no time in prosecuting my journey, ordered a servant to conduct me to the door at which I had first entered her premises, and I took a respectful leave of this truly benevolent party.

“Returning to the Eight Bells, I imparted my adventures to my friend, who was, of course, much pleased at my success; for I had realised between four and five pounds. I found this begging scheme so productive, that I was in no hurry to pursue the Portsmouth speculation; and, as we were both satisfied with our present quarters, it was agreed that we should continue a few days longer in Kingston, in which time I proposed to follow up my success by making a regular circuit among the inhabitants, and I, in fact, determined to levy similar contributions in every town which lay in our route.

“It is to be observed that this idea of raising money was perfectly original in me, for at that time I had never heard of such a practice, but have since discovered that it is a very common expedient, and is called by those persons who live by such impositions, ‘the *Letter Racket*.’

“The following day I again sallied forth and met with equal success, visiting not only the houses of private persons, but even the respectable shopkeepers, &c.; and I may here state, once for all, that in the course of

this as well as my subsequent speculations of the same nature, I met with various receptions according to the charitable or churlish dispositions of the people to whom I applied. Many pitied my case and cheerfully relieved me. Others expressed equal commiseration, but declined giving anything, either because ‘they never encouraged beggars,’ or ‘they had poor enough of their own to maintain.’ Some invited me into their parlours, treated me with excessive politeness, and obliged me to take refreshment at their own tables; and where there were any young ladies in the family, I was an object of particular solicitude, and the recital of my misfortunes drew many a sigh from their tender bosoms. Others desired me like the Mayor of Kingston to go about my business, and hinted that I ought to be sent to the house of correction as a vagrant. Sometimes the servants who admitted me refused to present my memorial, declaring that they had strict orders from their masters or mistresses never to trouble them on such an occasion. The donations I commonly received were from one shilling to five; sometimes, but rarely, I was presented with gold, particularly at the seats of the nobility and gentry; all which lying within a short distance of the road I travelled, I made a point of calling at; and for my information on this subject, I provided myself with a comprehensive ‘Book of Roads,’ in which those objects are correctly laid down. Some truly charitable persons, but whose means were limited, relieved me with sixpence, and of course I was bound to accept such a trifle with as much appearance of thankfulness as I would a larger sum; and frequently when I called at a farm-house by the road side, I have been compelled to take some cold meat or other eatables, which I afterwards bestowed upon the first more needy beggar I met on my way. It was my custom in general to travel on foot, making short stages, and putting up at a good inn in every town I entered, where I lived upon the best during my stay, and associated with London riders, and other respectable guests. When tired of walking. I availed myself of a passing stage-coach or return post-chaise; and my only equipage was a spare shirt, handkerchief, &c. which, with my ‘Book of Roads,’ I carried in a small bundle under my arm.”

On the evening of the second day, however, he was arrested and carried before the magistrates, charged as a rogue and vagabond. He referred the magistrates to one of his grandfather’s friends in London; and the inquiries there satisfying them, he was discharged out of custody on the second day of confinement, and hastened back to town, his companion having

proceeded to Portsmouth. After spending one dissipated evening in London, he set out next day to Portsmouth; and, notwithstanding the check he had received three days earlier, he stopped in Kingston, and levied contributions, in the usual way, on the charitable inhabitants, avoiding, of course, that part of the town where he had been before. This practice he continued on the road, and after the payment of his expenses he still had 15*l.* in his pocket. On his reaching Portsmouth, his fervour for the navy cooled on his finding that his friend D—— had procured a situation as a merchant's clerk, and he was, after some time, induced to enter into the service of an attorney. A short employment was quite sufficient to satisfy his industrious fit, and he soon quitted Portsmouth in disgust, and proceeded once more towards the great metropolis. There his good fortune threw before him an opportunity, which steadiness on his part only required to render most advantageous. Dining one day at the Saracen's Head, Snow Hill, he entered into conversation with a gentleman named Kennedy, a surgeon in the navy, who, pleased with his manner and address, procured for him an appointment as midshipman on board the *Astrea* frigate. Delighted with the prospect of at length entering the navy, he wrote to his grandfather, who immediately furnished him with 100*l.* to purchase an outfit. On the voyage he became weary of his position as a midshipman, and the captain being in want of a clerk, he tendered his services and was accepted. At the conclusion of a long cruise in the northern latitudes, the vessel made for England; and on their arrival in the Thames, Vaux proceeded to London. He there met with a dashing Cyprian, and unmindful of the future, he remained with her until all his money was spent; and then he found that his vessel had sailed, carrying with her his clothes, books, and all the little property of which he was possessed. Now, driven to the greatest distress, he had recourse to the gaming-table, where for a short time he contrived, by associating with professed gamblers, to procure a precarious existence. But the summer approaching and dupes becoming fewer, he obtained by application to Messrs. Dalton and Edwards, King's Bench Walk, a situation as clerk at one pound a week, with Mr. Dalton, a solicitor, of Bury St. Edmund's. "Upon the whole," says he, "this was one of the most agreeable employments I ever engaged in; and, had I prudently retained it for a few years, there is no doubt I should have met with the most liberal encouragement from my employer. But my natural inconstancy still prevailed; and I had been but a few weeks at Bury, before I grew tired of the

country, and thought of nothing but returning to London, with such spoil as I could obtain from the credulity of the tradesmen in the town. With this view I bespoke clothes, boots, linen, and other articles at various shops, informing the parties that I should expect credit till the expiration of my quarter, to which, on account of the respectable gentleman I served, they readily consented. As soon as any of these goods were brought home, I immediately packed them up in small portable parcels, which I sent up to London by the coach, consigned to a pawnbroker with whom I was on intimate terms; desiring him to receive and keep them safe until he saw me. I also coached off, in the same clandestine manner, such of my own apparel, &c. as I had in my trunk, in which, to prevent discovery, I deposited stones or bricks to preserve its gravity. By these means I had nothing to impede my sudden departure, when rendered necessary by the arrival of the expected quarter-day.

“I must here observe, to meet any surprise the reader might feel on the subject, that, as I had never at this time been connected with downright thieves, so I had never yet committed an actual theft, save the embezzlement of money at Liverpool; (which indeed the law has lately made a felonious taking;) though I therefore scrupled not at practising a fraud, I was not yet sufficiently depraved to commit a robbery. This will account for my not robbing the premises of Mr. Dalton, which, at a subsequent period of my life, would have been my primary object, as I had access to every part of the house, and have frequently viewed with longing eyes the servant cleaning a handsome service of plate in the pantry.

“I had now been about two months at Bury, and had no intention of absconding till the expiration of the third; when an accidental event induced me to hasten my departure. One afternoon Mr. Dalton had written several letters in the office, and the footman being elsewhere engaged, he requested me to drop them in the post-office in my way home. I accordingly brought them out in my hand, and happening inadvertently to cast my eye on the superscriptions, I perceived that one was addressed to Mr. Lyne, tailor, Cecil Street, Strand, London. Being curious to know what correspondence Mr. Dalton could have with a tailor, I opened this letter, and found the contents to the following effect:—‘Mr. Lyne,—By the waggon which goes from hence on Monday next, and arrives at the Blue Boar in Bishopsgate Street on Wednesday night, I shall send you a portmanteau corded and sealed, but not locked, containing two coats, sixteen waistcoats, fourteen

pair of breeches, and a suit of uniform of the City Light Horse. Most of these articles are nearly as good as new; but, as they have now become unfashionable, I desire you will dispose of them to the best advantage, on my account, and send me down by the same conveyance two suits made in the present taste,' &c.

"It immediately struck me, that, if I took measures accordingly, I might arrive in town time enough to intercept and obtain this trunk from the inn; for which purpose I put this letter in my pocket, and the others in the post-office. The next day, happening to go into Mr. Dalton's kitchen, I there saw the portmanteau corded up, and directed; and, on questioning the servant in a careless manner about it, he informed me that he was going to carry it to the inn, the following evening, in readiness for the departure of the waggon. The same afternoon it happened (which was a most fortunate circumstance for me) that Mr. Dalton again begged of me to put some letters in the post-office, which he had not done above twice or thrice since I came into his service. Looking at these letters, I saw, to my surprise, another addressed to Mr. Lyne as before, which, eagerly opening, I found was to mention something Mr. Dalton said he had forgot in his letter of the preceding day. I immediately destroyed this second letter, which, had it come to hand, might have frustrated my design.

"I now prepared matters for eloping, and sent off the remainder of my effects by the coach, as before; but my good fortune produced another windfall, of which I had no expectation. The day before my intended departure, I was walking in the Market-place with a young man, who was clerk to another attorney in the town; and, the conversation turning upon watches, my companion observed that, if I wished to purchase one, he would introduce me to a maker of his acquaintance, who would use me well on his account. I took him at his word, and begged he would immediately do so. We were then within a few doors of the shop, into which we entered; and I perceived over the window in large characters, 'Lumley and Gudgeon, watchmakers.' I laughed inwardly at the singularity of the latter name, which I considered ominous of my success in the imposition I meant to put upon him. After a short preliminary conversation, my acquaintance, having business to do, took his leave, and Mr. Gudgeon himself proceeded to show me several watches. I informed him that I wished to have a good one, but my circumstances would not allow me to go to a high price. Mr. Gudgeon assured me it was better to have a good one at once, and recommended me

to a very handsome gilt watch, capped and jewelled, and his own make, which he said he could warrant to perform well, and for which he asked me eight guineas. I replied that, as my weekly salary from Mr. Dalton was but one pound, I could not afford to give so much, and began to examine others of a cheaper kind, but still letting him see that I had a strong inclination for the one he had recommended. This induced him to repeat his praises of the latter, and to press me with greater energy to fix upon it. I at length (with a show of much reluctance) suffered myself to be persuaded; but I begged leave to observe, that as I was influenced in everything by the advice of my good master, Mr. Dalton, I would not venture to make so extensive a purchase without his approbation: that, if he would therefore entrust me with the watch, I would consult Mr. Dalton, and give him (Mr. Gudgeon) a decisive answer the next morning: this he declared himself willing to do, on which I took both the watch and my leave together, and returned home.

“The next morning I attended the office as usual, but of course took no notice to Mr. Dalton of the affair in hand. During the space of time I allotted myself for dinner, I again called on Mr. Gudgeon, and told him that I would keep the watch, provided he should receive the payment by instalments, as I could not afford to pay the whole price at once. I therefore proposed to give him the ensuing Saturday one or two guineas, as I should find most convenient, and to pay him half-a-guinea a week afterwards, until the whole was liquidated. To this he readily agreed, and, having fitted a key to the watch, he begged leave to show me some chains and seals. Of the former he had none but gilt ones: I selected one of the neatest, and a handsome gold seal. I then desired to have a bill of parcels of the whole, observing that, whenever I paid a sum upon account, Mr. Gudgeon could make a memorandum of it at the bottom by way of receipt. Having obtained this, I departed, promising to be punctual in paying my first instalment on the day appointed. This took place on Tuesday, the portmanteau being now on its way to London; and the same evening I quitted my lodgings privately, leaving nothing behind but a trunk, containing brick-bats and stones, and walked by moonlight to a village four miles distant, through which the stage-coach was to pass next morning at seven o’clock. I procured some supper at a decent public-house, and retired to rest, desiring to be called in time for the coach. At the expected hour the stage made its appearance, in which I seated myself, and about eight the same evening arrived at the Blue

Boar, just two hours after the waggon, which I perceived standing in the yard.”

He received the portmanteau with little difficulty, and having disposed of its contents in various ways, lived upon the produce for five or six weeks, at the termination of which he thought it right to look out for a new situation. He found one in the office of Mr. Preston, solicitor; and with the imprudence of dishonest persons, entered upon it, though the office was next door to Dalton and Edwards, who had sent him down to Bury St. Edmund's. He was soon recognised by a clerk of Messrs. Dalton and Edwards, and, being called into the parlour by Mr. Preston one morning, he was surprised at seeing his late master, who snatched the watch out of his fob, and promised to restore it to the owner. Vaux was then taken into custody; but a friend of his grandfather having come forward, and indemnified Mr. Dalton for his loss, he was suffered to go at large, on a promise that he would quit London, where he was likely to come to disgrace and infamy, and endeavour to obtain employment in the country.

The country had no charms for him, however, and he set about procuring a situation in some retail shop in town, for the sole purpose of embezzling the receipts. In consequence of an advertisement in a newspaper, he applied to a Mr. Gifford, the keeper of a masquerade warehouse, and there he obtained employment upon a forged representation of his good character. He did not fail at this place in collecting a good booty, and having at length, by means of stealing goods from the shop, and embezzling money which he had received on his master's account, secured about sixty pounds' worth of property, he suddenly absconded and commenced a round of dissipation and gaiety. He had been at large scarcely a fortnight, however, before he was taken into custody at the instance of his late master, and upon his prosecution was committed to the quarter sessions, but there his good fortune aided him, and in consequence of some informality in the proceedings, he was acquitted.

Upon a second appearance at the same bar he was not quite so successful; and it appears that having been detected in the act of picking pockets with a companion named Bromley, they were both secured, and having been convicted, they were on the 23rd September, 1800, sentenced to seven years' transportation. Vaux was sent to Port Jackson in the following May, and there he was assigned to a Mr. Baker, a storekeeper at Hawkesbury, about twenty-six miles from Paramatta, who appointed him

his clerk. In consequence of his good conduct during the ensuing three years, he was promoted to a place in the secretary's office, in Sydney, but there, conspiring with his fellows, in the commission of various frauds, he was discovered and sentenced to be worked in a road-gang. During two months he continued in Sydney in this degraded condition, but then he was drafted to Castle Hill, a plantation twenty-four miles in the interior, and there, after about ten months' service, he was appointed clerk to the superintendant of the works. Having subsequently served the office of clerk to the magistrates at Paramatta, he at length, on the 10th February, 1807, returned to England. There he found a woeful change had taken place, his father and his grandmother being dead; and all served to remind him of the sinful course of life he had led, and of his fallen condition. All his resolutions against returning to a dishonest mode of living were however unavailing, and at length he became a professed and a professional thief. In order the better to carry on his new trade, he associated himself with some fellows of dissolute habits, but at length meeting with his old friend Bromley, he resolved to quit his new companions and to pursue his avocation with one accomplice only.

In reference to his future proceedings he says, "Having withdrawn myself from my late companions, I now became very circumspect in my proceedings; and as Bromley had neither the appearance nor the manners of a gentleman, I only made use of him occasionally in the course of my practice, keeping him in the back-ground to receive and carry any articles which I purloined, and never suffering him to converse with or approach me, except in private. I generally spent the mornings, that is from about one to five o'clock P.M. (which are the fashionable hours for shopping) in visiting the shops of jewellers, watchmakers, pawnbrokers, &c. Having conceived hopes that this species of robbery would turn to a good account, and depending upon my own address and appearance, I determined to make a circuit of the town, and not to omit a single shop in either of those branches; and this scheme I actually executed so fully, that I believe I did not leave ten shops untried in all London, for I made a point of commencing every day in a certain street, and going regularly through it on both sides of the way. My practice was to enter a shop and request to look at gold seals, chains, brooches, rings, or any other small articles of value; and, while examining them, and looking the shopkeeper in the face, I contrived by sleight of hand to conceal two or three (sometimes more) in the sleeve of

my coat, which was purposely made wide. On some occasions I purchased a trifling article to save appearances; at other times I took a card of the shop, promising to call again; and, as I generally saw the remaining goods returned to the window, or place from whence they were taken, before I left the shop, there was hardly a probability of my being suspected, or of the property being missed. In the course of my career I was never once detected in the fact, though, on two or three occasions so much suspicion arose, that I was obliged to exert all my effrontery and to use very high language, in order, as the cant phrase is, to *bounce* the tradesman *out of it*; and my fashionable appearance, and affected anger at his insinuations, had always the effect of convincing him that he was mistaken, and inducing him to apologise for the affront put upon me. I have even sometimes carried away the spoil notwithstanding what had passed; and I have often gone a second and third time to the same shop, with as good success as at the first. To prevent accidents, however, I made it a rule never to enter a second shop with any stolen property about me; for, as soon as I quitted the first, I privately conveyed my booty to Bromley, who was attending my motions in the street, and herein I found him eminently useful. By this course of depredation I acquired on the average about ten pounds a week, though I sometimes neglected shopping for several days together. This was not, indeed, the only pursuit I followed, but was my principal morning's occupation; though, if a favourable opportunity offered of getting a guinea by any other means, I never let it slip. In the evenings I generally attended one of the theatres, where I mixed with the best company in the boxes, and, at the same time that I enjoyed the amusements of the place, I frequently conveyed pocket-books, snuff-boxes, and other portable articles, from the pockets of their proprietors into my own. Here I found the inconvenience of wanting a suitable companion, who might have received the articles I made prize of, in the same manner as Bromley did in the streets; but though I knew many of the light-fingered gentry, whose appearance fitted them for my company, yet, their faces being well known to the police-officers, who attended the theatres, they would not have been suffered to enter the house: and herein I possessed an advantage which many of these gentry envied me; for being just arrived in England, and a new face upon the town, I carried on my depredations under the very noses of the officers without suspicion. Having, therefore, at first no associate, I was obliged to quit the theatre, and conceal my first booty in some private spot, before I could make (with

prudence) a second attempt. Upon the whole, I was very successful in this pursuit also, at least as to the *number* of articles I filched; and had their *value* been reasonably proportionate to what I expected, I need not long have followed so hazardous an employment. I have very frequently obtained nine or ten pocket-books, besides other articles in an evening; and, these being taken from gentlemen evidently of fortune and fashion, I had reason to expect I should some time meet with a handsome sum in bank-notes: but fortune did not favour me therein, for, during near twelve months' almost nightly attendance at one or other of the public places, I never found more than twenty pounds in a book, and that only on one occasion. I several times got five, ten, or eleven pounds, but commonly one, two, or three pounds; and most generally four books out of five contained nothing but letters, memorandums, and other papers useless to me. At the same time I knew frequent instances of the common street pickpockets getting a booty of fifty, one hundred, and sometimes three or four hundred pounds. However, I never failed to pay the expenses of the night; and if I gained nothing, I enjoyed at least a fund of amusement, which was to me the highest gratification. It sometimes happened that the articles I got (particularly pocket-books) were advertised by the losers, within a few days, as "Lost," and a reward offered for their restoration: where this reward was worth notice, I frequently restored the property by means of a third person whom I could confide in, and whom I previously tutored for the purpose.

"In the mean time, the manner in which I spent my life, abstracted from the disgraceful means by which I supported myself, was (as I have formerly hinted) perfectly regular and inoffensive. Though I lived by depredation, yet I did not, like the abandoned class of common thieves, waste my money and leisure time in profligate debauchery, but applied myself to the perusal of instructive and amusing books, my stock of which I daily increased. I occupied genteel apartments in a creditable house, the landlord of which understood me to hold a situation under government; and every part of my conduct at home tended to confirm his opinion of my respectability. I was scrupulously exact in paying my rent, as well as the different tradesmen in the neighbourhood with whom I had occasion to deal; nor did I ever suffer any person of loose character to visit me, but studiously concealed from those of my acquaintance my place of residence. I was sometimes, indeed, so imprudent as to resort, for company's sake, to some of those public-

houses frequented by thieves and other dissolute characters, the landlord of which is himself commonly an experienced thief, or returned transport. When I had a mind to relax a little, or grew tired of domestication, I disguised my appearance as much as I could, and repaired to a house of this description, sometimes taking my Dulcinea with me, whom I shall shortly introduce to the reader, and whose person and dress I was not a little proud of exhibiting in public. This fondness for flash-houses, as they are termed, is the rock on which most persons who live by depredation unhappily split, and will be found in the sequel to have brought me to my present deplorable condition; for the police-officers, or traps, are in the daily habit of visiting these houses, where they drink with the thieves, &c., in the most familiar manner; and, I believe, often obtain secret information by various means from some parties respecting the names, characters, pursuits, &c., of others. By this imprudent conduct I also became personally known to many of the officers, which was productive of great danger to me in the exercise of my vocation; whereas, had I avoided such houses, I might have remained unknown and unsuspected by them for a series of years.”

The Dulcinea alluded to above was an unhappy girl of the town, whom he took into keeping, and afterwards married. This poor creature behaved to him in the most exemplary manner, and proved by her conduct that she was worthy of a better fate.

Going one day to a public meeting at the Mermaid Tavern, Hackney, he picked a gentleman’s pocket of a silver snuff-box, which he handed to the landlady. The box was missed by the owner, and on Vaux claiming it, he was taken into custody; but such is the glorious uncertainty of the law, that he was acquitted on his trial, contrary to his own expectation.

“The next adventure,” says Vaux, “I shall have occasion to relate, more fully confirms the justice of the remark, that the connexions formed by persons during temporary confinement in a gaol commonly lead to further acts of wickedness, and frequently entail on the parties a more severe





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punishment than that which they have just escaped. This was exactly my unhappy case, and I now come to the most fatal era of my eventful life.

“In the same ward with myself were confined two brothers, very genteel young men, who had been recently cast for death for privately stealing some valuable rings, &c., from the shop of a jeweller in Leadenhall Street. As a conformity of character, or similarity of pursuits, is the strongest source of friendship, so these persons and myself had become very intimately acquainted. In the course of our frequent conversations on the subject with which we were all three alike most conversant, the brothers informed me that they had, like myself, made a successful tour of the jewellers’ shops in London: and on our comparing notes as to the particular persons we had robbed, or attempted to rob, they pointed out about half-a-

dozen shops, which, it appeared, I had omitted to visit, arising either from their making no display of their goods, or from their being situated in private streets, where I had no idea of finding any such trades. Though at that time neither they nor myself entertained much hope of my acquittal, it was agreed that, in the event of my being so fortunate as to recover my freedom, I should pay my respects to the several tradesmen I had so overlooked; and I promised, in case I was successful, to make them a pecuniary acknowledgment in return for their information. At the moment of my joyful departure from Newgate, they accordingly furnished me with a list of the shops in question, and gave me full instructions and useful hints for my guidance therein. They particularly pointed out a Mr. Bilger, a goldsmith and jeweller of the first eminence in Piccadilly. This gentleman, they assured me, I should find, in the technical phrase, a *good flat*. They advised me to bespeak a diamond ring, or similar article, and to request a sight of some loose diamonds, for the purpose of selecting such stones as I might wish to have set, informing me that he was generally provided with a large quantity, which he would not fail to show me, and that I might with ease purloin a good number of them. A day or two after my release I made the prescribed experiments, and was fortunate enough to succeed pretty well at nearly every shop; but I reserved Mr. Bilger for my final essay, as he was the principal object of consideration, and from whom I expected to obtain the most valuable booty. On the day se'nnight after my trial at the Old Bailey, I prepared in due form to pay him a visit. About five o'clock in the evening I entered his shop, dressed in the most elegant style, having a valuable gold watch and appendages, a gold eye-glass, &c. I had posted my old friend and aid-de-camp, Bromley, at the door, in order to be in readiness to act as circumstances might require, and particularly to watch the motions of Mr. Bilger and his assistants on my quitting the premises. On my entrance Mrs. Bilger issued from a back parlour behind the shop, and, politely inquiring my business, I told her I wished to see Mr. Bilger; she immediately rang a bell, which brought down her husband from the upper apartments. He saluted me with a low bow, and handed me a seat. I was glad to find no other person in the shop, Mrs. Bilger having again retired. I now assumed the air of a Bond Street loungeur, and informed Mr. Bilger that I had been recommended by a gentleman of my acquaintance to deal with him, having occasion for a very elegant diamond ring, and requested to see his assortment. Mr. Bilger expressed his concern that he happened not to

have a single article of that description by him, but, if I could without inconvenience call again, he would undertake in one hour to procure me a selection from his working jeweller, to whom he would immediately despatch a messenger. I affected to feel somewhat disappointed, but looking at my watch, after a moment's reflection, I said, 'Well, Mr. Bilger, I have an appointment at the Cannon Coffee-house, which requires my attendance, and if you will without fail have the articles ready, I may probably look in a little after six.' This he promised faithfully to do, declaring how much he felt obliged by my condescension; and I sauntered out of the shop, Mr. Bilger attending me in the most obsequious manner to the outer door. After walking a short distance, Bromley tapped me on the shoulder, and inquired what conduct I meant next to pursue; for he had viewed my proceedings through a glass-door in the shop, and saw that I had not executed my grand design. I related to Bromley the result of my conversation with Mr. Bilger, and added that I meant to retire to the nearest public-house, where we could enjoy a pipe and a glass of negus until the expiration of the hour, to which I had limited myself. We accordingly regaled ourselves at a very snug house, nearly opposite Bilger's, until about half-past six, when I again repaired to the scene of action, leaving Bromley, as at first, posted at the door. Mr. Bilger received me with increased respect, and, producing a small card box, expressed his sorrow that his workmen had only been enabled to send three rings for my inspection; but that, if they were not to my taste, he should feel honoured and obliged in taking my directions for having one made, and flattered himself he should execute the order to my satisfaction. I proceeded to examine the rings he produced, one of which was marked sixteen guineas, another nine guineas, and the third six guineas. They were all extremely beautiful; but I affected to consider them as too paltry, telling Mr. Bilger that I wanted one to present to a lady, and that I wished to have a ring of greater value than the whole three put together, as a few guineas would not be an object in the price. Mr. Bilger's son, who was also his partner, now joined us, and was desired by his father to sketch a draught in pencil of some fancy rings, agreeable to the directions I should give him. The three rings I had viewed were now removed to the end of the counter next the window, and I informed the young man that I wished to have something of a cluster, a large brilliant in the centre, surrounded with smaller ones; but repeated my desire that no expense might be spared to render the article strictly elegant, and worthy a lady's acceptance. The son

having sketched a design of several rings on a card, I examined them with attention, and appeared in doubt which to prefer, but desired to see some loose diamonds, in order to form a better idea of the size, &c. of each ring described in the drawing. Mr. Bilger, however, declared he had not any by him. It is probable he spoke the truth: or he might have lost such numbers by showing them, as to deter him from exhibiting them in future. Without having made up my mind on the subject, I now requested to see some of his most fashionable brooches or shirt-pins. Mr. Bilger produced a show-glass, containing a variety of articles in pearl, but he had nothing of the kind in diamonds. I took up two or three of the brooches, and immediately *sunk* a very handsome one, marked three guineas, in my coat sleeve. I next purloined a beautiful clasp for a lady's waist, consisting of stones set in gold, which had the brilliancy and appearance of real diamonds, but marked only four guineas. I should probably have gone still deeper, but at this moment a lady, coming in, desired to look at some ear-rings, and the younger Mr. Bilger immediately quitted his father to attend upon her at the other end of the shop. It struck me that now was my time for a decisive stroke. The card containing the diamond rings, procured from the maker, lying very near the show-glass I was viewing, and many small articles irregularly placed round about them, the candles not throwing much light upon that particular spot, and Mr. Bilger's attention being divided between myself and the lady, to whom he frequently addressed himself, I suddenly took the three rings from the card, and committed them to my sleeve to join the brooch and lady's clasp; but had them so situated that I could in a moment have released and replaced them on the counter, had an inquiry been made for them. I then looked at my watch, and, observing that I was going to the theatre, told Mr. Bilger that I would not trouble him any further, as the articles before me were too tawdry and common to please me, but that I would put the card of draughts in my pocket-book; and, if I did not meet with a ring of the kind I wanted before Monday or Tuesday, I would certainly call again and give him final directions. I was then drawing on my gloves, being anxious to quit the shop while I was well; but Mr. Bilger, who seemed delighted with the prospect of my custom, begged so earnestly that I would allow him to show me his brilliant assortment of gold watches that I could not refuse to gratify him, though I certainly incurred a great risk by my compliance. I therefore answered, 'Really, Mr. Bilger, I am loath to give you that unnecessary trouble, as I have, you may perceive, a

very good watch already, in point of performance, though it cost me a mere trifle—only twenty guineas; but it answers my purpose as well as a more valuable one. However, as I may probably, before long, want an elegant watch for a lady, I don't care if I just run my eye over them.' Mr. Bilger replied that the greater part of his stock were fancy watches, adapted for ladies; and he defied all London united to exhibit a finer collection. He then took from his window a show-glass, containing about thirty most beautiful watches, some ornamented with pearls or diamonds, others elegantly enamelled, or chased in the most delicate style. They were of various prices, from thirty to one hundred guineas; and the old gentleman rubbing his hands with an air of rapture, exclaimed, 'There they are, sir; a most fashionable assortment of goods; allow me to recommend them, they're all a-going, sir—all a-going.' I smiled inwardly at the latter part of this speech, and thought to myself, 'I wish they were going, with all my heart, along with the diamond rings.' I answered they were certainly very handsome, but I would defer a minute inspection of them till my next visit, when I should have more time to spare. These watches were ranged in exact order, in five parallel lines; and between each watch was placed a gold seal or other trinket appertaining to a lady's watch. It was no easy matter, therefore, to take away a single article without its being instantly missed, unless the economy of the whole had been previously deranged. I contrived, however, to displace a few of the trinkets, on pretence of admiring them, and ventured to secrete one very rich gold seal, marked six guineas. I then declared I could stay no longer, as I had appointed to meet a party at the theatre; but that I would certainly call again in a few days, and lay out some money in return for the trouble I had given. Mr. Bilger expressed his thanks in the most respectful terms, and waited upon me to the door, where he took leave of me with a very low *congé, à la mode de France*, of which country he was a native. I now put the best foot foremost, and having gained a remote street, turned my head, and perceived Bromley at my heels, who seized my hand, congratulating me on my success, and complimenting me on the address I had shown in this exploit; for he had witnessed all that passed, and knew that I had succeeded in my object, by the manner in which I quitted the shop. He informed me that Mr. Bilger had returned to his counter, and, without attending to the arrangement of the articles thereon, had joined his son, who was still waiting upon the lady, and that he, Bromley, had finally left them both engaged with her."

Such was his rapacity, that he renewed his visit to Mr. Bilger's shop; but the reception he met satisfied him that he was suspected. He, however, left an order for a splendid ring; and, while the jeweller's son, as Vaux thought, was taking down his directions, he was only writing a description of his person, and a handbill in a few days was widely circulated among the pawnbrokers, peace-officers, &c. A day or two after Vaux called at Turner's—a pawnbroker, in Brydges Street, Covent Garden—to redeem some article he had pledged, when he saw such manœuvres in the shop as induced him to make a precipitate retreat, and go into concealment.

At length, "necessity," as he says himself, forced him out; and, the first night, he stole, from a shop in Ludgate Street, property to the amount of four or five pounds, with which he was so much pleased that he returned for his wife, and took her out to walk. Contrary to her earnest remonstrance, they went to a flash-house, near Clare Market, where the landlord betrayed him into the hands of justice, and he was hurried off to the watch-house. Next day he underwent an examination at Bow Street, and was remanded. During the interval between his first and second appearance he had completely metamorphosed his person by cutting his hair and whiskers, and putting on a mean suit of clothes. But all would not do; he was recognised through his disguise, and fully committed. His trial came on at the Old Bailey, February the 15th, 1809, and, the facts being sworn to, he was found guilty—death. His sentence was afterwards commuted to transportation for life, preparatory to which he was conveyed on board the Retribution hulk at Woolwich.

"I had now," says Vaux, "a new scene of misery to contemplate; and, of all the shocking scenes I had ever beheld, this was the most distressing. There were confined in this floating dungeon nearly six hundred men, most of them double-ironed, and the reader may conceive the horrible effects arising from the continual rattling of chains, the filth and vermin naturally produced by such a crowd of miserable inhabitants, the oaths and execrations constantly heard among them; and, above all, from the shocking necessity of associating and communicating more or less with so depraved a set of beings. On arriving on board, we were all immediately stripped, and washed in large tubs of water; then, after putting on each a suit of coarse slop clothing, we were ironed, and sent below, our own clothes being taken from us, and detained till we could sell or otherwise dispose of them, as no person is exempted from the obligation to wear the ship-dress. On

descending the hatchway, no conception can be formed of the scene which presented itself. I shall not attempt to describe it; but nothing short of a descent to the infernal regions can be at all worthy of a comparison with it. I soon met with many of my old Botany Bay acquaintances, who were all eager to offer me their friendship and services,—that is, with a view to rob me of what little I had; for in this place there is no other motive or subject for ingenuity. All former friendships or connexions are dissolved, and a man here will rob his best benefactor, or even messmate, of an article worth one halfpenny. Every morning, at seven o'clock, all the convicts capable of work, or, in fact, all who are capable of getting into the boats, are taken ashore to the Warren, in which the Royal Arsenal and other public buildings are situated, and are there employed at various kinds of labour, some of them very fatiguing; and, while so employed, each gang of sixteen or twenty men is watched and directed by a fellow called a guard. These guards are most commonly of the lowest class of human beings; wretches devoid of all feeling; ignorant in the extreme; brutal by nature, and rendered tyrannical and cruel by the consciousness of the power they possess: no others, but such as I have described, would hold the situation, their wages being not more than a day-labourer would earn in London. They invariably carry a large and ponderous stick, with which, without the smallest provocation, they will fell an unfortunate convict to the ground, and frequently repeat their blows long after the poor sufferer is insensible. At noon the working party return on board to dinner, and at one again go on shore, where they labour till near sun-set. On returning on board in the evening, all hands are mustered by a roll, and the whole being turned down below, the hatches are put over them, and secured for the night. As to the food, the stipulated ration is very scanty, but of even part of that they are defrauded. Their provisions, being supplied by contractors, and not by government, are of the worst kind, such as would not be considered eatable or wholesome elsewhere; and both the weight and measure are always deficient. The allowance of bread is said to be about twenty ounces per day. Three days in the week they have about four ounces of cheese for dinner, and the other four days a pound of beef. The breakfast is invariably boiled barley, of the coarsest kind imaginable; and of this the pigs of the hulk come in for a third part, because it is so nauseous that nothing but downright hunger will enable a man to eat it. For supper, they have, on banyan days, burgoo, of as good a quality as the barley, and which is

similarly disposed of; and on meat days, the water in which the beef was boiled is thickened with barley, and forms a mess called 'smiggins,' of a more detestable nature than either of the two former! The reader may conceive that I do not exaggerate when I state that among the convicts the common price of these several eatables is,—for a day's allowance of beef, one halfpenny;—ditto, of cheese, one halfpenny;—ditto, of bread, three-halfpence; but the cheese is most commonly so bad that they throw it away. It is manufactured, I believe, of skimmed milk, for this particular contract. The beef generally consists of old bulls or cows who have died of age or famine; the least trace of fat is considered a phenomenon, and it is far inferior upon the whole to good horse-flesh. I once saw the prisoners throw the whole day's supply overboard the moment it was hoisted out of the boat, and for this offence they were severely flogged. The friends of these unhappy persons are not allowed to come on board, but must remain alongside during their visit; the prisoners are, it is true, suffered to go into their boat, but a guard is placed within hearing of their conversation; and if a friend or parent has come one hundred miles, they are not allowed above ten minutes' interview: so that, instead of consolation, the visit only excites regret at the parties being so suddenly torn asunder. All letters, too, written by prisoners, must be delivered unsealed to the chief mate for his inspection, before they are sent ashore; and such as he thinks obnoxious are of course suppressed. In like manner, all letters received from the post-office are opened and scrutinised. If I were to attempt a full description of the miseries endured in these ships, I could fill a volume; but I shall sum up all by stating that besides robbery from each other, which is as common as cursing and swearing, I witnessed among the prisoners themselves, during the twelvemonth I remained with them, one deliberate murder, for which the perpetrator was executed at Maidstone, and one suicide; and that unnatural crimes are openly committed."

From the misery of the hulks he was removed on the 15th of June 1810, for the second time, to Botany Bay. His wife, who had all along manifested the utmost attention, was prevented by a succession of unfortunate circumstances from seeing him previous to his departure; nor does it appear that he knew what become of her afterwards. On the 16th of the following December, the transport arrived at Sydney Cove, where Vaux found that the report of his exploits in London had preceded him. He endeavoured to make interest with the governor, in the hope of being employed as a clerk; but this

being his second visit, he was listened to with distrust, and was sent up the country to a settler, who used him with great barbarity. To escape from this tyranny Vaux feigned himself sick, and thus procured his removal to the hospital, from which he was discharged in a month, and appointed overseer to a town gang. He now resolved to lead a correct life, and establish, if possible, a character for himself, seeing, as he says, the necessity of good conduct, from the consequences that invariably attend on an improper one. If we believe him, he adhered firmly to his vows of rectitude; but his notorious character operated against him, and he fell a victim to prejudice and the depravity of a youth, who was a veteran in iniquity. This young villain's name was Edwards. He was servant to Mr. Bent the judge-advocate, from whom he purloined bills and money. Vaux, suspecting his dishonesty, warned him of his danger; but the artful thief accounted for his being so flush in money by the presents he was in the habit of receiving from his master's visitors.

One evening he came running into Vaux's lodgings, and requested of him to keep some articles and parcels which he put into his hand. Vaux at first refused, but was ultimately prevailed on to keep them for a few minutes. Edwards had scarcely departed when he thought he did wrong, and acquainted his landlord with the transaction. That person desired him to go immediately and deliver the property up to the judge-advocate in a public manner, as the only way left him to escape being implicated with Edwards, and with this advice Vaux resolved to comply, but having stopped first to smoke a pipe, before he had finished it, two officers entered and apprehended him. His conduct was open, and his landlord deposed in his favour; but Edwards accused him, in revenge for giving up the property, of being an accomplice, and he was finally banished to the Coal River, where he continued doing all kind of work for two years, after which he was permitted to return to Sydney, where he was once more placed in the town-gang.

Again he renewed his vows of rectitude, but was unable to obtain any station less degrading than the one in which he was placed. The picture before him was disheartening in the extreme—an exile for life—and compelled to labour at the basest and lowest employment of mankind. A British sailor took compassion on him and offered, in 1814, to conceal him in his vessel, until she should sail, and he embraced the generous proposal; but after lying close and undiscovered for four days, some one on board

gave information, and the unfortunate wretch was dragged ashore, punished with fifty lashes, and sentenced to transportation to the Coal River for one year.

“In a few days,” says he in his Memoirs, “I was accordingly embarked with eleven other prisoners, and a second time landed at Newcastle, from whence I had been absent nearly twelve months. On my arrival, it happened that the storekeeper of that settlement was in want of a clerk, and he applying to the commandant for me, I was appointed to that situation, in which I still continue; and having scrupulously adhered to my former vows of rectitude, and used every exertion to render myself serviceable to my employer, and to merit his good opinion as well as that of the commandant. I have had the satisfaction to succeed in these objects; and I am not without hope that, when I am permitted to quit my present service and return to Sydney, my good conduct will be rewarded with a more desirable situation. I have now been upwards of seven years a prisoner, and, knowing the hopeless sentence under which I labour, I shall, I trust, studiously avoid in future every act which may subject me to the censure of my superiors, or entail upon me a repetition of those sufferings I have already too severely experienced. I have thus described (perhaps too minutely for the reader’s patience) the various vicissitudes of my past life. Whether the future will be so far diversified as to afford matter worthy of being committed to paper, either to amuse a vacant hour, or to serve as a beacon which may warn others to avoid the rocks on which I have unhappily split, is only known to the great Disposer of events.”

The “Memoirs written by himself,” from which we have extracted the most interesting passages, here terminate.

We have been the more willing to give the adventures of this notorious villain, as he gives them,—although we confess that we are of opinion that there is some exaggeration in what he states—because, however great may be the depravity, of which he admits he was guilty, his punishments and his miseries convey a moral, most forcibly depicting the danger of such a line of conduct as he adopted. His memoirs were written by himself in the year 1816, and were published in London in about three years afterwards. Of his subsequent career we know little, but we learn by recent accounts received from Sydney, that this hoary old sinner, at the age of fifty-seven, has been convicted and sentenced to an imprisonment of two years’ duration, upon a charge of indecently assaulting a girl of tender age. Whatever may have

been his course of life in later years, however frightful may have been his career of sin in his younger days, we hold that this new offence, of which he has been found guilty, is the crowning crime of the whole; and we regret that the human heart should have arrived at such a degree of profligacy as to admit the guilt of youth, and to be unable to withstand its temptation, in old age.

JOHN WHITMORE, *alias* OLD DASH.

EXECUTED FOR A RAPE.

THE summary punishment of a ravisher, by a conscientious Emperor of the Turks, in days of old, if now, perchance, inflicted, might more tend to check the inordinate, unlawful lust of men, than all the public executions of such destroyers of the peace of females.

It is said that Mahmoud, Sultan of Damascus, one night while he was going to bed, was addressed by a poor villager, who complained that a young Turk of distinction had broken into his apartment, and forced him to abandon his wife and family to his abuses. The good sultan charged that, if the Turk returned, he should immediately give him notice of it. Three days after the poor man came again with the same complaint. Mahmoud took a few attendants with him, and, being arrived at the complainant's, commanded the lights to be extinguished, and rushing in, cut the ravisher to pieces. He then ordered a light, to see whom he had killed, and being satisfied, he fell on his knees and returned God thanks; after which he ate heartily of the poor man's bread, and gave him a purse of gold. Being asked the reason of this extraordinary behaviour, he replied, "I concluded this ravisher was one who might fancy himself entitled to my protection, and consequently might be no other than my son; therefore, lest the tenderness of nature should enervate the arm of justice, I resolved to give it scope in the dark. But, when I saw that it was only an officer of my guards, I joyfully returned God thanks. Then I asked the injured man for food to satisfy my hunger, having had neither sleep nor sustenance from the moment I heard the accusation till I had thus punished the author of the wrong, and showed myself worthy of my people's obedience."

Upon the same principle as that acted upon by the worthy Turkish sultan, the hut of the meanest peasant is, by the law of England, as sacred as the most gorgeous palace, and the chastity of his wife or daughter should be held inviolate. The instances of disobedience to the laws in this respect are but too frequent, and in no case have circumstances of greater atrocity appeared than in that which we shall now detail.

John Whitmore was capitally indicted for a rape on the person of Mary, the wife of Thomas Brown, on the 24th of October, 1810, on the Common between Hayes and West Bedford. The prisoner was a labourer in the powder-mills at Harlington Common; and the prosecutrix, who lived at Hayes, having one of her sons by a former husband living as servant with Mr. Potts, a farmer, at West Bedford, had gone thither about twelve o'clock with some clean linen for him. She stopped at a public-house in the neighbourhood whilst he changed his linen, and there saw the prisoner, who, after asking her several questions, told her she had come much the longest way about, on her way from Hayes, and offered to show her a much shorter cut over the heath on her return. The prosecutrix thanked him, and accepted his offer. He accompanied her as if for that purpose, decoyed her two miles out of her way to an unfrequented part of the heath, amongst some bushes, under pretence of looking after a stray horse, and there brutally violated her person.

The poor woman, who was forty-seven years of age, as soon as she could, ran away from him, over the heath, and again lost her way; by accident she met a gentleman, who put her in the right road, and she reached her home about eight o'clock at night. She was afraid to tell her husband what had occurred till the following Sunday.

The husband next day set out with the constable in search of the prisoner, from the description given by his wife, and on Tuesday traced him to a public-house at Twickenham, where he was known by the familiar appellation of "Old Dasher;" and there, after a stout resistance, he was taken into custody. The facts were, on his trial, which took place at the Old Bailey, in October 1810, clearly established by the poor woman, and the Common Serjeant having summed up the evidence, the prisoner was convicted and received sentence of death, in pursuance of which he was subsequently executed.

AGNES ADAMS.

IMPRISONED FOR UTTERING A FORGED NOTE.

FOR three or four years previous to this trial, numberless impositions had been practised upon the unwary in the metropolis, by the passing of paper manufactured in imitation of the notes of the Bank of England, which were traced to have originated in the Fleet Prison, a receptacle for debtors only.

The notes, it seems, were printed on paper similar to those of the Bank of England; but upon the slightest inspection they were easily detected. The great success of sharpers passing them chiefly arose from the hurry of business, and from the novelty of the fraud. The shopkeeper would see the word one, two, three, &c., an exact imitation of the genuine notes, but did not examine farther, or he would have found, instead of pounds, the counterfeit expressed pence; and instead of "Governor and Company of the Bank of England," the words "Governor and Company of the Bank of Fleet," substituted. The offence of publishing these notes, however, was not deemed a forgery.

The circulation of Fleet paper was generally intrusted to profligate women, who cohabited with the men who made them. This mode was less suspicious, and in a single year had been carried on to a considerable amount.

Of this description, and we could adduce many such, was Agnes Adams who, in passing one of such notes, filled up with the words "two pence," as a two-pound Bank of England note, to Mr. Spratz, a publican of St. John Street, Clerkenwell, was by him detected, seized, prosecuted and convicted at the Middlesex Sessions, 1811. The punishment could only be extended to six months' hard labour in the House of Correction.

The fraternity of thieves about London have fabricated cant names for the different articles which they steal. The Fleet notes were called "Flash Screens."

RICHARD ARMITAGE AND CHARLES THOMAS.

EXECUTED FOR FORGERY.

THE crime for which these men justly suffered was a forgery of the very worst description, having for its effect a scandalous breach of public trust—a robbery upon the very corporation which they were bound to protect from the nefarious attempts of others.

It appears that they were connected with a person named Roberts, who was apprehended on a charge of swindling, on which he was remanded from the police-office to Coldbath-Fields' Prison, in the year 1810. In a few days he succeeded in making his escape from the jail, in company with a man named Harper, by the most extraordinary means. From the evidence adduced before the magistrates, before whom an inquiry into the escape took place, it appeared that the prisoners were locked up in the usual way at night, but that in the morning they were found to have escaped. On the jail being examined, six gates which had been locked were found standing open, and it was discovered that the prisoners had completed their design by scaling the outer wall, which they had ascended by means of the scaffolding round a lodge which was in the course of being built, and from which they had reached the ground by means of a rope which was found still hanging on the outside. The most anxious inquiries were made after Roberts, but it was not until the month of April 1811 that he was discovered at a tavern at Vauxhall, where he had passed himself off as a country attorney, and was taken into custody. He then, to save his own life, impeached the partners in his villany, and Armitage and Thomas, who were clerks in the Bank of England, were in consequence secured. Armitage was first taken, and he was examined at Marlborough-street, and committed for trial on charges of forging dividend warrants to the amount of £2400; and Thomas was almost immediately afterwards apprehended, and committed on the same charges.

At the ensuing Sessions they were put on their trial, when the case proved against them was, that they were bank clerks in the Imperial Annuity Office, and that they had forged a warrant to obtain the dividends due upon a sum of money belonging to a person who had been dead three years, and whose executors had not applied for the property. In pursuance of the

warrants forged in this case the amount paid was £360, and the prisoner Thomas signed the book as an attesting witness. The case was proved by Roberts and his wife, whose testimony, however, was corroborated by that of other witnesses, and the prisoners were found guilty and were sentenced to death.

The unhappy men were executed on the 24th of June, 1811, at the Old Bailey, pursuant to their sentence. Armitage, from severe illness, was supported to the scaffold by a friend; he was also accompanied by a clergyman, to whose admonitions he appeared to pay great attention. His companion was a catholic, and was attended by a priest of that persuasion. He exhibited great fortitude.

The secret of Roberts' escape was not discovered for a considerable time afterwards, when he was induced to confess, that through the means of a bribe offered to the person who swept the cells, he was enabled to procure impressions in wax of the keys which would be required to open the doors through which he and his fellow-prisoner would have to pass. Having obtained these, he soon got keys made, and he was assisted in his flight by this "friend at court." It was supposed, however, that he had some other more powerful ally than a sweeper, and considerable changes in the management of the jail were subsequently made.

The punishment for the crime of forgery, a few years only before this time, was much less severe than that which was now inflicted, the increase of the offence having rendered an alteration in its severity necessary. It would appear, however, that the efforts of legislators produced anything but the desired effect, the frequency of the offence being increased instead of diminished. The ancient punishment for this crime we find thus minutely described in a London periodical publication for the year 1731:—

"*June 9th.*—This day, about noon, Japhet Crook, *alias* St. Peter Stranger, was brought to the pillory at Charing Cross, according to his sentence for forgery. He stood an hour thereon; after which a chair was set on the pillory; and he being put therein, the hangman with a sort of pruning-knife cut off both his ears, and immediately a surgeon clapped a styptic thereon. Then the executioner, with a pair of scissors, cut his left nostril twice before it was quite through, and afterwards cut through the right nostril at once. He bore all this with great patience; but when, in pursuance of his sentence, his right nostril was seared with a red-hot iron, he was in such violent pain that

his left nostril was let alone, and he went from the pillory bleeding. He was conveyed from thence to the King's Bench Prison, there to remain for life. He died in confinement about three years after."

JANE COX.

EXECUTED FOR MURDER.

THE practice of apothecaries selling poison in their shops to strangers, who purchase it under the pretence of its having to be employed in killing rats, is one which cannot be too severely reprobated, and even punished. In Mantua of old, it appears from Shakspeare's *Romeo and Juliet*, that it was an offence punishable with death, for the Apothecary says,

“Such mortal drugs I have, but Mantua's law
Is death to any he that utters them;”

and the peace and safety of society might be secured, and crime and suicide rendered much less frequent, if some such provision were made in England.

On the subject of selling poison for the purpose of committing murder, we find, from “Hill's Journey through Sicily and Calabria,” that in the year 1791, at Palermo, a city not far distant from Mantua, an old woman was executed for dealing out such mortal drugs.

“Many people in this town and neighbourhood,” (Palermo,) says this author, “died in a sudden and extraordinary manner; they were generally seized with vomiting, and expired in a few hours. A young woman went to an officer of justice to make some complaints concerning her husband; he desired her to be reconciled, and refused to proceed against him, upon which she turned away in a rage, muttering that she knew how to be revenged. The magistrate paid attention to what she said, and gave orders for her being arrested; when, upon strict inquiry concerning the meaning of her word, she confessed that it was her intention to poison her husband, by purchasing a bottle of vinegar from an old woman, who prepared it for that purpose. In order to ascertain the truth of this story, another woman was sent to the old jade, to demand some of the vinegar, which was sold for about ten pence a bottle. ‘What do you want with it?’ said the vender: ‘Why,’ replied the other, ‘I have a very bad husband, and I want to get rid of him.’ Hereupon the old woman, seventy-two years of age, produced the fatal dose; upon which she was immediately seized, and conducted to

prison, where she confessed that she had sold forty-five or forty-six bottles. Many people were taken up; but as, upon further inquiry, it was discovered that several of the nobility had been purchasers, the affair was dropped, and the old woman alone suffered death.”

To proceed, however, to the case of the unfortunate prisoner whose name heads this article. On the 9th of August, 1811, she was indicted at the Assizes for the county of Devon, for the wilful murder of John Trenaman, an infant sixteen months old; and Arthur Tucker was indicted as an accessory before the fact.

The latter was a respectable farmer, living at Hatherleigh, in Devonshire; and the infant was his natural child. It appeared that Jane Cox had, on the 25th of May, 1811, administered to the child a quantity of arsenic, by putting it into the child’s hands, which it put into its mouth and ate, and in consequence died in about two hours. The prisoner, in her written confession, had implicated Tucker, as having persuaded her to commit this act, and stated that he had taken the arsenic from under the roof of a cottage, and given it to her, and promised her a one-pound note if she would administer it to the child.

The prisoner, Jane Cox, after a trial of seven hours was convicted; but Tucker, who called a number of respectable witnesses who gave him a very high character, was acquitted, the woman’s story being unsupported by evidence, and being disbelieved.

On Monday the 12th of August, 1811, pursuant to her sentence, the unfortunate woman was brought to the “new drop,” the place of execution, and underwent the sentence of the law.

She addressed the spectators at some length, and in a very audible manner; she repeated her former confession, with some further particulars respecting the means used by Tucker to prevail on her to commit the horrid deed, for which she acknowledged she ought to die, but lamented that the person who had instigated her to the commission of it was not also to suffer with her.

MICHAEL WHITING.

EXECUTED FOR POISONING HIS BROTHERS-IN-LAW.

CRIME has different shades; but a deeper dye cannot be given to it, than when one in the assumed robe of sanctity attempts to dip his hands in human blood, particularly when that blood is united to him by ties of consanguinity.

Michael Whiting lived at Downham, where he occasionally preached, being a Methodist parson; but as the bounty of those who listened to his pious exhortations was not very large, he endeavoured to add to his resources by keeping a shop in which he sold bread, meal, &c. and also drugs, being at once a comforter of the soul and body.

This hypocrite had two brothers-in-law, named George and Joseph Langman, who resided on a small farm near Downham. They were both under age, and had two sisters, one of whom was married to Whiting, and the other, aged ten years, lived with her brothers. To possess himself of the small estate of these youths, Whiting had recourse to a most diabolical plan.

The little sister was sent to his shop for some bread, and, learning from her that the housekeeper of the brothers was about going from home for a few days, he affected much kindness, and promised paying them a visit. He did so, and with unusual liberality brought with him materials for making a pudding or two, observing to the housekeeper, "Catherine, be sure you make the boys a pudding before you go." After doling out a few texts of Scripture, which he had ready on all occasions, and which he applied with about as much judgment as Sancho Panza did his proverbs, he departed, taking with him the little girl, tenderly remarking that her sister would take better care of her than her brothers, during the housekeeper's absence.

Catherine made the puddings; but remarked, during the process, that the dough would not properly adhere, and when she departed she left them in a kneading-trough. The brothers, not suspecting that any mischief was intended, boiled one of the puddings for dinner, and when properly done, sat down to partake of it; but before they had swallowed three mouthfuls, they were seized with violent vomitings. Suspecting that the pudding was

poisoned, they threw a small piece of it to a sow in the yard; which she had scarcely swallowed, when the poor animal was taken sick, and after lingering a short time died.

The elder brother, by the application of proper medicine, soon recovered; but the younger lingered for a long time ere he regained his health. The pudding was now analysed by a professor of chemistry, who found it to contain a large quantity of corrosive sublimate of mercury, and no other poisonous ingredient,—a fact which destroyed the defence set up by Whiting, that he had laid some *nux vomica* for rats, some of which he supposed had got among the meal.

For this offence Whiting was indicted at the Isle of Ely Assizes, on Thursday the 5th of March, 1811; when, in addition to the above facts, it was proved that, in the event of the Langmans' death, he would come in for their property, in right of his wife, as the next heiress of her brothers.

The trial lasted till six o'clock in the evening, when the jury retired, and, after a deliberation of ten minutes, found the prisoner Guilty, when he was immediately sentenced to be hanged.

HARRIET MAGNIS.

TRIED FOR CHILD STEALING.

THE offence for which this woman was tried was one which, at the time of its commission, attracted a very considerable degree of attention. The child stolen was the offspring of a respectable couple living in Martin's-lane, in the City, named Dellow; and it appears that he was playing with his little sister in the neighbourhood of his mother's house, when he was suddenly missed, and all tidings of him were lost. A woman, it was proved, had been seen in the neighbourhood immediately before the child was lost, and suspicion rested upon her; but although the most vigilant search was made, her person could never be identified.

Suspicion first fell upon an innocent lady, the wife of a surgeon in the navy, and, after two examinations of several witnesses, all of whom mistook her person, she was committed for trial at the Old Bailey.

On her trial, however, she was acquitted, as indeed there appeared to be no proof of her identity, and the case was still pervaded by the same uncertainty as before.

At length the mystery began to develop itself. The first information received in London was from a magistrate in Gosport, acquainting Mr. and Mrs. Dellow of the discovery that their child was safe there, and ready to be delivered to its parents. The father instantly set off, and soon after returned home with his son, when he was required to appear before the Lord Mayor of London, where he found William Barber, the keeper of the Gosport prison, ready to give evidence against a woman of that town of the name of Harriet Magnis, in whose possession the child was found.

This man having seen a hand-bill describing the child, got information that it was at Gosport, and went to the lodgings of Mrs. Magnis, who lived in a very respectable way. He asked her if she had a child, and if it was her own; to which she replied, rather faintly, that it was; but upon his saying that he doubted it, and desiring to see the child, she took him very readily to the room where it was in bed, and confessed to him that she had found the boy in London.

She afterwards, however, confessed the whole affair, and her motive for the robbery. She said that her husband, who was a gunner on board one of his Majesty's ships, and had saved a considerable sum of money for a man in his station of life, was extremely partial to children, and had often expressed his most anxious wish to have a little darling, as he used to term it. His wife, not less anxious to gratify him in this respect, wrote to him while at sea, that she was in the family way. The gunner, highly delighted that he had obtained his desired object, sent home the earnings of many a cruise, amounting to three hundred pounds, with a particular charge that the infant should be well rigged, and want for nothing; if a boy, so much the better.

The next letter from his hopeful wife announced the happy tidings that his first-born was a son; and that she would name him Richard, after his father. The husband expressed his joy at the news, and counted the tedious hours until he should be permitted to come home to his wife and child.

At home he at length arrived, but at an unfortunate time, when the dear Richard was out at nurse, at a considerable distance; change of air being necessary to the easy cutting of his teeth. The husband's time being short, he left England with a heavy heart, without being able to see his offspring; but he was assured that on his next trip to Gosport he should have the felicity he had so often pined for, of clasping his darling to his bosom. It was not until November 1810 that he was at liberty to revisit home, when he had again the mortification to find that his son, whom he expected to see a fine boy of three years old, had not yet cut his teeth, or that he was from home on some other pretence. The husband, however, was not to be pacified thus: he would go and see his son, or his son should come to him. Mrs. Magnis, finding him determined, thought the latter the much better way, and accordingly set off to fetch the boy. The metropolis occurred to her as the market best calculated to afford her a choice of children; and, passing down Martin's-lane, she was struck with the rosy little citizen, Tommy Dellow, and at once determined to make him her prize. He was playing with his sister at the greengrocer's shop-door, into which Mrs. Magnis went, with the double view of purchasing some apples, and carrying off the boy. She made much of the sister, caressed the boy, and gave him an apple. The children being pleased with her attention, she asked the little girl to show her to a pastry-cook's shop to buy some cakes, when she got clear off with the boy, and left the girl behind.

Poor Magnis felt a parental affection for the boy; and when the imposition was discovered before the magistrate, he was grieved to the heart at being obliged to part with him under all the circumstances of the transaction.

The woman, upon evidence being produced of these facts, was committed to Winchester jail for trial; but at the assizes she escaped, on account of her being indicted in the wrong county, the felony having been committed in London.

BENJAMIN WALSH, ESQ., M.P.

TRIED FOR FELONY.

THE name of Mr. Walsh was long known in the City as that of a daring mercantile speculator; and it appears that having thrown himself into considerable difficulties, he succeeded in wiping them all off by a commission of bankruptcy, and almost immediately afterwards obtained a seat in Parliament.

Among the dignified members of the House of Commons, Sir Thomas Plomer seemed to entertain an opinion of Mr. Walsh which was in no degree altered by his recent transactions, and he intrusted him with £22,000 to purchase government securities for him. Mr. Walsh, however, laid out the greater part of the money in the stocks of the United States of America on his own account, and endeavoured to flee to that land of refuge for the guilty, but was overtaken by the arm of justice at the very port from which he intended to sail from his native country. He was unfortunately for his own design too pertinacious of his privilege of franking letters, and he continued even while flying from London, when one would have supposed he would have endeavoured to remain unknown, to despatch letters to his friends indorsed "Free, B. Walsh." These communications being stopped by an order of the government, the course of his flight was discovered, and he was followed to Falmouth by a Bow-street runner, and the solicitor of Sir Thomas Plomer, by whom he was secured and brought to London.

He was indicted at the ensuing Old Bailey Sessions for the offence of stealing the money, when Mr. Garrow appeared for the prosecution, and Mr. Scarlett for the defence.

Upon the witnesses being examined, Sir Thomas Plomer stated that he had given the money to the prisoner for the express purpose of purchasing exchequer bills. He had given it to him in a check, for which he got cash. The prisoner did afterwards lodge £6000 of the bills at Sir Thomas's bankers.

Mr. Scarlett, in addressing the Court for the defence, hoped he should not be understood to entertain any other sentiments of this offence than a

conviction of the moral turpitude of the prisoner; and he was satisfied the prisoner himself entertained no other sentiment, and felt all the contrition belonging to such a crime; but it now became his duty to make such objections as occurred to him:—First, there could be no charge of this sort for stealing the check, for it was in evidence that the prosecutor had given it to the prisoner for a specific purpose; and it was not altogether misapplied, for he had purchased some exchequer bills, and the law did not allow the act of felony to be in part separated. The second objection was under the statute of the second year of the reign of George II. by which the security intended by the legislature was given to such property as was still available to the party prosecutor. In this case the party prosecutor had parted with all control over the check by delivering it to the prisoner. Thirdly, the felonious intent of the party taking was not in itself sufficient to constitute a felony when the party to whom the property belonged had relinquished his control over it; and in support of these objections, he referred to several cases in point.

After some observations by Mr. Garrow, it was agreed that the jury should find a verdict subject to the future opinion of the twelve judges upon the chief baron's report.

The chief baron acquiesced in this arrangement, and then adverted to that part of the evidence which went to show the previous intent of the prisoner to commit the felony; observing, at the same time, that it was impossible, upon such evidence, not to find the prisoner guilty, who, in consequence of the objections made by his counsel, would have the benefit of the judgment of the twelve judges hereafter.

The jury immediately returned a verdict of—Guilty.

During the whole of the trial the prisoner was much affected.

The result of the argument before the judges was, that the facts proved did not, in estimation of law, amount to felony; and as Walsh had been convicted of that offence, he received a free pardon.

The Commons expelled him from his seat in their house; and he was again made a bankrupt, whereupon Sir Thomas found himself entitled only to a pitiful dividend under the second commission.

THE MURDER OF THE MARRS AND WILLIAMSONS.

THE close of the year 1811 was productive of two scenes of blood, which struck horror into all hearts; we allude to the murders of the families of the Marrs and Williamsons, in Ratcliffe Highway, which were accomplished under circumstances of the most frightful atrocity, and of the most extraordinary mystery.

It appears that Mr. Marr was a linen-draper in a respectable way of business living in Ratcliffe Highway, and that his household establishment consisted of himself, his wife, and infant child, a shop-boy and a servant woman. It was his custom to close his shop at about eleven o'clock, when he and his assistant proceeded to dispose of the commodities which had been exposed for sale during the day by placing them on the shelves. On a dark evening at the beginning of the month of December 1811, he was engaged in the customary manner, his shop being closed, when the servant woman was despatched to procure some oysters for supper from a neighbouring shop. On her quitting her master's house she left the door ajar, in order that she might procure a ready access on her return, and she went directly to the house of a person who resided only a few doors off to purchase the fish. She found, however, that they had sold the whole of their stock, and she was therefore compelled to go further; and having purchased the quantity required, and had them opened, she returned immediately to the residence of Mr. Marr. On her reaching the door, she found that it was closed, and she rang the bell. No answer was, however, returned and she repeated her application to the wire. Still no one came, and a watchman coming up at the moment inquired what she was doing there? She informed him of the errand on which she had been sent, and that she could not obtain an entrance, upon which he pulled the bell with great violence, but his efforts were attended with no better effect than those of the servant girl. Some alarm was now begun to be felt, and the next-door neighbour coming out, to learn the cause of the interference of the constables, three or four persons soon collected, amongst whom a consultation was held as to the best mode of proceeding. Various courses were suggested, a continued application to the knocker and bell being made in the mean time; and at length, no answer being given, it was determined that the wall which

divided Mr. Marr's back premises from those of the adjoining house should be scaled, in order that the cause of the silence might be ascertained. The watchman, aided by the strangers who had collected near him, soon made an entrance into Mr. Marr's premises, but on going into the house a sight met his eyes, before which the stoutest heart would have quailed. The murdered remains of Mr. Marr and his shop-boy lay before him in the shop; the body of Mrs. Marr was in the passage, and that of the infant in its cradle, all warm and all steeped in gore.

The watchman, having recovered from the effect of the stupor which this horrid sight had produced in his mind, immediately ran to the door, and having opened it gave an alarm to those outside of the frightful murders which had been committed. An apprehension was entertained that the assassins might still be employed in plundering the house, and instant search was made, but without success; and it was ascertained that the murderers, intimidated probably by the girl's ringing the bell, had escaped from the back window, across some mud which lay in the back yard, and through a way whose intricacies could have been threaded by none but persons who had previously reconnoitred the situation. In the mean time the report of the murders had spread like wild-fire, and thousands of persons collected round the house, notwithstanding the late hour of the night; but, although many volunteers were found, and an instant search was made through the whole of the surrounding district, nothing was discovered which could in the remotest degree afford a clue to the discovery of the persons implicated in the diabolical transaction. A minute examination of the house took place when daylight afforded an opportunity for it to be done with good effect, and then a ripping chisel or hook, such as are used by carpenters and joiners, was found lying near the body of Mr. Marr, and some marks of blood were discovered on the window, through which the murderers had escaped; but nothing was found which could induce a supposition that any goods or money had been carried off.

In the mean time the murders had caused a most extraordinary sensation throughout the metropolis, and various reports were in circulation as to the manner in which they had been committed; and the most active inquiries were made with a view to the collection of evidence to be produced before the coroner's jury. Upon an inquest being held, in addition to the facts above detailed, it was proved by the servant girl that, on her quitting her employer's house, her master and the shop-boy were in the shop, and her

mistress and the child were in the kitchen below; but no facts were proved which could at all lead to the discovery of the persons implicated in the foul deed. From the testimony of the girl it was supposed, that very soon after she had quitted home, the ruffians had entered the shop, probably under pretence of making a purchase, and, having closed the door, had attacked Mr. Marr, whom they had knocked down and there killed by cutting his throat. They had next seized the boy, who apparently had made some resistance, and despatched him in a similar manner; and Mrs. Marr now coming up stairs to inquire into the cause of the tumult and confusion which was doubtless created, she was in turn murdered in the same manner with her husband and the shop-boy. One would have imagined that the infant in its cradle would have escaped in this scene of carnage; but it was imagined that it had cried at being so long left alone, and the blood-thirsty monsters, afraid lest a discovery should take place in consequence of its calls, descended and terminated its existence by cutting its throat, so as almost to sever its head from the body. There being no further evidence to produce, the inquest was at length, after several adjournments, concluded, and a verdict of "Wilful murder against some person or persons unknown," was returned.

The funeral of these victims of villany took place on Sunday the 15th of December, 1811, at the church of St. George in the East, when the bodies of the family of Mr. Marr were deposited in one grave, in the presence of their sorrowing friends, and of an immense concourse of people, by whom the utmost respect and decorum were exhibited. The body of the shop-boy was interred by his friends.

Would that our tale of blood could terminate here! It is, however, our painful task to inform our readers of other murders, taking place under precisely similar circumstances with those of the Marr family, and within ten minutes' walk of the place in which they were perpetrated.

The horror and dismay produced by the atrocious event which we have just detailed had not yet subsided; the exertions of the police to discover the parties concerned in it had not yet been abated; the earth which had been thrown over the graves of the unhappy victims was not yet settled, ere the neighbourhood of Ratcliffe Highway was again the scene of a crime as horrible as that which still struck terror into the minds of all persons.

On Thursday night, the 19th of December, the neighbourhood of New Gravel-lane was thrown into a state of the most violent confusion by loud cries of "Murder!" proceeding from the King's Arms public-house, situated at No. 81 in that lane. The recollection of the late event was still fresh in the minds of all, and crowds of persons instantly ran to the spot to learn the cause of alarm, rendered doubly appalling by recent circumstances. Nor was the sight which met their eyes at all calculated to allay the apprehensions which had been raised. A man almost in a state of nudity was seen descending from the second-floor window of the house mentioned by means of two sheets tied together, and exclaiming, with expressions of the most violent agitation and terror, "They are murdering the people in the house." On his reaching the extremity of the line which he was using, he was still eight feet from the ground; but he was assisted in his descent by the watchman, who received him into his arms, and he then repeated the alarm which he had already given. The greatest horror was felt at what was supposed to be a repetition of the frightful scene which had been so recently enacted, and a short consultation was held as to the best mode of affording relief to the inmates of the house. It was determined that the most speedy means must be taken; and, in accordance with a resolution which was arrived at, an entry was forced through the cellar flap. A man named Ludgate, a butcher living in Ashwell's Buildings, close by, and a Mr. Hawse and a constable, were the first persons who entered by this means; and almost at the same instant a gentleman named Fox obtained admission through some wooden bars at the side of the house, with a cutlass in his hand. The first object that was seen in the cellar was the body of Mr. Williamson, which lay at the foot of the stairs; and on its being examined, it was found that his throat was dreadfully cut, and that besides his leg was broken, and he had sustained a severe fracture of the skull, while the weapon with which he appeared to have been attacked, an iron crow-bar or maul, was lying at his side. In the parlour, the body of Mrs. Williamson was found with the skull fractured and the throat cut, the blood still issuing from the wound, while at her side lay that of the servant woman, whose head was horribly bruised, and whose throat was cut in a similar manner.

Surgical aid was instantly procured; but upon the bodies being examined, it was found that the vital spark had fled.

A new and irresistible feeling of horror now overspread the city of London and its vicinity, and the utmost apprehension was felt at this new

attack upon a family within its own circle. On the first alarm being given, a picquet of the Tower Hamlets' Militia, and a number of the Volunteer Corps, aided by the inhabitants and the constables, made a most minute search in all quarters for the offenders, but no person could be discovered to whom suspicion could attach. Upon the premises being examined, in which the diabolical murders had been committed, it was found that the under part of the house was used as a skittle-ground, next to the entrance of which was the cellar-door; and from the bloody marks which appeared on both doors, it was obvious that the murderers had attempted to escape by both those means.

It was discovered, also, that the villains had eventually effected their exit from the house by means of a back window which looked into an open space belonging to the London Dock Company, from which there was easy access to many different streets branching off in various directions. The wounds on the heads of the unfortunate deceased, it was obvious, had been inflicted by the iron crow-bar which had been found; and from their position, as well as from the inclination in the cuts in the throats of the deceased persons, it appeared that the murderer was left-handed. During the time occupied in the perpetration of the horrid deed, a public-house, almost adjoining that of Mr. Williamson, was filled with people drinking, while only a few doors on the other side, there was a rendezvous for seamen, the windows of both of which looked into the open ground into which the murderers had escaped.

In the course of the following day the most active measures were taken to secure the murderers. Police officers were despatched in all directions; a reward of 100*l* was offered by the parish for their apprehension, and the magistrates sat at Shadwell Police-office during the whole day, ready to receive and act upon any information which might be brought to them. On the day succeeding, a coroner's inquest was held upon the bodies of the deceased persons, when Mr. Anderson, constable, and John Turner, the man who had escaped from the window, were examined.

Mr. Anderson deposed that he was a constable, and knew Mr. and Mrs. Williamson; they were highly respected in the neighbourhood, and for the space of fifteen years kept the King's Arms public-house, which was the resort of foreigners of every description. At eleven o'clock every night they invariably closed their house. On Thursday night, the 19th of December 1811, Mr. Williamson pursued his usual course. Ten minutes before eleven

witness called for a pot of beer. During the time Mrs. Williamson was drawing the beer, Mr. Williamson, who was sitting by the fire, said to him, "You are an officer—there has been a fellow listening at my door with a brown coat on; if you should see him, take him into custody, or tell me." He answered "He certainly would, for his and his own safety," and then retired. Witness lived next door but one to the deceased. Between twenty and thirty minutes after he left the King's Arms, he intended to go for another pot of beer; as soon as he got out of his house he heard a noise, when he saw the lodger lowering himself down into the street by the sheets. He ran into the house for his staff, and proceeded to the spot. The watchman caught the lodger in his arms, when witness and others broke the cellar-flap open, and, having descended, began to look round the cellar; on coming to the staircase, they saw Mr. Williamson lying on his back, with his legs upon the stairs, his head downwards: by his side was an iron instrument, similar to a stonemason's crow, about three feet long, in diameter three quarters of an inch: it was much stained with blood. Mr. Williamson had received a wound on the head, his throat was dreadfully cut, his right leg was broken by a blow, and his hand severely cut. From these marks of violence witness supposed Mr. Williamson made great resistance, as he was a very powerful man. They then proceeded up into the sitting-room, where they saw Mrs. Williamson lying on her left side; her skull was fractured, and her throat cut and bleeding most profusely. Near to her was the servant woman, lying on her back, with her head under the grate; her skull was more dreadfully fractured than that of her mistress, her throat most inhumanly cut, and none of the bodies were cold. Witness then stated that the premises were afterwards examined, and it was discovered that the murderers had made their escape from a back window looking into a piece of waste ground belonging to the London Dock Company. The sill of the window was stained with blood, and the sash remained thrown up. The distance which the villains had to jump did not exceed eight feet, and the ground beneath was soft clay; so they could sustain no injury even had they fallen. From the waste ground in question there was no difficulty whatever in escaping, as it communicated with several by-streets.

John Turner, the man who escaped from the window, and who was a lodger in the house, deposed as follows:—

"I went to bed about five minutes before eleven o'clock; I had not been in bed more than five or ten minutes before I heard the cry of 'We shall all

be murdered!’ which I suppose was the cry of the woman-servant. I went down stairs, and saw one of the villains cutting Mrs. Williamson’s throat, and rifling her pockets. I immediately ran up stairs, took up the sheets from my bed, fastened them together, and lashed them to the bed-posts; I called to the watchman to give the alarm; I was hanging out of the front window by the sheets; and the watchman received me in his arms, naked as I was. A great mob had then assembled opposite the door; and as soon as I got upon my legs the door was forced open: I entered, and found the bodies lying as described. There was nobody lodged in the house but myself, except a grand-daughter of Mrs. Williamson. I have lived in the house about eight months, and during that time I have found the family to be the most peaceful people that could keep a public-house. The man whom I saw rifling Mrs. Williamson’s pocket, as far as I could see by the light in the room, was about six feet in height, dressed in a genteel style, with a long dark loose coat on. I said nothing to him; but, terrified, I ran up stairs, and made my escape as already mentioned. When I was down stairs, I heard two or three very great sighs; and when I was first alarmed, I heard distinctly the words, ‘We shall all be murdered.’ ” Turner further deposed that, at the time he went to bed, Mrs. Williamson was on the stairs, taking up a silver punch-ladle and watch, which were to be raffled for on the following Monday, into her bedroom for security.

Other witnesses were examined, but their testimony differed in no material respects from that of the persons whose evidence we have detailed; and the jury, as in the case of Mr. Marr, returned a verdict of “Wilful Murder against some person or persons unknown.”

After the termination of this necessary inquiry before the coroner, however, the most minute investigation of every circumstance connected with this lamentable affair was carried on by the magistrates of Shadwell. Many persons were taken into custody, but discharged for want of evidence: but an Irishman, named Cornelius Driscoll, was detained on suspicion of being implicated in the horrid deed, on account of a pair of breeches covered with blood being found in his possession.

Of all the persons seized, however, suspicion fell strongest upon a man named John Williams, who cheated justice by committing suicide before his guilt or his innocence could be fully established.

This man was apprehended on suspicion of being concerned in the murders; and on his examination, John Frederick Ritchen, a Dane, who was also in custody, was sworn as a witness. He stated that he had lodged in the Pear Tree public-house, kept by Mr. Vermillee, with the prisoner, for about twelve weeks and three or four days, but knew little of him except in the light of a fellow-lodger. He knew that he was acquainted with two men, a carpenter and a joiner, and about three or four weeks before he had seen them all three drinking together at the bar of the public-house. On the night of the murder of the Marr family Williams was out, and a few minutes before he returned there was a knock at the door, which Mrs. Vermillee opened. The witness had gone down to open the door, but seeing Mrs. Vermillee, he went up to his own room; and, when there, heard her in conversation with a man, whose voice resembled that of one of the two men before mentioned. A few minutes afterwards Williams himself came in. This was almost half-past one o'clock. Three or four days before Williams was taken up, he observed that the large sandy-coloured whiskers, which had before formed a striking feature in his appearance, had been cut off. About eleven o'clock on the day after the murder of the Marr family, the witness went from curiosity to examine the premises, which he entered, and saw the dead bodies. From thence he returned to the Pear Tree, where he found Williams in the back yard, washing out his stockings, but he did not tell him where he had been. He was then questioned respecting his knowledge of the maul, which is a round bar of iron about an inch in diameter, between two and three feet in length, flattened at the end into the shape of a chisel, but not with a cutting edge, being apparently a tool for caulking. He said it resembled one he had seen about the Pear Tree public-house, but he could not identify it. A pair of blue woollen trousers, and also a pair of canvas trousers, were then produced, which had been found between the mattress and the bed-clothes of the hammock in which the witness slept. The legs of the blue trousers had evidently been washed, for the purpose of cleaning them from mud, of which the appearances were still visible in the creases, which had not been effectually cleansed. These trousers were damp at the time of the examination; the canvas trousers were also damp, but they presented no particular appearance. The witness stated that both these pairs of trousers had formerly belonged to a person since gone to sea, and he had since worn them himself.

Mrs. Orr, residing near the Pear Tree, stated, that on the Saturday before Marr's murder, about half-past one o'clock in the morning, she was getting up linen, when she heard a noise about the house, as if a man was attempting to break into the house. She was frightened and asked, "Who was there?" A voice answered, which she knew to be Williams's, "I am a robber!" She answered, "Whether you are a robber or not, I will let you in, and am glad to see you." Williams entered, seating himself till the watchman was calling the hour of past two o'clock. He then got up from his chair, and asked the landlady if she would have a glass. She assented, but as he would not go for it, she went to the Pear Tree public-house, but could gain no admittance. She returned, when Williams inquired how many rooms there were in her house, and the situation of her back premises. She replied, there were three rooms, and that her back yard communicated with Mrs. Vermillee's house. The watchman came into Mrs. Orr's house, although Williams resisted it for some time, and he told her that he had picked up a chisel by the side of her window. Williams ran out unobserved at this information; soon afterwards he returned. The watchman was going, when Williams stopped him, and desired him to go to the Pear Tree and get some liquor. The house was then open. While the watchman was gone for the liquor, Williams took up the chisel, and said, "D—n my eyes, where did you get this chisel?" Mrs. Orr did not part with it, and retained the instrument till the Monday following. Hearing that Williams was examined, she went to Mrs. Vermillee's, and showed her the chisel.—Mrs. Vermillee looked at it, and compared it with the tools in one Patterson's chest, when it was found to bear the same marks, and declared that it was taken out of her house. Mrs. Orr instantly delivered the chisel to the magistrates of Shadwell-street office, as being a further trace to the villany. Mrs. Orr said she knew Williams for eleven weeks; he frequently nursed her child, and used to joke with her daughter, and once asked her whether she should be frightened if he came in the dead of the night to her bedside? The daughter replied, that if it was he who came, she should not be frightened. They both thought him an agreeable young man, of a most insinuating address.

In consequence of the information of this witness, a minute examination of the ripping chisel found at Mr. Marr's took place, and it was found also to be marked like that discovered by the watchman at Mrs. Orr's. The husband of Mrs. Vermillee was in custody on suspicion in Newgate, and he was consulted, and expressed his belief that it was taken from the same tool

chest as that chisel. The plot now seemed to thicken against the prisoner, and little doubt was entertained of his connexion with the carpenter and joiner, and of their having all been engaged in the perpetration of these most horrid murders, when all further efforts on the part of the police were checked, by his adding another crime to those which it was fully believed he had already committed, by destroying himself.

He had been remanded for further examination to Cold Bath Fields Prison, and the police of the district had redoubled their exertions to detect and bring to justice his accomplices. Mr. Vermillee had been ordered to be set at liberty, in order that he might give evidence upon the day of the next inquiry before the magistrates, when, on the very morning on which the prisoner was to be carried before the magistrates, upon the gaoler going to call him from his cell, in order that he might prepare himself to be carried to the Police Office, he was found, heavily ironed as he was, suspended by a handkerchief from a beam in the apartment in which he was confined. He was instantly cut down, but upon his body being examined, it was found that he was quite dead and cold, and that he had evidently been hanging during several hours.

The excitement produced by this termination of the investigation would be difficult to describe, but all persons now expressed their full belief that the deceased prisoner was the author of the crimes which had attracted such universal attention. An inquest was held upon his body, and a verdict of *felo de se* was returned by the jury, but now became a question, how the public indignation could best be satisfied? The rule in such cases was that the deceased should be buried in the nearest cross roads, but a conference was held with the Home Secretary by Mr. Capper, the magistrate, with the view of ascertaining how far this regulation might be departed from, at which it was determined that a public exhibition of the body should be made through the neighbourhood which had been the scene of the monster's crimes. In conformity with this decision, on the 31st of December, the body of the deceased was privately removed from the prison at eleven o'clock at night, and conveyed to St. George's watchhouse, near the London docks, and on the following (Tuesday) morning, at half-past ten o'clock, a procession was formed in the following order:—

Several hundred constables, with their staves, clearing the way.
The newly-formed patrol, with drawn cutlasses.

Another body of constables.
Parish officers of St. George's, St. Paul's, and Shadwell, on horseback.
Peace-officers, on horseback.
Constables.

The high constable of the county of Middlesex, on horseback.
The body of Williams,

Extended at full length on an inclined platform, erected on the cart, about four feet high at the head, and gradually sloping towards the horse, giving a full view of the body, which was dressed in blue trousers and a white and blue striped waistcoat, but without a coat, as when found in the cell. On the left side of the head the fatal maul, and on the right the ripping-chisel, with which the murders were perpetrated, were exposed to view. The countenance of Williams was ghastly in the extreme, and the whole had an appearance too horrible for description.

A strong body of constables brought up the rear.

The procession advanced slowly up Ratcliffe Highway, accompanied by an immense concourse of persons, eager to get a sight of the murderer's remains. When the cart came opposite to the late Mr. Marr's house, a halt was made for near a quarter of an hour. The procession then moved down Old Gravel-lane, along Wapping, up New Crane-lane, and into New Gravel-lane. When the platform arrived at Mr. Williamson's late house, a second halt took place. It then proceeded up the hill, and again entered Ratcliffe Highway, down which it moved into Cannon-street, and advanced to St. George's turnpike, where the New Road is intersected by Cannon-street. There a grave, about six feet deep, had been prepared, immediately over which the main water-pipe runs. Between twelve and one o'clock the body was taken from the platform, and lowered into the grave, immediately after which a stake was driven through it; and, the pit being covered, this ceremony concluded.

During the last half-hour the crowd had increased immensely—they poured in from all parts, but their demeanour was perfectly quiet. All the shops in the neighbourhood were shut, and the windows and tops of the houses were crowded with spectators. On every side, mingled with execrations of the murderer, were heard fervent prayers for the speedy detection of his accomplices.

A conclusive evidence of the guilt of this wretched suicide was afterwards found, in the discovery of a knife which he always carried with him, concealed in a hole in the room which he occupied, encrusted with blood.

Fearful as were the horrid crimes committed by this blood-thirsty assassin, they were not without their good effect in the metropolis. The sensation produced by the murders awakened the apprehension of all persons for their own safety; and local meetings were held in the various parishes of the metropolis, at which resolutions were passed, in pursuance of which a system of police was established far more complete than that which before existed, although still infinitely inferior in point of regularity and competence to that which within the last eleven years has been adopted and carried out to the admiration of the civilised world.

WILLIAM HEBBERFIELD.

EXECUTED FOR FORGERY.

THE prosecution of this prisoner arose out of a desire on the part of the Bank of England to put a stop to the most dangerous and hurtful system of forgery which existed about this time in the city of London.

It appears that the prisoner had long been known as a dealer in forged notes; but he had contrived to elude the vigilance of the officers employed, although he rendered himself liable to punishment for the part which he took in a conspiracy for aiding the escape of General Austin, a French officer, a prisoner of war in this country, on his parole, for which he was sentenced by the Court of King's Bench to two years' imprisonment in Newgate. Even while in that jail, however, he continued to carry on the trade in forged notes; and this being communicated to the officers of the bank, they determined upon a plan to secure his conviction. A prisoner named Barry, who was in the House of Correction undergoing an imprisonment for passing counterfeit dollars, was selected as the agent, and on the 23d of September he was conducted in a hackney-coach to Newgate, accompanied by Mr. Weston, the principal clerk to Mr. Freshfield, the bank solicitor, and by Beckett, one of the turnkeys, by whom he was provided with 8*l.* in good 1*l.*-notes. On their arrival at the prison, Barry was shown into the prisoner's room, where he found a number of other persons. He directly went to the prisoner, and without saying anything, gave him six of the notes which he had received, and which were all marked. The prisoner returned three, saying that he should not have enough of the other notes until the next day; but in lieu of the others, which he kept, he handed over forged notes of the nominal value of 6*l.* Barry immediately carried these notes to Mr. Weston, who remained outside; and Beckett, accompanied by Brown and another officer, went into the prisoner's chamber, and asked him to produce what property he had about him. The prisoner directly took from one pocket a handful of gold, from another a pocket-book filled with bank-notes, from another a quantity of loose bank-notes, and he also produced a stocking stuffed with the like currency. Beckett, on examining these notes, and not perceiving amongst them any of the marked ones he sought for, told

the prisoner he had some more, and desired him to produce them; upon which the prisoner took some other notes from his side-pocket, and laid them on the bed where he was sitting. Beckett took those up, and they proved to be the marked notes. He said these were what he wanted, and returned the prisoner the rest; upon which the prisoner, probably anticipating his purpose, snatched the notes, and thrust them into the fire. Beckett's assistant, however, rescued them from the flames, and they were proved to be the same which Barry had paid him just before; and the notes Barry received in lieu were also proved to be forgeries.

The prisoner upon being indicted for this offence was found guilty and sentenced to death, in pursuance of which he was executed on the 2nd November 1811.

So great was the increase of these frauds upon the public, that between the year 1797 and 1811, no fewer than 471 persons were prosecuted to conviction for forging, or uttering, or possessing forged notes. The total amount of notes thus put off it is of course impossible to calculate with any certainty, but discoveries were made which showed the system to exist to an extent almost incredible.

JOHN CLAYTON AND WILLIAM JENKINS.

EXECUTED FOR BURGLARY.

THE activity, daring, and ingenuity of the London “cracksmen” is well exemplified in the following case:—

It appears that Reid, a constable belonging to Perry’s party of patrol, received information from a person technically called a “nose,”—that is, an informer or spy,—that a set was made at the house of a Mrs. Martin, a lady residing at No. 4, Bury Street, St. James’s, by a party of thieves, who had derived sufficient knowledge of the customs of the house from the servant girl, Mary Wakelin, to induce them to suppose that the robbery would be a profitable speculation. Their mode of making themselves acquainted with this circumstance was this:—The girl, like most others of her condition and years, was vain of her personal charms, and the prisoner Clayton was a young man of pleasing manners and insinuating address. The “crack” was fixed upon, and Clayton was set to work upon the girl’s vanity, and so obtain the necessary information to enable his assistants and associates to complete it cleverly. He addressed her one evening at the public-house to which she was in the habit of going to fetch her mistress’s beer, and having passed a few encomiums upon her beauty, was soon admitted into conversation. The impression which he made was not unfavourable, and he was too good a judge to allow an opportunity to pass, by which he might benefit himself. Day after day he was found at the same place, and each day he was more attentive than the last; and the girl at length looked upon him in the light of a suitor. He informed her that he was a trunk-maker living in Oxford Street, and in return obtained information that her mistress was in the habit of visiting the theatres or some other place of public amusement nearly every night. He did not fail to improve upon his acquaintance at every fresh interview, and at length a Monday evening was fixed upon, when the lover was to be admitted to spend an hour with the girl in the kitchen during her mistress’s absence. It was at this period that the officers gained information of the intended robbery; and they in consequence obtained permission to occupy a room opposite to Mrs. Martin’s house, from which they could witness all that passed. Half-past eight o’clock was

the time appointed by Mary to see her swain, and the constables took care to be as punctual as he. A few minutes before the time, accordingly, they saw four men and two women arrive at the spot, from whom Clayton separated himself and went and knocked at the door. He was, however, doomed to be disappointed. The mistress was unwell and could not go out, and therefore, with a kiss or two, and an affectionate hug, the sweethearts were obliged to part, not, however, without fixing the next Tuesday to carry out their design. Tuesday night came, and the officers were again at their post; but the loving pair separated after taking a little gin together. Wednesday evening passed in the same manner, Mrs. Martin being still too unwell to go out; and notwithstanding the most praiseworthy attention on the part of the supposed trunk-maker to his inamorata, every evening until the following Tuesday passed in the same way, the professions of inviolable attachment made by the tender-hearted youth growing each night more strong, and his anxiety to enter the house increasing at every meeting. On the Tuesday night, however, the girl told Clayton that her mistress was so much recovered, that she expected she would be well enough to go the following night to the play, and on Wednesday night, about eight o'clock, Mrs. Martin, accompanied by a male and female friend, went in a coach to the theatre. In a few minutes after, the servant girl came out, and returned shortly with Clayton, arm in arm together. They talked together several minutes at the door, and then went in. In about a quarter of an hour after, Clayton came out, and returned in about five minutes, accompanied by another man. Clayton knocked at the door, and the girl opened it. She appeared to refuse to let the other man in; but Clayton forced open the door, and the other man rushed in. The officers, who had been upon the close watch every night, then went over to the house, and heard all three talking very loud in the kitchen. From the noise, and what they saw through a keyhole, they ascertained that the two men were dragging the girl up stairs against her will, and she was exclaiming, "Lord have mercy upon me! what shall I do?" One of the men told her if she made such a noise he would blow her brains out, and presented a pistol to her head, and kept it there. They forced her up stairs, and the officers heard doors being broken open, &c., and, in a few minutes after, the second man came down stairs, and returned with the kitchen poker. They then heard other doors break open; but not hearing the noise of the girl continued, the officers were afraid she was being murdered, and were proceeding to force the street-door with an

iron crow, when the girl exclaimed it was her mistress, gave a sudden spring, released herself from her assailants, ran down stairs, with the robbers after her: and they got into the passage just as the officers had entered. Clayton and Jenkins appeared as if nothing had happened, and wanted to get out; but Perry and Reid seized them. The villains made a most desperate resistance, which they were enabled to do, being very tall, stout, powerful men; but they were eventually secured. On searching Clayton, a large clasp knife and a bad dollar were found. On Jenkins were found a pistol, two bad dollars, &c. On examining the house, the officers discovered that a large quantity of property had been packed up, ready to be carried off. Several rooms and closets were broken open, and the thieves were in the act of breaking open a chest when they were disturbed.

The trial of these desperadoes came on at the Old Bailey, on the 15th of January, when Mary Wakelin, before named, deposed that she first became acquainted with the prisoner Clayton about eight or ten days before the 1st of January; he then came to her mistress's house, when she answered the door, and told her his name was Wilson, and that he had a letter for Mrs. Martin, which was the name her mistress went by. A night or two afterwards he threw things down the area. Her mistress sent her out with a message, and she then saw Clayton, who asked her to take something to drink, which she at first refused; but upon his insisting they went and had something to drink. She saw him a night or two afterwards in the streets, as she went out on an errand, and frequently after that; but she never saw the prisoner Jenkins till the night of the 1st of January.

The jury found both the prisoners Guilty, and they were sentenced to death.

The fearful sentence was carried into effect on the scaffold before the Debtor's door, Newgate, on the 19th February 1812, at the usual hour, and with the accustomed solemnity. Clayton was twenty-eight years of age, and Jenkins thirty-five.

After the culprits had been divested of their irons, Clayton observed to Jenkins it was an awful moment, and he exhorted him to cheer his spirits, and die with manly fortitude—adding that the sentence was just, and trusting their example would warn others against keeping bad company.

DANIEL DAWSON.

EXECUTED FOR POISONING RACE-HORSES.

THIS fellow had long exercised the business of a *tout* to betting-men of an inferior class on the Turf, obtaining for them such information from the grooms and other persons employed about the racing-stables as he conceived they might deem useful; when having got together a little money, he thought that he might be able to employ his information to his own advantage, and he therefore turned betting-man himself. He was a man utterly devoid of education, and therefore unfit to mix among the *gentlemen* of his class; and being confined to the society of grooms and other persons of "low degree," he imbibed none of those principles of "honour" for which the speculators on racing and other gambling events are generally proverbial. In order then to make sure of winning his bets, he determined to render the horses unfit for running, by drugging them. In this practice he continued until April 1811, when he conveyed a large quantity of the solution of arsenic into a watering trough, from which two horses belonging to Lord Foley and Sir F. Standish had to drink.

The drug being too powerful to produce that effect only which was requisite, the horses died, and suspicion falling upon Dawson and a companion of his named Cecil Bishop, they were taken into custody. Bishop immediately made a full confession, and accused Dawson of having poisoned another horse in the year 1809, belonging to a Mr. Adams at Royston, and he made such disclosures as established a chain of evidence which left no doubt of the truth of his story. He was therefore admitted as a witness, and his companion was committed to take his trial at the ensuing Lent Assizes at Cambridge. It there turned out, that instead of being a principal as he was charged, he was an accessory only, and he was acquitted; but he was detained in custody upon another charge of poisoning race-horses in the year 1809. He was arraigned upon a second indictment therefore at the Assizes held in August 1812, and upon this he was found guilty and sentenced to death. For some time after his conviction, he entertained hopes that his life would be spared, and Lord Foley, in consequence of some communications which he received from him, was

induced to second his application for mercy. This, however, was attended with no good effect, and the wretched culprit was left for execution. Determined not to throw away all chances, he resolved to attempt to escape from custody, and he wrote to his wife in the following terms, in order to procure some assistance to enable him to complete his design.

“DEAR WIFE,—I learn by yours, I am in danger; but I have another way of escape without fear of being discovered.—You go to a tool-shop, and get a small back saw, as the watch-makers use, the smaller the better, to convey to me: the best way you can get it in will be between some turf, with some black thread; if you can find a better way, do it; but be careful, for all the danger is to get that to me, for I have but one bar to cut, and I am in town by four o’clock in the morning. They will not miss me till eight, when they come to unlock us. I shall be by that out of their reach. Dear girl, bring me the turf six pieces at a time. When I have got the saw, I must have some friend come round to see the Castle, but take no notice of me, but to see the situation; I am in full north; and come again in one hour after we lock up; bring rope enough to reach over the wall, and he stand on the other side, and hold it till I am up the wall. Fasten a large spike to the end of the rope, and throw it over the wall, and tie knots about nine inches asunder to hold by, and about twenty-five feet long. There is no danger in this, for there is nobody inside after we come to bed. A rainy night will be best; but I will let you know the night by another line. Mr. Prince says he has got a very respectable man, who will come forward and swear to everything of the concern, all but seeing it put in. If anybody can be found to write to Lord F. O. (alluding to a threat), it will have great effect. Mr. J. B. South-street Grosvenor Square, Mr. B. King’s Mews, Elbs (meaning Theobald’s) Road, Gray’s-Inn Lane, have a good look out, if there is any danger. I shall soon be along with you, with a little of your assistance; by applying to the people above mentioned you will get good intelligence. When you write, direct your letters to Mrs. Howell’s sister. When you come, ask me for my pocket-book, and I can give you all at once. I shall call them things breeches and coat, so you will know.”

This letter was detected in the hand of his wife, by the jailer, whose suspicions were excited by the circumstance of their parting on this occasion with more than usual emotion; and baffled in all his schemes, he for a time indulged the criminal design of taking away his own life, but from which he was persuaded by the pious exhortations of the chaplain.

Seeing no hopes of either mercy or escape, he resigned himself to his fate, but persisted in denying having intended to destroy the horses, as he only wanted to incapacitate them from winning.

Dawson spent his last days in all the fervency of prayer, and expressed his pious hope in the forgiveness of the Almighty. The last parting from his wife was truly affecting, and he described it as worse than death. The night before his execution he slept soundly, and ate, next morning, a hearty breakfast. Previous to his receiving the sacrament he tied a yard of black ribbon round his neck, which, at his dying request, was conveyed to his afflicted wife. At twelve o'clock he was led to the platform, on the top of Cambridge Castle, and was turned off amidst an immense concourse of spectators, it being market-day. He died without a struggle.

THE MARQUIS OF SLIGO.

FINED AND IMPRISONED FOR ENTICING SEAMEN TO DESERT HIS MAJESTY'S
NAVY.

IN 1810, the noble marquis, then a thoughtless young man, quitted college, and proceeded on his travels, visiting those places in person, of whose ancient fame and greatness he had read so much. Being partial to marine excursions, and willing to indulge himself in one in the Mediterranean, he hired, at Malta, a brig called the Pylades; and having been introduced to Captain Sprainger, of the Warrior, then on that station, he received from that naval officer much information and kindness.

The noble marquis being frequently rowed to and from the Warrior by some of her athletic crew, seems to have thought the addition of a few of these fine fellows a desirable acquisition to his handful of Italians. Accordingly it appears that he succeeded in inducing two of them to join his crew, upon which suspicion fell upon his lordship; for it was supposed no ordinary inducement had been held out to them, as they were men of tried fidelity, long standing, and had then three years' arrears of wages due to them. Captain Sprainger paid the marquis a visit on board the Pylades; and, on hinting his suspicions, his lordship appeared greatly hurt; upon which the captain, from their intimacy, contented himself with cautioning his noble friend upon the danger of having deserters on board, as the navy was very low, being nearly two thousand under its complement. He then left the marquis, and from his own ship sent him a description of the men missing, requesting that if they offered themselves to his lordship, they might be sent to some of his majesty's ships at Malta.

Next day the Warrior sailed; and the noble marquis resolved that his brig should be a letter of marque, for the purpose of upholding the honour of the British flag. For the business of navigation, a comparatively few men would have done; but in this new capacity he required at least forty. To procure these was no very difficult task on a station where men were hourly in the habit of quitting their ships; and his lordship's servant, in the course of an evening or two, added fourteen brave fellows to their complement.

On the 13th of May his lordship sailed to Palermo, and from thence to Messina, where, on pledging his word of honour that he had no deserters on board, he received a six months' protection for forty men, having inserted false names for the men-of-war's men. The Pylades then proceeded on her course, and on the 30th of May she was chased by the Active, an officer of that ship having heard that deserters were on board. Ere the boat came alongside, his lordship ordered the men-of-war's men below, and, though a search took place, they escaped detection.

The marquis next sailed to Patmos, where ten of the men were allowed to go on shore, and that evening the vessel sailed without them. The abandoned men appear to have suffered great hardship; and at Scio, when accompanied by the British consul to the Pylades, his lordship refused to receive any of them except four, who were useful in the management of the vessel. Some of the men returned to their duty, and were tried by a court martial. From Constantinople the marquis wrote to Captain Spranger, stating that he found he had some of his men on board, and that he was determined to send them on shore the first opportunity; that if the business was brought into a court, he would do the best to defend himself; and that, at the worst, he had an ample fortune, and could pay the fines.

Tired with travelling, his lordship returned home, and soon after his arrival in England he was indicted for enticing British seamen from their duty. The trial came on at the Old Bailey, December 16th 1812, when, after a protracted inquiry, his lordship was found Guilty, and sentenced to pay a fine of five thousand pounds, and to be imprisoned four months in Newgate.

Perhaps it is not the least curious particular attending this case, that his lordship's mother, the Dowager Marchioness of Sligo, soon after her son's trial, was married to Sir William Scott, the judge who passed sentence on the youthful marquis.

JOHN BELLINGHAM.

EXECUTED FOR THE MURDER OF THE RIGHT HONOURABLE SPENCER PERCEVAL.

ON the 11th of May, in the year 1812, an event occurred which excited universal dismay and regret in the minds of the whole of the British public—the death of the Right Honourable Spencer Perceval, then Chancellor of the Exchequer, by the hand of an assassin.

John Bellingham, the author of this crime, was brought up in a counting-house in London, and afterwards went to Archangel, where he lived during a period of three years in the service of a Russian merchant. Having returned to England, he was married to a Miss Nevill, the daughter of a respectable merchant and ship-broker, who at that time resided at Newry, but who subsequently removed to Dublin. Bellingham, being a person of active habits and of considerable intelligence, was subsequently employed by some merchants in the Russian trade, by whom he was induced again to visit Archangel, and he in consequence proceeded thither, accompanied by his wife, in the year 1804. His principal dealings were with the firm of Dorbecker and Co.; but before twelve months had expired, a misunderstanding arose between them, and each party made pecuniary claims upon the other. The subject was referred by the Governor-General to the decision of four merchants, two of whom Bellingham was allowed to select from his countrymen resident on the spot, and by the award of these arbitrators Bellingham was found to be indebted to the house of Dorbecker and Co. in the sum of two thousand roubles; but this sum he refused to pay, and appealed to the senate against the decision.

In the mean time, a criminal suit had been instituted against him by the owners of a Russian ship which had been lost in the White Sea. They accused him of having written an anonymous letter to the underwriters in London, stating that the insurances of that ship were fraudulent transactions; in consequence of which the payment for her loss was resisted. No satisfactory proof being adduced, Bellingham was acquitted: but before the termination of the suit, he attempted to quit Archangel, and being

stopped by the police, whom he resisted, he was taken to prison, but was soon after liberated, through the influence of the British consul, Sir Stephen Shairp, to whom he had made application, requesting to be protected from what he considered the injustice of the Russian authorities.

Soon after this the senate confirmed the award of the arbitrators, and Bellingham was delivered over to the College of Commerce, a tribunal established, and acknowledged by treaty, for taking cognizance of commercial matters relating to British subjects. He was to remain in custody till he discharged the debt of the two thousand roubles; but his confinement was by no means severe; for he had permission to walk wherever he pleased, attended by an officer belonging to the college. Lord Granville Leveson Gower being at this time ambassador at the Russian Court, Bellingham made frequent application, and, at various times, received from his secretary small sums of money to support him during his confinement. One night, in particular, he rushed into his lordship's house at St. Petersburg, and requested permission to remain all night, to avoid being secured by the police, whom he had escaped. This was granted, although Lord Gower had no authority to protect him from a legal arrest; but it appears he was afterwards retaken, and being confined by the authorities of the country, the British ambassador could have no pretence to solicit his release. His lordship, however, in a conversation with the minister for foreign affairs, expressed a personal wish that the Russian Government, seeing no prospect of recovering the money from Bellingham, would liberate him on condition of his immediately returning to England; but we are not told what effect was produced, as Lord Gower soon after quitted the Russian Court.

The foregoing is taken from the statement published by Lord Granville Leveson Gower, in his own justification, against the charge made against him by Bellingham on his trial; and we hope, for the honour of our country, that it is correct; and we must confess that a review of all the circumstances tends to confirm its accuracy. Our ambassador, it is admitted, had the case investigated; and as his refusal to interfere was subsequently confirmed by that of the English Government, it is evident that Bellingham could have had no just cause of complaint, or, at least, none of a nature to call for diplomatic negotiation or pecuniary recompense. In justice to the unfortunate man, we shall, when we come to his trial, give his own statement, and leave the reader to draw his own conclusion.

Bellingham having, by some means or other, procured his liberation, in the year 1809 returned to England, and at Liverpool commenced the business of an insurance broker. It appears, however, that from a constant recital of the circumstances which had occurred in Russia, his complaints were aggravated in his own mind into grievances, and he at length began to talk of demanding redress from the Government for what he termed and appeared to consider the culpable misconduct of their officer, Lord Gower, and his secretary, in omitting to defend his rights as a British subject; and he eventually wrote to the Marquis Wellesley, setting forth the nature of his case, and the grounds upon which he expected that some compensation would be made. By the noble marquis he was referred to the Privy Council, and by that body to the Treasury; but his efforts being unattended with success in either quarter, he determined to proceed to the Chancellor of the Exchequer (Mr. Perceval), with a view to obtain his sanction and support for his demand. Mr. Perceval, however, having made himself master of the case submitted to him, declined to interfere, and Mr. Bellingham was then advised by his friends that the only resource left to him was a petition to parliament. As an inhabitant of Liverpool, he applied to General Gascoyne, then member for that city, to present a petition to the house of commons; but that honourable gentleman having ascertained upon inquiry that the case was unsupported by the Chancellor of the Exchequer, he refused to have anything to do with it. Driven now to pursue a course quite unusual in such cases, he petitioned the Prince Regent, but from him he was referred again to the Treasury, and he again received an intimation that all applications from him must be futile. Three years had now been spent in these constant and fruitless attacks upon the government, but the unfortunate and misguided gentleman appeared even yet to cherish hopes that his case would be attended to. On one occasion, it is reported that he carried his wife, who had in vain striven to wean him from what she considered to be his malady, and another lady, to the secretary of state's office for the purpose of showing them the success with which his exertions were attended; and although he then, as he had before, received a flat denial of his claims, yet he continued to assure them that he did not in the least doubt that ere long all his hopes would be made good, and he would receive compensation for his sufferings.

He now adopted a new and certainly an unprecedented mode of attack. He wrote to the police magistrates of Bow-street in the following terms:—

“To their Worships, the Police Magistrates of the Public Office in
Bow-street.

“SIRS,—I much regret its being my lot to have to apply to your worships under most peculiar and novel circumstances.—For the particulars of the case, I refer to the enclosed letter of Mr. Secretary Ryder, the notification from Mr. Perceval, and my petition to parliament, together with the printed papers herewith. The affair requires no further remark, than that I consider his majesty’s government to have completely endeavoured to close the door of justice, in declining to have, or even to permit, my grievances to be brought before parliament, for redress, which privilege is the birthright of every individual. The purport of the present is, therefore, once more to solicit his majesty’s ministers, through your medium, to let what is right and proper be done in my instance, which is all I require. Should this reasonable request be finally denied, I shall then feel justified in executing justice myself—in which case I shall be ready to argue the merits of so reluctant a measure with his majesty’s attorney-general, wherever and whenever I may be called upon so to do in the hopes of averting so abhorrent, but compulsive an alternative, I have the honour to be, Sirs, your very humble and obedient servant,

“JOHN BELLINGHAM.”

“No. 9, New Millman-street, March 23, 1812.”

This letter was at once conveyed to the members of the government, but it was treated by them as a mere threat, and no further notice was taken of it, than on Mr. Bellingham’s again presenting himself, by a fresh refusal being given to him by Mr. Read. Once more he applied to the Treasury, and again he was told that he had nothing to expect; and according to his statement, Mr. Hill, whom he now saw, told him that he might “resort to whatever measures he thought fit.” This he declared he considered “a *carte blanche* to take justice into his own hands,” and he accordingly determined to take such measures of revenge as he madly supposed would effectually secure that attention and consideration for his case, which he deemed it had not received, and to which it was in his opinion fully entitled.

This unhappy determination being made, he began to make the necessary preparations for the foul deed which he contemplated. His first step was to make himself acquainted with the persons of those ministers who had seats in the House of Commons, and for this purpose he nightly visited the House

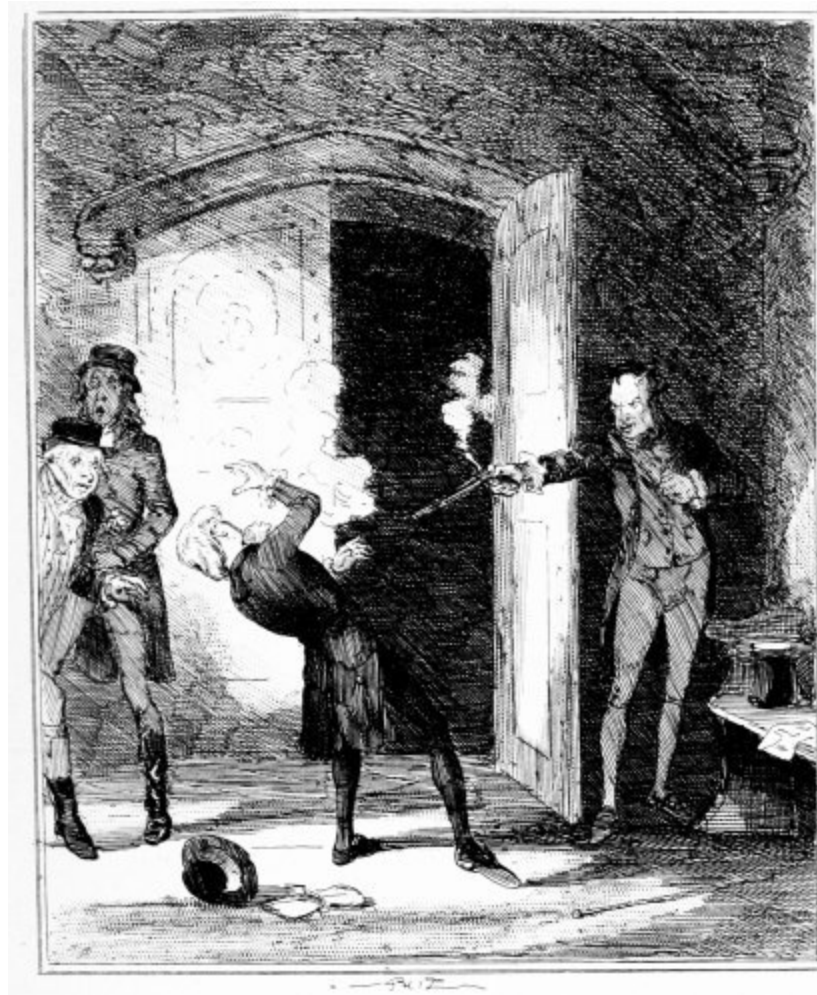
and there usually took his seat in the gallery appropriated to strangers; and having obtained a general knowledge of their persons, he afterwards posted himself in the lobby of the House, in order to be able to identify them. He then purchased a pair of pistols, with powder and ball, and had an additional pocket made in his coat for carrying them the more conveniently.

On the evening of the 11th of May, 1812, he took his station behind the folding-doors leading into the body of the House, and at five o'clock, as Mr. Perceval advanced up the lobby, he presented one of his pistols and fired. His aim was true, and the ball entered the left breast of his victim and passed through his heart. Mr. Perceval reeled a short distance, and exclaiming "Murder!" in a low tone of voice, he fell to the ground. He was instantly picked up by Mr. Smith, the member for Norwich, and another gentleman, and carried into the office of the speaker's secretary, where he expired almost immediately. Loud cries of "Shut the door—let no one out," were heard immediately after the shot was fired, and several persons exclaimed, "Where's the murderer?" Bellingham, who still held the pistol in his hand, answered, "I am the unfortunate man," and he was immediately seized and searched. Mr. V. G. Dowling was among the first who went up to him; and on his examining his person, he found in his left-hand trousers pocket a pistol loaded with ball and primed. There were also found upon him an opera-glass, with which he had been accustomed to examine the persons of the members of the House while sitting in the gallery, and a number of papers. Upon his being interrogated as to his motives for committing such an act, he replied, "Want of redress, and denial of justice."

During the momentary confusion which followed the firing of the pistol, he made no attempt to escape; and though when taken into custody he betrayed some agitation, he soon recovered his self-possession, and with great calmness answered every question put to him.

During his examination before the magistrates up-stairs in the House of Commons, he still retained his self-possession, and even corrected a witness as to an omission in his evidence. He persisted in denying any personal enmity to Mr. Perceval, for whose death he expressed the greatest sorrow, separating, by a confusion of ideas, the man from the minister; and seemed to think he had not injured the individual, though he had taken away the life of the chancellor of the exchequer.

This event excited the greatest sensation in the country. A cabinet council was called, and the mails were stopped, until instructions were



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prepared to secure tranquillity in the districts; for at first it was apprehended that the assassin was instigated by political motives, and that he was connected with some treasonable association.

Measures being provided for securing order through the country and the metropolis, Bellingham was removed, under a strong military escort, about one o'clock in the morning, to Newgate, and conducted to a room adjoining the chapel. One of the head turnkeys, and two other persons, sat up with

him all night. He retired to bed soon after his arrival at the jail; but he was disturbed during the night, and had no sound sleep. He rose soon after seven o'clock, and requested some tea for breakfast, of which, however, he took but little. No private persons were admitted to see him, but he was visited in the course of the day by the sheriffs and some other public functionaries. He conversed very cheerfully with the sheriffs and others who were in his room, and expressed no regret for the deed which he had perpetrated, conceiving himself, as he stated, justified in what he had done; and that it now only remained for the laws of his country to determine the nature of his guilt, which he did not seem to view in a criminal light. He stated that the question would soon be tried, when it would be seen how far he was justified. He considered the whole as "a private matter between him and the government, who gave him a *carte blanche* to do his worst, which he had done."

Alderman Combe, as one of the committing magistrates, was very active in his endeavours to trace Bellingham's connexions and habits, and for that purpose went to the house of a respectable woman where he lodged in New Millman-street, but could learn from her nothing that indicated any conspiracy with others. His landlady represented him as a quiet inoffensive man, though at times rather eccentric, which she instanced by observing, that when he had lodged there only three weeks, at 10s. 6d. per week, she was surprised to find that he had given her servant-maid half-a-guinea for herself. On being told the deed which he had perpetrated at five o'clock, on Monday the 11th of May, 1812, she said that was impossible; for that she had met him a few minutes before that time, when he told her, that he had just been to buy a prayer-book. She represented him as of a religious turn of mind.

In jail the prisoner requested to have pen, ink, and paper, to write some letters to his friends; and he accordingly wrote one to his family at Liverpool, which was delivered open to Mr. Newman. The following was sent to Mrs. Roberts, No. 9, New Millman-street, the lady at whose house he lodged. It will serve to show the state of his mind in the miserable situation to which he had reduced himself:

"Tuesday morning, Old Bailey.

"DEAR MADAM,—Yesterday midnight I was escorted to this neighbourhood by a noble troop of Light Horse, and delivered into the care

of Mr. Newman (by Mr. Taylor, the magistrate, and M. P.) as a state prisoner of the first class. For eight years I have never found my mind so tranquil as since this melancholy but necessary catastrophe: as the merits or demerits of my peculiar case must be regularly unfolded in a criminal court of justice to ascertain the guilty party, by a jury of my country. I have to request the favour of you to send me three or four shirts, some cravats, handkerchiefs, night-caps, stockings, &c., out of my drawers, together with comb, soap, tooth-brush, with any other trifle that presents itself which you think I may have occasion for, and inclose them in my leather trunk, and the key please to send sealed, per bearer; also my great-coat, flannel gown, and black waistcoat: which will much oblige,

“Dear madam, your very obedient servant,

“JOHN BELLINGHAM.

“To the above please to add the prayer-books.

“To MRS. ROBERTS.”

Soon after two o'clock the wretched prisoner ate a hearty dinner, and requested that in future he might dine at about the same hour; and after passing the rest of the day in a tranquil manner, he retired to bed at twelve, and slept until seven the next morning, being attended by two persons during the night. He breakfasted at about nine o'clock, and appeared perfectly composed; and on the sheriffs revisiting him, accompanied by several gentlemen, he was found to be unaltered in his demeanour. On his being spoken to on the subject of his trial, he conversed with apparent indifference; but on the melancholy fact of Mr. Perceval's murder being alluded to, he became less tranquil, persisted in vindicating the act, and said that when his trial came on before a jury of his countrymen, it would be for them to determine how far a minister of the crown was justified in refusing justice to an injured individual; and he declared that if he had a thousand lives to lose, he would have risked them in pursuit of justice in the same way. He spoke of the result of his trial with the utmost confidence; and on his being asked whether he had any commands to his wife at Liverpool, he declared that he had not, and that in a day or two he should join her in that city.

On the 15th of May, 1812, four days after the death of Mr. Perceval, the trial of the prisoner came on at the Old Bailey. The judges at ten o'clock took their seats on each side of the lord mayor; and the recorder, the Duke

of Clarence, the Marquis Wellesley, and almost all the aldermen of the city of London, occupied the bench. The court was crowded to excess, and no distinction of rank was observed; so that members of the house of commons were forced to mingle in the throng. There were also present a great number of ladies, all led by the most intense curiosity to behold the assassin, and to hear what he might urge in defence or in palliation of his atrocious act.

At length Bellingham appeared, and advanced to the bar with a firm step, and quite undismayed. He bowed to the court most respectfully, and even gracefully; and it is impossible to describe the impression which his appearance, accompanied by this unexpected fortitude, produced. He was dressed in a light brown surtout coat, and striped yellow waistcoat; his hair plainly dressed, and without powder.

Before the prisoner was called on regularly to plead, Mr. Alley, his counsel, made application to have the trial postponed, for the purpose of procuring proofs of his client's insanity, which was alleged in two affidavits he held; and he said that he had no doubt, if time were allowed, that the prisoner could be proved to be insane. Mr. Alley was here interrupted by the court, who refused to hear him until the prisoner had first pleaded.

When the indictment was read, the usual question, "Guilty, or not guilty?" was put to Bellingham; when he addressed the court:—"My lords, —Before I can plead to this indictment, I must state, in justice to myself, that by hurrying on my trial I am placed in a most remarkable situation. It so happens that my prosecutors are actually the witnesses against me. All the documents on which alone I could rest my defence have been taken from me, and are now in possession of the crown. It is only two days since I was told to prepare for my defence; and when I asked for my papers, I was told they could not be given up. It is therefore, my lords, rendered utterly impossible for me to go into my justification; and under the circumstances in which I find myself, a trial is absolutely useless. The papers are to be given to me after the trial, but how can that avail me for my defence? I am, therefore, not ready for my trial."

The attorney-general was proceeding to explain to the court what had been done with reference to the prisoner's papers, when—

Chief-justice Mansfield interrupted him, observing, it was necessary the prisoner should first plead.

The prisoner was again interrogated, when he pleaded “Not guilty” to both counts of the indictment.

The attorney-general—“I will now answer what has fallen from the prisoner. He says, that he has been denied access to his papers. It is true that government, for the purposes of justice, has retained them—but it is also true, that he has been informed that if he asked for them at the time of his trial they should be ready; and any of them, which he might think useful to his defence, should be given to him; and in the mean time, if he considered it necessary, he might have copies of them. This we are ready to verify on oath.”

The clerk of the arraigns, Mr. Shelton, then read the indictment, which charged the prisoner in the usual way with the murder of the Right Hon. Spencer Perceval, with which he was also charged on the coroner’s inquisition.

Mr. Abbott having opened the case,

The Attorney-general addressed the jury. He said that a lamentable and painful task devolved upon him to state to the jury the circumstances of this horrid murder,—a crime perpetrated on a man whose whole life, he should have thought, would have guarded and protected him against such an attack—who, he was sure, if enough of life had been left him to see by whose hand he had fallen, would have spent his last moment in uttering a prayer for the forgiveness of his murderer. But it was not a time for him to dwell on the public loss, which had been sustained,—its brightest ornament had been torn from the country—but the country had done justice to his memory. These were not considerations, however, by which they must be swayed. It was not revenge, nor was it resentment, that ought to have any influence on their consideration of the question. They were to satisfy public justice—to take care, by their verdict, that the public should not be exposed to such horrid crimes. With respect to the prisoner, he knew nothing; nor did he know how his life had been spent, except so far as related to the circumstances of the case. He had been in business, and had acted as a merchant, in the course of which he had shown himself a man of sound understanding in every act which he performed; and he had not only conducted his own affairs with understanding, but he had been selected by other persons to manage theirs. Having stated the main facts of the case as we have already detailed them, he entreated the jury to consider it not as the

murder of so eminent a person, but as the murder of a common individual—to suppose the meanest subject to have suffered as Mr. Perceval had suffered, and to return their verdict as they would upon that case. Was he or was he not guilty?—to that point they must direct their attention, and he knew of no reason to cause even a doubt. But what remained? This only,—the attempt which had been made that day to put off the trial of the prisoner, on the ground of his being fit for this or any other crime, as he was afflicted with insanity. Let them consider this a little. The prisoner was a man conducting himself like others in all the ordinary circumstances of life—who carried on business, none of his family or friends interfering—no pretence being suggested that he was unable to superintend his own affairs. What clearer proofs, then, could be given to show, contrary to the defence set up, that he was not what the law called *non compos mentis*—that he was an accountable being? He knew the cases where the plea of insanity would be received—where for instance a murder was committed by a person whose mental infirmity might be considered as very nearly the absence of all mind. Against their defence there was no argument. But he was this day to learn, whether the wickedness of the act which the prisoner was called on to answer was to be considered an excuse for its perpetration. Travelling through his whole life, what ground could they adduce for such a plea? His every act appeared rational, except one; and that was only irrational, because it was so horrid that the imagination of man could not fancy to itself the existence of so atrocious a deed. But how far must this argument go? It must arrive at this conclusion—that every act of gross and unusual atrocity would carry its defence along with it, that every act of peculiar horror would have within itself a certain defence, for the barbarity of the deed would be considered as a proof that the mind which directed it was not in a state of sufficient security to judge whether the action was right or wrong; and if the mind possessed the power of forming that judgment, the prisoner was criminally accountable for the act. A man might be infirm in mind, insufficient to dispose of his property, or to judge of the claims of his respective relatives; and if he were in that situation, the management of his affairs might be taken from him and vested in trustees: but such a man was not discharged from criminal acts because he could not transact civil business. Many cases had occurred within his memory in courts of law, in which it was proved that a person in many respects had evinced symptoms of insanity up to a certain time; but the question then was, whether that

insanity was of such a description as precluded or permitted the knowledge of right or wrong? In every one of the cases which recurred to his memory, though a certain degree of madness was proved, still as the parties seemed to have sufficient sense to distinguish right from wrong at the time of the perpetration of the acts charged against them, they were held to be criminally accountable. Here there was no deficiency of understanding whatever—no opinion of others to that effect was adduced; on the contrary, he was entrusted with the management of his own and others' affairs. The question was, whether at the time the murder was perpetrated he possessed sufficient sense to distinguish between right and wrong? What conclusion could they draw in favour of the idea which had been suggested? Let them take from their recollection the frightful nature of the act with the commission of which he was charged, let them take from it its accumulated horrors, and the prisoner stood before them in a state of sanity, and fully accountable for the act, of which, he thought, little doubt could be entertained he had been guilty.—The learned gentleman concluded by expressing his satisfaction at the fact that the prisoner stood alone on that occasion; that he was unconnected with, and unaided and uninfluenced by any other person or party in the country, and that this deed could not therefore be attributed to any but the personal feelings which he entertained towards his majesty's government. On him, and on him only, did the disgrace which he had excited rest, and the character of the country was entirely free from any participation in it.

The first witness called on the part of the crown was—

Mr. William Smith (M. P. for Norwich), who, being sworn, deposed as follows:—

He was on his way to attend the House of Commons on the evening of Monday, the 11th of May, and was going through the lobby towards the door of the house, when he heard the report of a pistol, which appeared to have been fired close to the entrance-door of the lobby. Immediately on the report, he turned towards the place from whence the noise appeared to proceed, and observed a tumult, and probably a dozen or more persons about the spot. Almost in the same instant he saw a person rush hastily from among the crowd, and heard several voices cry out, "Shut the doors—let no one escape." The person came towards him from the crowd, looking first one way, then another, rather like one seeking for shelter than the person wounded. But taking two or three steps towards the witness, he reeled by

him, and almost instantaneously fell on the floor with his face downward. Before he fell, witness heard him cry, though not very distinctly; and in what he uttered, he heard the word “murder!” or something very like it. When he first fell, witness thought that he might have been slightly wounded, and expected to see him make an effort to rise; but gazing on him for a few moments, he observed that he did not stir at all, and he, therefore, immediately stooped down to raise him from the ground, requesting the assistance of a gentleman close by him for the purpose. As soon as they had turned his face upwards, and not till then, he found that it was Mr. Perceval. They then took him into their arms, and carried him into the office of the speaker’s secretary, where they seated themselves on the table, with Mr. Perceval between them, also sitting on the table, and resting on their arms. His face was now perfectly pale, the blood issuing in small quantities from each corner of his mouth, and probably in two or three minutes from the firing of the pistol all signs of life had ceased. The eyes of the unfortunate gentleman were open, but he did not appear to know witness, nor to take any notice of any person about him, nor did he utter the least articulate sound from the moment he fell. A few convulsive sobs, which lasted perhaps three or four moments, together with scarcely a perceptible pulse, were the only signs of life which appeared then, and those continued but a very short time longer; and when witness felt Mr. Perceval’s pulse for the last time, just before Mr. Lynn, the surgeon, arrived, it appeared to him that he was quite dead. Witness remained supporting the body until it was conveyed into the speaker’s house, but he was unable to give any account of what passed in the lobby.

Mr. William Lynn, a surgeon in Great George-street, deposed that he was called to the deceased, but on his arrival he was quite dead. There was blood upon his white waistcoat and shirt; and upon his examining the body, he found that there was an opening in the skin. He probed the wound three inches downwards, and entertained no doubt that the pistol-ball passed into the heart, and was the cause of death.

Mr. Henry Burgess, a solicitor who was in the lobby, stated, that after having seen Mr. Perceval fall, as had been already described, he heard some one exclaim, “That’s the man!” and saw a hand pointing towards the bench by the fire-place, which is on one side of the lobby. He immediately went over to the bench, and saw the prisoner at the bar sitting on it in great agitation. There were one or two persons by him; he looked at his hands,

and saw his left hand on the bench; and near or under his other hand he saw a pistol, which he took, and asked the prisoner what had induced him to do such a deed? He replied, "Want of redress of grievances, and refusal by government," or words to that effect. Witness then said to the prisoner, "You have another pistol?" He replied, "Yes." Witness asked if it was loaded? to which he answered in the affirmative. Witness then saw some person take the other pistol from his person. The pistol which witness took from the prisoner was warm, and appeared as if it had been recently discharged. The lock was down and the pan open. (Here the pistol was produced, and recognised by the witness.) He then stated, that he put his hand into the right waistcoat-pocket of the prisoner, from which he took a small penknife and a pencil, and from his left-hand waistcoat-pocket he took a bunch of keys and some money. The prisoner was detained in custody, and examined shortly afterwards above stairs in the House of Commons before the magistrates. Witness related in the presence of the prisoner, on that occasion, the facts which he had now detailed. When he had concluded, the prisoner made an observation to this effect, as well as he could recollect. "I wish to correct Mr. Burgess' statement in one point; but I believe he is perfectly correct in every other. Instead of my hand being, as Mr. Burgess stated, upon or near the pistol, I think he took it from my hand, or upon it."

James Taylor, a tailor, at No. 11, North Place, Gray's-Inn Lane, deposed that he had been employed by the prisoner to repair some clothes. He was afterwards in Guildford Street, when the prisoner called him, and took him to his lodgings in Millman Street, and there directed him to put a side-pocket into a coat, which he gave him, of a particular length which he pointed out. He completed the job on the same night, and carried the coat home.

Mr. John Morris stated that he often attended in the gallery appropriated for strangers, and went down to the House on Monday, the 11th of May, for that purpose. He passed into the lobby about the hour of five in the afternoon. He observed the prisoner at the bar standing in the lobby near the outer door; he was standing beside that part of the door which is generally closed. It was a double door, and one half was usually closed, within which half the prisoner was standing, and any one to have entered the lobby must have passed him at arm's length. He observed the prisoner as if watching for somebody coming, and he appeared to look anxiously towards the door.

As well as the witness recollected, the prisoner had his right hand within the left breast of his coat. Witness passed on to the staircase of the gallery, and almost immediately after he got into the upper lobby, he heard the report of a pistol, and found soon after that it was connected with the fatal event which occurred on that evening. He had frequently seen the prisoner before in the gallery, where gentlemen who report the parliamentary proceedings resorted, and about the passages of the House of Commons.

John Vickery, a Bow Street officer, said that he went on Monday afternoon to New Millman Street, to the lodgings of the prisoner, which he searched, and found, in the bed-room up stairs, a pair of pistol-bags, and in the same drawer a small powder-flask, and some powder in a small paper, a box with some bullets, and some small flints wrapped in paper. There was also a pistol-key to unscrew the pistol for the purpose of loading, and some sand-paper and a pistol-mould. The witness on comparing the bullet found in the loaded pistol with the mould, and the screw with the pistols, found them all to correspond.

Mr. Vincent George Dowling was next called. He stated that he was in the gallery on the afternoon in question, and ran down into the lobby on hearing the report of a pistol. He saw the prisoner at the bar sitting on a stool, and going to him, he seized him and began to search his person. He took from his left-hand small-clothes pocket a small pistol, which he produced, and which, on his examining it, he found to be loaded with powder and ball. It was primed as well as loaded. The pistol which had been discharged and that which he took from the prisoner were in his belief a brace; they were of the same size and bore, and were marked with the same maker's name. The witness had seen the prisoner several times before in the gallery and in the avenues of the house, and to the best of his recollection the last time he saw him was six or seven days before the death of Mr. Perceval. He was frequently in the gallery during the debates, and upon several occasions entered into conversation with the witness. He had often asked for information as to the names of the gentlemen speaking, and also as to the persons of the members of his majesty's government.

Other witnesses from Newgate produced the coat worn by the prisoner at the time of his apprehension, and it was identified by Taylor as the same into which he had put the side-pocket.

Lord Chief-justice Mansfield then addressed the prisoner, and told him, that the case on the part of the crown being now gone through, the period was come for him to make any defence he might wish to offer.

The prisoner asked whether his counsel had nothing to urge in his defence?

Mr. Alley informed him that his counsel were not entitled to speak.

The prisoner then said that the documents and papers necessary to his defence had been taken out of his pocket, and had not since been restored to him.

Mr. Garrow said, that it was the intention of the counsel for the crown to restore him his papers, having first proved them to be the same which were taken from him, and had not suffered any subtraction; and that his solicitor already had copies of them.

General Gascoigne and Mr. Hume (M. P. for Weymouth) proved that the papers were those which had been taken from the person of the prisoner, and that they had been in their custody ever since, and had suffered no subtraction.

The papers were then handed to the prisoner, who proceeded to arrange and examine them.

The prisoner, who had been hitherto sitting, now rose, and, bowing respectfully to the court and jury, went into his defence, in a firm tone of voice, and without any appearance of embarrassment. He spoke nearly to the following effect:—

“I feel great personal obligation to the attorney-general for the objection which he has made to the plea of insanity. I think it is far more fortunate that such a plea as that should have been unfounded, than that it should have existed in fact. I am obliged to my counsel, however, for having thus endeavoured to consult my interest, as I am convinced the attempt has arisen from the kindest motives. That I am or have been insane is a circumstance of which I am not apprised, except in the single instance of my having been confined in Russia; how far that may be considered as affecting my present situation, it is not for me to determine. This is the first time that I have ever spoken in public in this way. I feel my own incompetency, but I trust you will attend to the substance, rather than to the manner, of my investigating the truth of an affair which has occasioned my presence at this bar. I beg to assure you that the crime which I have

committed has arisen from compulsion rather than from any hostility to the man whom it has been my fate to destroy. Considering the amiable character and universally admitted virtues of Mr. Perceval, I feel, if I could murder him in a cool and unjustifiable manner, I should not deserve to live another moment in this world. Conscious, however, that I shall be able to justify everything which I have done, I feel some degree of confidence in meeting the storm which assails me, and shall now proceed to unfold a catalogue of circumstances which, while they harrow up my own soul, will, I am sure, tend to the extenuation of my conduct in this honourable court. This, as has already been candidly stated by the attorney-general, is the first instance in which any the slightest imputation has been cast upon my moral character. Until this fatal catastrophe, which no one can more heartily regret than I do, not excepting even the family of Mr. Perceval himself, I have stood alike pure in the minds of those who have known me, and in the judgment of my own heart. I hope I see this affair in the true light. For eight years, gentlemen of the jury, have I been exposed to all the miseries which it is possible for human nature to endure. Driven almost to despair, I sought for redress in vain. For this affair I had the *carte blanche* of government, as I will prove by the most incontestible evidence, namely, the writing of the secretary of state himself. I come before you under peculiar disadvantages. Many of my most material papers are now at Liverpool, for which I have written; but I have been called upon my trial before it was possible to obtain an answer to my letter. Without witnesses, therefore, and in the absence of many papers necessary to my justification, I am sure you will admit I have just grounds for claiming some indulgence. I must state that after my voyage to Archangel, I transmitted to his royal highness the Prince Regent, through Mr. Windle, my solicitor, a petition, and in consequence of there being no reply I came to London to see the result. Surprised at the delay, and conceiving that the interests of my country were at stake, I considered this step as essential, as well for the assertion of my own right as for the vindication of the national honour. I waited upon Colonel MacMahon, who stated that my petition had been received, but, owing to some accident, had been mislaid. Under these circumstances, I drew out another account of the particulars of the Russian affair; and this may be considered the commencement of that train of events which led to the afflicting and unhappy fate of Mr. Perceval."

The prisoner then read various documents containing the statement the whole of his affairs in Russia; and in the course of narrating these hardships, took occasion to explain several points, adverting with great feeling to the unhappy situation in which he was placed, from the circumstance of his having been lately married to his wife, then about twenty years of age, with an infant at her breast, and who had been waiting for him at St. Petersburg, in order that she might accompany him to England,—a prey to all those anxieties which the unexpected and cruel incarceration of her husband, without any just grounds, was calculated to excite. (He was here much affected.) He also described his feelings at a subsequent period, when his wife, from an anxiety to reach her native country (England) when in a state of pregnancy, and looking to the improbability of his liberation, was obliged to quit Petersburg unprotected, and undertake the voyage at the peril of her life; while Lord L. Gower and Sir S. Shairp suffered him to remain in a situation worse than death. “My God! my God!” he exclaimed, “what heart could bear such excruciating tortures, without bursting with indignation at conduct so diametrically opposite to justice and to humanity. I appeal to you, gentlemen of the jury, as men—I appeal to you as brothers—I appeal to you as Christians—whether, under such circumstances of persecution, it was possible to regard the actions of the ambassador and consul of my own country with any other feelings but those of detestation and horror! In using language thus strong, I feel that I commit an error; yet does my heart tell me, that towards men who lent themselves thus to bolster up the basest acts of persecution, there are no observations, however strong, which the strict justice of the case would not excuse my using. Had I been so fortunate as to have met Lord Leveson Gower instead of that truly amiable and highly-lamented individual, Mr. Perceval, he is the man who should have received the ball!”

The prisoner then went on to state that on his coming to England he had represented his hardships to the Marquis Wellesley, from whose secretary he received the following answer:—

“Foreign Office, January 31, 1810.

“SIR,—I am directed by the Marquis Wellesley to transmit to you the papers which you sent to this office, accompanied by your letter of the 27th of last month; and I am to inform you, that his majesty’s government is precluded from interfering in the support of your case, in some measure, by

the circumstances of the case itself, and entirely so at the present moment by the suspension of intercourse with the court of St. Petersburg.

“I am, &c.

(Signed)

“CULLING CHARLES SMITH.”

“I would beg to know (he continued) what course it was possible for me, after receiving this letter, to pursue? If his majesty’s government thus refused me redress, what must be my next step? The only thing I could do was, to bring a serious charge against Sir Stephen Shairp and Lord Leveson Gower; which I accordingly did, by addressing a complete statement of my case to the privy council, from whom I received the following answer:—

“ ‘Council Office, Whitehall, May 16, 1810.

“ ‘Sir,—I am directed by the lords of the council to acquaint you, that their lordships having taken into consideration your petition on the subject of your arrest in Russia, do not find that it is a matter in which their Lordships can, in any manner, interfere.

‘I am, Sir, &c.

‘W. FAWKNER.’

“Having then understood that any remuneration which I might conceive myself entitled to, I could only procure through the medium of parliament, I applied myself to several members of parliament, to ascertain what line of conduct I ought to pursue in order to obtain that desirable end. These gentlemen told me, that I should make application to the chancellor of the exchequer—thus petitioning for leave to bring in a petition upon a subject which, being well founded, became a matter of right, and not of favour. In consequence, however, of this advice, I did write a letter to Mr. Perceval, from whom I received an answer dated Downing Street, 27th May 1810, as follows:—

“ ‘SIR,—I am desired by Mr. Perceval to state to you, in reply to your letter of yesterday, that the time for presenting private petitions has long since passed; and that Mr. Perceval cannot encourage you to expect his sanction in introducing into the house a petition which Mr. Perceval thinks is not of a nature for the consideration of parliament.

‘I am, &c.

‘THOMAS BROOKSBANK.’

“I apprehend, however, that this information is not founded in fact: if I am wrong, I see several gentlemen round me, connected with the house of commons, who will set me right. That there is no particular time limited for the presentation of private petitions, and that they might be brought forward at any period of the session, I am inclined to think the usages of the house will permit. The latter clause of Mr. Perceval’s letter, which states that my claims are not of a nature for the consideration of parliament, appears to me inexplicable. If they are not referred to that branch of the legislature, to whose consideration then ought they to be submitted? Yet thus was I bandied about from man to man, and from place to place. Suppose this had been the case with either of you, gentlemen of the jury, and that your sufferings had been equal to mine, what would have been your feelings? It is the duty of every individual to apply through the proper channel for redress, and through what other channel ought you to apply but through the heads of government? Upon this occasion, however, those whose duty it was to have redressed my grievances treated them with indifference, and were deaf to the dictates of justice. In consequence of this denial on the part of Mr. Perceval to investigate a business in which the national honour was concerned, I was left at a loss how to act, or what course to pursue: I, therefore, returned home, and remained inactive for nearly eighteen months, when, finding that I could no longer hold up against the ruinous effects of those failures which were the consequence of the injustice with which I had been treated, every one coming upon me for that which I was unable to pay, and my family borne down by the deepest affliction at the distresses to which they were exposed, I found it necessary to renew my applications, which I did to the treasury, and submitted to them a petition, reiterating those claims I had so unsuccessfully made before. To this application I received for answer—

“ ‘Treasury Chambers, Feb. 24, 1810.

“ ‘SIR,—Having laid before the lords commissioners of his majesty’s treasury your petition of the 16th instant, submitting a statement of losses sustained by you in Russia, and praying relief, I am commanded by their lordships to return to you the documents transmitted therewith, and to acquaint you that my lords are not able to afford you any relief.

‘I am, &c.

‘GEO. HARRISON.’

“I next made application to his royal highness the Prince Regent to have my affairs laid before parliament, explaining anew the disgraceful conduct of the consul and ambassador at Russia, who, by suffering me to be so persecuted, had been guilty of an act which brought eternal disgrace on the country. (Here he read documents similar to the former, and repeated all the statements respecting the manner in which he had been treated in Russia.) The answer I received was as follows:

“ ‘Whitehall, Feb. 18, 1812.

“ ‘SIR,—I am directed by Mr. Secretary Ryder to acquaint you that your petition to his royal highness the Prince Regent has been referred, by the command of his royal highness, for the consideration of the lords of his majesty’s most honourable privy council.

‘I am, &c.

‘J. BECKETT.’

“After this I made application to the privy council office, and had communications with Lord Chetwynd and Mr. Duller, the two clerks of that council, who informed me that I had nothing to expect from their decision. I then applied to know the reason in writing, why the privy council declined to act in obedience to the instructions of his royal highness the Prince Regent; which request I was informed by Mr. Litchfield could not be complied with.

“Under these circumstances, I communicated the whole to his royal highness, and enclosed to him a petition to be laid before parliament. (The petition was here read, and the answer of Mr. Beckett, dated March 9, 1812, stating that his royal highness had signified no commands thereupon, and returning the petition accordingly.) So baffled (he pursued), what could a man do? Reduced to the last extremity of distress without having been guilty of a single political crime which could call for reprehension, here I was forced to the commission of that melancholy act (bursting into tears) which I, as well as my country, have so sincerely to regret. My wife and my poor children crying for the means of existence, what alternative had I but to seek redress by some such dreadful act as that for which I have now to answer? His majesty’s ministers, referring me backwards and forwards like a shuttlecock, without showing the slightest disposition even to regard my wrongs as deserving of the smallest consideration, in duty to myself, I was

forced to seek justice, and avenge my own cause. I was told I could not get my case before parliament without the sanction of his majesty's ministers. To General Gascoigne, for the politeness and attention with which he heard my statement, and the disposition he evinced to relieve me were it in his power, I have to express my gratitude. He informed me, if any of his majesty's ministers would sanction my claims, and that I was able to authenticate the particulars I had related, he should be happy to meet my wishes by laying my petition before the house. Supposing now that I should feel little difficulty in obtaining such sanction, and satisfied that by a journey to Liverpool I should be able to produce documents which would fully establish the truth of every word I had uttered, I began to hope that the goal of my long-hoped-for wishes was now in view. I, therefore, directed a letter to Mr. Ryder, requesting the permission I understood to be essential to my purpose. Here, however, my expectations were again blasted, and those flattering dreams of success which had filled my mind with joy were dashed for ever from my reach; and this letter at once showed me that I had no justice to look for." Here he read the letter as follows:—

"Whitehall, March 20, 1812.

"SIR,—I am directed by Mr. Secretary Ryder to acknowledge the receipt of your letter of the 17th instant, requesting permission, on the part of his majesty's ministers, to present your petition to the house of commons; and in reply I am to acquaint you, that you should address your application to the right hon. the chancellor of the exchequer.

"I am, &c.

"J. BECKETT."

"At last, then, I was told I had nothing to expect, and was forced reluctantly to notice in a more determined manner the ill-treatment I had received. To this end I enclosed the particulars of my case to the magistrates of Bow Street. (The prisoner then read the letter which we have already given.)

"In the course of two days I called again at Bow Street for an answer to this letter, when I received a little memorandum, in Mr. Reid's writing, in which he states that he cannot interfere in my affairs, and that he had felt it his duty to communicate the contents of my packet to the secretary of state. Had he done otherwise he would have been extremely reprehensible, as

events have turned out so calamitously—events which go to my heart to allude to. (Much affected.) At last, in reply to a letter of the 18th of April, I received a final and direct answer, which at once convinced me that I had no reason to expect any adjustment whatever of those claims which I had on his majesty's government, for my criminal detention in Russia. It was in these terms:—

“ ‘Whitehall, April 18, 1812.

“ ‘SIR,—I am directed by Mr. Secretary Ryder to acknowledge the receipt of your letter of the 13th instant, requesting to be informed in what stage your claim on his majesty's government for criminal detention in Russia now is. In reply, I am to refer you to my several letters of the 18th of February, 9th and 20th of March, by which you have been already informed that your first petition to his royal highness the Prince Regent, praying for remuneration, had been referred to the consideration of the lords of the council. That upon your second memorial, praying his royal highness to give orders that the subject should be brought before parliament, his royal highness had not been pleased to signify any commands. And, lastly, in answer to your application to Mr. Ryder, requesting permission on the part of his majesty's ministers to present your petition to the house of commons, you were informed that your application should be addressed to the right hon. the chancellor of the exchequer.

‘I am, &c.

‘J. BECKETT.’

“After this, on personal application at the office of the secretary of state, and intimating my intention to take justice in my own hand, I was told, by the mouth of Mr. Hill, that I was at liberty to take such measures as I thought proper. Who then is to be reprobated in this case?—those who were regardless of every feeling of honour and of justice, or him who, spurred on by injury and neglect, and with a due notice of his intentions, pursued the only course likely to lead to a satisfactory termination of calamities which had weighed him down to the lowest ebb of misery! I will now only mention a few observations by way of defence. You have before you all the particulars of this melancholy transaction. Believe me, gentlemen, the rashness of which I have been guilty has not been dictated by any personal animosity to Mr. Perceval, rather than injure whom, from private or

malicious motives, I would suffer my limbs to be cut from my body. (Here the prisoner seemed again much agitated.)

“If, whenever I am called before the tribunal of God, I can appear with as clear a conscience as I now possess in regard to the alleged charge of the wilful murder of the unfortunate gentleman, the investigation of whose death has occupied your attention, it would be happy for me, as essentially securing to me eternal salvation; but that is impossible. That my arm has been the means of his melancholy and lamented exit, I am ready to allow. But to constitute murder, it must clearly and absolutely be proved to have arisen from malice prepense, and with a malicious design, as I have no doubt the learned judge will shortly lay down, in explaining the law on the subject. If such is the case, I am guilty; if not, I look forward with confidence to your acquittal.

“That the contrary is the case has been most clearly and irrefutably proved; no doubt can rest upon your minds, as my uniform and undeviating object has been an endeavour to obtain justice, according to law, for a series of the most long-continued and unmerited sufferings that were ever submitted to a court of law, without having been guilty of any other crime than an appeal for redress for a most flagrant injury offered to my sovereign and my country, wherein my liberty and property have fallen a sacrifice for the continued period of eight years, to the total ruin of myself and family (with authenticated documents of the truth of the allegations), merely because it was Mr. Perceval’s pleasure that justice should not be granted, sheltering himself with the idea of there being no alternative remaining, as my petition to parliament for redress could not be brought (as having a pecuniary tendency) without the sanction of his Majesty’s ministers, and that he was determined to oppose my claim, by trampling both on law and right.

“Gentlemen, where a man has so strong and serious a criminal case to bring forward as mine has been, the nature of which was purely national, it is the bounden duty of government to attend to it; for justice is a matter of right, and not of favour. And when a minister is so unprincipled and presumptuous at any time, but especially in a case of such urgent necessity, to set himself above both the sovereign and the laws, as has been the case with Mr. Perceval, he must do it at his personal risk; for by the law he cannot be protected.

“Gentlemen, if this is not fact, the mere will of a minister would be law; it would be this thing to-day and the other thing to-morrow, as either interest or caprice might dictate.—What would become of our liberties? Where would be the purity and the impartiality of the justice we so much boast of?—To government’s non-attendance to the dictates of justice is solely to be attributed the melancholy catastrophe of the unfortunate gentleman, as any malicious intention to his injury was the most remote from my heart. Justice, and justice only, was my object, which government uniformly objected to grant; and the distress it reduced me to, drove me to despair in consequence; and, purely for the purpose of having this singular affair legally investigated, I gave notice at the public office, Bow Street, requesting the magistrates to acquaint his majesty’s ministers, that if they persisted in refusing justice, or even to permit me to bring my just petition into parliament for redress, I should be under the imperious necessity of executing justice myself, solely for the purpose of ascertaining, through a criminal court, whether his majesty’s ministers have the power to refuse justice to a well-authenticated and irrefutable act of oppression, committed by the consul and ambassador abroad, whereby my sovereign’s and country’s honour were materially tarnished, by my person endeavouring to be made the stalking-horse of justification, to one of the greatest insults that could be offered to the crown. But in order to avoid so reluctant and abhorrent an alternative, I hoped to be allowed to bring my petition to the house of commons—or that they would do what was right and proper themselves. On my return from Russia, I brought most serious charges to the privy council, both against Sir Stephen Shairp and Lord Granville Leveson Gower, when the affair was determined to be purely national, and consequently it was the duty of his majesty’s ministers to arrange it by acting on the resolution of the council. Suppose, for instance, the charge I brought could have been proved to be erroneous, should not I have been called to a severe account for my conduct? But, being true, ought not I to have been redressed?

“After the notice from the police to government, Mr. Ryder, conscious of the truth and cruelty of the case, transmitted the affair to the Treasury, referring me there for a final result. After a delay of some weeks, the Treasury came to the resolution of sending the affair back to the secretary of state’s office; at the same time I was told by a Mr. Hill, that he thought it

would be useless my making further application to government, and that I was at liberty to take such measures as I thought proper for redress.

“Mr. Beckett, the under-secretary of state, confirmed the same, adding that Mr. Perceval had been consulted, and could not allow my petition to come forward. This direct refusal of justice, with a *carte blanche* to act in whatever manner I thought proper, were the sole causes of the fatal catastrophe—and they have now to reflect on their own impure conduct for what has happened.

“It is a melancholy fact, that the warping of justice, including all the various ramifications in which it operates, occasions more misery in the world, in a moral sense, than all the acts of God in a physical one, with which he punishes mankind for their transgressions; a confirmation of which, the single, but strong, instance before you is one remarkable proof.

“If a poor unfortunate man stops another upon the highway, and robs him of but a few shillings, he may be called upon to forfeit his life. But I have been robbed of my liberty for years, ill-treated beyond precedent, torn from my wife and family, bereaved of all my property to make good the consequences of such irregularities, deprived and bereaved of everything that makes life valuable, and then called upon to forfeit it, because Mr. Perceval has been pleased to patronize iniquity that ought to have been punished, for the sake of a vote or two in the House of Commons, with, perhaps, a similar good turn elsewhere.

“Is there, gentlemen, any comparison between the enormity of these two offenders? No more than a mite to a mountain. Yet the one is carried to the gallows, while the other stalks in security, fancying himself beyond the reach of law or justice; the most honest man suffers, while the other goes forward in triumph to new and more extended enormities.

“We have had a recent and striking instance of some unfortunate men who have been called upon to pay their lives as the forfeit of their allegiance, in endeavouring to mitigate the rigours of a prison. But, gentlemen, where is the proportion between the crimes for which they suffered, and what the Government has been guilty of, in withholding its protection from me? Even in a Crown case, after the years of sufferings, I have been called upon to sacrifice all my property, and the welfare of my family, to bolster up the iniquities of the Crown; and then am prosecuted for my life, because I have taken the only possible alternative to bring the affair

to a public investigation, for the purpose of being enabled to return to the bosom of my family with some degree of comfort and honour. Every man within the sound of my voice must feel for my situation; but by you, gentlemen of the jury, it must be felt in a peculiar degree, who are husbands and fathers, and can fancy yourselves in my situation.—I trust that this serious lesson will operate as a warning to all future ministers, and lead them to do the thing that is right, as an unerring rule of conduct; for, if the superior classes were more correct in their proceedings, the extensive ramifications of evil would, in a great measure, be hemmed up—and a notable proof of the fact is, that this court would never have been troubled with the case before it, had their conduct been guided by these principles.

“I have now occupied the attention of the court for a period much longer than I intended; yet, I trust, they will consider the awfulness of my situation to be a sufficient ground for a trespass, which, under other circumstances, would be inexcusable. Sooner than suffer what I have suffered for the last eight years, however, I should consider five hundred deaths, if it were possible for human nature to endure them, a fate far more preferable. Lost so long to all the endearments of my family, bereaved of all the blessings of life, and deprived of its greatest sweet, liberty, as the weary traveller, who has long been pelted by the pitiless storm, welcomes the much desired inn, I shall receive death as the relief of all my sorrows. I shall not occupy your attention longer; but, relying on the justice of God, and submitting myself to the dictates of your conscience, I submit to the *fiat* of my fate, firmly anticipating an acquittal from a charge so abhorrent to every feeling of my soul.”

Here the prisoner bowed, and his counsel immediately proceeded to call the witnesses for the defence.

Anne Billet, who appeared under the strongest impressions of grief, being sworn, deposed, that she lived in the county of Southampton; she came to London in consequence of having read in the newspapers of the prisoner having been apprehended for the murder of Mr. Perceval. She was induced to come to town, from a conviction that she knew more of him than any other friend. She knew him from a child. He resided latterly at Liverpool, from whence he came at Christmas last. She knew him to be a merchant. His father died insane in Titchfield-street, Oxford-road; she firmly believed that, for the last three or four years, the prisoner was in a state of derangement, respecting the business which he had been pursuing.

She had not seen him for twelve months until the present moment. She always thought him deranged when his Russian affairs were the subject of conversation.

When cross-examined by Mr. Garrow, she deposed, that when in London with the prisoner about twelve months since, he was going to different government offices to seek redress of his grievances. He was then in a state of derangement, as he had been ever since his return from Russia. There was one instance which occurred at the period to which she was alluding, which strongly confirmed her in the opinion of his insanity. About Christmas he told his wife and witness, that now he was come from Russia he had realised more than 100,000*l.*, with which he intended to buy an estate in the west of England, and to have a house in London.—He admitted that he had not got the money, but said it was the same as if he had, for he had gained his cause in Russia, and our government would make good all the loss he had sustained. He repeatedly said to her and to his wife that this was assuredly the fact. Upon one occasion he took Mrs. Bellingham and the witness to the secretary of state's office, where they saw Mr. Smith, who said if he had not ladies with him he would not have come to him at all.—The prisoner told Mr. Smith, that the reason why he brought them was, to convince them that his claims were just, and that he would very shortly receive the money. Mr. Smith told him he could say nothing upon this subject; he had already sent him a letter alleging that he had nothing to expect. The prisoner then requested Mr. Smith would answer him one question—"My friends say I am out of my senses; is it your opinion that I am so?" Mr. Smith said it was a very delicate question, and one he did not wish to answer. Having then departed, when they got into the carriage which waited for them, he took hold of his wife's hand and said, "I hope, now, my dear, you are convinced all will now end as we wish." Since that period she knew that he had been pursuing his object *alone*, his wife remaining at Liverpool.

Other witnesses were called, who deposed to like facts and to their belief in the insanity of the prisoner, but Lord Chief Justice Mansfield having summed up the case, the jury, after a consultation of two minutes and a half in the box, expressed a wish to retire; and an officer of the court being sworn, accompanied them to the jury-room. As they passed out, the prisoner regarded them separately with a look of mingled confidence and complacency. They were absent fourteen minutes; and, on their return into

court, their countenances, acting as indices to their minds, at once unfolded the determination to which they had come. The prisoner again directed his attention to them in the same manner as before.

The names being called over, and the verdict asked for in the usual form, the foreman in a faltering voice, announced the fatal decision of—Guilty.

The prisoner's countenance here indicated surprise, unmixed, however, with any demonstrations of that concern which the awfulness of his situation was calculated to produce.

The Recorder then passed the awful sentence of death on the prisoner in the most feeling manner, and he was ordered for execution on the following Monday, his body to be anatomised. He received the sentence without any emotion.

From the time of his condemnation, the unfortunate convict was fed upon bread and water. All means of suicide were removed, and he was not allowed to be shaved; a prohibition which gave him much concern, as he feared he should not appear as a gentleman. He was visited by the ordinary on Saturday, and some religious gentlemen called on him on Sunday, with whose conversation he seemed greatly pleased. He appeared naturally depressed by his situation; but persisted in a resolute denial of his guilt. He frequently said that he had prepared himself to go to his Father, and that he should be pleased when the hour came.

Being informed, by Mr. Newman, that two gentlemen from Liverpool had called, and left word that his wife and children would be provided for, he seemed but little affected; but, having requested pen, ink, and paper, he wrote the following letter to his wife:—

“MY BLESSED MARY,—It rejoiced me beyond measure to hear you are likely to be well provided for. I am sure the public at large will participate in, and mitigate, your sorrows; I assure you, my love, my sincerest endeavours have ever been directed to your welfare.—As we shall not meet any more in this world, I sincerely hope we shall do so in the world to come. My blessing to the boys, with kind remembrance to Miss Stephens, for whom I have the greatest regard, in consequence of her uniform affection for them. With the purest intentions, it has always been, my misfortune to be thwarted, misrepresented, and ill-used in life; but, however, we feel a happy prospect of compensation in a speedy translation to life eternal.—It's not possible to be more calm or placid than I feel, and

nine hours more will waft me to those happy shores where bliss is without alloy.—Yours ever affectionate,—JOHN BELLINGHAM.”

That the unfortunate man was afflicted with a strange malady, which occasionally rendered him incapable of correct conclusions, must be evident from the following note, which he wrote the night preceding his execution:—“I lost my suit solely through the improper conduct of my attorney and counsel, Mr. Alley, in not bringing my witnesses forward (of whom there were more than twenty): in consequence, the judge took advantage of the circumstance, and I went of [on] the defence without having brought forward a single friend—otherwise I must inevitably have been acquitted.”

On the Monday morning at about six o'clock he rose and dressed himself with great composure, and read for half an hour in the prayer-book. Dr. Ford being then announced, the prisoner shook him most cordially by the hand, and left his cell for the room allotted for the condemned criminals. He repeated the declaration which he had frequently before made, that his mind was perfectly calm and composed, and that he was fully prepared to meet his fate with resignation. After a few minutes spent in prayer, the sacrament was administered to him, and during the whole of the ceremony he seemed to be deeply impressed with the truths of the christian religion, and repeatedly uttered some pious ejaculations. After the religious ceremony was ended, the prisoner was informed that the sheriff's were ready. He answered in a firm tone of voice, “I am perfectly ready also.”

The executioner then proceeded to fasten his wrists together, and the prisoner turned up the sleeves of his coat, and clasped his hands together, presenting them to the man, who held the cord, and said, “So.” When they were fastened, he desired his attendants to pull down his sleeves so as to cover the cord. The officer then proceeded to secure his arms behind him; and when the man had finished, he moved his hands upwards, as if to ascertain whether he could reach his neck, and asked whether they thought his arms were sufficiently fastened; saying, that he might struggle, and that he wished to be so secured as to prevent any inconvenience arising from it. He was answered that the cord was quite secure, but he requested that it might be tightened a little, which was accordingly done. During the whole of the awful scene he appeared perfectly composed and collected; his voice never faltered, but just before he left the room to proceed to the place of execution, he stooped down his head, and appeared to wipe away a tear. He

was then conducted by the lord mayor, sheriffs, under-sheriffs and officers (Dr. Ford walking with him) from the room, in which he had remained from the time his irons were taken off, through the press-yard and the prison to the fatal spot, before the debtors' door at Newgate.

He ascended the scaffold with rather a light step, a cheerful countenance, and a confident, a calm, but not an exulting air. He looked about him a little, lightly and rapidly, which seems to have been his usual manner and gesture, but made no remark.

Before the cap was put over his face, Dr. Ford asked if he had any last communication to make, or anything particular to say. He was again proceeding to talk about Russia and his family, when Dr. Ford stopped him, calling his attention to the eternity into which he was entering; and praying, Bellingham prayed also. The clergyman then asked him how he felt; and he answered calmly and collectedly, that "he thanked God for having enabled him to meet his fate with so much fortitude and resignation." When the executioner proceeded to put the cap over his face, Bellingham objected to it, and expressed a strong wish that the business could be done without it; but Dr. Ford said that was not to be dispensed with. While the cap was being fastened on, it being tied round the lower part of the face by the prisoner's neckerchief, and just when he was tied up, about a score of persons in the mob set up a loud and reiterated cry of "God bless you!" "God save you!" This cry lasted while the cap was fastening on; and, though those who raised it were loud and daring, it was joined in by but very few. The ordinary asked Bellingham if he heard what the mob were saying. He said he heard them crying out something, but he did not understand what it was, and inquired what. The cry having by this time ceased, the clergyman did not inform him what it was. The fastening on of the cap being accomplished, the executioner retired, and a perfect silence ensued. Dr. Ford continued praying for about a minute, while the executioner went below the scaffold, and preparations were made to strike away its supporters. The clock struck eight, and while it was striking the seventh time, the clergyman and Bellingham both fervently praying, the supporters of the internal part of the scaffold were struck away, and Bellingham dropped out of sight down as far as the knees, his body being in full view, and the clergyman was left standing on the outer frame of the scaffold. When Bellingham sunk, the most perfect and awful silence

prevailed; not even the slightest attempt at a huzza or noise of any kind whatever was made.

The body was afterwards carried in a cart, followed by a crowd of the lower class, to St. Bartholomew's Hospital, and privately dissected.

The greatest precautions were adopted to prevent accidents among the crowd.—A large bill was placarded at all the avenues to the Old Bailey, and carried about on a pole, to this effect:—"Beware of entering the crowd!—Remember thirty poor creatures were pressed to death by the crowd when Haggerty and Holloway were executed," and no accident of any moment occurred.

To prevent any disposition to tumult, a military force was stationed near Islington, and to the south of Blackfriars Bridge; and all the volunteer corps of the metropolis received instructions to be under arms during the whole of the day.

THE LUDDITES.

THE name of this deluded faction was taken from the person by whom they represented that they were led on to commit the irregularities of which they were guilty—General Ludd. It appears that the cotton manufacturers of Nottinghamshire, Derbyshire, Leicestershire, and some parts of Yorkshire, having suffered under a considerable reduction of wages and scarcity of work, which they attributed to the very extensive introduction of machinery, associated in such numbers for the destruction of frames and looms, and the annoyance of those manufacturers who had been most forward in introducing the machines, that those counties became the seat of the most serious tumults.

The crimes of which they were generally guilty were those of administering unlawful oaths, riotously assembling, and breaking the frames and looms of the manufacturers of cloth, breaking into houses, and in some instances those persons who had had sufficient hardihood to oppose their proceedings were selected by them as victims to their passions, and were barbarously murdered. The riotous proceedings of the party continued during a considerable period, but at length the active measures, which were taken by the government against them, effectually put a stop to their depredations.

Many of them having been taken into custody a special commission was issued for their trial, and was opened by Baron Thompson, at the city of York, on Monday the 4th of January 1813, in a most impressive charge to the grand jury.

On Tuesday, the 5th, the business of the court commenced with the trial of John Swallow, John Batley, Joseph Fletcher, and John Lamb, for a burglary and felony in the house of Mr. Samuel Moxon, at Whitley Upper: the jury pronounced them all guilty.

It would be useless to go into a detail of all the cases tried before the learned judges, all of which partook strongly of the same character, and we shall therefore confine ourselves to the recital of those instances which were marked by the spilling of blood.

On the Wednesday, George Mellor, of Longroyd Bridge, and William Thorp and Thomas Smith, of Huddersfield, were indicted for the wilful murder of William Horsfall, of Marsden, merchant and manufacturer, at Lockwood, in the West Riding of Yorkshire.

From the evidence of Benjamin Walker, an accomplice of the prisoners and others, it appeared that a conspiracy was entered into to attack the mill of Mr. Cartwright, in which Mellor was one of the principals. While they were in conversation upon this subject on the 28th April, however, the same prisoner produced a loaded pistol, and said that he was going to shoot Mr. Horsfall, and that the other prisoners and Walker must accompany him. They accordingly proceeded together to a plantation near an inn called the Warren-house, at Crossland Moor, near Huddersfield, where it was arranged that they should station themselves in a line by the road, and when Mr. Horsfall came, Mellor was to fire first; and in case of his missing his aim Smith and Walker were to fire. At a quarter past six o'clock in the evening, Mr. Horsfall called at the Warren-house, on his way home from Huddersfield market, and had some rum and water, and after about twenty minutes he proceeded on his way, unconscious of the fate which awaited him. He had entered the road, which ran through the plantation, and which was only a quarter of a mile from the Warren-house, when the prisoner Mellor fired and shot him. The unfortunate gentleman on his being wounded fell on his horse's chine, and a Mr. Parr, hearing the report and seeing him fall, rode up to him, in order to assist him. Mr. Horsfall, having quitted his horse, sat down by the road side, and despatched Mr. Parr for assistance, but he died very soon afterwards.

The prisoners attempted to prove an *alibi*, but the jury withdrew about twenty minutes, and returned a verdict of guilty against them all. They were immediately sentenced to death.

On Friday these wretched men were brought to the place of execution, behind the Castle at York. Every precaution had been taken to render a rescue impracticable. Two troops of cavalry were drawn up near the front of the platform, and the avenues to the Castle were guarded by infantry.

A few minutes before nine o'clock the prisoners came upon the platform. After the ordinary had read the accustomed forms of prayer, George Mellor prayed for about ten minutes, William Thorp also prayed; but his voice was

not so well heard. Smith said but little, but seemed to join in the devotions with great seriousness.

The prisoners were then moved to the front of the platform; and, after saying a few words, the executioner proceeded to perform his fatal office, and the drop fell.

On the 8th John Baines the elder, John Baines the younger, Zachary Baines of the same family, the elder near seventy years of age, and the latter scarce sixteen, John Eadon, Charles Milnes, William Blakeborough, and George Duckworth, all of Halifax, were tried for administering an unlawful oath to John Macdonald; and all, except the boy, were found guilty



The Luddites shooting Mr. Horsfall.

On the 9th January, James Haigh of Dalton, Jonathan Deane of Huddersfield, John Ogden, James Brook, Thomas Brook, John Walker of Longroyd Bridge, and John Hirst of Liversedge, were tried for attacking the mill of Mr. William Cartwright at Rawfolds. Mr. Cartwright being apprehensive of an attack being made upon his mill, procured the assistance of five soldiers, and retired to rest about twelve o'clock, but soon afterwards heard the barking of a dog. He arose; and while opening the door, heard a breaking of windows, and also a firing in the upper and lower windows, and a violent hammering at the door. He and his men flew to their arms; and a bell placed at the top of the mill, for the purpose of alarming the neighbours, being rung by one of his men, the persons inside the mill discharged their pieces from loop-holes. The fire was returned regularly on both sides. The mob called, "Bang up, lads! in with you! keep close! damn that bell! get to it! damn 'em, kill 'em all!" The numbers assembled were considerable. The attack continued about twenty minutes; but at length the fire slackened from without, and the cries of the wounded were heard. The men that were wounded were taken care of, but afterwards died. One of the accomplices, W. Hall, stated that he was one of those connected with Mellor and Thorp, and assembled with many other persons by the desire of Mellor, in a field belonging to sir George Armitage, Bart., on the night of the 11th of April. They called their numbers, remained there some time, and then marched off to the mill. Mellor commanded the musket company, another the pistol company, and another the hatchet company: they were formed in lines of ten each. Two of the men were to go last and drive up the rear.—Some had hatchets, some hammers, some sticks, and others had no arms.

The jury found James Haigh, J. Deane, J. Ogden, T. Brook, and J. Walker guilty, but acquitted the rest.

Several prisoners were on the two following days convicted of robberies, but many others were, through the lenity of the government, admitted to bail. On the Thursday, on the grand jury coming into court and declaring that they had disposed of all the bills of indictment preferred before them, Mr. Parke, who appeared as counsel for the crown, said that it was not intended to present any more indictments: he and those learned gentlemen who had assisted him had examined the various cases, which might have formed the subjects of prosecution; but in that discretion, with which they had been intrusted, they had determined to exercise a lenity, which he

hoped would produce its proper effect with the prisoners and their associates.

The grand jury then retired, and sentence of death was passed upon fifteen prisoners by Mr. Baron Thompson.

On Saturday at eleven o'clock, John Hill, Joseph Crowther, Nathaniel Hayle, Jonathan Deane, John Ogden, Thomas Brook, and John Walker, were brought out on the scaffold to undergo the last sentence of the law. They appeared to be fully sensible of the awful situation in which they were placed; and having hung till twelve o'clock, they were cut down, in order to make way for those prisoners who were to be executed subsequently on the same day.

In about an hour and a half after they had been removed, John Swallow, John Batley, Joseph Fisher, William Hartley, James Haigh, James Hey, and Job Hay, were also executed. The crowd of persons assembled was immense.

HUFFEY WHITE AND RICHARD KENDALL.

EXECUTED FOR ROBBING THE LEEDS MAIL.

HUFFEY WHITE was a more expert and notorious housebreaker, and perpetrated more adroit burglaries and robberies, than any other malefactor of his time. His first conviction appears to have taken place in the year 1809, when he was found guilty of a burglary, and sentenced to be transported for life. Preparatory to his being sent abroad, he was conveyed on board the hulks at Woolwich; but disliking the treatment he experienced there, he contrived to make his escape, and once more visited the scenes of his former crimes in London. At this time he became acquainted with the notorious Jem Mackcoull; and as a means of replenishing his exchequer, he agreed to accompany him to Chester, for the purpose of robbing the bank there.

White, it appears, lodged in the house of a blacksmith, named Scottock, in London, who supplied him with the necessary implements; and the two villains having directed the smith to forward them the keys, &c. to Chester, set off for that place early in 1810; and having made their observations, called at the coach-office for the box of implements. Unfortunately for their project, the friction of the coach had broken one corner of the box, through which a skeleton key suspiciously obtruded; and an officer having been made acquainted with the fact, he was concealed when White and Mackcoull came to demand the box, and having secured them both, they were committed to the house of correction as rogues and vagabonds.

Mackcoull went by the name of Martin, and White assumed that of Evans; but a description of their persons being transmitted to Bow-street, an officer was sent, who quickly recognised them both; and White was brought to trial at the next assizes, and received sentence of death for being at large before the expiration of his period of transportation; but this sentence was afterwards commuted to transportation for life, and he was once more sent to his former station in the hulks, Mackcoull remaining in Chester jail, in which he was sentenced to be confined for six months.

At the expiration of the term of his imprisonment, Mackcoull returned to London, and agreeing with one French to rob the Glasgow bank, they wished for the assistance of Huffey White, and actually contrived to liberate him from the hulks, before they set off for Scotland.

On their reaching the scene of their intended depredation, they took lodgings in the house of a Mrs. Stewart; and although they appeared to be persons engaged in no particular business, they were nevertheless actively employed in maturing their plans for the burglary. In this way nearly six weeks passed away, the most anxious care being taken that no circumstance should occur which could excite suspicion. The exact position of the banking-house, and of all the apartments in which money was kept, was ascertained and accurately noted down; and that no chance of success should be lost, the thieves actually made themselves acquainted with the persons who had charge of the banking-house, through whose innocent instrumentality they procured much of the information which they required. Their implements having reached them, however, from London, they found that none of them were calculated for the purpose which they had in view, and White, who had assumed the name of Down, was despatched to the metropolis with the necessary instructions to procure fit instruments. On his return he was amply provided; and at length, on Sunday evening, when the honest bank-keepers were gone to church, the burglary was effected, and 20,000*l.*, in Scotch bank-notes, were carried off. The party judged rightly, that Glasgow was no place for them to remain in any longer, and they immediately set off in a post-chaise for London, changing a 20*l.* note at every stage. From the able manner in which the robbery had been effected, and from all the doors and cupboards being found locked as they had been left, it was not discovered, nor indeed suspected, until the following day, when pursuit, with a chance of catching the thieves, was of course hopeless; but information being conveyed to London, the fugitives were traced to have proceeded thither, and White was apprehended in the house of his old ally, Scottock, with a number of housebreaking implements in his possession. All search for money proved of no avail however, the notes having been duly lodged in the hands of an experienced “banker;” and the exertions of the officers to apprehend the other offender were equally futile. In accordance with a system then existing to a very great extent, but now, happily, put an end to, negotiations were commenced by the thieves with the banking company for the restoration of the notes upon certain terms,

one of which was, that no prosecution should take place; and Sayer, the officer, being employed, matters were at length satisfactorily adjusted; but upon the notes being restored, it was found, that instead of the sum stolen, 11,041*l.* only were given up, and the gulled agent returned to Scotland, compelled to put up with what he could get.

In the mean time, however, White was conveyed back to the hulks to serve out the remainder of his sentence, but he soon contrived again to escape; but he now confined his depredations to the country, where he committed various burglaries. While at large, he contrived, by skeleton keys, &c., to open the doors of the Kettering bank; and such was the masterly manner in which he effected his entrance, and conducted the business, that the bankers, Messrs. Keep and Gotch, remained ignorant of the attempted robbery, until an accomplice subsequently detailed the transaction. It was conceived to be impossible for such a thing to take place without, at least, exciting suspicion; and the information was treated as untrue, until the number of the page in which the London banking account was kept was told, which it was known could only have been learned by an inspection of the private ledger. It appears, however, that in this instance “ignorance was bliss;” for although the thieves had carried off nothing, because the state of the exchequer did not present a sufficient temptation, they had fully made up their minds to pay the house a second visit, in the hope of making a more successful “haul.” But from this they were prevented by the apprehension of White, who was the prime mover of these proceedings, and his execution on a charge of robbing the Leeds mail at Higham Ferrers, in Northamptonshire, on the 29th of October, 1812.

The circumstances of this case are as follow:—The guard having gone to the coach-box on the night in question from his accustomed seat at the back of the mail, the robbers contrived during his absence, and without exciting his suspicion, to open the lock, and carry off the mail-bags. Information of the robbery having been conveyed to London, Richard and John Limbrick, two Bow-street officers, were despatched in search of the thieves; and hearing that White was at Bristol, they proceeded thither, having little doubt that he was one of the parties concerned. On their arrival they found that he was living with two fellows named Ned Burkitt and John Goodman, both well-known thieves; and it was determined to watch them, in order that a favourable opportunity might be seized to secure their persons. Several days passed before they were able to attempt the capture of their prey; but at

length, Goodman and his wife having been taken into custody upon a charge of robbing the Canterbury bank, of which they were suspected, a favourable opportunity presented itself. The officers in consequence went boldly to the house occupied by the thieves, and having given a loud knock at the door, they were answered by Burkitt. They immediately rushed in, but were met with a most violent opposition, in the course of which White managed to make his escape over a shed at the back.

His career was, however, drawing to a close, and information having reached the officers that Liverpool was to be favoured by his presence, they were soon on the look out for him in that city. Early in the month of April 1813, he was found to have entered Liverpool, and inquiries being made, he was traced to the house of an old woman named Mary Howes, *alias* Taylor, in the Scotland Road there. The Limbricks in consequence proceeded thither, when their entrance was opposed by the old woman; but some force being applied, the door was opened, and they proceeded directly to the cellar. They there found White and a man named Haywood, evidently prepared to make a desperate resistance, but the officers being equally resolute, after a violent conflict, in the course of which a pistol was fired by one of the constables, the thieves were secured. Upon the house being searched a great variety of house-breaking implements was found, concealed under a flag in the cellar, and Mrs. Howes was also taken into custody.

At the ensuing summer assizes at Northampton, White, Kendall, and the woman Mary Howes, were indicted for the robbery of the Leeds mail; and it was proved that on the evening on which the robbery was effected, the two first-named prisoners were seen on the road in a gig near Higham Ferrers, and subsequently on the same night at the house of Mrs. Howes, who then lived very near. It was also shown that no other gig but that in which the prisoners rode passed through the turnpike on that evening, and the prisoners were afterwards seen together, and were traced to London, where White offered to negotiate some of the bills and notes, the produce of the robbery, with one Richardson, who had been before this time convicted of robbing the house of the Marchioness of Downshire.

Forty witnesses were examined on this trial, which lasted fourteen hours; and such was the interest produced, that the court was crowded to excess. The judge having charged the jury, they retired, and soon afterwards returned, finding White and Kendall guilty, but they acquitted the woman,

in accordance with the direction of the Court; it appearing that her offence did not take place in the county in which she was arraigned.

The night preceding the execution of these convicts, White attempted to make his escape, and had succeeded so far as to cut off his irons, and break through several doors; but he was stopped at the outward gate, and reconducted to his cell. At nine o'clock, August the 13th, 1813, the procession approached the place of execution at Northampton. Kendall appeared deeply impressed with a sense of the awful fate that awaited him; but uniformly persisted in declaring his innocence, and said that he fell a victim in consequence of his having had the misfortune to be in company with his fellow-sufferer on the night of the robbery. He declared, on the gallows, that he was a murdered man, and appealed to the populace, in a speech of some length, in which he endeavoured to convince them of his perfect innocence.

White's deportment was such as to exhibit his extreme carelessness of life. Hardihood never forsook him, and he more than once found fault with the manner in which the chaplain performed his duty. From the time of his conviction he disregarded the gallows; and, being humanely asked by a clergyman if he could administer any sort of comfort to him, answered, "Only by getting some other man to be hanged for me." He declared Kendall innocent a few minutes before they were launched into eternity.

PHILIP NICHOLSON

EXECUTED FOR MURDER.

THE case of this unfortunate wretch is one of a peculiarly distressing character, presenting a crime of a most fearful nature, committed without the most remote cause of provocation, and apparently also without motive.

It appears that the malefactor was a footman in the employment of Mr. and Mrs. Bonar, an aged and respectable couple, who resided at a mansion called Camden Place, situated in the village of Chiselhurst, in Kent. The establishment consisted of Mr. and Mrs. Bonar, two female domestics, who slept in an apartment at the rear of the house, a groom and coachman, who slept in a room over the stable, and the wretched man Nicholson, who had his bed in the hall, and who was the only man-servant who slept in the house.

On the night of Sunday, the 30th of May, 1813, Mr. Bonar retired to rest, at his usual hour, twelve o'clock, and his lady followed at about two o'clock, having been undressed in the ante-room to the bed-room by her maid.

During the night no noise or disturbance of any kind was heard by the servants, and at half-past six o'clock in the morning one of the garden labourers called up Nicholson and remarked to him that the hall door and window-shutters were open, a circumstance of which he declared he was unaware. At seven o'clock the servant-women got up, and one of them on going into the ante-room of her mistress's bed-room observed foot-marks of blood plainly visible on the floor. In great agitation she communicated what she had seen to her fellow-servants, and on their all going up to ascertain the truth of what they had been told, they became alarmed lest murder had been committed, and determined to ascertain the truth of their surmises. Upon their entering Mr. Bonar's apartment, they found their master and mistress lying dead, the former on the floor, literally swimming with blood, while the latter lay on the bed, in a similar condition. A kitchen poker, the instrument with which the murders had evidently been committed, lay on the floor, and the state of the room exhibited the utmost confusion.

Nicholson was amongst those who entered the room, and he was observed to be much agitated, and to be very active in moving the bed-clothes, by which, if by no other means, his own attire became stained with blood. One of the servant-women having swooned, he roused her, and told her to attend to her mistress, who still breathed, and upon examination this proved to be the case, and he directly insisted that he should go to town for a surgeon.

On the road he was seen to drink copiously of brandy, and a little after eight o'clock he arrived at the house of Mr. Astley Cooper, who instantly set off for Camden Place, in the hope of affording surgical assistance to the murdered lady. Nicholson went next to the Red Lion, near Bedlam, where he saw a man named Dale, who had been only a few weeks discharged for improper conduct from Mr. Bonar's service; and to whom he used this remarkable expression: "The deed is done, and you are suspected; but you are not in it." He then proceeded to the office at Bow-street, in a state of intoxication, to give information of the murder, and having mentioned his interview with Dale, that person was brought to the office; but he established a most satisfactory *alibi*, and was discharged. Three officers immediately set off for Chiselmurst, and Mr. Cooper arrived with all possible despatch at Camden Place, but was too late; the wound was mortal, and Mrs. Bonar expired at eleven minutes past one o'clock, having been through the whole previous time insensible, and having only once uttered the exclamation of "Oh dear!"

"We never witnessed," says one who saw it, "such a scene of horror as the bed-room presented. Almost the first object which met the eye on entering was the dead body of Mr. Bonar, with the head and hands steeped in blood: the skull was literally broken into fragments in two or three places; and there was a dreadful laceration across the nose, as if effected by the edge of a poker. His hands were mangled in several places, apparently by the same instrument: there was also a severe wound on the right knee. From the numerous wounds on the body of Mr. Bonar, the swollen state of his mouth, and the convulsive contraction of his hands and knees, it is clear that he had struggled with all his force against his horrid murderer. The most shocking circumstance connected with this spectacle was the appearance of the night-cap, which lay a few paces from the head, drenched in blood, with a lock of grey hair sticking to it, which seemed to have been struck from the skull by the violence of the blow of the poker. The pillows of his bed lay at his feet, completely dyed in blood. The manly athletic

person of Mr. Bonar—for, though advanced in life, he seems to have been a powerful man—gave an increase of horror to this afflicting sight. The view of Mrs. Bonar, though equally distressing, excited more pity than terror: though her head had been fractured in a dreadful manner, yet there was a calm softness in her countenance, more resembling a healthy sleep than a violent death; it might have been supposed that her life had parted from her without one painful effort. The linen and pillow of the bed in which she lay were covered with blood, as was also the bed of Mr. Bonar. They slept in small separate beds, but placed so close together that there was scarce room for a person to pass between them. The interval of floor between the beds was almost a stream of blood. No slight additional horror arose from the contrast of the spacious handsome apartment in which this scene of death was exhibited. The most heart-moving spectacle yet remained. About seven o'clock in the evening, Mr. Bonar, jun., arrived from Faversham, where he was on duty as Colonel of the Kent local militia. In spite of the efforts of Mr. Angerstein, jun., and some other gentlemen, he rushed up stairs exclaiming, 'Let me see my father! indeed I must see him.' It was impossible to detain him: he burst into the bed-chamber, and immediately locked the door after him. Apprehensions were entertained for his safety, and the door was broken open, when he was seen kneeling with clasped hands over the body of his father. His friends bore him away, and hurried him, tottering and fainting, into an adjoining chamber."

The officers proceeded, immediately on their arrival, to investigate all the circumstances attending this horrid deed, and an examination of the house clearly exhibited the fact that no stranger had been guilty of the murder. They were at a loss to know on whom to fix their suspicions; when the discovery of a pair of shoes belonging to Nicholson, marked with blood, and which corresponded with the bloody footprints in the ante room, tended to produce a belief that he was the guilty man. He had not returned to his master's house since he had first quitted it in search of surgical aid; and Forrester, one of the City officers, was in consequence despatched in quest of him. After a lengthy and diligent inquiry, he was traced to Whitechapel, and he was there found drinking at the door of the Three Nuns Inn. He was immediately seized, and in spite of great resistance was conveyed in custody to Giltspur-street Compter; but he persisted in denying all knowledge of the murder. On the Tuesday he was sent down to Chiselmurst, where the coroner's inquest sat on the bodies of the unhappy deceased lady

and gentleman, and the evidence being gone through before the coroner, Mr. Martyr, he was reading over the depositions of the several witnesses for their assent and signature, when an alarm was given that Nicholson had attempted his own life. He had been in custody of two officers, and requested leave to go into the yard, which was refused; but he was permitted to enter a water-closet in the passage leading to the servants' hall; while there he cut his throat with a razor, which, it appeared, he had concealed in the front of his breeches. The gash was so deep, and it bled so profusely, that it was supposed he could not live many minutes. The head seemed almost severed from his body. Two surgeons from Bromley being fortunately present, they took the necessary steps to prevent his death, and after a short time he was sufficiently recovered to speak; but he persisted in declaring his innocence.

In the course of the evening, the coroner's jury returned a verdict of "Wilful Murder against Philip Nicholson," and he was committed to the custody of proper officers. He was subsequently visited by many persons of distinction, whose attention was attracted by the horrible and atrocious nature of the murder; and on Monday the 7th June, in consequence of the annoyance and pain to which he was subjected, his wound began bleeding afresh. In a few minutes the hæmorrhage increased to a most alarming extent, and fears being entertained for his life, Mr. Astley Cooper was sent for. The wretched prisoner became alarmed, believing that he was at the point of death; and he, in consequence, sent for Mr. Bonar, junior, to whom he made an ample confession of his guilt, but assigned no reason for the commission of the diabolical act. In consequence of the statement he made the garden was searched, and concealed in a laurel bush was found his body linen deeply stained with blood, the neck and front of his shirt being much torn, in consequence, evidently, of the resistance made by the victims to his attack.

The wretched prisoner subsequently conducted himself more calmly than he had hitherto done; he declared his repentance for the attempt which he had committed upon his life, and, as much apprehension was entertained of his death, everything that could disturb him was studiously kept out of his way.

In consequence of the great care which was paid to him, he was at length pronounced out of danger, and was then committed to the house of

correction, Coldbath-fields, where he remained until the 17th of August, on which day he was conveyed to Maidstone jail for trial.

On the 20th of the same month he was arraigned upon the indictment preferred against him, to which he pleaded not guilty. The case was fully made out against him; and the prisoner declared that he had only traversed the allegations in the indictment because he had been advised to do so by his friends. The jury therefore found him guilty, and he was immediately sentenced to death by Mr. Justice Heath in the usual form.

Immediately after the sentence, the prisoner put in a paper, and desired it to be read. The judge said that this was irregular, but looked at the paper, and told the jury that it contained a confession of crime, which was imputed to excessive drinking.

The paper which he put in and desired to be read was as follows:—

“I acknowledge with the deepest contrition the justice of the sentence unto death which has been just passed upon me. My crimes are, indeed, most heavy; I feel their weight, but I do not despair; nay, I humbly hope for mercy, through the infinite mercy of my Lord and Saviour Jesus Christ, who bled and died for me. In order to have a well-grounded hope in him, my all-merciful Redeemer, I know that it is my bounden duty not only to grieve from my heart for my dire offences, but also to do my utmost to make satisfaction for them. Yet, alas! what satisfaction can I make to the afflicted family of my master and mistress, whom without any provocation I so barbarously murdered? I can make none beyond the declaration of my guilt and horror of soul that I could perpetrate deeds so shocking to human nature, and so agonising to the feelings of that worthy family. I implore their forgiveness, for God’s sake; and fully sensible of their great goodness, I do hope that, for His sake, they will forgive me. I freely give up my life as a just forfeit to my country, whose laws I have scandalously outraged. Departing this tribunal, I shall soon appear before another tribunal, where an eternal sentence will be passed upon me. With this dread sentence full in my view, I do most solemnly declare, and I desire this declaration to be taken as my dying words, that I alone was the base and cruel murderer of my master and mistress; that I had no accomplice; that no one knew or possibly could suspect that I intended to perpetrate those barbarities; that I myself had no intention of committing those horrid deeds, save for a short time, so short as scarcely to be computed, before I actually committed

them; that booty was not the motive of my fatal cruelties; I am sure the idea of plunder never presented itself to my mind: I can attribute those unnatural murders to no other cause than, at the time of their commission, a temporary fury from excessive drinking; and before that time to the habitual forgetfulness, for many years, of the great God and his judgments, and the too natural consequence of such forgetfulness, the habitual yielding to the worst passions of corrupted nature; so that the evil that I was tempted to do, that I did: the Lord in his mercy has, nevertheless, spared until now my life—that life which I, in an agony of horror and despair, once most wickedly attempted to destroy: He has most graciously allowed me time for repentance; an humble and contrite heart must be His gift; that gift I hope He has granted to my most ardent supplications: in that hope, and bearing in mind His promise that an humble and contrite heart He will not despise, I, freely offering up to Him my sufferings, and my life itself, look forward, through his most precious blood, to the pardon of all my crimes, my manifold and most enormous crimes, and most humbly trust that the same mercy which He showed to the penitent thief who was crucified with him He will show to me: thus meekly confiding in thee, O Jesus! into thy hands I commend my spirit. Amen.

“PHILIP NICHOLSON.

“This 20th August, 1813.”

The signature was in Nicholson’s own hand-writing: the rest appeared written by another hand.

After sentence of death was passed, the wretched culprit was placed in the condemned cell, which in the Maidstone jail is underground. In this cell Mr. Bonar had an interview with him, at half-past five on Monday morning, 22nd August, the day fixed for his execution. On his approaching the cell, he found Nicholson on his knees at prayer.

At about twelve o’clock, the preparations for the removal of the prisoner being nearly completed, Mr. Bonar, accompanied by his brother, and Mr. Bramston, the Catholic clergyman, had another interview with the unfortunate man, soon after which, the hurdle or sledge, which was in the shape of a shallow box, about six feet by three, was drawn up to the jail door; at each end was a seat just capable of holding two persons. Nicholson, double ironed, was first placed in it, with his back to the horses; he was also pinioned with ropes, and round his shoulders was coiled the fatal cord; by

his side sat the executioner; opposite to the prisoner the Rev. Mr. Bramston took his seat, and by his side sat one of the Maidstone jailors with a loaded blunderbuss. Everything being in readiness, the procession advanced at a very slow pace towards Pennenden Heath, which is distant from Maidstone nearly a mile and a half, on which was erected a temporary drop, which had a platform raised seven feet from the ground, and was large enough to contain about a dozen persons. A little before two o'clock the hurdle arrived, and stopped immediately under the gallows, when Mr. Bramston and Nicholson knelt down on it, and remained for a while in prayer. Some time previous to this, Mr. Bonar arrived on the ground in a post-chaise, and took his stand within twelve yards of the fatal spot, with the front windows full on the gallows, which he kept open during the whole time; but each of the side windows was closed by blinds. So anxious was Mr. Bonar to get from the unfortunate wretch his very dying words, as to whether he had either motive or accomplice, that a person was deputed to ascend the platform after the cord was round the prisoner's neck, and to ask him questions upon the subject of the murder. The wretched being repeatedly declared that he had no accomplice in the diabolical deed; and in answer to the last question put to him,—“Had you any antipathy to either your master or mistress before you committed the horrid murder?”—clasping his hands together as well as his close bonds would permit him, he answered, “As God is in heaven it was a momentary thought, as I have repeatedly declared before.”

The above were the last words of this unhappy man; and in a few minutes after they were uttered, the bottom of the platform was let fall, and Nicholson was launched into eternity. He died unusually hard, being greatly convulsed. It appeared from the account he gave of himself, that he was a native of Ireland, and had been discharged from the thirteenth dragoons in consequence of a broken wrist. He subsequently lived three years with the city remembrancer, and had been only three weeks in the employ of his late master, Mr. Bonar. Among the servants at Camden Place he was looked upon as a man of harmless disposition and good nature, with no discernible failing but one, drunkenness, to which he was so greatly addicted, that he was seldom sober when he could procure any spirits.

The sensation which the murder produced throughout the country was amazing.

MICHAEL M'ILVENA.

EXECUTED FOR UNLAWFULLY PERFORMING THE MARRIAGE CEREMONY.

THIS villain was a native of Ireland; and in his migrations through the northern part of that kingdom, personated, successively, the characters of a Catholic priest, a Protestant minister, and a lawyer. The last place we find him in was the village of Ballinahinch, where he went under the appellation of The Counsellor. While here he became acquainted with a man of the name of Christopher Jennings, with whom he conspired to debauch a young girl, named Mary Hair.

This unsuspecting creature was only seventeen years of age, and had been a servant for a year and a half with a Mr. Knox of Drumanockan, near Dromore, and having spent the Christmas of 1812 with her parents, she was on her way back to her place, when she met her acquaintance Jennings on the road. He conducted her to a public-house to treat her, and there, as he had done before, made proposals of marriage to her. The poor girl had before looked upon him with a favouring eye, and she took him at his word, saying, that if he could find a priest, she would marry him at once. They in consequence went together to Ballinahinch, and Jennings took his bride into a public-house where M'Ilvena was sitting, and introduced him to her as the minister, who was to marry them. A little coyness was exhibited, and some mistrust was shown by the girl at her being married in a public-house; but her scruples having been overcome, the marriage was directed to be begun.

M'Ilvena, with assumed sanctity, pulled out his book, and went through what Mary thought were the proper forms, joining their hands, and interrogating the parties in the usual manner. After the ceremony, the poor girl asked for a certificate. This was at first refused; but as she insisted on it, the supposed parson took pen and ink, and wrote the following:—

“These are to certify, that Mary Hair is this day joined in marriage to Christopher Jennings, of Drumara. As given under my hand, this 26th December, 1812.—W. M'I.”

This scrawl contented the deluded girl; and the parson then intimated that he was always paid for such duties. Mary gave him ten tenpennies; but

he threw them down with an indignant air, exclaiming, "Am I to be college-bred and learned, and not receive my just dues?" But no more money was forthcoming, and the parson was obliged to put up with what he had got, contenting himself with wetting the bargain with a jug of punch. The unfortunate girl was then conducted to the house of an old woman named M'Kee, where her husband was admitted to all the marital rights; and on the next morning she was bid by him to give notice of the event to her master and mistress, and he undertook to break the business to her father and mother. The poor girl was parting from him with reluctance for this purpose, when he told her unblushingly that she was not his wife, and that she was deceived.

The unhappy girl was immediately awakened to all the misery of her situation; and she ran, in a state of distraction, to her parents, to whom she related all that had occurred. The necessary proceedings were immediately taken, and the *counsellor* and Jennings were committed to prison. At the summer assizes for Downpatrick, August the 17th, 1813, they were brought up for trial. M'Ilvena was first indicted; and Mary Hair having deposed to the foregoing facts, she was cross-examined, with a view to affect her testimony, by endeavouring to make her acknowledge a former connexion with Jennings; a fact, however, which she indignantly denied.

M'Ilvena, in his defence, produced Jennings, who swore, first, that he had an intimate knowledge of the prosecutrix long before the time mentioned in the indictment; next, that she never represented herself as his wife; and that M'Ilvena never pretended to join their hands together, or otherwise unite them in marriage.

Jennings, having given his evidence, was ordered back into the dock from whence he had come, and M'Ilvena was found guilty; after which he was called on, in the usual form, to say why sentence of death should not be passed on him. He appeared quite unmoved, and said he was not guilty of the crime imputed to him. The judge then proceeded to pass sentence on him; which he did in a very impressive manner, though frequently interrupted by exclamations of innocence from the prisoner. The offence being made by a particular act of parliament a capital felony, he was sentenced to be hanged. He asked for a long day, which was humanely granted, and his execution was deferred to the 18th of September, on which day it took place, in the midst of a vast concourse of spectators.

The day after M'Ilvena's trial, Jennings was placed at the bar, on an indictment for conspiring to debauch Mary Hair. He was almost instantly found guilty; when the judge told him his crime was much enhanced by the attempt he had made to screen his accomplice from punishment, in which he had committed wilful and corrupt perjury. The sentence of the court was, that he should stand for an hour on the pillory, be imprisoned for one year, and pay a fine of fifty pounds.

JAMES MITCHELL.

EXECUTED FOR MURDER.

THE subject of this narrative was a native of Salisbury, and his first occupation was that of a ploughboy in the service of a farmer near his birthplace. Having afterwards removed to London, he obtained a situation as groom in a gentleman's family; and while so employed he became acquainted with Miss Welchman, whose life he subsequently took away.

Miss Welchman was a ladies' dressmaker, and lived as forewoman with Miss Macey, who carried on that business in Mount Street. She was an elegant young woman, about four-and-twenty years of age, and of a most amiable disposition. To her, in an evil hour, Mitchell paid his addresses, under the name of Smith, and represented himself as purser on board some ship. The credulous girl believed him worthy and honourable, and permitted him to visit her, at the house of her employer, where he was, for some time, treated with politeness and friendship. At length his own conduct betrayed the deception he had practised. He obtruded himself at improper hours, and more than once offended the young ladies in the work-room by the coarseness and indelicacy of his conversation. This coming to the knowledge of Miss Welchman's brother, he prevailed, with some difficulty, on his sister to forego the acquaintance of her lover.

In accordance with this advice, Miss Welchman had several interviews on the subject with Mitchell; but notwithstanding her desire that he would not again visit her, he persisted in annoying her. On Friday the 5th of August, 1814, he called at Mount Street, and was ushered into the work-room, where Miss Welchman was sitting. He continued there during the whole evening, notwithstanding the repeated requests made to him that he would leave; and, as it grew late, he desired Miss Welchman to provide supper for him, and subsequently to lend him money. Both requests were refused, and eventually at eleven o'clock Miss Macey and her work-people went away to supper, Mitchell being now left alone. Miss Welchman, however, returned to him, saying that she desired to be alone with him for about five minutes; but she had scarcely entered the room when a loud scream was heard, immediately followed by the report of pistols. Her

companions immediately rushed into the apartment, and found Miss Welchman a lifeless corpse on the floor, a pair of pistols lying by her side, which on inspection bore evident marks of being the instruments with which the murder had been perpetrated. The hat of Mitchell was also discovered; but the window was open, and it was found that the assassin had escaped by descending into the street, by that means.

On examination, it was found that Miss Welchman had been shot in the head; one bullet had entered her temple, and the other had been resisted by the substance of the forehead.

The murderer, in the mean time, had succeeded in making his escape, and the officers of justice were despatched in pursuit of him, but without effect; for, as he had been for a length of time out of place, a clue to his last residence was not easily found. At length word was brought to town that he was in custody at his native place, Salisbury, to which he had bent his steps, and where he had been recognised by his old master the farmer, who, having heard of the murder, immediately had him scoured.

On the 13th of August he was brought up to Bow Street, in the custody of Taunton the officer, where he underwent an examination, after which he was fully committed to Newgate. He appeared very little affected at his situation, and preserved a sullen silence.

On Friday, September the 16th, he was arraigned at the Old Bailey for the murder of Miss Welchman. The evidence was circumstantial, but conclusive; and, when called on for his defence, he denied the crime with which he was charged, and said that it was not proved the pistols and hat were his. He called no witnesses, and the jury having been charged, retired for a few minutes, and returned with a verdict of Guilty.

The Recorder, after silence had been proclaimed, pronounced the dreadful sentence of the law, which was heard by the prisoner without the slightest emotion.

He was executed on the 19th September with a man named Hollings, who had been convicted of a similar offence in the murder of his step-daughter, to whom he had formed an attachment, notwithstanding his having married her mother; and whom he murdered in the street, at the door of her master, Mr. Cartwright, in Lower Grosvenor Street, because she had refused to accede to his disgusting and lustful propositions.

So great was the public curiosity to see the unfortunate malefactors, that at seven o'clock on the morning of the execution, the Old Bailey and Giltspur Street were crowded to a degree almost unprecedented. Much money was given for indifferent seats at the top of the houses opposite the Debtors' Door; and carts, waggons, and other vehicles were put in requisition. At a quarter before eight the prisoners were introduced to the Press-yard, for the purpose of having their irons knocked off, accompanied by the Reverend Mr. Cotton and the Reverend Mr. Frere, the latter of whom sat up in constant prayer all the night with Hollings, who joined most fervently in the devotion. Mitchell, who was dressed in black, was first brought out from the cell; he looked pale, and maintained a deportment of sullen resignation; he did not say a word, nor did he betray the slightest symptoms of feeling at his awful situation. The irons being knocked off and the usual ceremony of tying the hands being executed, he lifted his hand as far as he was permitted, and looking up, bowed, and appeared to be in prayer. Hollings stepped forward to the block with great activity. He was, however, very tranquil; and upon being disencumbered of his irons, he addressed the persons around him in nearly the following words: "Here, you see, I stand a victim to passion and barbarity: my crime is great, and I acknowledge the justice of my sentence. But, oh! the unfortunate girl I loved, I adored as one of my own. I have made contrition, and prayed for forgiveness; I resign myself under an impression that Almighty God has heard my prayers, and will forgive me: may you and the world take warning by my example; and here I confess the justice of my fate—receive my soul, O God!" At the last expression his feelings overcame him, and he wept.

The whole of the awful arrangements being complete, the prisoners were ushered to the fatal scaffold. Mitchell was until this time firm and unconcerned; but he now became much agitated, and the horrors of death were strongly portrayed in his countenance. Hollings shook hands with the officers of justice, declared to Mr. Frere that he was quite happy, and mounted the scaffold with great firmness and resignation. The clergymen continued to pray to them until the fatal signal was given, when the drop fell. Mitchell continued in the strongest convulsions for several minutes, and appeared to die very hard.

After they had hung some time, three females were introduced, for the application of the "dead man's hand," supposed to remove marks, wens,

&c. The first was a young woman of interesting appearance, who was so much affected by the ceremony that she was obliged to be supported.

At nine the bodies were cut down, and sent to St. Bartholomew's Hospital for dissection.

MAJOR J. G. SEMPLE, *alias* LISLE.

CONVICTED OF SWINDLING.

THE case of this offender has obtained considerable notoriety, from the circumstance of his conviction having been disputed, and from the decision upon it having therefore become a precedent often quoted in our courts of law.

Semple, it appears, was born in Scotland in 1759, of a respectable family; and in the year 1775, at the age of sixteen years, he entered the army, and went to America. In the following year he was taken prisoner of war, but was soon after released, and retired from service with a pension for wounds.

He subsequently entered the army of Frederic the Great of Prussia; but in 1779 he again returned to England, and then married an English lady of great respectability, whom he met at Harwich. During a visit to France a short time afterwards, he became acquainted with the Duchess of Kingston, *alias* the Countess of Bristol, (whose case we have already given,) whom he accompanied on her visit to Russia, and having there consented to join the Russian service, he was appointed captain in the Imperial Army by Prince Potemkin. During his employment in this capacity, his conduct was such as to gain for him many honours; but in the year 1784, being dissatisfied with his position, he retired to Copenhagen, from whence he eventually returned to England, and there misfortune fell upon him in its worst form.

On the 1st of September 1785, very soon therefore after his arrival in this country, he was indicted for feloniously stealing a post-chaise, value 50*l.*, the property of John Lycett, a coachmaker in Whitechapel; and upon the trial, it appeared that he had hired the post-chaise for a limited period, as he alleged to support the character which he was entitled to maintain, but that it was never returned. The defence set up was that the transaction could only be looked upon in the nature of a civil contract, and that the chaise having been regularly ordered and sent home, no charge could be brought against the prisoner except that arising on the sale of the carriage, and that he could only be held to be indebted for its value. Upon argument, however,

the court held that there had been a felonious dealing with the carriage, and the prisoner was found guilty and sentenced to be transported for seven years. He was conveyed to Woolwich on his way to a penal settlement, but he was eventually pardoned on condition of his going abroad.

From Woolwich therefore he went to France; and there he became acquainted with Beruyer, Péthion, Roland, and several of the leaders of the day. He was present at the trial of Louis XVI., and shortly after resolved on returning to England, in consequence of the rupture with this country, which he then saw was inevitable. He therefore obtained a passport; he was denounced to the committee of public safety as a spy, who was going to join the enemy; but being secretly apprised of what was going forward, he was able to effect his escape, although with some difficulty, before the order for his arrest was issued.

On his escape he joined the allied army against France, and distinguished himself on various occasions, but particularly in the battle of St. Fronde, which lasted three days; and at the time of the retirement of the King of Prussia from this campaign, he found himself incapacitated from service, and almost destitute of the means of existence. After a short retirement, however, he had recovered sufficiently to remove to Augsburgh; and on his arrival at that place he was suddenly arrested by order of the Baron d'Ompeda, in the name of his Britannic majesty; but his imprisonment not being legal, he was shortly afterwards set at liberty.

Considering he had been ill used on the Continent, Semple again returned to England; and in 1795 we again find him at the bar of the Old Bailey, on a charge of stealing in the shop of Mr. Wattleworth, in Wigmore Street, one yard of muslin, two yards of calico, and one linen shirt.

It was proved that the prisoner came into the shop of Mr. Wattleworth, about noon, on the 10th of November 1794, and, showing two patterns, one of muslin, and the other of calico, said he wanted them matched for Mrs. Coningham, of Egham Green. They could not find an exact match in the shop to the muslin; but he chose one; and a yard being cut off, together with two yards of calico, he said he would give them to the lady's servant, then at the door; and, calling in a man, he gave them to him. He then said that he had just arrived from the Continent, and should want a quantity of shirts, and wished to take one with him to consult his sister, who, he thought, would be a better judge of the linen than he was; that he would bring it back

in the morning, and then give his order. He called his sister Mrs. Coningham; and as Mr. Wattleworth had a customer of that name, he made no hesitation, but gave him the shirt under those conditions. This happened in November; but the prosecutor never saw the prisoner again until January, when he was in custody in Bow Street.

The counsel for the prisoner contended that the charge of the felony was not made out, the evidence, if true, amounting only to that of obtaining goods under false pretences. Mr. Justice Buller, who tried the cause, admitted the counsel was perfectly right as to the calico and muslin; but he did not agree with him in respect to the shirt, and therefore left that question to the jury.

The prisoner, in his defence, entered into a history of his past life with a view of showing, that although he had been before convicted, his general course of conduct was not that of living by fraud; but the jury found him guilty of stealing the shirt, and he was once more sentenced to seven years' transportation.

Notwithstanding his notoriety, (for there were many other charges against him,) many persons, amongst whom were Burke and Boswell, interested themselves in his behalf; but after remaining about two years in Newgate in a state of uncertainty as to his future destiny, he was at length removed to Portsmouth, and from thence proceeded to New South Wales. On the passage a mutiny broke out on board the transport in which he sailed; and Semple being one of the ringleaders, he, with twenty-eight others, was sent adrift in an open boat. He had contrived to conceal a quantity of gold in some soap, and succeeded in carrying it off with him; and after a dangerous passage, he and his companions landed in safety at Fort St. Pedro, in the province of Rio Grande. They were received with great hospitality by the governor of the Fort; and Semple was introduced by his fellows as a Dutch officer and passenger, a tale of shipwreck being trumped up; but a quarrel arising among them, their real character was subsequently exposed. After remaining during a considerable time at Brazils, in the year 1798 he went to Lisbon; but there he was arrested by an order of the British minister, and sent to Gibraltar, and while there, being suspected of being a party to a conspiracy which was discovered, he was again arrested and sent to Tangier.

In December 1798, a despatch arrived from England, ordering him home in custody; and he was accordingly sent on board a ship, and arrived at Portsmouth the following April. He was immediately conveyed to Tothill-fields Bridewell, where he remained till he was again sent out of the country.

From this period nothing particular occurred in the major's life until his return from Botany Bay in 1810, when he resorted to his former evil practices; but as he became more notorious he became less successful, until at length he was reduced to the utmost distress, and had recourse to the basest means of supporting a miserable existence.

In 1814 he went into a cheesemonger's shop in Devonshire Street, Queen Square, and ordered a small quantity of bacon and butter to be sent to No. 42, Cross Street. He met the messenger at the door, and taking the articles from him, sent him back for six-pennyworth of eggs. When the boy returned, he knocked at the door, and was informed that the person he inquired for did not live there, and that they knew nothing about him. This was true, for the major had only made a feint of going in to deceive the boy, and had made off when the lad was out of sight.

For this offence he was apprehended, and brought to trial at the Middlesex Sessions, December the 3rd, 1814, and found guilty, when, for the third time, sentence of transportation for seven years was passed on him.

WILLIAM SAWYER.

EXECUTED FOR A MURDER IN PORTUGAL.

THE circumstances of this very singular case may be shortly stated as follows:—The prisoner was engaged in the commissariat department of the British army; and in the month of February 1814, he went out to Portugal, where he lived in the same house in the Campo Mayor, at Lisbon, with a friend, Mr. Riccord, who had a female, named Harriet Gaskett, under his protection. An attachment grew up between this unfortunate woman and Sawyer, who, however, had a wife at the time in England; and his attentions were so apparent, that they excited the jealousy of his brother officer, and he appears to have remonstrated with his friend and mistress, which occasioned much infelicity.

On the 27th of April they met at dinner, with two or three other officers; but such was the agitation of their feelings, that Riccord, Harriet, and Sawyer ate nothing. The latter appeared greatly dejected, and, as well as Harriet, withdrew as soon as possible.

In the evening the party heard the report of three pistol-shots; and, on going into the garden, Harriet and Sawyer were found both lying on the ground. Harriet was quite dead, but Sawyer had not been mortally wounded. On his being removed into the house, he was left in the care of a brother officer, while the others went in search of a physician; and during their absence he contrived to get a razor, with which he cut his throat in a dreadful manner, but not mortally.

Next day the officers met, and reduced the facts to writing; and the prisoner signed the document, as well as a paper in the following terms:

“Having laid violent hands upon myself, in consequence of the death of Harriet, I think it but justice to mankind and the world, being of sound mind, solemnly to attest that her death was occasioned by her having taken part of a phial of laudanum, and ‘my’ discharging a pistol at her head, provided for the occasion. I took the residue of the laudanum myself, and discharged two pistols at my head. They failing in their effect, I then retired

to the house and endeavoured to put an end to my life, leaving myself the unfortunate object you now behold me.

(Signed) "WILLIAM SAWYER."

And three witnesses.

The word "my," in the above paper, was interlined.

The prisoner also signed a declaration, that Harriet Gaskett had consented to leave Mr. Riccord and live with him, and that Mr. Riccord had told her, on her threatening to quit him, that she might go to the prisoner's hotel. The reason assigned by him for the attempted suicide and murder was, that Harriet declared that she thought that Mr. Riccord would shoot himself if she quitted him, and that she therefore would not live; and he added, that he had shot her at her own request, and not in consequence of any quarrel with her, and had then attempted to kill himself.

When the prisoner was sufficiently recovered, he was removed to England, where, shortly after his arrival, he was indicted at the Old Bailey, April the 7th, 1815, for the above murder. His case excited great interest, and the court was filled long before the arrival of the judges.

The facts already stated having been proved, the prisoner was called on for his defence. He put in a written paper, in which he stated that, in consequence of his being unable to articulate, from the wound in his throat, he had committed to paper all he had to say in his defence. The paper then went on to state that the prisoner had felt the sincerest affection for the unfortunate individual in question, towards whom he had never meditated the slightest injury. He perfectly recollected her having entreated him to shoot her, but had no idea of what passed subsequently, till some time afterwards, when he was told he had signed papers, of the contents of which he had no recollection. He then expressed acknowledgments for the efforts made by his prosecutors to bring forward Mr. Riccord, who would have been a material witness in his behalf; and had only to lament that these efforts had not been attended with success.

Several persons were called to speak to the general humane character of the prisoner, among whom were General Sir Edward Howard and Colonel Sir William Robe.

A Mrs. Nicholls proved that the deceased had lodged with her from June 1813, to February 1814. She was of a most violent and tyrannical disposition, and had a pistol, which she kept constantly in her room.

Lord Ellenborough having summed up the case, the jury found the prisoner guilty, but recommended him to mercy.

Mr. Alley and Mr. Curwood on behalf of the prisoner then moved in arrest of judgment, upon two technical points which arose upon the face of the indictment, and judgment was respited until the 12th of May. The court on that day, however, gave their opinion that the grounds of motion were unavailable, and sentence of death was immediately passed.

The prisoner appeared deeply affected throughout the proceedings, and upon the awful decision and sentence, remained motionless for some time, when at length he faintly requested one of the officers to entreat the court to recommend him to the royal clemency.

Monday, May the 22d, 1815, being the day appointed for the execution of this infatuated man, at an early hour an immense number of spectators had assembled in the Old Bailey to witness the awful scene. After the sentence of death was passed on him, he assumed a degree of sullenness; and the only declaration he was heard to make was, "that he would not be executed:" and this being considered to import that he was resolved on self-destruction, his intentions, if such they were, were defeated by the constant attendance of two officers night and day. On Sunday he received the sacrament, after which he appeared more composed. About three o'clock his wife went to the prison for the purpose of taking a farewell: she was announced by an officer; but the unhappy man gave a peremptory order that she should not be admitted, and all that could be urged could not induce him to see her. When he went to his cell, he was much depressed, and refused any kind of sustenance; and at about two o'clock he lay down, and soon after became very sick, and vomited copiously. He continued restless until half-past six o'clock, at which time he was visited by the Rev. Mr. Cotton, who prayed to him fervently. A little before eight o'clock Mr. Sheriff Reay, attended by the usual officers, proceeded from Justice Hall towards the cell. The unfortunate gentleman was introduced into the Press-yard by the ordinary: he was very dejected, and did not utter a word during the time of his being conveyed to the platform. At eight o'clock precisely, every necessary arrangement being complete, the fatal signal was given, and the unhappy man was launched into eternity. During the ceremony a profound silence prevailed throughout the populace. He died under evident symptoms of paroxysm, and a quantity of blood gushed from his mouth from the cut in his throat. At nine o'clock the body was taken to

Bartholemew's Hospital in a cart, attended by the under-sheriff and officers.
He was dressed in a suit of black, and was not ironed.

ELIZABETH FENNING.

EXECUTED FOR ATTEMPTING TO POISON A FAMILY.

THE extraordinary interest taken by the public in this case at the time of its occurrence induces us to give it at considerable length, in order that its weight and bearings may be justly appreciated and considered. The propriety of the conviction of the unfortunate young woman was much questioned; and upon a careful perusal of its circumstances we think that at the least it must be concluded that the case was attended with considerable doubt.

It appears that Elizabeth Fenning was born in the island of Dominica, in the West Indies, on the 10th of June, 1793. Her father, William Fenning, was a native of Suffolk, and belonged to the first battalion of the 15th regiment of infantry. Her mother was a native of Cork, in Ireland: her parents were respectable, and she was married to Fenning in 1787, in her native town, where the regiment had been quartered. In 1790 they sailed from the Cove of Cork for the island of Barbadoes, and from thence to Dominica.

In 1796 or 1797 the regiment came home, having suffered great mortality, and were quartered in Dublin. In 1802 Fenning solicited and obtained his discharge, with a certificate of his good character, which it appears he merited, as he rose to the rank of a non-commissioned officer; and he then came to London, and entered the service of his brother, a potato-dealer in Red Lion-street, Holborn, with whom he continued for three years, and afterwards lived as servant in a potato-warehouse in Red Lion Passage, where his correct conduct gave satisfaction to three successive proprietors. His wife, for five years, worked for one upholsterer—a sufficient proof of her good conduct. They had ten children, all of whom, except the subject of this narrative, died young. At the age of fourteen, she was placed out in service to obtain her own living; and at the latter end of January, 1815, she was hired as cook in the family of a Mr. Orlibar Turner, at No. 68, Chancery-lane, where she had not been above seven weeks when circumstances unhappily arose which led to the poor creature's being charged with an attempt to poison her master's family.

The facts of the case will be best explained by the following report of the trial.

Eliza Fenning was indicted at the Old Bailey, April the 11th, 1815, for that she, on the 21st of March, feloniously and unlawfully did administer to, and cause to be administered to, Orlibar Turner, Robert Gregson Turner, and Charlotte Turner, his wife, certain deadly poison, (to wit, arsenic,) with intent the said persons to kill and murder.

The case was stated by Mr. Gurney; after which—

Mrs. Charlotte Turner deposed—I am the wife of Mr. Robert Gregson Turner, who is a law-stationer in Chancery-lane, in partnership with his father, Mr. Orlibar Turner, who lives at Lambeth. About seven weeks before the accident, the prisoner came into my service as cook; and about three weeks after, I had occasion to reprove her, for I observed her, one night, go into the young men's room partly undressed. There were two young men, about seventeen or eighteen years old. I reproved her severely next morning for her conduct; and the excuse was, that she went in to fetch the candle. I threatened to discharge her, but on her expressing sorrow for the offence, I forgave her, and she remained in my employment. During the subsequent month, I observed that she failed to pay me that respect which I considered due to me, and she appeared extremely sullen. About a fortnight before the transaction now charged against her, she requested me to permit her to make some yeast dumplings, saying that she was a capital hand at it; and she frequently subsequently repeated the same request. On Monday the 20th of March, she came to me in the dining-room, and again asked me to allow her to make some dumplings, and said that the brewer had brought some yeast; and I said that as that was the case she might make the dumplings the next day, although that was not the way in which I usually had them made, as I generally had the dough from the baker's. On Tuesday morning I went into the kitchen according to my custom, and I bade the prisoner make a beef-steak pie for the young men before she made the dumplings, and she carried the pie to the baker's before kneading the dough. I gave her some directions as to the manner in which I liked the dumplings, and then went away. In about half-an-hour, however, I returned into the kitchen, and I then found the dough placed before the fire to rise. I have another servant in my employment named Sarah Peer, but I am certain that she could not have entered the kitchen during the time occupied in the preparation of the dumplings, as she was engaged by my direction in a bedroom mending a

counterpane. I was subsequently in and out of the kitchen two or three times, and I observed that the dough did not rise. It was in a singular shape; and it remained heavy all the time. At about three o'clock we sat down to dinner, and there were six dumplings brought to table. I observed to Sarah Peer that they were black and heavy instead of their being white and light. My husband, Robert Gregson Turner, and his father, Orlibar Turner, sat down to dinner with me: I helped them to some dumplings, and took a small piece myself. I found myself affected in a few minutes after I had eaten it. I did not eat a quarter of a dumpling. I felt myself very faint—an excruciating pain, which increased every minute: it came so bad that I was obliged to leave the table—I went up stairs. I ate, beside the dumpling, a piece of rump-steak cooked by Eliza. When I was up stairs I perceived my sickness increased, and I observed my head was swollen extremely. I retched very violently: I was half an hour alone, and wondered they did not come to my assistance. I found my husband and father very ill—both of them. I was very ill from half-past-three until about nine; the violence then abated, but did not cease. My head and my tongue and chest were swollen. We called in a gentleman who was near, and afterwards Mr. Marshall, the surgeon. We applied for the nearest assistance we could get.

Cross-examined by Mr. Alley.—This happened about six weeks after the girl came to live with me. I have heard the prisoner herself was taken very ill.

Orlibar Turner deposed—I am the father of Robert Gregson Turner. On Tuesday, the 21st day of March, I was at my son's house in Chancery-lane: I dined there. The dinner consisted of yeast dumplings, beef-steaks, and potatoes. After some time Mrs. Turner left the room indisposed. At the time she left the room I did not know she was ill. Sometime after my son left the room, and went down stairs. I followed him very shortly. I met my son in the passage at the foot of the stairs: he told me that he had been very sick, and had brought up his dinner. I found his eyes exceedingly swollen. I said I thought it very extraordinary, and I was taken ill myself in less than three minutes afterwards. The effect was so violent, I had hardly time to go into the back yard before my dinner came up. I felt considerable heat across my stomach and chest, and pain: I never experienced any vomiting before like it, for violence; it was terrible indeed. It was not more than a quarter of an hour when my apprentice, Roger Gadsden, was very ill, in a similar way to myself. While we were sick I was repeatedly in the parlour and the back

yard. My son was up and down stairs at intervals; Gadsden, I believe, was in the kitchen below. The prisoner gave no assistance. We were all alarmed: but it was discovered that she did not appear concerned at our situation. I did not observe the prisoner eat any of the dumplings. I had a suspicion of arsenic, and made a search the next morning. I then observed in the pan, in which the dumplings had been mixed, that there was a white powder, unlike flour, and I retained it in my possession until I gave it into the hands of Mr. Marshall. Arsenic had been kept in the drawer in the office, tied up in a paper very tightly, and labelled "Arsenic, poison," in large characters. I saw the parcel there on the 7th of March, but not since that time. It was missed about a fortnight before the 21st of March. The prisoner may have seen the parcel, as she usually resorted to the drawer for paper to light her fires. After dinner I remarked that the knives with which the dumplings had been cut had changed colour. They turned black and they still remain so. I spoke to the prisoner about the dumplings on the Wednesday, and I asked her how she came to put anything into them so hurtful, but she answered that it was not in anything which she had prepared, but in the milk which Sarah Peer had brought in, and with which her mistress had ordered her to make the sauce. That milk had been used in the sauce only. The dumplings had been mixed with the milk which had been left at breakfast.

Roger Gadsden said, I am an apprentice to Mr. Turner. I remember seeing the packet of arsenic in the drawer, and I missed it a day or two after the 7th of March. On Tuesday, the 21st of March, I went into the kitchen between three and four o'clock, and I observed a plate on the table, on which were a dumpling and a half. I had dined at two o'clock, but I took up a knife and fork, and was going to eat the dumpling, when the prisoner exclaimed, "Gadsden, do not eat that; it is cold and heavy; it will do you no good." I ate a piece about the size of a walnut, and there being some sauce in the boat, I sopped it up with a piece of bread and ate it. I then went into the office, and Mr. Turner came there in about ten minutes after, and said he was very ill. About ten minutes after that I was taken ill, but not so ill as to vomit. I was sent off for Mr. Turner's mother. I was very sick going and coming—I thought I should die. The prisoner had made yeast dumplings for supper the night before: I and Peer and the prisoner partook of them: they were quite different from these dumplings in point of colour and weight, and very good.

Margaret Turner sworn.—I was sent for. When I arrived I found my husband, son, and daughter, extremely ill. The prisoner, very soon after I was there, was ill, and vomiting. I exclaimed to her, “Oh, these devilish dumplings!” supposing they had done the mischief. She said, “Not the dumplings, but the milk, madam.” I asked her “What milk?” She said, “The halfpenny-worth of milk that Sally fetched, to make the sauce.” She said my daughter made the sauce. I said, “That cannot be; it could not be the sauce.” She said, “Yes; Gadsden ate a very little bit of dumpling, not bigger than a nut; but licked up three parts of a boat of sauce with a bit of bread.”

Mrs. Turner, jun., being called, said—“The sauce was made with the milk brought by Sarah Peer. I mixed it, and left it for her to make.”

Robert Gregson Turner sworn.—I partook of the dumplings at dinner; I ate none of the sauce whatever. Soon after dinner I was taken ill: I first felt an inclination to be sick; I then felt a strong heat across my chest. I was extremely sick; I was exactly as my father and wife were. I had eaten a dumpling and a half, and I suffered more than any other person. I should presume that the symptoms were such as would be produced by poison.

Sarah Peer sworn.—I have been servant to Mrs. Turner near eleven months. I recollect the warning given to the prisoner some time after she came. After that I heard her say she should not like Mr. or Mrs. Robert Turner any more. On the 21st of March I went for some milk after two o’clock, after I had dined with the prisoner on beef-steak pie. I had no concern whatever in making the dough for the dumplings, or in making the sauce. I was not in the kitchen when the dough was made: I never meddled with it, or put anything to it; I never was in the kitchen after I went up to make the beds, a quarter after eleven, until dinner time. I had permission to go out that afternoon, directly after I took up the dumplings. I went out directly. I came home at nine o’clock exactly. I ate none of the dumplings myself. In eating the beef-steak pie, I ate some of the crust. I was not at all ill. I had eaten some dumplings she had made the night before: I never tasted any better. They were all made out of the same flour. I had no difference with my mistress at any time.

Cross-examined by Mr. Alley.—I had occasionally quarrelled with the prisoner. I went sometimes to visit my friends, but it was generally on Sundays. I never went on a week-day except on this occasion. I know nothing of the drawer in which the arsenic was. The paper which I used for

lighting fires was kept in the dining-room. I never went to the drawer in the office, nor did I ever see or hear of any poison being kept there.

An officer of Hatton Garden and the brewer's man were then successively examined. The first proved that on his apprehending the prisoner, she declared that she thought the poison must have been in the yeast, as she saw a red settlement in it after she had used it, and the second stated that the yeast was good, and that he delivered it to the girl Peer.

Mr. John Marshall, a surgeon, was then sworn, and he stated that on his being called in to Mr. Orlibar Turner's family he found them all labouring under symptoms of having taken arsenic, and that the prisoner was also ill, and exhibited similar symptoms. On the following day he saw a pan, and on his examining its contents he found them to contain arsenic. He had also examined the yeast which was left and the flour tub, and they were both devoid of arsenic. The poison being cut would blacken the knife.

The case for the prosecution being closed, the prisoner made the following defence:--

"I am truly innocent of the whole charge; I am innocent; indeed I am. I liked my place, and was very comfortable. Gadsden behaved improperly to me; my mistress came and saw me undressed; she said she did not like it; I said 'Ma'am, it is Gadsden that has taken a liberty with me.' The next morning I said, 'I hope you do not think anything of what passed last night.' She was in a great passion, and said she would not put up with it; I was to go away directly. I did not look upon Mrs. Turner as my mistress, but upon the old lady. In the evening the old lady came to town; I said, 'I am going away to-night;' Mrs. Turner said, 'Do not think any more about it; I don't.' She asked Mrs. Robert Turner if she was willing for me to go. She said 'No, she thought no more about it.' As to my master saying I did not assist him, I was too ill. I had no concern with that drawer at all; when I wanted a piece of paper I always asked for it."

The prisoner called five witnesses, who gave her an excellent character for integrity, sobriety, cheerfulness, and humanity. One of them was proceeding to state an accidental conversation which he had with the prisoner two days after she had ordered the yeast, wherein she declared herself happy and contented with her situation, and pleased with her master and mistress; but the recorder stopped him, saying it was not evidence.

Whilst the trial was proceeding, William Fenning, the father of the prisoner, went to a public-house, and got a person (for he was too agitated himself) to write on a slip of paper, that on the 21st of March he went to Mr. Turner's, his daughter having sent for him in the morning, and that Sarah Peer told him Eliza had gone with a message for her mistress, whilst, at the same time, she was in agonies below-stairs from the effect of having eaten of the dumplings. He then went home, and thought no more about it.

When this note was written, it was handed to Mr. Alley, who, standing upon tiptoe, showed it to the recorder, who leaned over and looked at it, but no further notice was taken of it.

Other efforts were made by the prisoner to produce witnesses, but as they were not in attendance, the court said that it was too late, and that the trial could not be suspended for their coming.

The recorder then proceeded to sum up the case, and the jury in a few minutes brought in a verdict of guilty. The recorder having then passed sentence of death upon her, the miserable girl was carried from the bar convulsed with agony, and uttering frightful screams.

Few cases ever excited greater interest than that of Eliza Fenning; and we are happy in being able to state that her religious principles were correct, and her professions sincere. Through life she was distinguished by a superiority of intellect, and a propriety of deportment, which could hardly be reconciled with the depravity of which she was accused. In person she was short of stature, but of the most perfect symmetry; while her countenance evinced a heart at ease, and a mind at once intellectual and lively. She had been before the fatal transaction betrothed to a young man, to whom she appears to have been sincerely attached.

After the unfortunate girl's conviction she was induced to apply to the Crown for a remission of the sentence of death, and sent a petition to the prince regent. She next addressed the lord chancellor, to whom she sent a statement of all the exculpatory circumstances of her case. She also sent a letter to Lord Sidmouth, and another to her late master, requesting him to sign a petition in her favour, with which however he refused to comply.

Several gentlemen interested themselves in the fate of the poor girl; and Mr. Montagu, of Lincoln's Inn, waited on the recorder, offering to produce evidence of a member of Mr. Turner's family, who was insane, having

declared that he would poison the family; but the recorder assured him that the production of such evidence would be wholly useless.

The night before her execution a meeting of gentlemen took place in Mr. Newman's apartments in Newgate, at which Mr. Gibson, of the house of Corbyn and Co., chemists, No. 300, Holborn, stated that Robert Gregson Turner, in the month of September or October, called at their house in a wild and deranged state, requesting to be put under restraint, otherwise he declared he should destroy himself and wife. Mr. Gibson also stated that it was well known in the family that Robert Turner was occasionally subject to such violent and strange conduct.

With this information Mr. Gibson, accompanied by a clerk from the secretary of state's office, waited on the recorder, requesting that the unfortunate girl might be respited to admit of investigation; but all was of no avail, and in twelve hours after, Eliza Fenning was executed!

From the moment the poor girl was first charged with the poisoning, however or by whomsoever questioned, she never faltered in her denial of the crime, and rather courted than shunned an investigation of her case. So many circumstances, which had developed themselves subsequently to the trial, had been communicated to the secretary of state by the gentlemen who interested themselves in her favour (among whom were some of great respectability), that a reprieve was confidently expected to the last: and the order for her execution, four months after her conviction, was received with very great surprise.

On Tuesday morning, the 25th July, she took her last farewell of her father, who, by the firmness of his manner, exemplified the courage he wished his child to sustain upon the scaffold: but with her mother the parting scene was heart-rending.

On the fatal morning, the 26th July, 1815, she slept till four o'clock, when she arose, and, after carefully washing herself, and spending some time in prayer, she dressed herself neatly in a white muslin gown and cap. About eight o'clock she walked steadily to the spot where criminals are bound; and, whilst the executioner tied her hands—even whilst he wound the halter round her waist—she stood erect and unmoved, with astonishing fortitude. At this moment a gentleman who had greatly interested himself in her behalf adjured her, in the name of that God in whose presence she was about to appear, if she knew anything of the crime for which she was about

to suffer, to make it known; when she replied distinctly and clearly, "Before God then, I die innocent!" The question was again put by the reverend Mr. Vazie, as well as by the ordinary, and finally, by Oldfield, a prisoner who suffered with her, and to each she repeated "I am innocent." These were her last words; and she died without a struggle, at the age of twenty-one.

Her miserable parents, on application for her body, were not prepared to pay the executioner's fees of fourteen shillings and sixpence: but having borrowed the money with some difficulty, the remains of their daughter were handed over to them.

We have endeavoured to give the circumstances of this case as clearly and with as little prejudice as possible, but we should not do our duty, if we were not to state that the public mind was much inflamed at the execution of the unhappy prisoner. Thousands of persons, after examining the evidence adduced at the trial, did not hesitate to express their opinions very strongly upon the subject of the case; and many of the lower orders, apparently convinced of the innocence of the sufferer, assembled in front of Mr. Turner's house, in Chancery-lane, hooting and hissing, and otherwise expressing their indignation, at what they conceived to be their unjust prosecution of their servant. The police were active in their exertions to suppress the tumult; and an affidavit made by Davis, a turnkey in Newgate, was industriously circulated, in which the deponent swore that old Fenning had conjured his daughter, when she went upon the scaffold, to declare her innocence: a counter affidavit of the father of the wretched girl, however, was produced and published, and the assertion of the jailer was at length admitted to have been founded upon a mistaken interpretation of what had really passed. The mob continued to assemble for many days, and it was not until the police had taken very vigorous measures against them, that they were finally dispersed. The public still sympathised with the unhappy parents of Eliza Fenning, and a subscription was entered into for their benefit.

JOSEPH BLACKBURN.

EXECUTED FOR FORGERY.

THE particulars of the melancholy case of this unfortunate gentleman, will be best described by the report of his trial which has reached us, which took place at York on the 18th March 1815, before Sir Simon Le Blanc. He was then placed at the bar and arraigned on two indictments, charging him with forging and counterfeiting the impression of a certain stamp or die, used under the direction of the Commissioners of Stamps, to denote the payment of certain duties imposed on various deeds and other securities, on vellum, parchment, or paper, and also with uttering the same, knowing it to be forged, with an intent to defraud the revenue of the duties imposed on such stamped vellum, parchment, or paper. To these indictments he pleaded—Not guilty. Mr. Blackburn was then arraigned on two other indictments, charging him with feloniously removing stamps from executed deeds, and affixing them upon others, with an intent to defraud the revenue; to these indictments he also pleaded—Not guilty. He was then charged in another indictment with the same offence, jointly with Mr. Thomas Wainewright, who was charged with feloniously aiding and assisting in this illegal removal of stamps. To this indictment both the prisoners severally pleaded—Not guilty.

As soon as the jury were sworn, Mr. Wainewright, at the suggestion of the counsel for the prosecution, retired from the bar, and the court proceeded to the trial of Mr. Blackburn, on one of the capital indictments for forgery. The clerk of the arraigns read the indictment. It charged the prisoner with feloniously forging, and counterfeiting the resemblance of a certain stamp or die, used by the Commissioners of Stamps, to denote the payment of duties imposed on vellum, parchment, and paper, viz. for the payment of two pounds, imposed by the 48th of George III. on mortgage deeds, with intent to defraud his Majesty, his heirs, or successors. Another count in the indictment charged him with uttering the said forged stamps, knowing the same to be false, forged, and counterfeited, with the like intent to defraud his Majesty, his heirs, or successors.

The counsel for the crown were, Mr. Park, Mr. Topping, Mr. Wailes, and Mr. Richardson.

The counsel for the prisoner—Mr. Scarlett, Mr. Littledale, and Mr. Williams.

Mr. Park opened the case to the jury, and said,—I am counsel against the unfortunate gentleman now at the bar. This is a prosecution by the Commissioners of Stamps, who in the discharge of their professional duty have thought it incumbent upon them to institute this inquiry, and which indeed they could not have omitted to do without a gross dereliction of the duty they owed to the public. They have no interest in this prosecution, and whatever be the result of this day's inquiry, they will be satisfied with your decision. The crime imputed to the prisoner by this indictment, is not merely calculated to defraud the public revenue, but tends to affect the security of the property of individuals, and that in the most serious manner, for if deeds, or other written instruments for the transfer of property, have affixed to them forged or improper stamps, they have no validity, and convey no rights to the parties in whose favour they are executed. This consideration must at once impress you with a conviction of the great importance of the present case; as the conveyance of property by instruments the most solemn known to the law, is thereby defeated, the contract becomes invalid, and the deed by which it was intended to be effected, of no possible use. Nor is it too much to say, that the rights of future generations may be affected by the consequences of the crime imputed to the prisoner.

It is, gentlemen, with the most unfeigned concern, that I have risen to address you on the present occasion. This is the first time, during a practice of thirty years at the bar, that it has fallen to my lot to be concerned in a prosecution for felony against any person with whom I have had any personal acquaintance. Mr. Blackburn (the prisoner) I have long known; he has conducted actions in which I have been engaged for him, and others in which I have been retained by the adverse party: and though when I first heard the name I did not know how to affix it to the person, yet now, when (for the first time since this prosecution has been depending) I see him, I find that I know the gentleman perfectly well. We at the bar are, however, bound to aid the administration of the public justice of the country, and must do justice to the country, and to the crown, on whose behalf we are engaged, and cannot shrink from the performance of our professional duty,

however painful to our feelings the exercise of it may occasionally be. But the Government, the Commissioners of Stamps, and those who on their account conduct this prosecution, are very far from having any wish to oppress these individuals; their only desire is, that justice should be done between them and the country, and this justice I have no doubt will be done by you.

If the prisoner is guilty of the offence imputed to him by this indictment, his crime is greater than that of any other individual, because there is no one who is so much obliged by his profession to understand the principles of morality. The very first rudiments of his profession must have rendered familiar to him those principles of justice on which the law is founded; and in his long attendance at these courts, he must (in addition to sound lessons of law) have heard the principles of moral obligation enforced by the learned judges who have from time to time presided here, and which ought to have had the effect of rooting them in his mind.

Having made these few preliminary observations, I shall proceed to state the nature of the charge against the prisoner, and the evidence by which that charge is meant to be substantiated. The charge against the prisoner is that of having forged, or caused to be forged, or counterfeited, the impression of a certain stamp or die, used by the commissioners (appointed by his Majesty, to manage the duties on stamped vellum, parchment, or paper) to denote the payment of a certain duty, imposed by the 48th of the King, on mortgage deeds, which are laid *ad valorem*, that is, in a ratio proportioned to the money secured by such deeds. The amount of the money secured by the deed which is the subject of this inquiry, is 180*l.* and the stamp required for this sum, must be of the value of 2*l.*; for in the schedule affixed to the act, it states, that from 150*l.* to a sum not exceeding 200*l.* the duty shall be 2*l.* The subject-matter of this prosecution is, that in order to evade the duty imposed by this act, the prisoner affixed a forged and counterfeit stamp to an instrument, purporting to be a mortgage deed; and also that he uttered or published the same, well knowing it to be false, forged, or counterfeited. The penal act on which this prosecution is founded, is an act of the 52nd year of the king, intituled, “An act for amending and reducing into one act, the provisions contained in any laws now in force, imposing the penalty of death, for any act done in *breach of* or in resistance to any part of the laws, for collecting His Majesty’s revenue in Great Britain.” In this statute, cap. 143, section 7, it is enacted, “that if any person shall, after the passing of

this act, forge or counterfeit, or cause to be forged or counterfeited, any mark, stamp, die, or plate, which in pursuance of any act or acts of parliament, shall have been provided, made or used, by or under the direction of the commissioners, appointed to manage the duties on stamped vellum, parchments, or paper, or by or under the direction of any other person or persons, legally authorised in that behalf, for expressing or denoting any duty or duties, or any part thereof, which shall be under the care and management of the said commissioners, or if any person shall utter, or sell, or expose to sale, any vellum, parchment, or paper, &c. having thereupon the impression of any such forged or counterfeited mark, every person so offending, and being thereof convicted, shall be adjudged guilty of felony, and shall suffer as a felon, without benefit of clergy.” I will now lay before you the evidence by which we propose to establish this charge against the prisoner.

A person of the name of Taylor, being desirous of borrowing upon the security of an estate the sum of 180*l.*, of a Friendly Benefit Society, called the Clothiers’ Society, sent the title deeds of his estate to the office of the prisoner, who as you will have already collected is an attorney; to enable him to make out the necessary security, and who accordingly prepared a mortgage deed. This deed bears date the 13th of September 1812; but whether it was executed at that time we do not know, but it was executed some time before February in the ensuing year, because we find that on the 12th February it was registered at the proper office at Wakefield. At what period the stamp upon this deed, which we allege to be a forged one, was affixed to this deed we have no means of proving, but it must have been previous to its passing into the hands of Thompson the steward, who deposited it in the box of the society, where it remained until it was taken out for the purpose of this inquiry. That this is the deed delivered by the prisoner to Thompson, I shall prove beyond all doubt. Gentlemen, I shall prove to your entire satisfaction, that the stamp affixed to this deed is a forged one, and we shall also offer the strongest evidence to convince you it was forged by the prisoner, and uttered by him, knowing it to be forged. But before I enter directly upon this proof, it may be proper to state to you something of the manner in which the business of the Stamp-office is managed, particularly with respect to the state and manner in which stamps are issued from it, but which statement I shall prove by evidence. It will be clearly proved to you, that stamps are not issued from the office in detached

labels, to be afterwards affixed to the different instruments, but are stamped upon the paper or parchment on which the instrument or deed is to be prepared, and the impression is made with an engine of such power, that the impression made by it is visible on the back of the parchment. This is a circumstance of some importance to be attended to in this inquiry. I would also observe to you that on all the stamped parchments, issued by the Stamp-office in London, the words "This Indenture," are printed from an engraved plate in large characters. These circumstances will be fully proved by the evidence of the gentlemen from the Stamp-office, whom I shall call before you. The prisoner did not choose to have his skins from the Stamp-office, but provided them himself, and employed an engraver in Leeds, to engrave him a plate, or rather two plates with the words "This Indenture," in characters resembling those issued by the Stamp-office, and from these plates he had impressions taken upon skins at various times. I do not mention this with a view to prejudice the prisoner, or to insinuate anything to his disadvantage, because he had a right to prepare his own skins, and send them to be stamped, if he chose it; but I mention it because it will be necessary to explain part of the evidence which I shall lay before you, and to show the manner in which (as we allege) the offence imputed to the prisoner has been committed.

Gentlemen, the whole of the stamp affixed to this deed is not false and counterfeited; the impression of the king's arms and the "device," are part of the genuine stamp, but the words, "Two Pounds," which denote the value of it, are forged, and the way in which we account for it is this; we say that the stamp affixed to this deed has been taken from some other deed, and affixed by some cement to this, and that the former denominating words have been obliterated, and the words "Two Pounds," impressed by some die or stamp, resembling that used for denoting the duty of two pounds by the commissioners of stamps. Gentlemen, I state it without hesitation, as the law, and I am sure his lordship concurs with me, that the forgery of any material part of any stamp or die, or other instrument, is as much a forgery, as if the whole of it was actually forged: and the words which denote the value of the stamp, must unquestionably be considered as a most material part of it, and the person who has done this, or aided the doing of it, or caused it to be done, is guilty of forgery. That this stamp was not affixed to the deed at the Stamp-office, and in the usual manner may be made evident to an inexperienced eye; for it will be proved to you, that those parchments

which have passed through the stamping engine have a visible impression of the stamp on the back of the skin, which is not the case in this deed; the stamp of which has been transferred from some other instrument. These circumstances would alone form a strong presumption against the prisoner: but the next branch of evidence I shall adduce, will convert this presumption into certainty; for I shall prove to you, that he employed an engraver at Leeds to make him thirteen or fourteen dies, suitable for the purpose of making any impression, resembling the words which denote the value that are upon the stamps used by the commissioners. I have the impression from those dies now in my hand, and it will be proved to you that the numerals and words "II Pounds," impressed upon the stamp of the deed, which I will lay before the court, is an impression from one of those dies. These dies, gentlemen, were found in the possession of the prisoner, under the circumstances I shall shortly state to you. When the rumour of these transactions first came out, the house of the prisoner was searched by the officers of justice; the prisoner was not at home, but in a room which was locked and broken open by the officers, was found upon a table a box containing these dies; and on a further search, a number of old deeds were found, from which the stamps had been cut off, and also a number of articles material for throwing light on this subject, which will be produced to you. Perhaps it may not be necessary to point out to you the manner in which the prisoner would be benefited by this transfer, and forgery of stamps. But as it will complete the statement, I will just add that by taking the stamps from old instruments, and affixing them upon new ones, he was enabled to put into his pocket the whole amount of the duty, as he would of course charge the nominal value of the stamps to his clients, and where the denominating value was not for the sum he wished, we presume that it might be changed by the use of these dies. I think I have before stated, that we shall prove the uttering of this deed to Mr. Thompson. This, gentlemen, is a short detail of the circumstances, from which we contend, that you must come to the conclusion, that the prisoner forged, or procured to be forged, this stamp, and that it was uttered by him, or with his privity, he knowing it to be forged. It is for you, gentlemen, after hearing the evidence which shall be laid before you, on the part of the prosecution, and for the prisoner, with the observations and recapitulation of the learned judge, to decide upon his guilt or innocence, and with your decision the prosecutors will be satisfied. If, having heard the whole of the case, any reasonable doubt remains upon

your minds, the prisoner ought to have the benefit of that doubt, and in that case you ought to acquit him; but if you find the circumstances which go to prove the guilt of the prisoner so strong and well connected, as fully to satisfy you upon the subject, it will then be a duty you owe to your oaths, to God, and your country, to find the prisoner guilty. The prisoner, to use the impressive language of the law, has put himself upon God and his country—which country you are; and I feel convinced that your verdict will be such as will be just to the prisoner, and to the public justice of the country.

Witnesses were then called, who proved the material circumstances related by the learned counsel in his opening speech, as to the drawing the deed, and depositing it with the steward of the society. The evidence as to the practice of the Stamp-office, and the forgery of the stamp in question, was as follows:—

Mr. Abraham Smith stated, that he was one of the stampers at the Stamp-office, in London, and had been in that situation sixteen or seventeen years. Being requested to state the manner in which the operation of stamping was performed, he said, that when the stamping for the day was concluded, the dies were put into strong-boxes, placed in the strong-room and locked up. They were taken into the room and delivered out to the stampers by one of the clerks of the office, who kept the key of the room. No labels were ever on any occasion stamped without being attached to the parchment, and of course no stamps could ever be issued detached from the parchment or paper on which the instrument was intended to be executed. The die for the two-pound stamps had not been varied; the die was fixed in an engine, which struck the impression with great force. On looking at the deed, witness stated that he had no hesitation in saying, that the numeral “II” and the word “Pounds” were false and counterfeit, and were not a genuine impression from the die used by the commissioners; but that the device of the King’s arms and the rest of the stamps were genuine. Witness then proceeded to point out the difference between the impression of the genuine stamp, and that affixed to the die in question, which partly consisted in a variation of the semicircle, and in a further difference of the depth and entire appearance of the denominating part of the stamp in question. This difference, he said, arose from the circumstance that in the genuine stamp the whole impression was struck at once, both the King’s arms and the letters, but that in that on the deed now in his hands, it was evident that the numeral letters “II” had been impressed by one instrument, and the word

“Pounds” by another; and from which the original words denoting the value had been by some means erased. Witness then examined the back of the deed, and said, it was clear that the stamp had not been impressed upon it at the office, because if it had, the impression would have penetrated the parchment, and made an indention on the back. Upon the whole, witness stated it as his decided opinion that the stamp shown him was false and counterfeit. The witness was cross-examined by Mr. Scarlett, and admitted that the impression of the King’s arms, and all parts of it, with the exception of the words denoting the value, were genuine; and that the stamp had undoubtedly at some time or other been issued from the office.

William Kappen, Esq. stated that he was secretary to the Stamp-office, and had in October last been employed twenty-four or twenty-five years in that office, though not the whole of the time in the situation he then occupied. He was perfectly acquainted with the various dies used by the office, and the manner in which the general business of the office was conducted. The deed being handed to him he examined it with great attention, and then stated that the “II” and the word “Pounds” were not impressed by the stamp used by the commissioners, but that the rest of the stamp was genuine. Witness then produced a paper which contained an impression from the II Pound stamp used by the commissioners, which he stated to have been struck in his presence, and pointed out to the court and jury the respects in which the impression of the forged stamp differed from that produced by him. Witness having completed his description, said he had not the least hesitation in stating that that part of the stamp shown to him which denoted the value, was false and counterfeit: he also stated, that the back of the deed bore no resemblance to the impression of the stamps struck at the office, which made an impression through the parchment perfectly visible on the other side of the skin, being impressed with great force by the engine, which completed the whole of the stamp at once. Witness was cross-examined by Mr. Littledale. He stated that the commissioners continued the use of the dies in these cases where they were applicable after any augmentation of the duties, and this they were empowered to do by act of parliament. After any augmentation of the duties, the commissioners had impressions taken of all the dies in use, from which they selected such as were applicable to the new duties, and impressions of these were struck in the presence of the commissioners, or the major part of them. These impressions were put into a book, and signed

by the officers employed in that department, and the dies from which these impressions were taken, continued to be used until some further alteration took place in the duties. The office never sold stamps to private individuals, but they were furnished to the public through the medium of the stamp distributors. He also stated, that no stamp was ever printed on any separate label, detached from the papers or parchment on which the instrument was to be executed. But he added, that if any person should send an unexecuted parchment or instrument to stamp, to the head office, it would be stamped upon the payment of the proper duty.

Evidence as to the discovery of the forged dies, in the office of the prisoner, was next adduced; and on the cross-examination of the witnesses, an effort was made to show that a person named Jacques, who had been the informant against the prisoner, might have been implicated in placing the dies in the position in which they were found, and that he might have been induced to take that course, in consequence of a threatened prosecution by the prisoner, in whose service he had been as clerk, for embezzlement. Two witnesses were called, who were engravers, and who had prepared the copper plates of "This Indenture," printed on the deeds, and also the dies for counterfeiting the words "II Pounds." Mr. Topham, the engraver, who was last called, however, failed in proving very distinctly, that the impressions on the stamp alleged to be forged were taken from the dies which he had prepared. The officers of stamps expressed their belief that they were so taken from the dies. Upon the production of the detached stamps found at the prisoner's house, it was stated that in their present state they were useless, because although the Stamp-office returned the value of stamps which were spoiled, yet they would not do so unless when attached to the parchment. Those stamps were also proved to have been detached from the original deeds with some object, as they were found enclosed in parcels in papers, with indorsements in the prisoner's hand-writing, denoting their amount and value.

The evidence for the prosecution having been concluded,

Mr. Scarlett rose and said, "My Lord, I have two objections, which I will submit to the consideration of your lordship, which will, as I conceive, be fatal to this prosecution. There are two facts which the prosecutor is bound to make out before he can substantiate the allegations in this indictment. The first is, that the die or stamp, respecting which the forgery is alleged to have been committed, was a die used by the direction and under the

authority of the commissioners of the stamps. Now, my lord, I contend that there is no evidence of this fact to go to the jury, because I confidently submit to your lordship, that parole evidence, which is all they have offered, is not admissible under the circumstances which have been given in evidence, because it is an axiom in law, that the best evidence must always be given which the case will admit of; your lordship has heard from Mr. Kappen that the stamps authorised to be used by the commissioners, were in their presence impressed in a book. This book has not been produced, and as no evidence has been given to show that it was lost or destroyed, parole evidence was not admissible to show the nature of its contents. That it is an essential part of the case, that the die should have been directed or authorised to be used by the commissioners of the stamps, is evident from a reference to the 52 of the King, section 7, which states, that if any person after the passing of that act, shall forge or counterfeit, or cause to be forged or counterfeited, any mark, stamp, die, or plate, which in pursuance of any act of parliament shall have been provided, made, or used, by or under the direction of the commissioners appointed to manage the duties on stamped paper, and so on. Now, my lord, what I contend for is this, that the entry in that book is the only proof that this die of £2 was used by or under the direction and authority of the commissioners, and that this entry can only be proved by the production of the book itself. Supposing, my lord, that the book had been produced, and that upon inspection it should turn out that there was no stamp of 2*l.* inserted there, in this case your lordship must allow that the prosecution would fail; but as the best evidence that it does contain this entry has not been given, it must be presumed in favour of the prisoner, that the book does not contain this entry. Had there been a written order in the usual acceptation of the term by the commissioners for the use of such and such stamps, your lordship would not have admitted parole evidence to be given of the contents of this order, unless satisfactory proof was given that it was destroyed, or could not be produced; and I humbly submit to your lordship, that the entry of the impressions of the dies in this book renders it completely of the nature of a written document, and places it within the same rules of law. I therefore humbly submit to your lordship, that there is no legal evidence to go before the jury, on this material allegation in the indictment, and that the prisoner is entitled to be acquitted.”

Mr. Justice Le Blanc.—I think there is evidence to go to the jury. The commissioners gave their order by parole, they did not give a written order.

Mr. Scarlett.—The directions to the officers to impress the stamps in the book was certainly by parole, but I humbly submit to your lordship, that when the impressions were made in a book, that book must be considered in the light of a written order.

Mr. Justice Le Blanc.—I cannot take it to be an appointment in writing; and I consider the evidence which has been given as to the use of stamps as perfectly admissible, and as proof to go to the jury.

His lordship having overruled this objection,

Mr. Scarlett said, I will now trouble your lordship with respect to my second objection, which I consider as the most material and as decisive of the fate of the prosecution. The prisoner is substantially charged with forging a die or stamp used by the commissioners, with an intent to defraud the revenue. Now in the first place it is clearly proved by the gentlemen from the Stamp-office, that the whole of the stamp, except the words “two pounds,” is genuine, and also that the stamp has been issued from the office. I need not insist before your lordship that to constitute a forgery there must be an alteration or imitation of some material part of a die, stamp, or instrument. In the present case it is alleged, that the “II Pounds” in the stamp which has been produced in court is not an impression from the genuine stamp. But in order to substantiate this charge, the prosecutors ought to have gone much further, and have proved that there had been an alteration in the value of the stamp. When the stamp was issued from the office it must have borne some value, and for aught that appears in evidence, it might have been of the value of 2*l.*, and therefore I have a right to presume that it was of that value, and that whatever alteration may have taken place in it, has only been a re-impression of the original words denoting the value of it. Now, my lord, I contend, that if this was the only alteration made in this stamp, the charge against the prisoner cannot be sustained. I will put a case, Suppose a man erase from a Bank-of-England note, a five-pound note for instance; he obliterates, suppose, by some chemical process, *Five Pounds*, and then impresses upon it the same value. This clearly would not be a forgery, nor could he be convicted, unless it could be proved that this note had previously been of a lower value, and this would be a case exactly resembling the present prosecution. There are two

circumstances necessary to constitute a forgery, the counterfeiting or altering the material part of an instrument, that which affects its value, and the doing it with an intent to defraud. I contend therefore, with great confidence, that neither of these has been proved in the present case, because no alteration affecting the value of the stamp has been even attempted to be proved; and that unless it can be proved that the alteration was of such a nature as to alter its value, and make it pass for a different sum to what it originally bore, the case on the part of the prosecution cannot be sustained, and the prisoner must be discharged from this prosecution. Mr. Scarlett dwelt on this point a considerable time, placing it in various points of view, and illustrating it by reference to similar cases.

Mr. Littledale and Mr. Williams followed on the same side.

Mr. Park on the other side, urged that the objections could not prevail; and that the stamp having been altered in its essential part—that which gave it operation, the forgery was clearly made out.

Sir Simon Le Blanc gave his decision in the following terms: “I have been anxious to hear and to attend to all that has been offered in support of the objections taken by the counsel for the prisoner. The charge against the prisoner is substantially this, that by a false die or mark he impressed or caused to be impressed the resemblance of a die used by the commissioners on a parchment-deed, with an intent to defraud the revenue. To this, two objections have been urged; the first objection is, that evidence has not been given, that the die of which this impression is alleged to be the resemblance, was a die used by the direction and authority of the commissioners of the stamps; and the second objection denies that any forgery has been committed. With respect to the first objection the court has already expressed its opinion, that there is evidence to go to the jury of the use of the die by the commissioners, and this is all that is necessary to be given in evidence. The Act of the 48 George III., which imposes this duty, and the 52 George III., which unites in one act all the laws inflicting the punishment of death for offences against the revenue laws, both agree in this. The 48 of George III. in reference to this point enacts, “That if any person shall forge or counterfeit, or cause to be forged or counterfeited, any stamp or die, which shall be provided, made, or used, in pursuance of this Act, or of any former Act,” shall be adjudged guilty of felony, &c. The 52 George III. after stating “that if any person shall after the passing of this Act, forge, &c. any mark, stamp or die, used by or under the direction of the commissioners,”

&c. goes on to add, “or by or under the direction of any person or persons legally authorised on that behalf.” The court therefore holds, that the use by the commissioners is all that is requisite, and that of this use there is evidence to submit to the consideration of the jury. The court therefore does not consider this objection as valid. The other objection proceeds on the ground, that no forgery has been committed, inasmuch as it has not been proved, that any alteration has been made in the value of the stamp. It is contended, that as a considerable part of the stamp has been proved to be genuine, and must have been issued from the Stamp-office, with words denoting its value, this value, for aught that appears to the contrary, may have been the same that is now impressed upon it, and that in fact there has only been a re-impression of the same words which were upon the stamp when it was first issued. And upon this assumption it is contended, that as no material part of the instrument has been altered, there has been no legal forgery. But it is unnecessary to give any opinion on the validity of this inference, because the foundation has not been laid, on which alone there could be a reason for examining it, there having been no evidence given to prove that this stamp was originally of the value of two pounds, and it undoubtedly lay upon the prisoner to prove this. For the case stands thus: There is a forged impression of a die upon an instrument, proved to have been in the possession of the prisoner, under circumstances which certainly call for explanation, and also in whose possession a number of dies are found, made too by his own order, and two of which appear to have been used to make an impression, an impression proved to be false and counterfeit upon this instrument. If these facts are not accounted for by evidence, or explained somehow or other, the presumption in law is, that this false impression was forged for the purpose of increasing or altering its value, and for the purpose of defrauding the revenue. This presumption thus raised it is for the prisoner to repel by evidence, but there is certainly *prima facie* evidence to go to a jury. That the alteration of a material part of an instrument is a forgery has been solemnly determined, by all the Judges, in a modern case, so that it cannot now be called in question. I cannot therefore, on these grounds, stop the cause from going on.” The learned Judge concluded by calling on the prisoner for his defence.

Mr. Blackburn, who laboured under great and evident emotion, addressed the Court and Jury in the following terms:—

“In the painful and anxious situation in which I am unhappily placed, I am ill-fitted for the task of addressing you on this occasion. Agitated as I am between hope and fear, I can only solemnly assure you that I never forged a stamp in my life; but the public mind has been prejudiced against me by unfounded reports and advertisements, containing vile insinuations against me. But, gentlemen, I entreat and charge you upon your oaths, that you banish all that you have heard out of this court from your minds, and all that I have to wish from you is, that you be influenced only by the evidence, and that you will do unto me as you would wish to be done unto, were you placed in my unfortunate situation. I have practised as an attorney among my townsmen and neighbours with credit and respectability for twenty-seven years; you will hear from them upon their oaths, the character I have maintained during that period. In making my defence, I have many great and, indeed, insuperable difficulties to contend with: I am called to furnish an answer, and that by evidence, against a charge which I never heard of until I entered this court, for until I heard the indictment read I had no knowledge of that which they have imputed to me by this indictment, and of course it was absolutely impossible for me to be prepared with evidence to rebut the charge. With respect to the deed in question, I know nothing of it, it has been long out of my possession, and it is clear by the evidence of the witnesses for the prosecution, that it has been very much exposed. I would only observe that if it had not had a regular stamp affixed to it, the engrossing clerk must have seen it, and it must likewise have been observed at the office when the deed was registered. When my house was searched, my account-books were taken away, which has deprived me of all means of tracing the deed in question, or of proving where the stamp was bought; I had therefore no clue to direct my search. With respect to the spoiled stamps, I would observe, that they have lain by me a long time, and that the period of claiming the allowance for them has long elapsed. It often happens, that after a deed is engrossed, the execution may be delayed a very considerable time beyond the period allowed for claiming the allowance, and if ultimately it should not be executed the stamp would be entirely lost; this will account for the spoiled stamps which in a long series of time have been accumulated. I declare to you, gentlemen, that the deed in question had upon it a regular stamp when it was executed in my office, and I trust you will not presume anything against me; that you will attend only to the evidence, and that you will decide upon my fate with the same candour as

you would wish in similar circumstances to have shown to you. My life is in your hands. I shall bow with resignation to your decision, and I trust that your decision will be right.”

As many as twenty-four gentlemen of the highest respectability were called to speak to the prisoner’s character, and they all joined in declaring that they believed him incapable of committing such an offence as that which was imputed to him.

The learned Judge then proceeded to sum up the case, and the Jury having retired from the Court, for about a quarter of an hour, returned with a verdict of Guilty.

Mr. Blackburn and Mr. Wainewright were subsequently put to the bar together and arraigned upon an indictment, in which they were charged jointly with removing a stamp from one deed and affixing it to another, but the evidence being inconclusive, they were declared to be Not guilty.

The court during the whole day was crowded to excess, and the greatest interest appeared to be excited amongst the inhabitants of Leeds, where the prisoners had lived, many of whom were present. Mr. Blackburn was dressed in a suit of mourning, with his hair powdered. He conducted himself with great propriety during the trial, but upon the verdict of Guilty being returned he appeared to be completely unmanned. He paid no attention whatever to the proceedings in the second trial, nor was he observed to take any notice of his fellow-prisoner, Mr. Wainewright, upon his being placed by his side.

Upon the Wednesday after the trial, sentence of death was passed upon the unhappy man, and on Friday the 24th March Mr. Justice Le Blanc quitted York, leaving him for execution on Saturday the 8th April. The interval was brief, and his friends determined to lose no time in applying to the Prince Regent for a mitigation of his sentence. A petition was accordingly prepared, praying for the exercise of the royal clemency towards him, and in the course of two or three days, this application for mercy was signed by upwards of three thousand persons, chiefly the fellow-townsmen of the unfortunate prisoner. On Sunday, the 26th March, Mr. Elliot Carrett, of Dewsbury, one of the attorneys employed in conducting the defence of the prisoner, went to London, for the purpose of presenting the petition to the Prince Regent, and of taking such other steps as should appear likely to contribute to the attainment of this object of the petition.

Mrs. Blackburn, the wife of this unfortunate gentleman, also repaired to London, with the view if possible of throwing herself at the feet of his Royal Highness to supplicate for the life of her unhappy husband. Every means which zeal and friendship could suggest was used to give effect to this petition: applications were made to persons of influence and consideration in the state, to secure their co-operation, but, unhappily, without success; and every hope of procuring either a mitigation or suspension of the dreadful sentence of the law was extinguished by the following letter from Viscount Sidmouth, his Majesty's principal Secretary of State for the Home Department.

Whitehall, 1st April, 1816.

"SIR,—I have laid before his Royal Highness the petition which I received on behalf of Joseph Blackburn, a prisoner under sentence of death in the Castle of York, for forgery; and I am under the painful necessity of acquainting you, that it did not appear to me consistent with my public duty, to advise his Royal Highness to remit or suspend the execution of the sentence passed upon this unfortunate person.

"I have the honour to be,
"Sir, your most obedient servant,
(Signed) "SIDMOUTH."

Before the result of this application to the Prince Regent was known to either the prisoner or to his friends at Leeds, it was deemed advisable to submit to Mr. Justice Le Blanc, who was then at Lancaster, certain affidavits.

The object of these affidavits was to show that the deed was executed on the day it purported to bear date, which was on the 30th September 1812, and that as the dies spoken to by Mr. Topham were not delivered at the office of Mr. Blackburn until the following month, it was quite impossible that any forgery of the stamp on the deed in question, could have been made by him at the time it was executed.

This application like that to the Crown was unsuccessful, and the unhappy prisoner having received an intimation that no hope remained that his life would be spared, he proceeded anxiously and ardently to apply himself to his religious offices. He was attended up to the time of his execution by the Rev. John Hamilton, the minister of a dissenting congregation at Leeds, to whose religious exhortations he paid the utmost

attention. He continued for some days to labour under a despondency approaching to despair, arising as he himself stated, not from the dread of temporal death, but from a deep consciousness of the aggravated guilt of his past life, his total neglect of religious observances, and his gross indulgence in forbidden sensual pleasures. He stated "that the irregularities of his past life had been so great as to have deserved that death which had been awarded against him for an offence of a different nature." He added, "that these crimes had been committed against light and knowledge, and that he had only repented of them, and thought upon religion, when every pleasure had been cut off, and every earthly hope had become extinct." We rejoice however in being able to add, that in a few days some faint rays of hope penetrated the gloom which oppressed his mind; and as the merciful provisions of the gospel were unfolded to him, and its encouraging promises pressed upon his consideration, these hopes became brighter, and cast, if not a brilliant, yet a cheering ray of light on the gloomy path he had yet to tread.

On Thursday, the 6th of April, he attended the chapel, and heard with profound attention, a sermon preached by the Rev. Mr. Richardson, who had some religious conversation with him after the other prisoners had retired. On Friday afternoon the prisoner had a last interview with his brother; his unhappy wife had come to York on the same painful errand, but on Mr. Hamilton representing to her that an interview might disturb the tranquillity of her husband's last hours, she abstained from pressing the request which she had made. She had seen him only once since his conviction, and the meeting was of the most distressing nature.

On the night before the execution, Mr. Hamilton continued in prayer with the wretched prisoner up to a late hour, and he repeatedly expressed himself perfectly resigned and ready at any moment to meet his fate.

On Saturday, at about half-past eleven o'clock, Mr. Blackburn was called from his cell, and, the necessary arrangements having been made, he was conducted to the scaffold supported by Mr. Hamilton. He walked with a firm, unhesitating step, and perfectly erect. It was a quarter before twelve o'clock when the procession arrived upon the platform. The prisoner immediately knelt down upon a stool provided for the occasion, with his face averted from the numerous spectators, who were assembled to witness this sad and melancholy spectacle.

The reverend gentleman who had with so much zeal and unwearied assiduity attended him in prison, to speak to him the words of peace, did not shrink from the painful task of accompanying him through this last painful stage of his earthly pilgrimage; placing himself near the prisoner, he in a low tone of voice asked him some questions relative to the state of his mind with respect to his approaching change, and particularly with respect to his entire dependence on the mercy of God through the merits and mediation of the Messiah.—To these inquiries he replied, “I have no other, I wish no other trust.” Mr. Hamilton now inquired if it was his wish that he should pray with him, and he eagerly replied, “If your feelings on this occasion are not too much agitated, I shall be greatly obliged.” Kneeling down close to the prisoner, who kept his eyes closed during the whole of this sad solemnity, he then offered up a prayer at once solemn and tender, and adapted equally to the former character and present situation of the humble penitent before him. Mr. Blackburn appeared deeply to feel and fervently to join in this last act of devotion, and when the minister came to that comprehensive model of devotion, the Lord’s Prayer, the prisoner accompanied him in an audible voice.

When Mr. Hamilton rose up from prayer, he took Mr. Blackburn by the hand, and having commended him to the mercy and protection of the Almighty, took a sad adieu of him, conjuring him that when he suffered death, and was entering eternity, he should aim at no higher strain than this, “God be merciful to me a sinner.” The poor sufferer grasped his hand, and appeared reluctant to part; and in a voice rendered tremulous by emotion, said, “May God Almighty bless and protect you.” It now only remained for the executioner to perform his part in the heart-rending ceremony. Mr. Blackburn was assisted to rise, but it was evident that the powerful emotion of his mind had impaired his strength, and the under jailor supported him in his arms until the fatal cord was placed round his neck, and properly adjusted. At this awful moment he ejaculated, “O Lord God Almighty, have mercy upon me, and preserve my soul alive.” These were the last words he was heard to utter, as the drop instantly fell.

It is painful to add that the noose of the cord had, by some means or other, slipped from its proper situation, and he appeared much convulsed. After he had been suspended about two minutes, the executioner endeavoured to replace the cord in its original situation; and though he succeeded in this attempt, it seemed to harrow up the feelings of every

person present, and produced a stronger sensation of distress than any part of this mournful ceremony. In about six or seven minutes from the falling of the drop, the unfortunate man appeared insensible of further suffering. The body, after remaining suspended the usual time, was put into a coffin, and delivered to his friends. His remains were interred at an early hour on Monday, at Rothwell, a village near Leeds.

JEREMIAH GRANT

EXECUTED FOR BURGLARY.

THE exploits of this celebrated Irish freebooter gained for him a notoriety almost equal to that of his successor Captain Rody. Grant was the son of a poor peasant in the Queen's County, and early evinced a predilection for a life of idleness. His progress in literature amounted to what his countryman shot at, "nothing at all;" but his fertile genius obviated his misfortune in being supremely ignorant of reading and writing, and his daring spirit triumphed over all minor obstacles. Having reached the age of nineteen his "public life" began, for at that time he commenced his depredations upon his fellow-countrymen in the capacity of a highwayman, and his daring, and the fame of his exploits, in the course of the ensuing two years gained him so much celebrity among others of the same character, that at twenty-one he was chosen "captain" of a select band of "gentlemen" who "followed the road."

His depredations for several years were confined to his native county, and there his improvident liberality secured him the esteem and blessings of the lower orders, while the terror of his name and the dread of his





Discovery of Captain Grant and his band.

P. 576

vengeance kept those of a higher rank in complete subjection to his authority.

Like Rob Roy, he levied an annual tax on the farmers, which they cheerfully paid, as it secured them from the nocturnal visits of his followers; and the Captain was so rigid a disciplinarian, that any dereliction of duty in this respect was punished with a heavy hand. His exploits soon became too notorious, however, to pass unnoticed by the authorities, and large rewards were offered for his apprehension; but, although he was as well known as the “Hill of Howth,” he was to be seen at every fair and pattern in the country, and had a more numerous acquaintance than the village doctor. At every farmer’s table he was welcome, and the cottages

that gave him shelter were sure of reward; for he freely shared the contributions he obtained with danger.

With the ladies he was a second Macheath, and more wives than one claimed him for their husband; and it is reported that he was frequently complimented on his person and manner, by the mistresses of those houses which he visited without the formality of an invitation. But it must be observed that he never forgot his accustomed humanity and politeness; and, unless when attacked by the police, he never did an individual a personal injury. His behaviour always evinced a degree of refinement above his education and birth; and even those who suffered from his depredations never spoke of him but as an “accomplished villain.”

His character at length grew so notorious in the Queen’s County, that a consultation of magistrates was held for the purpose of devising means for his apprehension, and in consequence of the measures they adopted several of Grant’s followers were brought to justice, and died, as their Captain expressed it, of the “gallows fever.” For some time his knowledge of the country, and the partiality of the peasantry towards him, aided him in evading the pursuit which was made after him; but a traitor was found, and Grant was delivered into the hands of the Philistines.

The gentry of the country, and ladies of the first rank, crowded to the jail of Maryborough to see the “bold outlaw;” and it was supposed that their impertinent curiosity so much affected his sensibility, that he took his departure one night from prison, through a window, having first contrived to cut the bars that guarded it.

Dreading another specimen of the rudeness of the Irish aristocracy, he prudently resolved to leave the Slieve-bloom mountains, and with the remnant of his banditti, he removed to the wood of Killoughram, in the county of Wexford, within four miles of the town of Enniscorthy. Here he continued for some time, and made frequent visits to the neighbouring towns, where he was known by the name of Cooney.

In the March of 1816 he made a journey to his native county, where he robbed the house of Thomas Cambie, Esq., of money and plate to a large amount. Mrs. Cambie was at home, and he behaved with so much politeness, that she ordered him supper and wine. The captain being impatient of delay, applied his teeth to extract a cork from a bottle; upon which the mistress observed “it was a pity to spoil his fine white teeth,” and

immediately stood up and procured him a corkscrew. Grant, on his departure, took the liberty of borrowing Mr. Cambie's horse and gig, in which he rode to his retreat in the wood of Killoughram.

The Captain's occasional depredations in the county of Wexford excited great alarm, for a robbery there then was a thing of very rare occurrence. Notice was at length given of the banditti retreat, and Archibald Jacob marched the military out of Enniscorthy and surrounded the wood. Some of the soldiers and yeomanry penetrated the fastness, and in the thickest part of the shade they discovered the "Robber Chief," and five of his followers, on a bed of straw, in a romantic cave. The freebooters defended themselves with desperate valour, and before they surrendered, wounded five of the military. After they were secured, their retreat was found to contain all the necessary implements for housebreaking, and abundance of arms. The captain was committed to Wexford jail in the name of Cooney; but the evidence against him being doubtful, it was apprehended that he would be acquitted, when, unfortunately for him, it was discovered that he was the celebrated Captain Grant. The jailor of Maryborough now claimed his body, and he was forthwith transmitted to his former abode, only just in time, as it was eventually found out, to prevent his again escaping from the jail in which he was confined, in obedience to and in conformity with a plan which had been matured, and which was to be put into operation on the very night on which he was removed.

His trial came on at Maryborough, August the 16th 1816, when he was found guilty of the burglary in Mr. Cambie's house. To the question "What reason he had why judgment and sentence of death should not be passed on him?" he replied in the most firm, collected, and, indeed, feeling manner, "My lord, I only beg of the Court some short time to arrange things before my departure for another place; not in the idle hope of escape or pardon, but to make restitution to the persons who have suffered by my bad line of life. I have been visited in my cell by some blessed people, who have, thank God, given this turn to my mind, and to which I implore your lordship's attention."

Sentence was then immediately passed upon him; but in obedience to his request, his execution was deferred until the 29th of August, when he met his fate with decent fortitude and pious resignation.

THOMAS CARSON.

CONVICTED OF MURDER.

THE Irish are capital actors, but generally give to tragic parts a comic effect. The following case of successful adroitness is only one out of many such tricks played off in the prisons of the sister kingdom.

Thomas Carson and his brother John were tried at the Meath assizes, in the spring of 1816, for the wilful murder of a man named Cassidy. The Carsons belonged to a corps of yeomen; and being Protestants, they were privileged to carry arms. Of these, however, they made a bad use, and turned them against one of his Majesty's subjects, named Cassidy, whose life they took away, through wanton cruelty, in Kilmainham Wood, in the county of Meath. John was acquitted; but Thomas Carson was found guilty, and ordered for execution on the following Friday morning, at one o'clock.

At five o'clock on Friday morning a brother of the prisoner went to see the unhappy culprit, and informed the jailor that Mr. Wainwright, the clergyman, would attend in a short time to pray with and administer the sacrament to his brother. The judge had, from humanity, directed that his relations should have free access to the prisoner, so that his brother was permitted to go into the condemned cell to him. Some time after the jailor entered the cell, and said that the time was very short, and if the clergyman was expected, they had better send for him. The brother offered to go for him, and apparently retired. Shortly after Mr. Wainwright came; and being shown into the cell, continued a long time in prayer with the prisoner. The time of execution approaching, the jailor came in, accompanied by the prisoner's uncle. The clergyman told the prisoner he had no time to lose—that his uncle had come, and would communicate with him in the administration of the sacrament. The prisoner entreated to be allowed to pray a little longer, and appeared absorbed in devotion. At length the jailor becoming quite impatient, he rose from the straw on which he was kneeling, and welcomed his uncle. The latter instantly exclaimed, "Good God! how grief has altered him! this cannot be Tommy!" and looking nearer—"No," said he, "this is Anthony Carson!" The clergyman was amazed—the jailor ran down stairs, and discovered that the person whom he had sent

for the clergyman was no other than the convict himself, who had not thought proper to return.

Coming back into his cell, the jailor cried out, "Your brother is gone off! what shall I do? I am ruined!"—"Gone off!" cried Anthony with great surprise; "Oh, he has taken away my big coat."

The two brothers served in the same corps, and were so alike in appearance that Anthony came to the prison in a frize great-coat, which he gave to the convict, who, thus disguised, passed all the doors of the prison, and walked deliberately into the street, from whence, in great apparent affliction, he looked up at the preparation for execution, and passed on as if to Mr. Wainwright's house.

Diligent search was made for the fugitive, but without effect. The brother was detained, but the extent of his crime was a misdemeanour.

The case of this lucky prisoner clearly exemplified, in the language of the prisoner about to receive judgment of death, that he did not believe he was "safe in the hands" of his jailors.

The story runs thus:—An Irishman had been convicted of a robbery at the Old Bailey sessions, for which he was brought up, with others at the conclusion of the session, to receive judgment of death. The ready wit and the natural disinclination of the Irish to give a straightforward answer to a question, are universally known and admitted. The prisoner in question on being called on by Mr. Shelton, the officer of the court, in the usual way, to declare what he had to say why sentence of death should not be passed upon him, advanced to the front of the dock with a vacant stare, and inquired "What was the question?"

Mr. Shelton.—You have been convicted of robbery; what have you to say why sentence of death shall not be passed upon you, according to law?

Prisoner.—Faith, I have nothing much to say, except that I do not think I am safe in your hands.

The answer was received with a loud burst of laughter, which even the melancholy nature of the scene could not prevent the learned recorder from joining in. The gravity of the court was, however, soon again put to the test. Sentence had been passed, and the prisoner was about to retire from the bar, when he was unexpectedly called back by Mr. Shelton, who demanded to know his age.

Prisoner.—Is it my age you mean?

Mr. Shelton.—What is your age?

Prisoner.—I believe I am pretty well as could as ever I'll be.

Again the whole court was convulsed with laughter; but the wretched man, whose laughter-moving qualities were purely involuntary, was doomed even at “the last scene of all,” to raise the mirth of the spectators of his fate. He was in due form taken from his cell, and the ordinary of the jail attending him, he was conducted to the press-room to be bound, preparatory to his going out to the scaffold. His irons were removed, and his arms confined with cords in the customary manner, but the willing compliance exhibited by the wretched convict in the proceedings which had hitherto taken place, to assist the executioner in performing his office, suddenly ceased. He sat down on a bench, and in spite of the calls of Jack Ketch, and of the sheriffs to accompany them in procession to the scaffold, he remained sullenly on the bench, where he had first taken up his position. “Come,” at last urged Jack Ketch, “the time is arrived;” but his coaxing words and tone were unavailing. “The officers are waiting for you,” said the sheriffs; “can anything be done for you before you quit this world?” No answer was returned. At length, said Jack Ketch, grown surly at the long delay and the silence of the prisoner, “If you won't go, you know I must carry you.” “Then you may,” said the prisoner, “for I'll not walk.” “Why not?” inquired the sheriff. “I'll not be instrumental to my own death,” hesitated the prisoner. “What do you mean?” asked the ordinary. “What do I mean?” answered the unfortunate man. “I'll not walk to my own destruction;” and in this determination he remained, and Jack Ketch and his assistants were eventually absolutely compelled to carry him to the scaffold, where he was turned off, continuing in his refusal to do anything which might be construed into “his being a party to his own death.”

END OF VOL. I.

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FOOTNOTES:

[1] Different countries have different modes of inflicting capital punishments. Beheading was military punishment among the Romans, known by the name of *decollatio*. Among them the head was laid on a *cippus*, or block, placed in a pit dug for the purpose; in the army, without the *vallum*; in the city, without the walls, at a place near the *porta decumana*. Preparatory to the

stroke, the criminal was tied to a stake, and whipped with rods. In the early ages the blow was given with an axe; but in after-times with a sword, which was thought the more reputable manner of dying. The execution was but clumsily performed in the first times; but afterwards they grew more expert, and took the head off clean, with one circular stroke.

In England, beheading is the punishment of nobles; being reputed not to derogate from nobility, as hanging does. In France, during the revolutionary government, the practice of beheading by means of an instrument called a *guillotine* (so denominated from the name of its inventor) was exceedingly general. It resembles a kind of instrument long since used for the same purpose in Scotland, and called a *maiden*.

It is universally known, that, at the execution of King Charles the First, a man in a vizor performed the office of executioner. This circumstance has given rise to a variety of conjectures and accounts; in some of which, one William Walker is said to be the executioner; in others, it is supposed to be a Richard Brandon, of whom a long account was published in an Exeter newspaper of 1784. But William Lilly, in his "History of his Life and Times," has the following remarkable passage. "Many have curiously inquired who it was that cut off his (the king's) head: I have no permission to speak of such things; only this much I say, he that did it, is as valiant and resolute a man as lives, and one of a competent fortune." When examined before the parliament of Charles II., he states, "That the next Sunday but one after Charles the First was beheaded, Robert Spavin, secretary to Lieutenant-General Cromwell at that time, invited himself to dine with me, and brought Anthony Pierson and several others along with him to dinner. That their principal discourse all dinner time was only who it was that beheaded the king. One said it was the common hangman; another, Hugh Peters; others also were nominated, but none concluded. Robert Spavin, so soon as dinner was done, took me by the hand and carried me to the south window: saith he, 'These are all mistaken; they have not named the man that did the fact; it was Lieut. Colonel Joice. I was in the room when he fitted himself for the work; stood behind him when he did it; when done, went in with him again. There is no man knows this but my master, (viz. Cromwell,) Commissary Ireton, and myself.'—'Doth not Mr. Rushworth know it?' saith I.—'No, he doth not know it,' saith Spavin. The same thing Spavin hath often related to me when we were alone."

The following description of the Maiden, by Mr. Pennant, may not prove uninteresting:—"This machine of death is now destroyed; but I saw one of the same kind in a room under the Parliament-house in Edinburgh, where it was introduced by the Regent Morton, who took a model of it as he passed through Halifax, and at length suffered by it himself. It is in form of a painter's easel, and about ten feet high; at four feet from the bottom is the cross bar on which the felon lays his head, which is kept down by another placed above. In the inner edges of the frame are grooves; in these is placed a sharp axe, with a vast weight of lead, supported at the very summit with a peg: to that peg is fastened a cord, which the executioner cutting, the axe falls, and does the affair effectually, without suffering the unhappy criminal to undergo a repetition of strokes, as has been the case in the common method. I must add, that if the sufferer is condemned for stealing a horse or cow, the string is tied to the beast, which, on being whipped, pulls out the peg, and becomes the executioner."

[2] This celebrated painter, whilst decorating the dome of St. Paul's Cathedral, nearly fell a victim to his zeal in that undertaking. One day, when pursuing his task on the scaffold erected round the dome for that purpose, he kept walking backwards, surveying the effect of his work, until he had nearly approached the edge, from which another step would have precipitated him. At this instant his servant, who perceived the danger his master was in, with a wonderful presence of mind seized a pot of colour, and threw it over the painting. This caused Sir James to rush forward for the preservation of his work, and he was thus saved from being dashed to pieces, which, but for this timely intervention, must have been his fate. This eminent man

painted the whole of the cupola of St. Paul's, and also the halls of Greenwich Hospital and Blenheim. He was born in 1675, and was originally a house-painter, but afterwards applied himself to historical subjects, and equalled the best painters of his time. In 1719 he was appointed Historical Painter to George I., and shortly afterwards was created a knight. He was employed in several extensive works, for which he was in general very inadequately paid; and, at times, even found it difficult to obtain the stipulated price. His demands were contested at Greenwich Hospital, although he only received 25s. a square yard; about the same time a foreigner, for doing less work at Montague House, received 2000*l.* for his work, besides 600*l.* for his diet. For St. Paul's he received 40s. a square yard. He also decorated More Park, but was obliged to sue Mr. Styles for it; he, however, not only recovered 3,500*l.* the sum agreed to be paid him, but 500*l.* more for decorations about the house. Notwithstanding these difficulties, he acquired a considerable fortune, and was several years in parliament; he was also a Fellow of the Royal Society. His genius was equally happy in history, allegory, landscape, and architecture; he even practised the last science as a man of business, and built several houses. He died in 1734, in the same place where he was born. He left a son, who followed his father's profession; and a daughter, who married the celebrated Hogarth.

[3] It may not be uninteresting to the reader to know that Murphy was executed on the 27th of March, 1728, for stealing plate.

[4] It was formerly customary to oblige persons suspected of murder to touch the murdered body, for the discovery of their guilt or innocence.

This way of finding murderers was practised in Denmark by King Christianus II., and permitted over all his kingdom; the occasion whereof was this:—Certain gentlemen being on an evening together in a stove, or tavern, fell out among themselves, and from words came to blows, (the candles being out,) insomuch that one of them was stabbed with a poniard. Now the murderer was unknown, by reason of the number, although the person stabbed accused pursuivant of the king's, who was one of the company.

The king, to find out the homicide, caused them all to come together in the stove, and, standing round the corpse, he commanded that they should, one after another, lay their right hand on the slain gentleman's naked breast, swearing that they had not killed him. The gentlemen did so, and no sign appeared against them; the pursuivant only remained, who, condemned before in his own conscience, went, first of all, and kissed the dead man's feet; but, as soon as he had laid his hand upon his breast, the blood gushed forth in abundance, both out of his wound and his nostrils; so that, urged by this evident accusation, he confessed the murder, and was, by the king's own sentence, immediately beheaded. Such was the origin of this practice, which was so common in many of the countries in Europe, for finding out unknown murderers.

[5] Until the thirtieth year of the reign of King George III. this punishment was inflicted on women convicted of murdering their husbands, which crime was denominated petit-treason. It has frequently, from some accident happening in strangling the malefactor, produced the horrid effects above related. In the reign of Mary (the cruel) this death was commonly practised upon the objects of her vengeance; and many bishops, rather than deny their religious opinions, were burnt even without previous strangulation. It was high time this part of the sentence the type of barbarism, should be dispensed with. The punishment now inflicted for this most unnatural and abhorred crime is hanging.

[6] It has been a very ancient practice, on the night preceding the execution of condemned criminals, for the bellman of the parish of St. Sepulchre to go under Newgate, and, ringing his bell, to repeat the following verses, as a piece of friendly advice, to the unhappy wretches under sentence of death:—

All you that in the condemn'd hole do lie,
 Prepare you, for to-morrow you shall die.
 Watch all, and pray, the hour is drawing near,
 That you before the Almighty must appear;
 Examine well yourselves, in time repent,
 That you may not t' eternal flames be sent,
 And when St. Sepulchre's bell to-morrow tolls,
 The Lord above have mercy on your souls!
 Past twelve o'clock!

The following extract from Stow's Survey of London, page 125 of the quarto edition, printed in 1618, will prove that the above verses ought to be repeated by a clergyman, instead of a bellman:—"Robert Doue, citizen and merchant taylor, of London, gave to the parish church of St. Sepulchres the somme of 50*l*. That after the several sessions of London, when the prisoners remain in the gaole, as condemned men to death, expecting execution on the morrow following; the clarke (that is, the parson) of the church shoold come in the night time, and likewise early in the morning, to the window of the prison where they lye, and there ringing certain toles with a hand-bell, appointed for the purpose, he doth afterwards (in most Christian manner) put them in mind of their present condition, and ensuing execution, desiring them to be prepared therefore as they ought to be. When they are in the cart and brought before the wall of the church, there he standeth ready with the same bell, and after certain toles rehearseth an appointed praier, desiring all the people there present to pray for them. The beadle also of Merchant Taylors' Hall hath an honest stipend allowed to see that this is duely done."

[7] In Mr. Ainsworth's Romance of "Rookwood," Turpin is one of the most striking characters.

[8] The officers' half-pikes.

[9] "On Saturday last a Fleet parson was convicted before Sir Ric. Brocas of forty-three oaths, (on the information of a plyer for weddings there,) for which a warrant was granted to levy 4*l*. 6*s*. on the goods of the said parson; but, upon application to his Worship, he was pleased to remit 1*s*. per oath; upon which the plyer swore he would swear no more against any man upon the like occasion, finding he could get nothing by it."—*Grub-Street Journal*, 20 July, 1732.

[10] In a letter to George Montagu, Esq. dated July 17, 1753, Horace Walpole says:—

"Lady Anne Paulett's daughter is eloped with a country clergyman. The Duchess of Argyle harangues against the Marriage Bill not taking place immediately, and is persuaded that all the girls will go off before next Lady-day."

[11] In a letter to George Montagu, Esq. from Horace Walpole, is the following notice of Keith:—

"Strawberry Hill, 11th June 1753.

"I shall only tell you a *bon mot* of Keith's, the marriage-broker, and conclude:

" 'G—d d—n the Bishops!' said he, (I beg Miss Montagu's pardon.) 'so they will hinder my marrying. Well, let 'em, but I'll be revenged: I'll buy two or three acres of ground, and by G—d I'll under-bury them all.' "

[12] The "Essay on Woman" was a parody on Pope's sublime work, called "An Essay on Man."

A learned divine, the Rev. Mr. Kidgell, thus writes on the works of Wilkes:—

“On the title-page is an obscene print, with a Greek inscription, signifying ‘The Saviour of the world.’ We shall, the poison of the publication being long eradicated, merely quote a commentator on the subject:

“In this work (‘An Essay on Woman’) the lewdest thoughts are expressed in terms of the greatest obscenity; the most horrid impurity is minutely represented; the sex is vilified and insulted; and the whole is scurrilous, impudent, and impious, to an incredible degree. In the variations and notes the inspired writings are perverted into the gross ideas of a libidinous blasphemer, with an invention new, wonderful, and horrid. The most solemn and important passages of the Gospel are tortured into the oblique obscenity of double meanings, worthy only of him who is at once the enemy of God and man.”

[13] The paper entitled “The North Briton” was ordered to be burnt by the common executioner at the Royal Exchange. Mr. Alderman Harley, one of the sheriffs of London, attending in his official capacity to see this carried into execution, was assaulted and wounded by the mob. A man of the name of John Franklin was seized as one of the offenders, and committed to Newgate. On the day of the conviction of Wilkes he was tried for this outrage at the Old Bailey, and found guilty.

When the trial was ended, the worthy alderman addressed the Court in behalf of the prisoner. He said that, for his part, he had forgiven the affront offered to his own person; that justice required a prosecution: it had been, by the conviction of the offender, in part satisfied, and therefore he hoped the Court would mitigate his punishment. The Court complied with the prosecutor’s humane request, and sentenced the prisoner to a short imprisonment, to pay a fine of six shillings and eight pence, and to find security for his good behaviour for one year.

[14] “It was done in the passage leading to the chapel, by order of Mr. Akerman, the keeper, to prevent his being gazed at; to whom he desired I would return his sincere thanks for all his civilities to him, even to the last.”

[15] Dr. H. More’s Continuation of Glanvil’s Collection of Relations in proof of Witchcraft.

Typographical errors corrected by the etext transcriber:

with what had occured=> with what had occurred {pg 36}

ascertain the cause=> ascertain the cause {pg 72}

continuing the daugerous=> continuing the dangerous {pg 164}

indicted as accessaries=> indicted as accessories {pg 243}

he make a speech=> he made a speech {pg 295}

She answerered=> She answered {pg 304}

which was propoeed=> which was proposed {pg 391}

four oclock precisely=> four o’clock precisely {pg 402}

On Saturday, Septemer 17=> On Saturday, September 17 {pg 412}

here uttered an expression=> here uttered an expression {pg 435}

who, I I understand=> who, I understand {pg 440}

a full descption of=> a full description of {pg 205}

and extraordinay manner=> and extraordinary manner {pg 507}

In the hopes of averting=> in the hopes of averting {pg 529}
unconscious of the fate=> unconscious of the fate {pg 550}
as far as he was permitted=> as far as he was permitted {pg 562}



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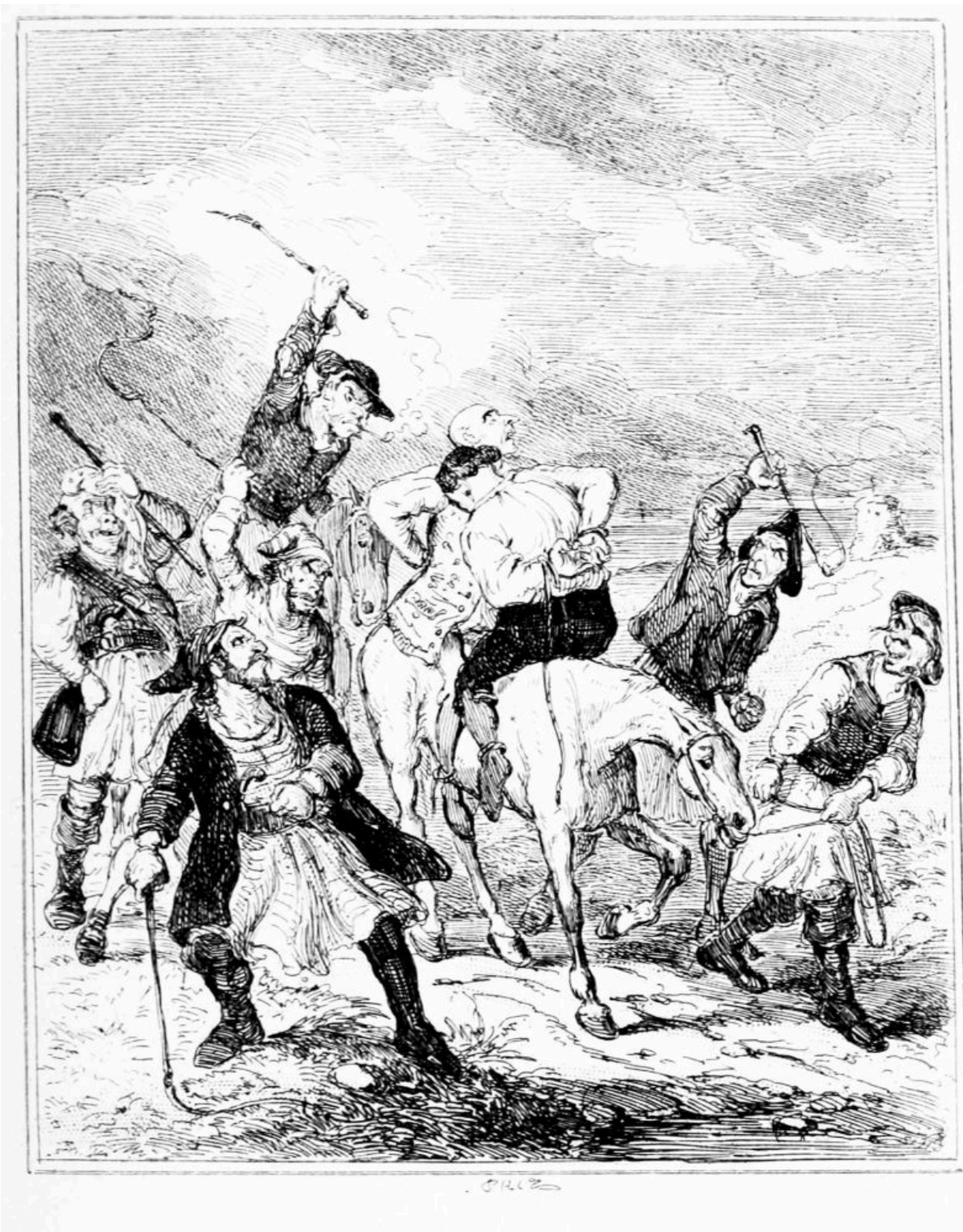
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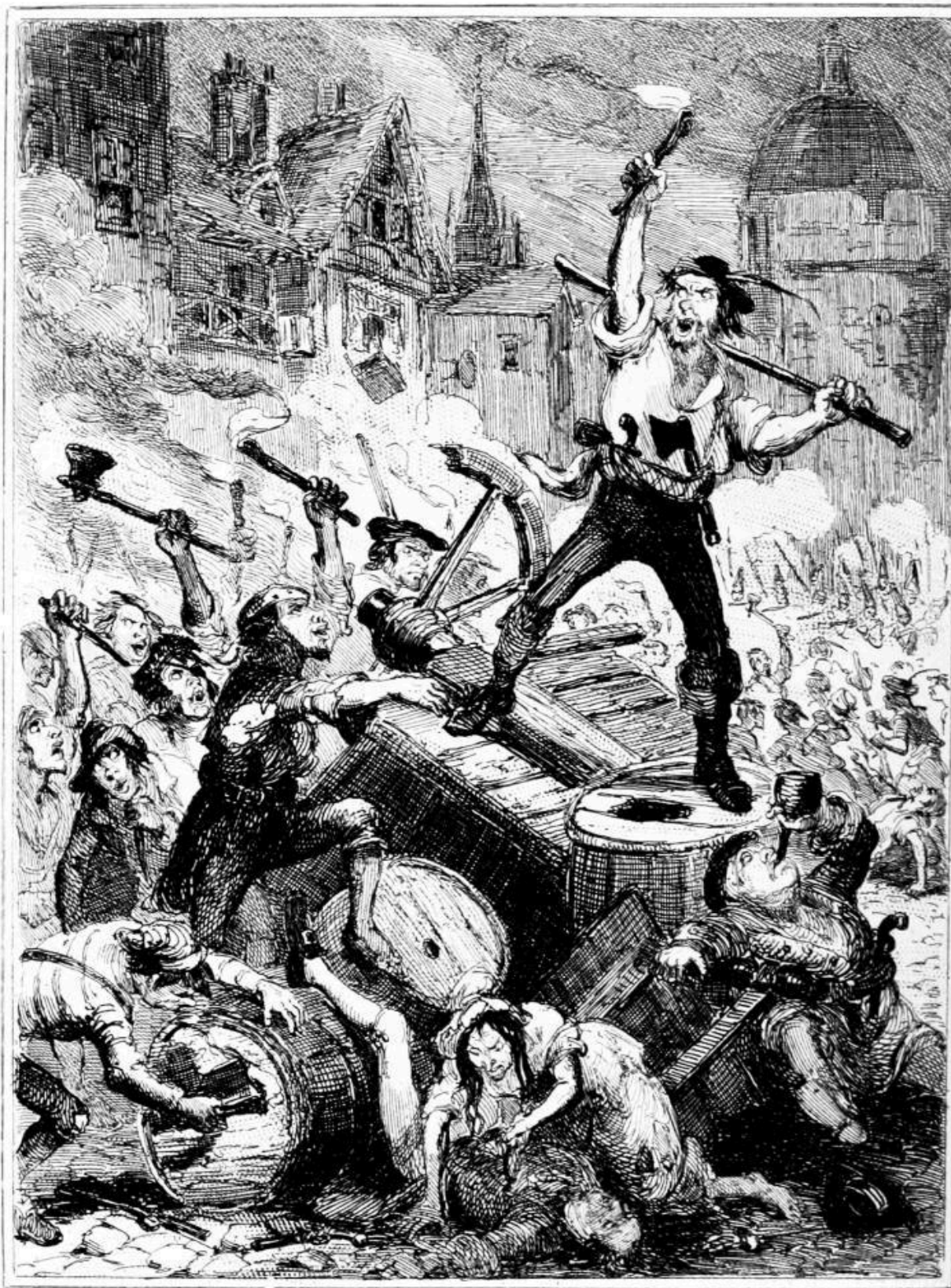


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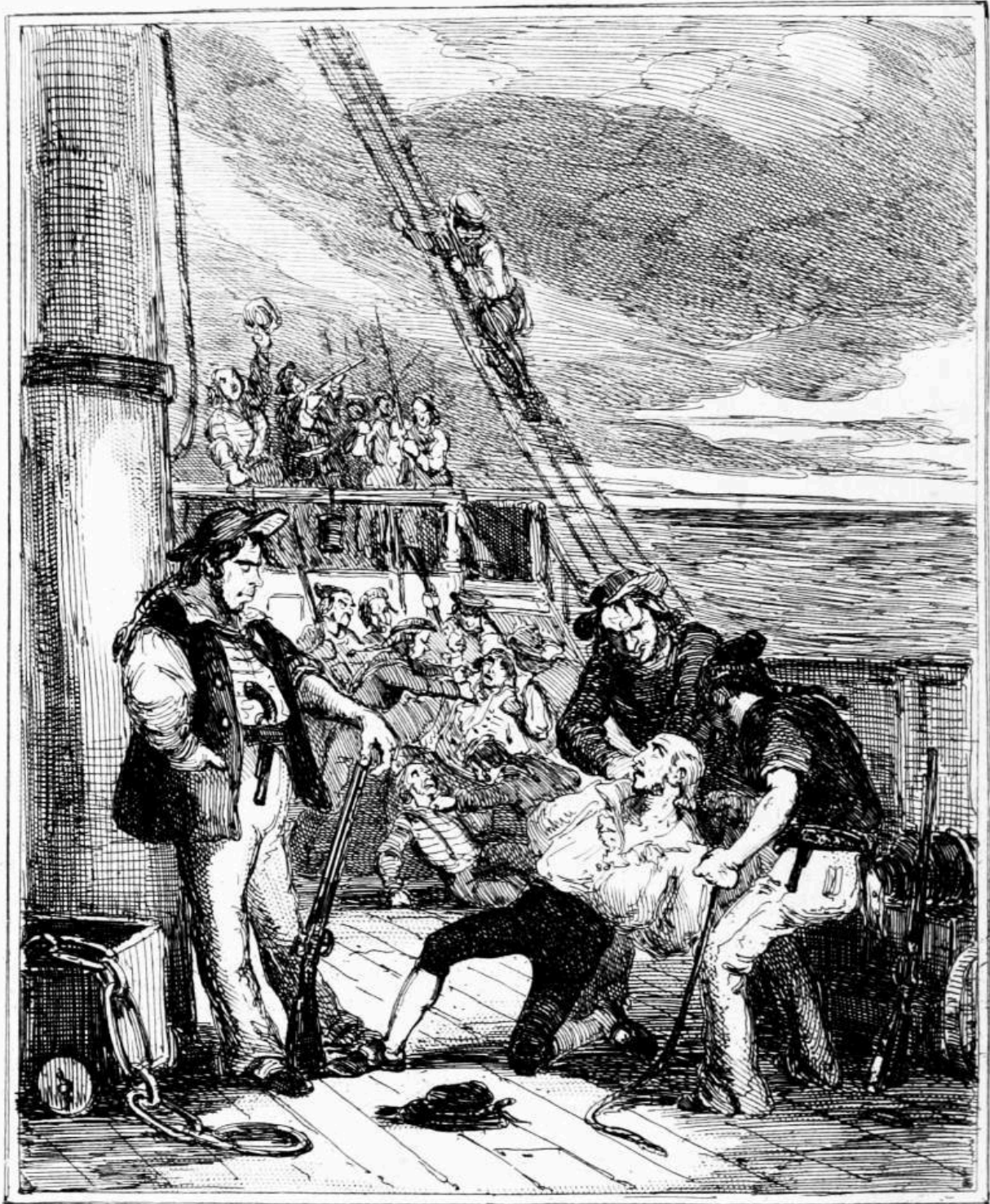
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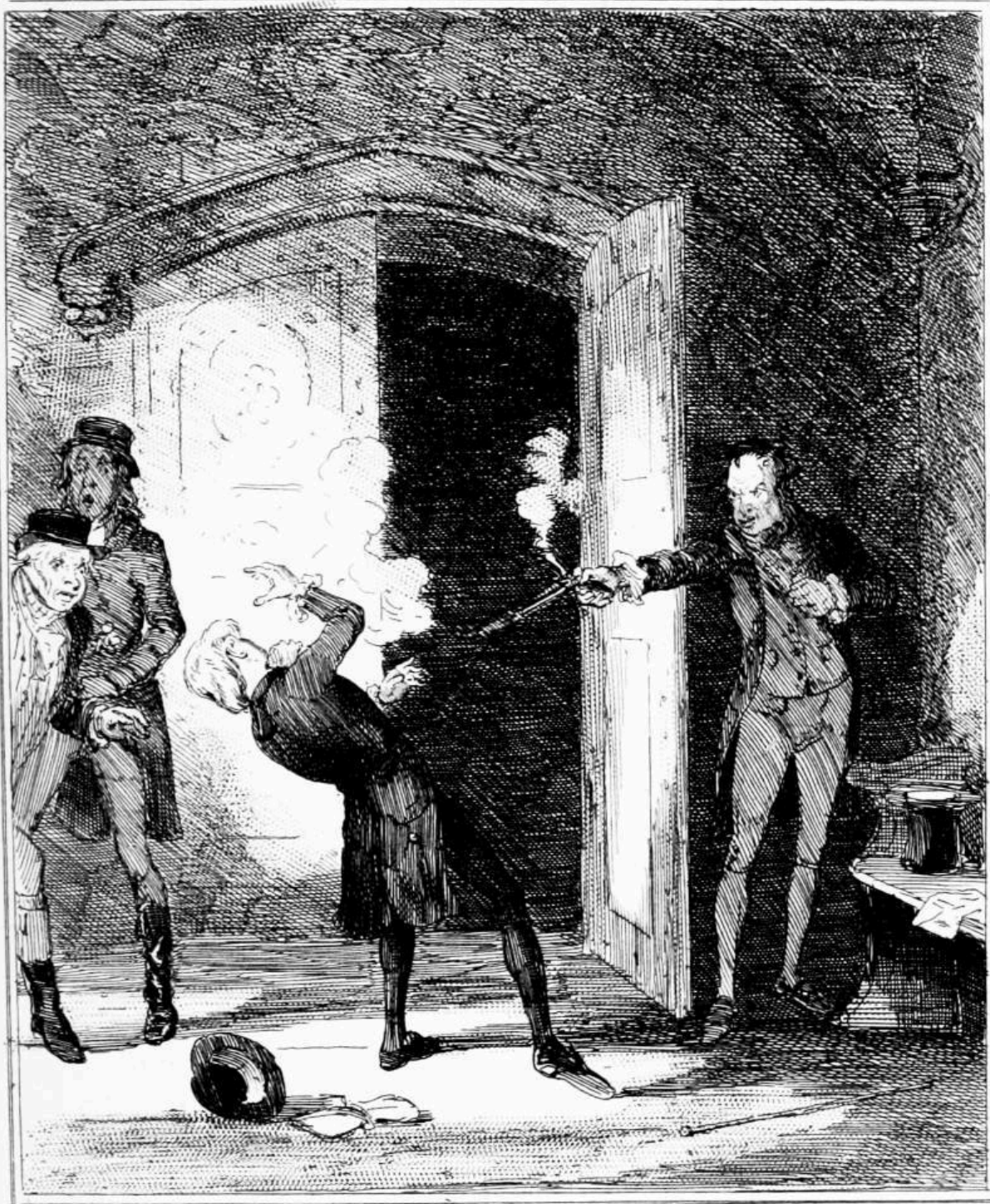
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